

Kitāb al-Tawḥeed

كِتَابُ التَّوْحِيدِ

*The Basis of Islam
and the Reality of Monotheism*

Vol. 1

By Professor Muḥammad ibn Abdullah al-Massari

Volume 1

The Foundations of Deen and its Fundamental Maxims

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Preface

Kitāb al-Tawḥeed: The Basis of Islam and the Reality of Monotheism, is truly a landmark work, occupying a unique place amongst a contemporary landscape often bereft of original insightful scholarly work. The series represents an in-depth study into the very root origins of Islam, the essential nature of *Tawḥeed* (monotheism). Coupled with that, it tackles head on not only the age-old problem concerning the precise nature of *Shirk* (polytheism) and worship, but how these topics invariably correspond to contemporary issues like ruling, governance and allegiance. Liberated from the confused ill-disciplined divisions and historical blunders, primacy is given to the original textual sources, challenging many of the phantasms that have plagued Islamic thought for far too long.

Volume 1 of the series comprises topics relating to the foundations of Islam and its fundamental doctrinal principles. For the second revised edition of this volume, we have streamlined many chapters, particularly where referencing and citation was copious. Although not part of the original Arabic text, we have included accompanying footnotes, together with additional clarification where appropriate, which includes providing hardcopy referencing to many original sources in Arabic. Chapter headings have been streamlined for the present translation. As with other translated texts that we have produced, utilisation has been made of a single, standardised translation of the Qur'ān, that produced by Professor M Abdel Haleem. This is done largely for the sake of consistency, but also for accessibility and readability. Where we have departed from that, the rationale is provided in the footnotes.

Some additional explanation has on occasion been written into the body-text to provide greater exemplification for the English reader. That has been done under the direct supervision and approval of the author. All *aḥādith* are translated in full including the chains of transmission. On occasion the Arabic text has been omitted altogether where it is of considerable length, similar has been done with other large quotations, including material from exegesis and Qur’ānic verses.

There is no multiplicity of ‘gods,’ nor any pantheon, there is only Allah. He, the Exalted and Majestic, has no partner, no consort and no offspring whatsoever - whether that be falsely attributed to Him by the people of the book, who say that ‘Jesus is the son of God,’ or the pre-Islamic Arabs who said that ‘the angels were the daughters of Allah.’ He, the Exalted and Majestic and only He has the ultimate prerogative of command. We ask Allah for His help, support and guidance and to forgive our many mistakes and shortcomings. Perhaps this small effort presented here will benefit you as well as us, both in this present temporal plain, and the in the life to come, *Ameen Ya Rab*.

*Editorial team*¹

¹ Special thanks is due to our pool of translators who we are indebted to. Further assistance with translation on specific chapters was undertaken by Shaykh Muḥammad ‘Abdul Basit Awan. As with other published works, cover design was developed by Nazim Uddin who also prepared the Kindle version of the present text. The review and correction of errata was undertaken by Shaykh Muḥammad Abdul Basit Awan and Imran Choudhury. Our series editor, managing this project is Khalid Hasan.

About the author

Born in Mecca (Friday 8 November 1946), Professor Muḥammad ibn Abdullah al-Massari, may Allah preserve him, is from the Dawāsir tribe, which is the modern name for the famous tribe of Hamdān. He hails from a distinguished and scholarly family. His father, Shaykh Abdullah ibn Sulaymān ibn ‘Abdur-Raḥman ibn Muḥammad al-Massari, may Allah have mercy upon him (b. 1918 / d. 2005) was a learned scholar and one of the distinguished students of Sheikh Muḥammad ibn Ibrāhim al-Shaykh, may Allah have mercy upon him too. He also held several distinguished posts from early on, from being an assistant judge to Shaykh ‘Abd al-Aziz ibn Abdullah ibn Bāz, to becoming vice President and later President of the Board of Grievances (*Diwān al-Mathālim*; the Supreme Administrative and Constitutional Court), and a Professor of Islamic studies at *Dar al-Tawḥeed*, in Ṭā’if His maternal grandfather was the distinguished Shaykh Muḥammad ibn ‘Abdur-Razzāq (d. 1973), the founder of the *Dar al-Ḥadith* Academy in Mecca and al-Imām al-Ḥaramayn, of Medina and Mecca.

Naturally growing up in this distinguished scholarly environment Professor al-Massari was an outstanding student from a young age, benefiting enormously from study circles with his father and his associates. He has always had an insatiable desire for knowledge, leading him to peruse the rich collection of works from his father’s library, covering both the Islamic sciences, philosophy and literature. A very early example of this, is the study he undertook of *Majmu’ al-Fatāwa*, which is Ibn Taymiyyah’s acclaimed work consisting of some forty-volumes, following its publication in

1963. That study included a complete critical reading of the text accompanied with detailed comments, observations and criticisms.

In tandem with his studies in various branches of Islamic sciences, Professor al-Massari is also Professor Emeritus of Theoretical and Mathematical Physics. Published widely in the field of solar energy conversion, solid-state devices and QCD (quantum chromodynamics), some of his key achievements have been designing a modern prototype electric car and the calculation of the Top-Quark mass within the framework of the renormalisation group equations. However, it is his Islamic works that have made a quantum leap in contemporary Islamic thought, notable works include:

- The Constitution of Medina
- The Seal of Prophethood
- Prohibition of building Mosques on Graves
- Najd and the Horn of the Devil
- *Ḥākimiyyah* and the Sovereignty of *Sharī'ah*
- The Awaited Promised Mahdi

Professor al-Massari lives in exile in London since 1994, where he currently continues his research and writing.

Introduction

All praise and thanks are due to Allah; we praise him and ask him for help and forgiveness. We seek refuge with Allah from the evil within ourselves and our conduct. Whomsoever Allah guides, none can mislead and whomsoever he sends astray, none can guide. Whoever obeys Allah will be rightly guided and whoever disobeys Allah and his Messenger, will definitely stray afar. I bear witness that there are no multiple gods or deities, but there is only Allah alone; He has no partner, consort or offspring and I bear witness that Muḥammad is His servant and Messenger, the most beloved of all mankind.

يَا أَيُّهَا الَّذِينَ آمَنُوا اتَّقُوا اللَّهَ حَقَّ تَقَاتِهِ وَلَا تَمُوتُنَّ إِلَّا وَأَنتُمْ مُسْلِمُونَ

*O you who believe! Be mindful of Allah, as is His due, and make sure you devote yourselves to Him, to your dying moment.*¹

يَا أَيُّهَا النَّاسُ اتَّقُوا رَبَّكُمُ الَّذِي خَلَقَكُمْ مِنْ نَفْسٍ وَاحِدَةٍ وَخَلَقَ مِنْهَا زَوْجَهَا وَبَثَّ مِنْهُمَا رِجَالًا كَثِيرًا وَنِسَاءً وَاتَّقُوا اللَّهَ الَّذِي تَسَاءَلُونَ بِهِ وَالْأَرْحَامَ إِنَّ اللَّهَ كَانَ عَلَيْكُمْ رَقِيبًا

*O mankind - be mindful of your Lord, who created you from a single soul, and from it created its mate, and from the pair of them spread countless men and women far and wide; be mindful of Allah, in whose name you make requests of one another. Beware of severing the ties of kinship: Allah is always watching over you.*²

¹ *Qur'ān* 3: 102

² *Qur'ān* 4: 1

يَا أَيُّهَا الَّذِينَ آمَنُوا اتَّقُوا اللَّهَ وَقُولُوا قَوْلًا سَدِيدًا، يُصْلِحْ لَكُمْ أَعْمَالَكُمْ وَيَغْفِرْ لَكُمْ ذُنُوبَكُمْ وَمَنْ يُطِيعِ اللَّهَ
وَرَسُولَهُ فَقَدْ فَازَ فَوْزًا عَظِيمًا

*O you who believe - be mindful of Allah, speak in a direct fashion and to good purpose, and He will put your deeds right for you and forgive you your sins. Whoever obeys Allah and His Messenger will truly achieve a great triumph.*³

Truly the best of speech is the book of Allah and the best guidance is that from Muḥammad, peace and blessings be upon him. The worst of things are those that are newly invented without legal precedent; it is but a *bidāh* – innovation and all innovation results in misguidance. May the peace, blessings and greatest of salutations be upon Muḥammad, the best example and role-model sent forth to all of mankind. And may the blessings of Allah also be upon his noble family, his companions, their successors and all those who strive in the path of Allah.

To proceed - this treatise represents a study into the very root origins of Islam, the essential nature of *Tawḥeed* (monotheism), its proofs as found in the Qur’ān and that which has been established by the authentic *Sunnah*. Consequently the title that has been chosen for this work is: *Kitāb al-Tawḥeed: ‘Asās al-Islam wa Haqiqat al-Tawḥeed* (the book of monotheism: the basis of Islam and the reality of monotheism). There are a number of reasons why this study was prepared, amongst them the following:

Firstly, the age-old problem concerning the precise nature of *ibādah* (worship) and its exact relationship with the concept of *al-Ilāh* – the deity. Many have misunderstood this resulting in an extremely unsatisfactory answer which has led them to accuse the people of the *Qiblah* of *Shirk* (polytheism) which takes one outside the fold of the religion. Closely followed by this, was an unsound analysis and judgment by many of what actually constitutes *Shirk* resulting in one exiting the fold of Islam, which is a very serious matter indeed. Such line of reasoning has been extremely dangerous particularly when it has proceeded upon the basis of proofs that are neither decisive in nature and have more often than not been blatantly misapplied. Given the seriousness of the topic, there cannot be room for

³ Qur’ān 33: 70/71

difference or interpretation; foundational principles must be based upon definitive evidences reaching the level of certitude.

Secondly, the confused ill-disciplined tripartite division of *Tawḥeed* which is espoused by the sect of Wahhābism, namely: *Tawḥeed al-Rububiyyah* (monotheism of lordship), *Tawḥeed al-Uluhiyyah* (monotheism of worship) and *Tawḥeed al-Asmā’ wa’l-Ṣifāt* (monotheism of names and attributes). Putting *Tawḥeed* into this classification originates with the Shaykh and Imām Ibn Taymiyyah. Indeed, the mistakes which underpinned his reasoning for placing *Tawḥeed* into this division are heinous, as are those made by Shaykh Muḥammad ibn Abdul-Wahhāb (MIAW) who followed him in this regard, taking the division as being sacrosanct. The disorder in understanding ultimately lies with Imām Ibn Taymiyyah and his tripartite division which as we will show in this treatise is fundamentally flawed. In fact the decisive truth regarding the tripartite division is that it is seriously misleading and below-par for a division befitting in Islam. Several reasons can be advanced to demonstrate this.

Firstly, the meaning of the words used to propound the ‘conventional’ Wahhābi tripartite division is fallacious and invalid. These are not rooted in classical Arabic in which the Qur’ān was revealed and they are neither found in legal custom which always furnishes the linguistic custom. Deep rooted flaws exist within the reasoning advanced with respect to ‘*Uluhiyyah*.’ None more so than the implied logic that the existence of a deity is somehow contingent upon those that undertake the performance of worship towards it. Undoubtedly this is from the statements of disbelief (*kufṛ*), may Allah protect us from that. As will be demonstrated with decisive proofs and evidences the rejection of which would result in disbelief and ultimate exit from the fold of Islam.

Without accurately describing the reality of *Shirk* as it existed amongst the pre-Islamic Arabs it is false and misleading. However it goes further in that it stubbornly clings to this false understanding that the pre-Islamic Arabs did not have *Shirk* in the realm of *Rububiyyah* (lordship). In doing so it represents a denial of knowledge that is known by necessity from history which has reached us by way of *tawātur* (continuously recurrent transmission) and the study of such reports. Taking such a line of argumentation, which is borne of obsession, often psychosis, to its natural conclusion ultimately would

require one to claim that the Qur'ān is founded upon a lie, which is without question a statement of disbelief.

There is an inverted or upside-down logic to their claim that *Rububiyyah* entails or requires worship *Uluhiyah* and not the opposite. The analysis upon which the tripartite division is derived is ill conceived, in that it's various subdivisions are not distinct and they overlap.

The purported definition is not succinct enough to withstand ideas being haphazardly inserted into each category that are not essentially based upon the principles of *Tawḥeed*. For example concerning the *Ṣifāt* (divine attributes) these are in actual fact a branch of *Tawḥeed* and not a stand-alone principle or an independent division by itself. Such points must be made in the face of the extremism resulting from the sect of Wahhābism; whose adherents are experts in futility and superficiality, opposing thought and reason at every juncture. Through their rejection of the sound use of reason, thought and research, they revert to ignorance, basking in obtuseness while falsely clinging to a notion that they are the '*Salafiyyah*'.

It is neither conclusive nor comprehensive in its divisions or constituents. Other important aspects of *Tawḥeed* are completely omitted. For example, issues relating to *Tawḥeed al-Dhāt* (monotheism of the divine entity) and its principle attributes are entirely absent as are matters relating to any points concerning the attribution of a consort, spouse or offspring. *Tawḥeed Ḥākimiyyah* (monotheism relating to governance and the prerogative of command) which is one of the pinnacles of *Tawḥeed*, an area of contention between many Prophets and their respective nations, is notably absent as well. Placing *Tawḥeed Ḥākimiyyah* into the tripartite division cannot be done cleanly and in a way that it is not artificial.

As a result of the above, a great lie has ensued which has been used to wage a campaign of *Takfeer* upon the people of Islam and the major sin of striking them with the sword and justifying their blood to be spilt. This is besides many other difficulties and problems which have also arisen as a result.

Several problems have emerged during the period of time which followed the end of the last Caliphate and the conversion of the whole world into *Dar-ul-Kufr* (domain of disbelief). These problems were about the reality of *Tawḥeed*, its sections and it how it corresponds to contemporary issues like ruling, governance and allegiance, *Tawḥeed Ḥākimiyyah* and *Tawḥeed al-*

Muwāla wal-Mu'ādā. Such problems resulted from weaknesses and faults of the aforementioned tripartite division. Further compounding this situation was the work of government scholars - rabbinical sycophants and soothsayers - descending from the tradition of Prophet killing. Openly standing at war with Allah, they have sought to amplify these problems as well as mislead the public. All the while acting in private service to their masters, the leaders of *kufir* and tyrannical oppression; they have brazenly changed the laws of the *Sharī'ah*, being the enemies of the '*Awliyā* of Allah. They have aligned themselves with the enemies of Allah, fighting the Muslims under the banner of disbelief, all for a pitiful transient monetary worldly gain. Thus, they have betrayed and breached the heavenly covenant:

وَإِذْ أَخَذَ اللَّهُ مِيثَاقَ الَّذِينَ أُوتُوا الْكِتَابَ لَتُبَيِّنُنَّهُ لِلنَّاسِ وَلَا تَكْتُمُونَهُ فَنَبَذُوهُ وَرَاءَ ظُهُورِهِمْ وَاشْتَرَوْا بِهِ ثَمَنًا
قَلِيلًا فَبُيِّنَ مَا يَشْتَرُونَ

*Allah took a pledge from those who were given the Scripture - 'Make it known to people; do not conceal it' - but they tossed the pledge over their shoulders, they bartered it for a small price: what a bad bargain they made!*⁴

The tyrants of the Arabian Peninsula, the House of Saud are at the forefront of this campaign, seeking to change the *Sharī'ah* laws at any opportunity. They align themselves with hostile disbelieving forces openly at war with Islam and actively supporting them against Muslims under their banner and chain of command. Such tyrannical rulers exceed all bounds and have surpassed all their fellow rulers in this regard, who are themselves rulers of darkness, yokes around the necks of Muslims. Is it any surprise therefore that the enemies of Islam have been able to base their forces in the Arabian Peninsula, the very heartlands of Islam? From these bases they laid siege to Iraq for many years, thereafter they occupied it wreaking untold carnage upon its people; humiliating them in the most brutal of ways.

All the while the House of Saud remains aloof, their 'scholars', modern day clergy, cling to their tails, being part and parcel of this grand deception. These 'scholars' who are the lackeys of the tyrannical rulers of the Arabian Peninsula are not a disparate group, rather they are a religious institution, an

⁴ Qur'ān 3: 187

essential component in the oppressive state apparatus. In terms of their organisational structure, funding and indeed *modus operandi*, they differ very little from the Catholic Church of the Middle Ages. Hence, the *Kibār al-Ulemā* - ‘Council of Senior Scholars’ have deservedly earned their true title, that of the ‘Church of Najd.’ The Council being more reflective of the College of Cardinals expend great ink in support of their Pope, the ‘Grand Mufti of Saudi Arabia’, who is in effect a Minister of State by virtue of salary and rank through holding the position of chair of the ‘Standing Committee for Scholarly Research, Issuance of Religious Edits, Propagation and Guidance’.

The ruling system upon which the House of Saud is built is a system built upon *kufir* and *Shirk* a satanic system, rotten to its very core. Given the oddity of its political set-up it is more akin to a mafia-state founded upon criminality and the systematic looting of the wealth of Muslims. The state treasury is viewed as being nothing more than a family bank account, a mechanism for the self-enrichment of the mafia elite. Has history ever witnessed a similar gross and vulgar system? One built around the greed of the ruling family whose involvement in the drug trade, organised prostitution, alcohol, arms dealing and money-laundering is well known.

For that reason, their grand scholars are nothing more than hypocrites. They brazenly deceive the masses in order to protect the power-base of the House of Saud. *Tawḥeed* for them is a distorted idea, a *Tawḥeed* divorced from life, solely concerned and revolving around the dead, hence their obsessive preoccupation with graves, tombs and the like. This is even to the extent that they boastfully proclaim their destruction of all Islamic antiquities as objects of polytheism. In actuality, they are trying to destroy *Tawḥeed*, replacing it with a fixation of graves and the realm of the deceased. Writing in *Madārij al-Sālikeen* – ‘Ranks of the Divine Seekers,’ Imām Ibn Qayyim al-Jawziyya succinctly summed up their pitiful condition:

In particular, those in power who follow the demands of establishing their power by any means necessary, right or wrong, and when truth comes in the way of their power, they crush it and trample over it with their feet. Failing that, they repel it with tyranny. Failing that, they capture it in its path and divert it to another. They are prepared to go to any lengths to repel it. Finally, if they find it ineluctable, they grant it the mint and the sermon, but deprive it of any effective power,

authority, or promulgation. If, on the other hand, the truth happens to be on their side, in their favour, they protect and hover around it, coming to it submissively, not because it is the truth, but because it happens to agree with their ends and desires, and to recruit it to their ends: *And when they are summoned to Allah and His Messenger in order for him to judge between them, some of them turn away. If they were claiming their right, they would come willingly [to the Prophet]. Do they have sickness in their hearts? Are they full of doubts? Do they fear that Allah and His Messenger might deal with them unjustly? No, it is they who are the unjust ones.*⁵

These are the words of the esteemed scholar Ibn Qayyim, may Allah be pleased with him. Truly it is a beautiful characterisation of what they consider as vexatious. If one were in doubt concerning this, consider the announcements made by their treacherous priests and the groups of innovators that peddle their views; the self-appointed and proclaimed - ‘people of *Sunnah* and *ḥadith*’, ‘helpers of *Muḥammad’s Sunnah*’ and ‘troops of the *Ṣaḥāba*’, let alone the publications which they freely distribute, entitled: ‘*Obedience to al-Raḥman is obedience to the ruler*’, ‘*the heresy and fitna of al-Qutubiyyah*’ in reference to Sayyid Quṭb and ‘*Hākimiyyah and the fitna of takfeer*!’

وَمِنْهُمْ مَّنْ يَقُولُ اِنَّنِي لَا فِي الْفِتْنَةِ سَقَطُوا وَإِنَّ جَهَنَّمَ لَمُحِيطَةٌ بِالْكَافِرِينَ

*Some of them said, ‘Give me permission to stay at home: do not trouble me.’ They are already in trouble: Hell will engulf the disbelievers.*⁶

Recent history is littered with horrible disasters and vile massacres that the people of Islam have endured at the hands of barbarous Wahhābi groups, whether from the Armed Criminal Group (known as the GIA) in Algeria all the way to *Dā’esh* (ISIS) and the TTP (*Tarika Taliban/Pakistan*) of today. This also includes other organisations affiliated falsely to *al-Qā’eda* or the ‘global *Jihād*’, few of whom actually display any mercy. They have abandoned the fight against the warriors and aggressors from the people of

⁵ Ibn Qayyim al-Jawziyya (2022), *Ranks of the Divine Seekers* (Brill: Leiden), [Vol. 1, p. 168]. The verses quoted are from 24: 48/50

⁶ *Qur’ān* 9: 49

idolatry, turning their swords instead against the people of Islam; brazenly slaughtering women, children and the ordinary peaceful citizens who themselves suffer immeasurably at the hands of tyranny. Know without doubt, nay with certain knowledge that the Wahhābi sect is a renegade sect that descends from the *Khawārij al-Azāriqa* who perished previously. They are, accordingly to scholarly consensus, upon manifest misguidance and were from the bloodiest people of Nahrawān. And indeed we are furnished also with the statement made by the Imām and established proof Abu Muḥammad Ali Ibn Ḥazm may Allah be pleased with him, in his seminal work, *al-Fisal fi al-Milal wal-Niḥal* – ‘The Separator Concerning Religions, Heresies and Sects’: ‘But *al-Azāriqa* they were ignorant Arabs like cattle, they are on the path of misguidance.’ The Wahhābi sect is a sub-division from the *Khawārij - al-Azāriqa* – for indeed they are like cattle and are on a path of clear misguidance; may Allah protect us all from that.

We appeal to Allah, the Exalted and Majestic, to make this book useful and to guide us in order that all of our deeds be sincere, seeking Him alone. He has the power over all things. May the salutations, blessings and peace of Allah be upon His Messenger and servant Muḥammad and on his virtuous family and faithful companions until the Day of Judgement.

Praise be to Allah, Lord of all the worlds.

Professor Muḥammad ibn Abdullah al-Massari

Part I

Religion and Worldly Life

1. *Deen and Dunya*

Islam does not necessarily have a direct corresponding word for what is conveyed by the English term 'religion.' This is particularly the case when the word is set in the context of common parlance. The term employed, is '*Deen*', which means a comprehensive way of life; that is, a specific way of living based upon a comprehensive belief regarding the universe, man and life and its relationship with what precedes it (i.e. Allah, the Almighty), and with what succeeds it (i.e. the day of judgement). *Deen* does not only regulate the relationship between man and Allah and identify some of the moral values and individual proprieties, but it is also a comprehensive regulation of man's life in its entirety. Thus, there is a clear distinction between this and the Western concept of religion, which is limited to very specific areas of life. In the West since the revolutions of the seventeenth and eighteenth centuries, as well as the 'age of Enlightenment', religion is viewed solely as being a collection of rituals through which man has a personal relationship with the supernatural. Yet for Muslims the term *Deen* is far wider, addressing the following:

1. Man's relationship with Allah regarding beliefs, rituals and designated acts of worship.
2. Man's relationship with himself concerning knowledge, intention, emotions (love, hate, loyalty, etc.), manners, food, clothing, and even extends to beautifying and adorning oneself.
3. Man's relationship with other human beings, including:

- a. Family relations such as marriage, kinship, inheritance.
 - b. Private or civil relations, that is, relations with other individuals concerning contracts, transactions, industry, agriculture, exchange of services in trade, institutions and corporations.
 - c. Public relations, such as between the ruler and the ruled; constitutional relations; relations with public authorities; the constitution of the state, the judicial system and the penal code (evidences, punishments), public funds, legislation concerning land tax, general taxation and excise duty, public ownership etc.
 - d. International relations like those concerning independent groups, nations and countries with regards to treaty provisions, *Jihād*, envoys and embassies
4. Man's relationship with other creatures, such as animals, plants, inanimate objects and the environment holistically.

Conversely, worldly life – *Dunya* - in this context means the empirical nature of the universe as it is, without any value judgments being formed. It is worth noting that the following are considered to be related to worldly matters:

1. Natural sciences such as physics, chemistry, botany and other sciences that are concerned with the laws of the physical world which involve the use of experimentation, observation, sense perception and reason.
2. The application of these sciences in the fields of engineering, agriculture and medicine and their related skills, handicrafts and arts: such as shipping, smith craft, architecture, etc.
3. Methods of making and increasing wealth by various means such as grazing, hunting, planting, manufacturing, and trading as well as sciences related to circulating money and funds and the nature of markets, that is, the science of economics.

All these sciences are considered related to 'worldly matters' or *Dunya*. All the permissible means of earning money, and channels through which it can be spent and all means of distributing wealth in society, referred to as the economic system or economic policy are not related to worldly matters but

rather to religious matters, for they are certainly related to the perception of life, which is the comprehensive belief regarding the universe, man, life and its relationship with what precedes and what succeeds it. Allah, the exalted and ever majestic, revealed obligatory *Sharī'ah* legal judgments, that must be followed and for which man will be held accountable on the day of resurrection. This reckoning results in either eternal happiness which lies in the pleasure of Allah and enjoying the delights of paradise, or in permanent misery and damnation which is in the wrath of Allah the almighty and the severe torment of hell.

2. Urbanisation, Civilisation and Culture

Madaniyyah – urbanisation, is the total sum of the material manifestations of human activities that include the experimental and observatory sciences, the applied sciences and related skilled disciplines of the arts and crafts. Based upon this clear definition, it becomes apparent that urbanisation in origin, and in principle is universal, general, unbiased and has nothing to do with a specific perception or viewpoint of life. Urbanisation is also essentially similar in all nations regardless of their beliefs and culture. Therefore, it is possible for a Muslim to borrow it from any place and apply it in any manner he wishes to as long as it does not contradict any specific *Sharī'ah* legal text and that he is totally aware and permanently cautious of its possible cultural contamination with biased beliefs and doctrines. There is also a 'special' or 'specific urbanisation' that is related to and influenced by a perception of life. This type of urbanisation is uniquely related to a specific nation or people and Muslims should neither borrow nor copy it. This special urbanisation includes the arts of dancing, painting, sculpture, acting, theatrical performances and the like. It also includes some professions such as prostitution, Allah forbid, as well as certain physical sports, amusement and entertainment, like bull-fighting.

As for *Ḥaḍārah* - civilisation, it is commonly denoted as being a way of living, namely, the total set of beliefs, concepts, morals and criteria about life and its related 'culture' that is derived from this. Indeed, many times the use of these terms overlap so that the term civilisation is used when the actual term meant is urbanisation. Sometimes the two concepts are mixed up

resulting in misconceptions. The clarity of the perception of belief is marred by such confusion and the process of taking a sound juristic attitude becomes difficult. Therefore, we should be accurate when dealing with these difficult concepts and take care that the meaning of a concept corresponds to the actual term itself, so that they do not overlap or become confused with one another. Otherwise the creedal, intellectual and practical consequences will be serious.

It is true that the term civilisation is close in its original meaning to that of urbanisation. However, civilisation is closer in meaning to denoting a particular way of living than urbanisation, in that it relates to stable living within an urban environment and utilises the practice of settled agriculture and industry. That is in marked contrast to a nomadic existence, which is characterised by a lack of settlement, hunting and movement according to seasonal shifts. These are two different types of living which are clearly distinct. Although there are differences between life in cities as opposed to villages, both of which relate to settled living; the utilisation of technology, crafts etc. only differ by degree in these settings.

In Arabic, the term *Ḥaḍārah* has been used to denote meanings related to thoughts. That is why it was much closer to expressing concepts. The Arabic dictionary has that *"/haḍura/* with a *dammah* is similar to */nadusa/*, that is, a man of eloquence and who is well-learned in jurisprudence. *Al-Lissan* also points out that *'raḡulan haḍr'* with a *sukku*n on the */d/* denotes a man of eloquence. So, the term *Ḥaḍārah* is closer and more appropriate than urbanisation in denoting a set of concepts, moral and ideal values, i.e. how things ought to be, whereas urbanisation is more appropriate in denoting material forms, i.e. how things are. It is important to bear in mind the essential difference between the content of both concepts. As for these terms, they should not be incontestable. Nevertheless, being accurate in selecting a term that corresponds or is close to the intended meaning is still important and required.

The term *thaqāfa* – culture, means all the sciences, knowledge and crafts which the belief of such a civilisation has instigated and out of which they emerged. It could also denote the knowledge that influences the mind and its moral judgment upon matters, like legislation, economics, history, language, and similar branches of knowledge. Thus civilisation, and culture which is a part of it, are necessarily biased and unique to each nation and people. It is related to the basic or fundamental beliefs that a nation holds. If such a

civilisation emanated from a comprehensive belief regarding the universe, man and life – as in the case of the Islamic civilisation and the democratic-capitalist civilisation – it would be considered a religious or ideological civilisation. Civilisation is always connected to the unique features of people and the nation which emerged through historical development and the interaction with events happening with the passage of time. In this case, such a civilisation would be a man-made civilisation like the Greek, Babylonian, Assyrian, Chinese and European civilisation, that is, before the liberal-democratic-capitalist civilisation became victorious and dominated life in Europe, the United States and Western world. There is no doubt that the Greek, the Babylonians and the Assyrians in ancient times as well as the Americans and Europeans more recently had their own religions, be that paganism or Christianity. Yet these religions are just pure spiritual doctrines or limited to being moral codes. They do not include all the concepts, convictions, criteria, or legislation covering all aspects of life. Thus, no civilisation will emerge from these religions. The people agree on their own set of concepts and legislation pertaining to worldly affairs. These man-made concepts, convictions and criteria constitute their own civilisation though they are not specifically derived from their religion. This way the people have a non-religious-based civilisation, although they may believe in a certain religion, their civilisation is not derived from it, therefore it is a man-made civilisation.

Many modern people and nations, while embracing several different religions, follow the same civilisation, like the Japanese, the Indians, the Americans and the French, which is the Western democratic-capitalist civilisation. Islam has its own unique civilisation and culture. The culture included the sciences of the Arabic language and those of the *Deen* with its various branches. This civilisation filled the world with light, knowledge and guidance. Without doubt this is the most perfect civilisation in the whole world, which produced the largest number of books and references.

Western commentators often brag about what they call ‘human civilisation.’ However, this is a false terminology as they marshal it to refer only to their own civilisation. Any serious objective study shows that this is a civilisation based essentially upon the edifice of Greco-Roman paganism with slight traces of the Christianity of Paul; not the genuine ‘Christianity’ of Jesus the son of Mary (peace be upon him and his mother), and a cursed racial

Judaism, that of sinful scribes and rabbis who killed the Prophets; not the genuine 'Judaism' of the Torah and Moses peace be upon him. Pauline Christianity diverged further several centuries after its emergence to become a spiteful and malicious Crusade. Western civilisation is a purely local phenomenon that has nothing to do with the beliefs, thoughts, concepts, convictions and customs of the rest of the world no matter how the proponents of globalisation brag and argue. The term was selected as it bears humanitarian and international connotations so as to deceive the other nations in the world, and Muslims in particular, to cunningly drive Muslims out of their own *Deen*. Embracing Western civilisation, falsely and erroneously known as 'humane' or 'humanitarian' and living according to it, inevitably entails Muslims' reverting to *kufir*, misguidance and to perpetual misery and a permanent curse ultimately ending in hellfire. The term is also strongly indicative of the racism and arrogance of the West and of its contempt for the rest of mankind. They claim that whatever is Western is 'humane' and 'international', while whatever is non-Western and belongs to other nations, is underdeveloped, backward, uncivilised and barbaric. In the best scenarios, it is limited, local and can never be universal.

From the previous discussion, this shows that *Deen* - in the eyes of the people of Islam - is not simply limited to pure ritualistic acts of worship, metaphysical beliefs or even beautiful manners and general morality as it is within the Western conception of religion. In fact, it relates to all voluntary human acts upon which a legal *Sharī'ah* judgment - *ḥukm sharī'*, is made, whether:

- It is intended as being pure worship; drawing closer to Allah in order to achieve a particular spiritual, devotional or ascetic value, such as through the devotional acts of worship associated with prayer, remembrance and supplication.
- Or intended to achieve a congenital ethical value, like being honest, generous and even considerate to animal welfare.
- Intended as achieving a humanitarian value, such as helping others suffering from loss, like in war or in natural disasters; saving someone from drowning regardless of race, colour or religion etc.
- People seek to gain a greater moral standing, by praise or glory.
- Wanting to obtain a material benefit such as a monetary one obtained by payment or trade.

All of this division from optional human acts is considered within the domain of *ḥukm sharī'*. Adherence to the *ḥukm sharī'* is the spiritual side of worshipping in it. If a person wishes to realise worshipping Allah according to all its conditions, they must adhere to the *ḥukm sharī'* in all actions. That would result in being a spiritual worshipper. Such an individual thus becomes worthy of praise and reward from Allah. 'Worship' here means acceptance of, contentment with, and obedience to the command of Allah, emerging from the utmost love and glorification of Allah, constructed upon firm belief to the level of certitude. It is also the absolute belief that Allah is the one and only true God, necessarily existing; *al-Ḥayy* (the Ever-Living) *al-Qayyum* (the Self-Existing by whom all subsist), the First who is uncreated and eternal, without beginning or end. He acts as he wills, creating whatsoever He wills or chooses. He cannot be questioned regarding what He does; nothing can reach His prerogative of command and He is swift in taking account.

In truth, this is 'spirituality' for it is a matter of consciousness and perception. There is nothing related to the matter of the spirit itself or whether the man is composed of material and spirit, regardless of whether that is a valid line of reasoning or not. As for what some of the scholars have said: 'Customs (or mores) become acts of worship if accompanied with a correct intention,' such wording is not strictly correct. Customs or to be more precise, the permissible, does not turn into that which is *mustahāb* (recommended) or *wājib* (obligated) on the basis of certain intentions or consciousness. Whilst the one undertaking this may be deserving of a particular reward or perhaps even punishment, it is fundamentally not the same act. All of this will be detailed in a later chapter.

3. Distinguishing between 'Deen' and 'Dunya'

The aforementioned arguments are easily recognisable with perception, reason and through the interpretation of the texts of revelation namely the Qur'ān and *Sunnah*. These are the only revealed legal texts. Allah, whose names and attributes are blessed and sanctified, has explicitly stated some of these points in the Qur'ān. He also revealed this to his infallible Prophet Abul-Qāsim Muḥammad ibn Abdullah ibn Abdul-Muṭṭalib, the Hashemite, Qurayshi, Adnāny, Arab, the unlettered Prophet and Messenger, the last of the Prophets, the leader of Messengers – directly and explicitly, so that no exegesis - even if all texts are brought together - would be needed to further prove it. In this regard, the following texts set out the scriptural basis of this argument.

As reported in the *Musnad* of Imām Aḥmad with the upmost acknowledged authentic channel of transmission upon the authority of 'Aisha, mother of the believers as well as Anas ibn Mālīk:

حدثنا عفان قال حدثنا حماد بن سلمة قال أخبرنا ثابت عن أنس وهشام بن عروة عن عائشة أن النبي صلى الله عليه وسلم سمع أصواتا فقال ما هذه الأصوات قالوا النخل يؤبرونه يا رسول الله فقال لو لم يفعلوا لصلح فلم يؤبروا عامنذ فصار شيصا فذكروا ذلك للنبي صلى الله عليه وسلم فقال إذا كان شيئا من أمر دنياكم فشانكم به وإذا كان شيئا من أمر دينكم فإلي

'Affān narrated to us he said Ḥammād ibn Salama narrated to us he said Thābit reported to us from Anas and Hishām ibn 'Urwa from 'Urwa from 'Aisha that the Prophet peace and blessing be upon him heard some sounds. So, he asked - *What are these sounds?* It was said:

It is the palm-tree being pollinated, O Messenger of Allah! He said: *If they had not done that, it would have been better.* So they did not do it that year and the date fruits did not ripen. They mentioned it to the Prophet peace and blessings be upon him and he said: *If it is something related to your worldly affairs, it is your affair and if it is something from the commands of your Deen it is unto me.*¹

Similar is reported in the *Sunan* of Ibn Mājah, as well as in other collections, such as in the *Musnad* of Abu Ya'la and by Ibn Ḥibbān in his *Ṣaḥīḥ*.² Commenting upon this narration, Shaykh Ḥussein Asad said that the channel of transmission was authentic - *isnād Ṣaḥīḥ*; whereas Shaykh Shu'ayb al-Arnā'ut said that it was authentic upon the conditions as set out by Imām Muslim. Additionally, on the same subject Imām Aḥmad cited the following narration in his *Musnad*:

حدثنا عبد الصمد حدثنا حماد عن ثابت عن أنس قال سمع رسول الله صلى الله عليه وسلم أصواتا فقال ما هذا؟ قالوا يلحقون النخل، فقال لو تركوه فلم يلحقوه لصلح، فتركوه فلم يلحقوه فخرج شيصا فقال النبي صلى الله عليه وسلم ما لكم؟! قالوا تركوه لما قلت!، فقال رسول الله صلى الله عليه وسلم: إذا كان شيء من أمر دنياكم فأنتم أعلم به، فإذا كان من أمر دينكم فإلي 'Abd al-Ṣammad narrated to us Ḥammād narrated to us from Thābit from Anas he said: The Messenger of Allah, peace and blessings be upon him heard some sounds upon which he said: *What is this?* They replied pollinating date palms. So, he said: *If it is left it would be better.* They did not pollinate and less was yielded. Thus, the Prophet (peace be upon him) said: *What (have) you (done)?* They replied, we left it upon your statement. Upon this the Prophet (peace be upon him) said: *If it is related to your worldly affair, you (are all) more knowledgeable of it. If it is something related to your Deen, it is (referred) to me.*³

Imām Muslim records a narration bearing the same meaning with an authentic chain of transmission in his *Ṣaḥīḥ* but with an insufficient summary.⁴ The

¹ *Musnad* Aḥmad [Vol. 6, no. 24964]

² *Sunan* Ibn Mājah [Vol. 2, no. 2471], *Musnad* Abu Ya'la [Vol. 6, no. 3480 and 3531] and *Ṣaḥīḥ* Ibn Ḥibbān [Vol. 1, no. 22]

³ *Musnad* Aḥmad [Vol. 3, no. 12566]

⁴ *Ṣaḥīḥ* Muslim [Vol. 4, no. 2363]

narration contains the wording: ‘*You are more knowledgeable of your worldly affairs.*’ It is an aborted version that people unfortunately use in most cases. Another version similar to that of Muslim was recorded by al-Dāraquṭni, as well as by al-Bazzār in his *Musnad*. Imām Abu Muḥammad Ali Ibn Ḥazm cited this in his seminal work *al-Iḥkām fī Uṣūl al-Aḥkām* (Judgement on the Principles of Law) via the channel as recorded by al-Bazzār. The *ḥadith* related by Anas as found in al-Bazzār states – ‘*You are more knowledgeable of what is good (for you in) worldly life. As for your hereafter, it is (referred) to me.*’ This narration seems to be of similar meaning, for one of the narrators must have replaced the word ‘*your Deen*’ with ‘*your hereafter.*’

As for what is said by Ḥammād ibn Salama, for example in *Fawā'id Tamām*, from Hishām ibn Urwa from Urwa from ‘Aisha, it is more likely than that to go against all of what has been reported from Khālīd ibn al-Ḥārith, Muḥadīr and Ḥafṣ ibn Ghayāth and other than them, as it is reported in *mursal* form.⁵ This has been confirmed by Imām al-Dāraquṭni in his *Ilal* where it is stated:

(He was) asked about the *ḥadith* of ‘Urwa from ‘Aisha from the Prophet, peace and blessings be upon him, that he heard (the tradition) regarding the pollination of palm trees, and he said ‘*If you didn’t do that, it would have been better.*’ They didn’t respond and it became a thing. It was said (raised before) the Prophet, peace and blessings be upon him and he said: ‘*If it concerns a matter relating to your worldly affairs, then it is over to you.*’ He said: Ḥammād ibn Salama narrated it from Hishām from his father from ‘Aisha. Khālīd ibn al-Ḥārith, Muḥāḍir and other than them, disagreed with him, narrating it from Hishām from his father in *mursal* form, and that is the correct (version).⁶

Imām Muslim records the next narration in his *Ṣaḥīḥ*:

حَدَّثَنَا عَبْدُ اللَّهِ بْنُ الرَّومِيِّ الْيَمَامِيُّ وَعَبَّاسُ بْنُ عَبْدِ الْعَظِيمِ الْعَنْبَرِيُّ وَأَحْمَدُ بْنُ جَعْفَرٍ الْمَعْقَرِيُّ قَالُوا حَدَّثَنَا النَّضْرُ بْنُ مُحَمَّدٍ حَدَّثَنَا عِكْرَمَةُ وَهُوَ بْنُ عَمَّارٍ حَدَّثَنَا أَبُو النَّجَّاشِيِّ، حَدَّثَنِي رَافِعُ بْنُ خَدِيجٍ قَالَ قَدِمَ نَبِيُّ اللَّهِ صَلَّى اللَّهُ عَلَيْهِ وَسَلَّمَ، الْمَدِينَةَ وَهُمْ يُؤَبِّرُونَ النَّخْلَ يَقُولُونَ يَلْقَحُونَ النَّخْلَ،

⁵ *Fawā'id Tamām* [Vol. 3, no. 1082]

⁶ al-Dāraquṭni, *Ilal* [Vol. 14, no. 3531]

فَقَالَ مَا تَصْنَعُونَ؟! قَالُوا كُنَّا نَصْنَعُهُ، قَالَ لَعَلَّكُمْ لَوْ لَمْ تَفْعَلُوا كَانَ خَيْرًا فَتَرَكُوهُ فَنَفَضْتُ أَوْ فَنَقَضْتُ، قَالَ فَذَكُرُوا ذَلِكَ لَهُ فَقَالَ إِنَّمَا أَنَا بَشَرٌ إِذَا أَمَرْتُكُمْ بِشَيْءٍ مِنْ دِينِكُمْ فَخُذُوا بِهِ وَإِذَا أَمَرْتُكُمْ بِشَيْءٍ مِنْ رَأْيِي فَإِنَّمَا أَنَا بَشَرٌ، قَالَ عِكْرَمَةُ أَوْ نَحْوُ هَذَا؛ قَالَ الْمَعْقَرِيُّ: (فَنَفَضْتُ) وَلَمْ يَشْكُ

Abdullah ibn al-Rumi al-Yamāmi, ‘Abbās ibn Abdul ‘Adtheem al-Anbari and Aḥmad ibn Ja’far al-Ma’qiri narrated to us they said: al-Naḍr ibn Muḥammad narrated to us ‘Ikrimah narrated to us (and he is Ibn ‘Ammār) Abul-Najāshi narrated to us Rāfi’ ibn Khadij narrated to me, he said the Prophet peace and blessings be upon him came to Medina and the people had been grafting the trees. He said: *What are you doing?* They said: We are grafting them, whereupon he said: ‘*It may perhaps be good for you if you do not do that.*’ So they abandoned this practice (and the date-palms) began to yield less fruit. They made a mention of it (to the Prophet), whereupon he said: ‘*I am a human being, so when I command you about a thing pertaining to religion, do accept it, and when I command you about a thing out of my personal opinion, keep it in mind that I am a human being.*’

‘Ikrimah reported that he said something like this; al-Ma’qiri said (diminished) beyond any doubt.⁷

Ibn Ḥibbān cites the same tradition in his *Ṣaḥīḥ*, with the wording – ‘*I am only mortal, if I narrate something to you concerning matters in relation to Deen, take it; if I narrate something regarding your worldly affairs, I am but human.*’⁸ After which Ibn Ḥibbān says: ‘Abul-Najāshi is the *mawla* of Rāfi’, his name is ‘Aṭā ibn Ṣuhayb.’ The narration is further reported in *Mu’jam al-Kabir* by Imām al-Ṭabarāni with wording similar to that as reported by Ibn Ḥibbān.⁹ Concerning the narration, Shaykh Shu’ayb al-Arna’uṭ said the *isnād* was *ḥasan*. Definitely the *ḥadith* is *Ṣaḥīḥ* and is established by way of definitive proofs. What has been said about the *iḍṭirāb* (semblance of disturbance) in the *ḥadith* of ‘Ikrimah ibn ‘Ammār, he is considered *thiqa ma’mun* but only in his *ḥadith* from Yaḥya ibn Abi Kathir and not from other than that.

⁷ *Ṣaḥīḥ* Muslim [Vol. 4, no. 2362]

⁸ *Ṣaḥīḥ* Ibn Ḥibbān [Vol. 1, no. 23]

⁹ al-Ṭabarāni *Mu’jam al-Kabir*, [Vol. 4, no. 4424]

Following on from this, there is also the *ḥadīth* of Jābir ibn Abdullah, which is related to the same subject matter and has an authentic channel of transmission. Imām al-Ṭabarānī reported this in the *Muʿjam al-Awsaṭ*:

حَدَّثَنَا أَحْمَدُ هُوَ أَبُو عَبْدِ اللَّهِ أَحْمَدُ بْنُ دَاوُدَ بْنِ مُوسَى الْمَكِّي قَالَ حَدَّثَنَا عَيَّاشُ بْنُ الْوَلِيدِ الرَّقَّامُ قَالَ حَدَّثَنَا مُحَمَّدُ بْنُ فَضَيْلٍ قَالَ حَدَّثَنَا مُجَالِدُ بْنُ سَعِيدٍ عَنِ الشَّعْبِيِّ عَنْ جَابِرِ رَضِيَ اللَّهُ عَنْهُ قَالَ أَبْصَرَ رَسُولُ اللَّهِ صَلَّى اللَّهُ عَلَيْهِ وَسَلَّمَ النَّاسَ يُلْقِحُونَ النَّخْلَ، فَقَالَ: مَا لِلنَّاسِ؟ قَالَ: يُلْقِحُونَ يَا رَسُولَ اللَّهِ قَالَ لَا لِقَاحٍ أَوْ مَا أَرَى الْبِقَاحَ بِشَيْءٍ قَالَ فَتَزَكُوا الْبِقَاحَ، فَجَاءَ تَمَرُ النَّاسِ شَيْصًا، فَقَالَ رَسُولُ اللَّهِ صَلَّى اللَّهُ عَلَيْهِ وَسَلَّمَ: مَا أَنَا بِزَّرَّاعٍ وَلَا صَاجِبٍ نَخْلٍ، لَقِحُوا

Aḥmad narrated to us, he is Abu Abdullah Aḥmad ibn Dāwūd ibn Musa al-Makki, he said ‘Ayyāsh ibn al-Waleed al-Raqqām narrated to us he said Muḥammad ibn Fuḍeel narrated to us he said Mujālid ibn Saʿeed narrated to us from al-Shaʿbi from Jābir may Allah be pleased with him, he said: The Messenger of Allah, peace and blessings be upon him saw the people pollinating the date palms, so he said: *What are the people doing?* He said: Pollinating O Messenger of Allah. He said – ‘*Don’t pollinate (or) I don’t see the need for this pollination.*’ So they stopped pollinating. Later, the dates did not turn out well, and people complained. The Messenger of Allah peace and blessings be upon him then said: ‘*I am not a farmer or the owner of date palms; go ahead and pollinate.*’¹⁰

It is also reported in *Sharḥ Mashkul al-Athār* via essentially the same channel, after which Imām al-Ṭaḥāwī elicits us with the following important comment:

This was not conveyed from him peace and blessings be upon him as a report from revelation, but rather it was his expressed opinion based on a matter where people held different views. Then they would differ, and those with knowledge about it would become distinct from those without knowledge. The Messenger of Allah peace and blessings be upon him was not someone who personally experienced this or was from a place where it was commonly practiced by its people. This is because his city (of origin) was Mecca, and at that time, there were no date palm trees in it. The date palms were in the areas *outside* the city

¹⁰ al-Ṭabarānī, *Muʿjam al-Awsaṭ* [Vol. 1, no. 1030]. Also cited in the *Muʿjam al-Kabir* [Vol. 6, no. 1034].

that he later migrated to. He and his people did not have the same expertise and experience in this regard as the people of Medina did. Therefore, his statement about this matter, when he said it, was made in a way that allowed for various opinions, and it was not a definitive statement from him. It was based on his rejection of what he deemed impossible according to his knowledge, and his statement was more of a conjecture.¹¹

There is also the narration which is in *Kashf al-Astār Zawāʿid al-Bazzār* with alternate wording:

حَدَّثَنَا مُحَمَّدُ بْنُ الْمُثَنَّى حَدَّثَنَا عَيَّاشُ بْنُ أَبَانَ حَدَّثَنَا مُحَمَّدُ بْنُ فَضَيْلٍ عَنْ مُجَالِدٍ عَنِ الشَّعْبِيِّ عَنْ جَابِرِ أَنَّ النَّبِيَّ صَلَّى اللَّهُ عَلَيْهِ وَسَلَّمَ مَرَّ بِقَوْمٍ يُلْقِحُونَ النَّخْلَ فَقَالَ مَا أَرَى هَذَا يَغْنِي شَيْئًا فَتَرَكَوْهَا ذَلِكَ الْعَامَ فَشَيْصَتْ فَأَخْبَرَ النَّبِيَّ صَلَّى اللَّهُ عَلَيْهِ وَسَلَّمَ فَقَالَ أَنْتُمْ أَعْلَمُ بِمَا يَصْلُحُكُمْ فِي دُنْيَاكُمْ

Muḥammad ibn al-Muthanna narrated to us ‘Ayyāsh ibn Abbān narrated to us Muḥammad ibn Fuḍeel narrated to us from Mujālid from al-Shaʿbi from Jābir that the Prophet peace and blessings be upon him once observed the people pollinating the date-palm and he said: ‘From what I see this won’t do anything of benefit.’ So the people left that the next year and the crop yield was poor. When reported to the Prophet, peace and blessings be upon him he remarked: ‘*You are more knowledgeable about what benefits you in your worldly affairs.*’¹²

Commenting after citing the narration al-Bazzār said: ‘We don’t know of it being reported from Ibn Fuḍeel except by way of Muḥammad ibn ‘Amr al-Tanuri and ‘Ayyāsh and they are both Basran.’ As well as ‘Ayyāsh ibn Abbān and with this odd wording which is close to that from the single wording of the *aḥādīth* by Imām Muslim, but it is from al-Bazzār, he was dictating this from his memory and there were many great errors. There is also what has been reported in *al-Kharrāj* of Yaḥya ibn Adam:

أَخْبَرَنَا إِسْمَاعِيلُ قَالَ حَدَّثَنَا الْحَسَنُ قَالَ حَدَّثَنَا بِحْيَى قَالَ حَدَّثَنَا أَبُو بَكْرِ بْنُ عَيَّاشٍ عَنْ سُلَيْمَانَ التَّيْمِيِّ عَنْ أَبِي مَجْلَزٍ قَالَ دَخَلَ رَسُولُ اللَّهِ صَلَّى اللَّهُ عَلَيْهِ وَسَلَّمَ خَائِطًا لِلْأَنْصَارِ وَهُمْ يُلْقِحُونَ

¹¹ al-Ṭaḥāwī, *Sharḥ Mashkul al-Athār* [Vol. 4, no. 1723]

¹² *Musnad al-Bazzār* [Vol. 1, no. 202]

نَحْلًا، فَقَالَ وَيُغْنِي هَذَا شَيْئًا؟، فَتَرَكَوهُ، فَلَمْ تَحْمِلِ النَّحْلُ، فَقَالَ النَّبِيُّ صَلَّى اللَّهُ عَلَيْهِ وَسَلَّمَ عُودُوا، فَإِنَّمَا قُلْتُمْ لَكُمْ، وَلَا أَعْلَمُ

Ismā'il reported to us he said al-Ḥasan narrated to us he said Yahya narrated to us he said Abu Bakr ibn 'Ayyāsh narrated to us from Sulaymān al-Taymi from Abu Mijlaz he said the Messenger of Allah, peace and blessings be upon him, entered a garden of the Anṣār and (there) they were pollinating date palms. So he said: 'This isn't of any use.' (Therefore) they left it and the date palms didn't yield dates. Thus, the Prophet peace and blessings be upon him said: 'Come back, for what I said to you, I did not know.'¹³

Imām Muslim also reports this in his *Ṣaḥīḥ*:

حدثنا قتيبة بن سعيد التَّقْفِي وأبو كامل الجحدري وتقاربا في اللفظ، وهذا حديث قتيبة قال حدثنا أبو عوانة عن سماك عن موسى بن طلحة عن أبيه قال مررت مع رسول الله صلى الله عليه وسلم يقوم على رؤوس النخل فقال ما يصنع هؤلاء؟!، فقالوا يلحقونه: يجعلون الذكر في الأنثى فيلقح، فقال رسول الله صلى الله عليه وسلم ما أظن يغني ذلك شيئا! قال فأخبروا بذلك فتركوه فأخبر رسول الله صلى الله عليه وسلم، بذلك فقال إن كان ينفعهم ذلك فليصنعوه؛ فإني إنما ظننت ظنًا فلا تؤاخذوني بالظن، ولكن إذا حدثتكم عن الله شيئا فخذوا به فإنني لن أكذب على الله عز وجل

Qutayba ibn Sa'eed al-Thaqafi and Abu Kāmil al-Jahdari narrated to us, the wording (of the report) converges; this is Qutayba's *ḥadith*; they said Abu 'Awāna narrated to us from Simmāk from Musa ibn Ṭalḥa from his father he said: I and the Messenger of Allah, peace and blessings be upon him, happened to pass by people near the date-palm trees. He said: 'What are these people doing?' They replied: They are grafting, i.e. they combine the male with the female (tree) and thus they yield more fruit. Thereupon the Messenger of Allah, peace and blessings be upon him said: 'I do not find it to be of any use.' The people were informed about it and they abandoned this practice. The Messenger of Allah, peace and blessings be upon him (was later) informed (that the yield had dwindled), whereupon he said: 'If there is any use of it, then they should do it, for it was just an assumption of mine, and do not go after my assumption; but when I say to you

¹³ Yahya ibn Adam, *al-Kharāj* [no. 362, p. 139]

anything on behalf of Allah, then accept it, for I do not attribute a lie to Allah, the Mighty and Sublime.'¹⁴

Imām Aḥmad ibn Ḥanbal cites the report in his *Musnad* in two places.¹⁵ The later, containing the wording: 'That was only my thought. If it will do any good, then do it. I am only mortal like you, and what I think may be right or wrong. But when I tell you: Allah the Exalted and Majestic says - I will never tell lies about Allah.' The same narration is reported with authentic and good channels of narration in several collections.¹⁶ All of the above is reported via the channel of Simmāk ibn Ḥarb from Musa ibn Ṭalḥa from his father Ṭalḥa ibn 'Ubaydullah, may Allah be pleased with him. The *ḥadith* is connected and authentic and we know of no defect within it. Simmāk ibn Ḥarb is *thiqa* (trustworthy) and *ṣaduq* (truthful), notwithstanding the apparent *iḍtirāb* in some of the *ḥadith* from 'Ikrimah.

The narration from Ṭalḥa ibn 'Ubaydullah, may Allah be pleased with him carries an important addition with significant implications. Contained with the narrative is the reported formulation of his words that he had expressed a thought made upon an assumption. As will be demonstrated later in exhaustive detail, the Prophet peace and blessings be upon him is rendered infallible in his delivery of the message by Allah. Hence the people had mistaken his *assumption* regarding a matter concerning human affairs, thinking that it was in some sense related to revelation. As shown in the text where he said:

*That was only my thought. If it will do any good, then do it. I am only mortal like you, and what I think may be right or wrong. But when I tell you – 'Allah the Exalted and Majestic said,' I will never tell lies about Allah, the Exalted and Majestic.*¹⁷

Analysis

¹⁴ *Ṣaḥīḥ* Muslim [Vol. 4, no. 2361]

¹⁵ *Musnad* Aḥmad [Vol. 1, no. 1395 and 1399]

¹⁶ More than fifteen references are cited in the original text. Among the most prominent are recorded in: *Sunan* Ibn Mājah [Vol. 2, no. 2470], *Musnad* al-Ṭayālisi [Vol. 1, no. 230], *Al-Aḥād wal-Mathāni* by Ibn Abi 'Aāsim al-Shaybāni [Vol. 1, no. 207] and *Musnad* Abu Ya'la [Vol. 2, no. 639].

¹⁷ *Musnad* Aḥmad [Vol. 1, no. 1395 and 1399]

All narrations demonstrate this truth without any room for doubt. Consequently, where he said: *'If they had not done that, it would have been better.'* In the case where its lettering was preserved and not from the narrators reporting it with the meaning, *'If they had left that pollination, it would have been better;'* the form being a meaning carrying an exclusion, a command to leave the pollination of palm trees. At the same time, he peace be upon him is an infallible Prophet, and rendering obedience to him is obligated. And his speech in that specific regard, was that of a thought, an assumption. If there was certainty in that matter, the manner of expression would have reflected that clearly, such as: if you do that, it will not produce the desired effect. And it became clearer when we said: 'maybe if you didn't so that would be better!'

Expressing the matter in the form of a wish or desire to, shows that there is an underlying assumption in the wording. That is clear from his speech, *'I don't think that pollination is going to benefit,'* because when a person says, 'I think', it conveys that there is an assumption being made, which could be right or wrong in relation to the matter. When he (peace be upon him) said: *'I don't see this pollination (being) anything,'* which is more obvious, because: it was an opinion or thought, an assumption, which can be mistaken, without any doubt. The Prophet peace be upon him wasn't an individual who was an agriculturalist, or a farmer; he didn't cultivate or grow date-palms and would thus not have prior knowledge in relation to pollination and other similar processes. Hence, his statement of recall for what he had instructed: *'Come back, for what I said to you, I did not know.'* And that is expressly put, just like where he (peace be upon him) said: *'That was only my thought. If it will do any good, then do it,'* which is also explicit. The statements of the Prophet peace be upon him were perhaps not that of an express command, in other words saying: 'leave this pollination.' In reply, their reported wording was not that of 'you commanded us to obey and we thus complied.'

Understanding the distinction here is very important, given that the Prophet peace be upon him had also clarified this point. As revelation ultimately originates with Allah, it comes with certain knowledge and firm truth. Assumptions, even if made by the final messenger of Allah, cannot be construed as being truth, because in this area of opinion which does not ultimately emanate from revelation, he can make a mistake; such a mistake can never be regarded as correct.

And this also is entirely the case in what is conclusive evidence to support that he wasn't speaking from revelation, but that he was speaking from himself, similar to his acceptance or rejection of witness testimony by litigants in a judicial setting. Or even in relation to the reports which are brought before him. Greater detail concerning the subject will be detailed shortly, with the grace of Allah. Let us limit ourselves here with what we said, as has been reported in *Kashf al-Astār*:

حَدَّثَنَا إِسْمَاعِيلُ بْنُ عَبْدِ اللَّهِ الْأَصْبَهَانِيُّ حَدَّثَنَا حُسَيْنُ بْنُ حَفْصٍ حَدَّثَنَا خَطَّابُ بْنُ جَعْفَرٍ بْنُ أَبِي الْمُغِيرَةِ عَنْ أَبِيهِ عَنْ سَعِيدِ بْنِ جُبَيْرٍ عَنْ ابْنِ عَبَّاسٍ قَالَ كَانَ رَسُولُ اللَّهِ صَلَّى اللَّهُ عَلَيْهِ وَسَلَّمَ يَطُوفُ فِي النَّخْلِ بِالْمَدِينَةِ، فَجَعَلَ النَّاسُ يَقُولُونَ فِيهَا وَسُقْ، فَقَالَ النَّبِيُّ صَلَّى اللَّهُ عَلَيْهِ وَسَلَّمَ فِيهَا كَذَا وَكَذَا، فَقَالُوا: صَدَقَ اللَّهُ وَرَسُولُهُ فَقَالَ رَسُولُ اللَّهِ صَلَّى اللَّهُ عَلَيْهِ وَسَلَّمَ إِنَّمَا أَنَا بَشَرٌ فَمَا حَدَّثْتُكُمْ عَنِ اللَّهِ فَهُوَ حَقٌّ، وَمَا قُلْتُ فِيهِ مِنْ قَبْلِ نَفْسِي فَإِنَّمَا أَنَا بَشَرٌ أَصِيبُ وَأُخْطِئُ

Ismā'il ibn Abdullah al-Aṣbahānī narrated to us Ḥussein ibn Ḥafṣ narrated to us Khattāb ibn Ja'far ibn Abul'Mughira narrated to us from his father from Sa'eed ibn Jubayr from Ibn 'Abbās he said: The Messenger of Allah peace and blessings be upon him was passing by some date-palm (groves) in Medina. Thus, he made the people speak (concerning) a *wasq* (one camel load). The Prophet peace and blessings be upon him said this and that. They replied: Allah and his Messenger have spoken the truth. The Prophet peace and blessings be upon him said: *'Indeed, I am but mortal, so when I narrate to you from Allah, it is the truth. If what I say in it is from myself, then indeed I am but mortal and suffer loss and am mistaken.'*¹⁸

After this, al-Bazzār commented by saying, 'We don't know of it being reported from Ibn 'Abbās by other than this (particular) *isnād*.' There is also another reported contained in *Kashf al-Astār*:

حَدَّثَنَا أَحْمَدُ بْنُ مَنصُورٍ حَدَّثَنَا عَبْدُ اللَّهِ بْنُ صَالِحٍ حَدَّثَنَا اللَّيْثُ عَنْ ابْنِ عَجَلَانَ عَنْ زَيْدٍ عَنْ أَبِي صَالِحٍ عَنْ أَبِي هُرَيْرَةَ عَنِ النَّبِيِّ صَلَّى اللَّهُ عَلَيْهِ وَسَلَّمَ، قَالَ: مَا أَخْبَرْتُكُمْ أَنَّهُ مِنْ عِنْدِ اللَّهِ فَهُوَ الَّذِي لَا شَكَّ فِيهِ

Aḥmad ibn Manṣūr narrated to us Abdullah ibn Ṣāliḥ narrated to us al-Layth narrated to us from Ibn 'Ajlān from Zayd from Abu Ṣāliḥ from Abu Hurayrah from the Prophet peace and blessings be upon him), he

¹⁸ *Musnad al-Bazzār* [Vol. 1, no. 201]

said: 'Whatever I reported to you that it was from Allah, it is beyond doubt.'¹⁹

Again, after citing this, al-Bazzār comments by saying, 'We don't know of it being reported from Abu Hurayrah by other than this (particular) *isnād*.' Likewise, there is the report which is contained in the *Musnad* of Imām Aḥmad, with an authentic channel of transmission and it is a particularly long narrative:

Yazeed ibn Hārūn narrated to us Ḥammād ibn Salama reported to us from Thābit from Abdullah ibn Rabbāḥ from Abu Qatādah he said: We were with the Messenger of Allah peace and blessings be upon him on a journey. He said – 'If you do not reach (a place of) water by tomorrow, you would become thirsty!' The people rushed seeking water, but I lingered behind with the Messenger of Allah peace and blessings be upon him. Riding his camel, the Messenger of Allah peace and blessings be upon him leaned and he took a nap. So I tried to rest him on me and he rested on me. Then he leaned, and I tried to rest him on me and he rested. Then he lent again till he almost fell from his camel. Then I tried to rest him on me but he woke up and asked - *Who is the man?* I said Abu Qatādah. He asked: *How long have you been traveling?* I said, Since this night. He said: *May Allah safeguard you as you have safeguarded His Messenger!* He said, *What if we spent the night here?*

He lent towards the tree and climbed down the riding camel. Then he said - *Behold! Can you see anybody?* I said - Here is one person on a camel. There is the other. The number came to a total of seven. He said: *Keep (try not to forget) the time of our prayer!* We slept over and were awakened only by the heat of the sun. We woke up and the Prophet (peace be upon him) rode his animal. He moved ahead and we moved slowly, then he got off asking - *Do you have water?* I said, Yes, I have a container with a little water. He said, *Bring it to me* and I did. He said - *Just take a dribble, just take a dribble.* The people performed ablution and there remained a small amount of water. He said, *Keep it Abu Qatādah, for it will be of use.* Then Bilāl called for the prayer and

¹⁹ Ibid. no. 203

they performed two *rakat* before *Fajr* prayer and then performed *Fajr* prayer. Then he rode and we rode too.

People said to one another - We have not performed prayers properly (delaying its performance from due time). The Messenger of Allah (peace be upon him) said: *What is it that you are saying? If it is a worldly matter, it is up to you, but if it is a religious matter, it is (referred) to me.* We said, "O Messenger of Allah! We have not performed the due prayers properly. He said, *There is no negligence due to sleep, but it is while being awake. If it is so, then perform the same prayers tomorrow at its due time.* Then he said, *What do you think the people (say about us)?* They said - Yesterday, you said if you do not arrive to (a place of) water by tomorrow, you will become thirsty. People are at the place of water. The people woke up the next morning missing their Prophet peace and blessings be upon him. They said to each other: The Messenger of Allah peace and blessings be upon him is at the place of water. Among the people were Abu Bakr and Umar. They said: O People! The Messenger of Allah (peace be upon him) can never precede you to the place of water and leave you behind! If people were to obey Abu Bakr and Umar, they would have been guided.' (It was said three times).

At noon, the Messenger of Allah peace and blessings be upon him rose to them. They said, O Messenger of Allah! We have almost died out of thirst. He said, *Allah forbids that you may perish.* Then he said, *'Abu Qatādah! Get your container.* I brought it to him. Then he said, *Untie my cup for me.* I did and brought it to him. He started to pour water in the cup, and provide the people with it. So people were crowded around him. He said, *O you people! Behave properly, for all will drink.* Everyone drank except myself and the Messenger of Allah peace and blessings be upon him. He poured water for me saying, *Go ahead - drink Abu Qatādah.* I said, 'You drink first, O Messenger of Allah.' He said, *The person who gives water for the people is the last one to drink.* So I drank and he drank after me. The same amount of

water that was in the container remained in it. That day, the people were about three hundred.²⁰

Commenting upon this, Concerning this Shaykh Shu'ayb al-Arna'ut said: 'The *isnād* is *Ṣaḥīḥ* upon the conditions of (Imām) Muslim and its men are trustworthy, (being) the men of the two Shaykh's (*sic.* Bukhārī and Muslim) bar Ḥammād ibn Salama.' I would submit that Ḥammād ibn Salama ibn Dinār is resolutely trustworthy and from the scholars of the Muslims. Indeed, it is acknowledged that there was an objection raised from al-Bukhārī and he did not report from him. However many have accepted narrators considerably below his particular rank. Also al-Bukhārī did not report anything via Abdullah ibn Rabbāḥ and he is regarded as being trustworthy by scholarly consensus. Hence all of these channels are considered resolutely authentic and therefore taken as being decisive proof.²¹

Imām Muslim cites the next narration in his *Ṣaḥīḥ* via a channel other than that by way of Ḥammād ibn Salama. The *isnād* is resolutely authentic:

وحدثنا شيبان بن فروخ حدثنا سليمان يعني ابن المغيرة حدثنا ثابت عن عبد الله بن رباح عن
ابي قتادة قال خطبنا رسول الله صلى الله عليه وسلم فقال إنكم تسيرون عشيبتكم وليتكم،
وتأتون الماء إن شاء الله غدا، فانطلق الناس لا يلوي احد على احد

And Shaybān ibn Farukh narrated to us Sulaymān, that is to say – Ibn al-Mughira narrated to us, Thābit narrated to us from Abudllah ibn Rabbāḥ from Abu Qatādah he said: the Messenger of Allah, peace and blessings be upon him addressed us and he said: *You would travel in the evening and the night till (God willing) you would come in the morning to a place of water.* So the people travelled (self-absorbed) without paying any heed to one another.²²

²⁰ *Musnad* Aḥmad [Vol. 5, no. 22599]. Given the length of the *ḥadīth* only the English is cited together with the translated *isnād*. Abdullah ibn Aḥmad ibn Ḥanbal said: 'Ibrāhīm al-Ḥajjāj narrated to us Ḥammād ibn Salama narrated to us from Thābit from Abdullah ibn Rabbāḥ from Abu Qatādah from the Prophet peace and blessings be upon him with a similar narration.' And Abdullah ibn Aḥmad ibn Ḥanbal also said: 'Ibrāhīm – who is Ibrāhīm ibn al-Ḥajjāj al-Salāmī – narrated to us Ḥammād narrated to us Humayd narrated to us from Bakr ibn Abdullah from Abdullah ibn Rabbāḥ from Abu Qatādah from the Prophet peace and blessings be upon him similarly.' [Vol. 5, no. 22600 and 22601].

²¹ The Arabic text has a very short paragraph here at this juncture which details some of the meanings relating to some of the unusual words as they appear in the Arabic text of the *aḥādīth*. This has been omitted for the English version.

²² *Ṣaḥīḥ* Muslim [Vol. 1, no. 681]. Only a short excerpt of the full *ḥadīth* is cited.

The narration continues bearing the same meaning as those previously cited, however the crucial sentence - *If it is a worldly matter, it is up to you, but if it is a religious matter, it is (referred) to me* – is not reported, or its substitute wording. It also is reported in the *Musnad* of Ibn Ja'd.²³ The *ḥadīth*, both in the long / shorter format – reach us through various channels, both *Ṣaḥīḥ* and *ḥasan*. It is noted that this is also reported in the *Ṣaḥīḥ* of Ibn Khuzayma in a shorter format; the *Sunan* of Abu Dāwud, *Sharḥ Ma'āni al-Athār* of Imām al-Ṭaḥāwī and also in the *Sunan* of Imām al-Dāraqutni.²⁴

Very briefly confined to the saying which the Messenger peace and blessings be upon him said: *'If it is one of the matters of your Deen, then it is referred to me.'* We say – Oh Messenger of Allah, we send our prayers upon you to excess. And he peace be upon him also said: *'There is no negligence in sleep. The negligence is in wakefulness. If any of you forget saying prayer, he should offer it when he remembers it and next day (he should say it) at its proper time.'* We have mentioned this beautiful and dignified *ḥadīth* – indeed every *ḥadīth* of the Prophet is beautiful and dignified – in relation to the judgement concerning the Prophetic signs which establish Muḥammad's Prophethood, peace and blessings be upon him and his family.

The authentic *aḥādīth* previously mentioned rest upon the testimony of five of the Prophet's companions - may Allah be pleased with all of them. They are Anas ibn Mālik, Rāfi' ibn Khadij, Abu Qatādah, Imrān ibn Ḥussein and Ṭalḥa ibn 'Ubaydullah. These narratives are further supported by the *mursal* narratives which have reached us from 'Urwa ibn al-Zubayr and he is from the older senior *Tābi'een* and perhaps it is taken from 'Aisha may Allah be pleased with her, or from other senior *Ṣaḥāba*, which in turn are supported by the *mursal* narration of Abu Mijlaz. Abu Mijlaz is from the junior *Tābi'een*, having heard from Ibn 'Abbās as well as from Ibn Umar both of which are from the class of junior *Ṣaḥāba*. Indeed this has come upon the testimony of six authentic channels, each being independent from the other and being contrasted from the other. When looking at this objectively, it does not seem plausible that *all* the narrators could have colluded in order to fabricate such an incident. Nor can it be said that the reported facts, given the

²³ *Musnad* Ibn Ja'd [Vol. 1, no. 3075]

²⁴ *Ṣaḥīḥ* Ibn Khuzaymah [Vol. 1, no. 410], *Sunan* of Abu Dāwud [Vol. 1, no. 437], Imām al-Ṭaḥāwī *Sharḥ Ma'āni al-Athār*, [Vol. 1, p. 401] and *Sunan* al-Dāraqutni [Vol. 1, no. 13].

independent channels are but a figment of the imagination borne of a mistaken narrator. One can thus be assured with decisive certainty that the Prophet peace and blessings be upon him has indeed said:

- *If it is something related to your worldly affairs, it is your affair and if it is something from the commands of your Deen it is unto me.*
- *You know (better) with what is related to your worldly affairs; that relating to your hereafter is (referred) to me.*
- *I am a human being, so when I command you about a thing pertaining to Deen, do accept it, and when I command you about a thing out of my personal opinion, keep it in mind that I am a human being.*
- *If it is related to your worldly affair, you (are all) more knowledgeable of it.*

As for the narration that states, ‘If it pertains to an affair of your worldly matters, then you are more knowledgeable about it,’ it seems to be a variation in meaning of the first *ḥadīth* because most of the channels of transmission for the first *ḥadīth* include the wording of the first narration. This wording aligns with the wording of the second *ḥadīth*, and it is not significantly different from them. The third *ḥadīth* is not very far from either of them because it says: ‘And when I talk to you about something of your worldly affairs,’ in conditional form without a direct response to this condition, which is implicitly understood as follows: ‘I am only mortal like you; I do not possess more knowledge about it than you do. Therefore, I do not interfere in it, nor do I speak about it. It's your matter!’ Or something similar to that, or something closely related to it.

Some narrators have given an exaggerated version of the meaning of the *ḥadīth* or its shortened wording, as is the case of the version recorded by Imām Muslim. He only recorded, ‘*You are more knowledgeable of your worldly affairs.*’ Thus, several significant points and judgments implied in the complete authentic version of the *ḥadīth* were lost by this abridgement. This should be a lesson learned and a warning against narrating the meanings of *aḥādīth* instead of the exact wording. It also emphasizes the necessity of strictly adhering to the infallible words uttered by the honorable and infallible Prophet peace and blessings be upon him. Furthermore, this also necessitates tracing the chains of transmission and making sure of the different narrations.

When the Prophet peace and blessings be upon him said, ‘*If it is a worldly matter, it is up to you, but if it is a religious matter, it is (referred) to me*’ he referred all worldly matters to the people and made it their own affair to study, discover, experience and apply them. In other words, the theoretical science acquired by the innate nature of people, their senses, experience and reason as well as the application, use of skill, specialisation of crafts, professions, industry, practices, methods and means, are all permissible and lawful for people. They are allowed to do what they want, whenever they want, and in whatever manner they wish. To further illustrate this point, let us examine critically once again the example of pollinating palm trees. When we examine the relationship between pollinating trees, both the ripeness of the fruit and the productivity of the crop and what is similar to that, it is considered a *worldly affair*. It is not a question of the legal judgment pertaining to pollination, whether or not it is obligatory, desirable, permissible, disliked or prohibited. Nor is it a moral judgment whether it was good or bad, for both aspects are purely ‘religious.’

Worldly life

Dunya – or ‘worldly life’ is the perceptible world existing and bearing certain qualities and properties, whose constituents and concrete objects are related according to certain laws. In other words, the world as it is in itself. It covers all its concrete objects, qualities, powers, properties, the related sciences and knowledge, the related human skills, crafts, professions and industries and all the products and services resulting from all of these constituents. This is the exact definition of the phrase ‘worldly life’, as illustrated above by the detailed thorough examination of the reality of palm trees, their division into male and female; the need for the female tree to be pollinated by the male tree, of people undertaking the pollination process regularly to ensure its soundness and success, the quality of the product and its high productivity. Add to this, they do not depend on wind and bees, which originally and instinctively undertake the process to perform pollination.

Our *Deen* - al-Islam, is not merely just a collection of ritualistic acts of worship, belief in the unseen, or merely limited to morals and manners, as is the case in the Western concept of ‘religion.’ In fact, all the voluntary human deeds are subject to *Sharī’ah* legal judgment. In the Arabic language, the

word ‘*ad-Deen*’ is a considered a *maṣḍar* or verbal noun. The act is *dāna*, *yadeen*, *deenān* and *diyāna*. It denotes anything that is worshipped beside Allah. The various denominations that the word can refer to is – customs, cults, reckoning or accounting, kingdom or dominion, ruling/judgement, reigning, and authority. The verb /*dāna*/ is to subdue, make others subservient and make others obedient. Whereas /*dāna bi kadtha*/ is to adopt something as a *Deen* and worship it. The term /*dāna fulān fulānun*/ is for one person to hold another accountable, to reward, punish him and control him. As it is reported in *al-Nihāya fī Ghareeb al-Athar*:

Deen: From the names of Allah, the Most High, is *al-Dayyān* and it is said that this is synonymous with his name, *al-Qahhār*, The Subduer. It is also stated that it is synonymous with ‘The Ruler,’ ‘The Judge.’ The word, *al-Dayyān*, is an emphatic noun form from the phrase ‘*dānan-nas*’ which means to subdue them to obey. It is said that when one says ‘*deen-tu-hum fa dānū*’ that it means ‘I have subdued them and so they obey’. Another evidence for this opinion is the poetry of al-‘Amash al-Ḥirmāzī which addressed the Prophet, may Allah honour him and grant him peace, ‘Master of people and *dayyān* of the Arabs’. There is also a *ḥadīth* - ‘*It is upon me to be the dayyān of this nation.*’ Also there is the *ḥadīth* of ‘Abi Ṭalib when the Prophet, may Allah honour him and grant him peace, said to him: ‘*I want the Quraysh to say a word that, with it, they will tadīn the Arabs.*’ In other words *tadīn* means ‘make them obey’ and cause them to humbled.’ Another *ḥadīth* is, ‘*The one who is of intellect and manners is the one who dāna over their soul and prepares for what is after death.*’ In other words, ‘*dāna*’ here is ‘to humble their soul and make a worshipper out of it.’ It is also said that it means ‘to account for their soul.’²⁵

In my opinion the most correct meaning is that *al-Diyyān* is synonymous with the names of ‘the ruler’ and ‘the judge.’ Elsewhere in the same work, *al-Nihāya fī Ghareeb al-Athar*, the following is also mentioned:

al-Khaṭṭābi said: ‘The scholars of the Muslims have unanimously agreed that the *Khawārij*, due to their misguidance, are a group from

²⁵ *al-Nihāya fī Ghareeb al-A’thar* [Vol. 2, no. 1216]

the deviant groups of the Muslims. Despite this, their marriages, slaughter of meat and testimonies are valid and accepted. When Ali ibn ‘Abi Ṭalib was questioned about them it was said to him, ‘Are they non-believers?’ He responded, ‘What disbelief have they shown?’ They said, ‘Are they from the hypocrites?’ He responded, ‘Little do the hypocrites remember Allah and, as for them, they remember Allah in morning and evening.’ It was then said, ‘So what exactly are they?’ Ali responded, ‘A group of people who have been afflicted by a great calamity and have consequently become blind and deaf.’

al-Khaṭṭābi continues to say, ‘Therefore the meaning of the Prophet’s statement, may Allah honour him and grant him peace, ‘*they will pass through this Deen*’ is that he intended by ‘*deen*’, obedience. In other words, that they would exit from the obedience of the leader who it is obligatory to follow and that they would detach themselves from him; and Allah knows best.’ And in the *ḥadīth* of Salmān, ‘Indeed Allah will *yadīn* for the hornless livestock like he does with those that have horns’, *yadīn* means ‘to follow up and recompense’ therefore *Deen* can also mean recompense.²⁶

The *Deen* of Islam therefore, is not just a spiritual belief upon which a moral system is based and with which ritual acts of worship are associated. It is not just a ‘religion’ in the Western sense of the term. *Deen* denotes a certain way of living, how the world should be, i.e. how should we behave in this world. It is a holistic system and not just a set of beliefs regarding the unseen, ritual acts of worship, or proper morals and manners as is the case with the Western concept of the word ‘religion’. As mentioned above, *Deen* is much wider in scope than that. It is a regulation of all relations and it is supported by an innumerable number of convincing evidences that are considered to be acknowledged facts. To further clarify the idea, some of the following examples may be outlined:

Post-Pollination

After the first incident of pollination in the early period at Medina, the Prophet peace and blessings be upon him stated that religious affairs should be referred

²⁶ Ibid.

only to him, while all worldly affairs were referred to the people. He reiterated this distinction at various junctures and through a number of authentic *ḥadith*. It has been established through recurrent incidents, historical facts, and through the acknowledgement of all believers and disbelievers that the Prophet peace and blessings be upon him had commanded, prohibited, informed and conducted innumerable transactions, punishments, governmental judgments, international affairs, war and peace and many other matters that definitely go beyond the unseen beliefs, acts of worship, and proper manners and morals. Consequently, this proves that all are considered matters of *Deen*.

Prescribing Punishment

Allah the Exalted prescribed the penalty of lashing as a punishment for committing adultery. He also made it obligatory that a group of believers witness the execution of this penalty:

الرَّائِيَةُ وَالزَّانِي فَاجْلِدُوا كُلَّ وَاحِدٍ مِّنْهُمَا مِائَةً جَلْدَةٍ وَلَا تَأْخُذْكُمْ بِهِمَا رَأْفَةٌ فِي دِينِ اللَّهِ إِنْ كُنْتُمْ تُؤْمِنُونَ
بِاللَّهِ وَالْيَوْمِ الْآخِرِ وَلْيَشْهَدْ عَذَابَهُمَا طَائِفَةٌ مِّنَ الْمُؤْمِنِينَ

*Strike the adulteress and the adulterer one hundred times. Do not let compassion for them keep you from carrying out Allah's law - if you believe in Allah and the Last Day - and ensure that a group of believers witnesses the punishment.*²⁷

This is a conclusive *Sharī'ah* legal text, denoting the prohibition of adultery and the prescribed worldly penalty for it should neither be forgiven, nor tolerated out of tenderness or mercy towards those committing the crime. It also indicates that a number of believers witnessing adultery being committed and the number of believers witnessing the punishment are among the matters of the *Deen* of Allah.

The Prophet Yusuf

In the Qur'ān we are told of how Allah enabled Yusuf peace be upon him to detain his brother in Egypt. He executed the penalty of theft - prescribed in

²⁷ Qur'ān 24: 2

the jurisdiction of Ya'qub peace be upon him since it was enslaving thieves instead of the penalty prescribed in the jurisdiction of the king of Egypt. Allah says:

فَبَدَأَ بِأَوْعِيَّتِهِمْ قَبْلَ وِعَاءِ أَخِيهِ ثُمَّ اسْتَخْرَجَهَا مِنْ وِعَاءِ أَخِيهِ كَذَلِكَ كُنَّا لِيُوسُفَ مَا كَانَ لِيَأْخُذَ أَخَاهُ فِي دِينِ الْمَلِكِ إِلَّا أَنْ يَشَاءَ اللَّهُ نَرْفَعُ دَرَجَاتٍ مَّنْ نَّشَاءُ وَفَوْقَ كُلِّ ذِي عِلْمٍ عَلِيمٌ

*[Joseph] began by searching their bags, then his brother's, and he pulled it out from his brother's bag. In this way, We devised a plan for Joseph— if Allah had not willed it so, he could not have detained his brother as a penalty under the king's law - We raise the rank of whoever We will. Above everyone who has knowledge there is the One who is all knowing.*²⁸

It is known by necessity that the discussion here does not deal with matters related to the unseen, or ritual acts of worship, nor is it related to morals or even mannerisms. It deals with the crime of theft and whether its penalty is executed according to the jurisdiction of Ya'qub or that of the king – which is the *Deen*, jurisdiction – as stated in the Qur'ān. His '*Deen*' means his laws and system and not his belief relating to the unseen, or rituals of worship. The discussion here does not deal with that and is not related to it at all. Limiting revelation to matters of 'religion' does not mean at all that revelation is not concerned with worldly matters. In fact, it might be concerned with some or many worldly matters.

Ruling

In the *Musnad* of Imām Aḥmad the following *ḥadith* which is *Ṣaḥīḥ* is reported:

حَدَّثَنَا الْوَلِيدُ بْنُ مُسْلِمٍ حَدَّثَنَا عَبْدُ الْعَزِيزِ بْنُ إِسْمَاعِيلَ بْنِ عَبْدِ اللَّهِ أَنَّ سُلَيْمَانَ بْنَ حَبِيبٍ حَدَّثَهُمْ عَنْ أَبِي أُمَامَةَ الْبَاهِلِيِّ عَنْ رَسُولِ اللَّهِ صَلَّى اللَّهُ عَلَيْهِ وَسَلَّمَ قَالَ لِيُنْقَضَ عُرَى الْإِسْلَامِ عُرْوَةُ عُرْوَةٍ، فَكُلَّمَا انْتَقَضَتْ عُرْوَةٌ تَشَبَّهَتِ النَّاسُ بِالنَّاسِ تَلْبِيهَا؛ وَأُولَئِهِنَّ نَقُضُ الْحُكْمِ وَآخِرُ هُنَّ الصَّلَاةُ

al-Waleed ibn Muslim narrated to us Abdul-Aziz ibn Ismā'il ibn 'Ubaydullah narrated to me that Sulaymān ibn Ḥabeeb narrated to them from Abu Umāma al-Bāhili from the Messenger of Allah, peace and blessings be upon him, he said: *Verily, the knots of Islam will be*

²⁸ Qur'ān 12: 76

*undone one by one. Whenever one knot is lost then the people grab onto the one which came after it. The first of these knots will be the hukm and the last will be the Ṣalāh.*²⁹

The *ḥadith* is cited in a large number of collections.³⁰ The legal texts are explicit in relation to the fact that *al-ḥukm* (the ruling) of Islam is also used in the same sense as ‘*the Deen*’ and ‘*the Ṣalāh*.’ In this regard, they are completely alike. The term ‘*ḥa ka ma*’ [ح ك م] or ruled, will be detailed further in relation to the subject of *Hākimiyyah* more generally. From perusal of the Qur’ān it can be discerned that there are seven usages of the term:

1. *Ḥikmah* (wisdom): situating matters in their rightful position; whoever does so is *ḥakeem* (wise).
2. *Al-Iḥkām* (accuracy, perfection): relating to the perfection of crafts and achieving the ultimate aim of a deed, whoever does so is called *muḥkim*, namely the one who perfected.
3. Judging the deeds of mankind on the Day of Judgement and resolving their disputes finally and forever which is the exclusive right of Allah alone and the verses of the Glorious Qur’ān which prove demonstrate this are numerous.
4. Issuing judgement or *Fatwa* (*legal responsa*). This is not restricted to giving an opinion in a legal matter but can also relate to opinions in matters of perception, rational ideas, aesthetics or ethics. As an example, we rule, or judge - *naḥkum*, that reincarnation is a clear falsehood as is the Christian doctrine of the Trinity; telling lies is rationally unacceptable etc. Numerous examples abound to highlight this point, such as where Allah states:

أَفَجْعَلُ الْمُتْلِمِينَ كَالْمُجْرِمِينَ، مَا لَكُمْ كَيْفَ تَحْكُمُونَ

²⁹ *Musnad Aḥmad* [Vol. 5, no. 22214]

³⁰ *Ṣaḥīḥ Ibn Ḥibbān* [Vol. 15, no. 6715]. Shaykh Shu’ayb al-Arnā’ut said the *isnād* was *qawi* (strong). It is as he said, the *isnād* is *qawi*; in fact, *Ṣaḥīḥ* and can be taken as a proof. *al-Mustadrak* of al-Ḥākim [Vol. 4, no. 7022] and following citation al-Ḥākim said: ‘And the *isnād*, all of it, is *Ṣaḥīḥ*, but they did not record it.’ It appears in the works of Imām al-Ṭabarānī, *Mu’jam al-Kabīr* [Vol. 8, no. 7486] and *Musnad al-Shāmiyān* [Vol. 2, no. 1602]. Other references are also cited, such as Sha’b al-Imān by Imām Bayhaqy.

*Should We treat those who submit to Us as We treat those who do evil?
What is the matter with you? On what basis do you judge?*³¹

5. Resolving disputes and issuing judgements that are legally binding. This specifically relates to the acts of judicial bodies and certain authorities that have this vested power. A judge is called a *ḥākim* and his legally binding verdict a *ḥukm*.
6. Management of public affairs. Under this comes the modern notion of public ruling and government, such as running the affairs of state, applying and executing laws etc. Whoever assumes this role is called a *ḥākim* – a ruler or can even be referred to as a *wali* or *wali ul-‘amr*, *sultan* etc. Modern political usage has the term of *ḥukumah* to mean the government and its executive branch.
7. Legislation. This relates to enacting and implementing laws, rules, regulations and delineating constitutional principles and boundaries.

Essentially the last four connotations of the word *ḥukm* concern this present research, namely: informed opinion and *fatwa*; judicial decisions; executive acts or actions, and legislation.

The word used – namely *Deen* – is narrower than that to mean only government and the judiciary. As has been reported from the dignified companion of the Prophet peace be upon him, Abdullah ibn Mas’ud, cited in the *Muṣṣanaḥ* of ‘Abd al-Razzāq with a good strong *isnād*:

أَخْبَرَنَا عَبْدُ الرَّزَّاقِ عَنْ عَاصِمٍ عَنْ زُرَّ بْنِ حَبِيشٍ قَالَ قَالَ ابْنُ مَسْعُودٍ السَّحْتُ الرِّشْوَةُ فِي الدِّينِ؛ قَالَ سَفْيَانٌ يَعْنِي فِي الْحُكْمِ

‘Abd al-Razzāq reported to us from ‘Aāsim from Zirr ibn Ḥubaysh he said Ibn Mas’ud said: ‘*al-Suht*’ (is) bribery in *Deen*.’ Sufyān said: ‘That is to say, in the *ḥukm*.’³²

It is also reported in *Akḥbār al-Quḍā’*:

أَخْبَرَنِي إِسْحَاقُ بْنُ حَسَنٍ قَالَ حَدَّثَنَا أَبُو حَذِيفَةَ قَالَ حَدَّثَنَا سُفْيَانٌ عَنْ عَاصِمٍ عَنْ زُرَّ عَنْ عَبْدِ اللَّهِ السَّحْتُ الرِّشَا فِي الدِّينِ

³¹ *Qur’ān* 68: 35/36

³² *Muṣṣanaḥ* ‘Abd al-Razzāq [Vol. 14, no. 14664]

Ishāq ibn Ḥasan reported to me he said Abu Ḥudhayfah narrated to us he said Sufyān narrated to us from 'Aāṣim from Zirr from Abdullah: 'al-Suḥt is bribery in the *Deen*.'³³

Allegiance

The word 'Deen' may be used to denote *allegiance, affiliation, and carrying citizenship*. That is, either by way of utilising the name to signify all or a part of that for rhetorical purposes, which would also include referring to a part to signify the wider whole. Like what has been reported by Imām Bukhārī in his collection of *Ṣaḥīḥ*:

حدثنا علي بن عبد الله حدثنا سفيان عن أيوب عن عكرمة أن علياً رضي الله عنه حرق قوماً فبلغ ابن عباس فقال لو كنت أنا لم أحرقهم لأن النبي صلى الله عليه وسلم قال لا تعذبوا بعذاب الله ولقتلتهم كما قال النبي صلى الله عليه وسلم من بدل دينه فاقتلوه

Ali ibn Abdullah narrated to us Sufyān narrated to us from Ayub from 'Ikrima that Ali may Allah be pleased with him, burnt some people and this matter reached Ibn 'Abbās who said: Had I been in his place, I would not have burnt them, as the Prophet peace and blessings be upon him said: *Don't punish with Allah's Punishment*. No doubt, I would have executed them, for the Prophet peace and blessings be upon him said: *Whoever changes his Deen, then he is to be executed*.³⁴

Similar is also cited in the *Musnad* of Imām Aḥmad ibn Ḥanbal, reported on the authority of Mu'ādh ibn Jabal:

حدثنا عبد الرزاق أخبرنا معمر عن أيوب عن حميد بن هلال العدوي عن أبي بردة قال قدم على أبي موسى معاذ بن جبل باليمن فإذا رجل عنده قال ما هذا قال رجل كان يهودياً فأسلم ثم تهود ونحن نريده على الإسلام منذ قال أحسبه شهريين فقال والله لا أقعد حتى تضربوا عنقه فضربت عنقه فقال قضى الله ورسوله أن (من رجع عن دينه فاقتلوه) أو قال من بدل دينه فاقتلوه

'Abd al-Razzāq narrated to us Ma'mar reported to us from Ayub from Ḥumayd ibn Hilāl al-Adawī from Abu Burda, he said: Abu Musa came

³³ *Akhbār al-Quḍā'* [Vol. 1, p. 38]

³⁴ *Ṣaḥīḥ* Bukhārī [Vol. 3, no. 2854 and Vol. 6, no. 6524]. A very large array of additional references is mentioned in the Arabic edition, as many scholars cited this tradition, appearing in the respective *Ṣaḥīḥ, Sunan, Musnad, Mu'jam* and *Muṣṣanaf* works.

upon Mu'ādh ibn Jabal in Yemen, when a man said: what is this? He said: There was a Jew who accepted (but) reverted from Islam two months (prior), and we wanted him to remain upon Islam. He said: By Allah, I shall not be seated until you strike his neck, so strike his neck since the Messenger of Allah said: *Whoever reverts from his Deen, he is to be executed*. Or he said: *Whoever changes his Deen, then he is to be executed*.³⁵

That is also to be found in the *Muṣṣanaf* of 'Abd al-Razzāq with the addition carried by him being: 'Ma'mar said: and I heard Qatādah saying, Mu'ādh said: by Allah, I shall not sit until they strike his back.'³⁶ Imām al-Ṭabarānī reports in his *Mu'jam al-Kabir* from Mu'āwiya ibn Ḥayda:

حدثنا داود بن محمد بن صالح المروزي حدثنا حوثة بن أشرس حدثنا حماد بن سلمة عن بهز بن حكيم عن أبيه عن جده قال: قال رسول الله صلى الله عليه وسلم من بدل دينه فاقتلوه لا يقبل الله توبة عبد كفر بعد إسلامه

Dāwud ibn Muḥammad ibn Ṣāliḥ al-Marwazi narrated to us Ḥawthā ibn Ashras narrated to us Ḥammād ibn Salama narrated to us from Bahz ibn Ḥakeem from his father from his grandfather, he said: The Messenger of Allah peace and blessings be upon him said: *Whoever changes his Deen, execute him. No repentance of the slave is accepted by Allah, by Kufr after his Islam*.

It is also cited again by al-Ṭabarānī in *Mu'jam al-Awsaṭ*, upon the authority of Abu Hurayrah:

حدثنا مسعود بن محمد الرملي حدثنا عمران بن هارون حدثنا بن لهيعة حدثني بكير بن عبد الله بن الأشج عن سليمان بن يسار عن أبي هريرة أن رسول الله صلى الله عليه وسلم قال من بدل دينه فاقتلوه ثم قال الإمام الطبراني لم يرو هذا الحديث عن بكير إلا بن لهيعة

Mas'ud ibn Muḥammad al-Ramli narrated to us 'Imrān ibn Hārūn narrated to us Ibn Lahiya narrated to us Bukeer ibn Abdullah ibn al-Ashaj narrated to me from Sulaymān ibn Yassār from Abu Hurayrah,

³⁵ *Musnad* Aḥmad [Vol. 5, no. 22068]

³⁶ *Muṣṣanaf* 'Abd al-Razzāq [Vol. 10, no. 18705]

that the Messenger of Allah peace and blessings be upon him said:
Whoever changes his Deen, execute him.

Thereafter Imām al-Ṭabarānī said: ‘This *ḥadīth* wasn’t narrated from Bukeer except by way of Ibn Lahiya.’³⁷

What is being expressed here it not merely one of switching from the *Deen*, namely what is construed as being apostasy from Islam in the classic sense of the term, or for that matter, conversion from one *Deen* to another in general, as has been construed by the majority of the *fuqahā* (jurists). Rather, it is the severance of affiliation; leaving *al-Jamā’ah* (the political community), and / or being accompanied by rebellion against the just lawfully constituted ruler. Leaving that obedience may be from amongst the following:

1. To renounce an ostensibly Islamic ‘citizenship’ and leave the domain of Islam (*dar al-Islam*) and move to a domain of war (*dar al-ḥarb*). By undertaking this act, the individual would be considered a ‘waring apostate’, aligning with hostile waring disbelieving forces.
2. To remain within the domain of Islam (*dar al-Islam*), but to engage in operations other than war, namely, to spy, engage in acts of sabotage or the like, on behalf of hostile waring disbelieving forces, an individual would be regarded as a ‘waring apostate.’
3. To remain within the domain of Islam (*dar al-Islam*) and compel its people by armed force to disbelief and idolatry (*kufr* and *shirk*). Any individual undertaking that would be treated as waging war and fought accordingly, like the *Khawārij* and other types of insurrectionism.
4. Remaining within the domain of Islam and engaging in brigandage.
5. Where a legitimate Imām has been justly appointed within the domain of Islam, but instead of being lawfully obeyed is opposed by force.

³⁷ al-Ṭabarānī, *Mu’jam al-Awsaṭ* [Vol. 8, no. 8623]

Such acts that relate to fighting are in relation to specific crimes, where the individual may at times be considered an apostate, at other times not. The proof for that, has been set out by the majestic, glorified be his names:

[Believers], why are you divided in two about the hypocrites, when Allah Himself has rejected them because of what they have done? Do you want to guide those Allah has left to stray? If Allah leaves anyone to stray, you [Prophet] will never find the way for him.

They would dearly like you to reject faith, as they themselves have done, to be like them. So do not take them as allies until they migrate [to Medina] for Allah’s cause. If they turn [on you], then seize and kill them wherever you encounter them. Take none of them as an ally or supporter.

But as for those who seek refuge with people with whom you have a treaty, or who come over to you because their hearts shrink from fighting against you or against their own people, Allah could have given them power over you, and they would have fought you. So if they withdraw and do not fight you, and offer you peace, then Allah gives you no way against them.

*You will find others who wish to be safe from you, and from their own people, but whenever they are back in a situation where they are tempted [to fight you], they succumb to it. So if they neither withdraw, nor offer you peace, nor restrain themselves from fighting you, seize and kill them wherever you encounter them: We give you clear authority against such people.*³⁸

Imām Muslim recorded the next narration in his collection of *Ṣaḥīḥ*:

حدثنا أحمد بن حنبل ومحمد بن المثنى واللفظ لأحمد قال حدثنا عبد الرحمن بن مهدي عن سفيان عن الأعمش عن عبد الله بن مرة عن مسروق عن عبد الله قال قام فينا رسول الله، صلى الله عليه وسلم، فقال والذي لا إله غيره لا يحل دم رجل مسلم يشهد أن لا إله إلا الله وأني رسول الله إلا ثلاثة نفر: التارك الإسلام المفارق للجماعة (أو الجماعة شك فيه أحمد) والثيب الزاني والنفس بالنفس؛ قال الأعمش: (فحدثت به إبراهيم فحدثني عن الأسود عن عائشة بمثله

Aḥmad ibn Ḥanbal and Muḥammad ibn al-Muthanna narrated to us, and (this is) the wording of Aḥmad, they said: Abdar-Raḥman ibn Mahdi narrated to us from Sufyān from al-‘Amash from

³⁸ *Qur’ān* 4: 88/91. Given the length of the verses quoted, the Arabic text is omitted.

Abdullah ibn Murra from Masruq from Abdullah, he said: The Messenger of Allah peace and blessings be upon him stood up and said: *By Him besides whom there is no god but He, the blood of a Muslim who bears the testimony that there is no god but Allah, and I am His Messenger, may be lawfully shed only in the case of three persons: the one who abandons Islam, and deserts the community.* [Aḥmad is doubtful whether the word used *li'l-jamā'ah* or *al-jamā'ah*), and the married adulterer, and life for life. Al-'Amash said: I narrated this tradition to Ibrāhīm, he narrated to me similarly from al-Aswad from 'Aisha.³⁹

Again, Imām Muslim records in his collection of *Ṣaḥīḥ* with the following wording:

حدثنا أبو بكر بن أبي شيبة حدثنا حفص بن غياث وأبو معاوية ووكيع عن الأعمش عن عبد الله بن مرة عن مسروق عن عبد الله قال: قال رسول الله، صلى الله عليه وسلم، لا يحل دم امرئ مسلم يشهد أن لا إله إلا الله وأني رسول الله إلا بإحدى ثلاث: الثيب الزان والنفس بالنفس والتارك لدينه المفارق للجماعة

Abu Bakr ibn Abi Shayba narrated to us Ḥafṣ ibn Ghayāth, Mu'āwiya and Waki' narrated to us from al-'Amash from Abdullah ibn Murra from Masruq from Abdullah, he said: The Messenger of Allah peace and blessings be upon him said: *It is not permissible to take the life of a Muslim who testifies there is no god but Allah, and I am the Messenger of Allah, but in one of the three cases: the married adulterer, a life for life, and the deserter of his Deen, abandoning the community.*⁴⁰

Imām Bukhārī also has this in his collection of *Ṣaḥīḥ* with the following wording:

حدثنا عمر بن حفص حدثنا أبي حدثنا الأعمش عن عبد الله بن مرة عن مسروق عن عبد الله قال: قال رسول الله لا يحل دم امرئ مسلم يشهد أن لا إله إلا الله وأني رسول الله إلا بإحدى ثلاث: النفس بالنفس والثيب الزاني والمفارق لدينه التارك للجماعة

³⁹ *Ṣaḥīḥ* Muslim [Vol. 3, no. 1676]

⁴⁰ Ibid.

Umar ibn Ḥafṣ narrated to us my father narrated to us al-'Amash narrated to us from Abdullah ibn Murra from Masruq from Abdullah, he said: The Messenger of Allah peace be upon him said: *The blood of a Muslim who testifies that there is no god Allah and that I am His Messenger, cannot be shed except in three cases: life for life, a married fornicator and the one who abandons his Deen and deserts the community.*

Reporting on the authority of 'Aisha, mother of the believers, Imām al-Nasā'ī cites the next tradition in his *Sunan* with a *Ṣaḥīḥ isnād*:

أخبرنا أحمد بن حفص بن عبد الله قال حدثني أبي قال حدثني إبراهيم عن عبد العزيز بن رفيع عن عبيد بن عمير عن عائشة أم المؤمنين عن رسول الله أنه قال لا يحل قتل مسلم إلا في إحدى ثلاث خصال: زان محصن فيرجم ورجل يقتل مسلماً متعمداً، ورجل يخرج من الإسلام فيجارب الله ورسوله فيقتل أو يصلب أو ينفي من الأرض

Aḥmad ibn Ḥafṣ ibn Abdullah reported to us he said my father narrated to me, he said Ibrāhīm narrated to me from Abdal-Aziz ibn Rufe' from 'Ubayd ibn 'Umayr from 'Aisha, mother of the believers, from the Messenger of Allah peace and blessings be upon him that he said: *It is not permissible to kill a Muslim except in one of three cases: A adulterer who has been married, who is to be stoned; a man who kills a Muslim deliberately; and a man who exits Islam and wages war against Allah, the mighty and sublime and His Messenger, who is to be executed, crucified or banished from the land.*⁴¹

The wording reported 'And a man who exits Islam and wages war against Allah, the Mighty and Sublime and His Messenger, who is to be killed, crucified or banished from the land,' is confirmed as per the noble verses cited here:

⁴¹ *Sunan* Nasā'ī [Vol. 8, no. 4743]. The majority of scholars cited this wording in their respective works. More often than not, the reported wording has '...the one who forsakes his Deen and separates from the community.' Again, the Arabic edition contains a very large array of additional references where this tradition is cited, appearing in the respective *Ṣaḥīḥ*, *Sunan*, *Musnad*, *Mu'jam* and *Muṣṣanaḥ* collections.

إِنَّمَا جَزَاءُ الَّذِينَ يُحَارِبُونَ اللَّهَ وَرَسُولَهُ وَيَسْعَوْنَ فِي الْأَرْضِ فَسَادًا أَنْ يُقَتَّلُوا أَوْ يُصَلَّبُوا أَوْ تُقَطَّعَ أَيْدِيهِمْ وَأَرْجُلُهُمْ مِنْ خِلَافٍ أَوْ يُنْفَوْا مِنَ الْأَرْضِ ذَلِكَ لَهُمْ جُزْءٌ فِي الدُّنْيَا وَلَهُمْ فِي الْآخِرَةِ عَذَابٌ عَظِيمٌ. إِلَّا الَّذِينَ تَابُوا مِنْ قَبْلِ أَنْ تَقْدِرُوا عَلَيْهِمْ فَأَعْلَمُوا أَنَّ اللَّهَ غَفُورٌ رَحِيمٌ

*Those who wage war against Allah and His Messenger and strive to spread corruption in the land should be punished by death, crucifixion, the amputation of an alternate hand and foot, or banishment from the land: a disgrace for them in this world, and then a terrible punishment in the Hereafter. Unless they repent before you overpower them - in that case bear in mind that Allah is forgiving and merciful.*⁴²

It would also apply to those involved in highway banditry from amongst the disobedient Muslims, that is from the essence of what we have said. But as a subject in itself, it is incredibly complex and requires a standalone in-depth study. That research, upon the invalidity of the *hadd* relating to apostasy, will by the grace of Allah be concluded soon.

What we have mentioned up till now is the first and the most significant *Sharī'ah* legal meaning of the term *Deen*; it is a certain way of living, a system of life. Islam is the true and only *Deen* that Allah accepts in the hereafter. Secularism or to be more accurate 'worldliness' is also a *Deen*. Yet it is a false *Deen*, as is the Western system of governance, modern representative democracy. Materialistic socialism is a third type of *Deen* characterised by disbelief and misguidance. As for the second *Sharī'ah* legal meaning of the term '*Deen*' it is punishment and reward, as indicated in the following verse where Allah says:

مَالِكِ يَوْمِ الدِّينِ

*Master of the Day of Judgment.*⁴³

This means the day of reckoning and reward, in other words the Day of Judgement. Further to this, Allah states of the disbelievers comments:

إِذَا مَثَا وَكُنَّا تُرَابًا وَعِظَامًا إِنَّنَا لَمَعِينُونَ

⁴² *Qur'an* 5: 33/34

⁴³ *Qur'an* 1: 4

'After we die and become dust and bone, we shall be brought for judgement?'⁴⁴

When discussing matters of *Deen*, this is the prime specific concern of *Deen*. However, that that is not to say that revelation does not address matters relating to the present worldly affairs. Allah has said:

أَوَلَمْ يَرَوْا أَنَّا نَأْتِي الْأَرْضَ نَنْقُصُهَا مِنْ أَطْرَافِهَا وَاللَّهُ يَخُكُّمْ لَا مُعَقِّبَ لِحُكْمِهِ وَهُوَ سَرِيعُ الْحِسَابِ

*Do they not see how We come to [their] land and shrink its borders? Allah decides - no one can reverse His decision - and He is swift in reckoning.*⁴⁵

وَرَبُّكَ يَخْلُقُ مَا يَشَاءُ وَيَخْتَارُ مَا كَانَ لَهُمُ الْخِيَرَةُ سُبْحَانَ اللَّهِ وَتَعَالَى عَمَّا يُشْرِكُونَ

*Your Lord creates what He pleases and chooses those He will— they have no choice— so glory be to Allah, and may He be Exalted above the partners they ascribe to Him!*⁴⁶

خَالِدِينَ فِيهَا مَا دَامَتِ السَّمَاوَاتُ وَالْأَرْضُ إِلَّا مَا شَاءَ رَبُّكَ إِنَّ رَبَّكَ فَعَّالٌ لِمَا يُرِيدُ

*There to remain for as long as the heavens and earth endure, unless your Lord wills otherwise: your Lord carries out whatever He wills.*⁴⁷

فَعَّالٌ لِمَا يُرِيدُ

*He does whatever He wills.*⁴⁸

لَا يُسْأَلُ عَمَّا يَفْعَلُ وَهُمْ يُسْأَلُونَ

*He cannot be called to account for anything He does, whereas they will be called to account.*⁴⁹

The Prophet Nuḥ, Noah peace be upon him, was given the knowledge of ship-building through *wahy* (revelation) and it was a command concerning worldly affairs. The Prophet Dāwud, David peace be upon him was instructed through

⁴⁴ *Qur'an* 37: 53. As will be outlined in Volume 2 of this series, the pagan Arabs didn't believe in the concept of an afterlife, let alone a day of ultimate reckoning.

⁴⁵ *Qur'an* 13: 41

⁴⁶ *Qur'an* 28: 68

⁴⁷ *Qur'an* 11: 107

⁴⁸ *Qur'an* 85: 16

⁴⁹ *Qur'an* 21: 23

the medium of *wahy* in relation to warfare and armour; the Prophet Sulaymān, Solomon peace be upon him was given the understanding of the language of birds. To other Prophets, they were instructed in medicine and the treatment of illness. All of this, without doubt, is related to what is considered as being worldly affairs. Some of what was given to the Prophets was inculcated via mannerisms and grace, others by way of dignity and a blessing to their followers and heirs.

As for what has been reported from the almighty regarding the many facets in the universe, this is given as an education and guidance. It is also provided by way of Prophetic miracles, establishing compelling proof of their mission, their truth and to bolster delivery of the message. Notwithstanding this, the main purpose of *wahy* is to inform us about 'religious' facts, such as the reporting of events from Allah, establishing the commands and prohibitions; relating information about the unseen and what is sacred as well as providing information concerning the Day of Judgement.

4. Islam is an intellectual creed

Islam is an intellectual creed from which emanates a complete system. The *Deen* of Islam therefore, is not just a spiritual belief on which a moral system is based and with which ritual acts of worship are associated. It is not just a 'religion' in the Western sense of the term. Rather it is a 'first principle'; a belief from which a system is derived; in English, it is called an ideology. Moreover, the Islamic ideology is a rational ideology because it is based on using reason and is built on the principle of sufficient reason. This principle necessitates the presence of an explanation or cause behind the existence of the whole universe. It answers the question: why does the universe exist in the first place? Such a *Deen* would not proceed except and until this fundamental issue is resolved. As will be seen throughout this present book, the Islamic ideology is a rational ideology and is the sole true ideology. The Islamic ideology is also a spiritual belief as it is based on having absolute faith and firm belief in the existence of Allah, the exalted. It is a belief that creation and the prerogative of command are matters that solely belong to Allah. In other words, He created the universe but neither did he step down, nor did He retire, high and exalted be Allah above such reprehensible opinions. He gives commands, makes prohibitions, sends messengers, reveals scripture, and enacts laws. This obviously contrasts and totally opposes all materialistic and atheistic creeds.

وَرَبُّكَ يَخْلُقُ مَا يَشَاءُ وَيَخْتَارُ مَا كَانَ لَهُمُ الْخِيَرَةُ سُبْحَانَ اللَّهِ وَتَعَالَى عَمَّا يُشْرِكُونَ

*Your Lord creates what He pleases and chooses those He will— they have no choice— so glory be to Allah, and may He be Exalted above the partners they ascribe to Him.*¹

Second, follows the necessity of recognising the connection between man and Allah, acknowledging it, submitting to Him who has made it an obligation, and rendering it the basis for all other relations, systems and legislation. In this respect, Islam is different and is in stark contrast to all secular, worldly and liberal sects. The Islamic ideology is also a political ideology, for its system encompasses all laws pertaining to life including subject-governor relationships, managing public affairs, and the relationship between nations.

By way of contrast, materialistic socialism is an ideology; it is an ideology from which a system is derived. According to the aforementioned definition, it is therefore, a *Deen*. The basic belief on which socialism is based is materialism, especially dialectical materialism, advanced by the so-called scientific socialists. With all its detailed sects, materialism is not a rational ideology, even if it so claims, for it is based on acknowledging the eternity of matter with its basic properties. That is to say, matter is 'necessarily existent', eternal and ancient, without the need to provide evidence thereto. The only aim of materialists is to attempt to sow the seeds of scepticism and to challenge the conclusive evidence that prove the existence of Allah. Such an ideology is, *a-priori*, a materialistic one, it can never be a spiritual one, for it denies the existence of anything other than matter, *a fortiori*, the existence of Allah. Concepts like spirituality, sacredness etc. have, evidently, no place in a materialist ideology.

After a long period of gestation and development, liberal-democratic-capitalism became an ideology. This system is undoubtedly a '*Deen*.' Underpinning its core principles such as representative democracy, the rule of law, the separation of powers, the 'rights' of man (or human rights in modern parlance) etc., lies the core principle of secularism. Although there is variance in the application of this core tenet, it is held as being sacrosanct throughout the West. The ideological roots of this *Deen* developed over a long period time and were originally borne out of a schism within the Western Church. The Reformation in Europe and the subsequent wars of religion had the effect

¹ Qur'ān 28: 68

of fragmenting the religious uniformity of Christendom and ultimately gave rise to the concept of religious pluralism, toleration, and a view that religion should be kept apart from the practical aspects of governance and life. When it first emerged, secularism was merely a compromise, a set of incoherent procedures and agreements to solve the problem of this given conflict. But this was not the characteristic of an 'ideology' as it later became. This was followed by a sustained period where constitutional limits were placed upon monarchs. Man was no longer viewed as merely a subject of the monarch, or for that matter a pawn of the clergy, but as a citizen with rights that were based upon 'natural law' and reason. Against this backdrop, and subsequently very often through violent revolution, such as in the American colonies and France, philosophers, thinkers and men of capital, sought to redraw the political and economic framework.

The existence of God and revealed law lost centre stage as the philosophers and thinkers of this new era placed man at the centre of the universe. Man alone would decide for himself what system he would choose to live by. Providing the modern state did not encroach upon citizens cherished 'freedoms', man could pursue his own path to enlightenment and happiness. Even after this ideology developed, its central core remained irrational. Debate concerning the existence of God and His law became a matter only of personal conscience, not a burning issue that needed to be solved. Since such an ideology does not take the issue of Allah's existence into consideration, it is impossible for it to be a spiritual ideology. Therefore to reiterate, it is imperative to distinguish between the following:

- What is and what is not a 'religious matter' i.e., the general law, and its related issues such as: civilisation, culture and special civilisation. A Muslim should not take any of these from a non-Muslim at all. It is impermissible to base them on anything other than the revealed texts.
- 'Worldly affairs' or affairs related to the perceptual world; its properties; laws; 'urbanisation' including science, crafts, professions etc. as well as the means and methods of regulating all permissible things, such as procedural systems and administrative regulations. All of these matters may be fearlessly and freely adopted and utilized from non-Muslims.

The ferocious attack on the Muslim world over the course of the last three-hundred years and the fact that most Muslim lands suffered from direct Western colonisation and imperialism, induce reactions of extreme anxiety. This reaction has prevented them from making use of general urbanisation elements, learning science, acquiring engineering or adopting administrative systems or procedures. Such reactions and agitation are mostly rooted in a spirit of defeatism that encourages people to assume defensive postures or to think negatively instead of being active and taking the initiative. The feeling of defeat coupled with an imprisoned ghetto frame of mind drives many Islamic activists and leaders to take defensive attitudes. They utter meaningless and terrible words that are more or less similar to those uttered by the crazy, deluded or insane. These two factors have also driven others to withdraw, retire from public life, despair of worldly life and invoke Allah for the quick advent of *'the awaited Maḥdi.'*

To the discerning rational mind, looking into the lives of other nations, learning from their experiences, adopting their developed means and methods are not only logically correct, but a required facet of human progression. It is only logical that a person would make use of the available fruits and results, and then would focus efforts upon creativity in inventing countless matters anew, instead of mere mimicry, for this would only be re-inventing the wheel as the saying goes. However very often many minds completely overlook this point, coupled with the fact that it is in actuality, sanctioned by the legislative texts, as the following evidences will show. Imām Mālik recorded the following authentic tradition in his *Muwatṭā'*:

عن محمد بن عبد الرحمن بن نوفل أنه قال أخبرني عروة ابن الزبير عن عائشة أم المؤمنين عن جدامة بنت وهب الأسديّة أنها أخبرتها أنها سمعت رسول الله صلى الله عليه وسلم، يقول لقد هممت أن أنهي عن الغيلة؛ حتى ذكرت أن الروم وفارس يصنعون ذلك فلا يضروا أولادهم
قال مالك الغيلة أن يمس الرجل امرأته وهي ترضع

From Muḥammad ibn Abdar-Raḥman ibn Nawfal that he said 'Urwa ibn al-Zubayr reported to me from 'Aisha, mother of the believers, that Judāma bint Wahb al-Asadiyya reported to her that she heard the Messenger of Allah peace and blessings be upon him say: *I intended to prohibit 'al-Ghila' but I remembered that the Romans and Persians do that without it causing any injury to their children.*

Mālik said: *'al-Ghila'* is that a man has intercourse with his wife while she is breast-feeding.²

Indeed, the *isnād* for this narration is *Ṣaḥīḥ* as is its textual content. Several other notable *ḥadith* collectors cited this in their respective works, such as Imām Muslim in his *Ṣaḥīḥ*, al-Tirmidhi, and Abu Dāwūd.

At this juncture, it is important to stress that we are not about to delve into an extensive discussion of 'Prophetic intentions' i.e., whether these intentions are infallible and in accordance with the truth, or they are according to human nature. It could be an intention for doing something right or for doing something false; in which case Allah would prevent His Prophet (peace be upon him) from doing, saying or acknowledging something that arises from such a false intention. Rather than dwell upon the matter, the reader should refer to the research entitled *Hamm-ul-Anbiya'* (Intentions of the Prophets). That work conclusively sets out the evidences to show that the Prophet's concerns are not infallible, and thus, these intentions cannot be taken as the basis of making a legal argument. It could be an intention for doing something right or for doing something false; in which case, Allah would prevent His Prophet peace and blessings be upon him from doing, saying or acknowledging something that arises from such a false intention. Allah, the most glorified and most sublime, would prevent the Prophet peace and blessings be upon him in the manner He so wishes. He would either cause to dispel the intention so that the Prophet peace and blessings be upon him would no longer have the will or the determination to carry out the intended deed, He would send down a revelation preventing the Prophet peace and blessings be upon him from carrying it out, or inspire him with an alternate judgment. Allah, the Almighty and all-wise may dissuade him in any other manner He wishes.

In the aforementioned incident, Allah the Exalted prevented His Prophet peace and blessings be upon him from his *intended* act to prohibit men from having intercourse with their wives who are breast-feeding mothers for fear that it might do harm to their infants. He, most glorified and most sublime, diverted his attention inspiring him to look into the conditions of other peoples and learn from their experience, which situated this particular incident. He

² Mālik, *al-Muwatṭā'* [Vol. 2, no. 1269]

saw that whole nations practiced this over long periods of time without any harm being done to their infants. The Prophet peace and blessings be upon him had only intended by this prohibition to maintain the health of infants and avoid any harm that may be done to them, which is a matter that can be directly conceived by perception and reason. Therefore, it may be possible to look into the experience of other peoples, be they believers or unbelievers, pagans or people of the Scripture. Thus, it is even more possible to examine the confirmed and documented findings of scientific and medical research to solve the issue. That was what Allah inspired His Prophet peace and blessings be upon him. All praises be to Allah, there is no God but Him, on whom we depend entirely and whose help we seek.

The Prophet peace and blessings be upon him did not only look into the experiences of other people, but he also guided others to do the same. In other words, he directed them to look into other nations' experiences and confirmed documented findings of scientific and medical results. Imām Muslim records the next tradition in his *Ṣaḥīḥ* which substantiates this point:

حدثني محمد بن عبد الله بن نمير وزهير بن حرب واللفظ لابن نمير قال حدثنا عبد الله بن يزيد المقبري حدثنا حيوة حدثني عياش بن عباس أن أبا النضر حدثه عن عامر بن سعد أن أسامة بن زيد أخبر والده سعد بن أبي وقاص أن رجلا جاء إلى رسول الله صلى الله عليه وسلم فقال إني أعزل عن امرأتي فقال له رسول الله صلى الله عليه وسلم لم تفعل ذلك فقال الرجل أشفق على ولدها أو على أولادها فقال رسول الله صلى الله عليه وسلم لو كان ذلك ضارا ضر فارس والروم وقال زهير في روايته إن كان لذلك فلا ما ضر ذلك فارس ولا الروم

Muḥammad ibn Abdullah ibn Numayr and Zuhayr ibn Ḥarb narrated to me, and (this is) the wording of Ibn Numayr, they said Abdullah ibn Yazeed al-Maqburi narrated to us Ḥaywah narrated to us ‘Ayyāsh ibn ‘Abbās narrated to us that Abu Naḍr narrated to him from ‘Aāmir ibn Sa’eed that Usāma ibn Zayd reported to his father Sa’d ibn Abi Waqqās that a man came to the Messenger of Allah peace and blessings be upon him and said: I do ‘*coitus interruptus*’ with my wife. Thereupon Allah's Messenger peace and blessings be upon him said: *Why do you do that?* The person said: I fear harm to her child or her children. Thereupon the Messenger of Allah peace and blessings be upon him said: *If that were harmful it would (also) harm the Persians and the Romans.*

Zuhayr ibn Ḥarb said in the same transmission - *If such was the case, this harmed neither the Persians nor the Romans.*³

Similar *aḥādith* are also reported in other collections, such as in the *Musnad* of Aḥmad, *Mu’jam al-Awsaṭ* of Imām al-Ṭabarānī, in the *Sunan al-Kubra* of Imām Bayhaqy, as well as others.⁴ All of these transmissions are authentic and similar to the *ḥadith* of Zuhayr as reported in Muslim.

Given this, emphasis must be placed upon the reported statement of the Prophet peace and blessings be upon him in this authentic tradition – ‘*If that were harmful it would (also) harm the Persians and the Romans.*’ This implies what has been mentioned previously, yet in this situation, he was teaching the questioner. Thus the exhortation of looking into the lives of other people, learning from their experiences, adopting their developed means and methods is not only rationally correct, but it is also Islamically permissible; this has undoubtedly been established, all praises be to Allah, the Lord of the worlds. This was the same attitude adopted by the rightly guided Caliphs according to the consensus of all the Companions. For example, they adopted the different military tactics and stratagems of their respective age. They also used different methods of irrigation and drainage found in Iraq and benefited from administrative regulations and procedures pertaining to various methods and means. They even did not see any harm in leaving most *diwans* (official recorders) to use languages other than Arabic. In fact, all *diwans* were Arabized much later in the Umayyad reign. All this happened with nobody disputing or dissenting and without any discussion of any relevance.

At this juncture a reminder must be made, to advise ourselves and all who call to Allah in this last age of ours to rise above such reactionary fervour as they try to lead man from one false attitude to another, and the latter could be even worse than the former. This was the disaster that befell the *Khawārij*, a reaction for remissness and negligence, most of which was minor and little of which was major. It then mushroomed into excessiveness and apostasy, which is an utterly devastating and damaging affair. It is much worse than any of the original remissness and negligence. An example of such an obsessive and extremist attitude can be found in what Shaykh Abdul Qādir ibn ‘Abd al-

³ *Ṣaḥīḥ* Muslim [Vol. 2, no. 1443]

⁴ *Musnad* Aḥmad [Vol. 5, no. 21828], al-Ṭabarānī, *Mu’jam al-Awsaṭ* [Vol. 1, no. 182], al-Bayhaqy, *Sunan al-Kubra* [Vol. 7, no. [15,463].

Aziz mentioned in his book *al-Jāmi' fi Ṭalab al-'Ilm al-Shareef* under the title of 'The Innovation of (the) man-made constitution.' The Shaykh wrote:

As mentioned briefly before, man-made constitutions are derived from the bad fruits of evil secularism, which is considered the modern era of *Jāhiliyyah* (ignorance) after the pre-Islamic. The unbelievers have set down such constitutions because they have no sound religion or straight law to which they can refer. They were plagued by the perverted statutes which rabbis and monks altered as they wished and according to clerical synods. This made the unbelievers agree to set down books that fulfilled their interests as much as limited human reason can perceive. These books are the constitutions to which they refer as if they were divine scriptures.⁵

Without question this is a deplorable statement and it becomes even more deplorable when made by a man like Shaykh Abdul Qādir ibn 'Abd al-Aziz, who is a good seeker of religious knowledge, whose good intentions, loyalty, and opposition toward tyrannical regimes, leaders of disbelief and misguidance, that currently dominate the Muslim world, is not doubted. It is even worse when seen in light of the constitution or charter of the city of Medina. The story of how it was written in its entirety has been proven and is authentic. It is in fact a '*constitution*' in the modern sense of the term. It may well in fact be the first constitution, as described thoroughly in our book entitled: *Obedience to the rulers – Limits and Restrictions*. If this well-known fact, together with the above set of proofs and discussion are taken into consideration, this will necessarily result in an important awareness that constitutional documents are good and desirable. They are not bad or evil innovations, contrary to Shaykh Abdul Qādir's flawed and obsessed opinion. His previous statement was a reaction to the ferocious secular attack on Islam. That is why the Sheikh reacted against an extreme with an extreme, but the true *Deen* of Allah is a middle-path between going to extremes and being misguided.

Rather than rubbish the matter as an evil innovation, everybody should consider very carefully all the Islamic draft resolutions and draft bills enacted during the past century, then adopt the strongest and the most accurately

⁵ Abdul Qādir ibn 'Abd al-Aziz, *al-Jāmi' fi Ṭalab al-'Ilm al-Shareef* [Vol. 2, p.778]

worded amongst them, complete the missing points and come out with a revised strengthened draft that can be taken as a constitution and a basis for an Islamic political entity, when established – Allah willing. In so doing, it will do no harm to benefit from the jurisprudential and legal formulae of wording used by other people especially that found in the West, as they have attained a high level of efficiency in this area.

By contrast, Islamic jurisprudence has stagnated and deteriorated after having been so vibrant for so long. Jurisprudential and legal formulae did not develop in Islamic law beyond giving judgments, some jurisprudential rules and studying similar and corresponding issues, and the like. On the other hand, Western jurisprudence took great steps toward formulating jurisprudential theories, such as tort. All these formulae form a bulk of means and methods. They have nothing to do with the legislation itself as a referential authority. They are not in any way related to questions like who is the sovereign or who can initiate legislation. Rather they are related to how a jurist formulates the judgments he deduces; what are the best methods of analysis, composition, and classification and arrangement etc. Therefore, there is no harm in adopting those methods regardless of their source as they can retain their fidelity to Allah's guidance.

5. The definition of Islam

al-Islam is the *Deen* that has been revealed and sent down from Allah, the one and only deity, the Exalted and Majestic, upon the final Prophet and Messenger, Muḥammad, peace and blessings be upon him. It is the last and final *Deen* which places a seal upon everything prior to it; all that was revealed prior to this is completely abrogated by the advent of this message. The present *Deen* is the sole determiner of what is considered right and wrong, nothing will therefore be accepted by Allah unless it is in accordance with its precepts and one cannot attain salvation in the afterlife by other than it. The foundation of Islam, its fundamental principles and its solid constituents are based upon the testimony that there is no god or deity except Allah, and that Muḥammad is the Messenger of Allah.

Within the language, the word ‘al-Islam’ means complete and total submission. That is the very essence of al-Islam, namely: obedience to Allah in total and absolute submission and surrender, based upon the firm acknowledgement of his prerogative of command - *al-Ḥākimiyyah*; to his final supreme sovereignty. In truth by his very essence, he has the ultimate and absolute right for ordering and forbidding, for declaring matters as being obliged or prohibited, unconditionally (albeit on the proviso against what He has obliged upon Himself or forbidden Himself from). That is because he is ‘Allah’ and there is without doubt no other god/deity; He is the one, the only; the Ever-Living, the Self-Subsisting; originator of the heavens and the earth, Lord of all creation. He does as He wills, having mastery over everything; He creates as He wills and chooses and His knowledge encompasses all. And

there has to be disbelief in all others considered as ‘lords,’ rivals, oppressors and everything of that type. Allah the Exalted and Majestic has said:

وَمَنْ يَبْتَغِ غَيْرَ الْإِسْلَامِ دِينًا فَلَنْ يُقْبَلَ مِنْهُ وَهُوَ فِي الْآخِرَةِ مِنَ الْخَاسِرِينَ

*If anyone seeks a religion other than Islam it will not be accepted from him: he will be one of the losers in the Hereafter.*¹

إِنَّ الدِّينَ عِنْدَ اللَّهِ الْإِسْلَامُ وَمَا اخْتَلَفَ الَّذِينَ أُوتُوا الْكِتَابَ إِلَّا مِنْ بَعْدِ مَا جَاءَهُمُ الْعِلْمُ بَغْيًا بَيْنَهُمْ وَمَنْ يَكْفُرْ بِآيَاتِ اللَّهِ فَإِنَّ اللَّهَ سَرِيعُ الْحِسَابِ

*True Religion, in Allah’s eyes, is Islam. Those who were given the Scripture disagreed out of rivalry, only after they had been given knowledge— if anyone denies Allah’s revelations, Allah is swift to take account.*²

يَا أَيُّهَا الَّذِينَ آمَنُوا اتَّقُوا اللَّهَ حَقَّ تَقَاتِهِ وَلَا تَمُوتُنَّ إِلَّا وَأَنْتُمْ مُسْلِمُونَ

*O you who believe! Be mindful of Allah, as is His due, and make sure you devote yourselves to Him, to your dying moment.*³

فَإِنْ حَاجُّوكَ فَقُلْ أَسْلَمْتُ وَجْهِيَ لِلَّهِ وَمَنِ اتَّبَعَنِ وَقُلْ لِلَّذِينَ أُوتُوا الْكِتَابَ وَالْأُمِّيِّينَ أَسْلَمْتُمْ فَإِنْ أَسْلَمُوا فَقَدِ اهْتَدَوْا وَإِنْ تَوَلَّوْا فَإِنَّمَا عَلَيْكَ الْبَلَاغُ وَاللَّهُ بَصِيرٌ بِالْعِبَادِ

*If they argue with you [Prophet], say, ‘I have devoted myself to Allah alone and so have my followers.’ Ask those who were given the Scripture, as well as those without one, ‘Do you too devote yourselves to Him alone?’ If they do, they will be guided, but if they turn away, your only duty is to convey the message. Allah is aware of His servants.*⁴

وَأَنْبِئُوا إِلَىٰ رَبِّكُمْ وَأَسْلَمُوا لَهُ مِنْ قَبْلِ أَنْ يَأْتِيَكُمُ الْعَذَابُ ثُمَّ لَا تُنصَرُونَ

*Turn to your Lord. Submit to Him before the punishment overtakes you and you can no longer be helped.*⁵

حُرِّمَتْ عَلَيْكُمُ الْمَيْتَةُ وَالْدَّمُ وَلَحْمُ الْخَنَازِيرِ وَمَا أَهَلَ لِغَيْرِ اللَّهِ بِهِ وَالْمُنْخَنِقَةُ وَالْمَوْقُوذَةُ وَالْمُتَرَدِّيَةُ وَالنَّطِيحَةُ وَمَا أَكَلَ السَّبُعُ إِلَّا مَا ذَكَّيْتُمْ وَمَا ذُبِحَ عَلَى النَّصَبِ وَأَنْ تَسْتَقْسِمُوا بِالْأَزْلَامِ ذَلِكُمْ فَسُقُ الْيَوْمَ يَنْسُ الَّذِينَ

¹ Qur’ān 3: 85

² Qur’ān 3: 19

³ Qur’ān 3: 102

⁴ Qur’ān 3: 20

⁵ Qur’ān 39: 54

كَفَرُوا مِنْ دِينِكُمْ فَلَا تَخْشَوْهُمْ وَاخْشَوْنَ الْيَوْمَ أَكْمَلْتُ لَكُمْ دِينَكُمْ وَأَتِمَمْتُ عَلَيْكُمْ نِعْمَتِي وَرَضِيتُ لَكُمُ الْإِسْلَامَ دِينًا فَمَنِ اضْطُرَّ فِي مَخْمَصَةٍ غَيْرَ مُتَجَانِفٍ لِإِثْمٍ فَإِنَّ اللَّهَ غَفُورٌ رَحِيمٌ

You are forbidden to eat carrion; blood; pig's meat; any animal over which any name other than Allah's has been invoked; any animal strangled, or victim of a violent blow or a fall, or gored or savaged by a beast of prey, unless you still slaughter it [in the correct manner]; or anything sacrificed on idolatrous altars. You are also forbidden to allot shares [of meat] by drawing marked arrows - a heinous practice; today the disbelievers have lost all hope that you will give up your religion. Do not fear them: fear Me. Today I have perfected your religion for you, completed My blessing upon you, and chosen as your religion Islam; but if any of you is forced by hunger to eat forbidden food, with no intention of doing wrong, then Allah is most forgiving and merciful.⁶

The words 'Islam' and 'Muslimeen' have been used in relation to the previous religions, an example of which can be found in the following verse in relation to the Torah, where the Exalted has expressed the following:

إِنَّا أَنْزَلْنَا التَّوْرَةَ فِيهَا هُدًى وَنُورٌ يَحْكُمُ بِهَا النَّبِيُّونَ الَّذِينَ أَسْلَمُوا لِلَّذِينَ هَادُوا وَالرَّبَّانِيُّونَ وَالْأَحْبَارُ بِمَا اسْتُحْفِظُوا مِنْ كِتَابِ اللَّهِ وَكَانُوا عَلَيْهِ شُهَدَاءَ فَلَا تَخْشَوُا النَّاسَ وَاخْشَوُا اللَّهَ وَلَا تَشْتَرُوا بِآيَاتِي ثَمَنًا قَلِيلًا وَمَنْ لَمْ يَحْكَمْ بِمَا أَنْزَلَ اللَّهُ فَأُولَئِكَ هُمُ الْكَافِرُونَ

We revealed the Torah with guidance and light, and the Prophets, who had submitted to Allah, judged according to it for the Jews. So did the rabbis and the scholars in accordance with that part of Allah's Scripture which they were entrusted to preserve, and to which they were witnesses. So [rabbis and scholars] do not fear people, fear Me; do not barter away My messages for a small price; those who do not judge according to what Allah has sent down are the disbelievers.⁷

وَوَصَّى بِهَا إِبْرَاهِيمُ بَنِيهِ وَيَعْقُوبُ يَا بَنِيَّ إِنَّ اللَّهَ اصْطَفَى لَكُمُ الدِّينَ فَلَا تَمُوتُنَّ إِلَّا وَأَنْتُمْ مُسْلِمُونَ

And Abraham commanded his sons to do the same, as did Jacob: 'My sons, Allah has chosen [your] religion for you, so make sure you devote yourselves to Him, to your dying moment.'⁸

⁶ Qur'ān 5: 3

⁷ Qur'ān 5: 44

⁸ Qur'ān 2: 132

Allah the Exalted has also said the following:

أَفَغَيْرَ دِينِ اللَّهِ يَبْغُونَ وَلَهُ أَسْلَمَ مَنْ فِي السَّمَاوَاتِ وَالْأَرْضِ طَوْعًا وَكَرْهًا وَإِلَيْهِ يُرْجَعُونَ

Do they seek anything other than submission to Allah? Everyone in the heavens and earth submits to Him, willingly or unwillingly; they will all be returned to Him.⁹

From these verses it can reasonably be established that the intended sense of 'Islam' and 'Muslim' is the original linguistic one, which is submission and surrender. Moreover, it is the complete submission to Allah alone, total submissiveness, surrender and subjection towards Him. It is based upon the acknowledgment of Allah's firmly established *Hākimiyyah*, the final supreme sovereign authority. Only He, in truth, is the ultimate determiner of what is to be commanded or prohibited; only He has the prerogative of command absolutely, without condition or qualification. That is, except where He has placed a restriction or condition upon himself not to enact or undertake something. He is Allah, there is no god or deity except Him. He is the One and only, *al-Hayy*, the Ever Living, the *al-Qayyum*, the Self-Existing; Originator of the heavens and the earth, Lord of all creation. He acts as He wills and holds dominion over everything; He creates whatever He wishes according to His choice and His knowledge encompasses all. With regards to any tyrants, partners or rivals that are set up either beside or in tandem with Him, there is total disbelief and disavowal in all of them.

All the previous Prophets and those who believed in them and followed them were upon that which is good and guidance; therefore, they were upon 'Islam' in a general sense. But this isn't the 'Islam' in a *specific* sense; in other words, that as we specifically know it – the complete *Deen*; with its detailed *Shari'ah* and doctrines as has been revealed upon the seal of the Prophets, Muhammad ibn Abdullah peace and blessings be upon him. Given that he is the final Prophet, the seal of Prophethood, there is no 'Islam' in its general sense anymore; rather there is only the Islam as set out and revealed to him and thereunto us.

⁹ Qur'ān 3: 83

6. The meaning of – there is no god except Allah

The meaning of *La ilaha illallah* - ‘there is no god except Allah’ is that there is nothing whatsoever that has the attributes of *al-Uluhiyah* (divinity). It relates to Him, Allah, having the ability by His divine-self for action; acting independently in an absolute way, without need or recourse to others. In particular, this can be said of acts such as the initiation of creation from nothing, with its resultant follow-on of fashioning, imaging, configuring, managing, not least to say compelling this into existence through divine will. He alone has the prerogative of command, in origin to command and prohibit. Such action is by way of complete freedom, without any condition. There is nothing by necessity or by the necessity of reason compelling Him to act, for in truth He is the only deity. He is the self-subsistent, or stated alternatively, the necessarily existent; acting by His express will and self, rich without any dependence. His knowledge is complete, all-encompassing; whatever He desires to be, that is what will be. Whatever He doesn’t wish to be, will not therefore come to pass, for there is nothing that is characterised by such qualities except Allah. Even if anyone attributes any of these qualities to other than Allah, it will be a manifest lie, slander, false imagination, or an illusion that has nothing to do with the actual reality. Allah the Exalted and Majestic states:

ذَٰلِكَ بِأَنَّ اللَّهَ هُوَ الْحَقُّ وَأَنَّ مَا يَدْعُونَ مِنْ دُونِهِ الْبَاطِلُ وَأَنَّ اللَّهَ هُوَ الْعَلِيُّ الْكَبِيرُ

*This is because Allah is the truth, and what they invoke besides Him is false, He is the Most High, the most Great.*¹

فَاعْلَمْ أَنَّهُ لَا إِلَهَ إِلَّا اللَّهُ وَاسْتَغْفِرْ لِذَنْبِكَ وَلِلْمُؤْمِنِينَ وَالْمُؤْمِنَاتِ وَاللَّهُ يَعْلَمُ مُتَقَلَّبَكُمْ وَمَثْوَاكُمْ

*So, bear in mind that there is no god but Allah, and ask forgiveness for your sins and for the sins of believing men and women. Allah knows whenever any of you move, and whenever any of you stay still.*²

Moreover, the meaning behind ‘there is no god except Allah’ is illustrated by His words where He states:

أَلَا لَهُ الْخَلْقُ وَالْأَمْرُ تَبَارَكَ اللَّهُ رَبُّ الْعَالَمِينَ

*All creation and command belong to Him. Exalted be Allah, Lord of all the worlds!*³

There is also the statement which Allah informs us that in relation to the Prophet Yusuf, Joseph peace be upon him, conveying the meaning behind ‘there is no god except Allah’ in the following verse:

مَا تَعْبُدُونَ مِنْ دُونِهِ إِلَّا أَسْمَاءُ سَمَّيْتُمُوهَا أَنْتُمْ وَآبَاؤُكُمْ مَا أَنْزَلَ اللَّهُ بِهَا مِنْ سُلْطَانٍ إِنْ الْحُكْمُ إِلَّا لِلَّهِ أَمَرَ أَلَّا تَعْبُدُوا إِلَّا إِيَّاهُ ذَلِكَ الدِّينُ الْقَيِّمُ وَلَكِنَّ أَكْثَرَ النَّاسِ لَا يَعْلَمُونَ

*All those you worship instead of Him are mere names you and your forefathers have invented, names for which Allah has sent down no sanction. Authority belongs to Allah alone, and He orders you to worship none but Him: this is the true faith, though most people do not realise it.*⁴

Pillars underpinning al-Shahāda - the testimony of faith

Firstly, this entails to completely reject the notion that any particle, substance, be that referred to as nature or the universe, holds any of the characteristics of divinity, except Allah the Exalted. Specifically relating to the acts of creation, configuring, fashioning; apportioning the correct measure, benefit, harm and

¹ *Qur’ān* 31: 30

² *Qur’ān* 47: 19

³ *Qur’ān* 7: 54

⁴ *Qur’ān* 12: 40

the like. Coupled together with the complete free will and ability of choice in determining these matters, as well as the knowledge of its proportionality. The proof of all these attributes, in totality, to the utmost beauty and perfection belongs to Allah the Exalted. At the apex of this together with *al-Ḥākimiyyah*: the ultimate, final supreme sovereignty. In other words, only He – the Exalted and Magnificent, has prerogative of command, the ultimate choice in determining what is to be commanded or prohibited. He alone retains this by his very self or essence, with no partner whatsoever.

Secondly, is the absolute, complete rejection and denial that anything from divinity can be given to other than Allah. That rejection is for all perceived gods/deities besides Allah, or for that matter, every *Rabb* – lord, beside Allah. There must be complete disbelief in all that, because that disbelief here also encompasses disavowal and rejection. Allah the Exalted and Majestic has expressly stated:

لَا إِكْرَاهَ فِي الدِّينِ قَدْ تَبَيَّنَ الرُّشْدُ مِنَ الْغَيِّ فَمَنْ يَكْفُرْ بِالطَّاغُوتِ وَيُؤْمِنَ بِاللَّهِ فَقَدْ اسْتَمْسَكَ بِالْعُرْوَةِ الْوُثْقَى
لَا انْفِصَامَ لَهَا وَاللَّهُ سَمِيعٌ عَلِيمٌ

*There is no compulsion in religion: true guidance has become distinct from error, so whoever rejects false gods and believes in Allah has grasped the firmest hand-hold, one that will never break. Allah is all hearing and all knowing.*⁵

And he has said of Ibrāhīm, Abraham peace be upon him while praising him specifically that:

وَإِذْ قَالَ إِبْرَاهِيمُ لِأَبِيهِ وَقَوْمِهِ إِنَّنِي بَرَاءٌ مِمَّا تَعْبُدُونَ ، إِلَّا الَّذِي فَطَرَنِي فَإِنَّهُ سَيَهْدِينِ

*Abraham said to his father and his people, 'I renounce what you worship. I worship only Him who created me, and it is He who will guide me.'*⁶

There is also what has been authentically reported from the Messenger of Allah peace and blessings be upon him, where he said:

⁵ *Qur'ān* 2: 256. Abdel Haleem's translation renders the term '*Ṭāghut*' here as being 'false gods.'

⁶ *Qur'ān* 43: 26/27

مَنْ قَالَ لَا إِلَهَ إِلَّا اللَّهُ، وَكَفَرَ بِمَا يُعْبَدُ مِنْ دُونِ اللَّهِ، حُرِّمَ مَالُهُ وَدَمُهُ، وَجَسَابَهُ عَلَى اللَّهِ عَزَّ وَجَلَّ

*Whoever said that there is no god except Allah, and he disbelieves in whatever is worshipped besides Allah, his property and blood become inviolable, and it is for Allah the Mighty and Sublime to call him to account.*⁷

Consequently, *al-Shahāda* - the testimony of faith, has two aspects: an affirmation that all qualities and characteristics which pertain to divinity belong solely to Allah, the Almighty. The negation is to categorically deny that *any* of these divine qualities and characteristics reside anywhere else. There is no 'other being' in existence other than Allah to whom these apply. Furthermore, it is to disbelieve in every *ṭawāgheet* – in every false deity, evil, and exorbitant tyranny. Without this specific affirmation and rejection, there is no Islam and no salvation in the hereafter.

⁷ As per the *ḥadith* in *Ṣaḥīḥ* Muslim, with the *isnād*: And Suwayd ibn Sa'eed and Ibn Abi Umar narrated to us, they said Marwān, meaning al-Fazāri narrated to us from Abu Malik from his father, he said I heard the Messenger of Allah peace and blessings be upon him say.

7. The meaning of – Muḥammad is the Messenger of Allah

The latter half of the proclamation relates to Muḥammad, peace and blessings be upon him, being the conveyer of Allah's truth and words, in a manner that is completely free of anything missing or added, as well as any form of error, lie or forgetfulness. The Prophet peace and blessings be upon him does not forget, but rather *he is made to forget*, so as to set for his nation Prophetic traditions pertaining to forgetfulness. As Allah the Almighty has lucidly explained:

سَتَقْرَأُكَ فَلَا تَنْسَى إِلَّا مَا شَاءَ اللَّهُ إِنَّهُ يَعْلَمُ الْجَهْرَ وَمَا يَخْفَى

[Prophet], We shall teach you [the Qur'ān] and you will not forget, unless Allah wishes; He knows both what is open and what is hidden.¹

He is the best leader, the exemplar, the ideal to be followed. Neither does he speak of his own desire nor does he utter except that which is true. He never says anything except out of the knowledge that Allah has bestowed upon him or wishes to proceed ahead of his Lord. If he is asked about something new, he remains silent and waits until the divine ruling is revealed to him. He is simply a conveyer of Allah's truth and words, so he does not practice *ijtihād* (independent legal-juristic reasoning). He neither needs it nor did he practice it, for Allah has elevated him high above the need for that. But Allah gave honour and mercy to anyone of his nation who practices independent legal reasoning – whether or not the practice results in a sound or an erroneous

¹ Qur'ān 87: 6/7

judgement. He who reaches a sound judgment receives a double reward or more, whereas he who reaches an erroneous judgment receives a single reward for his effort.

To put the matter more expressly, we would say about him, peace and blessings be upon him, that he has no need or requirement to resort to *ijtihād*. There is no requirement for him to exercise substantive effort in undertaking the process that subsequent scholars from his nation are required to do in order to reach or discern a particular legal judgement. He has no need or requirement to seek to deduce legal rulings from the detailed evidences. Therefore the meaning of 'Muḥammad is the Messenger of Allah' is that none has the right to be followed except the Messenger of Allah peace and blessings be upon him. Others beside the Messenger of Allah peace and blessings be upon him are not to be followed or obeyed *except by virtue of an established evidential command*. He who follows something without such evidence will be following falsehood. Even the following in permissible matters requires a proof, for permissibility is considered a 'legal ruling'. The following in permissible or 'optional rulings' is the same as the following in other legal rulings including the obligatory, the recommended, the undesirable, and the prohibited. This is similar to the following in so-called positive rulings including: cause, condition, allowance, easement, restriction, validity, invalidity and incorrectness. The legal ruling of such optional deeds performed by human beings cannot be identified except by means of a legal proof – no matter what the deed is. As for the deeds people perform by their own free will and determination during the pre-Islamic period and before the establishment of any legal proofs or authority, they are neither mandatory nor permissible. Permissibility is a legal ruling established by way of revelation.

Allah has set out some definitive parameters regarding obedience to the commissioned Prophets and Messengers, including the Prophet Muḥammad peace and blessings be upon him as per the following verses:

فَلَا وَرَبِّكَ لَا يُؤْمِنُونَ حَتَّى يُحَكِّمُوكَ فِيمَا شَجَرَ بَيْنَهُمْ ثُمَّ لَا يَجِدُوا فِي أَنْفُسِهِمْ حَرَجًا مِمَّا قَضَيْتَ وَيُسَلِّمُوا تَسْلِيمًا

By your Lord, they will not be true believers until they let you decide between them in all matters of dispute, and find no resistance in their souls to your decisions, accepting them totally.²

وَمَا كَانَ لِمُؤْمِنٍ وَلَا مُؤْمِنَةٍ إِذَا قَضَى اللَّهُ وَرَسُولُهُ أَمْرًا أَنْ يَكُونَ لَهُمُ الْخِيَرَةُ مِنْ أَمْرِهِمْ وَمَنْ يَعْصِ اللَّهَ وَرَسُولَهُ فَقَدْ ضَلَّ ضَلَالًا مُبِينًا

When Allah and His Messenger have decided on a matter that concerns them, it is not fitting for any believing man or woman to claim freedom of choice in that matter: whoever disobeys Allah and His Messenger is far astray.³

مَنْ يُطِعِ الرَّسُولَ فَقَدْ أَطَاعَ اللَّهَ وَمَنْ تَوَلَّى فَمَا أَرْسَلْنَاكَ عَلَيْهِمْ حَفِظًا

Whoever obeys the Messenger obeys Allah. If some pay no heed, We have not sent you to be their keeper.⁴

وَمَا أَرْسَلْنَا مِنْ رَسُولٍ إِلَّا لِيُطَاعَ بِإِذْنِ اللَّهِ وَلَوْ أَنَّهُمْ إِذْ ظَلَمُوا أَنْفُسَهُمْ جَاءُوكَ فَاسْتَغْفَرُوا اللَّهَ وَاسْتَغْفَرَ لَهُمُ الرَّسُولُ لَوَجَدُوا اللَّهَ تَوَّابًا رَحِيمًا

All the Messengers We sent were meant to be obeyed, by Allah's leave. If only [the hypocrites] had come to you [Prophet] when they wronged themselves, and begged Allah's forgiveness, and the Messenger had asked forgiveness for them, they would have found that Allah accepts repentance and is most merciful.⁵

إِلَّا بِلَاغٍ مِنَ اللَّهِ وَرِسَالَاتِهِ: وَمَنْ يَعْصِ اللَّهَ وَرَسُولَهُ فَإِنَّ لَهُ نَارَ جَهَنَّمَ خَالِدًا فِيهَا أَبَدًا

I only deliver [what I receive] from Allah - only His messages.' Whoever disobeys Allah and His Messenger will have Hell's Fire as his permanent home.⁶

تِلْكَ حُدُودُ اللَّهِ وَمَنْ يُطِعِ اللَّهَ وَرَسُولَهُ يُدْخِلْهُ جَنَّاتٍ تَجْرِي مِنْ تَحْتِهَا الْأَنْهَارُ خَالِدِينَ فِيهَا ذَلِكَ الْفَوْزُ الْعَظِيمُ، وَمَنْ يَعْصِ اللَّهَ وَرَسُولَهُ وَيَتَعَدَّ حُدُودَهُ يُدْخِلْهُ نَارًا خَالِدًا فِيهَا وَلَهُ عَذَابٌ مُهِينٌ

These are the bounds set by Allah. Allah will admit those who obey Him and His Messenger to Gardens graced with flowing streams, and there they will stay - that is the supreme triumph! But those who disobey Allah and His

² Qur'ān 4: 65

³ Qur'ān 33: 36

⁴ Qur'ān 4: 80

⁵ Qur'ān 4: 64

⁶ Qur'ān 72: 23

Messenger and overstep His limits will be consigned by Allah to the Fire, and there they will stay - a humiliating torment awaits them!⁷

⁷ Qur'ān 4: 13/14

8. The Grades of Deen

The specific arrangement or ordering for the grades of *Deen* comes from the famous *Ṣaḥīḥ ḥadīth* of Jibreel in which the Prophet peace and blessings be upon him was reported to have said: *‘That was Jibreel (Gabriel) he came to teach you the affairs pertaining to your Deen.’* As for its transmission, this is available in all the major collections, being transmitted upon the authority of Abu Hurayrah and Umar ibn al-Khaṭṭāb, may Allah be pleased with them, appearing in *Ṣaḥīḥ* Bukhārī and Muslim, whereas that reported by Ibn ‘Abbās may Allah be pleased with him appears with a *Ṣaḥīḥ isnād* in the *Musnad* of Imām Aḥmad.

al-Islam, al-‘Imān and al-Iḥsān

To proceed, the following appears in *Ṣaḥīḥ* Muslim narrated upon the authority of Abu Hurayrah, may Allah be pleased with him:

Zuhayr ibn Ḥarb narrated to me Jarir narrated to us from Umāra – and he is Ibn al-Qa’qā’ah – from Zura’ from Abu Hurayrah he said that the Messenger of Allah peace and blessings be upon him said: *Ask me*, but they (the Companions) were too much overawed out of profound respect to ask. In the meanwhile a man came and sat near his knees and said: Messenger of Allah, what is Islam? To which he replied: *To not associate anything with Allah, and establish the prayer, to pay the Zakāt and to fast in Ramaḍān.* (The questioner) said: You have spoken the truth. He (again) asked: Messenger of Allah, what is *al-‘Imān*? He

(the Prophet) said: *That you believe in Allah, His angels, His Books, His meeting, His messengers, and that you believe in Resurrection and that you believe in al-Qadr in its entirety.* (The questioner) said: You have spoken the truth. He (again) asked: Messenger of Allah, what is *al-Iḥsān*? Upon this he (the Prophet) said: that you fear Allah as if you are seeing him, although you do not, but verily he sees you.

(The questioner) said: You have spoken the truth. He (further) asked: Messenger of Allah, when is the hour? (The Prophet) said: *The one who is being asked about it is no better informed than the inquirer himself. However I will narrate to you some of its signs: when you see a slave (woman) giving birth to her master, that is one of the signs of; when you see barefooted, naked, deaf and dumb kings of the earth that is one of its portents. And when you see the shepherds of black camels exult in buildings, that is one of its portents. The (hour) is one of the five things in the unseen; no one knows them except Allah.* Then (the Prophet) recited: *Verily Allah is He with whom alone is the knowledge of the hour and He it is who sends down the rain and knows that which is in the wombs and no person knows whatsoever he shall earn on morrow and a person knows not in whatsoever land he shall die. Verily Allah is all knowing, aware.*

(Abu Hurayrah) said: Then the person stood up and went on his way. The Prophet peace and blessings be upon him said: *Bring him back to me.* He was searched for, but they (the Companions) could not find him. The Messenger of Allah peace and blessings be upon him thereupon said: *He was Jibreel (Gabriel) and he wanted to teach you (things pertaining to religion) when you did not ask (them yourselves).*¹

Imām Muslim reports the same tradition in other parts of his *Ṣaḥīḥ*.² As one would expect, the narration is widely reported, appearing in many notable collections of *ḥadīth*.³

Variance of wording: The ahādīth of Ibn Umar

¹ *Ṣaḥīḥ* Muslim [Vol. 1, no. 10]. The verse mentioned in the *ḥadīth* is at 31: 34.

² Ibid.

³ A sizeable number of references are detailed, amongst them: *Ṣaḥīḥ* Bukhārī Vol. 1, no. 50 and Vol. 4, no. 4499], *Ṣaḥīḥ* Ibn Ḥibbān [Vol. 1, no. 159] and *Ṣaḥīḥ* Ibn Khuzayma [Vol. 4, no. 2244].

Imām Muslim reports the next tradition in his *Ṣaḥīḥ*, but this is reported on the authority of Abdullah ibn Umar:

Abu Khaythama Zuhayr ibn Ḥarb narrated to me Waki' narrated to us from Kahmas from Abdullah ibn Burayda from Yahya ibn Ya'mar, *ḥawala*, and 'Ubaydullah ibn Mu'ādh al-'Anbari narrated to us and this is his *ḥadith*; my father narrated to me Kahmas narrated to us from Ibn Buraydah from Yahya ibn Ya'mar he said: the first man who discussed *Qadr* in Baṣra was Ma'bad al-Juhani. I along with Humayd ibn 'Abdar-Raḥman al-Ḥimyari set out for pilgrimage or for *Umrah* and said: Should it so happen that we come into contact with one of the Companions of the Messenger of Allah peace and blessings be upon him, we shall ask him about what is talked about *al-Qadr*. We came across Abdullah ibn Umar ibn al-Khaṭṭāb, while he was entering the *masjid*. My companion and I surrounded him. One of us (stood) on his right and the other stood on his left. I expected that my companion would authorise me to speak. I therefore said: Abu Abdar-Raḥman! There have appeared some people in our land who recite the Qur'ān and pursue knowledge. And then after talking about their affairs, added: They (such people) claim that there is no such thing as *al-Qadr*. He (Ibn Umar) said: When you happen to meet such people tell them that I have nothing to do with them and they have nothing to do with me. And verily they are in no way responsible for my (belief). Abdullah ibn Umar swore by Him (the Lord) (and said): If any one of them had with him gold equal to the bulk of (the mountain) *Uhud* and spent it (in the way of Allah), Allah would not accept it unless he affirmed his faith in *al-Qadr*.

He further said - My father Umar ibn al-Khaṭṭāb, narrated to me, he said: One day we were sitting in the company of Allah's Messenger peace and blessings be upon him when there appeared before us a man dressed in pure white clothes, his hair extraordinarily black. There were no signs of travel on him. None amongst us recognised him. At last he sat with the Prophet peace and blessings be upon him. He knelt before him placed his palms on his thighs and said: Muḥammad, inform me about *al-Islam*. The Messenger of Allah peace and blessings be upon him said: *al-Islam is that you testify that there is no god except Allah*

and that Muḥammad is the Messenger of Allah; and you establish prayer, pay Zakāt, observe the fast of Ramaḍān, and perform pilgrimage to the house if you are solvent enough (to bear the expense of) the journey. He (the inquirer) said: You have spoken the truth. He (Umar ibn al-Khaṭṭāb) said: It amazed us that he would put the question and then he would himself verify the truth. He (the inquirer) said: Inform me about 'Imān (faith). He replied: *That you believe in Allah, in His angels, in His Books, in His Messengers, in the Day of Judgment, and you believe in al-Qadr, (both) its good and bad.* He (the inquirer) said: You have spoken the truth. He (the inquirer) again said: Inform me about *al-Iḥsān*. He said: *That you worship Allah as if you are seeing Him, for though you don't see Him, verily He sees you.* He (the enquirer) again said: Inform me about the hour. He remarked: *One who is asked knows no more than the one who is inquiring (about it).* He (the inquirer) said: Tell me some of its indications. He said: *That the slave-girl will give birth to her mistress and master; that you will find barefooted, destitute goat-herders vying with one another in the construction of magnificent buildings.*

He (the narrator, Umar ibn al-Khaṭṭāb) said: Then he (the inquirer) went on his way but I stayed with him (the Prophet) for a long while. He then, said to me - Umar, do you know who this inquirer was? I replied: Allah and his Messenger know best. He said: *He was Jibreel and he came to you in order to instruct you in matters of Deen.*⁴

Similarly, this narration is widely reported, appearing in many notable collections of *aḥādith*.⁵ But the following narration which appears in the *Musnad* of Imām Aḥmad contains a variance of wording in the enumeration:

حدثنا أبو نعيم حدثنا سفيان عن علقمة بن مرثد عن سليمان بن بريدة عن ابن يعمر قال قلت لابن عمر رضي الله عنه إنا نساء في الأفق فنلقى قوما يقولون لا قدر فقال ابن عمر إذا لقيتموهم فأخبروهم أن عبد الله بن عمر منهم بريء وأنهم منه برآء ثلاثا ثم أنشأ يحدث بينما نحن عند رسول الله صلى الله عليه وسلم فجاء رجل فذكر من هيئته فقال رسول الله صلى الله

⁴ Given the length of the narrative the Arabic text has been omitted. The original text can be found in *Ṣaḥīḥ Muslim* [Vol. 1, no. 8]

⁵ The cited references for this are numerous, notably among them are to be found in: *Sunan al-Nasā'i* [Vol. 8, no. 4990], *Sunan Ṣaḥīḥ Ibn Khuzayma* [Vol. 4, no. 2504], and the *Sunan al-Kubra* of al-Bayhaqy [Vol. 4, no. 8393].

عليه وسلم ادنه فدنا فقال ادنه فدنا فقال ادنه فدنا حتى كاد ركبته تمشان ركبته فقال يا رسول الله أخبرني ما الإيمان أو عن الإيمان قال تؤمن بالله وملائكته وكتبه ورسله واليوم الآخر وتؤمن بالقدر قال سفيان أراه قال خير وشره قال فما الإسلام قال إقام الصلاة وإيتاء الزكاة وحج البيت وصيام شهر رمضان وغسل من الجنابة كل ذلك قال صدقت صدقت

Abu Nu'aym narrated to us Sufyān narrated to us from 'Alqama ibn Marthad from Sulaymān ibn Burayda from Ibn Ya'mar, he said: I said to Ibn Umar, may Allah be pleased with him - We travel to different countries and we meet people who say there is no *Qadr*. Ibn Umar said: if you meet them report to them that Abdullah ibn Umar has nothing to do with them and they have nothing to do with him - three times. Then he began to narrate: whilst we were with the Messenger of Allah (peace be upon him), there came a man - and he described his appearance. The Messenger of Allah (peace be upon him) said: *come closer*; so he came closer. He (again) said: *come closer*, so he came closer. (Then again) he said: *come closer*, so he came closer until his knees were nearly touching (the Prophet's knees). Then he said: O Messenger of Allah report to me what *'Imān* is - or about *'Imān*.

He said: *To believe in Allah, His angels, His books, His Messengers, the last day and to believe in al-Qadr*. Sufyān said: I think he said: (both) *its good and its bad*. He asked: So what is al-Islam? He (the Prophet) said: *To establish prayer, pay zakāt, perform pilgrimage to the house, to fast Ramaḍān and to perform ghusl in the case of Janābah (major ritual impurity) – all of that*. For all of that he (the stranger) said: You have spoken the truth, you have spoken the truth.⁶

A similar narration in terms of wording to that of Imām Aḥmad appears in the *Muṣṣanaḥ* of Abu Bakr ibn Abi Shayba, albeit via a different *isnād*, namely - Ibn Fuḍeel narrated to us from 'Aṭā ibn al-Sā'ib from Muḥārib ibn Dithār from Ibn Burayda he said we alighted back at Medina and came upon Abdullah ibn Umar. Again, the wording expressed in this narration with regards to the enumeration contains the variance. Jibreel asks: 'O Messenger of Allah, what is al-Islam?' He (the Prophet) replied: 'To establish the *Ṣalāh*, to pay the *Zakāt*, to fast in Ramaḍān, to undertake pilgrimage to the house, and to

⁶ *Musnad Aḥmad* [Vol. 1, no. 374]. The remainder of the narration has been omitted for the sake of brevity.

perform ghusl from Janābah.⁷ Concerning this narrative there is no fear in relation to the *'ikhtilāf* resulting from 'Aṭā ibn al-Sā'ib, since Muḥammad ibn Fuḍeel heard from him before and after his *ikhtilāf*. Additionally there is no fear here either particularly given that it has also come via the channel of Shareek ibn Abdullah al-Qāḍi and he is old in hearing from 'Aṭā. Imām al-Nasā'i also cites similarly in his *Sunan al-Kubra*, albeit again with some additional variance of wording:

أنبا أبو داود قال حدثنا يزيد بن هارون قال أنبا شريك عن الركين بن الربيع عن يحيى بن يعمر وعن عطاء بن السائب عن محارب بن دثار عن بن بريدة قال حججنا واعتمرنا ثم قدمنا المدينة فأتينا بن عمر

ثم قال بينا نحن عند رسول الله صلى الله عليه وسلم إذ جاء رجل حسن الوجه حسن الشارة طيب الريح قال فعجبنا لحسن وجهه وشارته وطيب ريحه فسلم على النبي، صلى الله عليه وسلم، ثم قام فقال أدنو يا رسول الله قال نعم قال فدنا ثم قام قال فعجبنا لتوقيره النبي، صلى الله عليه وسلم، ثم قال أدنو يا رسول الله قال فدنا حتى وضع فخذه على فخذ رسول الله صلى الله عليه وسلم ورجله على رجله ثم قال يا رسول الله ما الإيمان قال أن تؤمن بالله وملائكته وكتبه ورسله واليوم الآخر والبعث من بعد الموت والحساب والقدر خيره وشره وحلوه ومره قال صدقت قال فتعجبنا لقوله لرسول الله صلى الله عليه وسلم، صدقت ثم قال يا رسول الله ما الإسلام قال تشهد أن لا إله إلا الله وأني رسول الله وتقيم الصلاة وتؤتي الزكاة وتصوم رمضان وتحج البيت وتغتسل من الجنابة؛ قال صدقت

Abu Dāwud reports, he said: Yazeed ibn Hārūn narrated to us he said Shareek reports from al-Rakeen ibn al-Rabih' from Yahya ibn Ya'mar and from 'Aṭā ibn al-Sā'ib from Muḥārib ibn Dithār from Ibn Burayda he said: We performed *Hajj* and *Umrah* and then came to Medina and came upon Ibn Umar.

Thereafter he (Ibn Umar) said: We were in the midst of the Messenger of Allah peace and blessings be upon him, when a man came with a handsome face, well-kept and a good fragrance. We wondered at such a man approaching upon the Messenger of Allah. Then he approached closer and said: Shall I come closer O Messenger of Allah? (The Prophet) said: *Yes*. (Ibn Umar) said: So we came closer (as well). Then he came closer. We were amazed by the veneration that he gave to the Prophet (peace be upon him). Then he said: Shall I come closer O Messenger of Allah? (Ibn Umar) said: So we came closer (as

⁷ *Muṣṣanaḥ* Ibn Abi Shayba [Vol. 6, no. 30429]

well, as did he) until he put his thigh next to that of the Messenger of Allah peace and blessings be upon him and his leg was beside his.

He then said, O Messenger of Allah what is *al-Imān*? He replied: *That you believe in Allah, His angels, books, Messengers and the final day; the resurrection after death and its accounting, and al-Qadr, (be it) its good, its bad and its sweetness and bitterness.* He (the questioner) said: You have spoken the truth. We wondered at his speech to the Messenger of Allah peace and blessings be upon him, (as he said) you have spoken the truth. Then he said: O Messenger of Allah what is *al-Islam*? He said: *You testify that there is no god except Allah and that I and the Messenger of Allah; to establish the Ṣalāh, to pay the Zakāt, to fast in Ramaḍān and pilgrimage to the house; and to make ghusl from Janābah.* He (the questioner) said: You have spoken the truth.⁸

In *Sunan al-Kubra* of Imām al-Bayhaqy, he reports the following narration with more complete wording:

أخبرنا علي بن محمد بن عبد الله بن بشران العدل ببغداد أنبا أبو جعفر محمد بن عمرو بن البخترى الرزاز حدثنا محمد بن عبيد الله بن يزيد حدثنا يونس بن محمد حدثنا معتمر هو بن سليمان عن أبيه عن يحيى بن يعمر قال قلت لابن عمر يا أبا عبد الرحمن إن قوما يزعمون أن ليس قدر قال فهل عندنا منهم أحد قال قلت لا قال فأبلغهم عني إذا لقيتهم أن بن عمر بريء إلى الله منكم وأنتم برئاء منه سمعت عمر بن الخطاب رضي الله عنه يقول بينما نحن جلوس عند رسول الله، صلى الله عليه وسلم، إذ جاء رجل عليه سحناء سفر وليس من أهل البلد يتخطى حتى ورك بين يدي رسول الله، صلى الله عليه وسلم، كما يجلس أحدنا في الصلاة ثم وضع يده على ركبتي رسول الله، صلى الله عليه وسلم، فقال يا محمد ما الإسلام قال أن تشهد أن لا إله إلا الله وأن محمدا رسول الله؛ وأن تقم الصلاة؛ وتؤتي الزكاة؛ وتحج البيت وتعتقر؛ وتغتسل من الجنابة وتتم الوضوء؛ وتصوم رمضان قال فإن قلت هذا فأنا مسلم قال نعم قال صدقت؛... وذكر الحديث

Ali Muḥammad ibn Abdullah ibn Bishrān al-‘Adl reported to us in Baghdad, Abu Ja’far ibn Muḥammad ibn ‘Amr ibn al-Bukhtari al-Razāz reports, Muḥammad ibn ‘Ubaydullah ibn Yazeed narrated to

⁸ al-Nasā’i *Sunan al-Kubra* [Vol. 3, no. 5883]. The narration is abbreviated to the points pertinent to the discussion of the chapter.

us Yunus ibn Muḥammad narrated to us Mu’tamir, he is Ibn Sulaymān narrated to us from his father from Yaḥya ibn Ya’mar he said: I said to Ibn Umar, O Abdar-Raḥman there are some people who conceive that there isn’t *al-Qadr*, so are we one from among them? He (Ibn Umar) said: No. So, convey to them when you meet them that Ibn Umar, by Allah, has nothing to do with them and they nothing to do with him. I heard Umar ibn al-Khaṭṭāb (may Allah be pleased with him) saying: while we were sitting with the Messenger of Allah (peace be upon him) a man came along without signs of travel and not from the people of the country, until he sat at the Prophet (peace be upon him), his thigh between his hands and he said: O Muḥammad, what is Islam? He (the Prophet) said: *That you testify that there is no god but Allah and that Muḥammad is the Messenger of Allah; and that the Ṣalāh is established; the Zakāt is paid, pilgrimage to the house and Umrah, and performing ghusl from Janābah and completing the wudu’; and the fast of Ramaḍān.* He (the questioner) said: If I say this will I be Muslim? He (the Prophet) said: *Yes.* He (the questioner) said: You have spoken the truth, (then mentioned the *ḥadith*).⁹

After mentioning the *ḥadith*, Imām Bayhaqy said: ‘It is reported by Muslim in the *Ṣaḥīḥ* from Ḥajjāj ibn al-Shā’ir from Yunus ibn Muḥammad except that he did not take its (reported) wording.’ Other collections of *ḥadith* also cite this narration. Imām Dāraquṭni has this in his *Sunan*; it is in *Ṣaḥīḥ* Ibn Khuzayma with the *isnād*: ‘Abu Ya’qub Yusuf ibn Wāḍih al-Hāshami narrated to us al-Mu’tamir ibn Sulaymān narrated to us.’ Ibn Ḥibbān also cites this in his *Ṣaḥīḥ* from the channel of Ibn Khuzayma.¹⁰ al-Ṭabarāni further provides another narration upon the authority of Ibn Umar:

Ḥussein ibn Bihān al-‘Askari narrated to us Sahl ibn Uthmān narrated to us, *ḥawala*, and Muḥammad ibn Ḥussein ibn Mukram narrated to us al-Ḥasan ibn Ḥammād Sajjādah narrated to us, they said: al-Muṭṭalib ibn Ziyād al-Thaqafī narrated to us from Manṣur ibn al-Mu’tamir from ‘Aṭā from Ibn Umar he said.

⁹ al-Bayhaqy *Sunan al-Kubra* [Vol. 4, no. 8537]

¹⁰ *Sunan Dāraquṭni* [Vol. 2, no. 207], *Ṣaḥīḥ* Ibn Khuzayma [Vol. 1, no. 1], *Ṣaḥīḥ* Ibn Ḥibbān [Vol. 1, no. 173]

He (Jibreel) said: O Messenger of Allah, what is Islam? He (the Prophet) said: *Testifying that there is no god except Allah and that Muḥammad is the Messenger of Allah. And to establish the Ṣalāh, pay the Zakāt, pilgrimage to the house and fasting in Ramaḍān and performing ghusl from Janābah.* He (the questioner) said: If I do that will I be Muslim? He (the Prophet) said: *Yes.* He (the questioner) said: You have spoken the truth (and continued to say), what of *al-‘Imān*? He (the Prophet) said: *al-‘Imān is to believe in Allah, His angels, His books and Messengers and heaven and the fire (hell); the (the Day of) Judgement and al-Qadr – its good, bad, its sweetness and bitterness is from Allah.* He (the questioner) said: If I do that, will I be a *mu‘min* (believer)? He (the Prophet) said: *Yes.* He (the questioner) said: You have spoken the truth; and what of *al-Iḥsān*? He (the Prophet) said: *To worship Allah as if you see Him, although you cannot see Him, He sees you.* He (the questioner) said: If I do that, will I be *Muḥsin*? He (the Prophet) said: *Yes.* He (the questioner) said: You have spoken the truth.

We said – we have seen a man with a handsome face and a good fragrance (displaying) great courtesy to the Prophet (peace be upon him) and saying to the Prophet (peace be upon him), you have spoken the truth. So the Messenger of Allah (peace be upon him) said: *Bring this man to me.* So we searched and searched upon street after street in Medina but could not find him anywhere. Thus the Messenger of Allah (peace be upon him) said: *Do you know of this (man)?* We replied, Allah and his Messenger know. He said: *This (was) Jibreel peace be upon him, he teaches you all the rituals of your Deen.* What came to me is the image (of him), but I never knew him, but this image.¹¹

Given the above, I would submit that performing *ghusl* from *Janābah* is proven from the aforementioned channels of narration without any doubt,

¹¹ al-Ṭabarānī *Mu‘jam (Mashkul)*, [Vol. 7, no. 13405]. The narration is abbreviated here for the translation. It is also reported in the collection of forty traditions by Ibn al-Muqra’ [Vol. 8, p. 57]: Muḥammad ibn Muḥammad ibn Badr ibn Abdullah al-Bāhili al-Baghdādī narrated to us in Egypt al-Ḥasan ibn Ḥammād Sajjādah narrated to us al-Muṭalib ibn Ziyād al-Thaqafī narrated to us from Maṣūr from ‘Aṭā from Ibn Umar, he said: A man came and said O Abu Abdar-Raḥman indeed we travel and we pass by people who say (there is) no *Qadr* (then as previously narrated).

although this was not reported via the channels as set out by Imām Muslim. The full wording from the text thus resolutely confirms the ‘pillar’ which is purification, *al-Ṭahāra*, or at the very minimum, performing *ghusl* from *Janābah* and completing the *wuḍu’*, because it is a necessary condition to establish a legitimate *Ṣalāh*, thus establishing this inevitably as a stand-alone pillar by itself. In origin that has been established with certitude in the book of Allah:

يَا أَيُّهَا الَّذِينَ آمَنُوا إِذَا قُمْتُمْ إِلَى الصَّلَاةِ فَاغْسِلُوا وُجُوهَكُمْ وَأَيْدِيَكُمْ إِلَى الْمَرَافِقِ وَامْسَحُوا بِرُءُوسِكُمْ وَأَرْجُلَكُمْ إِلَى الْكَعْبَيْنِ وَإِنْ كُنْتُمْ مَرْضَى أَوْ عَلَى سَفَرٍ أَوْ جَاءَ أَحَدٌ مِنْكُم مِّنَ الْغَائِطِ أَوْ لَامَسْتُمُ النِّسَاءَ فَلَمْ تَجِدُوا مَاءً فَتَيَمَّمُوا صَعِيدًا طَيِّبًا فَامْسَحُوا بِوُجُوهِكُمْ وَأَيْدِيكُمْ مِنْهُ مَا يُرِيدُ اللَّهُ لِيَجْعَلَ عَلَيْكُمْ مِنْ حَرَجٍ وَلَكِنْ يُرِيدُ لِيُطَهِّرَكُمْ وَلِيُتِمَّ نِعْمَتَهُ عَلَيْكُمْ لَعَلَّكُمْ تَشْكُرُونَ

*O you who believe – when you are about to pray, wash your faces and your hands up to the elbows, wipe your heads, wash your feet up to the ankles and, if required, wash your whole body. If any of you is sick or on a journey, or has just relieved himself, or had intimate contact with a woman, and can find no water, then take some clean sand and wipe your face and hands with it. Allah does not wish to place any burden on you: He only wishes to cleanse you and perfect His blessing on you, so that you may be thankful.*¹²

Hadith of Ibn ‘Abbās

This is reported in the *Musnad* of Imām Aḥmad with an authentic channel of transmission. One will note the variance of wording that is reported here too:

Abu Naḍr narrated to us Abdul-Ḥameed narrated to us Shahr narrated to us Abdullah ibn ‘Abbās narrated to me he said: The Messenger of Allah peace and blessings be upon him sat in a gathering and Jibreel came to him and sat in front of him, placing his hands on the knees of the Messenger of Allah peace and blessings be upon him. He said: O Messenger of Allah, tell me about Islam. The Messenger of Allah peace and blessings be upon him said: *Islam is to turn your face towards Allah; to bear witness that there is no god except Allah alone, with no partner or associate and to bear witness that Muḥammad is*

¹² *Qur’ān* 5: 6

His slave and Messenger. He (Jibreel) said: If I do that, will I have become Muslim? He said: *If you do that, you will have become Muslim.* He said: O Messenger of Allah, tell me about *al-‘Imān*. He said: *al-‘Imān means to believe in Allah, the last day, the angels, the book and the Prophets; to believe in death and in life after death and to believe in paradise, hell, al-Ḥisāb (the reckoning) and al-Mizān (the scales of balance); and to believe in al-Qadr – all of it both good and bad.* He said: And if I do that, will I have believed? He said: *If you do that, you will have believed.*

He said: O Messenger of Allah, tell me about *al-Iḥsān*. He said: *Al-Iḥsān means to strive for the sake of Allah as if you can see Him; although you cannot see Him, He sees you.* He said: O Messenger of Allah, tell me about the hour. He said: *Subḥānallah! There are five matters of the unseen which no one knows except Him – ‘Knowledge of the Hour [of Resurrection] belongs to Allah; it is He who sends down the relieving rain and He who knows what is hidden in the womb. No soul knows what it will reap tomorrow, and no soul knows in what land it will die; it is Allah who is all knowing and all aware.’ But if you wish, I will tell you some of the signs of its approach.*

He said: Yes O Messenger of Allah tell me. The Messenger of Allah peace and blessings be upon him said: *When you see the slave woman give birth to her mistress or master and you see the shepherds competing in the construction of lofty buildings and you see the barefoot, hungry dependents become prominent figures among the people – those are signs and portents of the hour.* He said: O Messenger of Allah, who are the shepherds and the barefoot, hungry dependents? He said: *The Arabs.*¹³

¹³ *Musnad Aḥmad* [Vol. 1, no. 2926]. The Qur’ānic verse quotes is from 31: 34. It is also cited in *Itaḥāf al-Khayra al-Mahra* [Vol. 1, p. 83]: ‘al-Ḥārith ibn Muḥammad ibn Abi Usāma said: Abul’ Ḥussein ‘Aāsim ibn Ali narrated to us al-Ḥakam ibn Fuṣeel narrated to us Sayyār Abul’ Ḥakam narrated to us from Shahr ibn Ḥawshab from Ibn ‘Abbās, he said: While the Messenger of Allah peace and blessings be upon him was sitting with the people, a man entered upon them. He put his hands upon the knees of the Prophet peace and blessings be upon him...he mentioned what (was said) previously. Then he said: thereafter the man set off and disappeared. He (the Prophet) said: *Bring the man to me.* So I looked but didn’t find him. Then the Messenger of Allah peace and blessings be upon him said: *This (was) Jibreel, he came to teach you your Deen.* What came to me in this image, except that I knew of it, other than this time.’ A further reference is provided to the works of Ibn Bishrān [Vol. 2, p. 407], with the *isnād*: ‘Abu Muḥammad ‘Abd al-Khāliq ibn al-Ḥasan al-Mu’dal reported to us Abu Sa’eed Abdullah ibn al-Ḥasan al-Ḥirāni narrated to us ‘Aāsim ibn Ali narrated to us, with it.’

Analysis

The *ḥadith* of Jibreel is in reality but an explanation of the components of Islam and its composition, as well as that pertaining to the subject of *al-‘Imān* and *al-Iḥsān* and an explanation of its foundations, clarifying what this is and mentioning some of its pillars. It is not in reality a specific arrangement or order of specified grades or degrees. The arrangement can be discerned from other legal texts that are *tawātur*, reports which are continuously recurrent, from the Book and the *Sunnah*. According to the people, that will establish what a ‘Muslim’ will be, although that will not inevitably be the root of *al-‘Imān* and the root of *al-Iḥsān*. Islam is operationalised via *al-‘Imān* and *al-Iḥsān*. It is the laying out of its pillars and boundaries. They do not in fact intend to demonstrate any grading or arrangement. However, this order can be deduced from other legal recurrent texts of the glorious Qur’ān. The *Sunnah* shows that a person is considered a Muslim who has the basis or root of ‘faith’ as well as the basis or root ‘perfection’. He cannot however be regarded as a ‘Muslim’ or someone with ‘faith’ or with ‘perfection’ arbitrarily without fulfilling certain conditions. Thereafter the person becomes more knowledgeable as his faith grows deeper and even more conscious of Allah, the Exalted and Majestic. This makes him undertake all prescribed duties and abandon all prohibitions. Such a person becomes worthy of being called a ‘*mu’min*’ (faithful).

Following on from this, the individual adopts several recommended matters and avoids the dislikable ones, even giving up on some permissible matters as a sign of deep faith and of being extremely conscious of Allah, the exalted and majestic, for he worships his Lord as if he can see him, as noted in the *ḥadith*. If any person reaches this level he becomes worthy of being called a ‘*muḥsin*’, i.e., someone with a ‘perfection’. Each ‘*muḥsin*’ is a ‘*mu’min*’ and each ‘*mu’min*’ is a Muslim but not vice versa, except under certain conditions and restrictions.

Understanding the reality of ‘*al-‘Imān*’ is a difficult and thorny topic, particularly when seeking to flesh out all its unique boundaries, including the precise interplay with what are considered its nullifiers that would lead someone into disbelief. Expounding this in exhaustive detail, by the help and mercy of Allah, will be presented in a separate forthcoming treatise that has

been devoted solely to this topic and is entitled: *The Reality of al-‘Imān and the Categorisation of Kufr*.

9. The Basis of Islam and its Essential Pillars

In tandem with the nature of our present book, it carries this intended meaning, to be an exposition upon the very *basis of Islam* and the reality of *Tawḥeed*. In other words, with the meaning of what the declaration or testimony of faith is – that there is no god or deity except Allah and that Muḥammad is the Messenger of Allah. The abridgement of what is commonly referred to by many people as being the ‘Five Pillars of Islam’ is good parlance. Yet it is necessary to correct some of the errors that have arisen therein, as well as dispelling some of the confusions that have become quite commonplace. In particular, the word ‘Pillar’ (*rukn*, pl. *Arkān*) is notably absent from the *Sharī‘ah* texts, although it has been used extensively by previous scholars, passing also into common parlance too. It has largely been taken from the famous *ḥadith* of Abdullah ibn Umar al-Khaṭṭāb may Allah be pleased with him. This narration is widely reported, for example as per the *Ṣaḥīḥ* of Imām al-Bukhārī:

حدثنا عبيد الله بن موسى قال أخبرنا حنظلة بن أبي سفيان عن عكرمة بن خالد عن ابن عمر رضي الله عنهما قال قال رسول الله صلى الله عليه وسلم بني الإسلام على خمس شهادة أن لا إله إلا الله وأن محمدا رسول الله، وإقام الصلاة وإيتاء الزكاة، والحج، وصوم رمضان

‘Ubaydullah ibn Musa narrated to us he said Ḥanzala ibn Abi Sufyān reported to us from ‘Ikrimah ibn Khālīd from Ibn Umar, may Allah be pleased with him, he said: The Messenger of Allah, peace and blessings be upon him said: *Islam is built upon five – to testify that there is no god except Allah and that Muḥammad is the Messenger of*

*Allah; to establish the Ṣalāh, to render the Zakāt, al-Ḥajj and the fast of Ramaḍān.*¹

The *ḥadith* can be found across the entire corpus of *aḥādith*, appearing in many notable collections like that of *Ṣaḥīḥ* Muslim, the *Sunan* of al-Nasā'i, and the *Ṣaḥīḥ* of Ibn Ḥibbān.² Following mention of this narration in his *Ṣaḥīḥ*, Imām Abu Ḥātim Ibn Ḥibbān furnishes us with a very important and lucid comment, he writes:

These two reports have both come to address (matters) according to (or based upon) the given situation, because he (peace be upon him) mentioned *al-ʿImān* then enumerated four qualities, then he mentioned al-Islam and enumerated five qualities. And this is what we say in our book, because when the Arabs mention something known in their language which has such enumeration, it doesn't mean that the listed number of matters is to the exclusion of all others. With his speech, he (peace be upon him) did not say that *al-ʿImān* is only what was stated in the report of Ibn ʿAbbās because he (peace be upon him) mentioned in other reports a great number of things regarding *al-ʿImān* which are not mentioned in either of the reports which both Ibn ʿAbbās and Ibn Umar have conveyed.³

Elsewhere in his *Ṣaḥīḥ*, Imām al-Bukhārī has a fuller explanation of the narration, albeit reported in *mawqūf* (halted) form, again upon the authority of Ibn Umar:

Muḥammad ibn Bashār narrated to us Abdul-Waḥḥāb narrated to us ʿUbaydullah narrated to us from Nāfi' from Ibn Umar, may Allah be pleased with him: During the affliction of Ibn al-Zubayr, two men came to Ibn Umar and said: 'The people are lost, and you are the son of Umar, and the Companion of the Prophet, so what forbids you from

¹ *Ṣaḥīḥ* al-Bukhārī [Vol. 1, no. 8]

² *Ṣaḥīḥ* Muslim [Vol. 1, no. 16], *Sunan* al-Nasā'i [Vol. 8, no. 5001], and *Ṣaḥīḥ* Ibn Ḥibbān [Vol. 1, no. 158 and Vol. 4, no. 1446]. The original Arabic edition has upwards of an additional twenty references where this *ḥadith* is recorded across the *Ṣaḥīḥ*, *Sunan* and *Musnad* collections.

³ Appearing after citing the *ḥadith* of Ibn Umar, *Ṣaḥīḥ* Ibn Ḥibbān [Vol. 1, no. 158].

coming out?' He said: 'What forbids me is that Allah has prohibited the shedding of my brother's blood.' They both said: 'Didn't Allah say: *And fight then until there is no more affliction?*' He said: 'We fought until there was no more affliction and the *Deen* is for Allah, while you want to fight until there is affliction and until the *Deen* becomes for other than Allah.'

And the addition (from) Uthmān ibn Ṣāliḥ from Ibn Wahb he said, Ḥaywah ibn Shurayḥ and so and so reported to me from Bakr ibn ʿAmr al-Maʿāfirī that Bukeer ibn Abdullah narrated to him from Nāfi' (the following) is added: that a man came to Ibn Umar and said: 'O Abu Abdar-Raḥman! What made you perform *Ḥajj* in one year and *Umrah* in another and leave the *Jihād* in the path of Allah the Mighty and Sublime, though you know how much Allah recommends it?' Ibn Umar replied: 'O son of my brother! Islam is founded upon five: *ʿImān* in Allah and his Messenger; the five-prayers, the fasting of *Ramaḍān*; rendering of *Zakāt* and pilgrimage to the house.'⁴

Imām Aḥmad also cites similarly in his *Musnad* again in *mawqūf* form:

حدثنا وكيع عن سفيان عن منصور عن سالم بن أبي الجعد عن يزيد بن بشر عن ابن عمر قال بني الإسلام على خمس شهادة أن لا إله إلا الله وإقام الصلاة وإيتاء الزكاة وحج البيت وصوم رمضان قال فقال له رجل والجهد في سبيل الله قال ابن عمر الجهد حسن هكذا حدثنا رسول الله صلى الله عليه وسلم

Waki' narrated to us from Sufyān from Maṣṣūr from Sālim ibn Abi al-Ja'd from Yazeed ibn Bishr from Ibn Umar, he said: 'Islam is built upon five - testifying that there is no god but Allah; establishing the prayer, paying the *Zakat*; pilgrimage to the house and the fast of *Ramaḍān*.' A man said to him: 'And *Jihād* in the way of Allah?' Ibn Umar said: '*Jihād* is good, relayed as the Messenger of Allah, peace and blessings be upon him narrated to us.'⁵

⁴ *Ṣaḥīḥ* al-Bukhārī [Vol. 4, no. 4243]. The remainder of this lengthy narration has been omitted for the sake of brevity, with inclusion of that only pertinent to the present discussion. The verse cited is from 8: 39.

⁵ *Musnad* Aḥmad [Vol. 2, no. 4798]

I would submit that there is great difference in the narrative as set out on multiple occasions and shown by these various *aḥādith* that have been reported. Yet in none of the narratives presented thus far, is there an explicit mention of hearing the narrator, Ibn Umar, hearing directly from the Prophet peace and blessings be upon him. What he does mention is – ‘he said, the Prophet said’; ‘from the Prophet, he said,’ or ‘the Prophet narrated to us.’ It is something which strengthens the contention that it would appear to be a matter of *istinbāt* (deduction) that has been made by Abdullah ibn Umar ibn al-Khaṭṭāb from the famous *ḥadith* of Jibreel, which he took from his father. More pertinently, he was not a direct eyewitness to that event. In any case, it is *mutawātir* - a continuously recurrent tradition, from Ibn Umar, as it has been reported by the majority of trustworthy narrators from the *Tābi’een*.

The ḥadith of Jarir ibn Abdullah

Echoing the narration provided by Ibn Umar, we find within the *Musnad* of Imām Aḥmad the following that is reported upon the authority of Jarir ibn Abdullah:

حَدَّثَنَا هَاشِمٌ حَدَّثَنَا إِسْرَائِيلُ عَنْ جَابِرٍ عَنْ عَامِرٍ عَنْ جَرِيرٍ قَالَ قَالَ رَسُولُ اللَّهِ صَلَّى اللَّهُ عَلَيْهِ وَسَلَّمَ بُنِيَ الْإِسْلَامُ عَلَى خَمْسٍ، شَهَادَةِ أَنْ لَا إِلَهَ إِلَّا اللَّهُ، وَإِقَامِ الصَّلَاةِ، وَإِيتَاءِ الزَّكَاةِ، وَحَجِّ الْبَيْتِ، وَصَوْمِ رَمَضَانَ

Hāshim narrated to us Isrā’il narrated to us from Jābir from ‘Aāmir from Jarir he said the Messenger of Allah peace and blessings be upon him said: *Islam is built upon five; testifying that there is no god but Allah, establishing the Ṣalāh, paying the Zakāt, pilgrimage to the house and the fast of Ramaḍān.*⁶

al-Ṭabarānī also reports this in *Mu’jam al-Kabir*, as does Abu Ya’la in his *Musnad*.⁷ Imām Aḥmad has another narration in the *Musnad* again from Jarir with essentially the same wording, but via a slightly different *isnād* and with mention of hearing: Makki narrated to us Dāwud ibn Yazeed al-Awdi narrated

⁶ Ibid, [Vol. 4, no. 19240]

⁷ al-Ṭabarānī *Mu’jam al-Kabir*, [Vol. 2, no. 2363], *Musnad* Abu Ya’la [Vol. 13, no. 7502]

to us from ‘Aāmir from Jarir ibn Abdullah he said I heard the Messenger of Allah peace and blessings be upon him saying.⁸ Two additional narrations reported on the authority of Jarir ibn Abdullah are recorded by al-Ṭabarānī, in *Mu’jam al-Kabir* and *Mu’jam al-Ṣaghir*, both with the same wording. The former, *mawquf*, with the *isnād* ‘al-Ḥasan ibn ‘Aleel al-Ghazi narrated to us Abu Kareeb narrated to us Mu’āwiya ibn Hishām narrated to us Shaybān narrated to us from Jābir from al-Sha’bi from Jarir, he said.’ The latter has the *isnād* of ‘Muḥammad ibn Aḥmad ibn Ḥammād Abu Bishr al-Dawlābi narrated to us in Egypt, my father narrated to us Ash’ath narrated to us from ‘Aṭāf from Abdullah ibn Ḥabeeb ibn Abi Thābit from al-Sha’bi from Jarir ibn Abdullah al-Bajili from the Prophet peace and blessings be upon him.’⁹

Following each of these narrations, I would submit that there is some divergence in the reporting routes concerning this from Jarir ibn Abdullah and its *mawquf* and ‘*an-an*’ formats. Also, there is a distinct lack of explicit mention of hearing this directly from the Prophet peace and blessings be upon him, in a similar manner to the aforementioned narratives from Ibn Umar. Perhaps it is also an *ijtihad* that is being transmitted from Jarir ibn Abdullah al-Bajili may Allah be pleased with him. al-Ṭabarānī has another narration but this contains an addition that is to be rejected. The narration, reported on the authority of Ibn ‘Abbās reads:

حدثنا أبو يزيد القراطيسي حدثنا أسد بن موسى حدثنا مؤمل بن إسماعيل عن حماد بن زيد عن عمرو بن مالك عن أبي الجوزاء عن بن عباس رضي الله عنهما ولا أعلمه إلا رفعه إلى النبي صلى الله عليه وسلم، قال بني الإسلام على خمس شهادة أن لا إله إلا الله والصلوة وصيام رمضان فمن ترك واحدة منهن كان كافرا حلال الدم

Abu Yazeed al-Qarāṭisi narrated to us Asad ibn Musa narrated to us Muwamil ibn Ismā’il narrated to us from Ḥammād ibn Zayd from ‘Amr ibn Mālik from Abul’Jawzā’ from Ibn ‘Abbās may Allah be pleased with them and I don’t know of it except that it is raised to the Prophet peace and blessings be upon him. He said: *Islam is built upon five; testifying that there is no god but Allah, the Ṣalāh and the fast of*

⁸ *Musnad* Aḥmad [Vol. 4, no. 19246]. Also recorded by al-Ṭabarānī *Mu’jam al-Kabir*, [Vol. 2, no. 2364] and in the *Musnad* of Abu Ya’la [Vol. 13, no. 7507]

⁹ al-Ṭabarānī *Mu’jam al-Kabir*, [Vol. 2, no. 2368], *Mu’jam al-Ṣaghir* [Vol. 2, no. 782]

Ramaḍān and whoever leaves one from amongst them, he is a *kāfir* whose blood is lawful.¹⁰

Consequently, this narration with its slanderous addition is rejected both in terms of its transmission and reported text. Moreover, it is from the vagaries of Muwamil ibn Ismā'il and he is not *thiqa* (trustworthy).¹¹

Matters greater than five

All the narratives considered thus far represent what al-Islam is being built and constructed upon; to reiterate again, it is noteworthy that the word 'pillar' is *not used* originally in any reports. The word doesn't appear in any of the reported texts. Such an inaccuracy begins with the first listed, as the testimony, *al-Shahāda*, being a pillar from amongst the pillars upon which Islam is built. Nay, it is far more important than that, being of the upmost importance. It is the solid base of Islam; it is the basis and foundation of Islam itself, upon which all pillars and columns are established from. But the texts that have been outlined thus far make 'al-Islam' to be '*al-Shahāda*' by itself; other texts make 'al-Islam' to be *al-Imān*, of which this will be cited shortly. One will therefore discern that without any doubt whatsoever, that the 'Pillars of Islam' are in fact more numerous than the famous five. At this juncture, one should be reminded of the critically observant point made earlier in this chapter by the Imām Abu Ḥātim Muḥammad ibn Ḥibbān upon this matter.

However, it didn't advance a further comment regarding the characteristics of Islam, like many others too, but the situation here is not very different from that of the qualities relating to *al-Imān*. A greater elaboration is set out in the *ḥadith* which the Imām Abu Esa al-Tirmidhi records in his *Sunan*. Though lengthy, it is pertinent to present the wording in full for this.

Muḥammad ibn Ismā'il narrated to us Musa ibn Ismā'il narrated to us 'Abbān ibn Yazeed narrated to us Yaḥya ibn Abi Kathir narrated to us

¹⁰ al-Ṭabarānī *Mu'jam al-Kabir*, [Vol. 12, no. 12800]. Also recorded in the *Musnad* of Abu Ya'la [Vol. 4, no. 2349].

¹¹ For an overview assessment of the narrator, see: al-Ḥāfiẓ *Tahzeeb al-Tahzeeb* [Vol. 6, no. 8277, pp. 489/490]. al-Ḥāfiẓ records: 'al-Bukhari said of him: *munkar al-ḥadith*'; and 'Abu Ḥātim said: *Ṣaduq*, steadfast in the *Sunnah*, but makes a great many mistakes.'

from Yazeed ibn Salām that Abu Salām narrated to him that al-Ḥārith al-Ash'ari narrated to him that the Prophet peace and blessings be upon him said: *Indeed, Allah commanded Yaḥya ibn Zakariyya with five commandments to abide by, and to command the Children of Israel to abide by them. But he was slow in doing so. So Esa said: Indeed, Allah commanded you with five commandments to abide by and to command the Children of Israel to abide by. Either you command them, or I shall command them. So Yaḥya said: 'I fear that if you precede me in this, then the earth may swallow me, or I shall be punished.'* So he gathered the people in Jerusalem, and they filled (the masjid) and sat upon its balconies. So he said: *Indeed Allah has commanded me with five commandments to abide by, and to command you to abide by. The first of them is that you worship Allah and not associate anything with Him. The parable of the one who associates others with Allah is that of a man who buys a servant with his own gold or silver, then he says to him: 'This is my home and this is my business so take care of it and give me the profits.'* So he takes care of it and gives the profits to someone other than his master. Which of you would live to have a servant like that?

And Allah commands you to perform Ṣalāh, and when you perform Ṣalāh then do not turn away, for Allah is facing the face of His worshipers as long as he does not turn away. And He commands you with fasting. For indeed the parable of fasting, is that of a man in a group with a sachet containing musk. All of them enjoy its fragrance. Indeed the breath of the fasting person is more pleasant to Allah than the scent of musk. And He commands you to give charity. The parable of that, is a man captured by his enemies, tying his hands to his neck, and they come to him to beat his neck. Then he said: I can ransom myself from you with a little or a lot so he ransoms himself from them. And He commands you to remember Allah. For indeed the parable of that, is a man whose enemy quickly tracks him until he reaches an impermeable fortress in which he protects himself from them. This is how the worshiper is; he does not protect himself from the Shayṭān except by the remembrance of Allah.

The Prophet peace and blessings be upon him said: *And I command you with five that Allah commanded me: Listening and obeying, Jihād, Hijrah, and the Jamā'ah. For indeed whoever parts from the Jamā'ah the measure of a hand-span, then he has cast off the yoke of Islam from*

his neck, unless he returns. And whoever calls with the call of Jāhiliyyah then he is from the coals of hell. A man said: O Messenger of Allah! Even if he performs Ṣalāh and fasts? So he said: *Even if he performs Ṣalāh and fasts. So call with the call that Allah named you with: Muslims, believers, worshipers of Allah.*¹²

As is often his custom, after citing this tradition, al-Tirmidhi provides the following comment:

This *ḥadith* is *ḥasan Ṣaḥīḥ, ghareeb*. Muḥammad ibn Ismā'il has said: 'al-Ḥārith al-Ash'ari was a Companion and he has *ḥadith* other than this.' Muḥammad ibn Bashār narrated to us Abu Dāwūd al-Ṭayālisi narrated to us 'Abbās ibn Yazeed narrated to us from Yaḥya ibn Abi Kathir from Yazeed ibn Salām from Abu Salām from al-Ḥārith al-Ash'ari from the Prophet peace and blessings be upon him, the remainder with a similar meaning. Abu Esa said: This *ḥadith* is *ḥasan Ṣaḥīḥ ghareeb*. And (of) Abu Salām al-Ḥabashi, his name is Mamṭur and he reports from Ali ibn al-Mubārak from Yaḥya ibn Abi Kathir.

Muḥammad ibn Ismā'il is none other than Abu Abdullah al-Bukhārī, the famed Imām of the *dunya* and the companion of what is termed as authentic, *Ṣaḥīḥ*. The *ḥadith* is reported widely, cited in many notable collections.¹³ It is also reported by Imām al-Nasā'i in his *Sunan al-Kubra*, albeit, only the last paragraph:

أخبرنا هشام بن عمار قال حدثنا محمد بن شعيب قال أخبرني معاوية بن سلام أن أخاه زيد بن سلام أخبره عن جده أبي سلام أنه أخبره قال أخبرني الحارث الأشعري عن رسول الله صلى الله عليه وسلم قال من دعا بدعوى جاهلية فإنه من جثي جهنم! فقال رجل: يا رسول الله وإن صام وصلى؟! قال: نعم وإن صام وصلى - فادعوا بدعوة الله التي سماكم الله بها: المسلمين، المؤمنين، عباد الله

¹² *Sunan* al-Tirmidhi [Vol. 5, no. 2683]. Given the considerable length, the Arabic text has been omitted.

¹³ More than a dozen references to the corpus of *aḥādith* are provided in the original text. For the sake of brevity, notable references include: *Ṣaḥīḥ* Ibn Ḥibbān [Vol. 14, no. 6233], *Ṣaḥīḥ* Ibn Khuzayma [Vol. 1, no. 483], *Musnad* Aḥmad [Vol. 4, no. 17,209] and *al-Mustadrak* of al-Ḥākim [Vol. 1, no. 405].

Hishām ibn 'Ammār reported to us he said Muḥammad ibn Shu'ayb narrated to us he said Mu'āwiya ibn Salām reported to me that his brother Yazeed ibn Salām reported to him from his grandfather Abu Salām that he reported to him, he said al-Ḥārith al-Ash'ari reported to me from the Messenger of Allah, peace and blessings be upon him: *And whoever calls with the call of Jāhiliyyah then he is from the coals of hell!* A man said: O Messenger of Allah, (even if) he prays and fasts? He said: *Yes, (even if) he prays and fasts. So call with the call that Allah named you with: Muslims, believers, worshipers of Allah.*¹⁴

I would submit, there is no mention in this narration of *Ḥajj*, the pilgrimage. Instead, there comes that of the 'remembrance of Allah.' There is also the addition in relation to the five, here being: listening and obeying, *Jihād*, *Hijrah* and al-*Jamā'ah* (the community). From a different narrator, there is also that which has been recorded in the *Muṣṣanaḥ* of Abu Bakr ibn Abi Shayba, which has a very *Ṣaḥīḥ isnād*:

حدثنا غندر عن شعبة عن أبي جمره عن ابن عباس أن وفد عبد القيس أتوا النبي صلى الله عليه وسلم فقال رسول الله صلى الله عليه وسلم من الوفد أو من القوم؟ قالوا ربعة قال مرحبا بالقوم أو بالوفد غير خزايا ولا ندامي، فقالوا يا رسول الله، إنا نأتيك من شقة بعيدة وإن بيننا وبينك هذا الحي من كفار مضر وإنا لا نستطيع أن نأتيك إلا في الشهر الحرام فمرنا بأمر فصل نخبر به من وراءنا ندخل به الجنة، قال فأمرهم بأربع ونهاهم عن أربع أمرهم بالإيمان بالله وحده وقال هل تدرون ما الإيمان بالله؟ قالوا الله ورسوله أعلم قال شهادة أن لا إله إلا الله وأن محمدا رسول الله وإقام الصلاة وإيتاء الزكاة وصوم رمضان وأن تعطوا الخمس من المغنم، فقال احفظوه وأخبروا به من وراءكم

Ghundar narrated to us from Shu'ba from Abu Jamrah from Ibn 'Abbās - that a delegation from Abd'il Qays came to the Prophet peace and blessings be upon him. The Messenger of Allah, peace and blessings be upon him thus said: *Who are these people? (or) who are the delegates?* They replied: We are from the tribe of Rabi'ah. He (the Prophet) said: *Welcome O delegation - or delegates - neither you will have disgrace, nor you will regret.* They said: O Messenger of Allah, we have come to you from a distant place and there is the tribe of the *kuffar* of Muḍar intervening between you and us and we cannot come

¹⁴ al-Nasā'i *Sunan al-Kubra* [Vol. 5, no. 8866 and Vol. 6, no. 11349]

to you except in the sacred month, so please order us to do something good and that we may also inform our people whom we have left behind (at home) and that we may enter paradise. He said: *I command you with four and prohibit you from four: I command you all to believe in Allah alone. And he (the Prophet) said: Do you know what is meant by believing in Allah alone?* They replied - Allah and His Messenger know best. He (the Prophet) said: *To testify that there is no god except Allah and that Muḥammad is the Messenger of Allah; to establish the ṣalāh, to render the zakāt, to fast in Ramaḍān and that you give the fifth from the booty.* He (further) said: *Memorise them and tell them to the people whom you have left behind.*¹⁵

I would submit that here again there is no mention of *Hajj* within the narrative. It is likely that this may have been *before* the obligation of *Hajj* because Abd'il Qays are from the older period of Islam; although, the narration does contain the addition of giving a fifth from the booty. There is a second narration within the *Muṣṣanaf* also narrated upon the authority of Ibn 'Abbās. Slightly lengthier, this narrative though has one of the Arabs approaching the Prophet, peace and blessings be upon him, asking a series of questions to which the Prophet affirms.¹⁶

The next narration which provides for additional wording, is that narrated upon the authority of Mu'ādh ibn Jabal, may Allah be pleased with him.

حَدَّثَنَا غُنْدَرٌ عَنْ شُعْبَةَ عَنْ الْحَكَمِ قَالَ سَمِعْتُ غُرُورَ بْنَ النَّزَّالِ يُحَدِّثُ عَنْ مُعَاذِ بْنِ جَبَلٍ قَالَ أَقْبَلْنَا مَعَ رَسُولِ اللَّهِ صَلَّى اللَّهُ عَلَيْهِ وَسَلَّمَ مِنْ غُرُورٍ تَبُوكَ، فَلَمَّا رَأَيْتَهُ خَالِيًا قُلْتُ يَا رَسُولَ اللَّهِ، أَخْبِرْنِي بِعَمَلٍ يُدْخِلُنِي الْجَنَّةَ، فَقَالَ بَخٍ، لَقَدْ سَأَلْتَ عَنْ عَظِيمٍ، وَهُوَ يَسِيرٌ عَلَى مَنْ يَسْرَهُ اللَّهُ عَلَيْهِ: يُقِيمُ الصَّلَاةَ الْمَكْتُوبَةَ وَتُؤَدِّي الزَّكَاةَ الْمَقْرُوصَةَ وَتَلْقَى اللَّهَ لَا تُشْرِكُ بِهِ شَيْئًا، أَوْ لَا أَدْلُكَ عَلَى رَأْسِ الْأَمْرِ وَعَمُودِهِ وَذِرْوَةِ سَنَامِهِ؟ أَمَّا رَأْسُ الْأَمْرِ فَالْإِسْلَامُ مَنْ أَسْلَمَ سَلِمَ، وَأَمَّا عَمُودُهُ فَالصَّلَاةُ، وَأَمَّا ذِرْوَتُهُ وَسَنَامُهُ فَالْجِهَادُ فِي سَبِيلِ اللَّهِ

Ghundar narrated to us from Shu'ba from al-Ḥakam he said I heard 'Urwa ibn an-Nazzāl narrate from Mu'ādh ibn Jabal he said: We came back with the Messenger of Allah (peace be upon him) from the expedition of Tabuk. When I saw him free I said: O Messenger of

¹⁵ *Muṣṣanaf* Ibn Abi Shayba [Vol. 11, no. 30946]

¹⁶ *Ibid*, [no. 30953].

Allah, inform me a deed which will admit me to paradise. He thus replied: *Bravo, verily you have asked me about a matter of great importance, but it is easy for one for whom Allah makes it easy; to offer the obligatory prayer, to render the obligatory zakāt and to meet Allah without associating anything with him whatsoever. Shall I not guide you upon the head of the matter, its column and its apex? As for the head of the matter, it is Islam, whoever accepts and submits. And as for its column, it's the Ṣalāh; its apex is Jihād in the path of Allah.*¹⁷

In addition, the *Muṣṣanaf* contains a follow narrative to this but from a slightly different channel of reporting. The remainder of the textual report expresses that previously set out.¹⁸ Here I would submit, that this was at the end of the ninth year, after which the obligations of pilgrimage and fasting have already taken effect, and neither are mentioned. There is mention though of *Jihād* in the path of Allah as being the apex and pinnacle.

The Shares of Islam

Turning to the next set of *aḥādith*, here the wording builds upon that previously mentioned. Although, there are some crucial differences which will be seen. Rather than utilising the word *Rukn* (pillar), which was noticeably absent from the earlier texts, the wording reported here outlines that of *Sahm* - 'share'. To begin, Imām al-Ṭayālisi recorded the following in his *Musnad* from the wording reported by Ḥudhayfah; the *isnād* is exceptionally authentic and is upon the conditions of al-Bukhārī and Muslim:

حَدَّثَنَا شُعْبَةُ عَنْ أَبِي إِسْحَاقَ قَالَ سَمِعْتُ صِلَةَ بْنَ زَفَرٍ يَحَدِّثُ عَنْ حَذِيفَةَ قَالَ الْإِسْلَامُ ثَمَانِيَةُ أَشْهُمٍ الْإِسْلَامُ سَهْمٌ وَالصَّلَاةُ سَهْمٌ، وَالزَّكَاةُ سَهْمٌ، وَالْحَجُّ سَهْمٌ، وَالْجِهَادُ فِي سَبِيلِ اللَّهِ سَهْمٌ، وَصَوْمُ رَمَضَانَ سَهْمٌ، وَالْأَمْرُ بِالْمَعْرُوفِ سَهْمٌ، وَالنَّهْيُ عَنِ الْمُنْكَرِ سَهْمٌ، وَقَدْ خَافَ مَنْ لَا سَهْمَ لَهُ

¹⁷ *Ibid*, [no. 30950].

¹⁸ *Ibid*, [no. 30951]. 'Abeeda ibn Ḥumayd narrated to us from al-Ḥakam from al-'Amash from Maymun ibn Abu Shabeeb from Mu'ādh ibn Jabal he said: We set out with the Messenger of Allah peace and blessings be upon him to the expedition of Tabuk (then mentioned the remainder).

Shu'ba narrated to us from Abu Ishāq he said I heard Ṣilah ibn Zufar narrate from Ḥudhayfah, he said: al-Islam is made of eight-shares - al-Islam is a share; ṣalāh is a share, zakāt is a share, Ḥajj is a share; Jihād in the way of Allah is a share, fasting in Ramaḍān is a share and commanding the good and forbidding the evil is a share. Disappointed is he who has no share.¹⁹

I would argue, where he says 'Islam is a share,' that is essential to say that it relates to the testimonial, that there is no god except Allah, and that Muḥammad is the Messenger of Allah. That is shown in the next narration which was collected by the Imām 'Abd al-Razzāq in his *Muṣṣanaḥ*:

عن معمر والثوري عن أبي إسحاق عن صلة بن زفر عن حذيفة قال بني الاسلام على ثمانية أسهم شهادة أن لا إله الا الله وأن محمدا رسول الله وإقام الصلاة وإيتاء الزكاة وحج البيت وصوم شهر رمضان والجهاد والأمر بالمعروف والنهي عن المنكر وقد خاب من لا سهم له

From Ma'mar and al-Thawri from Abu Ishāq from Ṣilah ibn Zufar from Ḥudhayfah, he said: Islam is build upon eight-shares - testifying that there is no god except Allah and that Muḥammad is the Messenger of Allah; establishing the ṣalāh, rendering the zakāt, pilgrimage to the house, fasting the month of Ramaḍān, Jihād, commanding the good and forbidding the evil. And indeed, one who has no share therein has lost.²⁰

Imām Abu Ya'la has the narration in his *Musnad*, but via a different isnad which is to Ali, may Allah be pleased with him. The wording is as previous, but the *isnād* reads: 'Suwayd ibn Sa'eed narrated to us Ḥabeeb ibn Ḥabeeb – brother of Ḥamza al-Zayyāt narrated to us from Abu Ishāq from al-Ḥārith from Ali (may Allah be pleased with him) from the Prophet peace and blessings be upon him.'²¹ Essentially the *ḥadith* is the same, albeit here with the narrator Ḥabeeb ibn Ḥabeeb al-Zayyāt and he is *ḍa'if al-ḥadith* (graded

¹⁹ *Musnad* al-Ṭayālisi [Vol. 1, no. 413]. Commenting thereafter, Imām al-Ṭayālisi said: 'And they mentioned that other than Shu'ba raised it.'

²⁰ *Muṣṣanaḥ* 'Abd al-Razzāq [Vol. 3, no. 5011]. Also mentioned at [Vol. 5, no. 9280], but the wording of *Jihād* is omitted. Similar narratives appear also in the *Muṣṣanaḥ* of Abu Bakr ibn Abi Shayba.

²¹ *Musnad* Abu Ya'la [Vol. 1, no. 523]

weak). In the *isnād* the attribution made is to being from al-Ḥārith from Ali as being *marfu'*. Although this may be a defect from Suwayd ibn Sa'eed because he reached very old age, almost a hundred years old, became blind and then relied upon others to convey his narrations.

There are two further narrations, both reported upon the authority of Ḥudhayfah, may Allah be pleased with him, the latter *marfu'*. That which is reported in the *Sunnah* of Abu Bakr ibn Khilāl has the *isnād*: 'Abu Abdullah narrated to us he said Waki' narrated to us he said - my father, Isrā'il and Ali ibn Ṣāliḥ narrated to us from Abu Ishāq from Ṣillah ibn Zufar al-'Absi (who) narrated to us from Ḥudhayfah he said. al-Islam is eight-shares,' etc.²² The second narration is reported by al-Bazzār in his *Musnad*, with the *isnād*: 'Muḥammad ibn Sa'eed ibn Yazeed ibn Ibrāhīm at-Tastari narrated to us he said Ya'qub ibn Ishāq al-Ḥaḍrami reported to us he said Yazeed ibn 'Aṭā reported to us he said Abu Ishāq reported to us from Ṣilla from Ḥudhayfah may Allah be pleased with him from the Prophet peace and blessings be upon him, he said.' Broadly the *matn* (reported text) is the same, but there is a slight addition at the end being 'He who has no share has failed.'²³

Hadith narrated by other Ṣahāba

Imām al-Ṭabarāni recorded the next *ḥadith* upon the authority of Ibn 'Abbās in both his *Mu'jam al-Kabir* and *Mu'jam al-Awsaṭ*. The *ḥadith* is *marfu'* and provides for a total of ten-shares, unlike the previous narrations from Ḥudhayfah which mentioned eight.

حدثنا محمود بن محمد المروزي ثنا حامد بن آدم المروزي ثنا علي بن عاصم ثنا خالد الحذاء عن عكرمة عن ابن عباس قال قال رسول الله صلى الله عليه وسلم الإسلام عشرة أسهم، وقد خاب من لا سهم له شهادة أن لا إله إلا الله وهي الملة، والثاني الصلاة، وهي الفطرة، والثالث

²² Abu Bakr ibn Khilāl *Sunnah* [Vol. 4, no. 1575, *Shamila* edition]

²³ *Musnad* al-Bazzār [Vol. 1, no. 2927]. The next listed narration (no. 2928) is: 'And Muḥammad ibn al-Muthanna reported it to us he said Muḥammad ibn Ja'far reported to us he said Shu'ba reported to us from Abu Ishāq from Ṣilla ibn Zufar from Ḥudhayfah may Allah be pleased with him, that he said: al-Islam is eight-shares, then he mentioned the like of it without further attribution.' Commenting thereafter al-Bazzār said '(Regarding) this adith, we don't know of this *isnād*, namely being *marfu'* except by way (of this channel of) And this *ḥadith* we do not know of it by this *isnād*, that is to say, it is raised, except by way of Yazeed ibn 'Aṭā from Abu Ishāq.'

الزكاة، وهي الطهور، والرابع الصوم وهو الجنة والخامس الحج وهو الشريعة، والسادس الجهاد وهو الغزو، والسابع الأمر بالمعروف وهو الوفاء والثامن النهي عن المنكر وهو الحجة والتاسع الجماعة، وهي الألفة، والعاشر الطاعة وهي العصمة

Muḥammad ibn Muḥammad al-Marwazi narrated to us Ḥāmid ibn Adam narrated to us Ali ibn ‘Aāṣim narrated to us Khālīd ibn al-Ḥadth’a narrated to us from ‘Ikrimah from Ibn ‘Abbās he said that the Messenger of Allah peace and blessings be upon him said: *al-Islam is ten-shares and indeed one who has no share therein has lost. Testifying that there is no god except Allah, and it is the millah; secondly, the prayer, it is the fiṭra, thirdly the zakāt and it is the Ṭahur (purity). Fourth, the fast and it is the shield. Fifth, al-Ḥajj and it is the Shari’ah. Sixth, al-Jihād and it is struggle. Seventh, commanding the good and it is fulfilling obligations. Eight, forbidding the evil and it is the proof. Ninth, al-Jamā’ah and it signifies unity. And tenth, obedience and it is protection.*²⁴

Following citation of the *ḥadith*, al-Ṭabarānī gives a short-follow on comment in *al-Awsaṭ*: ‘This *ḥadith* isn’t narrated from Khālīd ibn al-Ḥadth’a except by way of Ali ibn ‘Aāṣim; he followed (copied) Ḥāmid ibn Adam in that respect.’ Here I would argue that disagreement exists concerning the narrator Ḥāmid ibn Adam ibn Muslim al-Azdi al-Tiliyānī al-Marwazi. Commenting upon his veracity, Ibn ‘Adi said: ‘I haven’t found in his narrations, (that is) when he narrates from anything from one that is *thiqa* (trustworthy), be considered *munkar* (disclaimed). Objections arise (when he) narrates from (narrators that are) *ḍaef*.’²⁵ He is mentioned by Ibn Ḥibbān in *al-Thiqāt*, he says: ‘Maybe, he has mistakes.’ al-Khalīlī said in *al-Irshād*, ‘Ḥāmid ibn Adam al-Marwazi is *thiqa*, he narrated from the scholars of Marw (Merv), including from several scholars and Muḥammad ibn Ḥamdawayh, Abu Rajā’ and other than him; he heard from Abu Ghānim Yunus ibn Nāfi and other than him.’²⁶ But some have levelled the accusation of lying against him. Our assessment is that this seems unjustified, as outlined in other contexts. In the explanation, statements like when he has said about the two testimonials, it ‘is the *milla*’, and in relation to obedience, that this is ‘protection,’ may seem somewhat

²⁴ al-Ṭabarānī, *Muj’am al-Kabir* [Vol. 11, no. 11958], *Muj’am al-Awsaṭ* [Vol. 8, no. 7893]

²⁵ Ibn ‘Adi, *al-Kāmil fī Du’afā’ al-Rijāl* [Vol. 3, p. 409]

²⁶ al-Khalīlī, *al-Irshād fī Ma’rifat Ulamā’ al-Ḥadith* [Vol. 3, p. 93]

unusual, and could possibly be attributed to the wording of Ibn ‘Abbās or from others among the chain of narrators. Overall though, the content aligns with that reported by Ḥudhayfah, with the additional two elements being *al-Jamā’ah*, the political community, and that of obedience. Further, this corresponds to the *ḥadith* of al-Harith ibn al-‘Ashari, and all of that broadly in line with the Qur’an and attested to by *ḥadith* that are *tawātur*.

A guidepost and a beacon

The next set out *aḥādith* provide greater elaboration upon the present themes discussed, but extend the areas much like the previous well beyond five. To begin, Imām al-Ṭabarānī records the following in *Musnad al-Shāmiyān* upon the authority of Abu Hurayrah, may Allah be pleased with him; the isnad contains narrators who are the men of *Ṣaḥīḥ*:

حدثنا محمد بن عمرو بن خالد الحراني حدثنا أبي عن عيسى بن يونس عن ثور بن يزيد عن خالد بن معدان عن أبي هريرة أن رسول الله صلى الله عليه وسلم قال إن للإسلام صوى ومنازا كمنار الطريق من ذلك أن يعبد الله لا يشرك به شيئا، وتقام الصلاة، وتؤتى الزكاة، ويحج البيت، ويصام رمضان، والأمر بالمعروف، والنهي عن المنكر، وتسليمك على أهل بيتك إذا دخلت عليهم، وتسليمك على بني آدم إذا لقيتهم فإن ردوا عليك ردت عليهم الملائكة وإن لم يردوا عليك ردت عليك الملائكة ولعنتهم أو سكنت عنهم؛ ومن انتقص منهن شيئا فهو سهم من الإسلام تركه؛ ومن نبذهن فقد ولى الإسلام ظهره

Muḥammad ibn ‘Amr ibn Khālīd al-Ḥarānī narrated to us, my father narrated to us from Esa ibn Yunus from Thawr ibn Yazeed from Khālīd ibn Ma’dān from Abu Hurayrah that the Messenger of Allah peace and blessings be upon him said: *Verily Islam is a guidepost and a beacon, like those which illuminate the pathway; from that (is) that you worship Allah and do not associate anything with him; establish the Ṣalāh, render the zakāt, make pilgrimage to the house and to fast in Ramaḍān. To enjoin the good and forbid the evil, to give your salam to the people of your house when you enter upon them and to give your salam upon Bani Adam when you encounter them. If the respondents don’t reply, the angels will receive the salam and respond in kind despite their silence. And whosoever leaves anything from these shares it would be*

*incomplete, and whomsoever abandons them, turns his back on al-Islam.*²⁷

Similar is also found in the *Ta'dtheem Qudra al-Ṣalāt* of Muḥammad ibn Naṣr al-Marwazi, the wording as that of al-Ṭabarānī. The *isnād* contains narrators who are the men of *Ṣaḥīḥ*: 'Muḥammad ibn Bashār narrated to us Ruḥ ibn 'Ubāda narrated to us Thawr ibn Yazeed narrated to us from Khālīd ibn Ma'dān from Abu Hurayrah he said the Messenger of Allah peace and blessings be upon him said.'²⁸ al-Ḥākim has a slightly abridged version of the *ḥadith* in *al-Mustadrak*, but via the channel of al-Waleed ibn Muslim:

حدثنا أبو بكر بن إسحاق حدثنا عبيد بن عبد الواحد حدثنا محمد بن أبي السري حدثنا الوليد بن مسلم عن ثور بن يزيد عن خالد بن معدان عن أبي هريرة رضي الله عنه، عن النبي صلى الله عليه وسلم قال الإسلام أن تعبد الله لا تشرك به شيئاً وتقيم الصلاة وتؤتي الزكاة وتصوم رمضان وتحج البيت والأمر بالمعروف والنهي عن المنكر وتسليمك على أهلك؛ فمن انتقص شيئاً منهن فهو سهم من الإسلام يدعه ومن تركهن كلهن فقد ولي الإسلام ظهره

Abu Bakr ibn Ishāq narrated to us 'Ubayd ibn 'Abd al-Wāhid narrated to us Muḥammad ibn Abi al-Sarri narrated to us al-Waleed ibn Muslim narrated to us from Thawr ibn Yazeed from Khālīd ibn Ma'dān from Abu Hurayrah may Allah be pleased with him from the Prophet peace and blessings be upon him, he said: *al-Islam is that you worship Allah and do not associate anything with him; to establish the prayer, to render the zakāt, to fast in Ramaḍān; to make pilgrimage to the house. To command the good and forbid the evil; to send your salam upon your family. Whoever leaves anything from them will have omitted a share of Islam, which is to be upheld. Abandoning them all, is to forsake Islam.*²⁹

After recording this, al-Ḥākim comments: 'This *ḥadith* is like the first in *al-Istiḳāmah* (uprightness).' I would submit here that there is no fear of *Tadlees* (misrepresentation in reporting) occurring in relation to the narrator al-Waleed ibn Muslim as attestation is provided by the channel of reporting that is mentioned earlier from al-Ṭabarānī in the *Musnad al-Shāmiyān*. The matter

²⁷ al-Ṭabarānī, *Musnad al-Shāmiyān* [Vol. 1, no. 429]

²⁸ al-Marwazi, *Ta'dtheem Qudra* [Vol. 1, no. 405]

²⁹ al-Ḥākim, *al-Mustadrak* [Vol. 1, no. 53]

of sending *salam* upon the family and wider mankind is omitted from the narration. It may have been cut short due to the ignorance of one of the narrators regarding this, despite its great reward that has been attested to. The narration also appears in the work of 'Amr bil-Ma'ruf by 'Abd al-Ghani al-Maqdisi with a much longer isnad that has a Khālīd ibn Ma'dān purportedly narrating 'from a man' from Abu Hurayrah. The *matn* though, includes the wording of sending *salam* upon one's family and people when encountering them.³⁰ Abu Ubayd al-Qāsim ibn Sallām has the *ḥadith* in his work entitled *al-'Imān*. Interspersed with the narration itself, he provides some additional comment too:

And from the ninth *ḥadith* of Abu Hurayrah from the Prophet peace and blessings be upon him that he said: *Verily Islam is a guidepost and a beacon, like those which illuminate the pathway.* Abu Ubayd said: (The word) *Ṣwa* refers to what is elevated and prominent from the earth. Its singular form is *Ṣuwwa*. For example, one aspect of it is believing in Allah, not to associate anything with Him; (as per the *ḥadith*) *to establish the prayer, to render the zakāt, fast in Ramaḍān; make pilgrimage to the house and enjoin the good and forbid the evil. And that you send your salam upon your family when you enter upon them and that you send your salam upon the people when you encounter them. And whosoever leaves anything from these shares it would be incomplete, and whomsoever abandons them, turns his back on al-Islam.*

Abu Ubayd said: Yaḥya ibn Sa'eed al-Attar narrated it to him from Thawr ibn Yazeed from Khālīd ibn Ma'dān from a man from Abu Hurayrah from the Prophet peace and blessings be upon him. That is how it is originally; (named) 'al-Aṭṭār' but it is (in actuality) al-Qahtān - Yaḥya ibn Sa'eed al-Qahtān, the reputable Imām; al-Ḥāfiz, firmly established as a proof may Allah be pleased with him.

Some from the ignorant thought that these *aḥādith* contradict each other and they traced it back to the differences in its (reported) number. But, praise be to Allah, it is far and away from being in contradiction to each other. The matter of its variance is because, as you know, the

³⁰ 'Abd al-Ghani al-Maqdisi, 'Amr bil Ma'ruf [p. 11]. After mention of the narration he comments with, 'It is reported by al-Ḥāfiz al-Ṭabarī in the book of *Summah* like that.'

principle obligations of *al-ʿImān* were revealed separately. So, whenever a new matter would arise, the Messenger of Allah peace and blessings be upon him added it to the previous commandments. Then, as Allah sent a new one, he added it at once. That is why the *aḥādith* that are mentioned exceed that of over seventy.³¹

Situation, circumstances and audience

At this juncture, I would argue the following: firstly, it would seem apparent from the narrations of Abu ʿUbayd and ʿAbd al-Ghani al-Maqdisi regarding Khālīd ibn Maʿdān, that he has taken the narrative from an unknown man from Abu Hurayrah. If this man was truthful and recorded the *ḥadith* in an appropriate way, then the *isnād* would be *Ṣaḥīḥ*. As for the *matn* (text) of the report, it is one of uprightness, because he just mentioned enumeration as a clear beacon, exactly like a lighthouse which distinguishes matters, or the lighthouse which sailors use to navigate away from the danger of rocks. The word *ṣwa* are stones that are erected amidst a wasteland of an empty desert, evidenced by the signs on the road. The singular form is *ʿṢuwwaʿ*, in the same rhyme of this word as *ʿQuwaʿ*, also its called *ʿal-Rajoomʿ* or *ʿal-Rijāmʿ* and its singular form is *ʿrijmʿ*. The narrator has conveyed that Islam has a special appearance and signs, in which proves its existence; some of these signs are like pillars or markers, others not, by necessity.

Secondly, the commentary provided by Imām Ibn Ḥibbān has been given greater precedence over that asserted by Imām Abu Ubayd. What this shows is that there is several different viewpoints when it comes to discussing these matters in relation to the pillars, guideposts and shares of Islam. When it comes to talking about the different aspects of *al-ʿImān*, the numerous accolades that the Prophet peace and blessings be upon him has over the previous Prophets; the nature of the *kabāʿir* (major sins) and the like, items are mentioned according to the relevant situation and the circumstances of the recipients. It is not necessary that *all aspects* are detailed and mentioned in

³¹ Abu Ubayd al-Qāsim ibn Sallām, *al-ʿImān* [pp. 3/5, *Shamila* edition]. It is also reported as the wording of Khālīd ibn Maʿdān in the works of Ibn Bishrān [Vol. 2, no. 525] but not connected further.

one sitting, but rather mentioning a short number to facilitate easy understanding and memorisation.

Other narrations here at this juncture are considered. The first, narrated upon the authority of Abu Dardāʾ is recorded by al-Ṭabarānī in *Musnad al-Shāmiyān*:

حَدَّثَنَا بَكْرُ بْنُ سَهْلٍ حَدَّثَنَا عَبْدُ اللَّهِ بْنُ صَالِحٍ حَدَّثَنِي مُعَاوِيَةُ بْنُ صَالِحٍ عَنْ أَبِي الزَّاهِرِيَّةِ عَنْ أَبِي الدَّرْدَاءِ عَنِ النَّبِيِّ صَلَّى اللَّهُ عَلَيْهِ وَسَلَّمَ، قَالَ: إِنَّ لِلْإِسْلَامِ صَوِيَّ وَعَلَامَاتٍ كَمَنَارِ الطَّرِيقِ، فَرَأْسُهَا وَجَمَالُهَا شَهَادَةُ أَنْ لَا إِلَهَ إِلَّا اللَّهُ، وَأَنَّ مُحَمَّدًا عَبْدُهُ وَرَسُولُهُ، وَإِقَامُ الصَّلَاةِ، وَإِيتَاءُ الزَّكَاةِ، وَتِمَامُ الْوُضُوءِ، وَالْحُكْمُ بِكِتَابِ اللَّهِ، وَسُنَّةِ نَبِيِّهِ، صَلَّى اللَّهُ عَلَيْهِ وَسَلَّمَ، وَطَاعَةُ وَلَاةِ الْأَمْرِ، وَتَسْلِيمُكُمْ عَلَى أَنْفُسِكُمْ، وَتَسْلِيمُكُمْ إِذَا دَخَلْتُمْ بُيُوتَكُمْ، وَتَسْلِيمُكُمْ عَلَى بَنِي آدَمَ إِذَا لَقِيتُمُوهُمْ

Bakr ibn Sahl narrated to us Abdullah ibn Ṣāliḥ narrated to us Muʿāwiyah ibn Ṣāliḥ narrated to me from Abu al-Zāhiriyyah from Abu Dardāʾ from the Prophet peace and blessings be upon him, he said: *Verily Islam is a guidepost and a beacon, like those which illuminate the pathway. Its pinnacle and beauty is the testimony that there is no god except Allah and that Muḥammad is his slave and Messenger. To establish the Ṣalāh, render the zakāt, and complete the wuḍu and the ḥukm of the book of Allah and the Sunnah of his Prophet (peace and blessings be upon him. To obey the rulers, and to send your salam upon all, upon the people of your house when you enter and to send your salam upon all of mankind.*³²

Following this, Ḥamdi ibn ʿAbd al-Majeed al-Salafi has a comment regarding this in his *Tahqeeq* saying: ‘And Ibn Daust narrated it in *al-Amāli* from the channel of Abdullah ibn Ṣāliḥ from Muʿāwiyah with, following him in this regard; it is observed here that these two channels are together considered *ḥasan*.’³³ Here it has been narrated with the wording ‘*its beauty*’ perhaps because additional sources have it saying: ‘*and with al-Jamāʿah*,’ the political community. An improvement can be made to the comment of Ḥamdi ibn ʿAbd al-Majeed al-Salafi, as the two channels together are not strictly *ḥasan*. Regarding this I would submit that improvement of Ḥamdi ibn Abdal-Majeed al-Salafi with his collection of channels is not *ḥasan*. This is because there is

³² al-Ṭabarānī, *Musnad al-Shāmiyān* [Vol. 3, no. 1954]

³³ Ḥamdi ibn ʿAbd al-Majeed al-Salafi [Vol. 2, p. 118]

a break in the channel between Abu a;-Zāhiriyyah Ḥadeer ibn Kureeb and Abu Dardā' that is still listed. But it may be the case that it would provide an improvement of the *ḥadith* of Abu Hurayrah in this regard, as both being a form of attestation to one another. There is some disagreement concerning the wording '*a guidepost and a beacon*' but also because of the unknown narrator between Abu al-Zāhiriyyah and Abu Dardā' which is different to that of the unknown narrator for the *ḥadith* of Abu Hurayrah mentioned earlier.³⁴

Imām al-Ṭabarānī records has the next narration in his *Mu'jam* upon the authority of 'Adi ibn Ḥātim, may Allah be pleased with him:

Abdullah ibn Muḥammad ibn 'Abd al-Aziz al-Baghawi narrated to us Ṣāliḥ ibn Mālik al-Khawārizmi narrated to us 'Abd al-'Ala ibn Abul'Musāwir narrated to us 'Aāmir al-Sha'bi narrated to me, he said 'Adi ibn Ḥātim al-Ṭā'ie came to Kufa entering upon its people. We said (to him) narrate to us some *ḥadith* that you heard from the Messenger of Allah peace and blessings be upon him. He replied: The Messenger of Allah peace and blessings be upon him was sent with Prophethood and none from among the Arabs disliked it more so than I, until my encounter with Rome. When I had heard that the call was to mannerisms and the good, I came upon a group from amongst the people until I arrived upon them. I stood before them and they were Suhayb, Bilāl and Salmān. He said: *O 'Adi ibn Ḥātim, enter Islam and you will be safe.* So, I said: brother, brother. I thus purified myself and I sat down on the ground, my knees next to his knees. Thereafter I said O Messenger of Allah, what is Islam? He replied: To believe in Allah, His angels, His books, His Messengers and to believe in al-Qadr, the good or bad, its sweetness or bitterness. O 'Adi ibn Ḥātim the hour will not be established until the treasures of Kisra and Qayṣar are opened. O 'Adi ibn Ḥātim the hour will not be established until the lady from in a howdah from al-Ḥira comes, and there's no Kufa at that time, to perform circumambulation of the Ka'ba and fears none. O 'Adi ibn Ḥātim, the hour will not be established until circumambulation is undertaken for money, and in that it won't be acceptable to anyone and

³⁴ In the *Muṣṣanaf* of Abu Bakr ibn Abi Shayba [Vol. 11, no. 30948] there is short narrative of: 'Muḥammad ibn Fuḍeel narrated to us from Umāra from Abu Zur'a he said Umar mentioned four (things regarding) al-'Imān: the *Ṣalāh*, the *zakāt*, the *Jihād* and *al-amānat* (trusts).'

*the striking of the earth, until it's said: I wish it wasn't; I wish you were dust.*³⁵

Here, there are many other things besides. In general, the pathway stating to testify that there is no god except Allah, *and that Muḥammad is the Messenger of Allah.*' Some have abbreviated this only to '*testifying that there is no god except Allah*'. Others have expressed this as '*the oneness of Allah*,' or '*that you worship Allah and disbelieve in anything besides him.*' Alternatively, there is also '*al-'Imān in Allah and his Messenger*,' which is surmised or detailed as being '*to believe in Allah, His angels, His books, His Messengers and to believe in al-Qadr, its good, bad, its sweetness and its bitterness.*' This is shown by the two narrations which are cited by Imām Muslim in his *Ṣaḥīḥ*:

حدثنا محمد بن عبد الله بن نمير الهمداني حدثنا أبو خالد يعني سليمان بن حيان الأحمر عن أبي مالك الأشجعي عن سعد بن عبيدة عن بن عمر عن النبي صلى الله عليه وسلم، قال بني الإسلام على خمسة على أن يوحى الله وإقام الصلاة وإيتاء الزكاة وصيام رمضان والحج فقال رجل الحج وصيام رمضان قال لا صيام رمضان والحج هكذا سمعته من رسول الله صلى الله عليه وسلم

Muḥammad ibn Numayr al-Hamdānī narrated to us Abu Khālid, that is to say, Sulaymān ibn Ḥayyān al-Aḥmar narrated to us from Abu Mālik al-Ashja'ee from Sa'd ibn 'Ubayda from Ibn Umar from the Prophet peace and blessings be upon him, he said: *al-Islam is raised upon five: upon the Oneness of Allah, the establishment of prayer, payment of Zakāt, the fast of Ramaḍān and Hajj.* A person said: Which of the two precedes the other - *Hajj* or the fast of *Ramaḍān*? He (Ibn Umar) replied: No - the fast of *Ramaḍān* and (then) *Hajj* as it has been heard from the Messenger of Allah peace and blessings be upon him.

وحدثنا سهل بن عثمان العسكري حدثنا يحيى بن زكريا حدثنا سعد بن طارق قال حدثني سعد بن عبيدة السلمي عن بن عمر عن النبي صلى الله عليه وسلم، قال بني الإسلام على خمس على أن يعبد الله ويكفر بما دونه وإقام الصلاة وإيتاء الزكاة وحج البيت وصوم رمضان

³⁵ al-Ṭabarānī *Mu'jam (Mashkul)* [Vol. 15, no. 13603]. The Arabic is omitted given the length of the narration.

And Sahl ibn Uthmān al-‘Askari narrated to us Yahya ibn Zakariyā narrated to us Sa’d ibn Tāriq narrated to us he said Sa’d ibn ‘Ubayda al-Salami narrated to me from Ibn Umar from the Prophet, peace and blessings be upon him, he said: *al-Islam is built upon five: that Allah alone is worshipped and to disbelieve in whatever (is invoked) besides him; the establishment of prayer, the payment of Zakāt, Hajj to the house, and the fast of Ramaḍān.*³⁶

Regarding the nature of this important topic, a study relating to the pillars of Islam, the starting point should necessarily be the Qur’ān. Then for consistency, the authentic established *Sunnah* which by necessity explains and expounds upon the entire Qur’ān. Perhaps there are other points that can be marshalled which would provide further restriction upon the absolute statements and further specify the general. Regrettably such efforts diminished after the period of the rightly guided *Khulafā’* (caliphs), after which began the onset of the ‘*Aṣr al-Tā’weel* (era of interpretation) inaugurated by the usurpation of the *Khilafah* by Mu’āwiya ibn Abu Sufyān. The situation worsened immensely at the hands of the hypocritical scholars associated with the rulers with a small distortion becoming much bigger. Divine texts were disregarded in favour of accumulated interpretation, ushering in an era of what can be considered outright change, in order at times, to suit the whims of rulers. While such methods were often very subtle during that era, they have become magnified in the present era where such distortion is brazen and explicit. Documenting such matters would in fact require an entire separate detailed study.

Consultation

Returning to the original question in relation to the pillars of Islam, it is necessary to consider the words of Allah the Exalted at this juncture where He has stated the following:

What you have been given is only the fleeting enjoyment of this world. Far better and more lasting is what Allah will give to those who believe and trust in their

³⁶ References to the two narrations of *Ṣaḥīḥ* Muslim are [Vol. 1, no. 16]

Lord; who shun great sins and gross indecencies; who forgive when they are angry; respond to their Lord; keep up the prayer; conduct their affairs by mutual consultation; give to others out of what We have provided for them; and defend themselves when they are oppressed.

*Let harm be requited by an equal harm, though anyone who forgives and puts things right will have his reward from Allah Himself— He does not like those who do wrong. There is no cause to act against anyone who defends himself after being wronged, but there is cause to act against those who oppress people and transgress in the land against all justice— they will have an agonising torment - though if a person is patient and forgives, this is one of the greatest things.*³⁷

Here the verses cited from the Qur’ān are Meccan. Coupled with this are the words of the exalted in the verse revealed to his Prophet in Medina:

فَبِمَا رَحْمَةٍ مِنَ اللَّهِ لِنْتَ لَهُمْ وَلَوْ كُنْتَ فَظًّا غَلِيظَ الْقَلْبِ لَانْفَضُّوا مِنْ حَوْلِكَ فَاعْفُ عَنْهُمْ وَاسْتَغْفِرْ لَهُمْ وَشَاوِرْهُمْ فِي الْأَمْرِ فَإِذَا عَزَمْتَ فَتَوَكَّلْ عَلَى اللَّهِ إِنَّ اللَّهَ يُحِبُّ الْمُتَوَكِّلِينَ

*By an act of mercy from Allah, you [Prophet] were gentle in your dealings with them - had you been harsh, or hard-hearted, they would have dispersed and left you - so pardon them and ask forgiveness for them. Consult with them about matters, then, when you have decided on a course of action, put your trust in Allah: Allah loves those who put their trust in Him.*³⁸

From the aforementioned verse, Allah has mentioned ‘*al-Shura*’ after establishing the *ṣalāh* and before the obligatory spending - which includes payment of the *zakāt*, giving a fifth from the booty – all of which is deemed as an obligation. *Al-Shura*, consultation - necessarily is from the pillars of Islam, similar to *ṣalāh* and *zakāt* without any difference or distinction. Yet these we do not find enumerated as being from amongst the essential pillars of Islam?! Nay, they are not even mentioned as being from amongst the essential obligations like you would find it in the pages of debates being

³⁷ *Qur’ān*, 42: 36/43

³⁸ *Qur’ān*, 3: 159

devalued, where it is asked: Is ‘*al-Shura*’ a binding requisite or merely something suggested – glory be to Allah!

The Basis of Islam

Therefore, to sum up: that the basis of Islam is: to testify that there is no god except Allah and that Muḥammad is the Messenger of Allah. Or to say in an abridged and concise form only: Testifying that there is no god or deity except Allah. Or alternatively saying: That you worship Allah and disbelieve in all else that is beside Him. And perhaps with the intended meaning that it relates to the oneness of Allah, in detail - that it is to worship Allah and to disbelieve in whatever is worshipped besides Him and has the expression from which *al-‘Imān* stems, namely ‘*Imān* in Allah and his Messenger. Or expressed in brevity as: ‘*Imān* in Allah, His angels, books and His Messengers and ‘*Imān* in *al-Qadr*, the good and bad of it as well as its sweetness and bitterness. Indeed, this is the solid basis and solid foundation upon which everything is to be based upon. Concerning the *arkān* (pillars) they are in actuality far greater than the five-pillars which are the most well-known, for indeed they are in total, greater than ten:

1. The *ṣalāh* with its accompanying conditions and the importance of the prerequisite of complete *ṭahāra*
2. The *zakāt*
3. Payment of a fifth from the booty
4. Performance of *Ḥajj* (and also the *Umrah*)
5. Fasting during the month of *Ramaḍān*
6. *Jihād* in the path of Allah (and it is the pinnacle or apex of Islam)
7. Enjoining the good and forbidding the evil (and its most important aspect of accounting the oppressive rulers and forbidding their evil of their rule. Indeed, it is from amongst the divisions of *Jihād* and indeed it is from its pinnacle and apex of both *Jihād* and Islam)
8. *Hijrah* (migration)
9. *Shu’ra* (consultation)
10. *al-Jamā’ah* (the community)
11. To listen and obey the lawfully instituted rulers and governors
12. To send *salam* upon your family when entering upon them

13. To send *salam* upon mankind when passing them by

Regarding the last of this listing, that of sending *salam* upon mankind, the progeny of Adam, when passing them by - this doesn’t only relate to the utterance of words. But rather it also extends to safety and security; providing reassurance to establish long-term relationships as well as disseminating cordial relations, affection and harmony amongst humanity.

By no means is this now the complete picture in totality. It would not be correct to say that until the remaining *nawāqid* (nullifiers) of Islam have been detailed. They further provide important elucidation particularly in relation to what actually constitutes *kufir* and *shirk*, which the remainder of this present work is intended to set out. Some of the serious sins *al-Mubiqāt*, involve leaving a pillar from amongst the main pillars, such as leaving the prayer, not paying the *zakāt*, consuming the *khums* etc. Also within this rubric comes a significant number of matters, such as taking a life that Allah has prohibited without due process of law; consuming the wealth of an orphan, consuming *ribā* (interest, usury); inappropriately taking public wealth, fleeing from the battlefield and casting malicious unsolicited accusations against chaste believing women. There is also repudiating one’s effort after making migration in Allah’s cause, thus making a renunciation of one’s Islamic citizenship after securing it; disobeying one’s parents, providing false witness and testimony or perjury. To despair of the hope of Allah or His mercy; to commit adultery, incest or fornication; to repudiate one’s pledge of allegiance by raising arms unjustly against the community of Muslims, and to partake in brigandage. There are other sins which fall within the rubric or category of being *kabā’ir* (major sins); we ask Allah and beseech him for refuge from all of them, including any action that would bring his wrath and result us being considered from amongst the inmates of hell.

Part II

The Nature of Revelation

1. Revelation is both the Qur'an and the *Sunnah*

Some people might think that the revelation consists *only* of the glorious Qur'an. Limiting revelation to only Qur'an is a fatal mistake. It is so serious that it has the propensity to land one into serious deviation, ultimately leading to *kufr* (disbelief), taking a believer out of the fold of Islam. Essentially the truth of this matter is that revelation is of two types.

Revelation type 1

The first type of revelation is that which is inspired, orally reported and recited. The glorious Qur'an, the final revelation from Allah sent down to the Prophet Muḥammad peace and blessings be upon him epitomises this. In a similar manner, the revelation which Allah wrote for Musa peace be upon him in the Tablets also comes under this essential type, as do other books and previous scriptures. Although less voluminous, its standing and substance is paramount. Furthermore, the Qur'an may be recited as a means of worshipping Allah, while other revelations are not. Some of these revelations, in particular the Qur'an, Allah has chosen to preserve, others not; they were memorised by Prophets, priests and the devout, like the scriptures of Musa peace be upon him. The Qur'an remains with us intact unlike other previous revelations which are lost, such as the scriptures of Ibrāhim peace be upon him.

Revelation Type 2

The second type of revelation is broader and more voluminous than the first; although inspired it need not be reported verbally by necessity. In the final revelation, it is the noble Prophetic *Sunnah*, consisting of the Prophet's statements, *ḥadith qudsi*, gestures, acts and approvals. Most of the previous scriptures that we have (such as the Old and the New Testament) are essentially of this kind, containing the sayings of the previous Prophets, their acts, what they tacitly approved, biographies and the general condition of their nations at that time. In this sense, the Old and the New Testament are more akin to the books of *Seerah* (biography) that exist for the Muslims, including that of *ḥadith qudsi*; in that sense, it is unlike the glorious Qur'ān, except for a few limited paragraphs.

The glorious Qur'ān consists of the words of Allah, revealed to Prophet Muḥammad peace and blessings be upon him and recorded, as it is written in the pages, as well as being carried by memorisation and recitation from the heart. In the modern age it is carried even further via many different technological platforms. The glorious Qur'ān is miraculous in wording, inimitable in its literary style and reciting it is a means of worship. It was transmitted from the Prophet peace and blessings be upon him both written and orally by *tawātur* - continuous recurrent transmission from a large number of narrators whose collusion to fabricate a lie is considered impossible. This transmission is in a manner providing productive and definitive knowledge, which is necessary for all mankind, be they Muslim or not. Its transmission was done completely, letter by letter; word by word, as it came to Muḥammad ibn Abdullah ibn 'Abd al-Muṭalib al-Shāmi al-Qurayshi al-Adnāni al-'Arabi, may the peace and blessings of Allah be upon him and his family.

As for the Prophetic *Sunnah*, it is the sayings, the verbal pronouncements, including gestures; actions and approvals of the Prophet peace and blessings be upon him. All of which is inspired by Allah and expressed by his Messenger peace and blessings be upon him. It also encompasses articulating meaning, for example, that of a revelation that is sent down from Allah of which the Prophet peace and blessings be upon him expressed in his own words (or gestures that could be used instead of words) and also expressed in his acts. For Allah protected him from committing, approving or keeping silent in the face of anything reprehensible, whether he saw it directly or was informed thereof, since it would constitute a tacit approval or acquiescence. Should we wish to provide a more precise and

accurate formulation, it would be obligatory to state that the Prophets *Sunnah* is not merely a particular revelation from Allah, rather it is a formulated expression of an infallible Prophetic revelation that has come from Allah. It is not the designated revelation of Allah, like the glorious Qur'ān. A more limited expression would be simply to state, as earlier, that the Prophetic *Sunnah* is also a revelation from Allah. Yet this stricter definition as outlined here, is more precise.

As for the Prophetic sayings relating to conveying the message from Allah, it is unambiguous and forthright as it relates to the message being conveyed from Allah; its manner is that of being declaratory and binding. It is not likely for it to be based upon interpretation and it is impossible for it to be immediately based upon a mistake or a lie by the necessity of reason, given our dictum: the infallibility of the Prophets as it specifically relates to the reporting from Allah in a manner that is declaratory and binding. If it is not set out in this manner, in essence, Prophethood would lose its meaning. Moreover, it would be impossible to rectify the situation if a Prophet were to state he had erred or made a mistake in delivering the message and reporting from Allah. Thus, it would not be able to conclusively establish the necessary proof that we have been commanded to worship Allah alone. Such line of reasoning would be impossible because the message emanating from Allah must be presented in an unequivocal manner, with respondents not being able to marshal such a charge. No one can therefore seek refuge in such argumentation, given that Allah does not render punishment, whether in this life or the hereafter, unless and until a decisive argument has been presented, leaving no one with any excuse whatsoever. If it was not the case, then the line of argumentation, namely that the message delivered by the Prophet was not declaratory and binding; that it was inconclusive or replete with error and did not purport to what it claimed, would have ground, thereby seeking to render Allah as being manifestly unjust – and He blessed be His names is far above any form of injustice. Allah the Exalted has forbidden injustice for himself, he would never be unjust. It would render the very meaning of Prophethood into an absurdity, depriving it of its essential meaning and would bring the notion of Prophetic infallibility in this regard into question, Allah forbid!

Examples of this conveyance of the message that is declaratory and binding, is where he peace and blessings be upon him says: this is the Qur'ānic

wording as send down from Allah, to believe in and practice; these are his orders and prohibitions and this is not my wording. Similarly as it would apply to Musa peace be upon him: this is the tablets that Allah has ordained, outlining his commandments and prohibitions. Or as it would apply to any Prophet from amongst the Prophets which have been sent for them to unequivocally outline, ‘Allah ordains this and prohibits that’; ‘Allah warns of the punishment of hell for this act’, or ‘Verily Allah has revealed / inspired to me to inform you regarding x or y.’ Hence for that reason it must be that Prophetic statements, conveying the message, which have expressly been authorised and formulated as being a communication from Allah are set forth as such; statements which are of significance and definitive in character. Thus a Prophet presents unequivocal truthful and honest statements relating to reports from Allah, such as saying ‘Allah has said’ or ‘Your lord has obligated this’ and containing no mistakes therein. Moreover, a Prophet cannot retort with ‘I forgot to mention this from Allah.’ These points must all be established by absolute rational necessity.

Regarding conveyance of the message, this relates to conveying information accurately and doesn’t by the necessity of reason require the individual to be infallible per se in all facets. As a principle what is required is that the person is truthful and trustworthy, because it doesn’t entail account or punishment. As an example, one may consider the reports of Yusuf peace be upon him as they related to the interpretation of the strange dream that the King of Egypt had.¹ This is of course only if one first accepts that Yusuf peace be upon him was specifically delegated as a Prophet prior to this and not sent with a message after this. Secondly, that the interpretation of the Kings dream was inspired by revelation and not as a result of his own endeavour at interpretation.

¹ See: *Qur’ān* 10: 43/51

2. He doesn’t speak of his own desire

At this juncture one may ask, what about the sayings of the Prophet (peace be upon him) in which it is not explicitly indicated that it is a revelation emanating from Allah, such as where he is reported to have said: ‘*Money paid to a prostitute is khabeeth*’ or ‘*Hajj is (attendance) at ‘Arafah*’ as well as other innumerable sayings, gestures, acts and that which he tacitly approved? Is it an expression indicative of an infallible revelation from Allah? Or is it limited to an expression being made from the viewpoint of the Prophet, indicating his own view or inclination? The truth is that all this concerning our Prophet peace and blessings be upon him, at least, perhaps also of former Prophets, is that it all constitutes an infallible revelation from Allah that contains no lie, mistake or forgetfulness which is proved by the following definite evidence where Allah the Mighty and Sublime Himself declares:

وَالنَّجْمُ إِذَا هَوَىٰ، مَا ضَلَّ صَاحِبُكُمْ وَمَا غَوَىٰ، وَمَا يَنْطِقُ عَنِ الْهَوَىٰ، إِنْ هُوَ إِلَّا وَحْيٌ يُوحَىٰ، عَلَّمَهُ شَدِيدُ الْقُوَىٰ

*By the star when it sets! Your companion has not strayed; he is not deluded; he does not speak from his own desire. It is nothing less than a revelation that is sent to him. It was taught to him by that with mighty powers.*¹

We know as an acknowledged fact that the Prophet peace and blessings be upon him spoke about many matters concerning religion other than that which is detailed in the glorious Qur’ān. If such matters are not a revelation from Allah, then what is detailed here in this Qur’ānic verse would be a lie. It

¹ *Qur’ān* 53: 1/5

follows that it would necessarily be revealed by other than Allah. A matter that is against the established proofs of Prophethood, as we will soon detail, as well as the definite evidence that proves this matter. It is an acknowledged fact that the Qur'ān is revealed from Allah, otherwise, Allah would either be lying or in error in this verse which is impossible and Allah is far above any such claim.

Someone may claim that the word to 'speak' or 'utter' in the aforementioned verse relates only to the Qur'ān and not to other sayings from the Prophet peace and blessings be upon him. In reply we would say that such an assertion is a lie and a misinterpretation of the Arabic language. The glorious Qur'ān is to be 'recited'; the Arabs say 'Muḥammad recited the Qur'ān', 'Muḥammad came with the Qur'ān.' It has never been claimed that 'Muḥammad spoke or uttered the Qur'ān.' The speech mentioned is relating to an absolute form, as is said by the philosophers in their definition of a mankind, man is an animal that speaks; the ability to speak, talk and converse being a characteristic feature. The certainty of this point is developed by the Qur'ān itself and the best explainer of the Qur'ān is the Qur'ān, it is enough in itself to testify to this. Allah blessed be His names says:

قَالَ بَلْ فَعَلَهُ كَبِيرُهُمْ هَذَا فَاسْأَلُوهُمْ إِنْ كَانُوا يَنْطِقُونَ

*He said: 'No, it was done by the biggest of them - this one. Ask them, if they can talk.'*²

This is indicative of any manner of speech and not related to this speech as set out in the Qur'ān or the word of Allah; not recited, not read and not learned. Allah has said:

فَوَرَبِّ السَّمَاءِ وَالْأَرْضِ إِنَّهُ لَحَقٌّ مِثْلَ مَا أَنَّكُمْ تَنْطِقُونَ

*By the Lord of the heavens and earth! All this is as real as your speaking.*³

Again, this indicates any manner of speech or appreciation of words that is well known by direct sensory perception and reflection, with the verse directly

² Qur'ān 21: 63

³ Qur'ān 51: 23

addressing the obstinate and stubborn. Allah the exalted also says, narrating the words of Sulaymān peace be upon him:

وَوَرِثَ سُلَيْمَانُ دَاوُودَ وَقَالَ يَا أَيُّهَا النَّاسُ عَلَّمْنَا مِنْطِقَ الطَّيْرِ وَأَوْتَيْنَا مِنْ كُلِّ شَيْءٍ إِنَّ هَذَا لَهُوَ الْفَضْلُ الْمُبِينُ

*Solomon succeeded David. He said, 'People, we have been taught the speech of birds, and we have been given a share of everything: this is a clearly a great favour.'*⁴

Once again the wording is general, indicating the language of any birds and how they express themselves and this is not of the genus (logic) of humans originally. It is nothing to do with the Qur'ān as such or the word of Allah absolutely. He blessed and exalted be His names says:

وَقَالُوا لَجُنُودُهُمْ لِمَ شَهِدْتُمْ عَلَيْنَا قَالُوا أَنْطَقَنَا اللَّهُ الَّذِي أَنْطَقَ كُلَّ شَيْءٍ وَهُوَ خَلَقَكُمْ أَوَّلَ مَرَّةٍ وَإِلَيْهِ تَرْجَعُونَ

*They will say to their skins, 'Why did you testify against us?' and their skins will reply, 'God, who gave speech to everything, has given us speech—it was He who created you the first time and to Him you have been Returned.'*⁵

The aforesaid point is exemplified in a many other Qur'ānic verses as well; it relates to one sense only, that of speech and speaking, generally. That point would invalidate anyone to claim that the verses cited above from *Surah al-Najm* only relate to the Qur'ān and not to other sayings from the Prophet peace and blessings be upon him. If it was only intended to relate to the Qur'ān and nothing else it would be more correct and appropriate to say 'The lord of mighty power read to him or recited to him' or words similar to this. Yet the Qur'ānic text as verbally recited and taught is otherwise, as we find:

عَلَّمَهُ شَدِيدُ الْقُوَى

*It was taught to him by that with mighty powers.*⁶

Without doubt that is the Prophet peace and blessings be upon him, he was taught the Qur'ān definitely by the Lord of power. There is no doubt

⁴ Qur'ān 27: 16

⁵ Qur'ān 41: 21

⁶ Qur'ān 53: 5

concerning this and it relates to more than just being in receipt of the Qur'ānic letters and sounds only. The word used in the verse [علمه] taught him is not generally specific to his knowledge of the Qur'ān, but rather of this and many other things.

Moreover, how does one judge that the word 'Qur'ān' itself is not just limited to a particular chapter such as *al-Baqarah* or *al-Imrān* or indeed any other verse and not concerned with the complete contents contained between its two covers? If it is possible that the word 'speak' is only concerned with the act of 'reciting the Qur'ān' and it is not to be understood in its full generality. To utter all other matters, in absolute generality and full comprehensive meaning, as it is an acknowledged fact known by necessity from the Arabic language, to argue otherwise would be merely to assert without evidence. So it is logical and correct to also let the word 'Qur'ān' be understood in its completeness and not limited to what is between the covers of the well-known book. Otherwise, we would be contradicting ourselves and acting according to desires and choosing that which is false. In a different verse we find Allah stating:

قُلْ إِنَّمَا أُنذِرُكُمْ بِالْوَحْيِ وَلَا يَسْمَعُ الصُّمُّ الدُّعَاءَ إِذَا مَا يُنذَرُونَ

Say, 'I warn you only through the Revelation.' The deaf will not hear the warning call.⁷

The verse has a linguistic form of restriction, *ṣeeghat-ḥaṣr*, with its opening wording. That is to say, I do not warn *except* by way of revelation; the warning which is brought forth is a revelation from Allah, the Almighty. The Prophet peace and blessings be upon him used to warn people using a variety of language and not only by way of verses from the Qur'ān. He used to warn people with the hellfire for different sins and to warn of the consequences resulting from the abandonment of duties. He used to enact different laws as well as deliver various warnings and proclamations. If all of that is not considered from among revelation that is ultimately being revealed from Allah, then the aforementioned Qur'ānic verse would be manifestly wrong – Allah the Exalted, blessed be His names is far above any erroneous charge. Furthermore, it would also be in direct conflict with the proofs of Prophecy

⁷ Qur'ān 21: 45

and those relating to the established proofs that the Qur'ān is the final revelation from Allah, as will be detailed in due course.

For anyone to claim that the word 'revelation' mentioned in the previous verse only pertains to the Qur'ān, would be asserting a lie. In fact it would be violation of what is true and is at odds with what is proved as an acknowledged fact through history and biographical evidence. Any such claim would be a denial of the Qur'ān itself, given that it is the same Qur'ān that named what Allah had revealed to Musa and his mother peace be upon him as revelation at the same time that we know that this revelation was not considered as the Qur'ān or even similar to it in either kind or language. In fact such claims are far worse, for it would mean that Allah is not able to use appropriate and complete expression – yet he is far elevated above all such imperfection. There is nothing in the world that can be easier than saying, 'I warn you solely according to the glorious Qur'ān', or 'I warn you solely according to the scripture.' But this verse was not revealed in that manner, so we know for sure that anyone who claims that the word 'revelation' is limited only to the 'Qur'ān' is in manifest error. This becomes more evident given that Allah says:

قُلْ أَيُّ شَيْءٍ أَكْبَرُ شَهَادَةً قُلْ اللَّهُ شَهِيدٌ بَيْنِي وَبَيْنَكُمْ وَأُوحِيَ إِلَيَّ هَذَا الْقُرْآنُ لِأُنذِرَكُمْ بِهِ وَمَنْ بَلَغَ أَنتُمْ لَتَسْهَدُونَ أَنَّ مَعَ اللَّهِ إِلَهَةً أُخْرَى قُلْ لَا أَشْهَدُ قُلْ إِنَّمَا هُوَ إِلَهٌ وَاحِدٌ وَإِنِّي بِرِءٍ مِمَّا تُشْرِكُونَ

Say, 'What counts most as a witness?' Say, 'Allah is witness between you and me. This Qur'an was revealed for me to warn you [people] and everyone it reaches. Do you really bear witness that there are other gods beside Allah?' Say, 'I myself do not bear witness [to any such thing].' Say, 'He is only one God, and I disown whatever you join with Him.'⁸

This verse explicitly mentioned the Qur'ān and mentioned that among the purposes for revealing it is to warn people in a method that was not restricted. The Qur'ān has other purposes beside giving warnings such as providing glad tidings, reminding people, encouraging / challenging people to think and ponder, etc. Giving warnings may be done through the glorious Qur'ān or through means other than it. For instance Imām's warn and threaten the congregation during sermons at Friday prayer; poets do the same using their

⁸ Qur'ān 6: 19

poetry. Such warnings are according to the discretion of scholars and poetry of the poets but they are not revelation. It may be derived from revelation and may be this derivation is right or wrong. Yet the verse under consideration here in this section relates to the final Messenger of Allah, Muḥammad peace and blessings be upon him and Allah elucidated clearly for him and us:

قُلْ إِنَّمَا أُنْذِرُكُمْ بِالْوَحْيِ وَلَا يَسْمَعُ الصُّمُّ الدُّعَاءَ إِذَا مَا يُنْذَرُونَ

Say, 'I warn you only through the Revelation.' The deaf will not hear the warning call.⁹

⁹ Qur'ān 21: 45

3. Obeying the Prophet is obeying Allah

Allah, Glorified and Blessed be His names says:

مَنْ يُطِيعِ الرَّسُولَ فَقَدْ أَطَاعَ اللَّهَ وَمَنْ تَوَلَّى فَمَا أَرْسَلْنَاكَ عَلَيْهِمْ حَفِظًا

Whoever obeys the Messenger obeys Allah. If some pay no heed, We have not sent you to be their keeper.¹

وَمَا أَرْسَلْنَا مِنْ رَسُولٍ إِلَّا لِيُطَاعَ بِإِذْنِ اللَّهِ وَلَوْ أَنَّهُمْ إِذْ ظَلَمُوا أَنْفُسَهُمْ جَاءُوكَ فَاسْتَغْفَرُوا اللَّهَ وَاسْتَغْفَرَ لَهُمُ الرَّسُولُ لَوَجَدُوا اللَّهَ تَوَّابًا رَحِيمًا

All the messengers We sent were meant to be obeyed, by Allah's leave. If only [the hypocrites] had come to you [Prophet] when they wronged themselves, and begged Allah's forgiveness, and the Messenger had asked forgiveness for them, they would have found that Allah accepts repentance and is most merciful.²

Notwithstanding the aforementioned verses, there are in fact many others also in which Allah has ordered us to obey the Prophet peace and blessings be upon him unconditionally. He declares that obeying His Messenger is a condition for guidance and disobeying him will lead to us going astray. There are also other verses in which Allah threatens whoever disobeys Him or disobeys His Messengers in general, with eternal punishment in the fire of hell. For example, Allah says:

¹ Qur'ān 4: 80

² Qur'ān 4: 64

وَمَنْ يَعْصِ اللَّهَ وَرَسُولَهُ وَيَتَعَدَّ حُدُودَهُ يُدْخِلْهُ نَارًا خَالِدًا فِيهَا وَلَهُ عَذَابٌ مُهِينٌ

*But those who disobey Allah and His Messenger and overstep His limits will be consigned by Allah to the Fire, and there they will stay - a humiliating torment awaits them!*³

إِلَّا بَلَاغًا مِّنَ اللَّهِ وَرِسَالَاتِهِ وَمَنْ يَعْصِ اللَّهَ وَرَسُولَهُ فَإِنَّ لَهُ نَارَ جَهَنَّمَ خَالِدًا فِيهَا أَبَدًا

*I only deliver [what I receive] from Allah - only His messages. ' Whoever disobeys Allah and His Messenger will have Hell's Fire as his permanent home.*⁴

لَيْسَ عَلَى الْأَعْمَى حَرَجٌ وَلَا عَلَى الْأَعْرَجِ حَرَجٌ وَلَا عَلَى الْمَرِيضِ حَرَجٌ وَمَنْ يُطِيعِ اللَّهَ وَرَسُولَهُ يُدْخِلْهُ جَنَّاتٍ تَجْرِي مِن تَحْتِهَا الْأَنْهَارُ وَمَنْ يَتَوَلَّ يُعَذَّبْهُ عَذَابًا أَلِيمًا

*The blind, the lame, and the sick will not be blamed. ' Allah will admit anyone who obeys Him and His Messenger to Gardens graced with flowing streams; He will painfully punish anyone who turns away.*⁵

وَمَا كَانَ لِمُؤْمِنٍ وَلَا لِمُؤْمِنَةٍ إِذَا قَضَى اللَّهُ وَرَسُولُهُ أَمْرًا أَنْ يَكُونَ لَهُمُ الْخِيَرَةُ مِنْ أَمْرِهِمْ وَمَنْ يَعْصِ اللَّهَ وَرَسُولَهُ فَقَدْ ضَلَّ ضَلَالًا مُّبِينًا

*When Allah and His Messenger have decided on a matter that concerns them, it is not fitting for any believing man or woman to claim freedom of choice in that matter: whoever disobeys Allah and His Messenger is far astray.*⁶

يُصْلِحْ لَكُمْ أَعْمَالَكُمْ وَيَغْفِرْ لَكُمْ ذُنُوبَكُمْ وَمَنْ يُطِيعِ اللَّهَ وَرَسُولَهُ فَقَدْ فَازَ فَوْزًا عَظِيمًا

*And He will put your deeds right for you and forgive you your sins. Whoever obeys Allah and His Messenger will truly achieve a great triumph.*⁷

قُلْ أَطِيعُوا اللَّهَ وَأَطِيعُوا الرَّسُولَ فَإِن تَوَلَّوْا فَإِنَّمَا عَلَيْهِ مَا حُمِّلَ وَعَلَيْكُمْ مَا حُمِّلْتُمْ وَإِن تُطِيعُوهُ تَهْتَدُوا وَمَا عَلَى الرَّسُولِ إِلَّا الْبَلَاغُ الْمُبِينُ

Say, 'Obey Allah; obey the Messenger. If you turn away, [know that] he is responsible for the duty placed upon him, and you are responsible for the duty

³ Qur'ān 4: 14

⁴ Qur'ān 72: 23

⁵ Qur'ān 48: 17

⁶ Qur'ān 33: 36

⁷ Qur'ān 33: 71

*placed upon you. If you obey him, you will be rightly guided, but the Messenger's duty is only to deliver the message clearly.*⁸

وَأَطِيعُوا اللَّهَ وَأَطِيعُوا الرَّسُولَ وَآخِذُوا فَإِن تَوَلَّيْتُمْ فَأَعْلَمُوا أَنَّكُمْ عَلَى رُسُولِنَا الْبَلَاغُ الْمُبِينُ

*Obey Allah, obey the Messenger, and always be on your guard: if you pay no heed, bear in mind that the sole duty of Our Messenger is to deliver the message clearly.*⁹

وَأَطِيعُوا اللَّهَ وَأَطِيعُوا الرَّسُولَ فَإِن تَوَلَّيْتُمْ فَإِنَّمَا عَلَى رُسُولِنَا الْبَلَاغُ الْمُبِينُ

*So obey Allah and the Messenger. If you turn away, remember that Our Messenger's duty is only to make plain his message.*¹⁰

يَا أَيُّهَا الَّذِينَ آمَنُوا أَطِيعُوا اللَّهَ وَأَطِيعُوا الرَّسُولَ وَلَا تُبْطِلُوا أَعْمَالَكُمْ

*O you who believe – obey Allah and the Messenger: do not let your deeds go to waste.*¹¹

The verse shows that Allah appointed his majestic self as well as His Messenger as the only and absolute point of reference in matters where disputes arise. While Allah and His Messenger are to be obeyed in absolute terms, this is *not* the case for temporal rulers, as is well established in the famous verse:

يَا أَيُّهَا الَّذِينَ آمَنُوا أَطِيعُوا اللَّهَ وَأَطِيعُوا الرَّسُولَ وَأُولِي الْأَمْرِ مِنْكُمْ فَإِن تَنَازَعْتُمْ فِي شَيْءٍ فَرُدُّوهُ إِلَى اللَّهِ وَالرَّسُولِ إِن كُنتُمْ تُؤْمِنُونَ بِاللَّهِ وَالْيَوْمِ الْآخِرِ ذَلِكَ خَيْرٌ وَأَحْسَنُ تَأْوِيلًا

*O you who believe, obey Allah and the Messenger, and those in authority among you. If you are in dispute over any matter, refer it to Allah and the Messenger, if you truly believe in Allah and the Last Day: that is better and fairer in the end.*¹²

In the next verse, Allah distinguished his Messenger by ordering us to obey him without mentioning Himself and made this obedience to him a condition in order to gain His divine mercy:

⁸ Qur'ān 24: 54

⁹ Qur'ān 5: 92

¹⁰ Qur'ān 64: 12

¹¹ Qur'ān 47: 33

¹² Qur'ān 4: 59

وَأَقِيمُوا الصَّلَاةَ وَآتُوا الزَّكَاةَ وَأَطِيعُوا الرَّسُولَ لَعَلَّكُمْ تُرْحَمُونَ

*[People], keep up the prayer, pay the prescribed alms, and obey the Messenger, so that you may be given mercy.*¹³

Furthermore, Allah has emphasised that obeying his Prophet is a condition for gaining His love, which is without doubt one of the greatest accolades, whilst disobeying Him is from amongst the types of disbelief which would earn the removal of His pleasure. Allah says:

قُلْ إِنْ كُنْتُمْ تُحِبُّونَ اللَّهَ فَاتَّبِعُونِي يُحْبِبْكُمُ اللَّهُ وَيَغْفِرْ لَكُمْ ذُنُوبَكُمْ وَاللَّهُ غَفُورٌ رَحِيمٌ ، قُلْ أَطِيعُوا اللَّهَ وَالرَّسُولَ فَإِنْ تَوَلَّوْا فَإِنَّ اللَّهَ لَا يُحِبُّ الْكَافِرِينَ

*Say, 'If you love Allah, follow me, and Allah will love you and forgive you your sins; Allah is most forgiving, most merciful.' Say, 'Obey Allah and the Messenger,' but if they turn away, [know that] Allah does not love those who ignore [His commands].*¹⁴

Allah provides further illustration of this point in the next verse where He says:

وَمَنْ يُطِعِ اللَّهَ وَرَسُولَهُ وَيَخْشَ اللَّهَ وَيَتَّقْهُ فَأُولَئِكَ هُمُ الْفَائِزُونَ

*Whoever obeys Allah and His Messenger, stands in awe of Allah, and keeps his duty to Him will be triumphant.*¹⁵

The verse indicates that fear and being watchful are not complete without obedience to Allah the Exalted and his Messenger peace and blessings be upon him. The word 'Messenger' has been co-joined to the word 'Allah' in a way that indicates that both are equally worthy of being obeyed, although there is a striking infinite difference between Allah, the ever-living; the self-subsisting; the necessarily-existent and his Messenger peace and blessings be upon him who is the created, contingent, mortal and finite. Allah the exalted has taken issue with anyone seeking to place a wedge between himself and his Messenger or seek to make differentiation. Worse than this would be for anyone to seek to manoeuvre between them, claiming to believe in some parts

¹³ Qur'ān 24: 56

¹⁴ Qur'ān 3: 31/32

¹⁵ Qur'ān 24: 52

while rejecting others. Allah has shut down all avenues towards this by categorically stating:

إِنَّ الَّذِينَ يَكْفُرُونَ بِاللَّهِ وَرُسُلِهِ وَيُرِيدُونَ أَنْ يُفَرِّقُوا بَيْنَ اللَّهِ وَرُسُلِهِ وَيَقُولُونَ نُؤْمِنُ بِبَعْضٍ وَنَكْفُرُ بِبَعْضٍ وَيُرِيدُونَ أَنْ يَتَّخِذُوا بَيْنَ ذَلِكَ سَبِيلًا، أُولَئِكَ هُمُ الْكَافِرُونَ حَقًّا وَأَعْتَدْنَا لِلْكَافِرِينَ عَذَابًا مُهِينًا

*As for those who ignore Allah and His messengers and want to make a distinction between them, saying, 'We believe in some but not in others,' seeking a middle way, they are really disbelievers: We have prepared a humiliating punishment for those who disbelieve.*¹⁶

Allah showed that Prophets are obeyed by His express divine command and that they are obeyed for His cause. Obedience to the Prophets directly corresponds to obedience to Allah; it constitutes the same level of authoritative command. To reiterate, Allah has refused to accept anyone trying to make a distinction between Him and His Messengers, peace be upon them all. Any attempts of making a distinction or to be crude, driving a wedge between Allah and His Messengers will end in total failure. Evidence has been established from the divine verse to show that any such attempt is truly a manifest and open *kufri*, which will ultimately result in eternal damnation. Without doubt, based upon the necessity of reason and irrefutable evidence established from the *Shari'ah* there is a clear distinction between the Prophet peace and blessings be upon him as a mortal contingent being and Allah, the creator of all existence. The two are separate entities on completely different plains of existence. He peace and blessings be upon him is not the same as Allah in nature or essence; his will is different from that of the will of Allah

Messengers have been chosen to convey the *wahy* and to bolster delivery of this Allah has rendered them infallible – *ma'soom* - in this aspect. Consequently it is an absolute necessity that the Prophetic *Sunnah* is an infallible proclamation from Allah. The Prophetic expression and formulation is an infallible revelation which has come from Allah. If it were possible that any such proclamation was based upon the sole desire of the Prophet peace and blessings be upon him without being based on infallible revelation from Allah, his mission would have lost its significance; it would cease to be considered an authority. If such a proposition were correct, how would Allah

¹⁶ Qur'ān 4: 150/151

establish the proof against those rejecting His law and very existence on the Day of Judgement? The need for the *Sharī'ah* would be obviated. Making any such claim would be in clear conflict with the mutually supporting Qur'ānic verses. As such the glorious Qur'ān would be self-contradictory and it should not be considered as having been sent down from Allah - Allah forbid and protect us from such vain and baseless claims.

4. Types of Revelation

A critic may argue that it is feasible that the Prophet peace and blessings be upon him might have been led to do that certain actions or prohibited matters according to his nature or bodily composure resultant from hereditary qualities. In response, we would submit that this is of no avail. It could not have been possible for the Prophet peace and blessings be upon him to be of this 'nature' in such a manner that his taste does not accept, and that his mind does not settle except with Allah's will, as it is known in reality with certitude only to Allah Himself, except with a prior knowledge, a determined destiny, or a creation, by the will of Allah, and according to his determination. It was the creative will and determination of Allah that resolved that the Prophet peace and blessings be upon him be created in a certain destined manner. His unique condition conforms to Allah's legislative will, for the mission of this very specific Prophet, in such a way that the Prophet peace and blessings be upon him be created ideally prepared for the infallible conveyance of the last message for mankind. Nobody, whether that be a scholar, a critic or even a heretic should say that neither this nor anything like it can be described as revelation. Moreover as stated earlier, the Prophetic expression and formulation is an infallible revelation which has come from Allah. Allah has said:

وَأَوْحَىٰ رَبُّكَ إِلَى النَّحْلِ أَنِ اتَّخِذِي مِنَ الْجِبَالِ بُيُوتًا وَمِنَ الشَّجَرِ وَمِمَّا يَعْرِشُونَ

*And your Lord inspired the bee, saying, 'Build yourselves houses in the mountains and trees and what people construct.'*¹

It is well known that the *wahy* was granted to the bees by Allah, it is planted in their hereditary stock (chromosomes and genes) and in a particular way that made them use mountains, trees and what they build up in a certain way. Definitely this *wahy* is not a holy Qur'ān that can be recited, nor did it happen by the descent of an angel or by a vision during sleep or the like. From the aforementioned verse we note that *wahy* can be of several types, ranging from that which is implanted in the genes in the origin of innate character to the glorious Qur'ān, which is the divine word, revealed literally and verbally, in its words and letters, miraculous in its composition, whose recitation is a type of worship. In between there are other types, which are expectoration in fear, or an inspiration to a soul without prior knowledge of it, or having a true vision, the appearance of an angelic messenger to the human messenger orally addressing him; the sending down of ready written scriptures and tablets from heaven, etc. All of these are called *wahy*; all these types of *wahy* are infallible. Regarding the Prophets they are without any lie, error or forgetfulness in reporting from Allah; otherwise there would be no significance in Prophethood altogether

¹ Qur'ān 16: 68

5. Accept whatever the Messenger gives you

Allah the Almighty blessed be His names has said:

مَا أَقَاءَ اللَّهُ عَلَى رَسُولِهِ مِنْ أَهْلِ الْقُرَىٰ فَلِلَّهِ وَلِلرَّسُولِ وَلِذِي الْقُرْبَىٰ وَالْيَتَامَىٰ وَالْمَسَاكِينِ وَابْنِ السَّبِيلِ كَيْ لَا يَكُونَ دُولَةً بَيْنَ الْأَغْنِيَاءِ مِنْكُمْ وَمَا آتَاكُمُ الرَّسُولُ فَخُذُوهُ وَمَا نَهَاكُمْ عَنْهُ فَانْتَهُوا وَاتَّقُوا اللَّهَ إِنَّ اللَّهَ شَدِيدُ الْعِقَابِ

*Whatever gains Allah has turned over to His Messenger from the inhabitants of the villages belong to Allah, the Messenger, kinsfolk, orphans, the needy, the traveller in need - this is so that they do not just circulate among those of you who are rich – so accept whatever the Messenger gives you, and abstain from whatever he forbids you. Be mindful of Allah: Allah is severe in punishment.*¹

This is a firm command, followed by a confirmed warning that strictly obligates people to accept *all* the commands of the Prophet peace and blessings be upon him without any exception. The wording used in the verse, 'and whatever' is a general formulation, without limitation or qualification, thus it cannot be construed as being conditional or restrictive. History attests to the fact that the Prophet peace and blessings be upon him did not come bearing gold or silver. Nor was he a merchant providing markets with goods or a despotic tyrannical king doling out gifts, grants, positions and lands through the bestowal of patronage. Yet by Allah, he brought something of great value - innumerable reports concerning Allah, his angels, books, messengers and the last day. He explained the conditions of the hour of

¹ Qur'ān 59: 7

resurrection and its signs; provided news of the previous Prophets and nations. He brought forth lessons to be learnt in different forms, sometimes in the form of speeches, stories and parables, in addition to other forms of lessons. He also brought forth several commands, prohibitions, instructions, advice and guidance. He uttered marvellous wise sayings. All these have been brought forward by the Prophet of Allah (peace be upon him); he accepted them as a necessary religious duty, which is not to be disputed according to the verse of the Qur'ān. By virtue of every type, we may list the following:

- To take his reports and believe in them decisively; acknowledging them inwardly and outwardly. Submitting to them thereby fostering 'religiosity,' in other words to draw closer to Allah seeking his pleasure via this submission and belief.
- To take the command and being obedient to it; demonstrating compliance within the limits of what can be done.
- To take what has been prohibited, in other words recognising it as such and abstaining from it, except where the conditions of necessity and duress apply.
- And taking other matters also according to their type. For example, if the Prophet peace and blessings be upon him granted you a plot of land it is to be taken as a legitimate good possession. If it is given to another, then you would be happy for the lucky person and wish yourself the same but not show envy or rancour at the other, Allah forbid.

All these are truly sent down from Allah. For it is impossible that Allah commands us to believe a false report, or obey a command that he never ordered or prohibit something he did not render impermissible, or accept a gift which we are not entitled to, Allah forbid. As expressed in the verse, Allah blessed be his names says – '*abstain from whatever he forbids you*' by necessity it includes all that he outlines as forbidden or prohibited. He also says: '*so accept whatever the Messenger gives you*'. It is from the utmost kindness that the particular has been annexed to the general, the part to the whole. Such use of rhetoric has been provided to confirm the legislation with an eloquence of the highest magnitude. Thus it can be established from this verse the importance of abstaining and being deterred from things the Messenger of Allah, peace and blessings be upon him prohibited without a stipulation of ability and capability. For abstaining from prohibited things are

a negative attitude; i.e. it is a not-to-do action, which is within the remit of all people.

Invalidating any possibly confusing matter about the beginning of the verse '*so accept whatever the Messenger gives you*' that it might refer to things other than reports, commands and prohibitions, or it might refer to glorious Qur'ān only. Since prohibitions have been mentioned separately and explicitly, it is necessary that the sentence be inclusive of all prohibitions and that which is similar to it, things that can be described as being brought by a Prophetic deed or saying; i.e., inclusive of all reports and commands, etc.

The sentence '*so accept whatever the Messenger gives you*' is *a priori* a verse signifying all Qur'ānic texts. So if the Messenger (peace be upon him) says, this is Qur'ān, then our response should be: we hear and we obey and accept it as the glorious Qur'ān and record it in the scripture. If he says this verse that was of the glorious Qur'ān has been lifted, abrogated and removed from the scripture and we must not recite it again, our reply should be: at your command. We will do as commanded; such should be our attitude forever. Whatever the Messenger peace and blessings be upon him brings to us, we should accept, and what he prohibits us, should be abandoned.

6. 'I only follow what is revealed to me'

Allah the Exalted and Majestic states in the following verses:

قُلْ لَا أَقُولُ لَكُمْ عِنْدِي خَزَائِنُ اللَّهِ وَلَا أَعْلَمُ الْغَيْبُ وَلَا أَقُولُ لَكُمْ إِنِّي مَلَكٌ إِنِّي أَنْتَبِعُ إِلَّا مَا يُوحَىٰ إِلَيَّ قُلْ هَلْ يَسْتَوِي الْأَعْمَىٰ وَالْبَصِيرُ أَفَلَا تَتَفَكَّرُونَ

Say, 'I do not have the treasures of Allah, nor do I know the unseen, nor do I tell you that I am an angel. I only follow what is revealed to me.' Say, 'Is a blind person like one who can see? Why will you not reflect?'¹

وَإِذَا تَتْلَىٰ عَلَيْهِمْ آيَاتُنَا بَيِّنَاتٍ قَالَ الَّذِينَ لَا يَرْجُونَ لِقَاءَنَا إِنَّتَ بِقُرْآنٍ غَيْرِ هَٰذَا أَوْ بَدِّلْهُ قُلْ مَا يَكُونُ لِي أَنْ أُبَدِّلَهُ مِنْ تِلْقَاءِ نَفْسِي إِنِّي أَنْتَبِعُ إِلَّا مَا يُوحَىٰ إِلَيَّ إِنِّي أَخَافُ إِنْ عَصَيْتُ رَبِّي عَذَابٌ يَوْمٍ عَظِيمٍ

When Our clear revelations are recited to them, those who do not expect to meet with Us say, 'Bring [us] a different Qur'an, or change it.' [Prophet], say, 'It is not for me to change it of my own accord; I only follow what is revealed to me, for I fear the torment of an awesome Day, if I were to disobey my Lord.'²

قُلْ مَا كُنْتُ بِدْعًا مِّنَ الرُّسُلِ وَمَا أَدْرِي مَا يُفْعَلُ بِي وَلَا بِكُمْ إِنِّي أَنْتَبِعُ إِلَّا مَا يُوحَىٰ إِلَيَّ وَمَا أَنَا إِلَّا نَذِيرٌ مُّبِينٌ

Say, 'I am nothing new among Allah's Messengers. I do not know what will be done with me or you; I only follow what is revealed to me; I only warn plainly.'³

¹ Qur'ān 6: 50

² Qur'ān 10: 15

³ Qur'ān 46: 9

The verse has a linguistic form of restriction - *seeghat-haṣr*, that is to say, he peace and blessings be upon him does not follow anything *but the revelation*, whether that be in the form of acts or speech, with the notion of acts being the obvious immediate meaning. One must also note that the Prophet peace and blessings be upon him used to perform several deeds that were not explicitly mentioned within the corpus of Qur'ānic text. For example, he would kiss his wives and consummate marriages; he peace and blessings be upon him was intimate with his wives during fasting and their menstruation, stopping short of actual intercourse. Regarding his speech, he peace and blessings be upon him would formulate things in his own manner, quite distinctive from the Qur'ānic style. If all these were not considered to be revelation, then the Qur'ānic verse would be rendered void. Accordingly, the Qur'ān would not be necessarily sent down from Allah. This is in contradistinction to the Prophethood which we know is established beyond doubt by irrefutable striking evidence. Such evidence establishes that the Qur'ān is necessarily sent down from Allah. Otherwise, Allah would be lying in this verse which is the height of absurdity as Allah is above all imperfections.

Previously we mentioned that the word *wahy* (revelation) is not synonymous with the word Qur'ān; every revelation is not Qur'ān, though the Qur'ān is undoubtedly revelation from Allah. What is further noteworthy is that the phrase used in the verse *was not* formulated as 'I only follow the Qur'ān,' [إِن أَتَّبِعُ إِلَّا الْقُرْآنَ] although that would have been easy to express and eloquent in formulation. Thus we know with certainty that his following of revelation as indicated in the Qur'ānic sentence is not limited to that of the Qur'ān only. Consequently the verse in correct formulation outlines striking evidence of revelation that is not limited to that of the Qur'ān which the Prophet peace and blessings be upon him is having revealed to him and which he is acting in accordance with.

7. The Excellent Exemplar

In chapter thirty-three of the glorious Qur'ān, Allah the Exalted furnishes us with the following indisputable statement. He says:

لَقَدْ كَانَ لَكُمْ فِي رَسُولِ اللَّهِ أُسْوَةٌ حَسَنَةٌ لِّمَن كَانَ يَرْجُو اللَّهَ وَالْيَوْمَ الْآخِرَ وَذَكَرَ اللَّهَ كَثِيرًا

The Messenger of Allah is an excellent exemplar for those of you who put your hope in Allah and the Last Day and remember Him often.¹

As demonstrated unequivocally in the verse, the Prophet peace and blessings be upon him has been described as the '*uswatun ḥasana*', the most perfect and complete exemplar. This absolute general statement has been made without any limitation or qualification. However, in relation to the leader of all pious people, Ibrāhim the friend of Allah peace be upon him, Allah has said:

قَدْ كَانَتْ لَكُمْ أُسْوَةٌ حَسَنَةٌ فِي إِبْرَاهِيمَ وَالَّذِينَ مَعَهُ إِذْ قَالُوا لِقَوْمِهِمْ إِنَّا بُرَءُ مِنْكُمْ وَمِمَّا تَعْبُدُونَ مِنْ دُونِ اللَّهِ كَفَرْنَا بِكُمْ وَبَدَا بَيْنَنَا وَبَيْنَكُمُ الْعَدَاوَةُ وَالْبَغْضَاءُ أَبَدًا حَتَّى تُؤْمِنُوا بِاللَّهِ وَحْدَهُ إِلَّا قَوْلَ إِبْرَاهِيمَ لِأَبِيهِ لَا اسْتَفْعِرَنَّ لَكَ وَمَا أَمْلِكُ لَكَ مِنَ اللَّهِ مِنْ شَيْءٍ رَبَّنَا عَلَيْكَ تَوَكَّلْنَا وَإِلَيْكَ أَنْتَبْنَا وَإِلَيْكَ الْمَصِيرُ

You have a good example in Abraham and his companions, when they said to their people, 'We disown you and what you worship besides Allah! We renounce you! Until you believe in Allah alone, the enmity and hatred that has arisen between us will endure!'—except when Abraham said to his father, 'I will pray

¹ Qur'ān 33: 21

for forgiveness for you though I cannot protect you from Allah'—[they prayed].²

Allah made him a '*uswatun ḥasana*' only in the matter of allegiance since he was free and disassociated from his people who insisted on disbelief and were outspoken in their hostility towards him as demonstrated by them attempting to murder him. Though, Allah mentioned an acceptable excuse for him for asking forgiveness for his father. He also praised him for ceasing to ask forgiveness – after the excuse ceased to exist. Allah, whose names are blessed, says:

وَمَا كَانَ اسْتِغْفَارُ إِبْرَاهِيمَ لِأَبِيهِ إِلَّا عَنْ مَوْعِدَةٍ وَعَدَهَا إِيَّاهُ فَلَمَّا تَبَيَّنَ لَهُ أَنَّهُ عَدُوٌّ لِلَّهِ تَبَرَّأَ مِنْهُ إِنَّ إِبْرَاهِيمَ لَأَوَّاهٌ حَلِيمٌ

Abraham asked forgiveness for his father because he had made a promise to him, but once he realised that his father was an enemy of Allah, he washed his hands of him. Abraham was tender-hearted and forbearing.³

Yet Allah made an exception from the good example and leadership of Ibrāhim peace be upon him, which is his asking forgiveness for his father, though he was intending only the good and was excused in doing that. By Allah, Ibrāhim peace be upon him did not commit an impermissible deed or a sin. He just did only the less desirable with a good intention and while being dutiful to his father. He asked forgiveness because it was originally permitted and allowed to be done. At that time, he was not ordered otherwise but he abandoned it when Allah prohibited it explicitly.

In contradistinction to the matter of Ibrāhim peace be upon him, it was never mentioned in the Qur'ān that the leader of Prophets and the master of all sent messengers, the nearest one to the Lord of the worlds, Muḥammad ibn Abdullah peace and blessings be upon him was excluded from being taken as an example to be necessarily guided. This fact when considered with evidences that following his example is Allah's command, necessarily proves that he is the good and infallible example in all his words and deeds with no exception whatsoever. The verses mentioned above provide a compelling evidential basis when taken together, summarised as follows:

² Qur'ān 60: 4

³ Qur'ān 9: 114

- *I only follow what is revealed to me* [6: 50, 10: 15, 46: 9]
- *The Messenger of Allah is an excellent exemplar for those of you who put your hope in Allah and the Last Day* [33: 21]
- *Say, 'If you love Allah follow me, and Allah will love you and forgive you your sins; Allah is most forgiving, most merciful.' Say, 'Obey Allah and the Messenger,' but if they turn away, [know that] Allah does not love the disbelievers.* [3: 31/32]

Considering these evidences together we can necessarily conclude that the Prophet's deeds are an infallible revelation that can be considered an excellent example without any qualification or limitation.

Another key principle that can be outlined from what has been presented thus far: whatever the Prophet (peace be upon him) did after revelation began can never be prohibited for the rest of his *Ummah*, unless it has been categorically proven that it relates only to what is specifically legislated for him. Hence his acts can be emulated and followed without fear or hardship. Yet performing mere acts does not make them obligatory or even desirable, except by virtue of clear evidence to that effect. It is inconceivable that the Prophet peace and blessings be upon him could have performed an undesirable act unless there was a material evidence to show that he performed it only to prove that no one who performs it would be committing something unlawful outright. Though abstaining from performing such a deed would be better. This is partly one of the requirements of being designated as *ustwatun ḥasana*. Likewise, abstinence from a certain act would provide striking proof that this deed is not obligatory on the *Ummah*. Besides, there should be evidence to support the prohibition, the undesirability, or just the permissibility of a deed. It is inconceivable that the Prophet (peace be upon him) would cease to perform a desirable deed, unless he had an evidence showing that he just ceased to perform it to prove that it is not a questionable matter, so as not to burden his *Ummah*, or for any other reasons that will be discussed in due course.

Again, these are some of the requirements of being designated as '*ustwatun ḥasana*.' It is impossible for the Prophet peace and blessings be upon him to perform a deed which is prohibited for his *Ummah* or to leave what is obligatory for his *Ummah*. Although it is possible that he may perform something that is of a different category than the former, such as abandoning

a desirable deed or performing a disliked deed. This would be a 'sin' for want of a better word between himself and Allah, though it is most definitely not a sin when performed by a member of his *Ummah*.

8. Forgiveness for previous and future sins

Given the foregoing discussion, this is the only meaning which is contextually compatible with the previous verses, or with other verses definitely stating that the Prophet's words and deeds are infallible. The meaning is also relevant to other texts that appeared as ambiguous to some people. At the forefront of these are the following where Allah has said:

لِيَغْفِرَ لَكَ اللَّهُ مَا تَقَدَّمَ مِنْ ذَنْبِكَ وَمَا تَأَخَّرَ وَيُتِمَّ نِعْمَتَهُ عَلَيْكَ وَيَهْدِيَكَ صِرَاطًا مُسْتَقِيمًا

*So that Allah may forgive you your past and future sins, complete His grace upon you, guide you to a straight path.*¹

As well as the verse where the Prophet peace and blessings be upon him was chided by Allah for turning away:

عَبَسَ وَتَوَلَّى، أَنْ جَاءَهُ الْأَعْمَى

*He frowned and turned away, when the blind man came to him.*²

عَفَا اللَّهُ عَنْكَ لِمَ أَذْنَتْ لَهُمْ حَتَّى يَتَبَيَّنَ لَكَ الَّذِينَ صَدَقُوا وَتَعْلَمَ الْكَاذِبِينَ

*Allah forgive you [Prophet]! Why did you give them permission to stay at home before it had become clear to you which of them spoke the truth and which were liars?*³

¹ *Qur'ān* 48: 2

² *Qur'ān* 80: 1/2

³ *Qur'ān* 9: 43

In order to place these verses within the context of what has transpired thus far, it is necessary to consider the various *ahādith* which are related to these verses. By doing so it will enable clarity to be brought to the notion of what is considered the 'sins' of the Prophet peace and blessings be upon him, which are in fact not related to him committing that which is prohibited for his *Ummah*.

Analysis of the ahādith

Firstly, Imām Muslim recorded the following *ḥadith* in his *Ṣaḥīḥ*:

حدثنا يحيى بن يحيى وقتيبة بن سعيد وأبو الربيع العتكي جميعاً عن حماد قال يحيى أخبرنا حماد بن زيد عن ثابت عن أبي بردة عن الأغر المزني، وكانت له صحبة أن رسول الله صلى الله عليه وسلم قال إنه ليغان على قلبي وإني لأستغفر الله في اليوم مائة مرة

Yahya ibn Yahya, Qutayba ibn Sa'eed and Abu Rabih' al-'Ataki narrated to us, all of them from Hammād, Yahya said Hammād ibn Zayd reported to us from Thābit from Abu Burda from Al-Agharr al-Muzani, who was one amongst the Companions, that the Messenger of Allah, peace and blessings be upon him said: *There is (at times) some sort of shade upon my heart that I wish to remove, and I seek forgiveness from Allah a hundred times a day.*⁴

The same narration is reported with authentic and good channels of narration in a large number of *ḥadith* collections.⁵ Imām Abu Ḥātim Ibn Ḥibbān provided a comment attempting to provide an analysis to this, which isn't up to the mark:

Where he, peace and blessings be upon him said: *'Innahu la-yughānu ala' qalbi'* refers to the anxious thoughts straining his heart when he is concerned, thinking about some acts of worship or a ruling not known

⁴ *Ṣaḥīḥ* Muslim [Vol. 4, no. 2702]

⁵ Seventeen additional references are mentioned in the Arabic edition. For the sake of brevity, among the notable citations are al-Bukhārī *al-Adab al-Mufrad* [Vol. 1, no. 621], *Sunan* Abu Dāwūd [Vol. 2, no. 1515], and al-Bayhaqy *Sunan al-Kubra* [Vol. 7, no. 13119]. It is also reported in the *Ṣaḥīḥ* of Ibn Ḥibbān in several places [Vol. 3, no. 931, 929], of which Shaykh Shu'ayb al-Arnā'ut said 'The *isnād* of the *ḥadith* is *Ṣaḥīḥ*.'

to him before its revelation. As in the case when the Prophet peace be upon him was in Mecca; having no knowledge of the rulings revealed in the chapter of *al-Baqarah* in Medina, he considered it a sin on him that strained his heart. That is why he used to ask Allah for forgiveness a hundred times each day. It was not that his heart was burdened by a sin which he commits akin to that felt by members of his *Ummah* when they sin, may Allah's peace and blessings be upon him.

Cited in *Mu'jam al-Kabir* is the following:

حدثنا محمد بن محمد الجذوعي القاضي قال سمعت العباس بن الوليد النرسي يقول سألت أبا عبيدة معمر بن المثنى عن تفسير قوله إنه ليغان على قلبي، فلم يفسره لي، وسألت الأصمعي عنه فلم يفسره

Muḥammad ibn Muḥammad al-Juzu'ay' the judge narrated to us, he said I heard al-Abbās ibn al-Waleed al-Narsee he said, I asked Abu 'Ubayda Ma'mar ibn al-Muthanna about the *Tafsir* of the statement – '*Innahu la-yughānu ala' qalbi*' and he gave no *Tafsir*. I asked al-Aṣma'i about it but he did not give me an explanation either.⁶

Here I would say that the word '*ghayn*' is the light cloud which shields the figure of the sun without shielding much of its light, in contradistinction to the word '*ghaym*', which is the thick dark cloud. So the Messenger of Allah peace and blessings be upon him used to ask forgiveness from even the slightest clouding of the heart and it is well known that this is not considered as being a 'sin' in the traditional sense for his *Ummah*. As well as this there is an additional narration that is reported in *Sunan* Abu Dāwud with an authentic chain of transmission from Abdullah ibn Umar.

حدثنا الحسن بن علي حدثنا أبو أسامة عن مالك بن مغول عن محمد بن سوقة عن نافع عن بن عمر قال إن كنا لننغذ لرسول الله صلى الله عليه وسلم في المجلس الواحد مائة مرة رب اغفر لي، وتب علي إنك أنت التواب الرحيم

al-Ḥasan ibn Ali narrated to us Abu Usāma narrated to us from Mālik ibn Mighwal from Muḥammad ibn Suqa from Nāfi' from Ibn Umar, he said: We counted that the Messenger of Allah peace and blessings be

⁶ al-Ṭabarāni *Mu'jam al-Kabir* [Vol. 1, no. 890]

upon him would say a hundred times during a meeting - *My Lord, forgive me and pardon me; You are the pardoning and forgiving one.*⁷

It is well known and reported by several Imām's in their respective collections of *ḥadith*. Most of them have reported this *ḥadith* from the channel of Nāfi' from Ibn Umar and others from the channel of Mujāhid or Abu Faḍl from Ibn Umar.⁸ Imām Aḥmad records similar in his *Musnad* but on the authority of Abu Hurayrah:

حدثنا عبد الرزاق قال معمر عن الزهري عن أبي سلمة عن أبي هريرة عن النبي صلى الله عليه وسلم، قال إني لأستغفر الله في اليوم أكثر من سبعين مرة وأتوب إليه

'Abd al-Razzāq narrated to us, Ma'mar said from al-Zuhri from Abu Salama from Abu Hurayrah from the Prophet, peace and blessings be upon him, he said: *I ask forgiveness from Allah more than seventy times in a day and repent to Him.*⁹

Similar to the above, this narration has been recorded across the corpus of *aḥādith*.¹⁰ In *Mu'jam al-Ṣagheer* Imām al-Ṭabarāni records the following:

حدثنا إبراهيم بن محمد الغزالي البصري المعدل حدثنا خلاد بن أسلم المروزي حدثنا النضر بن شميل أنبأنا حماد بن سلمة عن عاصم بن بهدلة عن أبي صالح عن أبي هريرة قال قال رسول الله صلى الله عليه وسلم إني لأستغفر الله في اليوم وأتوب إليه في كل يوم مائة مرة

Ibrāhim ibn Muḥammad al-Ghazali al-Baṣri al-Mu'addal narrated to us Khalad ibn Aslam al-Marwazi narrated to us al-Naḍr ibn Shumayl narrated to us Ḥammād ibn Salama reports from 'Aāsim ibn Bahdala from Abu Ṣāliḥ from Abu Hurayrah he said the Messenger of Allah

⁷ *Sunan* Abu Dāwud [Vol. 2, no. 1516]. Of this, al-Albāni said it was *Ṣaḥīḥ*.

⁸ Almost a dozen additional follow-on references are provided. Notable among them are: *Sunan* al-Tirmidhi [Vol. 5, no. 3434], *Musnad* al-Ṭayālisi [Vol. 1, no. 1938] and al-Bukhārī *al-Adab al-Mufrad* [Vol. 1, no. 618].

⁹ *Musnad* Aḥmad [Vol. 2, no. 7780]

¹⁰ Notable among the eight additional references mentioned are: *Sunan* Ibn Mājah [Vol. 2, no. 3815], *Ṣaḥīḥ* Ibn Hibbān [Vol. 3, no. 925] and al-Nasā'i *Sunan al-Kubra* [Vol. 6, no. 10265].

peace and blessings be upon him said: *I seek the forgiveness of Allah and repent to Him one hundred times each day.*¹¹

After citation, Imām al-Ṭabarānī comments with ‘Nobody related this version on the authority of ‘Aāṣim except Ḥammād ibn Salama following al-Naḍr.’ I would say in reply that it is of no consequence, given that both are considered trustworthy honest narrators and respected Imām’s. Ibn Ḥibbān records the narration but via a different Companion, here Anas ibn Mālik may Allah be pleased with him:

أخبرنا الحسن بن سفيان قال حدثنا هريم بن عبد الأعلى قال حدثنا معتمر بن سليمان قال سمعت أبي يقول حدثنا قتادة عن أنس قال قال رسول الله صلى الله عليه وسلم إنني لأتوب في اليوم سبعين مرة

al-Ḥasan ibn Sufyān reported to us he said Huraym ibn ‘Abd al-‘Alā narrated to us he said Mu’tamir ibn Sulaymān narrated to us he said I heard my father say, Qatādah narrated to us from Anas, he said the Messenger of Allah peace and blessings be upon him said: *I repent seventy-times a day.*¹²

The *isnād* which Ibn Ḥibbān provides is *Ṣaḥīḥ* according to the conditions of Imām Muslim. The next narration is in the *Sunan* of Ibn Mājah reported on the authority of Abu Musa al-Ash’ari may Allah be pleased with him:

حدثنا علي بن محمد حدثنا وكيع عن مغيرة بن أبي الحر عن سعيد بن أبي بردة بن أبي موسى عن أبيه عن جده قال قال رسول الله صلى الله عليه وسلم إنني لأستغفر الله وأتوب إليه في اليوم سبعين مرة

Ali ibn Muḥammad narrated to us Waki’ narrated to us from Mughira ibn Abul’Ḥurr from Sa’eed ibn Abi Burda ibn Abi Musa from his father from his grandfather, he said the Messenger of Allah peace and

¹¹ al-Ṭabarānī *Mu’jam al-Ṣagheer* [Vol. 1, no. 232]. A follow-on channel from *Sharḥ Ma’āni al-Athār* is also mentioned: ‘Ibn Abi Dāwud narrated to us he said Khaṭṭāb ibn Uthmān and Ḥaywa ibn Shurayḥ narrated to us, they said Baqiyah ibn al-Waleed narrated to us from al-Zubaydi from al-Zuhri from ‘Abd al-Malik ibn Abi Bakr ibn al-Ḥārith ibn Hāshim from Abu Hurayrah that he was saying: I heard the Messenger of Allah peace and blessings be upon him (say): *I repent one-hundred times a day.* And he said, ‘Anas said that it was seventy-times.’

¹² *Ṣaḥīḥ* Ibn Ḥibbān [Vol. 3, no. 924]. Additional references mentioned are for the *Musnad* Abu Ya’la [Vol. , no. 2934] and al-Nasā’i *Sunan al-Kubra* [Vol. 6, no. 10266]

blessings be upon him said: *I seek the forgiveness of Allah and repent to Him seventy times each day.*¹³

I would argue that the *isnād* is *ḥasan* because Mughira ibn Abul’Ḥurri al-Kindi is *ṣaduq*, however when taken with the supporting narrative as found in the *Sunan al-Kubra* of al-Nasā’i it can be regarded as *Ṣaḥīḥ*.¹⁴ Lastly, there is also the narration reported on the on the authority of Ḥudhayfah may Allah be pleased with him:

أخبرنا عبد الحميد بن محمد حدثنا مخلد حدثنا سفيان عن أبي إسحاق عن أبي المغيرة عن حذيفة قال أتيت النبي صلى الله عليه وسلم فقلت أحرقتني لسانى وذكر من ذرايته على أهله؛ قال أين أنت من الاستغفار؟! إني لأستغفر الله في اليوم وأتوب إليه مائة مرة

‘Abd al-Ḥumayd ibn Muḥammad reported to us Makhlad narrated to us Sufyān narrated to us from Abu Ishāq from Abul’Mughira from Ḥudhayfah he said the Prophet peace and blessings be upon him came and I said to him that I mentioned that I was harsh in the way I spoke to my family, but not to others. He said: *What about asking Allah for forgiveness? Verily, I ask Allah for forgiveness a hundred times a day.*¹⁵

From all of the aforementioned *aḥādith* we would say that the reports reach the level of *tawātur*, thus we can affirm beyond any doubt that this demonstrates that the ‘sins’ of the Prophet peace and blessings be upon him

¹³ *Sunan* Ibn Mājah [Vol. 2, no. 3816]. Also recorded in *Musnad* Aḥmad [Vol. 4, no. 19687]

¹⁴ al-Nasā’i *Sunan al-Kubra* [Vol. 6, no. 10274]

¹⁵ Ibid. [no. 10286]. A follow-on narration, again from *Sunan al-Kubra* [no. 10284] is provided: ‘Qutayba ibn Sa’eed reported to us Abul’ Aḥwaṣ narrated to us from Abu Ishāq from Abu’l Mughira he said Ḥudhayfah said: I complained to the Messenger of Allah, peace and blessings be upon him about the sharpness of my tongue, so he said: *Why don’t you ask for forgiveness? Verily, every day I ask Allah for forgiveness a hundred times.*’ An additional reference is provided in the *Muṣṣanaf* Ibn Abi Shayba [Vol. 7, no. 29,441]. Further to this, an additional narration is mentioned again from *Sunan al-Kubra* [Vol. 6, no. 9933] ‘Ibrāhīm ibn Ya’qub reported to me he said Abdullah ibn Rabiḥ’ narrated to me he said ‘Abbād ibn al-‘Awwām reported from Ḥuṣayn from Hilāl ibn Yasāf from Zādhān from a man from the Anṣār whose name he forgot; that he saw the Prophet peace and blessings be upon him perform two *rak’ahs* of the forenoon prayer then sat and he heard him say: *My Lord, forgive me and pardon me; thou art the pardoning and forgiving one*, until he said it a hundred-times.’ The Professor says: ‘Imām al-Nasā’i mentions this same narration in another place also in the *Sunan al-Kubra*. I would submit that Abdullah ibn al-Rabiḥ’ al-Khurāsānī is Abu ‘Abdar-Raḥman Abdullah ibn Muḥammad ibn al-Rabiḥ’ al-‘Aāizi al-Kirmānī al-Khurāsānī, he was stationed in *maṣeeṣa* in the path of Allah. He is considered *thiqa* and from the tenth of the senior followers.’

are *not* related to him committing that which is prohibited for his *Ummah*. Yet it could still be considered as a point of contention that he leaves a matter which is considered desirable or recommended for his *Ummah*; perhaps such a matter would be considered as obliged upon him personally. Or he has committed that which considered as being disliked for his *Ummah*; perhaps the matter is considered prohibited for him personally. However it is not conceivable that the Prophet peace and blessings be upon him could have abandoned a deed that was made obligatory on his *Ummah* or performed a deed prohibited for his *Ummah*. Hence the notion of his 'sins' are essentially of the former type and not the latter.

9. Can the Prophet forget?

One issue remains, that he, peace be upon him, can perhaps forbid a matter - such as the issue of facing the *Qibla* while urinating or defecating, then after that, he undertakes the act in question (urinating facing the *Qibla* with his back to *Bayt al-Maqdis*, Jerusalem). It has been said by some scholars and specialists in the fundamentals of jurisprudence that the way to explain this can be to interpret the matter as showing that the Prophet peace and blessings be upon him *forgot* while doing the act; that it wasn't done deliberately or intentionally in that regard. Although being *ma'soom* he is not excluded altogether from forgetfulness as people are. Given such circumstances where his act appears to go against a previous verbal prohibition, it is the verbal statement outlining the prohibition which would take precedence.

In reply, I would argue that this line of reasoning contains a number of fundamental errors. To begin, it is not necessary to proceed with that line of reasoning. Where there is a statement and act, it could very well be argued that the subsequent act operates to serve or explain that the previous prohibition that it is not one of being *ḥarām* per se but rather being a disliked matter. Or it could be considered as being a matter of *naskh* (abrogation), if it can be established with certainty the latter act clarifies that it's not one related to prohibition. This is right ordering, from which we can further state - firstly, that he (peace be upon him) had gumption and was established with fervour of mind and a powerful memory, as is known from the necessity of history, a matter recognised by believer and disbeliever alike. To argue that it may be the case that there is a small percentage chance of him being

forgetful in a particular incident or situation would need a proof to establish that conclusively. Just as is the case with narrators that are trustworthy; error or forgetfulness shouldn't be attributed to them in their reporting and channels of narration except with a specific proof. As for the objection that it is merely a rational possibility, that isn't permissible since it would disrupt the balance of reporting as the witness of history attests. Secondly, as He the Mighty and Sublime said:

سَنُقَرِّئُكَ فَلَا تَنْسَى، إِلَّا مَا شَاءَ اللَّهُ إِنَّهُ يَعْلَمُ الْجَهْرَ وَمَا يَخْفَى

[Prophet], We shall teach you and you will not forget - unless Allah wishes; He knows both what is open and what is hidden.¹

He states unless Allah wishes, thereby the speech shows we will make you recite so you will not forget anything from the Qur'ān in an absolute sense, unless that which Allah causes you to forget, that will be abrogation, whereby some words are lifted or raised from the Qur'ān. By necessity the abrogation will operate for every wording related to various *ahkām* (legal injunctions) as well unless otherwise stated with proof. This matter is further put into proportion by the statement of Allah where He says:

مَا نَنْسَخْ مِنْ آيَةٍ أَوْ نُنسِهَا نَأْتِ بِخَيْرٍ مِنْهَا أَوْ مِثْلَهَا أَلَمْ تَعْلَمْ أَنَّ اللَّهَ عَلَى كُلِّ شَيْءٍ قَدِيرٌ

Any revelation We cause to be superseded or forgotten, We replace with something better or similar. Do you [Prophet] not know that Allah has power over everything?²

If the wording here was only for the text of the Qur'ān, then it is also a further exemplification of the word [سنقرئك] 'We shall teach you', for it is a blessing from Allah if He causes his Prophet to forget a text from the texts of the glorious Qur'ān. He reveals the words, the devout recite it, it is miraculous in its style and meaning. Abrogation of the text for that reason has with it all its related rules or legal provisions. Given the elevated rank of the Qur'ān and its sacredness, by greater reasoning, the thing forgotten would also apply to the *Sunnah*. Thus the prohibition regarding facing the Qibla while urinating

¹ Qur'ān 87: 6/7

² Qur'ān 2: 106

or defecating after that the future change of the Qibla from Jerusalem was abrogated by prohibition and likewise. If the word [سنقرئك] was meant for teaching and instruction then it shall be inclusive of all revelation – both the Qur'ān and *Sunnah*. As is like the saying of the Exalted:

ذَلِكَ نَتْلُوهُ عَلَيْكَ مِنَ الْآيَاتِ وَالذِّكْرِ الْحَكِيمِ

This (which) We recite unto you is a revelation and a wise reminder.³

As will be detailed in this volume, the 'wise reminder' – *al-Dhikr al-Hakeem* includes both the glorious Qur'ān and the Prophetic *Sunnah*. However the word used in the aforementioned verse is to 'recite' giving priority to the Qur'ān as a result of its high standing. Or because the meaning of the language in *uṣul* is 'sequence something after something' and 'allegiance to something after the thing'; the argument being self-evident obviating the need to invoke the notion of greater reasoning.

Thirdly, that he peace and blessings be upon him is but human and like all other human beings prone to forget, except that it is the Prophet that is commissioned to deliver the message. Yet the responsibility for the collection and explanation rests upon Allah, for he Exalted be his names has said:

إِنْ عَلَيْنَا جُمُوعُهُ وَقُرْآنُهُ، فَإِذَا قَرَأْنَاهُ فَاتَّبِعْ قُرْآنَهُ، ثُمَّ إِنَّ عَلَيْنَا بَيِّنَاتِهِ

Surely on us (devolves) the collection and its recitation; therefore when we have recited it, follow its recitation. Again upon us (devolves) the explanation of it.⁴

Allah the Exalted and Majestic has also said:

وَيَوْمَ نَبْعَثُ فِي كُلِّ أُمَّةٍ شَهِيدًا عَلَيْهِمْ مِنْ أَنْفُسِهِمْ وَجِئْنَا بِكَ شَهِيدًا عَلَى هَؤُلَاءِ وَنَزَّلْنَا عَلَيْكَ الْكِتَابَ تِبْيَانًا لِكُلِّ شَيْءٍ وَهُدًى وَرَحْمَةً وَبُشْرَى لِلْمُسْلِمِينَ

The day will come when We raise up in each community a witness against them, and We shall bring you [Prophet] as a witness against these people, for We

³ Qur'ān 3: 58. Here we have departed from Abdel Haleem's translation and opted for that produced by Pickhtall. Many of the available translations do not really convey the meaning behind this verse, nor stay as close to the actual wording as revealed.

⁴ Qur'ān 75: 17/19. Again here, we have departed from Abdel Haleem's translation, choosing that of Ahmad Shakir.

have sent the Scripture down to you explaining everything, and as guidance and mercy and good news to those who devote themselves to Allah.⁵

هَذَا بَيَانٌ لِلنَّاسِ وَهُدًى وَمَوْعِظَةٌ لِّلْمُتَّقِينَ

This is a clear exposition to people, and guidance and teaching for those who are mindful of Allah.⁶

Necessity dictates that Allah communicates revelation directly to the Prophet. That extends even to what one might consider a small issue, such as when *Jibreel* conveyed to him that when one prays and takes off his sandals, he should not harm anyone in that.⁷ Given that he was not informed of this previously, it is Allah who provides this to establish a new ruling. Or the medium can be to inspire an issue in the minds of some of his Companions (or the other issue related to the prayer at noon where he prayed two units of prayer instead of four, thereby enabling the demonstration of how to correct an omission made during the prayer, as well as the matter of where he forgot to pronounce a verse in the prayer and the companions raised the point after it finished). There is also the point of the Prophet peace and blessings be upon him alerting his Companions to a matter beforehand in a given situation in order to demonstrate a particular ruling, like explaining to them how to correct the Imām in prayer, that the men should exclaim and the women should clap to signify for example where a verse was misread.

Interestingly, there is a relevant statement regarding this point that has been reported from Imām Mālik in the *Muwatṭā'* that the Prophet said: '*I forget or I am made to forget so that I may establish the Sunnah.*'⁸ This is one of the few narrations in the *Muwatṭā'*, (four in total), where it has not been able to provide a fully connected channel to the Prophet peace and blessings be upon him despite intensive research and investigation. It is also plagued by misreading, where most people thought the Prophetic comment relates to a pure error, placing it in the same context as the concurrent well known reports concerning the prostration of forgetfulness.

⁵ Qur'ān 16: 89

⁶ Qur'ān 3: 138

⁷ See the tradition as reported in the *Sunan* of Abu Dāwūd (Book of prayer)

⁸ See: Mālik, *al-Muwatṭā'* Book 4 'forgetfulness in prayer'

10. Enjoining the good, forbidding the evil

The following verses are where Allah answered Musa peace be upon him when he apologised for his people and asked for forgiveness and tolerance after being afflicted with the deadly shock upon the mountain. Allah blessed be His names states:

Grant us good things in this world and in the life to come. We turn to You.'

Allah said, 'I bring My punishment on whoever I will, but My mercy encompasses all things. I shall ordain My mercy for those who are conscious of Allah and pay the prescribed alms; who believe in Our Revelations; who follow the Messenger - the unlettered Prophet they find described in the Torah that is with them, and in the Gospel - who commands them to do right and forbids them to do wrong, who makes good things lawful to them and bad things unlawful, and relieves them of their burdens, and the iron collars that were on them. So it is those who believe him, honour and help him, and who follow the light which has been sent down with him, who will succeed.'

Say [Muhammad], 'People, I am the Messenger of Allah to you all, from Him who has control over the heavens and the earth. There is no Allah but Him; He gives life and death, so believe in Allah and His Messenger, the unlettered prophet who believes in Allah and His words, and follow him so that you may find guidance.'¹

¹ Qur'ān 7: 156/158. With the size of the quotation, the Arabic text has been omitted.

The verses are considered as a glad tiding regarding of the advent of the unlettered Prophet Muḥammad peace and blessings be upon him who is equal in rank to Musa, if not higher; whom Allah will send to the people of Israel (and others) from among their brethren (i.e. the descendent of Ismā'il the brother of Ishāq who is the grandfather of the people of Israel) which is still preserved in the Book of Deuteronomy (book 18), one of the books of the Torah. It has been as preserved by divine power from distortion, perversion and forgery to which most former divine books were subject. Verses 15 to 21 are here presented in full:

15. *The Lord thy God will raise up unto thee a Prophet from the midst of thee, of thy brethren, like unto me; unto him ye shall hearken;*
16. *According to all that thou desires of the Lord thy God in Horeb in the day of the assembly, saying, Let me not hear again the voice of the Lord my God, neither let me see this great fire any more, that I die not.*
17. *And the Lord said unto me, They have well-spoken that which they have spoken.*
18. *I will raise them up a Prophet from among their brethren, like unto thee, and will put my words in his mouth; and he shall speak unto them all that I shall command him.*
19. *And it shall come to pass, that whosoever will not hearken unto my words which he shall speak in my name, I will require it of him.*
20. *But the Prophet, who shall presume to speak a word in my name, which I have not commanded him to speak, or that shall speak in the name of other gods, even that Prophet shall die.*
21. *And if thou say in your heart, How shall we know the word which the Lord has not spoken?*
22. *When a Prophet speaks in the name of the Lord, if the thing follows not, nor come to pass, that is the thing which the Lord has not spoken, but the prophet has spoken it presumptuously: thou shalt not be afraid of him.*

One should note how Musa peace be upon him hoped that Allah bestowed upon Israel a Prophet like him from amongst themselves, as in verse 15 above where he says: *'The Lord thy God will raise up unto thee a Prophet from the midst of thee, of thy brethren, like unto me; unto him ye shall hearken.'* But

the text further goes on to say, as in verse 18 where Allah said: *'I will raise them up a Prophet from among their brethren, like unto thee, and will put my words in his mouth; and he shall speak unto them all that I shall command him,'* emphasis being placed upon the Prophet being from among their brethren and not from among themselves!

Returning to the Prophecy outlined in Deuteronomy, we have in this great final sealed revelation an explicit verse where Allah has given his final unlettered Prophet peace and blessings be upon him a distinctive quality in that he *'enjoins upon them good and forbids them evil.'* That is, the Prophet peace and blessings be upon him prohibits *all evil* regardless of its genus or type. It is therefore necessary that the Prophet peace and blessings be upon him prohibits decisively *any* evil that he sees or that he is informed about whether by means of words or through clear gestures. He may prohibit an evil by virtue of a clearly obvious action denoting prohibition. If the Prophet peace and blessings be upon him approves of a deed, this means that it is not evil nor prohibited. He may then identify the deed as disliked, or purely permissible, desirable or an obligation. This identification is an additional classification of what is already approved of. The deed would therefore definitely not be designated as prohibited. Thus we know for sure that the Prophet peace and blessings be upon him does not approve of an evil or approve of prohibited deeds and that he acknowledges nothing but true good deeds. Otherwise, the statement of Allah would be false and his promise would be fake – Exalted is he above all of that. Allah Blessed and Exalted further informs us in another verse:

يَا أَيُّهَا الرُّسُلُ بَلِّغْ مَا أُنْزِلَ إِلَيْكَ مِنْ رَبِّكَ وَإِنْ لَمْ تَفْعَلْ فَمَا بَلَّغْتَ رِسَالَتَهُ وَاللَّهُ يَعْصِمُكَ مِنَ النَّاسِ إِنَّ اللَّهَ لَا يَهْدِي الْقَوْمَ الْكَافِرِينَ

*O Messenger, proclaim everything that has been sent down to you from your Lord - if you do not, then you will not have communicated His message - and Allah will protect you from the people. Allah does not guide those who defy Him.*²

It has been proven that he peace and blessings be upon him dismissed all centurions and was not guarded after this verse was revealed. He had no

² Qur'ān 5: 67

porters till he died and met His Lord. Allah protected him from being harmed by anyone. Hence there cannot be a charge that he peace and blessings be upon him could not speak against all evil for fear of being harmed. Further elaboration upon this point is provided in a number of *ahādith* and accompanying narratives, which we will consider in turn.

The ahādith connected to this topic

As is reported in *al-Mustadrak* of al-Ḥākim upon the authority of ‘Aisha mother of the believers, may Allah be pleased with her:

حدثنا عبد الصمد بن علي البزاز ببغداد أنبا أحمد بن محمد بن عيسى القاضي حدثنا مسلم بن إبراهيم حدثنا الحارث بن عبيد حدثنا معبد الجريري عن عبد الله بن شقيق عن عائشة رضي الله تعالى عنها، قالت كان النبي صلى الله عليه وسلم يحرس حتى نزلت هذه الآية {وَاللَّهُ يَعْصِمُكَ مِنَ النَّاسِ}، فأخرج النبي، صلى الله عليه وسلم رأسه من القبة فقال لهم أيها الناس انصرفوا فقد عصمني الله

‘Abd al-Ṣammad ibn Ali al-Bazzāz narrated to us in Baghdad, Aḥmad ibn Muḥammad ibn Esa al-Qāḍi reports, Muslim ibn Ibrāhīm narrated to us al-Ḥārith ibn ‘Ubayd narrated to us Ma’bad al-Juriri narrated to us from Abdullah ibn Shaqiq from ‘Aisha, may Allah be pleased with her, she said: the Prophet peace and blessings be upon him was being guarded until this verse was revealed: *Allah will protect you from the people*; so the Prophet peace and blessings be upon him came out from the room and said: *O you people! Go, for Allah shall protect me.*³

Commenting thereafter, al-Ḥākim said: ‘This *ḥadith* has a *Ṣaḥīḥ isnād*, but they (al-Bukhārī and Muslim) did not record it.’ Concurring in *al-Talkees* al-Dhahaby said it is *Ṣaḥīḥ*. Indeed, it is as they said, particularly given the various channels from which it comes. In the *Tafsir* of the grand Imām al-Ṭabari he has the following narration which has an authentic channel, though it is *mursal*, only reaching to Abdullah ibn Shaqeeq:

³ al-Ḥākim *al-Mustadrak* [Vol. 3, no. 3221]. Among the additional references included for this are *Sunan* al-Tirmidhi [Vol. 5, no. 3046] al-Bayhaqy *Sunan al-Kubra* [Vol. 9, no. 17508] and *Tafsir* Ibn Abi Ḥātim [Vol. 5, no. 6650].

حدثني يعقوب بن إبراهيم وابن وكيع قالوا حدثنا ابن علية عن الجريري عن عبد الله بن شقيق أن رسول الله صلى الله عليه وسلم كان يعتقه ناساً من أصحابه فلما نزلت {والله يعصمك من الناس} خرج فقال يا أيها الناس، الحقوا بملاحقكم فإن الله قد عصمني من الناس

Ya’qub ibn Ibrāhīm and Ibn Waki’ narrated to me, they said Ibn ‘Ulayah narrated to us from al-Jariri from Abdullah ibn Shaqeeq that the Messenger of Allah peace and blessings be upon him was protected from people by his Companions. Then the verse was revealed - *Allah will protect you from the people*. He came out and said: ‘*O people! Leave, for Allah has protected me from the people.*’⁴

I would submit that the words given by Abdullah ibn Shaqeeq in this narration of the incident are the wording that has been reported from ‘Aisha may Allah be pleased with her. Her narration as outlined previously gives the exact wording and context. The narrative coming via Sa’eed ibn Iyās provide two independent versions of the event. That perturbed some scholars, as they thought it a troublesome matter in the *isnād*; for that reason Imām al-Tirmidhi was astonished that the *ḥadith* was *marfu’* and *mutaṣṣil*. He said: ‘This *ḥadith* is strange and reported by some this *ḥadith* from al-Juriri from Ibn Shaqeeq who said the Prophet peace be upon him did not mention about the guard as did ‘Aisha.’ It is not so, but this report is an additional report and it is found in the *Tārikh Madīna* (History of Medina) in *mursal* form with an authentic *isnād* up to that point - Ḥabbān ibn Hilāl narrated to us he said ‘Abd al-‘Alā (Ibn ‘Abd al-‘Alā) al-Sāmi narrated to us he said Sa’eed al-Juriri narrated to us,’ till the end.

It has also been reported in the *Tafsir* of Imām al-Ṭabari in *mursal* form, *ḥasan Ṣaḥīḥ* by *isnād* to the narrator Sa’eed ibn Jubayr:

حدثنا هناد وابن وكيع قالوا حدثنا جرير عن ثعلبة عن جعفر عن سعيد بن جبير قال لما نزلت {يا أيها الرسول بلغ ما أنزل إليك من ربك وإن لم تفعل فما بلغت رسالته والله يعصمك من الناس} قال رسول الله صلى الله عليه وسلم لا تحرسوني إن ربي قد عصمني

Hannād and Ibn Waki’ narrated to us, they said Jarir narrated to us from Thalabah from Ja’far from Sa’eed ibn Jubayr he said when the verse was revealed: *O Messenger, proclaim everything that has been sent down to you from your Lord - if you do not, then you will not have*

⁴ *Tafsir* al-Ṭabari [Vol. 8, p. 569]

*communicated His message - and Allah will protect you from the people; the Messenger of Allah, peace and blessings be upon him said: Don't safeguard me, verily Allah will protect me.*⁵

There is also another *mursal* narration with an authentic *isnād* to Muḥammad ibn Ka'b al-Quraḥi found in *Tārikh Medina*:

حدثنا عثمان بن عبد الوهاب قال حدثنا مروان بن معاوية عن عاصم بن محمد بن زيد عن محمد بن كعب القرظي قال قال أمر رسول الله صلى الله عليه وسلم بالحرس فنزلت {والله يعصمك من الناس} فترك الحرس

Uthmān ibn 'Abd al-Wahhāb narrated to us he said Marwān ibn Mu'āwiya narrated to us from 'Aāsim ibn Muḥammad ibn Zayd from Muḥammad ibn Ka'b al-Quraḥi he said: The Messenger of Allah, peace and blessings be upon him, ordered the (release) of the guard when the verse was revealed: *Allah will protect you from the people*, (thereafter) the guard left.⁶

Another narration can also be found in the *Muj'am al-Kabir* of al-Ṭabarāni:

حدثنا يعقوب بن غيلان، حدثنا أبو كريب، حدثنا عبد الحميد الجاني، عن النضر أبي عمر، عن عكرمة، عن ابن عباس، قال: كان رسول الله، صلى الله عليه وسلم، يُحرس، فكان يُرسل معه عمه (أبو طالب) كل يوم رجلاً من بني هاشم يحرسونه، حتى نزلت هذه الآية {يا أيها الرسول بلغ ما أنزل إليك من ربك}، إلى قوله: {والله يعصمك من الناس}، فأراد عمه أن يرسل معه من يحرسه، فقال: يا عم إن الله عز وجل قد عصمني من الجن والإنس

Ya'qub ibn Ghaylān narrated to us Abu Kureeb narrated to us 'Abdul-Ḥameed al-Ḥimānni narrated to us from al-Naḍr Abi Umar from 'Ikrimah from Ibn 'Abbās he said, the Messenger of Allah, peace and blessings be upon him was guarded by his uncle (Abu Ṭālib) who would send men every day to safeguard him. Until that is, the verse was revealed: '*O Messenger, proclaim everything that has been sent down to you from your Lord,*' until '*Allah will protect you from the people.*' So he wanted his uncle to send him his guard thereafter he said: *O my uncle, verily Allah the Mighty and Sublime will protect me from men and jinn.*⁷

⁵ Ibid.

⁶ *Tārikh Medina* [Vol. 1, p. 301]

⁷ al-Ṭabarāni *Mu'jam al-Kabir* [Vol. 11, no. 11663]

Here, Abu Ṭālib has been mentioned in the narration however that could be as a result of a slip by the narrator, perhaps by al-Naḍr Abu Umar, given that he is *ḍaef* (weak). It is likely that the origin of the story rests with al-'Abbās or that he has fallen from the channel and sentence 'Then he was also guarded in the city until it was revealed' or even the origin of the order as evidenced by the following narrative:

حدثنا حمد بن محمد بن حمد أبو نصر الكاتب قال حدثنا كردوس بن محمد الواسطي قال حدثنا معلى بن عبد الرحمن عن فضيل بن مرزوق عن عطية العوفي عن أبي سعيد الخدري قال كان العباس عم رسول الله صلى الله عليه وسلم فيمن يحرسه فلما نزلت هذه الآية يا أيها الرسول بلغ ما أنزل إليك من ربك وإن لم تفعل فما بلغت رسالته والله يعصمك من الناس ترك رسول الله صلى الله عليه وسلم، الحرس

Ḥamd ibn Muḥammad ibn Ḥamd Abu Naṣr the scribe narrated to us, he said Kurdoos ibn Muḥammad al-Wāsiṭi narrated to us he said Mu'ala ibn 'Abdar-Raḥman narrated to us from Fuḍeel ibn Marzooq from 'Aṭiya al-Awfi from Abu Sa'eed al-Khudri, he said al-'Abbās the uncle of the Messenger of Allah peace and blessings be upon him, was the one who guarded him when this verse was revealed: *Allah will protect you from the people*, (thereafter) the guard left.⁸

Of this, Imām al-Ṭabarāni said 'It's not reported from Fuḍeel except by al-Mu'ala and not from Abu Sa'eed al-Khudri except by this *isnād*.' If we accept and bear witness that Muḥammad is the Messenger of Allah established upon truth and honesty then it is necessary that he is *not* silent in the face of any act or matter that is prohibited, nor does he leave that which is obligatory. There is no denying these matters. What would make him cease to object to an evil deed or approve of a prohibited one, knowing that Allah has rendered him infallible and has protected him from all creatures, so that none can hurt him? Most people are prevented from obeying what is true, only if they are afraid of being hurt? For that reason, our knowledge and faith increased thereby with certainty that he is not silent in the face of a prohibited act, nor does he leave an obligation.

⁸ Cited in two collections of al-Ṭabarāni: *Mu'jam al-Awsaṭ* [Vol. 4, no. 3510] and *Mu'jam al-Ṣagheer* [Vol. 1, no. 418].

It is necessary to hasten to clarify that it is only silence upon the ‘acts’ namely any declaratory voluntary acts which may be designated as prohibited. This is nothing to do with his silence in relation to sayings or utterances that it is impossible to sense and reason be described presently prohibited, but can be described only as a truth, sincerity or lies and falsehood. It is not in a similar manner to silence related to approvals and may not be described as honesty or lies as will be established in its proper place.

11. The *Sunnah* is law by itself

There are many rulings that have been established solely by the Prophetic *Sunnah*. They are referred to in the glorious Qur’ān in other contexts in which they are stated as being part of Allah’s law and that they are as binding as the rulings stipulated in the Qur’ān. The following are only a few examples of such rulings.

Establishment of the first Qibla

It is known by necessity and historical fact that the first *Qibla* which was faced towards was that at Jerusalem, *Bayt al-Maqdis*. Significantly though, there is not a single verse in the Qur’ān which details this original command. *Bayt al-Maqdis* was a *Qibla* for all Muslims established solely by virtue of the command rendered from the Prophet peace and blessings be upon him. As it was obligatory to face it in prayer Allah mentioned it within the context of its abrogation, where he ordained facing *Masjid al-Haram* instead. The verse makes explicit that the first *Qibla* was being made by Allah. Allah tells us:

وَكَذَلِكَ جَعَلْنَاكُمْ أُمَّةً وَسَطًا لِتَكُونُوا شُهَدَاءَ عَلَى النَّاسِ وَيَكُونَ الرَّسُولُ عَلَيْكُمْ شَهِيدًا وَمَا جَعَلْنَا الْقِبْلَةَ الَّتِي كُنْتُمْ عَلَيْهَا إِلَّا لِنَعْلَمَ مَنْ يَتَّبِعِ الرَّسُولَ مِمَّنْ يَنْقَلِبُ عَلَى عَقْبَيْهِ وَإِنْ كَانَتْ لَكَبِيرَةً إِلَّا عَلَى الَّذِينَ هَدَى اللَّهُ وَمَا كَانَ اللَّهُ لِيُضِلَّ إِيْمَانَكُمْ إِنَّ اللَّهَ بِالنَّاسِ لَرَّءُوفٌ رَحِيمٌ

We have made you [believers] into a just community, so that you may bear witness [to the truth] before others and so that the Messenger may bear witness [to it] before you. We only made the direction the one you used to face [Prophet] in order to distinguish those who follow the Messenger from those

who turn on their heels: that test was hard, except for those Allah has guided. Allah would never let your faith go to waste [believers], for Allah is most compassionate and most merciful towards people.¹

The rebuke

Allah rebuked the believers for not paying heed to the Prophet peace and blessings be upon him when he was about to stand to deliver the Friday sermon. This strong reprimand indicated that the believers actions were not permissible, for if it were allowed, they would not have been reprimanded. This means that they must have committed something prohibited. As Allah had not mentioned in the Qur'ān anything about the Friday sermon before that, rendering it obligatory or desirable was by virtue of Prophetic tradition not by virtue of a Qur'ānic text. It is true that the Qur'ān did mention it as an obligatory deed in the same context of reprimanding the believers, but the former definitely came prior to the revelation of the latter.

It is also known that the *Adthān* was used to call people for Friday prayers as well as other congregational prayers prior to the revelation of such verses. Those verses refer to the *Adthān* as the established legal way of calling people to prayer. So whenever the call to Friday prayer is heard, it is obligatory on people to rally to perform it and leave any other business as expressed in the following verse:

يَا أَيُّهَا الَّذِينَ آمَنُوا إِذَا نُودِيَ لِلصَّلَاةِ مِنْ يَوْمِ الْجُمُعَةِ فَاسْعَوْا إِلَىٰ ذِكْرِ اللَّهِ وَذَرُوا الْبَيْعَ ذَلِكُمْ خَيْرٌ لَّكُمْ إِنْ كُنْتُمْ تَعْلَمُونَ ، فَإِذَا قُضِيَتِ الصَّلَاةُ فَانْتَشِرُوا فِي الْأَرْضِ وَابْتَغُوا مِنْ فَضْلِ اللَّهِ وَاذْكُرُوا اللَّهَ كَثِيرًا لَّعَلَّكُمْ تُفْلِحُونَ ، وَإِذَا رَأَوْا تِجَارَةً أَوْ لَهْوًا انفَضُّوا إِلَيْهَا وَتَرَكُوكَ قَائِمًا قُلْ مَا عِنْدَ اللَّهِ خَيْرٌ مِنَ اللَّهْوِ وَمِنَ التِّجَارَةِ وَاللَّهُ خَيْرُ الرَّازِقِينَ

Believers! When the call to prayer is made on the day of congregation, hurry towards the reminder of Allah and leave off your trading - that is better for you, if only you knew - then when the prayer has ended, disperse in the land and seek out Allah's bounty. Remember Allah often so that you may prosper. Yet they scatter towards trade or entertainment whenever they observe it, and leave you [Prophet] standing there. Say, 'Allah's gift is better than any entertainment or trade: Allah is the best provider.'²

¹ Qur'ān 2: 143

² Qur'ān 62: 9/11

Battle of Uhud

After the crisis that befell the Muslim army at the battle of *Uhud* and the withdrawal of the Qurayshi army, Abu Sufyān, the leader of Quraysh, regretted that he withdrew before completely vanquishing the army against him. So he pondered upon attacking them again to root them out. After this crisis the Prophet (peace be upon him) called out all Muslims and despite their injuries and losses, they managed to chase and fight the Qurayshi army covering a considerable distance. The news about their advancement reached Abu Sufyān, whose heart was immediately filled with terror that he preferred to flee back to Mecca. Consequently, the Muslims returned safe without fighting or suffering any new injuries. Allah commended those who responded to the Prophetic summons despite the injuries they suffered. Concerning this incident he said:

يَسْتَبْشِرُونَ بِنِعْمَةٍ مِنَ اللَّهِ وَفَضْلٍ وَأَنَّ اللَّهَ لَا يُضِيعُ أَجْرَ الْمُؤْمِنِينَ، الَّذِينَ اسْتَجَابُوا لِلَّهِ وَالرَّسُولِ مِنْ بَعْدِ مَا أَصَابَهُمُ الْقَرْحُ لِلَّذِينَ أَحْسَنُوا مِنْهُمْ وَاتَّقُوا أَجْرٌ عَظِيمٌ

[Rejoicing] in Allah's blessing and favour, and that Allah will not let the reward of the believers be lost. Those who responded to Allah and the Messenger after suffering defeat, who do good and remain conscious of Allah, will have a great reward.³

Thus, some were deemed responsive to Allah and to the Messenger peace and blessings be upon him, although summoning them was made by virtue of the Prophet's decision without a single letter of Qur'ānic text being revealed to him.

Distribution of Zakāt

When some of the hypocrites resented the way the Prophet peace and blessings be upon him distributed the *Zakāt* they slandered, backbit and censured the Prophet peace and blessings be upon him. Whereupon, Allah disclosed what they did and informs us in the Book of the following:

³ Qur'ān 3: 171/172

وَمِنْهُمْ مَّن يَلْمِزُكَ فِي الصَّدَقَاتِ فَإِنْ أُعْطُوا مِنْهَا رَضُوا وَإِنْ لَمْ يُعْطُوا مِنْهَا إِذَا هُمْ يَسْخَطُونَ، وَلَوْ أَنَّهُمْ رَضُوا مَا آتَاهُمُ اللَّهُ وَرَسُولُهُ وَقَالُوا حَسْبُنَا اللَّهُ سَيُؤْتِينَا اللَّهُ مِنْ فَضْلِهِ وَرَسُولُهُ إِنَّا إِلَى اللَّهِ رَاغِبُونَ

*Some of them find fault with you [Prophet] regarding the distribution of alms: they are content if they are given a share, but angry if not. If only they would be content with what Allah and His Messenger have given them, and say, 'Allah is enough for us - He will give us some of His bounty and so will His Messenger - to Allah alone we turn in hope.'*⁴

The verse explicitly states that what the Prophet peace and blessings be upon him distributed to them, whether they received anything or not, was their legitimate right, just as it was the will of Allah the exalted and his gift to them. That is why He said: *'what Allah and his Messenger gave them.'* A distribution given by the Prophet is also a distribution of Allah, although we know by necessity that no Qur'ānic verse had been previously revealed in this regard. Therefore this gift was based on a revelation other than that of the Qur'ān.

The 'Secret Talk'

Allah the Exalted has said:

وَإِذْ أَسَرَّ النَّبِيُّ إِلَىٰ بَعْضِ أَزْوَاجِهِ حَدِيثًا فَلَمَّا نَبَّأَتْ بِهِ وَأَظْهَرَهُ اللَّهُ عَلَيْهِ عَرَفَ بَعْضُهُ وَأَعْرِضَ عَنْ بَعْضٍ فَلَمَّا نَبَّأَهَا بِهِ قَالَتْ مَنْ أَنْبَاكَ هَذَا قَالَ نَبَّأَنِيَ الْعَلِيمُ الْخَبِيرُ

*The Prophet told something in confidence to one of his wives. When she disclosed it [to another wife] and God made this known to him, he confirmed part of it, keeping the rest to himself. When he confronted her with what she had done, she asked, 'Who told you about this?' and he replied, 'The All Knowing, the All Aware told me.'*⁵

The Qur'ān though does not contain a single letter of this secret private talk, about which Allah informed his Prophet peace and blessings be upon him. Therefore, this provides a conclusive proof that he peace and blessings be upon him had received a revelation from Allah other than that of the Qur'ān even in this private situation.

⁴ Qur'ān 9: 58/59

⁵ Qur'ān 66: 3

Early Prayers

Allah blessed and sanctified are His names tells us:

أَرَأَيْتَ الَّذِي يَنْهَى ، عَبْدًا إِذَا صَلَّى، أَرَأَيْتَ إِنْ كَانَ عَلَى الْهُدَى

*Have you seen the man who forbids [Our] servant to pray? Have you seen whether he is rightly guided.*⁶

These are some of the earliest verses revealed in Mecca. Therein it contains conclusive evidence that the Prophet peace and blessings be upon him was praying in a manner of which a disbelieving leader of the Quraysh disapproved of. By necessity this shows that prayer, the *Ṣalāh* was already legislated, whether as an obligatory or a recommend act. It was performed in a manner similar to that of the prayers we perform today, or rather in an abrogated manner prior to the revelation above of these verses, which were among the earliest verses revealed. None of the verses prior to this include any reference to prayers. Therefore, *Ṣalāh* the pillar of the *Deen* was initially legislated by virtue of the Prophetic command, i.e. a revelation other than that of an explicit verse in the Qur'ān. After that, Qur'ānic verses and *ḥadith* recurred stressing that prayers are mandatory and highly glorified, describing its prerequisites and completing its rites.

Pre-Badr Skirmishes

Before the major battle of Badr, Allah commanded his Messenger peace and blessings be upon him to send out troops to encounter the enemy, though some believers strongly resented the idea and feared the consequences of fighting the powerful tribe of Quraysh, the leaders and 'bankers' of Arabia. It was considered the strongest polity in the Arabian Peninsula at that time. Muslims feared fighting them especially after hearing the news about the marching of their army. Then Allah granted them a promise of either seizing the caravans of the Quraysh or vanquishing their army. This came through a revelation other than the Qur'ān, which does not contain a single word of it. Nevertheless, Allah recorded it in the Qur'ān *after* the end of the battle, as Allah whose attributes are sanctified says:

⁶ Qur'ān 96: 9/11

كَمَا أَخْرَجَكَ رَبُّكَ مِنْ بَيْتِكَ بِالْحَقِّ وَإِنَّ فَرِيقًا مِنَ الْمُؤْمِنِينَ لَكَارِهُونَ ، يُجَادِلُونَكَ فِي الْحَقِّ بَعْدَمَا تَبَيَّنَ كَأَنَّمَا يُسَاقُونَ إِلَى الْمَوْتِ وَهُمْ يَنْظُرُونَ ، وَإِذْ يَعِدُكُمُ اللَّهُ إِحْدَى الطَّائِفَتَيْنِ أَنَّهَا لَكُمْ وَتَوَدُّونَ أَنَّ غَيْرَ ذَاتِ الشَّوْكَةِ تَكُونُ لَكُمْ وَيُرِيدُ اللَّهُ أَنْ يُحَقِّقَ الْحَقَّ بِكَلِمَاتِهِ وَيَقْطَعَ دَابِرَ الْكَافِرِينَ

For it was your Lord who made you [Prophet] venture from your home for a true purpose—though a group of the believers disliked it and argued with you about the truth after it had been made clear, as if they were being driven towards a death they could see with their own eyes. Remember how Allah promised you that one of the two enemy groups would fall to you: you wanted the unarmed group to be yours, but it was Allah's will to establish the truth according to His Word and to finish off the disbelievers.⁷

The Command to Fight

The explicit command not to fight was authorised by the Prophet peace and blessings be upon him to his Companions while still in Mecca. After migration to Medina, this order was rescinded, with the authorisation being explicitly given to fight. As is chronicled in the following verse:

أَلَمْ تَرَ إِلَى الَّذِينَ قِيلَ لَهُمْ كُفُّوا أَيْدِيَكُمْ وَأَقِيمُوا الصَّلَاةَ وَآتُوا الزَّكَاةَ فَلَمَّا كُتِبَ عَلَيْهِمُ الْقِتَالُ إِذَا فَرِيقٌ مِنْهُمْ يَخْشَوْنَ النَّاسَ كَخَشْيَةِ اللَّهِ أَوْ أَشَدَّ خَشْيَةً وَقَالُوا رَبَّنَا لِمَ كُتِبَ عَلَيْنَا الْقِتَالُ لَوْلَا أَخَّرْتَنَا إِلَى أَجَلٍ قَرِيبٍ قُلْ مَتَاعُ الدُّنْيَا قَلِيلٌ وَالْآخِرَةُ خَيْرٌ لِمَنِ اتَّقَى وَلَا يُظْلَمُونَ فَتِيلًا

[Prophet], do you not see those who were told, 'Restrain yourselves from fighting, perform the prayer, and pay the prescribed alms'? When fighting was ordained for them, some of them feared men as much as, or even more than, they feared Allah, saying, 'Lord, why have You ordained fighting for us? If only You would give us just a little more time.' Say to them, 'Little is the enjoyment in this world, the Hereafter is far better for those who are mindful of Allah: you will not be wronged by as much as the fibre in a date stone.'⁸

One can clearly discern by the necessity of reason and perception from the aforementioned Qur'ānic proofs that have been cited, without recourse to any text from the *Sunnah*, that they prove decisively that the Prophet peace and blessings be upon him is *ma'soom* (infallible) in his conveyance of the divine

⁷ Qur'ān 8: 5/7

⁸ Qur'ān 4: 77

message from Allah. All his sayings, acts and approvals are considered as being an infallible revelation from Allah. Therefore, it is all an infallible revelation emanating from Allah. Revelation should not therefore only be limited to that of the Qur'ān; it also includes that which was revealed to Muḥammad peace and blessings be upon him, namely the Prophetic *Sunnah*, consisting of the total sum of his words, deeds and acknowledgements or approvals. Taken holistically, the *wahy* which is the Qur'ān and the Prophetic *Sunnah* is authoritative and binding. Or expressed in another way, the Prophetic *Sunnah* is not merely a particular revelation from Allah; rather it is a formulated expression of an infallible Prophetic revelation that has come from Allah.

The Qur'ānic text itself is an explicit categorical revelation sent down from Allah upon Muḥammad peace and blessings be upon him; whose recitation is considered as worship and its style inimitable. Greater detail upon this will be outlined in a separate section. Suffice is to say that the Qur'ān is self-contained, nothing being subtracted or entering into it. Alongside it though is the noble Prophetic *Sunnah*, revelation other than the Qur'ān. All of this is affirmed categorically thus to dispute it would render an individual to exit the fold of Islam completely. That the revelation which descended upon Muḥammad peace and blessings be upon him is not only limited to text of the glorious Qur'ān as found between its pages but also includes the Prophetic *Sunnah* of Muḥammad peace and blessings be upon him consisting of the total sum of his words, deeds and acknowledgements or approvals.

In terms of what constitutes or is considered as being 'revelation', *al-wahy*, there is no essential difference between the Qur'ān and the *Sunnah*. Furthermore both are similarly binding and authoritative, as an example Allah the blessed and Exalted says: '*It is no offence to seek some bounty from your Lord*'⁹ relating to the authorisation of trading during the *Hajj* season and where he says: '*You inherit half of what your wives leave, if they have no children*'¹⁰ both verses stipulating decisive rulings valid until the day of judgement. Similarly, the Prophet's statements of '*No bequest must be made*

⁹ Excerpt from Qur'ān 2: 198

¹⁰ Excerpt from Qur'ān 4: 12

to an heir,’ and ‘One-third, yet even one third is too much,’¹¹ outlining the maximum limit to bequeath, are equally binding and authoritative until the day of judgement. Even if the first examples are borne of the Qur’ān, a revelation by wording which can be recited in prayer; the speech from the necessarily-existent ever-living eternal creator, while the latter examples are the reported Prophetic words from Muḥammad peace and blessings be upon him who is mortal and finite, both are deemed as revelation being equally binding and authoritative.

Indeed without the slightest doubt the words of the Qur’ān are far above the speech of the creation, it is protection from every form of misguidance, a shield from every *fitna*, for it is the book of Allah the Majestic:

لَا يَأْتِيهِ الْبَاطِلُ مِنْ بَيْنِ يَدَيْهِ وَلَا مِنْ خَلْفِهِ تَنْزِيلٌ مِّنْ حَكِيمٍ حَمِيدٍ

*Which falsehood cannot touch from any angle, a Revelation sent down from the Wise One, Worthy of All Praise.*¹²

Contained within it is news of what came before us, what will come to pass and the rulings between us all for the present. It contains matters of serious import which are not for jest, providing guidance and other innumerable bounties. We cling to the Qur’ān because it is rope of Allah, the *Dhikr* (reminder) and the *Hikmah* (wisdom); it has manifest light and lays out the steps on the straight path. All of creation has marvelled at it, as Allah details the remarks of the *Jinn* for us:

... إِنَّا سَمِعْنَا قُرْآنًا عَجَبًا، يَهْدِي إِلَى الرُّشْدِ فَآمَنَّا بِهِ وَلَنْ نُشْرِكَ بِرَبِّنَا أَحَدًا

*“We have heard a wondrous Qur’an, that gives guidance to the right path, and we have come to believe it - We shall never set up partners with our Lord.”*¹³

Whoever speaks from it assuredly speaks the truth; by acting upon its rulings, justice will prevail. It is a healing and an intercession; those who stick to it

¹¹ The former, reported in the *Sunan* collections such as Abu Dāwūd, al-Nasā’i, Ibn Mājah, Tirmidhi as well as others. The second, a short excerpt from the *ḥadith* relating to bequeathing one-third for example in a will. It is widely reported and appears in the collections of al-Bukhārī, Muslim, and others.

¹² *Qur’ān* 41: 42

¹³ *Qur’ān* 72: 1/2

shall not fail, nor shall they be swayed or corrupted. Those who recite the Qur’ān are rewarded abundantly given that reward has been promised for each letter read as opposed to each word. It is true indeed that the ever-glorious Qur’ān is of the greatest worth, the most unique sanctity and is of a rank that the *Sunnah* does not reach, particularly given that it is the literal revealed speech of Allah, whose recitation is worship and whose style is inimitable, miraculous in nature. Yet it is an independent issue of whether or not the two types of revelation - the Qur’ān and the *Sunnah* - are qualitatively of the same rank in being authoritative and binding. These two issues are independent of whether or not the Qur’ān can be abrogated by the *Sunnah*. All these different contrasting issues are rationally independent. They should not be confused, otherwise the consequences would be extremely serious, in fact it would involve being misled away from the straight path, which is disbelief – Allah, the exalted and glorious, forbid!

To argue that the Qur’ān is the *only* sent-down revelation from Allah is a grave misnomer. Just as it is to say that the *Sunnah* is not revelation at all, or to be more precise - that the Prophetic expression is not borne of an infallible revelation from Allah and that it is not considered as a binding authority. Such a view and other similar statements are outright *kufr*. Holding such views as doctrinal beliefs would result in a believer exiting the fold of Islam completely, unless that is, it was borne of complete ignorance, under compulsion or with any of the other impediments to the pronouncement of disbelief.

12. The Hikmah and Dhikr are Revelation

Textually, Allah revealed to his Prophet peace and blessings be upon him the wisdom - '*hikmah*.' He says:

وَأَنْزَلَ اللَّهُ عَلَيْكَ الْكِتَابَ وَالْحِكْمَةَ وَعَلَّمَكَ مَا لَمْ تَكُن تَعْلَمُ وَكَانَ فَضْلُ اللَّهِ عَلَيْكَ عَظِيمًا

*Allah has sent down the Scripture and Wisdom to you, and taught you what you did not know. Allah's bounty to you is great indeed.*¹

From this, three matters arise. Allah revealed the book to His Prophet; contained within it is *hikmah* and abundant knowledge, all of which he learned. Here the meaning intended is that of the text of the Qur'ān at the very least. And he has also revealed to him the '*hikmah*', which is something far broader than the Qur'ānic texts. It glitters the concepts that were penned for the Prophetic statements, actions and approvals or acknowledgements, which he was well versed in. Inflection and '*hikmah*' upon the book from each pathway on all parts, be it general or specific. It is not the case that the '*hikmah*' is the book because to inflect upon the thing is to designate its essence and place and it is not that according to reason, sense or language. Knowledge given by the Lord above regarding a great many things which no one had known, the most important is the book – the Qur'ān, the *hikmah* as well as other matters like some tribal dialects, the logic of some of the animals, such as when the camel complained of its owner and many other things which

¹ Qur'ān 4: 113

no one knows except Allah the Exalted. The *hikmah* mentioned in the verse definitely relates to the revealed revelation and it is not the Qur'ān. By necessity it relates to the noble Prophetic *Sunnah* as eloquently evidenced by the next following verses which appear in *Surah al-Ṭalāq*:

أَعَدَّ اللَّهُ لَهُمْ عَذَابًا شَدِيدًا فَاتَّقُوا اللَّهَ يَا أُولِي الْأَلْبَابِ الَّذِينَ آمَنُوا قَدْ أَنْزَلَ اللَّهُ إِلَيْكُمْ ذِكْرًا رَسُولًا يَتْلُو عَلَيْكُمْ آيَاتِ اللَّهِ مَبِيتَاتٍ لِيُخْرِجَ الَّذِينَ آمَنُوا وَعَمِلُوا الصَّالِحَاتِ مِنَ الظُّلُمَاتِ إِلَى النُّورِ وَمَنْ يُؤْمِن بِاللَّهِ وَيَعْمَلْ صَالِحًا يُدْخِلْهُ جَنَّاتٍ تَجْرِي مِنْ تَحْتِهَا الْأَنْهَارُ خَالِدِينَ فِيهَا أَبَدًا قَدْ أَحْسَنَ اللَّهُ لَهُ رِزْقًا

*Allah has prepared a severe torment for them. So, you who have understanding, you who believe, beware of Allah. He has sent you the Qur'an and a Messenger - reciting to you Allah's revelations that make things clear - to bring those who believe and do righteous deeds from darkness into light. Allah will admit those who believe in Him and do righteous deeds into Gardens graced with flowing streams, where they will remain forever - He has made good provision for them.*²

More will be said about this blessed verse, by the grace and will of Allah, when the subject turns to that of the *Dhikr*. Allah the Exalted also says:

ذَلِكَ مِمَّا أَوْحَى إِلَيْكَ رَبُّكَ مِنَ الْحِكْمَةِ وَلَا تَجْعَلْ مَعَ اللَّهِ إِلَهًا آخَرَ فَتُلْقَى فِي جَهَنَّمَ مَلُومًا مَذْهُورًا

*[Prophet], this is some of the wisdom your Lord has revealed to you: do not set up another god beside Allah, or you will be thrown into Hell, blamed and rejected.*³

The text conclusively supports that of the etiquette and comprehensive rulings mentioned before this verse, some of the *hikmah* as revealed and sent down by Allah through inspiration to Abul'Qāsim Muḥammad ibn Abdullah seal of all the Prophets peace and blessings be upon him. It is from the *hikmah* and it is as of any book. It is a conclusive indication that some of the book is from *al-hikmah*, but the whole of the book is considered as being *hikmah* / wisdom by the legitimate necessity of perception and reason. In another verse Allah says:

الر تِلْكَ آيَاتُ الْكِتَابِ الْحَكِيمِ

² Qur'ān 65: 10/11

³ Qur'ān 17: 39

*Alif Lam Ra; These are the verses of the wise Book.*⁴

Allah stresses in the next verse:

يس، وَالْقُرْآنَ الْحَكِيمَ

*Ya Seen; by the Qur'an full of wisdom.*⁵

And that the original / mother of the protected book being full of wisdom:

وَأِنَّهُ فِي أُمِّ الْكِتَابِ لَدَيْنَا لَعَلِّي حَكِيمٌ

*It is truly exalted in the Source of Scripture kept with Us, and full of wisdom.*⁶

If the totality of the book is considered being from the revealed *hikmah* then the necessity of perception and reason show that will be the revealed *hikmah* upon Muḥammad is only the text of the glorious Qur'ān. As for what we mentioned previously above, the glorious Qur'ān in totality is from the revealed wisdom sent to Muḥammad and it is some of the revealed *hikmah* with certainty. Not all the *hikmah* is revealed upon Muḥammad; here other things from *al-hikmah* have been revealed other than the text of the Qur'ān. Allah blessed be His names says:

وَإِذَا طَلَقْتُمُ النِّسَاءَ فَلَهُنَّ أَجَلُهُنَّ فَأَمْسِكُوهُنَّ بِمَعْرُوفٍ أَوْ سَرَّحُوهُنَّ بِمَعْرُوفٍ وَلَا تُمْسِكُوهُنَّ ضِرَارًا لِّتَعْتَدُوا وَمَنْ يَفْعَلْ ذَلِكَ فَقَدْ ظَلَمَ نَفْسَهُ وَلَا تَتَّخِذُوا آيَاتِ اللَّهِ هُزُوعًا وَادْكُرُوا نِعْمَتَ اللَّهِ عَلَيْكُمْ وَمَا أَنْزَلَ عَلَيْكُمْ مِنَ الْكِتَابِ وَالْحِكْمَةِ يَعِظُكُمْ بِهِ وَاتَّقُوا اللَّهَ وَاعْلَمُوا أَنَّ اللَّهَ بِكُلِّ شَيْءٍ عَلِيمٌ

*When you divorce women and they have reached their set time, then either keep or release them in a fair manner. Do not hold on to them with intent to harm them and commit aggression: anyone who does this wrongs himself. Do not make a mockery of God's revelations; remember the favour He blessed you with, and the Scripture and wisdom He sent to teach you. Be mindful of Allah and know that He has full knowledge of everything.*⁷

⁴ Qur'ān 10: 1

⁵ Qur'ān 36: 1/2

⁶ Qur'ān 43: 4

⁷ Qur'ān 2: 231

The revelation did not descend randomly upon all with immediacy. Rather, it was revealed to Muḥammad peace and blessings be upon him firstly, then we took it from him, as if it were sent upon us directly. It is all totally binding in nature, the book, the *hikmah*, namely: the Qur'ān and the *Sunnah*.

The command of Allah to the mothers of the believers was to remain within their homes; to partake in the *hijāb* and to attend to the study, memorisation and understanding of the verses of Allah. This is in addition to attending to the memorisation of the *hikmah* which they had learned from the Prophet peace and blessings be upon him, as Allah says in the verse:

وَاذْكُرْنَ مَا يُتْلَى فِي بُيُوتِكُنَّ مِنْ آيَاتِ اللَّهِ وَالْحِكْمَةِ إِنَّ اللَّهَ كَانَ لَطِيفًا خَبِيرًا

*Remember what is recited in your houses of Allah's revelations and wisdom, for Allah is all subtle, all aware.*⁸

Allah has indeed blessed the believers as He outlines in next three verses and says:

لَقَدْ مَنَّ اللَّهُ عَلَى الْمُؤْمِنِينَ إِذْ بَعَثَ فِيهِمْ رَسُولًا مِنْ أَنْفُسِهِمْ يَتْلُو عَلَيْهِمْ آيَاتِهِ وَيُزَكِّيهِمْ وَيُعَلِّمُهُمُ الْكِتَابَ وَالْحِكْمَةَ وَإِنْ كَانُوا مِنْ قَبْلُ لَفِي ضَلَالٍ مُبِينٍ

*Allah has been truly gracious to the believers in sending them a Messenger from among their own, to recite His revelations to them, to make them grow in purity, and to teach them the Scripture and wisdom - before that they were clearly astray.*⁹

كَمَا أَرْسَلْنَا فِيكُمْ رَسُولًا مِنْكُمْ يَتْلُو عَلَيْكُمْ آيَاتِنَا وَيُزَكِّيكُمْ وَيُعَلِّمُكُمُ الْكِتَابَ وَالْحِكْمَةَ وَيُعَلِّمُكُم مِمَّا لَمْ تَكُونُوا تَعْلَمُونَ

*Just as We have sent among you a Messenger of your own to recite Our revelations to you, purify you and teach you the Scripture, wisdom, and [other] things you did not know.*¹⁰

هُوَ الَّذِي بَعَثَ فِي الْأُمِّيِّينَ رَسُولًا مِنْهُمْ يَتْلُو عَلَيْهِمْ آيَاتِهِ وَيُزَكِّيهِمْ وَيُعَلِّمُهُمُ الْكِتَابَ وَالْحِكْمَةَ وَإِنْ كَانُوا مِنْ قَبْلُ لَفِي ضَلَالٍ مُبِينٍ

⁸ Qur'ān 33: 34

⁹ Qur'ān 3: 164

¹⁰ Qur'ān 2: 151

*It is He who raised a Messenger, among the people who had no Scripture, to recite His revelations to them, to make them grow spiritually and teach them the Scripture and wisdom - before that they were clearly astray.*¹¹

Furthermore, he also said the following in relation to the response given, following the call of Ibrāhīm and Ismā'il:

رَبَّنَا وَابْعَثْ فِيهِمْ رَسُولًا مِنْهُمْ يَتْلُو عَلَيْهِمْ آيَاتِكَ وَيُعَلِّمُهُمُ الْكِتَابَ وَالْحِكْمَةَ وَيُزَكِّيهِمْ إِنَّكَ أَنْتَ الْعَزِيزُ الْحَكِيمُ
*'Our Lord, make a messenger of their own rise up from among them, to recite Your revelations to them, teach them the Scripture and wisdom, and purify them: You are the Mighty, the Wise.'*¹²

It would be wrong to think of the Prophet peace and blessings be upon him as being as a mere tape recorder or a robotic message carrier, mechanically delivering the signs of Allah. Far greater was his role and mission, for he was a wise sublime educator. He was that teacher for his *Ummah* of the book and the *hikmah*. The intended book here is the glorious Qur'ān. Perhaps it was also intended to make his *Ummah* a literary nation; a nation of astute study, science and advanced research. Given that they were previously in dire ignorance and are now being led by truth. Indeed he peace and blessings be upon him did accomplish that lofty task. The Prophet peace and blessings be upon him was not a new novelty in relation to the Prophets that preceded him, but he is like the previous Prophets in this regard – Allah provided them with books and *hikmah*, for he says:

وَإِذْ أَخَذَ اللَّهُ مِيثَاقَ النَّبِيِّينَ لَمَا آتَيْنَاكُمْ مِنْ كِتَابٍ وَحِكْمَةٍ ثُمَّ جَاءَكُمْ رَسُولٌ مُصَدِّقٌ لِمَا مَعَكُمْ لَتُؤْمِنُنَّ بِهِ وَلَتَنْصُرُنَّهُ قَالَ أَأَقْرَرْتُمْ وَأَخَذْتُمْ عَلَىٰ ذَلِكُمْ إِصْرِي قَالُوا أَقْرَرْنَا قَالَ فَاشْهَدُوا وَأَنَا مَعَكُمْ مِنَ الشَّاهِدِينَ

*Allah took a pledge from the Prophets, saying, 'If, after I have bestowed Scripture and wisdom upon you, a messenger comes confirming what you have been given, you must believe in him and support him. Do you affirm this and accept My pledge as binding on you?' They said, 'We do.' He said, 'Then bear witness and I too will bear witness.'*¹³

¹¹ Qur'ān 62: 2

¹² Qur'ān 2: 129

¹³ Qur'ān 3: 81

In particular the glorious Qur'ān provides further illustration with the example of Esa ibn Maryam peace be upon him and his mother, mentioning similarly of him in several places:

وَاتَّقُوا يَوْمًا لَا تَجْزِي نَفْسٌ عَنْ نَفْسٍ شَيْئًا وَلَا يَقْبَلُ مِنْهَا شَفَاعَةٌ وَلَا يُؤْخَذُ مِنْهَا عَدْلٌ وَلَا هُمْ يُنصَرُونَ

*And be on your guard against a day when one soul shall not avail another in the least, neither shall intercession on its behalf be accepted, nor shall any compensation be taken from it, nor shall they be helped.*¹⁴

إِذْ قَالَ اللَّهُ يَا عِيسَى ابْنُ مَرْيَمَ اذْكُرْ نِعْمَتِي عَلَيْكَ وَعَلَىٰ وَالِدَتِكَ إِذْ أَيَّدْتُكَ بِرُوحِ الْقُدُسِ تُكَلِّمُ النَّاسَ فِي الْمَهْدِ وَكَهْلًا وَإِذْ عَلَّمْتُكَ الْكِتَابَ وَالْحِكْمَةَ وَالتَّوْرَةَ وَالْإِنْجِيلَ وَإِذْ تَخْلُقُ مِنَ الطِّينِ كَهَيْئَةِ الطَّيْرِ بِإِذْنِي فَتَنفُخُ فِيهَا فَتَكُونُ طَيْرًا بِإِذْنِي وَتُبْرِئُ الْأَكْمَةَ وَالْأَبْرَصَ بِإِذْنِي وَإِذْ تُخْرِجُ الْمَوْتَىٰ بِإِذْنِي وَإِذْ كَفَفْتُ بَنِي إِسْرَائِيلَ عَنْكَ إِذْ جِئْتَهُم بِالْبَيِّنَاتِ فَقَالَ الَّذِينَ كَفَرُوا مِنْهُمْ إِنْ هَذَا إِلَّا سِحْرٌ مُبِينٌ

*Then Allah will say, 'Jesus, son of Mary! Remember My favour to you and to your mother: how I strengthened you with the holy spirit, so that you spoke to people in your infancy and as a grown man; how I taught you the Scripture and wisdom, the Torah and the Gospel; how, by My leave, you fashioned the shape of a bird out of clay, breathed into it, and it became, by My leave, a bird; how, by My leave, you healed the blind person and the leper; how, by My leave, you brought the dead back to life; how I restrained the Children of Israel from [harming] you when you brought them clear signs, and those of them who disbelieved said, "This is clearly nothing but sorcery";*¹⁵

Moreover, the example of Ibrāhīm is also illustrative of this:

أَمْ يَحْسُدُونَ النَّاسَ عَلَىٰ مَا آتَاهُمُ اللَّهُ مِنْ فَضْلِهِ فَقَدْ آتَيْنَا آلَ إِبْرَاهِيمَ الْكِتَابَ وَالْحِكْمَةَ وَآتَيْنَاهُمْ مُلْكًا عَظِيمًا
*Do they envy [other] people for the bounty Allah has granted them? We gave the descendants of Abraham the Scripture and wisdom - and We gave them a great Kingdom.*¹⁶

To conclude we may affirm with certainty without suspicion or doubt that there is a revealed revelation other than the text of the glorious Qur'ān. It is the *hikmah* and in particular it is the noble Prophetic *Sunnah*, without any

¹⁴ Qur'ān 3: 48

¹⁵ Qur'ān 5: 110

¹⁶ Qur'ān 4: 54

addition or subtraction. That the *ḥikmah* is also a binding revelation has been set forth with decisive certain proofs, just like the glorious Qur’ān.

13. The meaning of the word ‘*Dhikr*’

The word formulation [ذَكَرَ] ‘*dh/ka/ra*’ - appears in the glorious Qur’ān in quite a large number of places and can bear several intended meanings. The first of which is related to ‘the speech about something;’ to talk about something and refer or mention something, that being opposed to neglect and reluctance in that context. Its root is [ذَكَرَ] ‘*dhikr*’ and within it is the saying: ‘You mentioned so-and-so is fine.’ Various Qur’ānic verses are demonstrative of this:

وَقَالَ لِلَّذِي ظَنَّ أَنَّهُ نَاجٍ مِّنْهُمَا اذْكُرْنِي عِنْدَ رَبِّكَ فَأَنَسَاهُ الشَّيْطَانُ ذِكْرَ رَبِّهِ فَلَبِثَ فِي السِّجْنِ بِضْعَ سِنِينَ
*Joseph said to the one he knew would be saved, ‘Mention me to your master,’ but Satan made him forget to do this, and so Joseph remained in prison for a number of years.*¹

وَإِذَا ذَكَرْتَ رَبَّكَ فِي الْقُرْآنِ وَحْدَهُ وَلَّوْا عَلَىٰ أَدْبَارِهِمْ نُفُورًا
*When you mention your Lord in the Qur’an, and Him alone, they turn their backs and run away.*²

قَالُوا تَاللَّهِ تَفْتَأُ تَذْكُرُ يُوَسِّفُ حَتَّىٰ تَكُونَ حَرَضًا أَوْ تَكُونَ مِنَ الْهَالِكِينَ
*They said, ‘By God! You will ruin your health if you do not stop thinking of Joseph, or even die.’*³

¹ Qur’ān 12: 42

² Qur’ān 17: 46

³ Qur’ān 12: 85

قَالُوا سَمِعْنَا فَتًى يَذْكُرُهُمْ يُقَالُ لَهُ إِبْرَاهِيمُ

Some said, ‘We heard a youth called Abraham talking about them.’⁴

وَاذْكُرْ فِي الْكِتَابِ مَرْيَمَ إِذِ اتَّخَذَتْ مِنْ أَهْلِهَا مَكَانًا شَرْقِيًّا

Mention in the book the story of Mary. She withdrew from her family to a place to the east.⁵

قَالَ فَإِنِ اتَّبَعْتَنِي فَلَا تَسْأَلْنِي عَنْ شَيْءٍ حَتَّى أُخْبِتَ لَكَ مِنْهُ ذِكْرًا

The man said, ‘If you follow me then, do not query anything I do before I mention it to you myself.’⁶

وَيَسْأَلُونَكَ عَنِ الْقَرْنَيْنِ قُلْ سَأَتْلُو عَلَيْكُمْ مِنْهُ ذِكْرًا

[Prophet], they ask you about Dhu’l-Qarnayn. Say, ‘I will tell you something about him.’⁷

وَيَقُولُ الَّذِينَ آمَنُوا لَوْلَا نُزِّلَتْ سُورَةٌ فَإِذَا أُنزِلَتْ سُورَةٌ مُحْكَمَةٌ وَذُكِرَ فِيهَا الْقِتَالُ رَأَيْتَ الَّذِينَ فِي قُلُوبِهِمْ مَرَضٌ يَنْظُرُونَ إِلَيْكَ نَظَرَ الْمَغْشِيِّ عَلَيْهِ مِنَ الْمَوْتِ فَأُولَئِكَ لَهُمْ

Those who believe ask why no Surah [about fighting] has been sent down. Yet when a decisive sura [that mentions fighting] is sent down, you can see the sick at heart looking at you [Prophet] and visibly fainting at the prospect of death - better for them.⁸

From this is the first type, that is mentioning Allah (ذِكْرُ اللَّهِ) - ‘Dhikr Allah’, has a specific meaning namely of glorifying His name and praising Him, such as via *tasbeeh*, *takbeer* and ‘*taleel* and through supplication, *duā*’. These are the varieties of *dhikr* or remembrance. Again the root is ‘*dhikr*,’ and this appears a great many times in the Qur’ān, such as in the following verses:

فَاذْكُرُونِي أَذْكُرْكُمْ وَاشْكُرُوا لِي وَلَا تَكْفُرُوا

⁴ Qur’ān 21: 60

⁵ Qur’ān 19: 16

⁶ Qur’ān 18: 70

⁷ Qur’ān 18: 83

⁸ Qur’ān 47: 20

So remember me, I will remember you. Be thankful to Me and never ungrateful.⁹

وَاذْكُرْ رَبَّكَ كَثِيرًا وَسَبِّحْ بِالْعِشِيِّ وَالْإِبْكَارِ

Remember your Lord often; celebrate His glory in the evening and at dawn.¹⁰

وَلَوْلَا دَفَعُ اللَّهُ النَّاسَ بَعْضُهُمْ لِبَعْضٍ لَهْذِمَتْ صَوَامِعُ وَبِيْعٌ وَصَلَوَاتٌ وَمَسَاجِدُ يُذْكَرُ فِيهَا اسْمُ اللَّهِ كَثِيرًا

If Allah did not repel some people by means of others, many monasteries, churches, synagogues, and mosques, where Allah’s name is much invoked, would have been destroyed.¹¹

وَاذْكُرُوا اللَّهَ فِي أَيَّامٍ مَعْدُودَاتٍ

And remember Allah on the appointed days.¹²

يَسْأَلُونَكَ مَاذَا أُحِلَّ لَهُمْ قُلْ أُحِلَّ لَكُمْ الطَّيِّبَاتُ وَمَا عَلَّمْتُمْ مِنَ الْجَوَارِحِ مُكَلِّبِينَ تُعَلِّمُونَهُنَّ مِمَّا عَلَّمَكُمُ اللَّهُ فَكُلُوا مِمَّا أَمْسَكْنَ عَلَيْكُمْ وَاذْكُرُوا اسْمَ اللَّهِ عَلَيْهِ

They ask you, Prophet, what is lawful for them. Say, ‘All good things are lawful for you.’ [This includes] what you have taught your birds and beasts of prey to catch, teaching them as Allah has taught you, so eat what they catch for you, but first pronounce Allah’s name over it.¹³

فَقَالَ إِنِّي أَحْبَبْتُ حُبَّ الْخَيْرِ عَنْ ذِكْرِ رَبِّي حَتَّى تَوَارَتْ بِالْحِجَابِ

He kept saying, ‘My love of fine things is part of my remembering my Lord!’ until [the horses] disappeared from sight.¹⁴

وَالْحَافِظِينَ فُرُوجَهُمْ وَالْحَافِظَاتِ وَالذَّاكِرِينَ اللَّهَ كَثِيرًا وَالذَّاكِرَاتِ أَعَدَّ اللَّهُ لَهُمْ مَغْفِرَةً وَأَجْرًا عَظِيمًا

Men and women who remember Allah often – Allah has prepared forgiveness and a rich reward.¹⁵

⁹ Qur’ān 2: 152

¹⁰ Qur’ān 3: 41

¹¹ Qur’ān 22: 40

¹² Qur’ān 2: 203

¹³ Qur’ān 5: 4

¹⁴ Qur’ān 38: 32

¹⁵ Qur’ān 33: 35

يَا أَيُّهَا الَّذِينَ آمَنُوا إِذَا نُودِيَ لِلصَّلَاةِ مِنْ يَوْمِ الْجُمُعَةِ فَاسْعَوْا إِلَىٰ ذِكْرِ اللَّهِ وَذَرُوا الْبَيْعَ ذَلِكُمْ خَيْرٌ لَّكُمْ إِنْ كُنْتُمْ تَعْلَمُونَ

*O you who believe! When the call to prayer is made on the day of congregation, hurry towards the reminder of Allah and leave off your trading - that is better for you, if only you knew.*¹⁶

Second meaning

The second meaning is 'against forgetfulness'; it is the presence of something in the mind. The root is [ذَكَرَ], *dhikr* – remind / remember [الذِّكْرَى] *al-dhikra* – reminder / remembrance; or it can be reflection / recall [تَذَكَّرَ], *tadhakkar*. In this regard, it appears as so in the following verses where Allah says:

قَالَ أَرَأَيْتَ إِذْ أَوَيْنَا إِلَى الصَّخْرَةِ فَإِنِّي نَسِيتُ الْخُوتَ وَمَا أَنَسَانِيهِ إِلَّا الشَّيْطَانُ أَنْ أَذْكُرَهُ وَاتَّخَذَ سَبِيلَهُ فِي الْبَحْرِ عَجَبًا

*And [the servant] said, 'Remember when we were resting by the rock? I forgot the fish - Satan made me forget to pay attention to it - and it [must have] made its way into the sea.' 'How strange!'*¹⁷

فَسَتَذْكُرُونَ مَا أَقُولُ لَكُمْ وَأَفَوضُ أَمْرِي إِلَى اللَّهِ إِنَّ اللَّهَ بَصِيرٌ بِالْعِبَادِ

*[One Day] you will remember what I am saying to you now, so I commit my case to Allah: Allah is well aware of His servants.*¹⁸

أَوَلَا يَذْكُرُ الْإِنْسَانُ أَنَّا خَلَقْنَاهُ مِنْ قَبْلُ وَلَمْ يَكُ شَيْئًا

*But does man not remember that We created him when he was nothing before?*¹⁹

وَجِيءَ يَوْمَئِذٍ بِجَهَنَّمَ يَوْمَئِذٍ يَتَذَكَّرُ الْإِنْسَانُ وَأَنَّى لَهُ الذِّكْرَى

*When Hell is that Day brought near - on that Day man will take heed, but what good will that be to him then?*²⁰

Diligence

¹⁶ Qur'ān 62: 9

¹⁷ Qur'ān 18: 63

¹⁸ Qur'ān 40: 44

¹⁹ Qur'ān 19: 67

²⁰ Qur'ān 89: 23

Thirdly, there is the meaning of memorisation and diligent study, to keep in mind and understand the future implication of something which is in contrast to negligence and the lack of study. Another derived form of *dhikr* is the word [المذاكرة] *madhākara* (memorisation), which means to review what has been studied, understand it and retain it in long-term memory. In this sense, it is meant in plural form. Allah mentions as such in the following verses in plural not singular form:

وَاذْكُرْنَ مَا يُتْلَىٰ فِي بُيُوتِكُنَّ مِنْ آيَاتِ اللَّهِ وَالْحِكْمَةِ إِنَّ اللَّهَ كَانَ لَطِيفًا خَبِيرًا

*Remember what is recited in your houses of Allah's revelations and wisdom, for Allah is all subtle, all aware.*²¹

Meaning, study, understand and memorise. What is recited in houses from the verses of Allah and the [الحكمة] *hikmah*, wisdom; and from the Qur'ān and *Sunnah*, oh wives of the Prophet, may the peace and blessings of Allah be upon them all, then propagate and convey this thereafter to the *Ummah* so they may understand it.

وَإِذْ أَخَذْنَا مِيثَاقَكُمْ وَرَفَعْنَا فَوْقَكُمُ الطُّورَ خُذُوا مَا آتَيْنَاكُمْ بِقُوَّةٍ وَاذْكُرُوا مَا فِيهِ لَعَلَّكُمْ تَتَّقُونَ

*Remember when We took your pledge, and made the mountain tower high above you, and said, 'Hold fast to what We have given you and bear its contents in mind, so that you may be conscious of Allah.'*²²

وَإِذْ نَتَقْنَا الْجَبَلَ فَوْقَهُمْ كَأَنَّهُ ظُلَّةٌ وَظَنُّوا أَنَّهُ وَاقِعٌ بِهِمْ خُذُوا مَا آتَيْنَاكُمْ بِقُوَّةٍ وَاذْكُرُوا مَا فِيهِ لَعَلَّكُمْ تَتَّقُونَ

*When We made the mountain loom high above them like a shadow, and they thought it would fall on them, We said, 'Hold fast to what We have given you, and remember what it contains, so that you may remain conscious of Allah.'*²³

Meaning collectively study; understand and memorise what has come to you, to take heed and put it into practice.

وَلَقَدْ يَسَّرْنَا الْقُرْآنَ لِلذِّكْرِ فَهَلْ مِنْ مُدَكِّرٍ

²¹ Qur'ān 33: 34

²² Qur'ān 2: 63

²³ Qur'ān 7: 171

*We have made it easy to learn lessons from the Qur'an: will anyone take heed?*²⁴

Namely, we have made the Qur'an easy for studying, to understand and memorise, will you not therefore partake in this endeavour?

Renown

Fourthly, there is the meaning of reputation, goodness, honour and eminence, for the well-known have their names repeated upon the tongues of people and are closer to the minds of others in that regard. The root form here is to mention [ذَكَرَ] *dhikr*, concerning this meaning Allah says in the following verses: 'And raise your reputation high?'²⁵ 'For it is a reminder for you and your people: you will all be questioned.'²⁶ When interpreted in such a way, this religion elevated the eminence that was considered benign to you and your nation, after that they were sluggish given that other nations did not care for them.

ص وَالْقُرْآنِ ذِي الذِّكْرِ

*Ṣad, By the Qur'an with its reminding.*²⁷

Some interpret the verse as meaning, the Qur'an is well known, with a lofty and praiseworthy status, and this is the most fitting of what is said. Others mention that the verse means: 'I swear by the the well recognised and known Qur'an that it has a right to be memorised, studied, and understood.' Moreover, this is also an acceptable interpretation.

'Revealed Reminder'

Fifthly, there is the meaning of the [الذِّكْرُ الْمُنْزَلُ] 'revealed reminder' or the 'sent-down reminder', *al-Dhikr al-Munazil*. It is a type of revelation that has been sent-down by Allah and specifically has the wording *dhikr* contained

²⁴ Qur'an 54: 17

²⁵ Qur'an 94: 4

²⁶ Qur'an 43: 44

²⁷ Qur'an 38: 1

within it, because it deserves that specific mention, that which is memorised and studied as well as being held in presence of mind. Moreover, it reminds the people of their relationship with Allah, the reason behind their existence; the afterlife which awaits all of us with its day of reckoning, reward and punishment as well as being filled with the remembrance and praise of Allah contained therein. The root is [ذَكَرَ] '*dhikr*'. Above all this is the meaning which is paramount and it has been elucidated in the following Qur'anic verses:

وَأَنْزَلْنَا إِلَيْكَ الذِّكْرَ لِتُبَيِّنَ لِلنَّاسِ مَا نُزِّلَ إِلَيْهِمْ وَلَعَلَّهُمْ يَتَفَكَّرُونَ

*We have sent down the dhikr to you too [Prophet], so that you can explain to people what was sent for them, so that they may reflect.*²⁸

وَمَا أَرْسَلْنَا قَبْلَكَ إِلَّا رِجَالًا نُوْحِي إِلَيْهِمْ فَاسْأَلُوا أَهْلَ الذِّكْرِ إِنْ كُنْتُمْ لَا تَعْلَمُونَ

*And even before your time [Prophet], all the Messengers We sent were only men We inspired - if you do not know, ask people who know the dhikr.*²⁹

Which is to ask the *Ulemā'*, those intimately acquainted with the sent-down revelation as it is found in the previous books. Originally the people of the book were challenging the veracity of the Prophethood of Muḥammad peace and blessings be upon him on the basis that he was only mortal. So the people of Islam or the people of the Qur'an are ordered by these verses to ask the people of the earlier books about the former Prophets – were they from the angels or were they mortal as well? The second part of the verse which says: 'We have revealed to you the Reminder that you may make clear to men what has been revealed to them and that haply they may reflect' will be discussed in greater detail below, together with the verse where Allah the Almighty says:

إِنَّا نَحْنُ نَزَّلْنَا الذِّكْرَ وَإِنَّا لَهُ لَحَافِظُونَ

*We have revealed the dhikr and We will most surely be its guardian.*³⁰

قَالُوا سُبْحَانَكَ مَا كَانَ يَنْبَغِي لَنَا أَنْ نَتَّخِذَ مِنْ دُونِكَ مِنْ أَوْلِيَاءَ وَلَكِنْ مَتَّعْتَهُمْ وَآبَاءَهُمْ حَتَّى نَسُوا الذِّكْرَ وَكَانُوا قَوْمًا بُورًا

²⁸ Qur'an 16: 43/44

²⁹ Qur'an 21: 7

³⁰ Qur'an 15: 9

*They will say, 'May You be Exalted! We ourselves would never take masters other than You! But You granted them and their forefathers pleasures in this life, until they forgot Your dhikr and were ruined.'*³¹

The verse relates to them forgetting the sent-down revelation, they neglected it and turned away from it. The sent-down revelation here is every type which Allah revealed throughout the ages, as dictated by the context and not only what was revealed to Muḥammad peace and blessings be upon him and therefore by greater reasoning not only the text of the Qur'ān.

لَقَدْ أَضَلَّنِي عَنِ الذِّكْرِ بَعْدَ إِذْ جَاءَنِي وَكَانَ الشَّيْطَانُ لِلْإِنْسَانِ خَدُولًا

*He led me away from the dhikr after it reached me. Satan has always betrayed mankind.*³²

Like its predecessor, *dhikr* here means the sent-down revelation upon the Messenger, which was not followed by the wayward deceased individual set out in the verse. In this verse, the individual is described as biting his hand with regret. This is similar to the case of every tyrant who sets himself against the path laid out by the Messenger, not only as it relates to the Prophet Muḥammad peace and blessings be upon him and his specific way.

إِنَّمَا تُنذِرُ مَنِ اتَّبَعَ الذِّكْرَ وَخَشِيَ الرَّحْمَنَ الْغَيْبَ فَبَشِّرْهُ بِمَغْفِرَةٍ وَأَجْرٍ كَرِيمٍ

*You can warn only those who will follow the dhikr and hold the Merciful One in awe, though they cannot see Him: give such people the glad news of forgiveness and a noble reward.*³³

This also means those who follow its predecessors, the sent-down revelation, but is specific to Muḥammad peace and blessings be upon him as is shown by the context.

وَلَقَدْ كَتَبْنَا فِي الزَّبُورِ مِنْ بَعْدِ الذِّكْرِ أَنَّ الْأَرْضَ يَرِثُهَا عِبَادِيَ الصَّالِحُونَ

³¹ Qur'ān 25: 18

³² Qur'ān 25: 29

³³ Qur'ān 36: 11

*We wrote in the Psalms, as We did in [earlier] Scripture: 'My righteous servants will inherit the earth.'*³⁴

Hence this *al-dhikr* referred to relates to something earlier than the Psalms. Most of the *mufasireen* have interpreted this to mean *al-Lawḥ al-Mahfouz* - the preserved tablet, which is a euphemism regarding the knowledge of Allah or his original judgement. It is most possible here that the verse means: 'that (as for) the land, my righteous servants shall inherit it', before we write it in the Psalms or it is possible that the *dhikr* is a term used for revealed books in general, or the book of Dāwud peace be upon him specifically. Some of the *mufasireen* said that '*al-dhikr*' is intended to relate to the Torah, whatever the case, the '*dhikr*' here is definitely something else other than the text of the Qur'ān:

وَهَذَا ذِكْرٌ مُبَارَكٌ أَنْزَلْنَاهُ أَفَأَنْتُمْ لَهُ مُنْكَرُونَ

*And this is a blessed dhikr which We have revealed; will you then deny it?*³⁵

It is likely that '*And this is a blessed dhikr*', means the Qur'ān, because the Qur'ān is a blessed reminder. This understanding is further verified because it comes in relation to the revelation upon Musa and Hārūn – the criterion, illumination and reminder to the pious God-fearing. Thus, it is appropriate 'the reminder' means the overall *waḥy* which is sent-down and revealed to Muḥammad peace and blessings be upon him, all of which is truth containing no doubt therein.

ذَلِكَ نَتْلُوهُ عَلَيْكَ مِنَ الْآيَاتِ وَالذِّكْرِ الْحَكِيمِ

*This, We do recite to you from the signs and the wise reminder.*³⁶

Recognising the words here, *dhikr* probably refers to those previous verses which relate the chosen al-'Imrān, offspring from Yaḥya ibn Zakariyā peace and blessings be upon them both and the whole story of Esa ibn Maryam peace and blessings be upon him and his mother, is some of what is recited upon you from these signs and some of what these signs are detailed from the wise

³⁴ Qur'ān 21: 105

³⁵ Qur'ān 21: 50

³⁶ Qur'ān 3: 58

reminder. It would be adjoined to the recited verses upon *al-Dhikr al-Ḥakeem* from the some to the all, adjoining the specific to the general out of respect to those specific verses, raising to its extent for reasons of explanation and rhetoric as well as others, rather than only to say ‘*that which is recited upon you from the glorious reminder*’. The term *al-Dhikr al-Ḥakeem* - the glorious reminder - is from amongst the names of the Qur’ān with the connotation given by the wording ‘recited’. Here the wording will be about the Qur’ān only however with that it does not entail that this absolutely necessitates that in each context the mention of the *dhikr* will refer to the Qur’ān only.

The verses could also mean: some of what is recited upon you from these verses and some of it which we have revealed is *al-Dhikr al-Ḥakeem*. Consequently *al-Dhikr al-Ḥakeem* overall is the revelation, recited or not recited. Often the presumption is that where the word *Dhikr* is used it is for the Qur’ān, whereas it is used to express the notion of revelation generally. Also, the connotation related to the revelation of these verses was about the debate with the Christians of Najrān and the invitation to them for invokation of the curse of Allah upon the liar - *mubāhala*. It is known by necessity that the Prophet peace and blessings be upon him debated them with his words and speech. No one argues that the revelation referred to here was only that which was used during the debate. Even if this verse was not peremptory in actuality that the *al-Dhikr al-Ḥakeem* is the Qur’ān, if this was the preponderant meaning. Yet there is no doubt that the Qur’ān is the *Dhikr* and no doubt that it is *Ḥakeem* and that it deserves to be entitled – *al-Dhikr al-Ḥakeem*. The salient question therefore being – is *al-Dhikr al-Ḥakeem* the Qur’ān exclusively, so that other than it may not be called *al-Dhikr al-Ḥakeem*?

إِنَّ الَّذِينَ كَفَرُوا بِالذِّكْرِ لَمَّا جَاءَهُمْ وَإِنَّهُ لَكِتَابٌ عَزِيزٌ

*Those who reject the dhikr when it comes to them - though it is an unassailable Scripture.*³⁷

Contained within this verse the ‘*dhikr*’ here is either to be considered from amongst the names of the Qur’ān which is also referred to as the *kitābun ‘aziz* ‘mighty book’; but it may be the ‘*dhikr*’ is the name for all the sent-down

³⁷ Qur’ān 41: 41

revelation. All of this sent-down revelation in truth is preserved, for indeed it is a ‘mighty book’; no falsehood approaches it between its covers or from behind it. It is revealed from the praised Lord. By necessity it is not this book that is the Qur’ān and it is not by necessity that only held within its lofty pages. Allah declares:

أَوْعَجِبْتُمْ أَنْ جَاءَكُمْ ذِكْرٌ مِنْ رَبِّكُمْ عَلَى رَجُلٍ مِنْكُمْ لِيُنذِرَكُمْ وَلِتَتَّقُوا وَلَعَلَّكُمْ تُرْحَمُونَ

*Do you find it so strange that a dhikr should come from your Lord— through a man in your midst— to warn you and make you aware of Allah so that you may be given mercy?’*³⁸

أَوْعَجِبْتُمْ أَنْ جَاءَكُمْ ذِكْرٌ مِنْ رَبِّكُمْ عَلَى رَجُلٍ مِنْكُمْ لِيُنذِرَكُمْ

*Do you find it so strange that a dhikr should come from your Lord, through a man in your midst, to warn you?’*³⁹

Without doubt as shown by this prudent sentence contained within the verse— ‘*dhikr from your Lord*’ which here means the revelation from your Lord, or a message from your Lord. It doesn’t make the connection to the text of the Qur’ān originally because the wording here is about the nations of Nuḥ and Hud, peace be upon them both. Allah the Exalted also says:

مَا يَأْتِيهِمْ مِنْ ذِكْرٍ مِنْ رَبِّهِمْ مُحَدَّثٍ إِلَّا اسْتَمْعَوْهُ وَهُمْ يُلْعَبُونَ

*Whenever any fresh revelation comes to them from their Lord, they listen to it playfully.*⁴⁰

وَمَا يَأْتِيهِمْ مِنْ ذِكْرٍ مِنَ الرَّحْمَنِ مُحَدَّثٍ إِلَّا كَانُوا عَنْهُ مُعْرِضِينَ

*Whenever they are brought a new revelation from the Lord of Mercy, they turn away.*⁴¹

By necessity, it is not specifically addressed to the disbelievers of Quraysh and not to the previous nations, the denouncement is upon all of them turning away from the new revelation. This proclamation or revelation may be

³⁸ Qur’ān 7: 63

³⁹ Qur’ān 7: 69

⁴⁰ Qur’ān 21: 2

⁴¹ Qur’ān 26: 5

considered a portion from the Qur'ān, it may be in this manner and all of that 'a new reminder from the Allah, al-Raḥman'. For example, the Prophet peace be upon him asked after ascending to mount Ṣafā – 'If I were to inform you that an army are proceeding up the side of this mountain, would you believe me?' or as he also then said: 'I am a plain warner to all of you of a coming severe punishment.' Some of the attendees retorted with: 'May you perish this day! You called us to this?' turning away and disbelieving. The *Seerah* is replete with such instances. Allah the Majestic says:

إِنْ هُوَ إِلَّا ذِكْرٌ لِلْعَالَمِينَ

*This is only a warning for all creation;*⁴²

It is likely that *dhikr* refers to the Qur'ān here, due to the fact that the Prophet is being referred to in the previous two verses.

وَأِنْ يَكَادُ الَّذِينَ كَفَرُوا لَيُزْلِقُونَكَ بِأَبْصَارِهِمْ لَمَّا سَمِعُوا الذِّكْرَ وَيَقُولُونَ إِنَّهُ لَمَجْنُونٌ ، وَمَا هُوَ إِلَّا ذِكْرٌ لِلْعَالَمِينَ

*The disbelievers almost strike you down with their looks when they hear the reminder, and they say: Most surely, he is mad. And it is nothing but a reminder to all creation.*⁴³

The reason why the Prophet is accused of being mad here is because he was not only reciting the Qur'ān like a tape recorder.

إِنْ هُوَ إِلَّا ذِكْرٌ لِلْعَالَمِينَ

*It is but a reminder for all creation.*⁴⁴

Here the context seems to confirm that the reference being made is to the Qur'ān only, since the preceding verses which state:

إِنَّهُ لَقَوْلُ رَسُولٍ كَرِيمٍ، ذِي قُوَّةٍ عِنْدَ ذِي الْعَرْشِ مَكِينٍ
وَمَا هُوَ بِقَوْلِ شَيْطَانٍ رَجِيمٍ

⁴² Qur'ān 38: 87

⁴³ Qur'ān 68: 51/52

⁴⁴ Qur'ān 81: 27

*This is the speech of a noble Messenger, who possesses great strength and is held in honour by the Lord of the Throne;
This is not the word of an outcast devil.*⁴⁵

Without doubt the Qur'ān is a reminder to all of creation. Moreover, there can be no doubt that that the Qur'ān is not singularly *al-dhikr* (the reminder) or *dhikr* to all creation. The next three verses when taken together say:

وَقَالُوا يَا أَيُّهَا الَّذِي نُزِّلَ عَلَيْهِ الذِّكْرُ إِنَّكَ لَمَجْنُونٌ

*And they say, 'Receiver of the dhikr - You are definitely mad.'*⁴⁶

أَأَنْزَلَ عَلَيْهِ الذِّكْرُ مِنْ بَيْنِنَا بَلْ هُمْ فِي شَكٍّ مِنْ ذِكْرِي بَلْ لَمَّا يَذُوقُوا عَذَابٍ

*Was the dhikr sent only to him out of all of us? In fact they doubt My warning; in fact they have not tasted My punishment yet.*⁴⁷

أَلَنْفِي الذِّكْرُ عَلَيْهِ مِنْ بَيْنِنَا بَلْ هُوَ كَذَّابٌ أَشِرٌّ

*Would a message be given to him alone out of all of us? No, he is an insolent liar!*⁴⁸

So potentially, when these verses are read together, one may gather the impression that it will carry the meaning of referring to the Qur'ān only. The verses are better understood to mean the revelation sent down to the Messenger in its entirety. Yet to purport to the former view would not be an outright falsity only because the Qur'ān is from Allah. Indeed they believe the Prophet peace and blessings be upon him in everything else, but limiting the verses only to the Qur'ān, whereas it should be for all the revelation, would indeed be a lie. Elsewhere Allah the Exalted says:

وَمَا عَلَّمْنَاهُ الشِّعْرَ وَمَا يَنْبَغِي لَهُ إِنْ هُوَ إِلَّا ذِكْرٌ وَقُرْآنٌ مُبِينٌ

*We have not taught the Prophet poetry, nor could he ever have been a poet; it is nothing but a dhikr and a plain Qur'ān.*⁴⁹

⁴⁵ Qur'ān 81: 19/20, 25

⁴⁶ Qur'ān 15: 6

⁴⁷ Qur'ān 38: 8

⁴⁸ Qur'ān 54: 25

⁴⁹ Qur'ān 36: 69/70

The verse requires some cause for reflection and detailed consideration, given that the wording expresses: '*it is nothing but a dhikr and a plain Qur'ān.*' A casual observer may think that the Qur'ān in linguistic style is from the genus of poetry. Yet it is not so because Muḥammad peace and blessings be upon him was no poet, nor is it befitting for it to be considered poetry. His lord did not teach him poetry originally. But the *dhikr* is the revelation in its actual content. The Qur'ān as pronounced is eloquent in its formulation. Here the eloquence is about the Qur'ān, from the essence of its means and formulation. Potentially that will also be co-joining or adjoining the Qur'ān with the *dhikr*, the specific upon the general in meaning. It wouldn't make sense for the *dhikr* here as referred to in the verse to also mean the Qur'ān, in other words for the two to be the same thing in this specific verse. Muḥammad was not a poet nor versed in poetry. But what came to him was revelation as sent from Allah. Some of this revelation that came is this '*Qur'ān mubeen*', which as the verse says is the miraculous revelation sent-down with its wording. Some people have confused this point thinking that its system being poetic it was a form of poetry. Allah blessed be His names also says:

أَعَدَّ اللَّهُ لَهُمْ عَذَابًا شَدِيدًا فَاتَّقُوا اللَّهَ يَا أُولِي الْأَلْبَابِ الَّذِينَ آمَنُوا قَدْ أَنزَلَ اللَّهُ إِلَيْكُمْ ذِكْرًا رَسُولًا يَتْلُو عَلَيْكُمْ آيَاتِ اللَّهِ مُبَيِّنَاتٍ لِّیُخْرِجَ الَّذِينَ آمَنُوا وَعَمِلُوا الصَّالِحَاتِ مِنَ الظُّلُمَاتِ إِلَى النُّورِ

*Allah has prepared a severe torment for them. So, you who have understanding, you who believe, beware of Allah. He has revealed to you a dhikr, a Messenger - reciting to you Allah's revelations that make things clear - to bring those who believe and do righteous deeds from darkness into light.*⁵⁰

Thus, it is significant that the Qur'ān explains that the revealed *Dhikr* is not only the Qur'ān. But it is wider, for it is this Prophet who recites the clear signs of Allah. We know by necessity of perception and reason that the Prophet is a creation from earth, in other words, he did not descend from heaven, but is borne of the earth, being made of flesh and blood. Consequently, by necessity it is not the Prophet as an entity that has been 'sent down' given that he is mortal, but it is mentioned in relation to the entity of the Prophet in the form of linguistic expression. That the *wahy* is not only the

⁵⁰ Qur'ān 65: 10/11

recited verses, but it is all of that which descends upon the Prophet, encompassing his very being and expressed via his sayings, actions and what he approves. Hence it necessitates anything from the Prophet that deserves to be properly termed as revealed to, as already mentioned previously in this section in the form of numerous proofs established from the Qur'ān itself as well as the sayings, acts and approvals of the Prophet. When understood in a general manner, this categorically affirms without doubt that the word '*dhikr*', '*the revealed sent-down dhikr*' (each prefixed with the definite article '*al*') or '*dhikr sent from Allah*' means revelation in general. It is not simply synonymous with the glorious Qur'ān only or only a euphemism for the Qur'ān, although both *al-Dhikr* and *al-Dhikr al-Ḥakeem* are without doubt from amongst the names and attributes of the Qur'ān.

For all the aforementioned reasons the false assertions and sophisms of those who call themselves 'Qur'ānists', crumble to dust. The assertion that the sent-down revealed and protected *dhikr* is only the Qur'ān does not withstand any anxious scrutiny. Neither does their conception that the *Sunnah* is not revelation or not a binding authority as the Qur'ān is. For the sane rational mind their views and judgements concerning revelation are based upon manifest error. Their views seek to forge outright lies against the manifest text of the Qur'ān; they have utter disregard for it, yet they claim they uphold true belief in it. The truth is that 'Qur'ānists' are people of whims and desires; some of them are outright people of *nifāq* (hypocrisy), others outright *zandeeq* (heretics). They are ignorant of the book of Allah and violate its principles, seeking to try and demolish Islam itself throughout their sophistic calls.

14. Testimony of the *Sunnah* by itself to its proof

As has been demonstrated previously with decisive evidences, the Prophetic *Sunnah* is an infallible revelation. To be more precise, the Prophetic *Sunnah* is not merely a particular revelation from Allah rather it is a formulated expression of an infallible Prophetic revelation that has come from Allah. Moreover, as has been proved, the Prophetic *Sunnah* is of the same class as the Qur'ān, carrying the same level of proof that it has. By the necessity of perception and reason as well as the proofs from the Qur'ān only utilising its texts, the *Sunnah* is of the same level of authority as it. In order not to fall into contradictions and circulatory what has been detailed from the texts of the *Sunnah* were not used as primary proof, they were only used by way of further illustration. As demonstrated previously, the *Sunnah* is an infallible revelation hence generally it should not involve any discrepancies, internal inconsistencies or contradictions. It is a stand-alone proof, being permissible to invoke on its own as an authority. Given its status as being an infallible revelation, it is not permissible for it to be contradictory, it must remain consistent generally, precisely because it is an infallible revelation. Foremost again this rests in particular upon the condition that what is being invoked from the Prophet peace and blessings be upon him has in fact been ascertained categorically beyond reasonable doubt that it is prophetic.

To consider the specific evidences which have reached us from the Prophetic *aḥādith*, we begin by citing the following narration reported on the authority of 'Uqba ibn 'Aāmir al-Juhany, may Allah be pleased with him as it appears in the *al-Mustadrak* of al-Ḥākim:

أخبرني أبو بكر إسماعيل بن محمد الفقيه بالري حدثنا أبو حاتم الرازي حدثني أبو أيوب سليمان بن عبد الرحمن الدمشقي حدثني عبد الله بن وهب حدثنا مالك بن خبير الزياتي عن أبي قبيل عن عتبة بن عامر رضي الله عنه قال سمعت رسول الله صلى الله عليه وسلم يقول سيهلك من أمتي أهل الكتاب وأهل اللبن؛ قال عتبة ما أهل الكتاب يا رسول الله؟ قال قوم يتعلمون كتاب الله يجادلون به الذين آمنوا! قال فقلت ما أهل اللبن يا رسول الله؟ قال قوم يتبعون الشهوات ويضيعون الصلوات!

Abu Bakr Ismā'il ibn Muḥammad al-Faqeehi reported to me in Rayy, Abu Ḥātim al-Rāzi narrated to us Abu Ayub Sulaymān ibn 'Abdar-Raḥman al-Dimishqi narrated to me Abdullah ibn Wahb narrated to me Mālik ibn Khayr al-Ziyādi narrated to us from Abi Qabeel from 'Uqba bin 'Aāmir, may Allah be pleased with him, he said, I heard the Messenger of Allah peace and blessings be upon him saying: *The perishing of my Ummah lies in the people of the book and people of milk.* 'Uqba said: 'What are the people of the book O Messenger of Allah?' He replied: *People who learn the book of Allah and use it to argue with the believers.* He said: I asked, 'And what of the people of milk O Messenger of Allah?' He replied: *People who follow desires and waste (away) prayers!*¹

After this citing this *ḥadith* al-Ḥākim said: 'This *ḥadith* has an authentic channel and they did not record it.' I would submit it is as he said and it has come more in relation to the 'people of milk'; people like milk hence they would depart from adherence to the *Jamā'ah* (congregation) and leave congregational prayers. Similar was reported by Imām Aḥmad in his *Musnad* with slightly different wording which has: 'They would love milk to the extent that they would abandon praying in congregation and Friday Prayers and go out to the desert (for milk).' Other scholars have also cited this tradition.²

The *ḥadith* which is authentic and establishes that whoever misinterprets the glorious Qur'ān, using it to argue with the believers will end up in ruin. A correct and sound interpretation of the Qur'ān can only be known with certitude through the Prophet peace and blessings be upon him, conveying that infallible conveyance from Allah, who guaranteed to give a convincing,

¹ al-Ḥākim *Mustadrak* [Vol. 2, no. 3417]

² *Musnad* Aḥmad [Vol. 4, no. 17356, 17451]. In addition to this, *Musnad* Abu Ya'la [Vol. 3, no. 1746], and al-Ṭabarāni *Mu'jam al-Kabir* [Vol. 17, no. 815].

plausible and binding proclamation. For he whose names are blessed made a true promise when he said:

فَإِذَا قَرَأْتَهُ فَاتَّبِعْ قُرْآنَهُ، ثُمَّ إِنَّ عَلَيْنَا بَيَانَهُ

*Therefore when we have recited it, follow its recitation. Again upon us (devolves) the explanation of it.*³

وَمَنْ أَوْفَى بِعَهْدِهِ مِنَ اللَّهِ

*Who could be more faithful to his promise than Allah?*⁴

Next, Imām al-Tirmidhi recorded this *ḥadith* in his *Sunan* on the authority of Ibn ‘Abbās, may Allah be pleased with him:

حدثنا محمود بن غيلان حدثنا بشر بن السري حدثنا سفيان عن عبد الأعلى عن سعيد بن جبير عن ابن عباس رضي الله عنهما قال قال رسول الله صلى الله عليه وسلم من قال في القرآن بغير علم فليتبوأ مقعده من النار

Maḥmud ibn Ghaylān narrated to us Bishr ibn al-Sari narrated to us Sufyān narrated to us from ‘Abd al-‘Alā from Sa’eed ibn Jubayr from Ibn ‘Abbās, may Allah be pleased with him, he said the Messenger of Allah peace and blessings be upon him said: *Whoever speaks in relation to the Qur’ān without knowledge, then let him take his seat in the fire.*⁵

Concerning this, Abu Esa said that the *ḥadith* was *ḥasan Ṣaḥīḥ*. Other notable Imām’s included this tradition in their respective collections.⁶ Knowledge attained with certainty regarding the Qur’ān is acquired by way of the Prophet peace and blessings be upon him, as mentioned previously. Further to this, Imām al-Nasā’i recorded the next tradition by way of a *Ṣaḥīḥ isnād* in his *Sunan*:

أخبرنا عتبة بن عبد الله قال أنبأنا ابن المبارك عن سفيان عن جعفر بن محمد عن أبيه عن جابر بن عبد الله قال كان رسول الله صلى الله عليه وسلم يقول في خطبته يحمد الله ويثني عليه

³ Qur’ān 75: 18/19

⁴ Qur’ān 9: 111

⁵ Sunan al-Tirmidhi [Vol. 5, no. 2590]

⁶ Musnad Aḥmad [Vol. 1, no. 2069, 2429], al-Nasā’i Sunan al-Kubra [Vol. 5, no. 8084]

بما هو أهله، ثم يقول: من يهده الله فلا مضل له ومن يضلله فلا هادي له. إن أصدق الحديث كتاب الله، وأحسن الهدي هدي محمد، وشر الأمور محدثاتها، وكل محدثة بدعة، وكل بدعة ضلالة، وكل ضلالة في النار ثم يقول بعثت أنا والساعة كهاتين وكان إذا ذكر الساعة احمرت وجنتاه، وعلا صوته، واشتد غضبه، كأنه نذير جيش يقول صبحكم مساكم، ثم قال من ترك مالا فلأهله، ومن ترك ديناً أو ضياعاً فإلي أو علي وأنا أولى بالمؤمنين

‘Utbaḥ ibn Abdullah reported to us he said Ibn Mubārak reports from Sufyān from Ja’far ibn Muḥammad from his father from Jābir ibn Abdullah who said: In his *Khuṭbah* the Messenger of Allah peace and blessings be upon him used to praise Allah as He deserves to be praised, then he would say: *Whomsoever Allah guides, none can lead him astray, and whomsoever Allah sends astray, none can guide. The truest of word is the book of Allah and best of guidance is the guidance of Muḥammad. The worst of things are those that are newly invented; every newly-invented thing is an innovation and every innovation is misguidance and every misguidance is in the fire.* Then he said: *The hour and I have been sent like these two.* Whenever he mentioned the hour, his cheeks would turn red and he would raise his voice and become angry, as if he were warning of an approaching army and saying: ‘An army is coming to attack you in the morning, or in the evening!’ Then he said: *Whoever leaves behind wealth, it is for his family and whoever leaves behind a debt or dependents, then these are my responsibility and I am the most entitled to take care of the believers.*⁷

Similar narrations have been reported in other *ḥadith* collections.⁸ It has also been reported from the wording of authentic channels back to Abdullah ibn Ma’sud. Also it has been reported from Ṭalḥa ibn Naḍeela (may Allah be pleased with him) who reported that it was said to the Messenger of Allah peace and blessings be upon him: ‘Fix prices for us.’ He replied – ‘*Allah will ask me about whatever Sunnah I told you about that He did not order me with. Ask Allah from His favour (instead).*’ The *ḥadith* is *Ṣaḥīḥ* proving what we had mentioned previously, that the Prophet peace be upon him did not order or forbid anything from his *own self*, rather he informs us of what Allah had

⁷ al-Nasā’i Sunan al-Kubra [Vol. 3, no. 1578]

⁸ Half a dozen additional references are provided, among them several as following on, which are contained within the *Sunan al-Kubra*, but also *Musnad Aḥmad* [Vol. 3, no. 14373], and *Ṣaḥīḥ Ibn Khuzaymah* [Vol. 3, no. 1785].

revealed to him in every matter. This *ḥadith* was recorded by Ibn Abi ‘Aāṣim in *al-Aḥād wal-Mathāni*, and other scholars like al-Bayhaqy and al-Ṭabarāni. ‘Aisha, mother of the believers, may Allah be pleased with her, reported the following:

سِتَّةٌ لَعَنَهُمُ اللَّهُ وَكُلُّ نَبِيٍّ مَجَابِ الْمَكْذِبِ بِقَدْرِ اللَّهِ؛ وَالزَّائِدُ فِي كِتَابِ اللَّهِ وَالْمُتَسَلِّطُ
بِالْجَبْرُوتِ يَذُلُّ مَنْ أَعَزَّ اللَّهُ وَيَعِزُّ مَنْ أَذَلَّ اللَّهُ؛ وَالْمُسْتَحِلُّ لِحَرَمِ اللَّهِ وَالْمُسْتَحِلُّ مِنْ عَتَرَتِي مَا
حَرَّمَ اللَّهُ وَالتَّارِكُ لِسُنَّتِي

(There are) six persons that I cursed and Allah cursed them and every Prophet cursed them. (They are): who denies the *Qadr* of Allah, who adds to the book of Allah, who owns power and authority using them in humiliating whomever Allah had honoured, who transgresses against my sanctuary, who transgresses against my kinship and who abandons my *Sunnah*.⁹

The *ḥadith* is *Ṣaḥīḥ* and it is recorded by al-Ḥākim. Regarding this he said: ‘This *ḥadith* is *Ṣaḥīḥ* and I don’t know of it (being) problematic and they did not record it.’ al-Dhahaby wavered over it agreeing with al-Ḥākim upon its authenticity from one angle, keeping silent about it in another way and objecting to it on a third occasion. He recorded in his work entitled *al-Kabā’ir* after he had completed his study of knowledge and his thought and personality had matured, may Allah be merciful to him. He said of it that the *isnād* was *Ṣaḥīḥ* and he was correct in this. Al-Ḥākim reports it in several other places, as does al-Tirmidhi in his *Sunan*; further recorded in *Ṣaḥīḥ* Ibn Ḥibbān and by al-Ṭabarāni. In one of the narratives found in *Mu’jam al-Kabir* from ‘Amr ibn Sa’wā a seventh person is added namely one who absorbs the *Fay*.¹⁰ The *ḥadith* is a decisive proof which establishes that abandoning the *Sunnah* of the Prophet peace and blessings be upon him is amongst the most grievous of sins. It is on par with adding to the book of Allah and *istiḥlāl* - declaring lawful what Allah has prohibited. Such matters are in opposition to Islam, *al-‘Imān* and *Tawḥeed*.

⁹ al-Ḥākim *Mustadrak* [Vol. 1, no. 102]

¹⁰ Among the references mentioned are: *al-Mustadrak* [Vol. 2, no. 3940], *Sunan* al-Tirmidhi [Vol. 4, no. 2154] and al-Ṭabarāni, *Mu’jam al-Kabir* [Vol. 3, no. 2883] and *Mu’jam al-Awsaṭ* [Vol. 2, no. 1667]

Abdullah ibn ‘Amr ibn al-‘Aāṣ used to write what the Messenger of Allah peace and blessings be upon him was saying in his gatherings. Some men from among the Quraysh scolded him by saying, ‘You are writing what the Messenger of Allah is saying, he is just a human and becomes angry as human become sometimes angry.’ Abdullah replied, ‘I went to the Messenger of Allah peace and blessing be upon him and informed him regarding that. He pointed to his lips and said, ‘*By him in whose soul my hand rests, all what is coming out from these is true. Write (everything)!*’ The report is *Ṣaḥīḥ* and can be found in the *Mustadrak* of al-Ḥākim.¹¹ al-Dhahaby agreed with al-Ḥākim in relation to the traditions authenticity. Its wording also comes via another channel from ‘Abd al-Wāḥid ibn Qays from Abdullah ibn ‘Amr. There is also a further report via another authentic channel which is reported by Yusuf ibn Māhik. There are other authentic and good channels where this is reported from other than these two *Tābi’een*. Hence its conveyance can be regarded as being *tawātur* from Abdullah ibn ‘Amr ibn al-‘Aāṣ from the Prophet peace and blessings be upon him. The second way is the same authentic chain which was recorded by Aḥmad in his *Musnad*. The Prophet peace and blessings be upon him is infallible. He says the truth during cases of anger and dissatisfaction as well as cases in of seriousness as will now be detailed.

Abu Hurayrah, may Allah be pleased with him is reported to have narrated that the Messenger of Allah peace and blessings be upon him said: ‘*Indeed I do not speak except that which is truth.*’ Some of the *Ṣaḥāba* said: O Messenger of Allah! You (sometimes) joke with us? He peace and blessings be upon him replied with: ‘*Indeed, I do not speak except that which is truth.*’ The *ḥadith* is *Ṣaḥīḥ* and it appears in a number of collections.¹²

Next, Imām Abu Dāwud records in his *Sunan* the following tradition upon the authority of ‘Irbāḍ ibn Sāriya al-Salami may Allah be pleased with him, which has a good and strong chain of transmission. It is evidence in itself, and was regarded as authentic by the grand Imām Ibn Ḥazm; Albāni considered it good also. Truly it is *Ṣaḥīḥ* when considered with all its additions. ‘Irbāḍ ibn Sāriya narrates as follows:

¹¹ al-Ḥākim *Mustadrak* [Vol. 1, no. 357]

¹² Examples of the references fort his are: *Musnad* Aḥmad [Vol. 2, 8462, 8708], al-Bukhārī *Adab al-Mufrad* [Vol. 1, no. 265] and al-Bayhaqy *Sunan al-Kubra* [Vol. 10, no. 20962].

نزلنا مع النبي صلى الله عليه وعلى آله وسلم، خبير ومعه من معه من أصحابه، وكان صاحب خبير رجلاً مارداً منكراً، فأقبل إلى النبي صلى الله عليه وعلى آله وسلم فقال يا محمد! ألكم أن تذبحوا خُمُرنا، وتأكلوا ثمرنا، وتضربوا نساءنا؟ فغضب النبي صلى الله عليه وعلى آله وسلم وقال يا ابن عوف! اركب فرسك ثم نادي: إن الجنة لا تحل إلا لمؤمن، وأن اجتمعوا للصلاة! قال فاجتمعوا للصلاة، فصرى بهم رسول الله صلى الله عليه وعلى آله وسلم ثم قام خطيباً فقال أحسب أحدكم وفي رواية لا أجد أحدكم متكئاً على أريكته قد يظن أن الله لم يحرم شيئاً إلا ما في القرآن؟ ألا وإني والله قد أمرت ووعظت ونهيت عن أشياء إنها مثل هذا القرآن أو أكثر! وإن الله عز وجل لم يحل لكم أن تدخلوا بيوت أهل الكتاب، إلا بإذن ولا ضرب نساءهم، ولا أكل ثمارهم، إذا أعطوكم الذي عليهم

We alighted with the Prophet peace and blessings be upon him and his family at Khaybar, and he had his Companions with him. The chief of Khaybar was a defiant and abominable man. He came to the Prophet peace and blessings be upon him and said: Is it proper for you, Muḥammad, that you slaughter our donkeys, eat our fruit, and beat our women? The Prophet peace and blessings be upon him became angry and said: *Ibn 'Awf, ride your horse, and call loudly: Beware, Paradise is lawful only for a believer, and that they (the people) should gather for prayer.* They gathered and the Prophet peace and blessings be upon him led them in prayer, stood up and said: *Does any of you, while reclining on his couch, imagine that Allah has prohibited only that which is to be found in this Qur'an? By Allah, the Mighty and Sublime, I have preached, commanded and prohibited various matters as numerous as that which is found in the Qur'an, or more so. Allah has not permitted you to enter the houses of the people of the book without permission, or beat their women, or eat their fruits when they give you that which is imposed on them.*¹³

Other *ḥadith* collectors cited this tradition in their respective works.¹⁴ If we consider carefully this honourable *ḥadith* which is from amongst the evidences of the Prophethood of Muḥammad peace and blessings be upon him, some key points emerge. Firstly, the Prophet peace and blessings be upon him started with the saying that paradise is prohibited for the *kuffār* and that only believers will enter it, so everyone must beware for himself and check the truth and sincerity of his own faith. Secondly, he called them to

¹³ *Sunan* Abu Dāwūd [Vol. 3, no. 3050]

¹⁴ Of the half-dozen references provided, these include: al-Ṭabarānī, *Mu'jam al-Kabir* [Vol. 18, no. 645], *al-Awsaṭ* [Vol. 7, no. 7226] and al-Bayhaqī *Sunan al-Kubra* [Vol. 9, no. 18508].

perform prayer and when he preached to them, he pointed out that Allah the Exalted made some matters lawful or unlawful, warned and forbade matters, through his Prophet peace and blessings be upon him. These matters are not included in the Qur'ān and were not mentioned in it.

Thus, it is definite evidence that the order of command is of the same level as that of the Qur'ān as well as the fact that the Prophetic orders are also more numerous. Thirdly, another ruling was detailed, that concerning the *Dhimma* – non-Muslim citizens under the protection of Islamic rule. As long as the *Dhimma* submit to the sovereign Islamic authority, paying what is required of them and the like, then the authority must guarantee protection for their wealth, dignity, honour and property. In this regard, they have the same rights as any Muslim. Moreover, the tradition provides an exemplification for the Qur'ānic verse where Allah says: *'Until they pay the tax in acknowledgment of superiority and they are in a state of subjection.'*¹⁵ The verse uses the Arabic word *'Ṣāghiroon'* which means to be under subjection. It doesn't mean in this context - humiliation, degradation or the violation of honour and dignity, although the word can encompass this, such as in the following verse: *'(Allah) said, 'Get down from here! This is no place for your arrogance. Get out! You are contemptible!'*¹⁶

Some of the major scholars of jurisprudence held this view, notably, Imām Abu Ḥanifah. Here it relates to submission, in other words, as long as they have submitted to the rule of Islam and pay what is thereby obligated upon them. If it is not for this infallible and definite explanation, we would have been obliged to understand 'under subjection' according to all its possible meanings in Arabic language or to remain in state of confusion about deciding the right meaning - which would no doubt constitute a major problem, one

¹⁵ *Qur'ān* 9: 29

¹⁶ *Qur'ān* 7: 13

that I do not know how the Qur’ānists and rejecters of the Prophetic *Sunnah* would be able to solve.¹⁷

Legal rules not limited to the Qur’ān

To begin consideration of the various *aḥādith* on this matter, Imām Abu Dāwūd collected in his *Sunan*:

عن عبيد الله بن أبي رافع عن أبيه عن النبي صلى الله عليه وعلى آله وسلم قال لا ألفين أحدكم متكئاً على أريكته، يأتيه الأمر من أمري، مما أمرت به أو نهيت عنه فيقول لا ندري! ما وجدنا في كتاب الله اتبعناه

From Abdullah ibn Rāfiḥ from his father from the Prophet peace and blessings be upon him said: *Let me not find any one of you reclining on his couch when he hears something regarding me which I have commanded or forbidden and saying: We do not know. What we found in Allah's book we have followed.*¹⁸

Again, the *ḥadith* is *Ṣaḥīḥ* and several notable collectors cited this in their respective works.¹⁹ The *ḥadith* is also *Ṣaḥīḥ* from the channel of Sufyān ibn ‘Uyayna, as well as from the channel of Mālik and thirdly via al-Layth ibn Sa’d. All of these channels are strong and reinforce one-another. Regarding this al-Ḥākim said: ‘It is *Ṣaḥīḥ* according to the conditions of the two Shaykh’s (al-Bukhārī and Muslim) although they did not record it.’ Indeed it is, particularly when considered in tandem with the text of the previous and following narrations. Imām al-Ṭabarānī cites the next *ḥadith* in his *Mu’jam al-Kabir* with a *Ṣaḥīḥ isnād*:

¹⁷ Here, to bolster the point regarding the inviolability of rights for those the *dhimma* under Islamic rule, a long-quote is provided as evidence to further substantiate that, which is what the Prophet peace be upon him detailed for the people of Najrān. The follow-on reference provided is to al-Bayhaqy’s *Dal’ail al-Nubuwwah* [Vol. 5, no. 485]. For a standalone study on all the Prophetic letters, compacts and treaties, one can consult the work of Muhammad Hamidullah in this respect, published in 1985 and entitled *Majmū‘at al-Wathā’iq al-Siyāsiyya li-l-‘ahd al-Nabawī wa al-Khilāfat al-Rāshida* (Compendium of the Prophet and the Rightly-Guided Caliphs’ Political Documents) (Dar al-Nafaes: Beirut). An open access version is available via the Internet Archive < <https://archive.org/details/Mago3et-Wathaiq> > Another useful reference, in English, is that of *Kitāb al-Amwāl (The Book of Revenue)* by Abu Ubayd al-Qāsim ibn Sallām.

¹⁸ *Sunan* Abu Dāwūd [Vol. 4, no. 4605]

¹⁹ Of the ten listed references notable among them are: *Musnad* al-Ḥumaydi [Vol. 1, no. 551], *Sunan* Ibn Mājah [Vol. 1, no. 13] and *Sunan* al-Tirmidhi [Vol. 5, no. 2663].

حدثنا أبو زرعة عبد الرحمن بن عمرو الدمشقي حدثنا علي بن عياش الحمصي (ح) وحدثنا أبو زيد أحمد بن عبد الرحيم بن زيد الحوطي حدثنا أبو اليمان الحكم بن نافع قال حدثنا حريز بن عثمان (ح) وحدثنا الحسين بن إسحاق التستري حدثنا علي بن بحر حدثنا الوليد بن مسلم حدثنا حريز بن عثمان عن عبد الرحمن بن أبي عوف عن المقدم بن معدي كرب قال قال رسول الله، صلى الله عليه وسلم أوتيت الكتاب ومثله؛ ألا يوشك شعبان على أريكته يقول عليكم بالقرآن فما وجدتم فيه من حلال فأحلوه، وما وجدتم فيه من حرام فحرّموه ألا لا يحل لكم الحمار الأهلي؛ ولا كل ذي ناب من السباع؛ ولا لقطة معاهد إلا أن يستغني عنها صاحبها؛ ومن نزل يقوم فعليه أن يفروه

Abu Zur’a ‘Abdar-Raḥman ibn ‘Amr al-Dimishqi narrated to us Ali ibn ‘Ayāsh al-Ḥimṣī narrated to us (*ḥawala*) and Abu Zayd Aḥmad ibn ‘Abdar-Raḥeem ibn Zayd al-Ḥuṭī narrated to us Abu’l Yammān al-Ḥakm ibn Nāfi narrated to us, they said: Ḥareez ibn Uthmān narrated to us (*ḥawala*) and al-Ḥussain ibn Ishāq al-Tartusi narrated to us Ali ibn Baḥr narrated to us al-Waleed ibn Muslim narrated to us Ḥareez ibn Uthmān narrated to us from ‘Abdar-Raḥman ibn Abi ‘Auf from al-Miqdām ibn Mahdi Karib he said the Messenger of Allah peace and blessings be upon him said: *Beware! I have been given the book and something like it, yet the time is coming when a man replete on his couch will say: Keep to the Qur’ān; what you find in it to be permissible treat as permissible, and what you find in it to be prohibited treat as prohibited. Beware! The domestic ass, beasts of prey with fangs, a find belonging to a confederate, unless its owner does not want it, are not permissible to you. If anyone comes to some people, they must entertain him, but if they do not, he has a right to mulct them to an amount equivalent to his entertainment.*²⁰

Also in the *Mu’jam al-Kabir*, al-Ṭabarānī has the following *ḥadith*, which is *ḥasan li’dhātihi*, and considered *Ṣaḥīḥ* when read together with the previously cited narrations.

حدثنا أحمد بن المعلى الدمشقي والحسين بن إسحاق التستري قال حدثنا هشام بن عمار حدثنا يحيى بن حمزة حدثني محمد بن الوليد الزبيدي عن مروان بن ربيعة عن عبد الرحمن بن أبي عوف الجرشي عن المقدم بن معدي كرب أن رسول الله صلى الله عليه وسلم، قال أوتيت

²⁰ al-Ṭabarānī *Mu’jam al-Kabir* [Vol. 20, no. 669]. Additional follow-on references include that to the *Sunan* of Abu Dāwūd [Vol. 4, no. 4604], *Musnad* Aḥmad [Vol. 4, no. 17213] and *Musnad al-Shāmiyān* [Vol. 2, no. 1061].

الكتاب وما يعدله يوشك شيعان على أريكته يقول بيننا وبينكم هذا الكتاب فما كان فيه من حلال أحلناه، وما كان فيه من حرام حرّمناه ألا وإنه ليس كذلك لا يحلّ ذو ناب من السباع، ولا الحمار الأهلي ولا اللقطة من المعاهد إلا أن يستغني عنها، وأما رجل ضاف قوما ولم يقره فعليهم أن يغضبهم بمثل قراه

Aḥmad ibn al-Mu'la al-Dimishqi and al-Ḥussain ibn Ishāq al-Tartusi narrated to us, they said Hishām ibn 'Ammār narrated to us Yaḥya ibn Ḥamza narrated to us Muḥammad ibn al-Waleed al-Zubaydi narrated to me from Marwān ibn Ru'ba from 'Abdar-Raḥman ibn Abi 'Auf al-Jarshi from al-Miqdām ibn Mahdi Karib that the Messenger of Allah peace and blessings be upon him said: *I have been given the book and its justice; (a man) will recline on his couch saying what is found between this book to be lawful, treat it as lawful and what is prohibited, treat as prohibited. It should not be like this. The fanged beast of prey is not lawful, nor the domestic asses, nor the find from the property of a man with whom a treaty has been concluded, except that he did not need it. If anyone is a guest of people who provide no hospitality for him, he is entitled to take from them the equivalent of the hospitality due to him.*²¹

Mursal narrations as supporting evidence

There are also a number of *marāseel* (pl. of *mursal*) which have reached us from Abu Dāwud that are worthy of consideration given the preceding discussion:

حدثنا عبد السلام بن عتيق الدمشقي حدثنا أبو مسهر حدثني خالد بن زيد حدثني هشام بن الغاز عن مكحول قال قال رسول الله صلى الله عليه وسلم أتاني الله القرآن ومن الحكمة مثليه

²¹ Ibid. [no. 669]. Just over half a dozen additional references are provided for this tradition, notable among them are: *Ṣaḥīḥ* Ibn Ḥibbān [Vol. 1, no. 12], *Sunan* Abu Dāwud [Vol. 3, no. 3804] and *Sunan* al-Dāraquṭni [Vol. 4, no. 59]. A further narration from al-Ḥākim *Mustadrak* [Vol. 1, no. 371] is provided thereafter, with the reporting wording being: *Lo! Soon a ḥadith from me will be conveyed to a man, while he is reclining on his couch, and he says: Between us and you is Allah's Book. So whatever we find in it that is lawful, we consider lawful, and whatever we find in it that is unlawful, we consider it unlawful. Indeed, whatever the Messenger of Allah peace and blessings be upon him made unlawful, it is the same as what Allah made unlawful!* The Professor says: 'The *ḥadith* is authentic upon the conditions as set out by Imām Muslim; al-Albāni regarded it as *Ṣaḥīḥ* and mentioned in its chain of transmission via 'Abbās al-Taraqufī, listing many good and authentic ways through which it was narrated.' Upwards of ten following references for the *ḥadith* are listed, notable among them being: *Musnad* Aḥmad [Vol. 4, no. 17233], *Sunan* al-Tirmidhi [Vol. 5, no. 2664], and *Sunan* Ibn Mājah [Vol. 1, no. 12].

'Abd al-Sallām ibn 'Ateeq al-Dimishqi narrated to us Abu Mushir narrated to us Khālīd ibn Zayd narrated to me Hishām ibn al-Ghāz narrated to me from Makḥul, he said the Messenger of Allah peace and blessings be upon him said: *Allah has inspired to me the Qur'ān and the Ḥikmah which is similar to it.*²²

Thus in the round, we would say that the reports considered altogether can be taken as *tawātur* as narrated by 'Irbāḍ ibn Sāriya al-Salami, Abu Rāfiḥ', al-Miqdām ibn Mahdi Kareeb al-Kindi and Abu Hurayrah – may Allah be pleased with all of them. All these are demonstrative of the fact that the Prophet peace and blessings be upon him was given the Qur'ān *and something other like it*. As for some of the wording which comes via various *ḥadith* channels further exemplify the point, namely, that *I have preached, commanded and prohibited various matters as numerous as that which is found in the Qur'ān, or more so*; *'Indeed whatever the Messenger of Allah peace be upon him made unlawful, is the same as what Allah made unlawful'*. All of these recurrently reported meanings overlap and match. In the same context, there is a useful comment which has reached us from al-Ḥasan al-Baṣri:

بينما عمران بن حصين رضي الله عنه يحدث عن سَنَةِ نَبِينَا صَلَّى اللَّهُ عَلَيْهِ وَعَلَى آلِهِ وَسَلَّمَ إِذْ قَالَ رَجُلٌ يَا أَبَا نَجِيدٍ حَدِّثْنَا بِالْقُرْآنِ فَقَالَ لَهُ عِمْرَانُ أَنْتَ وَأَصْحَابُكَ يَقْرَأُونَ الْقُرْآنَ، أَكُنْتُ مُحَدِّثِي عَنْ الصَّلَاةِ، وَمَا فِيهَا، وَحُدُودَهَا؟ أَكُنْتُ مُحَدِّثِي عَنْ الزَّكَاةِ فِي الذَّهَبِ وَالْإِبِلِ وَالْبَقَرِ وَأَصْنَافِ الْمَالِ؟! وَلَكِنْ قَدْ شَهِدْتُ وَغَبْتُ! ثُمَّ قَالَ فَرَضَ عَلَيْنَا رَسُولُ اللَّهِ صَلَّى اللَّهُ عَلَيْهِ وَعَلَى آلِهِ وَسَلَّمَ فِي الزَّكَاةِ كَذَا، وَكَذَا! وَقَالَ الرَّجُلُ: أَحْبَبْتَنِي أَحْيَاكَ اللَّهُ! وَقَالَ الْحَسَنُ الْبَصْرِيُّ رَحِمَهُ اللَّهُ فَمَا مَاتَ ذَلِكَ الرَّجُلُ حَتَّى صَارَ مِنْ فَقَهَاءِ الْمُسْلِمِينَ

²² *al-Marāseel* Abu Dāwud [no. 534, p. 359]. Two further follow-on narratives are also set out [no. 535/536, p. 360]: 'Esa ibn Ḥammād narrated to us al-Layth reported to us from Ibn Ajlān from Abu Sa'eed *mawla* of Ibn Kareez from al-Ḥasan al-Baṣri that the Prophet peace and blessings be upon him said: *Whoever makes innovation or gives protection to an innovator, there is upon him the curse of Allah the angels and all mankind; it is without justice and not accepted.* They said, 'And what is this O Messenger of Allah?' He said: *Innovation without Sunnah; examples without end taken unjustly without right.* And: 'Muḥammad ibn al-Muthanna narrated to us Rawḥ ibn 'Ubādah narrated to us al-Awzā'i narrated to us from Ḥassān ibn 'Aṭiya he said Jibreel peace be upon him sent-down upon the Messenger of Allah, peace and blessings be upon him, the *Sunnah*; just as he brought down the Qur'ān and he taught him in this, just as he taught him the Qur'ān.' Thereafter the Professor comments: 'Also cited by al-Dārimi [Vol. 1, no. 153] from Muḥammad ibn Kathir from al-Awzā'i.'

While ‘Imrān ibn Ḥuṣṣain may Allah be pleased with him was talking about *ḥadīth*’s of the Prophet peace be upon him, a man came and said: O Abu Najid! Talk to us by the Qur’ān. ‘Imrān replied – ‘You and your companions are reciting the Qur’ān; can you tell me about prayer, what is included and its limits? Can you tell me about *Zakāt* that is imposed in gold, camels, cows and other types of wealth? You were reciting and did not know.’ Then he said – ‘The Messenger of Allah peace and blessings be upon him imposed so and so in *Zakāt*.’ The man said, ‘You have revived me, may Allah revive you.’ Al-Ḥasan al-Baṣri, may Allah have mercy upon him said ‘This man died while he was among jurists of Muslims.’

The *athar* is *Ṣaḥīḥ* and al-Ḥākim graded it as such in terms of its *isnād* in his *Mustadrak*.²³ Imām Abu Dāwūd reports a similar tradition in his *Sunan* from an alternate channel, which contains an amusing anecdote:

حدثنا محمد بن بشار حدثني محمد بن عبد الله الأنصاري حدثنا صرد بن أبي المنازل قال: سمعت حبيباً المالكي قال قال رجل لعمران بن حصين يا أبا نجيد إنكم لتحدثوننا بأحاديث ما نجد لها أصلاً في القرآن! فغضب عمران وقال للرجل: أوجدتم في كل أربعين درهما درهم ومن كل كذا وكذا شاة شاة ومن كل كذا وكذا بعيراً كذا وكذا؟ أوجدتم هذا في القرآن؟ قال: لا، قال: فعن من أخذتم هذا؟ أخذتموه عنا وأخذناه عن نبي الله صلى الله عليه وسلم، وذكر أشياء نحو هذا

Muḥammad ibn Bashār narrated to us Muḥammad ibn Abdullah al-Anṣārī narrated to me Ṣurad ibn Abul’Munnāzil he said, I heard Ḥabīb al-Mālikī say: A man said to ‘Imrān ibn Ḥuṣṣain: ‘Abu Najid, you narrate to us traditions whose basis we do not find in the Qur’ān.’ Thereupon, ‘Imrān got angry and said to the man: ‘Do you find in the Qur’ān that one *dirham* is due on forty *dirhams* (as *Zakāt*), and one goat is due on such-and-such number of goats, and one camel will be due on such-and-such number of camels?’ He replied: ‘No.’ He said: From whom did you take it? You took it from us, we took it from the Messenger of Allah peace and blessings be upon him.’ He mentioned many similar things.²⁴

²³ al-Ḥākim *Mustadrak* [Vol. 1, no. 372]; also recorded by al-Ṭabarānī in *Mu’jam al-Kabir* [Vol. 18, no. 369]

²⁴ *Sunan* Abu Dāwūd [Vol. 2, no. 1561]

With the fuller wording, this is recorded by Imām al-Ṭabarānī:

Yaḥya ibn Zakariyā al-Sāji and Aḥmad ibn Zuhayr al-Tastari narrated to us, they said Muḥammad ibn Bashār narrated to us Muḥammad ibn Abdullah al-Anṣārī narrated to us Ṣurad ibn Abi Mubārak narrated to us, he said I heard Ḥabīb ibn Abi Faḍāla al-Makki he said: When this *masjid*, this congregational *masjid* was built ‘Imrān ibn Ḥuṣṣain was sitting and I brought up the topic of intercession and a man from the people said: Oh Abu Najeed! You narrate statements for which we find no basis in the Qur’ān! ‘Imrān ibn Ḥuṣṣain became angry and said to the man: Have you read the Qur’ān? Did you find in that the *Maghrib* prayer was three-*rak’ahs* and that the *Esha* prayer was four? To which he responded: No. So how did you get to know about this matter? Didn’t you take it from us and we took it from the Messenger of Allah peace and blessings of Allah be upon him?

Did you find in the Qur’ān that for every four silver coins, one should be given in charity, and like thereof regarding cattle and such? Didn’t you take it from us and we took it from the Messenger of Allah? Did you find it in the Qur’ān, to which the man said: No. ‘Imrān said: I heard the Messenger of Allah, peace and blessings of Allah be upon him say: *There is no 'bringing', no 'avoidance' and no Shighār in Islam.* Did you not hear that Allah addressed the following in his book – (regarding the *mujrimeen*) *What has brought you into hell? They shall say – we were not of those who prayed; and we didn’t feed the poor, until it was mentioned – so the intercession of intercessors shall not avail them.*²⁵

I would submit that this is a good comment from Imām al-Ḥasan al-Baṣri. Can anyone imagine *fiqh* without the *Sunnah* of the Prophet peace and blessings be upon him and his guidance? Whoever has any doubt in that let him consider carefully the ‘*fiqh*’ of the *Khawārij* who are renowned for their neglect of the *Sunnah*. As a sect, they are characterised by severe strictness and spiteful deviation. Whoever wants to know more about that should read opinions of the ‘Qur’ānists’ - those who hold the Qur’ān as the sole reference

²⁵ Ibid. [Vol. 18, no. 547]

for Islam denying the authority of *Sunnah*. Such defiance of the Prophetic *Sunnah* has led them to support ridiculous sayings going above-and-beyond triviality, leaving reason and logic and ending in a *cul-de-sac* of thought. Sayings which emanate from this group seek to defy the revelation and are more akin to the ramblings of the insane.

Orders only emanating from Allah

Here, in the next cluster of *aḥādīth*, one can see that the Prophet peace and blessings be upon him was commanding and prohibiting only with that which was ultimately revealed from Allah the Almighty. To begin, Imām al-Ṭabarānī records the following tradition:

حدثنا أحمد بن النضر العسكري حدثنا أحمد بن النعمان الفراء المصيصي حدثنا عبد الرحمن بن عثمان الحاطبي عن أبيه عن عبد الله بن محمد الجهني عن عبد الله بن الحسن بن علي عن أبيه قال سعد رسول الله صلى الله عليه وسلم المنبر يوم غزوة تبوك فحمد الله وأثنى عليه ثم قال أيها الناس إني والله ما أمركم إلا بما أمركم الله به ولا أنهاركم إلا عما نهاكم الله عنه، فأجملوا في الطلب! فوالذي نفس أبي القاسم بيده إن أحدكم ليطلبه رزقه كما يطلبه أجله فإن تعسر عليكم شيء منه فاطلبوه بطاعة الله عز وجل

Aḥmad ibn an-Naḍr al-Askari narrated to us Aḥmad ibn al-Nu'mān al-Firā'a al-Maṣeeṣee narrated to us 'Abdar-Raḥman ibn 'Uthmān al-Ḥāṭabī narrated to us from his father from Abdullah ibn Muḥammad al-Juhany from Abdullah ibn al-Ḥasan ibn Ali from his father he said: The Messenger of Allah, peace and blessings be upon him ascended on the pulpit on the day of the *Ghazwa* of Tabuk. He glorified Allah, praising him and then said: *O people! Verily by Allah whatever I commanded you to, is that commanded by Allah. And what I have prohibited you is by the prohibition from Allah. Behave correctly in your endeavours! By him whose hand lies the soul of Abul' Qāsim! If one of you seeks his rizq like he seeks his ajl [lifespan] and it then becomes hard upon him then let him seek it via obedience to Allah, Lord of Majesty and Honour with obedience to Allah the Mighty and Sublime.*²⁶

²⁶ al-Ṭabarānī in *Mu'jam al-Kabir* [Vol. 3, no. 2737]

The second narration, is that which was recorded by al-Bayhaqy, the wording of which is:

أخبرنا أبو زكريا بن أبي إسحاق وأبو بكر بن الحسن قال حدثنا أبو العباس محمد بن يعقوب أنبا الربيع بن سليمان أنبا الشافعي أنبا عبد الوهاب الثقفي قال سمعت يحيى بن سعيد يقول حدثني بن أبي مليكة أن عبيد بن عمير الليثي حدثه أن رسول الله صلى الله عليه وسلم أمر أبا بكر رضي الله عنه أن يصلي بالناس فذكر الحديث إلى أن قال فمكث رسول الله، صلى الله عليه وسلم، مكانه وجلس إلى جنب الحجر يحذر الفتن وقال: إني والله لا يمسه الناس علي بشيء: إلا أني لا أحل إلا ما أحل الله في كتابه ولا أحرم إلا ما حرم الله في كتابه

Abu Zakariyā ibn Abi Ishāq and Abu Bakr ibn al-Ḥasan reported to us, they said Abul' Abbās Muḥammad ibn Ya'qub narrated to us al-Rabiḥ' ibn Sulaymān reported reports, al-Shāfi'i reports, 'Abd al-Waḥhāb al-Thaqafi reports, he said: I heard Yaḥya ibn Sa'eed say – Ibn Abi Maleeka narrated to me that Ubayd ibn Umayr al-Laythi narrated to him that the Messenger of Allah, peace and blessings be upon him commanded Abu Bakr, may Allah be pleased with him, to pray with the people, mentioning the *ḥadīth* except that he said he remained with the Messenger of Allah, peace and blessings be upon him and sat in the place beside his apartment where he warned of tribulation and said: *Verily by Allah I have not withheld anything from the people; I have made lawful save what is made lawful in the book of Allah and prohibited only what is prohibited in the book of Allah.*²⁷

Further to this, al-Ḥākim records the following in his *Mustadrak*:

أَخْبَرَنَا أَبُو بَكْرٍ بْنُ إِسْحَاقَ أَنَّ أَحْمَدَ بْنَ إِبْرَاهِيمَ بْنِ مَلْحَانَ حَدَّثَنَا ابْنُ أَبِي بَكْرِ بْنِ حَدَّثَنِي اللَّيْثُ بْنُ سَعْدٍ عَنْ خَالِدِ بْنِ يَزِيدَ عَنْ سَعِيدِ بْنِ أَبِي هَلَالٍ عَنْ سَعِيدِ بْنِ أَبِي أُمَيَّةَ الثَّقَفِيِّ عَنْ يُونُسَ بْنِ

²⁷ al-Bayhaqy *Sunan al-Kubra* [Vol. 7, no. 13217]. Two additional narrations from *al-Ṭabaqāt al-Kubra* [Vol. 2, p. 256] by Ibn Sa'd are also mentioned: 'Muḥammad ibn Umar reported to us Sulaymān ibn Bilāl and 'Aāṣim ibn Umar narrated to me from Yaḥya ibn Sa'eed from Ibn Abi Maleeka from Ubayd ibn Umayr he said the Messenger of Allah peace and blessings be upon him said in his illness which he died from: *O people, by Allah I haven't kept anything from you. Verily I haven't made lawful except what Allah made lawful and I haven't prohibited except what Allah prohibited. O Fāṭima daughter of the Prophet, O Ṣaḥīya aunt of the Prophet. I undertake that set forth by Allah, but verily I cannot avail you at all against Allah.*' The second is, 'Muḥammad ibn Umar reported to us Sulaymān ibn Bilāl narrated to me from Yaḥya ibn Sa'eed from al-Qāsim ibn Muḥammad from 'Aisha that the Messenger of Allah peace and blessings be upon him said during his illness which he died from: *O people! Do not cling to me in isolation, I have not permitted for you except that which Allah permitted, and I have not forbidden anything for you except that which Allah has prohibited.*'

بُكَيرُ عَنْ ابْنِ مَسْعُودٍ أَنَّ رَسُولَ اللَّهِ صَلَّى اللَّهُ عَلَيْهِ وَسَلَّمَ قَالَ لَيْسَ مِنْ عَمَلٍ يُقَرِّبُ إِلَى الْجَنَّةِ إِلَّا قَدْ أَمَرْتُكُمْ بِهِ، وَلَا عَمَلٌ يُقَرِّبُ إِلَى النَّارِ إِلَّا قَدْ نَهَيْتُكُمْ عَنْهُ؛ لَا يَسْتَبِطَنَّ أَحَدٌ مِنْكُمْ رِزْقَهُ أَنْ جَنِرِلَ عَلَيْهِ السَّلَامُ أَلْفَى فِي رُوعِي أَنْ أَحَدًا مِنْكُمْ لَنْ يَخْرُجَ مِنَ الدُّنْيَا حَتَّى يَسْتَكْمَلَ رِزْقُهُ، فَاتَّقُوا اللَّهَ أَيُّهَا النَّاسُ وَأَجْمِلُوا فِي الطَّلَبِ، فَإِنْ اسْتَبَطَّ أَحَدٌ مِنْكُمْ رِزْقَهُ، فَلَا يَطْلُبْهُ بِمَعْصِيَةِ اللَّهِ، فَإِنَّ اللَّهَ لَا يُنَالُ فَضْلَهُ بِمَعْصِيَةٍ

Abu Bakr ibn Ishāq reported to us Aḥmad ibn Ibrāhīm ibn Miḥān reports, Ibn Abi Bukeer narrated to us al-Layth ibn Sa'd narrated to me from Khālīd ibn Yazeed from Sa'eed ibn Abi Hilāl from Sa'eed ibn Abi Amiya al-Thaqafi from Yunus ibn Bukeer from Ibn Mas'ud that the Messenger of Allah, peace and blessings be upon him said: *There isn't (any) act that will take you closer to paradise, but that I have commanded you all with. And there is no act that will take you closer to the fire except that I have prohibited you from undertaking it. Do not be impatient to receive your livelihood because certainly Jibreel revealed to me: None of you shall go out of the life of this world before completing their (receipt of) livelihood. Fear Allah O you people, and be moderate in your requests. If any of you are looking forward to receive sustenance that does not demand by disobeying Allah for surely we do not get the favours of Allah by disobeying him.*²⁸

In the *Muṣṣanaḥ* of Imām Abu Bakr ibn Abi Shayba he recorded the *ḥadith* but from an alternate channel of reporting; the wording though is very similar, and states: 'Verily, there is not a thing which would bring you closer to paradise and protect you from the fire except that I have commanded you with and there is not a thing which would bring you closer to the fire and shield you from paradise that I have not forbidden to you.'²⁹ Finally, we have the following which is reported both in the *Musnad* of Imām al-Shāfi'i as well as in what is arguably one of his most famous works, *al-Risāla*:

²⁸ al-Hākim *Mustadrak* [Vol. 2, no. 2136]

²⁹ *Muṣṣanaḥ* Ibn Abi Shayba [Vol. 7, no. 34332]; the *isnād* being 'Muḥammad ibn Bishr narrated to us he said Ismā'il ibn Abi Khālīd narrated to us from 'Abd al-Malik ibn Umayr he said I was informed that Ibn Mas'ud said that the Messenger of Allah peace and blessings be upon him said.' A further additional narration is also provided from the *Tafsir* of al-Baghawi [Vol. 3, p. 566] reported on the authority again of Ibn Mas'ud, the wording being: 'O people! There is not a thing which would bring you closer to paradise and protect you from the fire except that I have commanded you with and there is not a thing which would bring you closer to the fire and shield you from paradise that I have not forbidden to you.'

أَخْبَرَنَا الشَّافِعِيُّ رَضِيَ اللَّهُ عَنْهُ قَالَ أَخْبَرَنَا عَبْدُ الْعَزِيزِ بْنُ مُحَمَّدٍ هُوَ الدَّرَاوَرْدِيُّ، عَنْ عَمْرِو بْنِ أَبِي عَمْرٍو مَوْلَى الْمُطَّلِبِ بْنِ حَنْطَبٍ عَنْ الْمُطَّلِبِ بْنِ حَنْطَبٍ رَضِيَ اللَّهُ عَنْهُ أَنَّ النَّبِيَّ صَلَّى اللَّهُ عَلَيْهِ وَسَلَّمَ قَالَ مَا تَرَكْتُ شَيْئًا مِمَّا أَمَرَكُمُ اللَّهُ بِهِ إِلَّا وَقَدْ أَمَرْتُكُمْ بِهِ، وَلَا تَرَكْتُ شَيْئًا مِمَّا نَهَاكُمُ اللَّهُ عَنْهُ إِلَّا وَقَدْ نَهَيْتُكُمْ عَنْهُ؛ وَإِنَّ الرُّوحَ الْأَمِينَ قَدْ نَفَثَ فِي رُوعِي أَنَّهُ لَيْسَ تَمُوتُ نَفْسٌ حَتَّى تَسْتَوْفِيَ رِزْقَهَا فَأَجْمِلُوا فِي الطَّلَبِ

al-Shāfi'i may Allah be pleased with him reported to us he said 'Abd al-Aziz ibn Muḥammad, he is al-Darāwardi, reported to us from 'Amr ibn Abi 'Amr *mawla* al-Muṭṭalib ibn Ḥaṇṭab from al-Muṭṭalib ibn Ḥaṇṭab may Allah be pleased with him that the Prophet peace and blessings be upon him said: *I have left nothing concerning which Allah has given you an order without giving you that order; nor have I neglected anything concerning which He has given you a prohibition without giving you that prohibition. The trustworthy spirit has inspired me [with the thought] that no soul will ever die until it will receive its full provision. Be therefore moderate in your request.*³⁰

The *isnād* that Imām al-Shāfi'i provides us with is *mursal*. Yet when taken together with the other connected traditions cited above, it can also be considered as authentic; it does not substantively conflict with the connected *aḥādith* already cited. In the round, all of these traditions provide further clarification that all that the Prophet peace and blessings be upon him only commanded and prohibited that which was emanating from Allah and no other. Within this it is evident that he conveyed the message in its entirety, which is what Allah required. What remains is the good from the *wājib* or *mustaḥab* that he ordered or commanded and the iniquity from the *ḥarām* that he prohibited us from.

Sunnah and the danger of innovation

In his *Sunan* Imām Ibn Mājah recorded what has become quite a well-known *ḥadith* which is reported on the authority of 'Irbād ibn Sāriya:

حَدَّثَنَا عَبْدُ اللَّهِ بْنُ أَحْمَدَ بْنِ بَشِيرٍ بْنُ دَعْوَانَ الْيَمَنِيُّ حَدَّثَنَا الْوَلِيدُ بْنُ مُسْلِمٍ قَالَ حَدَّثَنَا عَبْدُ اللَّهِ بْنُ الْعَلَاءِ يَغْنِي ابْنَ زَيْدٍ قَالَ حَدَّثَنِي يَحْيَى بْنُ أَبِي الْمَطَّاعِ قَالَ سَمِعْتُ الْعُرْبَاضَ بْنَ سَارِيَةَ يَقُولُ قَامَ فِينَا رَسُولُ اللَّهِ صَلَّى اللَّهُ عَلَيْهِ وَسَلَّمَ ذَاتَ يَوْمٍ، فَوَعظَنَا مَوْعِظَةً بَلِيغَةً، وَجَلَّتْ مِنْهَا الْقُلُوبُ،

³⁰ al-Shāfi'i (2010), *al-Risāla* (Dar an-Nafaes: Beirut) [no. 289, pp. 77/78]

وَدَرَفَتْ مِنْهَا الْعُيُونُ، فَقِيلَ يَا رَسُولَ اللَّهِ: وَغَضَّتْنَا مَوْعِظَةً مُوَدَّعٍ، فَأَعْهَدَ إِلَيْنَا بِعَهْدٍ، فَقَالَ: عَلَيْكُمْ بِتَقْوَى اللَّهِ، وَالسَّمْعِ وَالطَّاعَةِ، وَإِنْ عَيْدًا حَيْثِيًّا، وَسَتَرُونَ مَنْ بَغْدِي اخْتِلَافًا شَدِيدًا، فَعَلَيْكُمْ بِسُنَّتِي، وَسُنَّةِ الْخُلَفَاءِ الرَّاشِدِينَ الْمُهْدِيِّينَ، عَصُوا عَلَيْهَا بِالنَّوَاجِذِ، وَإِيَّاكُمْ وَالْأُمُورَ الْمُخْدَعَاتِ، فَإِنَّ كُلَّ بَدْعَةٍ ضَلَالَةٌ

Abdullah ibn Aḥmad ibn Basheer ibn Dhakwān al-Dimishqi narrated to us al-Waleed ibn Muslim narrated to us he said Abdullah ibn al-‘Alā, that is to say Ibn Zabr, narrated to us he said Yaḥya ibn Abul’Muṭā’ he said I heard ‘Irbād ibn Sāriya say: One day, the Messenger of Allah peace and blessings be upon him stood up among us and delivered a deeply moving speech to us that melted our hearts and caused our eyes to overflow with tears. It was said to him: ‘O Messenger of Allah, you have delivered a speech of farewell, so enjoin something upon us.’ He said: *I urge you to fear Allah, and to listen and obey, even if (your leader) is an Abyssinian slave. After I am gone, you will see great conflict. I urge you to adhere to my Sunnah and the path of the Rightly-Guided Caliphs and cling stubbornly to it. And beware of newly-invented matters, for every innovation is misguidance.*³¹

Elsewhere the narration appears in quite a number of *ḥadith* collections, although it is noticeably absent from the respective *Ṣaḥīḥ* collections of Imām Bukhārī and Muslim.³² After citing this in *al-Mustadrak*, al-Ḥākim writes:

I have undertaken research to investigate whether this *ḥadith* is authentic. As for what has been written by the Imām of the scholars of *ḥadith* - Shu’ba, (who) said in the *ḥadith* of Abdullah ibn ‘Aṭā from ‘Uqba ibn ‘Aāmīr when asked about in Baṣra, Kufa, Medina and Mecca. Then, returning to the *ḥadith* of Shahr ibn Ḥawshab, and he left it. Then Shu’ba said if the *ḥadith* is *Ṣaḥīḥ* from the Messenger of Allah, peace and blessings be upon him, then it is dearer to me than my parents and all people together. Indeed, this is an authentic *ḥadith*, praise be to Allah and peace and blessings upon Muḥammad and all his Companions.

³¹ *Sunan Ibn Mājah* [Vol. 1, no. 42]

³² The listed follow-on references, which are almost ten are presented in full. Among them are *Sunan al-Tirmidhi* [Vol. 5, no. 2676], *Musnad Aḥmad* [Vol. 4, no. 17,182] and al-Ḥākim *Mustadrak* [Vol. 1, no. 333].

Yes indeed - all praise belongs to Allah and blessings are due upon our Prophet Muḥammad his family and noble companions. Without doubt the command to uphold and cling unwaveringly to his *Sunnah* is established. There is the stern warning upon introducing innovations without legal precedent into this *Deen*, because that stems from the path of misguidance, landing the innovator into the fire of hell. His *Sunnah* is his reported speech, actions and approvals all of which constitute legal proof, and not anything other than that, peace and blessings be upon him.

As for what is mentioned concerning the *Sunnah* of the rightly guided *Khulafā*, it refers to the *general* guidance in everything which they established and built upon according to the Qur’ān and the Prophetic *Sunnah*; their overriding commitment to the law of Allah in every matter, be that concerning war and peace; whether in hardship or ease, or whether in wealth or poverty. They were equitable and just as Islam demands; distributing wealth according to its due right; upholding the *ḥudud* of Allah both with immediacy and over the duration of their tenure in office, whether towards friend or foe.

Given this, several important points must be noted. Firstly, that of the complete submission that Islam requires of all its adherents and the recognition of the absolute sovereignty of the *Sharī’ah*; sovereignty does not reside within man or the institutions of men. Secondly, authority was legitimated via the mechanism of the *bay’ah* (pledge of allegiance) from the Muslims by way of their own free choice and to their satisfaction. It was not by way of *coup d’état*, usurpation, nor for that matter by way of ‘divine right’, such as is claimed by a hereditary monarchy or even a dictatorship.

Thirdly, there was an explicit recognition that the authority rests with the *Ummah*. The Islamic leadership undertook the management of public affairs only by way of being the representative of the *Ummah*. Authority entailed both responsibility and obligation. Indeed it wasn’t viewed flippantly, but rather as being a weighty burden which by the help and grace of Allah they would endure. They did not exercise political authority in the same manner as individuals exercise authority over a personal possession, believing that they alone must reap its benefits, treating those subject to their authority as mere chattel. Neither did they cling to power through all manner of Machiavellian machinations together with the most unspeakable levels of violence.

Any impartial observer would readily note the stark contrast between the ruling of the rightly guided *Khulafā* and that of the contemporary rulers found within the lands of Islam - the hereditary monarchs and dictators. Therefore, this is the underlying meaning of adhering to the *Sunnah* of the rightly guided *Khulafā*. It is not the *Sunnah* in the same sense as that of the *Sunnah* of the Prophet peace and blessings be upon him, as denoted by his reported speech, actions and approvals all of which constitute legal proof. The reason being, is that the Prophet peace and blessings be upon him is infallible whereas the rightly guided *Khulafā* were not. They were human and made mistakes, were liable to forget; they were not immune from sin and they differed in various legal judgements the sum of which cannot all be correct.

A revealed sent-down book

As has been reported from some of the *Ṣaḥāba* as well as the major *Kibār al-Tāb'ieen* which will now be considered, they employed the term *Kitāb Allah al-Munnazil* – the revealed/sent-down book of Allah. We know categorically with certainty that this term was not employed in relation to the specific text of the Qur'ān, nor did it specifically relate to the previously revealed books. Rather, what was being referred to was the Prophetic *Sunnah*. Imām Abu Bakr ibn Abi Shayba recorded the following narration in his *Muṣṣanaf* with a *Ṣaḥīḥ isnād*:

حدثنا عبيد الله عن شيبان عن الأعمش عن سالم بن أبي الجعد عن عبد الله بن عمرو قال إنا لنجد في كتاب الله المنزل صنفين في النار قوم يكونون في آخر الزمان معهم سياط كأنها أذناب البقر يضربون بها الناس على غير جرم لا يدخلون بطونهم إلا خبيثاً ونساء كاسيات عاريات مائلات مميلات لا يدخلن الجنة ولا يجدن ريحها

‘Ubaydallah narrated to us from Shaybān from al-‘Amash from Sālim ibn Abi Ja’d from Abdullah ibn ‘Amr he said: Indeed, we find in *Kitāb Allah al-Munnazil* two types (of people) in the fire: People who will appear towards the end of time who are beating people with whips that are like the tails of the cow; nothing enters their stomachs except that which is *khabeeth*, and women that are dressed but naked. They will not enter *jannah* nor even experience its aroma.³³

³³ *Muṣṣanaf* Ibn Abi Shayba [Vol. 7, no. 37742]

Additionally, this has also been reported by Imām Muslim in his *Ṣaḥīḥ* in two places but with a connected channel to the Messenger of Allah peace and blessings be upon him:

حدثني زهير بن حرب حدثنا جرير عن سهيل عن أبيه عن أبي هريرة قال قال رسول الله صلى الله عليه وسلم صنفان من أهل النار لم أرهما قوم معهم سياط كأذناب البقر يضربون بها الناس، ونساء كاسيات عاريات مميلات مائلات رؤوسهن كأسنمة البخت المائلة لا يدخلن الجنة ولا يجدن ريحها، وإن ريحها ليوجد من مسيرة كذا وكذا

Zuhayr ibn Ḥarb narrated to me Jarir narrated to us from Suhayl from his father from Abu Hurayrah he said the Messenger of Allah peace and blessings be upon him said: *Two are the types of the denizens of Hell whom I did not see: people having whips like the tails of the ox with them and they would be beating people, and the women who would be dressed but appear to be naked, who would be inclined (to evil) and make their husbands incline towards it. Their heads would be like the humps of the bukht camel inclined to one side. They will not enter paradise and they would not smell its odour whereas its odour would be smelt from such and such distance.*³⁴

In addition to the above, there is also the very long narrative recorded by al-Ḥākim, the most relevant portions quoted here:

Aḥmad ibn Uthmān al-Muqri and Bakr ibn Muḥammad al-Marwazi narrated to us they said Abu Qilāba narrated to us ‘Abd al-Ṣammad ibn ‘Abd al-Wārith narrated to us my father narrated to us Ḥussain ibn Dhakwān al-Mu’allim narrated to us Ubaydallah ibn Burayda al-Aslami narrated to us, that Sulāyman ibn Rabi’ah al-‘Anzi narrated to him in *Hajj* during the reign of Mu’āwiya and with him, al-Muntaṣir ibn al-Ḥārith al-Ḍabbi, in a group of the readers from the people of

³⁴ *Ṣaḥīḥ* Muslim [Vol. 3, no. 2128]. More than half a dozen follow references for the *ḥadith* are also presented, prominent among them are: *Ṣaḥīḥ* Ibn Ḥibbān [Vol. 16, no. 7461], *Musnad* Aḥmad [Vol. 2, no. 8650] and al-Bayhaqy *Sunan al-Kubra* [Vol. 2, no. 3077]. After this, the Professor provides two-follow on narratives, both reported by al-Ṭabarānī, the first in *al-Awsaṭ* [Vol. 5, no. 5251] narrated by Abu Umāmah carries the reported wording as: ‘There will come out of this Ummah a people having with them whips like the tails of cows, incurring the anger of Allah.’ The second, in *Mu’jam al-Kabir* [Vol. 22, no. 928] by Abu Shaqra: ‘If you see those who are thrown on their heads like the humps of cows, you know that their prayers are not accepted.’

Baṣra. (The narrator said): When they finished their rituals, they said: by Allah, we won't go back to Baṣra till we meet the men from the Companions of Muḥammad peace be upon him, to inform us of numerous *ḥadith*, that we may relay these to our companions when we return to them. He said we kept asking till we were told that Abdullah ibn 'Amr ibn al-'Aās may Allah be pleased with him had been accosted by the borders of Mecca. We then approached him and suddenly we found ourselves by a great caravan consisting of three hundred camels. And they were divided into two groups: with a hundred leaving and two hundred remaining. We then wondered for whom did this caravan belong to. We were told that it belonged to Abdullah ibn 'Amr.

Then he stated: O Allah be witness upon them, thereupon he said: I swear by the Lord of the Sacred House, and the Sacred Precincts, and the sacred month, and your sacred sworn oath. Then we said: yes you did your best.

He then continued: That *Banu Qanturā ibn Kar-Karri* who are snub-nosed, with small eyes and their faces look like the hammered shields as what's been mentioned in Allah's revealed book are going to devastate you, coming out across Khurasān and Sijistān, and they are undertaking great violence; wearing sandals that are made of hair, and they are hanging swords over their waists till they reach '*Ayalah*.'

al-Muntaṣir ibn al-Ḥārith al-Ḍabbi went back to him and said: O Abdullah ibn 'Amr! Your speech has terrified us, and we don't know whom will be going to witness these horrible events. Tell us, is there any sign regarding this? He replied: Don't hesitate, yes there's a mark for it. Muntaṣir said: So what is it? Abdullah said: The mark is a sign. Muntaṣir asked: What is this mark? Abdullah said: It is the government of boys. When (immature) boys become kings, so if you attend one of these boy's coronation, then recognise that it's the time for this matter to take place. And, for your information, it has already happened.³⁵

This also is reported by Imām Abu Bakr ibn Abi Shayba in his *Muṣṣanaḥ* with a *Ṣaḥīḥ isnād*:

³⁵ Given the substantial length of the narration, running to several pages, this has been abbreviated to only its relevant parts as highlighted in the chapter of the Arabic edition. The reference is as per al-Hakim *Mustadrak* [Vol. 4, no. 8618].

حَدَّثَنَا مُحَمَّدُ بْنُ فُضَيْلٍ عَنْ حُصَيْنٍ عَنْ حَسَّانَ بْنِ أَبِي الْمُخَارِقِ عَنْ أَبِي عَبْدِ اللَّهِ الْجَدَلِيِّ قَالَ أَتَيْتُ بَيْتَ الْمُقَدَّسِ فَإِذَا عِبَادَةُ بْنُ الصَّامِتِ وَعَبْدُ اللَّهِ بْنُ عَمْرِو وَكَعْبُ الْأَخْبَارِ يَتَحَدَّثُونَ فِي بَيْتِ الْمُقَدَّسِ فَقَالَ عَبْدُ اللَّهِ بْنُ عَمْرِو إِنَّا نَجِدُ فِي الْكِتَابِ أَنَّهُ يُخْرَجُ يَوْمَئِذٍ عَنْقُ مِنَ النَّارِ فَيَنْطَلِقُ مُعَنَّأً حَتَّى إِذَا كَانَ بَيْنَ ظَهْرَانِي النَّاسِ قَالَ يَا أَيُّهَا النَّاسُ إِنِّي بُعِثْتُ إِلَى ثَلَاثَةٍ، أَنَا أَعْرِفُ بِهِمْ مِنَ الْوَالِدِ بَوْلَدِهِ وَمِنَ الْأَخِ بِأَخِيهِ، لَا يُغْنِيهِمْ مِنِّي وَرَدٌ وَلَا تُخَفِّيهِمْ مِنِّي خَافِيَةُ الَّذِي جَعَلَ مَعَ اللَّهِ إِلَهًا آخَرَ، وَكُلُّ جَبَّارٍ غَنِيٍّ، وَكُلُّ شَيْطَانٍ مَرِيدٍ

Muḥammad ibn Fuḍeel narrated to us from Ḥuṣayn from Ḥassān ibn Abul'Mukhāriq from Abu Abdullah al-Jandali he said: I came to Jerusalem, then 'Ubādah ibn al-Ṣāmit, Abdullah ibn 'Amr and Ka'b al-Aḥbār conversed therein.

Abdullah ibn 'Amr said: Indeed, we find in the book, that which comes from the neck of the fire starting quickly in the presence of people. It will say – O people! I have been appointed in relation to three; I know them completely, more so than a father has knowledge of his son, and the brother of his own brother. None can prevent or hide them from me, and they are as follows: whoever made another god with Allah and every powerful stubborn one and every accursed *Shayṭān*.³⁶

The phrase used in the narrations – '*neck from the fire*' is undoubtedly *not* from the text of the Qur'ān nor for that matter amongst any other books of revelation which were prior to that in the hands of the people. This phrase however appears in the noble Prophetic *ḥadith only*. Similar is reported in the *Musnad* of Imām Aḥmad, albeit through a channel that contains 'Aṭiya ibn Sa'd al-Kufi, who is not strong. The channel in full and text is reported as follows:

حدثنا معاوية بن هشام حدثنا شيبان عن فراس عن عطية عن أبي سعيد عن أبي سعيد الخدري عن نبي الله صلى الله عليه وسلم انه قال يخرج عنق من النار يتكلم يقول وكلت اليوم بثلاثة بكل جبار وبمن جعل مع الله الها آخر وبمن قتل نفسا بغير نفس فينطوي عليهم فيقذفهم في غمرات جهنم

³⁶ *Muṣṣanaḥ* Ibn Abi Shayba [Vol. 7, no. 37416]. Given the length, the *ḥadith* has been abbreviated. Further references provided are for al-Suyutī *al-Dur al-Manthūr* [Vol. 8, p. 387] as reported by Sa'eed ibn Maṣṣūr, Ibn Abi Shayba and Ibn al-Mundhir from Abu Abdullah al-Jadli, and *Tafsir* Ibn Abi Ḥātim [Vol. 10, no. 19092], with the *isnād*: 'Alī ibn al-Mundhir al-Ṭarefi al-Awdi narrated to us Muḥammad ibn Fuḍeel narrated to us Ḥuṣayn narrated to us about it except that he said, 'in the fire before accounting by (a period) of forty years.'

Mu'āwiya ibn Hishām narrated to us Shaybān narrated to us from Firās from 'Aṭiya ibn Sa'd al-Kufi from Abu Sa'eed al-Khudri from the Prophet peace and blessings be upon him, he said: *A neck from the fire will come out on the day of judgement and speak, saying: This day I am charged with three: for every arrogant one and whoever makes another god with Allah also, and whoever is involved in killing a soul. All of them are to be thrown into the throngs of hell.*³⁷

The totality of established and corroborating evidences thus far mentioned in this regard provides proof to the level of certainty that the noble Prophetic *Sunnah* is a revelation from Allah and distinguished from the revealed text of the Qur'ān. Denial of this leads one into disbelief and ultimately to exit the fold of Islam completely. Thus, the noble Prophetic *Sunnah* is an established proof and underpins the essence of the latter half of the testimony of faith – that Muḥammad is the Messenger of Allah, a weighty testimony indeed for the day of judgement. Only the disbeliever, the one cursed would seek to object to this, like the so-called 'Qur'ānists' who have no share in Islam and are but stuck in profound ignorance with their absurd claims.

³⁷ *Musnad Aḥmad* [Vol. 3, no. 11372]

15. Summarising what is and is not permissible to the Prophets

Based upon the arguments thus far presented, it is perhaps pertinent at this juncture to outline some points in relation to what may or indeed may not happen to the Prophets, and in particular, the Prophet Muḥammad peace and blessings be upon him. It is important to note that such matters may not be within the purview of natural human limitation. Firstly, like all his previous brethren Prophets and other humans, he may have enemies; he may be subjected to harm, humiliation, torture, or even be imprisoned, driven out of his home country, or be at risk of death. Some of these afflictions actually took place, a famous example being the murder of the Prophet Yaḥya ibn Zakariyyā peace be upon him who was killed at the behest of a prostitute. Other Prophets were protected from such afflictions from the outset, such as Musa and his brother Hārūn peace be upon them both. The Prophet Muḥammad peace blessings be upon him was divinely protected from the actions of others only towards the end of the Medinan period, after which he ordered his guards to disperse. Before that, he was harmed - he was stoned by the mean people of Thaqif until they caused him to bleed, while the fools from among the tribe of Quraysh threw dirt on his honourable back. He sustained a head injury and his teeth were damaged during the battle of Uḥud and subjected to other kinds of injury until he was divinely protected.

Secondly, like all his previous brethren Prophets and other humans, he peace and blessings be upon him may suffer physical illness in all its variety, whether major or not, repulsive or not, except for the one whom Allah grants the protection of not being afflicted with such things. For example, Muḥammad peace and blessings be upon him was safe from being afflicted

with pleurisy. In fact, perhaps the purpose of afflicting the Prophets with deadly afflictions and resultant pain is for them to be an example of how to endure this with patience. Nevertheless, in general, Prophets may not suffer from mental or psychological illness, for this type of illness requires being rendered incapacitated, thus the ‘pen would be lifted’; yet Prophethood necessitates the soundness of mind and reporting of speech.

Thirdly, like his previous brethren Prophets, the Prophet (peace be upon him), may be subjected to other universal ordeals like loss of loved ones; financial loss, having to endure the difficulties of lack of sustenance or support and even being let down by people, such as their own family and tribe. It could be argued that such setbacks are more difficult when compared to others, thereby providing a good model of behaviour to emulate.

Fourthly, the Prophet peace and blessings be upon him, like all his former brethren Prophets, may perceive at certain times the perceptible world in a different manner to the reality of the situation, or in terms of how reports are presented; this is distinct from truth in itself. A multiplicity of reasons could exist for this, just as it does for most of mankind, such as - deception of senses, which can occur as a result of magic. Like in the verse where Allah recounts the story of Musa peace be upon him and the challenge before the magicians at the Pharonic court:

قَالَ بَلْ أَلْقُوا فَإِذَا حِبَالُهُمْ وَعِصِيُّهُمْ يُخَيَّلُ إِلَيْهِ مِنْ سِحْرِهِمْ أَنَّهَا تَسْعَى

‘You throw,’ said Moses, and - lo and behold! through their sorcery, their ropes and staffs seemed to him to be moving.¹

Or, it could be by a physical illness that spoils the taste of food, or the feeling of heat and cold. Mistakes made in reporting, either unintentional or deliberate, particularly concerning judicial witnesses appearing before court, lying under oath, forging documentation and the like. The reason may also be a lack of sufficient evidence necessary to prove the truth, though it is established as being the truth before Allah's knowledge.

This is the best of the Prophets of Allah, the seal of all Prophethood who has been protected by Allah, peace and blessings be upon him and his family. He was not protected from being deceived by people lying in court. He would

¹ Qur’ān 20: 66

have to issue judgement based upon the given facts and testimony. However, the peace and blessings be upon him has clarified this matter in the following *ḥadith*, where he was reported to have said:

I am only mortal and you people (litigants) come to me with your cases; and it may be that one of you can present his case eloquently in a more convincing way than the other, and I give my verdict according to what I hear. So, if ever I judge and give the right of a brother to another, then he (the latter) should not take it, for I am giving him only a piece of fire.²

Without question the *ḥadith* is authentic and has been recorded by many such as al-Bukhāri, Mālik, Aḥmad, and Abu Dāwud in their respective works. Collectively these chains of transmission provide conclusive evidence. Based upon this, a number of important points can be discerned. Falsehood might be very well presented and substantiated to such an extent, that it can deceive even those that are infallible in revelation, like the Prophet peace be upon him. If such an eventuality can happen to the Prophet peace and blessings be upon him, then it may also happen more often than not, to others well below his rank. Given the importance of this point, a separate section in this work will explore its consequences.

For that reason, the Prophetic reports about ‘worldly affairs’, in other words, pertaining to the reality in and of itself as well as the general properties and events are indeed similar to reports of other human beings, in that they may be accurate or inaccurate, especially when they are expressed as opinion. Examples of this are reported in the *ḥadith* as cited earlier in part one where the Prophet peace be upon him passed comment about the pollination of palm trees. Much of what many people nowadays falsely call ‘Prophetic medicine’ often falls within this category. Such matters need to be subjected to very careful scrutiny and reservation, so as not attribute a matter to revelation in error since that would be a grave crime.

² The wording of the narration is taken from al-Bukhāri as reported in the book of *aḥkām* under the chapter ‘The advice of the Imām to litigants.’ The *isnād* is authentic and al-Bukhāri reports it as follows: Abdullah ibn Maslama narrated to us from Mālik from Hishām from his father from Zaynab daughter of Abu Salama from Umm Salama, may Allah be pleased with her that the Prophet said.

Fifthly, like his other previous brethren Prophets, the Prophet Muḥammad peace and blessings be upon him may leave the most appropriate among permissible matters for something else, which is likewise also permissible. Amongst the various examples of this are selecting a specific field for battle; choosing a specific method of administration, or using certain equipment instead of others. Experts may be more efficient than others in selecting the most appropriate thing to do, in which case, the Prophet peace and blessings be upon him would consider their opinion instead. An example of this was the opinion of al-Ḥubāb ibn al-Mundhir to change the position of the army during the great battle of Badr. Undoubtedly, the Prophet peace and blessings be upon him, like other people of sound mind, exerts his utmost effort and does his best, even more than anyone else to reach the best possible opinion. Some might argue that this ‘opinion’ of the Prophet peace and blessings be upon him would constitute an *ijtihād*. It might well be, if taken literally, but it is not of the same concept as that of legal independent reasoning in the terminology of *uṣul*. For it does not befit the Prophet peace and blessings be upon him to say that he exercised independent legal reasoning, as will be outlined in due course.

Sixthly, like his other previous brethren Prophets, the Prophet Muḥammad peace be upon him may perform what is legally deemed to be undesirable and he may leave a recommended act with a number of considerations in mind:

- a. To illustrate the legislative ruling after a prohibition has been revealed, to clarify that it is in actuality, undesirable. To abstain from performing it is rewarded, but undertaking it is not sinful. The same would also apply to the recommended deeds, all of which being established via the infallible revelation emanating from Allah. Although ultimately only Allah knows best, it may be that this was established in this manner in order to provide concrete practical examples to those who have the tendency for excessiveness in religion. Such people may not readily accept such points solely by virtue of verbal pronouncements, except when accompanied by practical example. Moreover, there are certain rulings which have to be fully illustrated in practice and not merely by words.
- b. To give priority to mercy. Such as what the Prophet peace be upon him did with the prisoners of the battle of Badr.

- c. To give priority to the call of Islam in order that it reaches people of significance, as mentioned in the narrative of *Surah ‘Abasa*.
- d. Or to give predominance to kindness and gentleness as demonstrated with the companions in the verse of *Surah Tawba*.³

Together with the aforementioned points b), c) and d), we may also add that he, peace and blessings be upon him, might have thought or had the intention of doing something and then not acted upon that. Also, the Prophet peace and blessings be upon him may raise his hands and invoke Allah against people unintentionally, by mentioning customary Arab phrases like ‘may you be made barren’ or ‘may your mother be bereft of you’ or the like. These are some of the types of deeds for which Allah chided the Prophet peace be upon him, and which He described as ‘sins’ on the part of his Prophet. Then, Allah granted him a general pardon for all his past and future errors after the treaty of Ḥudaybiyah, he said:

إِنَّا فَتَحْنَا لَكَ فَتْحًا مُبِينًا، لِيُغْفِرَ لَكَ اللَّهُ مَا تَقَدَّمَ مِنْ ذَنْبِكَ وَمَا تَأَخَّرَ وَيُتِمَّ نِعْمَتَهُ عَلَيْكَ وَيَهْدِيَكَ صِرَاطًا مُسْتَقِيمًا، وَيَنْصُرَكَ اللَّهُ نَصْرًا عَظِيمًا

*Truly We have opened up a path to clear triumph for you [Prophet], so that Allah may forgive you your past and future sins, complete His grace upon you, guide you to a straight path, and help you mightily.*⁴

Many fools, in particular those from the *Khawārij*, typified by the likes of Dhul-Khuwayṣirah al-Tamimi, held the view that the Prophet peace and blessings be upon him could commit *both* major and minor sins. Nothing could be further from the truth in this regard. What the *Khawārij* and others who followed them failed to acknowledge was the precise nature of the ‘sins’ that were mentioned in the context of the Prophet’s acts. It is not the same as what constitutes ‘sin’ as it is for the rest of his *Ummah*. Rather, his ‘sin’ related to what he expressed as being lapses of God-consciousness. Furthermore, it would also encompass performing a deed that is *makruh* and the non-performance of a recommended deed – both of which are not ‘sins’ in the strict sense as it applies to the *Ummah* generally, given that both do not lead to punishment. Those who argued that the Prophet peace and blessings

³ See *Qur’ān* 9: 43

⁴ *Qur’ān* 48: 1/3

be upon him could commit major and minor sins in truth have lesser intellect than donkeys; at least donkeys and other beasts of burden have more consciousness of Allah than to advance such a claim.

Seventh, it is not befitting that the Prophet Muḥammad peace and blessings be upon him may commit *ḥarām*, be that major or minor. In the same regard, it is also not befitting that he peace and blessings be upon him would cease to perform any matter that was deemed a *wājib*, except where that would be considered to reside within his own specialisation and there is conclusive evidence relating to it as such. In fact, the Prophet peace and blessings be upon him undertaking the act would be conclusive evidence that it is permissible for his *Ummah*. Nevertheless, we would need additional evidence in order to determine whether such a deed was *makruh*, *mustaḥab* or *wājib*. Conversely, if the Prophet peace and blessings be upon him abandoned a deed this would be clear evidence that it is not an obligation. Again there would need to be an additional evidence to demonstrate that falls into another classification, be that *makruh*, *mubāḥ*, *mustaḥab* or *ḥarām*. The same line of argument cannot be said however with regards to the earlier Prophets. There is no compelling logical or legal evidence to apply the aforesaid reasoning to them, peace be upon them all. In fact, there is a textual example of the opposite – namely, in the case of the Prophet Yunus peace be upon him. Thus the case of the final seal of the Prophets, Muḥammad peace and blessings be upon him is different in this respect to his predecessors. Hence those who would dismiss everything that is found in the old books of revelation regarding the Prophets as a complete lie or fabrication, on the basis that it is contrary to the general infallibility of the Prophets do not have a substantive argument. Whilst we can establish with certainty based upon conclusive proof for the Prophet Muḥammad peace and blessings be upon him similar cannot be applied to earlier Prophets in the absence of such evidence.

Eighth, whatever the Prophet peace and blessings be upon him reports on affairs other than ‘worldly affairs’ is true and correct. His reports pertaining to previous nations and past facts are certainly true revelation sent from Allah, the almighty. The same applies to the Prophet's reporting on future events whose knowledge is only the preserve of Allah and cannot be known except by his leave. Such reporting cannot be subject to error or mistake lest it would lose its overall significance and not be part of Allah's establishment of proof to his servants.

Ninth, when the Prophet peace and blessings be upon him elicits reports which relate to commands and prohibitions, these are from revelation and nothing else. He did not speak of his own desire nor did he warn except by way of revelation. If it were possible for him to issue any command or warn against anything from his own desire without being based upon revelation from Allah, then it would be possible that *all* such commands and warnings were from desire. Hence, the Prophetic mission would be devoid of significance and it would bring the notion of revelation as a whole into question.

Tenth, it is not befitting for the Prophet peace and blessings be upon him to remain silent in relation to a *munkar* (evil), generally. He is duty-bound to convey the message of Islam and to enjoin all the good and forbid all the evil. For that reason, his silence about any act or specific approval of it, by necessity, denotes that it is not *ḥarām*. Then as mentioned previously, further evidence will be needed to establish whether the matter is undesirable, permissible, recommended or obligatory. Again as noted above, conclusive evidence from revelation or from the necessity and dictates of reason does not enable us to apply this principle to the rest of the Prophets that preceded him peace and blessings be upon him. Although many have argued for this very point, it has not been established with conclusive proofs, thus it cannot be taken further.

Finally, the notion of *ijtihād* in its specific technical sense – devising a legal provision from the detailed evidences – does not apply to the Prophet peace and blessings be upon him. It cannot apply given that he is the owner of the text, in other words, he is the commissioned Prophet through which revelation is communicated. His speech constitutes *naṣṣ*, as does his actions and approvals, for it is the legislation. Through this medium the law is conveyed as it is revealed to him by Allah. He doesn't extrapolate or deduce the law from its sources, for he peace and blessings be upon him is conveying it by way of revelation. In modern legal parlance, he is a lawgiver, protected by infallibility which Allah conferred upon him in order to convey the revelation. May the mercy and blessings of Allah be conferred upon him, his family and all his noble Companions.

16. Deception by false testimony

Previously we detailed what may or may not happen to the last Messenger, the seal of all the Prophets, Muḥammad peace and blessings be upon him as well as his former brethren Prophets which preceded him. He peace and blessings be upon him recognises the reality before him as perceived through the senses or as reported and brought before him, unlike the reality in itself which is in relation to the reporting of a liar and their mistake. Likewise, this can be said to occur within a judicial setting in relation to witness testimony, the falsification of documents; in relation to oaths which are false, and how a litigant presents his case, which may appear to be the truth. It can also extend to a lack of evidence in a case to establish who is right (or not being able to establish the requisite proof itself), that remains within the knowledge of Allah, and other examples like this.

The decisive proof upon this matter which can be upheld with certainty is as follows: that the last final messenger, the seal of the Prophets, peace and blessings be upon him is rendered infallible and protected by the directive of Allah. Yet this protection does not extend to being duped by the *nifāq* of the *munāfiq*, the lie of the liar, or having to make judgment upon the apparent when faced with an unscrupulous witness, or those having a good ability to skilfully argue and present their case. Allah the Exalted, blessed be His names has said:

وَلَوْلَا فَضْلُ اللَّهِ عَلَيْكَ وَرَحْمَتُهُ لَهَمَّتْ طَائِفَةٌ مِّنْهُمْ أَنْ يُضِلُّوكَ وَمَا يُضِلُّونَ إِلَّا أَنْفُسَهُمْ وَمَا يَضُرُّونَكَ مِنْ شَيْءٍ وَأَنْزَلَ اللَّهُ عَلَيْكَ الْكِتَابَ وَالْحِكْمَةَ وَعَلَّمَكَ مَا لَمْ تَكُن تَعْلَمُ وَكَانَ فَضْلُ اللَّهِ عَلَيْكَ عَظِيمًا

*If it were not for the grace of Allah and His mercy to you [Prophet], a party of them would have tried to lead you astray; they only lead themselves astray, and cannot harm you in any way, since Allah has sent down the Scripture and Wisdom to you, and taught you what you did not know. Allah's bounty to you is great indeed.*¹

The background to this verse is the famous story relating to Ṭa'mah ibn Ubayriq who was a *munāfiq* from amongst the men of the Anṣār. He was a thief who had stolen some goods; he denied the charges against him and had planted the stolen items with a Jew, whom he subsequently tried to frame with the crime. Allah the Majestic exposed the truth of this and the story has thereafter been preserved for posterity. Writing in his *Tafsir*, the grand Imām al-Ṭabari provides a comprehensive account of these events:

Abu Ja'far Muḥammad ibn Jarir, may Allah have mercy upon him said: That is to say, praise and glory be unto Him as He says: *We have sent down the Scripture to you [Prophet] with the truth so that you can judge between people in accordance with what Allah has shown you. Do not be an advocate for those who betray trust* [4: 105]. Indeed we have revealed to you O Muḥammad the book, that is to say the Qur'ān, 'so that you can judge between people'; to make decrees between people and determine judgements, disputes between them 'in accordance with what Allah has shown you.' That is to say, with what Allah has revealed unto you from His book, 'Do not be an advocate for those who betray trust,' and do not betray a Muslim or a *Mu'āhid* (an ally, a person who is granted the pledge of protection by the Muslims) in their person or in their wealth; contending in argumentation and quarrels about it, and not to press such demands or requests except by way of right and not betrayal. And 'Ask Allah for forgiveness: He is most forgiving and merciful,' [4: 106] Muḥammad to forgive your sins (and rescind) punishment concerning those who are antagonistic to you, (and) about the treacherous or traitor or other than that; 'He is most forgiving and merciful.'

He says - Verily Allah forgives the sins of His believing servants by leaving the punishment upon them if they seek forgiveness from

¹ Qur'ān 4: 113

Him, (He is) merciful (towards) them. So act accordingly, O Muḥammad; Allah will forgive you regarding this precedent from your opponents about this traitor. It has been said that the Prophet peace be upon him was not at odds with the traitor, but it was so. Hence Allah ordered him to seek forgiveness and they to do so similarly. And reminded that the treacherous, those whom Allah admonished and exalted His Prophet in the matter of Banu Ubayriq.²

After providing this broad overview, al-Ṭabari then begins to demarcate the channels from the Qur'anic interpreters, which is roughly divided into two halves. The first, contains six-channels outlining the narrative, thereafter, three-additional channels are presented emphasising a slightly different aspect to the reasons behind the revelation of the verse, although still within the same theme. Although not part of the original text, this is demarcated by number for ease of perusal.

Six lines of reporting, outlining the narrative

(al-Ṭabari said) And (there is) disagreement amongst the people of interpretation in the matter of his treachery, which it was described by Allah. It's been said by some (concerning this) the matter originated in relation to theft. Those mentioned that are:

(1) Muḥammad ibn 'Amr narrated to me he said Abu 'Aāsim narrated to us from 'Esa from Ibn Najih from Mujāhid in relation to the statement of Allah, *'We have sent down the Scripture to you [Prophet] with the truth so that you can judge between people in accordance with what Allah has shown you,'* to where He said *'To anyone who does these things, seeking to please Allah,'* [4: 105/114] (Mujāhid said) *'(It is regarding) the shield and armour stolen by Ṭa'mah ibn Ubayriq; his companions from among the believers said to the Prophet 'Excuse him by your tongue, (he is) of the people.'* So they cast the blame for the theft upon an innocent Jewish man.

² *Tafsir* al-Ṭabari [Vol. 7, pp 457/458]. This section here is unlike the Arabic edition which provides the quote from al-Ṭabari as one single citation, running over six-pages in length. For ease of reference and to enable greater navigation, this entire section has been re-arranged for the English translated edition. In tandem with this, the mention of the Qur'anic verses relating to [4: 105/116] are embedded into the narratives rather than separated off as footnote references.

(2) al-Muthanna narrated to me he said Abu Ḥudhayfah narrated to us he said Shibl narrated to us from Ibn Abi Najih from Mujāhid, mentioning similarly.

(3) al-Ḥasan ibn Aḥmad ibn Abi Shu'ayb Abu Muslim al-Ḥarāni narrated to us he said Muḥammad ibn Salama narrated to us he said Muḥammad ibn Ishāq narrated to us from 'Aāsim ibn Umar ibn Qatādah from his father from his grandfather, Qatādah ibn al-Nu'mān he said: There was a household among us called Banu Ubayriq, among whom was a Bishr, a Bushayr, and a Mubashar. Bushayr was a hypocrite who would recite poetry reviling the Companions of the Messenger of Allah, peace and blessings be upon him, then he would attribute it to some of the Arabs. Then he would say: *'So-and-so said this and that.'* So when the Companions of the Messenger of Allah, peace and blessings be upon him would hear that poetry, they would say: *'By Allah! No one but this filthy person would recite this poetry,'* - or as the man said - and they would say: *'Ibn al-Ubayriq said it.'*

He said: They were a poor and needy household during *Jāhiliyyah* and Islam. The only food the people of Medina had was dates and barely. When a man was able to, he would import flour from the Levant which he bought and kept for himself. As for his dependents, their only food was dates and barely. So an import arrived from Syria, and my uncle Rifā'ah ibn Zayd bought a load of it, which he put in a storage area he had, where he kept his weapons - his shield and his sword. But it was taken from him from under the house. The storage was broken into and the food and weapons were taken. In the morning, my uncle Rifā'ah came to me and said: *'O my nephew! We were robbed during the night, our storage was broken into, and our food and weapons are gone!'* He said: *'They overheard us in the house, and questioned us, and someone said to us, we saw Banu Ubayriq cooking during the night, and it looked like they had some of your food.'*

He said: Banu Ubayriq was saying while we were questioning them amidst their dwellings – *'By Allah! We do not think the one you are looking for is other than Labeed ibn Sahl, a man among us who is righteous and accepted Islam.'* When Labeed heard that, he brandished his sword and said: *'I stole? By Allah! Either you prove this theft, or I will take to you with this sword!'* They said: *'Leave us O men! You*

are not the one who has it.’ So we continued questioning in the dwellings until we had no doubt that they had taken it. My uncle said to me: O my nephew! You should go to the Messenger of Allah peace and blessings be upon him and tell him about that. Qatādah said: So I went to the Messenger of Allah peace and blessings be upon him and said: ‘O Messenger of Allah, a family among us are ill-mannered, and they conspired against my uncle Rifā’ah ibn Zayd. They broke into his storage and took his weapons and his food. We want them to return our weapons, but we have no need for the food.’ So, the Messenger of Allah peace and blessings be upon him said: *I will decide about that.* When Banu Ubayriq heard about this, they brought a man from among them named Usayr ibn Urwa to talk to him about that, and some people from their houses gathered and said: ‘O Messenger of Allah! Qatādah ibn al-Nu’mān and his uncle came to a family among us who are a people of Islam and righteousness, accusing them of stealing without proof or (any) confirmation.’

Qatādah said: I went to the Messenger of Allah peace and blessings be upon him and spoke to him, and he said: *You went to a family among them known for their Islam and righteousness, and accused them of stealing without confirmation or proof?* He said: So I returned wishing that I had lost some of my wealth, and that the Messenger of Allah peace and blessings be upon him had not spoken to me about that. My uncle Rifā’ah came to me and said: ‘O my nephew! What did you do?’ So I told him what the Messenger of Allah peace and blessings be upon him said to me, so he said: ‘It is from Allah whom we seek help!’ It was not long before the Qur’ān was revealed: ‘*Surely We have revealed the Book to you with the truth that you may judge between people by means of that which Allah has taught you; and be not an advocate on behalf of the treacherous*’ [4: 105], that is to say, Banu Ubayriq; ‘*Ask Allah for forgiveness,*’ [4: 106] (that is to say) from what you said to Qatādah. ‘*Do not argue for those who betray their own souls,*’ [4: 107] which is Banu Ubayriq. ‘*Allah does not love anyone given to treachery and sin,*’ [4: 107] until his statement ‘*and then asks Allah for forgiveness will find Him most forgiving and merciful,*’ [4: 110] which is, that they make repentance to Allah and Allah forgave them. ‘*He who commits sin does so against his own soul - Allah is all knowing and wise*’ [4: 111]; a manifest sin, their saying about Labeed.

‘If it were not for the grace of Allah and His mercy to you [Prophet], a party of them would have tried to lead you astray’ [4: 113]; Usayr and his companions, ‘*they only lead themselves astray, and cannot harm you in any way, since Allah has sent down the Scripture and Wisdom to you,*’ up to where He says ‘We shall give a rich reward’ [4: 114]

So when the Qur’ān was revealed, the Messenger of Allah peace and blessings be upon him brought the weapons and returned it to Rifā’ah. Qatādah said: ‘When the weapon was brought to my uncle - and he was a weak elderly man in *Jāhiliyyah*, and I thought that he merely had entered into Islam (without real sincerity) but when I brought it to him, he said: ‘O my nephew! It is for Allah’s cause.’ So I knew that his Islam was genuine. When the Qur’ān was revealed, Bushayr went with the idolaters; staying with Sulāfah bint Sa’d ibn Sahl. So Allah revealed: ‘*If anyone opposes the Messenger, after guidance has been made clear to him, and follows a path other than that of the believers, We shall leave him on his chosen path - We shall burn him in Hell, an evil destination*’ [4: 115], until where He said: ‘*for whoever does this has gone far, far astray,*’ [4: 116]. When he went to stay with Sulāfah, Ḥassān ibn Thābit lampooned her with verses of poetry. So she took his saddle, put it on her head; then she left with it to cast into the valley. Then she said: ‘You gave me the poetry of Ḥassān - you did not bring me any good.’

(4) Bishr ibn Mu’ādh narrated to us he said Yazeed narrated to us he said Sa’eed narrated to us from Qatādah (regarding the verse) ‘*We have sent down the Scripture to you [Prophet] with the truth so that you can judge between people in accordance with what Allah has shown you*’ [4: 105], saying, with what Allah has revealed to you and made clear to you, ‘*Do not be an advocate for those who betray trust*’; read up to where He says: ‘*Allah does not love anyone given to treachery and sin*’ [4: 107]. It was mentioned to us that these verses were revealed concerning the dishonour of Ṭa’mah ibn Ubayriq in what troubled the Prophet of Allah peace and blessings be upon him regarding his excuse. Allah clarified upon him, warning him not to advocate for those who are treacherous. Ṭa’mah ibn Ubayriq was a man from the Anṣār one of the tribe of Zafar. He stole a shield for his uncle and tried to conceal it by throwing it to a Jew, claiming it to be with him. (The Jew) he

was Zayd ibn al-Sameen. So the Jews came to the Prophet peace and blessings be upon him. He cheered when he saw that his people, Banu Zafar came to the Prophet peace and blessings be upon him to seek for their companion to be excused. The Prophet peace and blessing be upon him was troubled by his alibi, until Allah revealed the verses regarding his dishonour, thus He said: *'Do not argue for those who betray their own souls'* [4: 107], until where He says: *'There you [believers] are, arguing on their behalf in this life, but who will argue on their behalf with Allah on the Day of Resurrection?'* [4: 109] that is to say, with his people.

'And anyone who commits an offence or a sin, and then throws the blame on to some innocent person, has burdened himself with deceit as well as flagrant sin' [4: 112] - Ṭa'mah's innocence dissipated. When the matter of Allah exposing the dishonour of Ṭa'mah came to pass and his hypocrisy with the *mushrikeen* of Mecca, Allah revealed regarding this dishonour, in (the verse): *'If anyone opposes the Messenger, after guidance has been made clear to him, and follows a path other than that of the believers, We shall leave him on his chosen path— We shall burn him in Hell, an evil destination'* [4: 115].

(5) Muḥammad ibn Sa'd narrated to me he said my father narrated to me he said my uncle narrated to me he said my father narrated to me from his father from Ibn 'Abbās, (regarding where) He says: *'We have sent down the Scripture to you [Prophet] with the truth so that you can judge between people in accordance with what Allah has shown you. Do not be an advocate for those who betray trust'* [4: 105] (*sic.* the verse) was because a group from the Ansar had participated in some of the Prophet's expeditions. During one of these, a coat of armour belonging to one of them was stolen. A man from the Ansar was suspected of the theft. So the owner of the stolen coat of armour came to the Messenger of Allah, peace and blessings be upon him, and said *'Ṭa'mah ibn Ubayriq stole my coat of armour.'* The Messenger of Allah, peace and blessings be upon him, sent for Ṭa'mah. Upon witnessing this, he retrieved the stolen goods and threw it into the house of an innocent man. After this, he informed some of his tribesmen that the goods were concealed, placed in the house of 'so and so,' where it can be found. (Hearing this) they went to the Prophet, peace and blessings be upon him and said: 'O Messenger of Allah, our

companion is innocent! And the thief is so and so, and we have sure knowledge regarding this. Plead on behalf of our companions before the people and argue for him. For if Allah does not protect him through you, he will be ruined.' (Hearing this) the Messenger of Allah peace and blessings be upon him, stood up and declared the innocence of the accused, and argued for his favour before the people. At that moment, Allah revealed the following verses: *'We have sent down the Scripture to you [Prophet] with the truth so that you can judge between people in accordance with what Allah has shown you. Do not be an advocate for those who betray trust'* [4: 105]. Judge between them according to what Allah has revealed to you in the Book, *'Do not argue for those who betray their own souls: Allah does not love anyone given to treachery and sin'* [4: 107], the verse, then He said to those who came to the Messenger of Allah, peace and blessings be upon him at night: *'They try to hide themselves from people, but they cannot hide from Allah,'* [4: 108] to where He says *'arguing on their behalf in this life,'* [4: 109], which means those who came to the Messenger of Allah, peace and blessings be upon him, concealing the lie. And then He says *'And anyone who commits an offence or a sin, and then throws the blame on to some innocent person, has burdened himself with deceit as well as flagrant sin,'* [4: 112], and that of a clear sin, meaning, the thief and those advocating on his behalf.

(6) Yunus narrated to me he said Ibn Wahb reported to us he said Ibn Zayd said in relation to His saying: *'We have sent down the Scripture to you [Prophet] with the truth so that you can judge between people in accordance with what Allah has shown you'* [4: 105] the verse. He (Ibn Zayd) said: The verse he said was (about) a man who was a thief who stole an iron coat of armour in the time of the Prophet peace and blessings be upon him. He placed the stolen item with a Jew; the Jew said: 'By Allah, O Abul'Qāsim, I didn't steal it, it was planted on me.' The thief had neighbours who would be his alibi and further cast blame upon the Jew, saying 'O Messenger of Allah, this evil Jew (who) disbelieves in Allah and what you have brought.' The Prophet, peace and blessings be upon him was swayed (initially) by this, but Allah the Almighty admonished him for it. He says: *'We have sent down the Scripture to you [Prophet] with the truth so that you can judge between people in accordance with what Allah has shown you. Do not be an*

advocate for those who betray trust. Ask Allah for forgiveness,’ [4: 105/106], by what you said to the Jew, *‘He is most forgiving and merciful’* [4: 106]. Then, regarding his neighbours, He said: *‘There you [believers] are, arguing on their behalf in this life, but who will argue on their behalf with Allah on the Day of Resurrection?’* [4: 109]. (It is) read until it says, *‘Who will be their defender?’* [4: 109]. Thereafter, outlining the concept of repentance He said: *‘Yet anyone who does evil or wrongs his own soul and then asks Allah for forgiveness will find Him most forgiving and merciful’* [4: 110]. So what has brought you, O people, into the sin of this man, so that you speak besides him? *‘He who commits sin does so against his own soul - Allah is all knowing and wise,’* [4: 111] even if he is a *mushrik*, *‘and anyone who commits an offence or a sin,’* [4: 112], up to where He says: *‘If anyone opposes the Messenger, after guidance has been made clear to him,’* [4: 115]. He said: That he would accept the repentance that Allah offered to him, and (yet) he went out to the *mushrikeen* in Mecca, and he ransacked a house (there) to steal from it, so Allah demolished it and killed him. That is what he said, *‘an evil destination’* [4: 115]. And it is said, (the man) he is Ṭa’mah ibn Ubayriq and he was a descendent of the Bani Zafar.³

Remainder alternate reporting lines

Although quoted at length, the six-channels that al-Ṭabari provides gives a very thorough account of events and the reasons behind the revelation for these verses. Turning to the second slightly shorter part, placing emphasis differently, al-Ṭabari writes:

And others have said, that it is the act of treachery, which is the characterisation that Allah used in the verse in relation to His saying *‘Do not be an advocate for those who betray trust’* [4: 105]. The denial and (breach of) trust was the (main item) which was mentioned. Those who said as such are as follows:

(1) Muḥammad ibn al-Ḥussain narrated to us he said Aḥmad ibn Mufaḍḍal narrated to us he said Asbāṭ narrated to us from al-Suddi,

³ *Tafsir* al-Ṭabari [Vol. 7, pp. 458/465].

(regarding the verse) *‘We have sent down the Scripture to you [Prophet] with the truth so that you can judge between people in accordance with what Allah has shown you’* [4: 105]. (Concerning this) He said: Regarding *‘what Allah has shown you’* means what Allah has revealed to you. He said: (the verse) was revealed in relation to Ṭa’mah ibn Ubayriq. A man from among the Jews entrusted Ṭa’mah with a coat of armour. He left with it for his home, and the Jewish man had dug a hole for it, then buried it. Ṭa’mah disputed with him about it and eventually took it from the burial place. When the Jewish man came to obtain the item, Ṭa’mah defined all knowledge of it, so the Jewish man declared him to be a disbeliever for that. He went to some Jews from his tribe and said, *‘Come with me, for I know the whereabouts of the coat of armour.’* When Ṭa’mah learned of their intentions, he took the coat of armour and disposed of it in the house of Abu Muleel al-Anṣārī.

When the Jews came to retrieve the item of armour they couldn’t locate it. Ṭa’mah and some of his entourage were present. They insulted him and said *‘Are you betraying us?’* They left to undertake a search for the item and wound up at the house of Abu Muleel, where low and behold it was found. Ṭa’mah then laid the blame saying Abu Muleel took it. The Anṣār argued in favour of Ṭa’mah, so they said to him, *‘Let’s go to the Messenger of Allah and tell him to intercede on your behalf, refuting the argument of the Jew. For if I am falsely accused, the Jew would accuse the people of Medina. Some of the Anṣār proceeded to the Prophet, peace and blessings be upon him. They said to him ‘O Messenger of Allah, argue on behalf of Ṭa’mah and refute the claim made by the Jew.’ The Messenger of Allah had contemplated upon doing this. Thereafter Allah revealed: ‘Do not be an advocate for those who betray trust. Ask Allah for forgiveness,’* [4: 105/106] out of what you wanted, *‘He is most forgiving and merciful. Do not argue for those who betray their own souls: Allah does not love anyone given to treachery and sin’* [4: 106/107].

Then He mentioned the Anṣār and argument they had, saying: *‘They try to hide themselves from people, but they cannot hide from Allah. He is with them when they plot at night, saying things that do not please Him,’* [4: 108]. Saying, they say what He doesn’t approve of. *‘There you [believers] are, arguing on their behalf in this life, but who will argue on their behalf with Allah on the Day of Resurrection?’*

[4: 109]. Then He called (them) to repentance, saying: *‘Yet anyone who does evil or wrongs his own soul and then asks Allah for forgiveness will find Him most forgiving and merciful’* [4: 110]. Then it was mentioned in relation to where he alleged that Abu Muleel took it (the stolen items), He said: *‘He who commits sin does so against his own soul’* [4: 111] (and) *‘And anyone who commits an offence or a sin, and then throws the blame on to some innocent person, has burdened himself with deceit as well as flagrant sin’* [4: 112]. The great manifest sin. Then he mentioned the Anṣār and their arrival and that they were trying to exude on behalf of their companion, arguing for him, thus He says: *‘A party of them would have tried to lead you astray; they only lead themselves astray, and cannot harm you in any way, since Allah has sent down the Scripture and Wisdom to you’* [4: 113]; saying, the Prophecy; then He mentioned the trouble they gave about it, they wanted the lie (perpetuated) about Ṭa’mah, so He said: *‘There is no good in most of their secret talk, only in commanding charity, or good, or reconciliation between people’* [4: 114].

When Allah exposed Ṭa’mah in Medina by way of the Qur’ān, he fled until he came to Mecca. Thus **he disbelieved after his Islam** and stayed with al-Ḥajjāj ibn ‘Ilāt al-Sulami. Thereafter, he rummaged in the house of al-Ḥajjāj and wanted to steal from him. Al-Ḥajjāj heard the rustling in his house and the clutter of items that were with him. So he looked to see if it was Ṭa’mah and thus said – ‘My guest and my cousin that wants to steal from me?’ So he took him into the desert and he died by Bani Sulaym a *kāfir*. And Allah revealed in relation to this *‘If anyone opposes the Messenger, after guidance has been made clear to him, and follows a path other than that of the believers, We shall leave him on his chosen path— We shall burn him in Hell, an evil destination’* [4: 115].

(2) al-Qāsim narrated to us he said al-Ḥussain narrated to us he said Ḥajjāj narrated to me from Ibn Jurayj from ‘Ikrimah he said: A man entrusted from the Anṣār, Ṭa’mah ibn Ubayriq, he had commandeered the shield and thereafter went absent. A man from the Anṣār then came and opened his apartment and didn’t find his shield. He asked Ṭa’mah ibn Ubayriq regarding it, so he threw it to a man from the Jews and said to him that Zayd ibn al-Sameen has it attached to his shield and armour. When he saw that his people came to the Prophet peace and blessings

be upon him they told him to stave off the matter. Thereafter Allah Blessed and Almighty revealed – *‘We have sent down the Scripture to you [Prophet] with the truth so that you can judge between people in accordance with what Allah has shown you. Do not be an advocate for those who betray trust. Ask Allah for forgiveness: He is most forgiving and merciful’* [4: 105/106]; that is to say, Ṭa’mah ibn Ubayriq and his people. *‘There you [believers] are, arguing on their behalf in this life, but who will argue on their behalf with Allah on the Day of Resurrection? Who will be their defender?’* [4: 109] Muḥammad peace and blessings be upon him and the people of Ṭa’mah. *‘Yet anyone who does evil or wrongs his own soul and then asks Allah for forgiveness will find Him most forgiving and merciful’* [4: 110]; Muḥammad peace and blessings be upon him and the people of Ṭa’mah. He said: *‘He who commits sin does so against his own soul - Allah is all knowing and wise’* [4: 111] (in the) verse. And (regarding) Ṭa’mah: *‘And anyone who commits an offence or a sin,’* namely Ṭa’mah, *‘And then throws the blame on to some innocent person,’* that is to say, Zayd ibn al-Sameen, *‘has burdened himself with deceit as well as flagrant sin’* [4: 112] - Ṭa’mah ibn Ubayriq.

‘If it were not for the grace of Allah and His mercy to you’ O Muḥammad, *‘a party of them would have tried to lead you astray; they only lead themselves astray, and cannot harm you in any way’,* the people of Ṭa’mah ibn Ubayriq *‘since Allah has sent down the Scripture and Wisdom to you, and taught you what you did not know. Allah’s bounty to you is great indeed’* [4: 113], O Muḥammad, peace and blessings be upon him. *‘There is no good in most of their secret talk, only in commanding charity, or good,’* until (it was) completed (with) the verse to the general people *‘or reconciliation between people. To anyone who does these things’* [4: 114]. And then: *‘If anyone opposes the Messenger, after guidance has been made clear to him, and follows a path other than that of the believers’* [4: 115], the verse.

(In relation to the verse) he said what is revealed of the Qur’ān concerning Ṭa’mah ibn Ubayriq (that he) **ran to the Quryash and turned upon his religion**. He sought refuge with Ḥajjāj ibn ‘Ilāt al-Bahzi, an ally at peace with the Prophet, the tribe of ‘Abd al-Dār. He embraced their religion. He dug a well for them, and while he was digging, a stone fell on him, causing him to be injured. When morning came, they expelled him from Mecca. He left and encountered a group

from Buhāra from (the tribe of) Quḍā'ah. He approached them and said, 'I am a stranded traveler.' They carried him until night fell, and he robbed them. Then he left, and they set out to pursue him. They caught up with him and stoned him to death.

Ibn Jurayj said: Thus, this is the verse, all of it in it, revealed to where He said: '*Allah does not forgive the joining of partners with Him: anything less than that He forgives to whoever He wills*' [4: 48]. It was revealed (concerning) Ṭa'mah ibn Ubayriq and it is said that he threw the shield in the house of Muleel ibn Abdullah al-Khazraji. Therefore the Qur'ān descended as he ran to the Quraysh, so it was, what was ordered.

(3) Narrated from al-Ḥussain ibn al-Faraj, he said I heard Abu Mu'adh, 'Ubayd ibn Salmān narrated to us he said I heard al-Ḍaḥḥāk said in relation to the verse '*so that you can judge between people in accordance with what Allah has shown you*' [4: 105]; He said: what was revealed upon you and taught to you in His Book, and revealed this verse in relation to a man from the Anṣār who commandeered the shield from its owner. So the treacherous man from amongst the Companions of the Prophet peace and blessings be upon him (would be) angry with his people. And they came (to the) Prophet peace and blessings be upon him and they said: 'Our treacherous companion? And (yet) he is a truthful Muslim! O Prophet excuse him as he has been slandered.' So, he stood (before) the Prophet of Allah and lied to him, knowing he was innocent and falsely attributing (the theft) to him. Thus Allah explained (this) and revealed accordingly: 'We have sent down the Scripture to you [Prophet] with the truth so that you can judge between people in accordance with what Allah has shown you,' up to where He says 'Who will be their defender?' [4: 105/109]. So **following his betrayal of Allah, he went with the mushrikeen from the people of Mecca and left Islam.** So (the following was) revealed – '*If anyone opposes the Messenger, after guidance has been made clear to him, and follows a path other than that of the believers,*' up to where He says: '*in Hell, an evil destination*' [4: 115].

Abu Ja'far (al-Ṭabari) said: The most appropriate interpretation of that, based upon what is shown by the apparent meaning of the verse, is the statement of the one that said, his betrayal, which Allah has described in this verse. He betrayed what was entrusted to him, because that is

the well-known meaning of betrayal in the Arabic language. And this steers the interpretation of the Qur'ān gathered from the meaning of the speech of the Arabs (the language), above other interpretations.⁴

Despite its considerable length, the extract from the *Tafsir* of the grand Imām Abu Ja'far Muḥammad ibn Jarir al-Ṭabari, provides us with considerable insight and knowledge concerning the ruling on the present topic at hand. In relation to the above, I would submit firstly that the incident as recorded by Imām al-Ṭabari depends upon whether it is supported and uninterrupted concerning the channel from 'Aāṣim ibn 'Amr ibn Qatādah from his father from his grandfather, Qatādah ibn al-Nu'mān, instead of being from amongst the *marāseel* and *munqaṭi'āt*, and which shows that in reality the crime of theft was committed. That Allah named those people as the treacherous, not because they were solely charged with denial or rejection, but rather it was because they lied to the Prophet peace and blessings be upon him. For indeed, 'truth is a trust and the lie a betrayal,' just as Abu Bakr al-Ṣadeeq, may Allah be pleased with him said. Lying to the Prophet, peace and blessings be upon him, is no doubt from amongst the major destructive sins, the *mubiqāt*, and is vile and repudiated. The lie was done with intent and was thus a specific repudiation of the compact made with Allah when they bore witness that 'Muḥammad is the Messenger of Allah,' therefore breaking the compact through this disloyalty and treachery. Regardless of any difference in the specific details of the incident itself, the outcome – with regard to the present theme, that he peace and blessings be upon him acted according to *what he perceived before him* and was misled by the allegations made by a hypocrite and had initially defended his position until Allah the Majestic intervened and exposed the true nature of events. Thereafter the traitors were exposed and the truth of the matter was fully demonstrated. This wasn't because of the requirements of Prophetic infallibility or related to the requirements of Prophethood and delivery of the message, but outlining what originally occurred in the sequence of events.

To conclude this matter, we make a small commentary footnote to the *isnād* as relayed by Imām al-Ṭabari - al-Ḥasan ibn Aḥmad ibn Abu Shu'ayb Abu Muslim al-Ḥirānī narrated to us he said Muḥammad ibn Salama narrated

⁴ *Tafsir* al-Ṭabari [Vol. 7, pp. 466/470].

to us he said Muḥammad ibn Ishāq narrated to us from ‘Aāṣim ibn Amar ibn Qatādah from his father from his grandfather, Qatādah ibn al-Nu‘mān. Contained within it is Muḥammad ibn Ishāq as reporting ‘from’. In reality though, this channel is connected and *ṣaḥīḥ*, because Muḥammad ibn Ishāq did indeed explicitly hear this from the next individual in the chain of transmission, as is the ruling demonstrated from other related channels. Al-Ḥākim recorded the following in his *Mustadrak*:

حدثنا أبو العباس محمد بن يعقوب حدثنا أحمد بن عبد الجبار حدثنا يونس بن بكير حدثني محمد بن إسحاق **حدثني** عاصم بن عمرو بن قتادة عن أبيه عن جده قتادة بن النعمان رضي الله تعالى عنه قال كان بنو أبيبرق رهط من بني ظفر وكانوا ثلاثة بشير وبشير ومبشر وكان بشير يكنى أبا طعمة وكان شاعرا وكان منافقا وكان يقول الشعر يهجو به أصحاب رسول الله صلى الله عليه وسلم ثم يقول قاله فلان فإذا بلغهم ذلك قالوا كذب عدو الله

Abul’Abbās Muḥammad ibn Ya’qub narrated to us Aḥmad ibn ‘Abd al-Jabbār narrated to us Yunus ibn Bukeer narrated to us Muḥammad ibn Ishāq **narrated to me** ‘Aāṣim ibn ‘Amr ibn Qatādah from his father from his grandfather Qatādah ibn al-Nu‘mān may Allah be pleased with him, he said: ‘The sons of Ubayriq were a group from the tribe of Zāfir and they were three men, Basheer, Bashr and Mubashar. Basheer was the agnomen of Ṭa’mah’s father. He was a poet and a hypocrite. He used to satirize the companions of the Messenger of Allah peace be upon him. Then he used to claim that someone else was expressing satirical poetry against them, but whenever the companions heard it, they would say that it was a lie by an enemy of Allah.’⁵

⁵ al-Ḥākim *Mustadrak* [Vol. 4, no. 8164]. The narration is incredibly lengthy, essentially recounting the narrative concerning Ṭa’mah ibn Ubayriq. For the translation, this has been abbreviated to avoid repetition.

After recording this narration, al-Ḥākim said: ‘This *ḥadīth* is *ṣaḥīḥ* upon the conditions of (Imam) Muslim, but he didn’t record it.’ Indeed it is, as he has said. Many other scholars cited this within their respective collections.⁶

The hypocrites

Allah the Exalted, blessed be His names has said:

وَمِمَّنْ حَوْلَكُم مِّنَ الْأَعْرَابِ مُنَافِقُونَ وَمِنْ أَهْلِ الْمَدِينَةِ مَرَدُوا عَلَى النَّفَاقِ لَا تَعْلَمُهُمْ نَحْنُ نَعْلَمُهُمْ سَنُعَذِّبُهُمْ مَّرَّتَيْنِ ثُمَّ يُرَدُّونَ إِلَىٰ عَذَابٍ عَظِيمٍ

*Some of the desert Arabs around you are hypocrites, as are some of the people of Medina - they are obstinate in their hypocrisy. You [Prophet] do not know them, but We know them well: We shall punish them twice and then they will be returned to [face] a painful punishment [in the Hereafter].*⁷

From this verse, we see Allah attesting to the fact that contained within the blessed city of Medina, there were *munāfiqeen*, indeed, stubborn in hypocrisy. Moreover, the Prophet peace and blessings be upon him as shown by this verse did not know them. By necessity this requires that he judges all inhabitants – the believers, the truthful and all others – on the basis of the apparent and on their oaths and testimonies, be they ultimately true or false. Allah says:

إِذَا جَاءَكَ الْمُنَافِقُونَ قَالُوا نَشْهَدُ إِنَّكَ لَرَسُولُ اللَّهِ وَاللَّهُ يَعْلَمُ إِنَّكَ لَرَسُولُهُ وَاللَّهُ يَشْهَدُ إِنَّ الْمُنَافِقِينَ لَكَاذِبُونَ

⁶ Half a dozen additional references for this are provided. Notable among them are: *Sunan* al-Tirmidhi [Vol. 5, no. 3036] with the wording and channel of transmission like that of Imām al-Ṭabari: ‘al-Ḥasan ibn Aḥmad ibn Abi Shu’ayb Abu Muslim al-Ḥarānī narrated to us Muḥammad ibn Salama al-Ḥarānī narrated to us Muḥammad ibn Ishāq narrated to us from ‘Aāṣim ibn Umar ibn Qatādah from his father from his grandfather Qatādah ibn al-Nu‘mān he said: There was a household among us called Banu Ubayriq (et. al).’ Following which is Imām al-Ṭabarānī in *Mu’jam al-Kabir* [Vol. 19, no. 15]: ‘Abu Shu’ayb Abdullah ibn al-Ḥasan ibn Aḥmad ibn Abu Shu’ayb narrated to us – my father narrated to me, Muḥammad ibn Salama narrated to us from Muḥammad ibn Ishāq from ‘Aāṣim ibn Umar ibn Qatādah from his father from his grandfather Qatādah ibn al-Nu‘mān, he said.’ Together with their respective *isnād*, further references are made to other collections such as: *Tārikh Madina* (History of Medina) by Ibn Shabba [Vol. 2, p. 408] and *Tārikh Dimishq* (History of Damascus) by Ibn Asākir [Vol. 49, p. 270].

⁷ *Qur’ān* 9: 101

When the hypocrites come to you [Prophet], they say, 'We bear witness that you are the Messenger of Allah.' Allah knows that you truly are His Messenger and He bears witness that the hypocrites are liars.⁸

We would hasten to add that this does not mean that he did not need to know or that he wasn't informed by revelation in specific instances that certain people were indeed hypocrites, as has also been mentioned by Imām Ibn Ḥazm. Moreover, Allah the Exalted has explained:

يَا أَيُّهَا الَّذِينَ آمَنُوا إِن جَاءَكُمْ فَاسِقٌ بِنَبَأٍ فَتَبَيَّنُوا أَن تُصِيبُوا قَوْمًا بِجَهَالَةٍ فَتُصْحَبُوا عَلَىٰ مَا فَعَلْتُمْ نَابِمِينَ
O you who believe! If an evil-doer brings you news, check it first, in case you wrong others unwittingly and later regret what you have done.⁹

The reason behind the revelation of this verse are *mutawātir* and famous. There are several channels of transmission which outline the specific details. Amongst them, Imām al-Ṭabarānī records the following long narration in *Mu'jam al-Kabir*, with a reasonable *isnād*:

Abdullah ibn Aḥmad ibn Ḥanbal narrated to us Muḥammad ibn Abu 'Utāb Abu Bakr al-'Ayn narrated to me (*ḥawala*) and Muḥammad ibn Abdullah al-Ḥaḍrami narrated to us Abdullah ibn al-Ḥakam ibn Abu Ziyād al-Qaṭawānī narrated to us (*ḥawala*) and Muḥammad ibn Aḥmad al-Ḥimāl al-Aṣbahānī narrated to us Muḥammad ibn Esa al-Zujāj narrated to us; they said Muḥammad ibn Sābiq reported to us Esa ibn Dinār al-Muwazan narrated to us – my father narrated to me that he heard al-Ḥārith ibn Ḍirār al-Khuzā'y say: I arrived upon the Prophet peace and blessings be upon him, he invited me to Islam and I entered into it and I accepted it. And he invited me to the *Zakāt* and I accepted that, thereafter I said: O Prophet! I am going back to my people. There, I will call them to Islam and upon their response I will collect the *Zakāt* from them. O Prophet, please send someone at such and such time so that I will hand over the (collected) *Zakāt* money to him. (His people) responded to him and al-Ḥārith collected the *Zakāt* in a timely manner and wanted to send that to the Prophet peace and blessings be upon

⁸ *Qur'ān* 63: 1

⁹ *Qur'ān* 49: 6

him. He retained it with him for the Prophet to collect. Al-Ḥārith thought (given that no one came to collect) that he had in some way, earned the displeasure of Allah and his Messenger (peace be upon him). So he summoned his people and said to them: It is time for me to send a messenger to the Prophet peace and blessings be upon him in relation to the *Zakāt* which has been collected.

Meanwhile, the Prophet peace and blessings be upon him had sent Waleed ibn 'Uqba to al-Ḥārith to collect the *Zakāt*. However, when Waleed had travelled half-way there, he returned to the Prophet peace and blessings be upon him. Al-Waleed ibn 'Uqba said: O Messenger of Allah, indeed al-Ḥārith prevented me to collect the *Zakāt* and wanted to kill me, Messenger of Allah - dispatch a force to al-Ḥārith to strike at him. So a force of Companions was dispatched to go to al-Ḥārith. On route they came across al-Ḥārith and he asked, to whom have you been sent? They said: To you! He said, but why? They said: Indeed the Prophet peace and blessings be upon him dispatched al-Waleed ibn 'Uqba and he came back and claimed that you prevented the collection of *Zakāt* and wanted to kill him. Al-Ḥārith said: I swear by the one who raised Muḥammad peace and blessings be upon him with the truth! I did not see him (Waleed) and he did not come to me, nor did I seek to retain it (*Zakāt*). Thereafter *al-Ḥujjarāt* was revealed - *O you who believe! If a fāsiq comes to you with a report, look carefully into it, (etc).*¹⁰

I would submit that here also is where the Prophet peace and blessings be upon him did not have foreknowledge of the liar in his midst, namely al-Waleed ibn 'Uqba. He had sent a military expeditionary force which almost resulted in disaster, but for the divine intervention by the blessing of Allah.

Litigants in court

Next, al-Bukhārī cited the following narration in his *Ṣaḥīḥ*, which is exceptionality authentic:

¹⁰ al-Ṭabarānī *Mu'jam al-Kabir* [Vol. 3, no. 3395]. The verses mentioned at the end are from 49: 6/8. The Professor further says, 'Similar is reported in the *Musnad* of Imām Aḥmad where he records, 'Muḥammad ibn Sābiq narrated to us with its full channel and text.'

حدثنا أبو اليمان أخبرنا شعيب عن الزهري أخبرني عروة بن الزبير أن زينب بنت أبي سلمة أخبرته عن أمها أم سلمة قالت سمع النبي صلى الله عليه وسلم جلبة خصام عند بابيه فخرج عليهم فقال: إنما أنا بشر وإنه يأتيني الخصم، فلعل بعضاً أن يكون أبلغ من بعض، أقضي له بذلك، وأحسب أنه صادق! فمن قضيت له بحق مسلم فإنما هي قطعة من النار فليأخذها أو ليدعها

Abul'Yammān narrated to us Shu'ayb reported to us from al-Zuhri, Urwa ibn al-Zubayr reported to me that Zaynab the daughter of Abu Salama reported to her from her aunt Umm Salama, she said – the Prophet peace and blessings be upon him heard the voices of some people quarrelling near his gate, so he went to them and said: *I am only mortal and litigants with cases involving disputes come to me, and maybe one of them presents his case eloquently in a more convincing and impressive way than the other, and I give my verdict in his favour thinking he is truthful. If I give a Muslim's right to another then that is a piece of fire, which is up to him to take it or leave it.*¹¹

Without any shred of doubt, this narrative that has reached us from the Prophet peace and blessings be upon him is a decisive proof established with certainty. Moreover, this *ḥadīth* confirms several key facts which are of the utmost importance. It provides a dire warning to litigants who may be well-versed in presenting an eloquent case in court, yet behind this their claim is invalid. Such eloquent counsel by itself can even mislead the infallible Prophet (peace be upon him) to the extent that he could rule or judge in their favour, whether the litigation related to wealth, honour or blood. By greater reasoning, it is entirely plausible for the likes of famous companions such as Ibn 'Abbās or indeed other companions, may Allah be please with them all, to fall prey to crafty litigants in court. The noble companions, and indeed every other Islamic scholar or judge, does not receive revelation as the Prophet peace and blessings be upon him did in the aforementioned examples to expose the true nature of events. All must judge on the apparent and on the

¹¹ *Ṣaḥīḥ* al-Bukhārī [Vol. 6, no. 6762]. As a follow-on comment the Professor says: 'Imām al-Bukhārī has recorded similarly elsewhere within his *Ṣaḥīḥ*. It is a tradition which is reported by almost all scholars of note in their respective collections. It appears in several places in *Ṣaḥīḥ* Muslim, as well as in the *Sunan* collections of al-Bayhaqy, al-Dāraquṭnī, al-Nasā'ī, al-Tirmidhī, Ibn Majāh and Abu Dāwud. It is also in the *Musnad* collections such as that of Aḥmad, Abu Ya'la, and al-Ṭabarānī, in the *Muwaffā'* of Mālik, as well as in the various *Muṣṣanaf* collections like that of Abu Bakr ibn Abi Shayba.'

basis of evidence which is brought before them, and in this, like the Prophet peace and blessings be upon him, they are not immune from error.

Dialogue

A portion of this chapter was relayed on the internet in response to a debate with an unfortunate idiotic *Wahhābī* donkey from amongst the more 'learned' of the propagandists in the '*Salafi*' movement. Despite such efforts, these fell on deaf ears. Indeed, how should one respond when faced with his constructive criticism after perusing this section, he retorts: 'You are (from) the *zanādiqa*!' He continued:

That as long as your (argument stands that the) Prophet is misled by the lie of a liar, why not exclude the stories in relation to the previous nations as they appear in the Qur'ān given that all of it can be a deception made by the lie of a liar? As long as he can be misled by the lies of the liars, and that which is falsehood presented before him, why isn't many of the good things that he perceives also be considered a deception?

We would say, what is mentioned by this conceited individual is from the remarks of the *zanādiqa* – and we hope to Allah that we are never from amongst them. Yet it is not new altogether. For indeed, the Quraysh said as such, arguing that they knew human nature and that before his pronouncement peace and blessings be upon him, with that discourse. Similar outrageous comments have been uttered by the Orientalists.

The Prophethood of Muḥammad peace and blessings be upon him is established by proven decisive evidences, including this miraculous Qur'ān in our present possession. It is unlike the miracles of the previous Prophets which were temporary and demonstrated before a specific people. Many of the Prophetic miracles of Muḥammad peace and blessings be upon him are established through *tawātur*, continuously recurrent reports. He split the moon; he fed a large number of people from a very small quantity of food, through to predicting the attacks of the Mongols which occurred hundreds of years into the future. He peace and blessings be upon him used to deliver sermons while standing beside, or leaning against, the trunk of a date palm tree. When he peace and blessings be upon him used his pulpit instead, the

tree began to cry and wail. The entire course of history was changed during the lifetime of the Prophet; he changed the entire Arabian Peninsula in one generation, this was despite losing his uncle and original protector through to the hostility of fifth-columnists which he faced in Medina. All of this and many other decisive evidences pertaining to the fact will be outlined later in the present work.

Muḥammad peace and blessings be upon him is the Prophet of Allah, a conveyer of the pronouncement made from Allah and in that, he is infallible, even before he uttered from the glorious Qur'ān. Therefore as established with decisive certain evidences by the necessities of perception and reason, as well as by the text of the Qur'ān, that he peace and blessings be upon him is infallible in his speech, without lie or error. Concerning his acts, he does not commit anything prohibited. It is also further established that the *Dhikr* was revealed to him – the *Dhikr* being both the Qur'ān and the *Sunnah*, both of which is protected by Allah. Consequently, it is an attested and established proof when he peace and blessings be upon him said:

I am only mortal and litigants with cases involving disputes come to me, and maybe one of them presents his case eloquently in a more convincing and impressive way than the other, and I give my verdict in his favour thinking he is truthful. If I give a Muslim's right to another then that is a piece of fire, which is up to him to take it or leave it.

In reply, we say Allah and His Messenger spoke the truth and that speech in no manner undermines their truthfulness; the Prophet sitting in court before litigants is one of the best displays of this proof, or the fact that a liar may conceal his real motives in testimony. None of that is in conflict with the notion of infallibility in reporting from Allah.

O Allah and O Muslims – when was a person's report as a litigant in a court of judgement concerning the ownership of agricultural land or even a camel or a donkey, a report or pronouncement from Allah via such a person? Moreover, what precisely has a litigant in court presenting *his evidence* before the Prophet (peace be upon him) got to do with the Prophet's receipt of revelation and conveyance from Allah? Oh Allah and oh Muslims – when was Abul'Qāsim, Seal of the Prophets, whose infallibility was preserved by Allah, taking reporting about Allah from one amongst the people? Even as

originally presented by our questioner when he said: *and that which is falsehood presented before him, why isn't many of the good things that he perceives also be considered a deception?* After this the conceited questioner said:

Know that the *ḥadith* that you mentioned to prove that the Prophet peace be upon him can be deceived by the lies of liars does not mean what you have understood. Nay, this is a special case specific *ḥadith* mentioned in the area of judicial ruling and is clearly known. There are clear differences between judicial ruling and informing about Allah regarding legislation or interpretation of the Qur'ān. The statement of Ibn 'Abbās is from this second type. The judge only rules with what results from proof and upon testimony, even if it were contrary to reality, for he is required to act upon what is indicated by proof and testimony. Most of the scholars assert that the judge has to rule according to the proof and testimony even if he knew by himself that the truth is contrary to what he has ruled. For more in this regard, see: *Badā'i al-Ṣanā'i* Vol. 7, p. 7; *al-Tamheed* Vol. 22, p. 219, *Rawḍa al-Ṭālibeen* Vol. 11, p. 156 and *al-Mughny* Vol. 9, p. 53.

In reply, I submit – *mā'shā'Allah*; whatever Allah wills, will undoubtedly be. What specific relationship does this originally have to the chapter of judgment or the wider topic at hand? Fundamentally, the issue is whether it is possible that the Prophet can be misled by a litigant persuasively arguing *his case* in a legal setting, or deliberately being misled by a litigant lying outright to pursue his case; can this happen before an infallible Prophet? Alternatively, is it impossible for this to happen to him because he is an infallible Prophet? The *ḥadith* which relate to this area of judicial ruling, makes the matter even worse, being deceived by lies or ornamented false proofs in court is much worse, given that potentially, money, reputation, and lives can be at stake.

The Prophet peace and blessings be upon him rendered all trusts, conveyed the message, and warned that none after him will be protected or rendered infallible against believing a deceitful litigant, one who can conceal his dishonesty and successfully present his case in court. That also would not be limited to a particular type of litigation, but rather involving all, be that in relation to money, reputation, blood or otherwise. By greater reasoning, others may be misled by litigants in court, but also by other forms of sworn

testimony. A notable example which perhaps befell the great trusted Imām, Ibn ‘Abbās – if you still believe that the *isnād* is connected and correct, concerning the mythical story of al-Lāt, formerly a pious man who served *Saweeq* for pilgrims. If Ibn ‘Abbās were to enquire of the Arabs of his time to testify to the correctness of this myth, they may have well done so, arguing that it was heard from their forefathers. Yet what can be proven from hearing such testimony of even sworn oath or even other forms of hearsay?

As for the words of the obstinate questioner regarding what majority of scholars, as he would claim, believed in concerning the judge ruling according to proof and testimony, even if he knew that the truth was contrary to what he ruled, this has nothing to do with this subject and there is no gain out of it, notwithstanding its historical controversy. It is more likely that this opinion is wrong, notwithstanding that it would require an exhaustive study. Cases falling under the penal code generally, and especially those of adultery and reputation, are not like a dispute about the ownership of camel or a lot of land. Evidence and proof is not of the same kind or even degree. But to those who are small minded and shallow thinking, like the questioner, they would think it likely to be the case. Such discourse is typical from those who go to extremes in religion, typified by the *Wahhābi* / *Salafist* sect. Instead of pursuing such line of discourse, it would have benefitted the questioner to seek detailed knowledge and ask a more meaningful question.

The ruling of a judge with his knowledge has no relationship with our subject except if that questioner claimed that the Prophet peace and blessings be upon him knew that the witnesses lie; if they lied and discovered their falsification but he only ruled with what is apparent and lied and deceived us by saying:

I am only mortal and litigants with cases involving disputes come to me, and maybe one of them presents his case eloquently in a more convincing and impressive way than the other, and I give my verdict in his favour thinking he is truthful. If I give a Muslim's right to another then that is a piece of fire, which is up to him to take it or leave it.

The Prophet peace and blessings be upon him did not say something like – ‘I was protected by Allah against believing your lies or eloquent speech but there will come after me people who will be deceived and misguided. If any of you

ruled with anything but the truth, it is really a portion of Hellfire, so do not take it.’ Thus, the false premise upon which the questioner posed his question, would ultimately lead to the conclusion that the Prophet peace and blessings be upon him was lying – and this is a serious problem. Forming such conclusion is evidently *kufṛ* and *Shirk*. The questioner should have thought twice before opening his mouth, and before uttering such a major lie.

Although, there is a way out of *kufṛ* and heresy by rejecting this *ḥadith*; for this to be done in a systematic and consistent way, one would have to repudiate all single-narrator reports and join the ranks of the extreme Mu’tazilites. Undoubtedly this would also mean rejecting all the unconnected broken-channel mythical narrations and stories regarding al-Lāt, one of the cornerstones of the *Wahhābi* / *Salafist* doctrine. Yet this is the same story which the questioner expended great effort in trying to defend, seeking to argue that it is historically sound, all the while because it agrees with the lie perpetuated by the *Wahhābi* / *Salafist* sect.

That is not a reasonable or persuasive course of action to take in order to try and stick by a series of lies and arguments with flimsy premises. Naturally adopting this approach would lead to abandonment of the texts of the *Sunnah* which are not *mutawātir*. How then would we work with the Qur’ān, only on the basis of *tawātur*? How is the Qur’ān operationalised without the *Sunnah* and how would we determine the precise rulings of many chapters?

Alas, the obstinate questioner finds himself openly contradicting the *Ṣaḥīḥ aḥādith*, while rejecting others, with neither fear of sin or even reason to reign him in; a hallmark of his very *madthab* (school of thought). That *madthab* being like that from the *Wahhābi*’s, those that would claim they are calling to and followers of the ‘*Salafīyah*.’ If they deny that, they have denied far worse, since they are the most obstinate of innovators. They are characterised by being extremely unprincipled and dishonest; their followers mere hooligans. Agreeing only where the *Ṣaḥīḥ aḥādith* are in conforming to their desires, and readings from that which are *tawātur*, when they are in mood, in a manner like a hit and run. Infamous in their use of a martyrdom of words – ‘*all the scholars*’ and ‘*the schools of thought from the majority*.’ And their saying, *al-Salaf al-Ṣāliḥ* - which suddenly morphs into ‘the statement of a Companion is a (legal) proof’; not to mention also ‘blocking the means,’ ‘consideration of the greatest benefit/interest,’ as well as other forms of gibberish and nonsense.

17. Prophetic silence

If the Prophet is silent and does not specifically comment upon what is said in his presence, does that confirm the truth or statement of the one that speaks? As previously detailed with decisive evidences, the Prophet's infallibility does not extend to the matter of being covered against a witness presenting a false testimony, or outright lying, within a court or judicial setting. Litigants who present their case in an eloquent and convincing manner before the Prophet peace and blessings be upon him were forewarned by him that if he rules in their favour, and they are not ultimately in the right, they will be obtaining a piece of hell-fire. Taking this matter one step further, by greater reasoning the Prophet's silence is also not covered by this infallibility, neither is the situation where he does not comment upon a matter. If he peace and blessings be upon him does not comment in relation to where someone attests to the truth or falsity of something, this is not a proof in itself originally and in principle.

Indeed, if someone utters words or an argument in his presence in opposition to what Allah has commanded and his reporting of the message to people, then without doubt he would be angered and deny that. He would speak against such a matter which in reality is *kufr* in itself, or maybe it would be excused if it was said in ignorance, or out of forgetfulness or from amongst the other impediments to *takfeer*; and not only because it is erroneous by its nature, but because blessings and peace be upon him, his mission was as a teacher, calling to the correct faith - *al-Imān*. He peace and blessings be upon him, though was not a teacher of philosophy, history, or the unseen wonders

of the present world, if he had come in relation to all of that. Several examples can be presented to fully detail this point, so that it may become clear as crystal to the discerning mind. In his *Ṣaḥīḥ*, Imām Muslim records the following *ḥadith* which has a particularly strong channel of transmission:

حدثنا عبيد الله بن معاذ العنبري حدثنا أبي حدثنا شعبة عن سعد بن إبراهيم عن محمد بن المنكدر قال رأيت جابر بن عبد الله يحلف بالله أن بن صائد الدجال فقلت أتحلف بالله؟ قال إني سمعت عمر يحلف على ذلك عند النبي صلى الله عليه وسلم فلم ينكره النبي، صلى الله عليه وسلم

‘Ubaydallah ibn Mu’ādh al-Anbari narrated to us my father narrated to us Shu’ba narrated to us from Sa’d ibn Ibrāhīm from Muḥammad ibn Munkadir he said: I saw Jābir ibn Abdullah taking an oath in the name of Allah that Ibn Ṣā’id was the *Dajjāl*. I said: Do you take an oath in the name of Allah? Thereupon he said: I heard ‘Umar taking an oath in the presence of the Prophet peace and blessings be upon him to this effect and he did not disapprove of it.¹

Deciphering the legal rule

From this *ḥadith* we learn that Jābir ibn Abdullah heard Umar swear in the presence of the Prophet peace and blessings be upon him that Abdullah ibn Ṣā’id was the *Dajjāl*. The Prophet peace and blessings be upon him did not disapprove of the statement which Umar made. So Jābir thought that this is from the genus of approvals, by the fact that it was an ‘act’ done in the presence of the Prophet. Similar is reported from Abdullah ibn Mas’ud, Abu Sa’eed al-Khudri as well as from others from amongst the *Ṣaḥāba*, may Allah be pleased with them all. It is unfortunate that this error in understanding was bequeathed from some of the *Ṣaḥāba* to the *Tābi’een* and so on and so forth, to the extent that it continues to bedevil scholars to this day. As a result, such an understanding can in turn lead to other problems in understanding textual evidences and this specific mistake can lead to fundamental contradictions.

Indeed, one may make the following deduction given the report at hand: it is permissible for one to make a verbal oath based upon *what one is*

¹ *Ṣaḥīḥ* Muslim [Vol. 4, no. 2929]. Similar is reported in the *Sunan* of Abu Dāwūd [Vol. 4, no. 4331]; al-Bukhārī records the same in his *Ṣaḥīḥ* [Vol. 6, no. 6922], albeit via the following route, Ḥammād ibn Ḥumayd narrated to us ‘Ubaydallah ibn Mu’ādh al-Anbari, etc.’ Others have reported the same tradition in their collections.

convinced of or believes to be correct; there is no sin as such in itself, even if the actual content of what is being attested to turns out to be demonstrably false. Some scholars have stated as such previously. Applying this to the aforementioned *ḥadīth* shows this point quite eloquently, given that the incident took place in front of the Prophet peace and blessings be upon him. The Prophet peace and blessings be upon him forbade the killing of this individual – named as Ibn Ṣā'id or Abdullah ibn Ṣayyād, saying: *'If he should be him (i.e. Dajjāl) then you cannot overpower him, and should he not be him, then you are not going to benefit by murdering him.'* It is certainly likely or after this, but even this way the point previously raised - it is permissible for one to make a verbal oath based upon what one convinced of or believes to be correct; there is no sin as such in itself, even if the actual content of what is being attested to turns out to be demonstrably false – can be upheld by other textual evidences.

By the necessity of reason and common sense, as well as being upheld by other textual evidences, the prohibition of deliberate lying is a clear matter. Deliberately providing a false oath or testimony is from amongst the *kabā'ir*. It was also seen from amongst the hypocrites in Medina and the Bedouin Arabs at the time of the Prophet peace and blessings be upon him, despite the false excuses that they sought to marshal. They asked him to pray for forgiveness for this while some of them knowingly lied and some had even doubted the truth of his message. What the Prophet peace and blessings be upon him said to one from amongst them to his face, that he had lied. He was not ordered to dwell into the underlying motivations of people, or to try and open their chests to explore the state of their hearts, nor was he authorised to spy on them; because he, peace and blessings be upon him, was a created mortal. He did not have knowledge of matters unseen, bar that which Allah showed to him. Even in that, it was related to the requirement of conveying the message or as a blessing from Allah for him and his *Ummah*. This, by the praise of Allah is clearly demonstrated as follows from the *ḥadīth* that has reached us from Abu Namla may Allah be pleased with him, recorded in the *Ṣaḥīḥ* of Ibn Ḥibbān:

أخبرنا بن قتيبة قال حدثنا حرملة قال حدثنا بن وهب قال أخبرنا يونس عن بن شهاب أن نملة بن أبي نملة الأنصاري حدثه أن أبا نملة أخبره أنه بينما هو جالس عند رسول الله صلى الله عليه وسلم جاء رجل من اليهود فقال هل تكلم هذه الجنابة؟ فقال رسول الله صلى الله عليه

وسلم الله أعلم، فقال اليهودي أنا أشهد أنها تتكلم! فقال رسول الله صلى الله عليه وسلم ما حدثكم أهل الكتاب فلا تصدقوهم ولا تكذبوهم وقولوا آمنا بالله وملانكته وكتبه ورسله فإن كان حقا لم تكذبوهم، وإن كان باطلا لم تصدقوهم وقال قاتل الله اليهود لقد أوتوا علماً

Ibn Qutayba reported to us he said Ḥarmala narrated to us he said Ibn Wahb narrated to us he said Yunus reported to us from Ibn Shihāb that Namla ibn Abi Namla al-Anṣārī narrated to him that Abu Namla reported to him that while he sat in the presence of the Messenger of Allah peace and blessings be upon him a Jew was also with him, a funeral passed by him. He asked: 'Muḥammad, does this funeral speak?' The Prophet peace and blessings be upon him said: *Allah has more knowledge.* The Jew said: I witness that it speaks. The Messenger of Allah peace and blessings be upon him said: *Whatever the people of the Book tell you, do not verify it, nor claim it to be false, but say - we believe in Allah and His Messenger. If it is false, do not confirm it, and if it is right, do not falsify it.* And he said: *Allah destroy the Jews; indeed, they were given knowledge.*²

Shaykh Shu'ayb al-Arnā'uṭ commented upon this arguing that the *isnād* is strong; the tradition is *Ṣaḥīḥ*, particularly when considering the number of routes from which it has been reported, which is quite wide and appears in several collections.³ Furthermore, in relation to this story, it has also been reported from 'Aāmir ibn Rabi'ah, may Allah be pleased with him, as recorded by al-Ḥākim:

أخبرناه أبو الفضل الفقيه حدثنا عثمان بن سعيد الدارمي أخبرنا عبد الله بن عبد الجبار بحمص حدثنا الحارث بن عبيدة حدثنا الزهري عن سالم عن أبيه عن عامر بن ربيعة قال: كنا مع رسول الله صلى الله عليه وسلم فمر بجنابة فقال رجل من اليهود يا محمد تكلم هذه الجنابة؟ فسكت رسول الله صلى الله عليه وسلم فقال اليهودي أنا أشهد أنها تكلم! فقال رسول الله صلى الله عليه وسلم إذا حدثكم أهل الكتاب حديثاً فقولوا آمنا بالله وملانكته وكتبه ورسله

Abul'Faḍal al-Faqīhi reported it to us Uthmān ibn Sa'eed al-Dārimī narrated to us Abdullah ibn 'Abd al-Jabbār reported to us in Ḥomṣ al-Ḥārith ibn Ubayda narrated to us al-Zuhri narrated to us from Sālim from his father from 'Aāmir in Rabi'ah he said: We were with the

² *Ṣaḥīḥ* Ibn Ḥibbān [Vol. 14, no. 6257]

³ Half a dozen follow-up references are provided, notable among them are: *Sunan* Abu Dāwūd [Vol. 3, no. 3644], *Musnad* Aḥmad [Vol. 4, no. 17264] and *Muṣṣanaf* 'Abd al-Razzāq [Vol. 6, no. 10160].

Messenger of Allah peace and blessings be upon him and a funeral was passing by. A man from amongst the Jews said: ‘O Muḥammad! This funeral (bier) speaks?’ The Messenger of Allah peace and blessings be upon him remained silent. The Jew further said: ‘I testify that it speaks!’ So, the Messenger of Allah peace and blessings be upon him said: *If the people of the book narrate to you information then you should say, we believe in Allah, His Angels, Books and Messengers.*⁴

After recording this tradition al-Ḥākim said:

This *ḥadith* is known with al-Ḥārith ibn ‘Ubayd al-Rahāwy reporting from al-Zuhri and we wrote it in other copies from Yunus ibn Yazeed from al-Zuhri – Abul’Qāsim Abdullah ibn Muḥammad narrated to us in Nisapur, al-Qāsim ibn Abdullah ibn Mahdi narrated to us my uncle narrated to us a man narrated to us (his name is al-Qāsim ibn Mabur, Zayd ibn Yunus narrated to us from Yazeed from al-Zuhri, he said Sālim said; indeed Abdullah ibn Umar said – when the funeral occurred, Rāfi’ ibn Khadeej mentioned the *ḥadith*.

Here, I would submit that al-Ḥārith ibn ‘Ubayd al-Rahāwy is not strong as a narrator and in the *isnād* it is *saqt* (having a lacuna), because the *isnād* which we have from al-Ṭabarāni in *Musnad al-Shāmiyān* has the following text:

حدثنا عثمان بن خالد بن عمرو السلفي حدثنا عبد الجبار الخبائري حدثنا الحارث بن عبيدة
حدثنا بقية بن الوليد عن الزبيدي عن الزهري عن سالم بن عمر عن عامر بن ربيعة، بنحوه

Uthmān ibn Khālīd ibn ‘Amr al-Salafī narrated to us ‘Abd al-Jabbār al-Khabā’iri narrated to us al-Ḥārith ibn Ubayda narrated to us Baqiya ibn al-Waleed narrated to us from al-Zubaydi from al-Zuhri from Sālim ibn ‘Amr from ‘Aāmir ibn Rabi’ah, as mentioned.

Moreover, there is also the *isnād* as recorded by Abu Nu’aym al-Aṣbahāni:

حدثنا أبو إسحاق بن حمزة حدثنا أحمد بن خالد بن عمرو السلفي حدثنا أبي حدثنا الحارث بن
عبيدة حدثني الزبيدي عن الزهري عن سالم بن عبد الله عن أبيه عن عامر بن ربيعة، بنحوه

⁴ al-Ḥākim *Mustadrak* [Vol. 3, no. 5538]

Abu Ishāq ibn Ḥamza narrated to us Aḥmad ibn Khālīd ibn ‘Amr al-Salafī narrated to us – my father narrated to us, al-Ḥārith ibn Ubayda narrated to us al-Zubaydi narrated to me from al-Zuhri from Sālim ibn Abdullah from his father from ‘Aāmir ibn Rabi’ah.⁵

So here from these narrations we have the final Prophet of Allah refraining from commenting upon that which was spoken by a Jew in relation to the funeral bier. He did not affirm what was said as truth or claim that it was a lie, stating only that Allah knows best. This was also a guideline provided for the correct approach to be taken, which no Muslim with intellect or any others can ignore – ‘*Do not verify it, nor claim it to be false, but say in reply, we believe in Allah, his angels, his books and his messengers; if it is false, do not confirm it, and if it is right, do not falsify it*’; with a confirmation that they had been given knowledge and an affirmation as such with the exclamation made – ‘*Allah destroy the Jews, indeed they were given knowledge.*’

⁵ Abu Nu’aym *Ma’rifat al-Ṣaḥāba* [Vol. 14, no. 4591]

18. The *Dhikr* is not only the Qur'an, it encompasses the *Sunnah* too

Earlier we detailed the proofs relating to the word the '*al-Dhikr al-Munnazil*', the 'revealed reminder' or the 'sent-down reminder', that it relates to the totality of the sent-down revelation. The totality of this revelation covers both the glorious Qur'an as well as the Prophetic *Sunnah*. Furthermore, the claim that the *Dhikr* only relates to the glorious Qur'an, is an erroneous claim for it is a mere assertion without either a substantive basis or a sound reading of the texts of revelation. Hence it does not lend itself to being an established proof. Yet the real proof establishes other than this, particularly since 'the wisdom', *al-Hikmah* is another revealed or sent-down book of revelation, as detailed previously with evidences based upon certainty. All of this is summed up in the verse where He the Exalted and Glorious says:

وَأَنْزَلْنَا إِلَيْكَ الذِّكْرَ لِتُبَيِّنَ لِلنَّاسِ مَا نُزِّلَ إِلَيْهِمْ وَلَعَلَّهُمْ يَتَفَكَّرُونَ

*We have sent down the dhikr to you too [Prophet], so that you can explain to people what was sent for them, so that they may reflect.*¹

The meaning becomes even clearer when this verse is read in tandem with the following:

إِنَّ عَلَيْنَا جَمْعَهُ وَقُرْآنَهُ، فَإِذَا قَرَأْنَاهُ فَاتَّبِعْ قُرْآنَهُ، ثُمَّ إِنَّ عَلَيْنَا بَيَانَهُ

¹ Qur'an 16: 44

*Surely on us (devolves) the collection and its recitation; therefore when we have recited it, follow its recitation. Again upon us (devolves) the explanation of it.*²

It is important to identify the exact meaning of '*al-Dhikr al-Munnazil*' in order to accurately determine its nature and precise import. The first verse is definitive proof that there are two distinct 'sent-down' revelations. The first revelation relates to an earlier period; what has already been sent-down to the general people. It is in the hands of the people, regardless of how they obtained it. The second revelation relates to a later time and is so named, *al-Dhikr*. This is the sent-down or revealed reminder - *al-Dhikr al-Munnazil*. Moreover, it is that which is specifically revealed to the final Messenger of Allah from the beginning and not to the general public; It doesn't appear before the people except by way of the conduit, i.e. the Prophet peace and blessings be upon him. It is performed or taken up by the general public thereafter. Based upon this, the *Dhikr* is protected and infallible. The Prophet peace and blessings be upon him undertakes the function of illustrating and explaining the *Dhikr* which has been revealed and sent-down. By itself, the *Dhikr* is not a *bayān* (proclamation), rather it is the 'raw material' which the Messenger uses to undertake the function of illustration and explanation. But what is meant by the *Tanzeel* that was formerly sent, described as '*that which was previously revealed to people generally*'? What is its precise reality? Indeed, the phrase '*that which was previously revealed to people generally*' can be sub-divided or categorised as follows:

- As an infallible, protected revelation from Allah.
- Clarification and illustration is required, either for some, or all of it.
- One of the important functions of this revealed sent-down *Dhikr* is that it is the second subsequent revelation. It is the 'raw material' which is based upon the Prophet peace and blessings be upon him in which the clarification is provided. Therefore the first revelation, '*that which was previously revealed to people generally*', this may be the *Dhikr al-Munnazil*, having other functions also. In speech it is not regarded as a form of restriction - *seeghat-haṣr* or what can be construed as such.

² Qur'an 75: 17/19

The minimum which can be said to explain the phrase which appears in the verse ‘*make clear to men what has been revealed to them*,’ is that it seems relates to the glorious Qur’ān. By necessity this is what one would assume. Upon first sight, this would appear to be the apparent or literal meaning of the verse. Also because it is primarily intended, it is usually association with the word *Tanzeel* (revealed) and its associated derivatives. It is also the revealed word and its characteristic. People received this revelation directly from the lips of the Prophet peace be upon him by his recitation and expressed in his precise delivery. It is as if he revealed it to them directly and without an intermediary. Or that it is as if it was revealed as written on parchment or engraved in tablets. Therefore there is merit that he said ‘*revealed to them*’ as in the verse, unlike the *Dhikr* which was specifically revealed unto the Prophet Muḥammad peace and blessings be upon him. Hence the Prophet elicits the *bayān* or explanation for this, which is making it clear to the people. Had the Prophet not undertaken the explanation of the *Dhikr Munnazil* raw material, when people know the existence of this *Dhikr Munnazil* originally and have witnessed all of it. If so and based upon this minimum approach, there is no doubt then that the great book, or with its precise wording some of which is the glorious Qur’ān is required for explanation or elucidation. This is a constant, not only in this verse, but also by necessity with the statement of the almighty where He has mentioned – ‘*Surely on us (devolves) the collection and its recitation.*’

The blessed verse is talking exclusively about the glorious Qur’ān and nothing but the Qur’ān as the usage of the word recital - *qur’ānah*, beyond doubt proves. The verse is a testimony that Allah has taken it upon himself to conduct the *bayān* of the Qur’ān as and where required or needed. However the explanation is usually after a period of time, as is signified by the word ‘*Again*’ in the verse: ‘*Again upon us (devolves) the explanation of it.*’ But this explanation is not delayed for the time when it is needed. Otherwise the meaning here would be lost and the promise that Allah has taken upon Himself to provide the explanation would be void, and Allah does not state a promise He doesn’t keep.

وَالَّذِينَ فِي أَمْوَالِهِمْ حَقٌّ مَّعْلُومٌ، لِّلسَّائِلِ وَالْمَحْرُومِ

*Who give a due share of their wealth, to beggars and the deprived.*³

There is an obligation to spend from fixed earned wealth, and Allah has also said:

وَهُوَ الَّذِي أَنشَأَ جَنَّاتٍ مَّعْرُوشَاتٍ وَغَيْرَ مَعْرُوشَاتٍ وَالنَّخْلَ وَالزَّرْعَ مُخْتَلِفًا أَكْلُهُ وَالزَّيْتُونَ وَالرُّمَّانَ
مُتَشَابِهًا وَغَيْرَ مُتَشَابِهٍ كُلُوا مِنْ ثَمَرِهِ إِذَا أَثْمَرَ وَآتُوا حَقَّهُ يَوْمَ حَصَادِهِ وَلَا تُسْرِفُوا إِنَّهُ لَا يُحِبُّ الْمُسْرِفِينَ

*It is He who produces both trellised and untrellised gardens, date palms, crops of diverse flavours, the olive, the pomegranate, alike yet different. So when they bear fruit, eat some of it, paying what is due on the day of harvest, but do not be wasteful: Allah does not like wasteful people.*⁴

Whilst we can see from the verse that a due must be paid on such produce, the verse doesn’t specify exactly when this is to be taken; is it immediately at harvest or is the harvest referred to a daily matter? By greater reasoning, we don’t know of the timing and amount which must be levied in relation to funds mentioned for *zakāt* - all of which is not specified in this particular verse, but requires other explanations and clarification to be given. Allah has also said:

إِنَّمَا الصَّدَقَاتُ لِلْفُقَرَاءِ وَالْمَسْكِينِ وَالْعَامِلِينَ عَلَيْهَا وَالْمَوْلَقَةِ قُلُوبُهُمْ وَفِي الرِّقَابِ وَالْغَارِمِينَ وَفِي سَبِيلِ
اللَّهِ وَابْنِ السَّبِيلِ فَرِيضَةً مِّنَ اللَّهِ وَاللَّهُ عَلِيمٌ حَكِيمٌ

*Alms are meant only for the poor, the needy, those who administer them, those whose hearts need winning over, to free slaves and help those in debt, for Allah’s cause, and for travellers in need. This is ordained by Allah; Allah is all knowing and wise.*⁵

We know the classification given by the verse of the categories upon which charity is to be given to from this verse. But we do not know how to distribute them, nor do we know who precisely is to execute this, is it only individuals who are tasked with this? Or is to be done by the state? There is no further verse providing explanation in relation to this contained within the Qur’ānic text. Thus by necessity the explanation must come by way of the Prophetic *Sunnah*. Otherwise, the report where Allah says: ‘*and We have revealed to*

³ Qur’ān 70: 24/25

⁴ Qur’ān 6: 141

⁵ Qur’ān 9: 60

you the *Dhikr* that you may make clear to men what has been revealed to them, and that haply they may reflect,' would in effect be false and his promise – 'Again upon us (devolves) the explanation of it,' would be void. Yet Allah is far above anything related to lying or providing a false promise.

Allah has ensured that an explanation and clarification is sent-down for the Qur'ān after its collection and recitation, when there is a need for such. The word is used in the arrangement of the verse to show this, that the explanation is devolved upon Allah. Moreover, it is necessarily known from history that the Qur'ān was sent-down incrementally and followed by the Prophet peace and blessings be upon him. This enabled for it to be memorised, committed to writing and for it to be established with decisive certitude. But it also enables greater clarification of processes that are detailed and need time to set out properly, an obvious example, being that of the ritual observance of prayer. All these characteristics which exist for the text of the Qur'ān is in essence contrasted to the characteristics which accompanied the revealed sent-down *Dhikr* which was revealed to Muḥammad, which was to be the 'raw material' that was utilised in relation to the *bayān*. The two are radically different in that given respect.

1. The majestic Qur'ān requires explanation and clarification, which is usually done where required, as previously stated. But *al-Dhikr al-Munnazil*, it is the raw material sent down upon the Prophet to provide explanation and clarification accompanying that of the Qur'ānic text where necessary and required.
2. The text of the Qur'ān is general revelation direct to mankind so to speak. Indeed it firstly descended upon the Prophet. Thereafter, he expounds that to the people. However the role of the Prophet in the first instance is to pronounce and expound this recitation only. It is then recorded and written down by the people. Yet the *al-Dhikr al-Munnazil* is essentially different in respect of the fact that this is the 'raw material' which underpins and informs the Prophetic *bayān* or explanation via his actions, speech and approvals.

Consequently this is the fundamental difference which distinguishes *al-Dhikr al-Munnazil* to be a raw material that underpins the Prophetic explanation and exposition. Indeed, it is qualitatively different from the text of the glorious Qur'ān and distinguished from it in these very respects.

But *al-Dhikr al-Munnazil* is also another type, from the sent-down revelation emanating from Allah and nothing originally that is rightly to be placed as revelation to be sent down specifically upon the Prophet. Then the people take the explanation regarding it from him, by his statements, acts and approvals, that is the noble Prophetic *Sunnah*, or to be more precise with wording, the Prophetic *Sunnah* is a type or kind of *bayān* which comes from the texts of the Qur'ān, which is needed to explain or exemplify it. But the truth is that all of the Prophetic *Sunnah* is but a *bayān* with the text of the Qur'ān, because the explanation is not only to specify the general, as well as the absolute and restricted, as well as seeking to provide detailed ruling upon certain areas. No doubt this totally escapes the dysfunctional minds from amongst the Qur'ānists. Yet it is much broader than this, encompassing the *Tafsir* of it altogether as well; its explanation and interpretation. Every *Sunnah* is but the *Tafsir* which is being made by Allah, blessed be His names, like where he says in the following Qur'ānic verses:

يَا أَيُّهَا الَّذِينَ آمَنُوا أَطِيعُوا اللَّهَ وَأَطِيعُوا الرَّسُولَ وَأُولِي الْأَمْرِ مِنْكُمْ فَإِنْ تَنَازَعْتُمْ فِي شَيْءٍ فَرُدُّوهُ إِلَى اللَّهِ وَالرَّسُولِ إِنْ كُنْتُمْ تُؤْمِنُونَ بِاللَّهِ وَالْيَوْمِ الْآخِرِ ذَلِكَ خَيْرٌ وَأَحْسَنُ تَأْوِيلًا

*O you who believe, Obey Allah and the Messenger, and those in authority among you. If you are in dispute over any matter, refer it to Allah and the Messenger, if you truly believe in Allah and the Last Day: that is better and fairer in the end.*⁶

مَا أَفَاءَ اللَّهُ عَلَى رَسُولِهِ مِنْ أَهْلِ الْقُرَىٰ فَلِلَّهِ وَلِلرَّسُولِ وَلِذِي الْقُرْبَىٰ وَالْيَتَامَىٰ وَالْمَسَاكِينِ وَابْنِ السَّبِيلِ كَيْ لَا يَكُونَ دُولَةً بَيْنَ الْأَغْنِيَاءِ مِنْكُمْ وَمَا آتَاكُمُ الرَّسُولُ فَخُذُوهُ وَمَا نَهَاكُمْ عَنْهُ فَانْتَهُوا وَاتَّقُوا اللَّهَ إِنَّ اللَّهَ شَدِيدُ الْعِقَابِ

*Whatever gains Allah has turned over to His Messenger from the inhabitants of the villages belong to Allah, the Messenger, kinsfolk, orphans, the needy, the traveller in need - this is so that they do not just circulate among those of you who are rich - so accept whatever the Messenger gives you, and abstain from whatever he forbids you. Be mindful of Allah: Allah is severe in punishment.*⁷

And He, the Mighty and Sublime says:

⁶ Qur'ān 4: 59

⁷ Qur'ān 59: 7

Grant us good things in this world and in the life to come. We turn to You.'
Allah said, 'I bring My punishment on whoever I will, but My mercy encompasses all things. 'I shall ordain My mercy for those who are conscious of Allah and pay the prescribed alms; who believe in Our Revelations;

Who follow the Messenger - the unlettered Prophet they find described in the Torah that is with them, and in the Gospel - who commands them to do right and forbids them to do wrong, who makes good things lawful to them and bad things unlawful, and relieves them of their burdens, and the iron collars that were on them. So it is those who believe him, honour and help him, and who follow the light which has been sent down with him, who will succeed.'

*Say [Muhammad], 'People, I am the Messenger of Allah to you all, from Him who has control over the heavens and the earth. There is no Allah but Him; He gives life and death, so believe in Allah and His Messenger, the unlettered prophet who believes in Allah and His words, and follow him so that you may find guidance.'*⁸

But the text of the Qur'ān upon that great Qur'ān is mentioned as well and it is called '*al-Dhikr al-Hakeem*.' Other types of revelation are also described as *Dhikr*. For that reason the wording must be *al-Dhikr al-Munnazil* or *al-Dhikr*, in place of the wording about the general revelation without specifying the explanation or other than it. A comprehensive or compendium of revelation, and more specifically, the Qur'ān and *Sunnah*; it is not possible that the *Dhikr* can only be the Qur'ān; it must also include revelation other than the Qur'ān, as we have previously demonstrated. If it is decisively proved that the *Dhikr* which is sent-down and revealed is not solely the Qur'ān, but it is the Qur'ān and *Sunnah* or to be more accurate with wording: the Qur'ān and some *Sunnah*. But if it was some of the *Sunnah* that is mentioned therefore all of it is from the *Dhikr* necessarily, because all of it is an infallible revelation. It is one class, having a single rank in terms of its authenticity and binding status.

But to say the minimum that can be imagined for this – '*That which was previously revealed to people generally*,' as already mentioned, because the phrase with '*what was revealed to them*,' already holds the meaning of all the revelation that was sent down until that particular moment or juncture. It is

⁸ Qur'ān 7: 156/158; given the length of verses quoted, the Arabic text is omitted.

with that which the explanation is lacking. This original revelation if it is by necessity either of the following:

1. Anything from the glorious Qur'ān to get its explanation and has certainly come for a time and to expound upon it, as already outlined.
2. A previous *hikmah* and *Sunan*, although still lacking explanation or further explanation. It came for its time and it is with that, the people received it. Thus it is preserved, studied and remembered. Reconciled that said about it, that it is from *what is revealed to them*, because it has reached them and it is in reality held by them.

It must therefore be a Prophetic explanation for which this relates to, i.e. '*that which was previously revealed to people generally*,' in other words, a new revelation to join that which was already revealed previously. There is no essential difference between the Qur'ān or the *Sunnah*, all of it is a complete self-contained revelation. So, it becomes a complete explanation or exposition. It does not need a new revelation to provide explanation for any part of it. It was completed in full prior to the death of the seal of the Prophets of Allah peace be upon him, and indeed, all thanks and praise are due to Allah for this. The Prophetic explanation is by necessity comprised of the following:

1. The statements of the Prophet peace and blessings be upon him and arising from them, his gestures
2. His acts
3. What he approves

All of that comprises the Prophetic *Sunnah* and nothing less or even above and beyond that. The Prophetic *Sunnah* is from the revealed *Dhikr* by necessity. Therefore by any detailed account or hypotheses the revealed sent-down *Dhikr al-Dhikr al-Munnazil*, is indeed inclusive of the entire Qur'ān and the *Sunnah* by necessity. It is not possible that it is anything less or even more than that, because the sent-down revelation is only but these two. It must therefore be *al-Dhikr al-Munnazil* and it is precisely the entire revelation, which is the Qur'ān and the *Sunnah* only and nothing other than it.

Hence the wording *al-Dhikr al-Munnazil*, is what has been elucidated and should be understood and known as such when referring to what has been

revealed or revelation. Inevitably such revelation is inclusive of the *Sunnah*, thus the truth of our manifest statement regarding our statement that the *Sunnah* is the expounder of the Qur'ān. And we also say that the Qur'ān and *Sunnah* complement and provide clarification upon each other. We would also submit that *al-Dhikr al-Munnazil* which is the Qur'ān and *Sunnah* provide that complementary clarification upon each other's contents. It is a sufficient explanation and proclamation which establishes the proof of Allah upon his servants, all the way to the Day of Judgement. That is the truth of the matter; one entails the other by necessity.

Unsound claims

Indeed some of the claims which are made from those who are called the 'Qur'ānists' are that the explanation would only be a new Qur'ān and not with other than the present Qur'ān. In reply, we would undoubtedly submit that these are baseless points and lies for the following reasons:

1. What is revealed from the Qur'ān lacking with regard to explanation. And this explanation by the necessity of perception and reason is not by another portion of the Qur'ān, because Allah ensured and proved with it and there isn't laxity in relation to any portion that has been revealed.
2. If the explanation of the Qur'ān is to be restricted exclusively by the Qur'ān itself, then it would be necessary for another Qur'ān to be sent forth after its revelation and completion. For the present Qur'ān as it exists now, does not provide explanation or exposition on all parts by itself. Seeking to cling to such a line of reason is nothing by stubbornness and a flight from sense and reason as the evidences presented earlier in this regard are compelling. One need only acknowledge if this line of reasoning were correct, how one would perform and establish the prescribed prayer?
3. The word 'its explanation', as mentioned in the verse '*Again upon us devolves the explanation of it,*' is known with the *iḍāfa* (possessive construction) and the word is known by its type or genus. Here, by necessity, its definition is related to the genus or type. Because we don't know that we have the verse by itself revealed yet. What is the usual agreed explanation upon it, there may be a definition of type here.

So Allah the Exalted may ensure if the genus of explanation is comprehensive for each of its components that can be imagined from it - from the text other than the Qur'ān, this can be expounded at a later date. This explanation is a necessary duty for *Deen* would be incomplete without it. Or, from other revelation, its translation by the Prophet to flesh out this explanation by his actions, statements (and from that his gestures), and his approvals. What this is, is none other than the noble Prophetic *Sunnah*, which are the actions, statements, gestures and approvals and of the Prophet. By necessity this is a necessary explanation which *Deen* cannot be considered complete without. Or, even what may emerge in the future, be that from scientific or engineering discoveries, or even from discoveries in archaeology. From all of that, a new explanation may indeed be made to that existing from some of the Qur'ān. By way of a brief example of this can be seen from the statement of Allah where he said: *He created mankind from a clot ('alaq)*. As is understood from classical Arabic which the Qur'ān was revealed in, this denotes that mankind was created from nothing or from something which 'clings'. The extent of which the earlier commentators of the Qur'ān could present was that this is similar in some manner to a leech like substance that clings. Yet with the advent of modern scientific techniques, it has provided a further exemplification of the verse, showing that this clinging substance relates to the initial stage of the embryo which clings inside the womb. Without doubt given the advances in the medical sciences, these have provided a verification and fuller explanation of precisely what the verse in question was saying.

The third type of explanation is indeed a *bayān*, except that it is not considered to be from revelation in itself or the sent-down revealed *Dhikr*. It is one of thus additional desirable explanations, which not only can provide some additional details of clarification, but also acts as additional proof establishing that the revelation is ultimately from Allah in origin. It is no doubt a blessing which Allah has bestowed upon his servants. By necessity it cannot be considered as being '*Deen*', because that was completed via the final Prophet who acted as both a seal on Prophethood and sent-down revelation. As already noted, such additional explanations do provide further proofs and on occasion, have clarified matters that many predecessors could not provide fully comprehend or outline in their commentaries. This added explanation, *bayān*, is from the grace of Allah, and an additional blessing, as He the Exalted has said:

سَتُرِيهِمْ آيَاتِنَا فِي الْأَفَاقِ وَفِي أَنْفُسِهِمْ حَتَّى يَتَبَيَّنَ لَهُمْ أَنَّهُ الْحَقُّ أَوَلَمْ يَكْفِ بِرَبِّكَ أَنَّهُ عَلَى كُلِّ شَيْءٍ شَهِيدٌ

*We shall show them Our signs in every region of the earth and in themselves, until it becomes clear to them that this is the Truth. Is it not enough that your Lord witnesses everything?*⁹

To allege that the explanation only will be by a new Qur'ān, nothing else, is but simply a claim and an invalid judgement, borne of obstinacy by necessity; a resistance to perceptible reasoning and a denial of the Qur'ān, and a specification with what came generally not from the Qur'ān. And this is cannot be with the text of the Qur'ān: 'Say: bring your proof if you are truthful.'¹⁰ So the sent-down revealed *Dhikr* is by necessity of perception and reason and by the witnessing of the Qur'ān itself, to include both the Qur'ān and the *Sunnah* with no other addition or subtraction. And we have seen as mentioned earlier that, the infallible revelation is *not only* the Qur'ān; the *Sunnah* is an infallible revelation also. Alternatively, with a more precise and accurate wording: that the Prophetic *Sunnah* is not with its specific wording revelation from Allah but that it is a formulation and expression of an infallible Prophetic revelation which came from Allah. Moreover, that the sent-down revealed *Dhikr* is not only the Qur'ān, but rather it is the Qur'ān and the *Sunnah*, with the *Sunnah* being the explainer or expounder of the Qur'ān. That is borne out and confirmed by a great number of texts which also establish the proof of the Prophetic *Sunnah* itself.

What we have mentioned regarding this established proof is not new, except that we have sought to delineate it more precisely, separating out each of the individual points which make up the subject and absorbing what the earlier scholars said regarding this. They had touched upon this, realising it instinctively and witnessed that there was a consensus upon this matter. As it has been presented in the seminal work entitled *al-Iḥkām fī Uṣūl al-Aḥkām* of the grand Imām and pillar of knowledge, Abu Muḥammad, Ibn Ḥazm:

Ali (Ibn Hazm) said: And this is where we take, if Allah the Almighty wills, outline the evidence concerning the proofs relating to *khābar al-*

⁹ Qur'ān 41: 53

¹⁰ Qur'ān 27: 64

wāhid, it's rightness and (that it is) uninterrupted to the Messenger peace be upon him in *Aḥkām Sharī'ah*. It engenders knowledge and there shall be no illusion or lie in it. Hence we say, and with Allah the Majestic is all success, Allah Exalted and Majestic said about his Prophet, peace and blessings be upon him: 'He does not speak from his own desire. It is nothing less than a revelation that is sent to him' [53: 3/4]. And the Almighty commanded His Prophet: Say, 'I am nothing new among Allah's Messengers. I do not know what will be done with me or you; I only follow what is revealed to me; I only warn plainly' [46: 9]. He the Almighty said: 'We have revealed the *dhikr* and We will most surely be its guardian' [15: 9] and 'We have sent down the *dhikr* to you too [Prophet], so that you can explain to people what was sent for them, so that they may reflect' [16: 44].

Thus it is true that the speech of the Messenger of Allah peace and blessings be upon him, all of it in relation to *Deen*, is revelation emanating from Allah the Mighty and Sublime. No doubt exists in relation to that and no disagreement raised by anyone from the people of language and *Sharī'ah*, that all of it is revealed that has been revealed from Allah the Exalted and **it is *al-Dhikr al-Munnazil*.** The entire revelation, all of it is protected, preserved by Allah; He has protected this with certainty.

Allah ensures the preservation of its contents. Nothing has been neglected from it, nor has anything been ever distorted from it and neither is the accompanying explanation of it invalid. It is not possible that the speech of Allah can be a falsity and it is a specific guarantee to the discerning mind, that which came to us by Muḥammad peace and blessings be upon him is protected; Allah has undertaken to preserve it and its conveyance, all of it that he has ensured until the end of the world. And the Exalted said: 'Say, 'What counts most as a witness?' Say, 'Allah is witness between you and me. This Qur'an was revealed for me to warn you [people] and everyone it reaches. Do you really bear witness that there are other gods beside Allah?' Say, 'I myself do not bear witness [to any such thing].' Say, 'He is only one God, and I disown whatever you join with Him' [6: 19].¹¹

¹¹ Ibn Ḥazm, (1983) *al-Iḥkām fī Uṣūl al-Aḥkām* (Dār al-Afāq al-Jadidah: Beirut) [Vol. 1, p. 121].

Turning to the matter of an alleged lacuna within the revelation of the *Deen*, Ibn Ḥazm provides a most masterful analysis. It is not possible at all, given the preservation of the *Dhikr*, he writes:

Therefore, since it also by necessity that we know that there is no issue concerning the loss of something that the Messenger peace and blessings be upon him said in relation to the *Deen*. There is no way at all that it is mixed up with that which is *bāṭil* or fabricated, this is not put forth by anyone amongst the people, with certainty. And if it were possible that the *Dhikr* was not protected, then the statement of Allah where He says ‘*We have revealed the dhikr and We will most surely be its guardian*,’ [15: 9] would be an untruth and this cannot be said by a Muslim. He who would utter a saying, (is alleging) that the Almighty alone preserved the Qur’ān but not other revelation which is not the Qur’ān.

We say he has, and with Allah is all success, made a false assertion without proof to seek to specify the *Dhikr* without requisite evidence; thus it is *bāṭil* and devoid of meaning and the Almighty says: ‘*They also say, ‘No one will enter Paradise unless he is a Jew or a Christian.’ This is their own wishful thinking. [Prophet], say, ‘Produce your evidence, if you are telling the truth’* [2: 111]. Indeed the truth that he has no proof upon such a call, and there is no truth in it. **The *Dhikr*, its name in reality is upon all what Allah revealed unto his Prophet peace and blessings be upon him, from the Qur’ān or from the *Sunnah*, as it is shown by the Qur’ān.** Also as Allah says: ‘*We have sent down the dhikr to you too [Prophet], so that you can explain to people what was sent for them, so that they may reflect*’ [16: 44].

The truth is that he peace and blessings be upon him was one who was put in charge with the explanation of the Qur’ān to the people. And the ambivalent in the Qur’ān are many, like the *ṣalāh*, *zakāt*, the *Hajj* and other than it. We don’t know what Allah prescribed in it with wording, except with the explanation as given by the Prophet peace and blessings be upon him.

So, when was his explanation, peace be upon him, altogether for that reason, not *maḥfouz* and not guaranteed? There is nothing from him, nor is there anything beneficial which has been lost from the text of the Qur’ān, so it invalidates the view that many of the laws that are supposed to be incumbent upon us within it are absent. So if no wonder

Allah intended from it to be authentic, what mistake is found therein or a lie or even deliberate falsehood; and Allah forbid this. Thus, if we did not know that which was intended by Allah the Almighty from it to be *Ṣaḥīḥ*, what mistake is found therein or the intentional lie of the liar - and Allah is distant from this.¹²

The last portion of the lengthy quote takes the matter further, with a detailed comment upon the single-narrator report. Ibn Ḥazm writes:

Also, we would say to whoever said that the *khābar al-wāḥid* (single-narrator report) of the ‘*adl* (just, upright) narrator conveying from its like unto the Prophet peace be upon him, does not obligate knowledge, given that its content may not have been accurately memorised and may contain within it a lie or an illusion; inform us then: is it possible that a *Sharī’ah farḍ* or *taḥreem* brought by the Messenger of Allah peace be upon him (and he died and these rules still remain necessary by the Muslims; they were never abrogated and after all that) became unknown with certain knowledge to any Muslim from the people of Islam globally ever?

Moreover, according to your imagination, is it possible that a lie, fabrication or an illusion may have been overlooked and has been mixed up with the *Aḥkām Sharī’ah* and this mixture is so perfect that not one of the Muslims in the whole world can recognise it? Or you don’t have any of these faces (outlooks) to (lay) claim (to)? If they say, the two claims can never be aligned, but we already believe in that, then they have arrived at what we have said and been cut-off; namely, that every *khābr* (report) narrated by the *thiqa* narrator from another of its like and *musnad* (connected) to the Messenger of Allah, peace and blessings be upon him, in the matter of religion, indeed it is truth. He peace and blessings be upon him said it as it is and that it is obliged to (accept) knowledge that we extract by way of that which is authentic. And it is not permissible to mix up with it the *khābr mawḍu’* (fabricated report) or that which is illusory, because the Messenger peace be upon him did not say that, such that the truth cannot be properly distinguished from falsehood ever.

¹² Ibid, [pp. 121/123]

Indeed, if they say all of this is quite possible, they would have judged that the *Deen*, all of the *Deen* of Islam, to have been corrupted and invalidated. The orders of Allah the Almighty would be mixed, that which He ordered and that which He didn't, not ever distinguishing anything of it. They would never know what is the difference between them. Moreover, they wouldn't know the difference between what was brought by the Messenger peace and blessings be upon him and that which was interpolated by imposters and liars, except by way of doubt, guesswork of those who would lie in the *ḥadith*, and no harmony from the truth ever. This is secession from Islam, questioning of its laws and destruction of the *Deen*.¹³

One can clearly discern from the many words as cited here from Imām Ibn Ḥazm, may Allah have mercy upon him, it is only in regard to the proven established *Sunnah* which is from amongst the proofs upon which that of the single narrator report – *al-khabar al-aḥad* is built. The *Sunnah* is by itself revelation and all of the revelation constitutes the revealed *Dhikr*; it is from the axioms which all the people of language and *Sharī'ah* concur upon. Let us now turn to the issue concerning the protection of the *Dhikr*, by the blessing of Allah.

¹³ Ibid. [pp. 123/124]

19. The *Dhikr*, the Qur'an and *Sunnah*, is protected

Previously we mentioned that the Qur'ān is the revealed word of Allah; sent-down upon Muḥammad peace and blessings be upon him, word-by-word, as it is written in the *maṣāḥif* and preserved in the breasts of mankind; orally recited, recorded upon tapes and by other means of preservation which are now presently available by the advances made in modern technology. It was conveyed to the people by the Prophet, both verbally and in writing by *tawātur* - continuous recurrent transmission, as it was revealed incrementally. Contained within it is necessary knowledge for all of mankind, both Muslim and non-Muslim alike. All of this has become settled and established, much to the resentment and annoyance of the heretics and disbelievers of old and their newer vicious modern counterparts, such as the Orientalists and others advocating Westernisation. Over the centuries their efforts at seeking to challenge the veracity of the Qur'ān has amounted to nothing, leading to bitter disappointment amongst them and their apostate adulators. Thus, it has been settled and acknowledged amongst all people, both Muslim and non-Muslim alike, that the Qur'ān was brought forth by the Prophet peace and blessings be upon him, all that is contained between its two covers. All praise and thanks is to Allah.

Yet while it has now been acknowledged that Muḥammad peace and blessings be upon him brought forth the Qur'ān, those who disbelieve in Islam still remain in doubt over whether it ultimately originated with Allah as a whole and what is contained between its covers. It seems they have not seriously pondered over this aspect, considering the knowledge contained therein and that it is free of contradiction, originating from Allah, as He says:

أَفَلَا يَتَذَكَّرُونَ الْقُرْآنَ وَلَوْ كَانَ مِنْ عِنْدِ غَيْرِ اللَّهِ لَوَجَدُوا فِيهِ اخْتِلَافًا كَثِيرًا

*Will they not think about this Qur'an? If it had been from anyone other than Allah, they would have found much inconsistency in it.*¹

Moreover, if detractors were serious about seeking to mount a challenge to the veracity of the Qur'ān, they would have readily taken on its open challenge:

فَلْيَأْتُوا بِحَدِيثٍ مِثْلِهِ إِنْ كَانُوا صَادِقِينَ

*Let them produce one like it, if what they say is true.*²

وَإِنْ كُنْتُمْ فِي رَيْبٍ مِمَّا نَزَّلْنَا عَلَىٰ عَبْدِنَا فَأْتُوا بِسُورَةٍ مِثْلِهِ وَادْعُوا شُهَدَاءَكُمْ مِنْ دُونِ اللَّهِ إِنْ كُنْتُمْ صَادِقِينَ

*If you have doubts about the revelation We have sent down to Our servant, then produce a single Surah like it - enlist whatever supporters you have other than Allah - if you truly [think you can].*³

Given that all have failed to take up this serious challenge, notwithstanding the warning contained from Allah in these verses, we know with certitude that those seeking to challenge the Qur'ān's veracity are stubborn, obstinate liars. They have lost objective insight, being blinded by tribalism, partisanship, racism, nationalism, the following of their forbearers; besotted with the love of the world, as well as other desires and interests. Or is it borne of laziness, trading the hereafter for the life of the present? Contained within the present work we have sought to document many of the Prophetic signs and proofs, which are indeed full of guidance and light for mankind. These prophecies establish the truth as brought by Muḥammad ibn Abdullah al-Hāshimi the unlettered Arab, may the blessings of Allah be showered upon him. A separate chapter has been prepared within this book to detail such proofs establishing that the Muḥammad is the Messenger of Allah.

The truth is that the entirety of the Qur'ān, all that which is contained therein between its two covers, is with certitude the word of Allah. It is also

¹ Qur'ān 4: 82

² Qur'ān 52: 34

³ Qur'ān 2: 23

an established truth that Allah has guaranteed to preserve the entire great book, the *Dhikr*. He has said, blessed be his names:

إِنَّا نَحْنُ نَزَّلْنَا الذِّكْرَ وَإِنَّا لَهُ لَحَافِظُونَ

*We have revealed the dhikr and We will most surely be its guardian.*⁴

Within the Arabic language this is the highest form of confirmation. As for the text of the Qur'ān, namely that which we presently possess in our hands and all its contents, and in addition to the aforementioned verse which mentions the word *hifz* (to preserve, protect, guard) it is decisively proven rationally with substantive evidence that it has reached us by *tawātur* in its entirety. That is to say, word by word, letter by letter, consonant by consonant. This phenomenon is a matter of decisive certain knowledge, by necessity, that the transmission of the Qur'ān was directly from Muḥammad peace and blessings be upon him historically, regardless of whether one believes it to ultimately originate with Allah or not. This, the verse of *al-Hifz*, as previously mentioned, which not only encapsulates the speech of Muḥammad it is also from Allah and we believe and bear witness that it originates from Allah. Given that there is unequivocal decisive evidence which substantiates the Prophethood of Muḥammad peace and blessings be upon him, the final seal of all Prophets and Messengers. More upon that very point will be detail later in this present work when considering the proofs of *Tawḥeed*.

All but a glimpse of this has been outlined thus far, for it will be spelled out in exhaustive detail later in the present work. Suffice is to say here that by necessity we affirm that the entire Qur'ānic text is *mahfouz*, preserved and protected; not merely some of the text but the text in its entirety. There is no missing section, nor are there any missing verses, words, characters or consonants. Allah has declared by his express statement that he promises to preserve it. For anyone to claim that Allah does not keep his promise or that he has lied in this instance is making a statement of great magnitude which ultimately crumbles to dust.

Yet the matter doesn't end here with the verse of *al-Hifz*, because Allah has said that he has guaranteed to protect '*al-Dhikr*', namely *the Dhikr* in its

⁴ Qur'ān 15: 9

entirety. The present work has exhaustively set out the decisive proofs which underpin that, namely that it is the entirety of the Qur'ān by itself and that the noble Prophetic *Sunnah* is in fact a division from amongst the divisions of the *Dhikr*. The *Sunnah* is revelation and a proof just as the Qur'ān is. Indeed, the *Sunnah* is more voluminous than the Qur'ān, carrying greater clarification and explanation, being a testimony in itself, as we have previously outlined. Foremost the Qur'ān is the established proof of the *Dhikr* and it is an undeniable proof; a testimony to itself. However, it does require detailed explanation and clarification, again, as we have detailed previously.

By necessity and induction, we know that the noble Prophetic *Sunnah* is testified to by the Qur'ān itself and it provides a greater detailed exposition of many rulings as well as providing specification upon matters which are general, absolute and qualified. If all of this is in fact the case, and with certitude it is, one may legitimately inquire, what is the point of only having the idea of preservation applying solely to the Qur'ān? Should it not also apply in principle to the *Sunnah*? For the *Sunnah* is the *ḥikmah* and as a whole, is considered from the protected *Dhikr* as well. One of the key essential points to reiterate is that the *Sunnah* is itself *wahy*, just as the Qur'ān is. Given that they are emanating from Allah and carry the designation of *wahy*, why would one be preserved and not the other? Allah has provided this protection and preservation to both, not only as a blessing and from his grace, but also to serve as a proof upon his servants.

There is a portion of the noble Prophetic *Sunnah* which is *mutawātir* thereby establishing itself with certitude. Although the vast majority of it is textually conveyed by *khbar al-wāhid* - the single-narrator report or transmission, which by itself doesn't reach the level of certitude in terms of transmission. As for the books of *Seerah* (biography) they contain many reports which are attributed to the Prophet peace and blessings be upon him and may not always be to the highest exacting standards that one would expect in terms of transmission, yet no sane person could reasonably claim that all of that in its entirety is fabricated.

One may reasonably ask therefore upon what basis or in what precise sense is the *Sunnah* protected and preserved? Is it a rationally tenable position? There is no doubt that the *Sunnah*, has matters transmitted by *tawātur*, including a portion of *Seerah*, although it is not transmitted or preserved in exactly the same manner as the Qur'ān. Hence it would be a

mistake to confuse it with the preservation of the Qur'ān arguing that exactly the same method applies to that of the *Sunnah*. The truth of the matter is that each has been preserved and protected according to its own specific nature.

If it is a necessity to establish that the noble Prophetic *Sunnah* has been preserved and protected to the level which can be demonstrated with proofs reaching the level of certitude, given that it is part of the *Dhikr* and preserved in a manner different from that of the Qur'ān, then no doubt it will be incumbent to specifically identify this manner and provide a detailed characterisation and description. By necessity it is established through history that the bulk of reporting concerning the *Sunnah*, excluding the not insignificant portion which is transmitted by *tawātur*, has been via the single-narrator report. Scholarship in the field of *ḥadith* and its sciences has subjected this to the most rigorous scrutiny, even up to the present day. Each and every report is known and nothing has been lost in relation to the entire corpus. Therefore, when mention is made that the noble Prophetic *Sunnah* is protected and preserved, it is done through this manner by the grace and blessing of Allah, given that it is part of the *Dhikr* and therefore protected and preserved.

Allah the Exalted Himself has undertaken the pledge to protect and preserve the *Dhikr*, the *Sunnah* being an essential part of that very *Dhikr*. Given the need for this component of the *Dhikr*, Allah has ensured nothing from it is lost and as a corpus it is preserved through its transmission. Indeed, Allah has guaranteed to expose all who forge a lie against the Prophet (peace be upon him), even if it is only a single occasion. Various indicators expose those who may be lying, the unknown or even the untoward within a given channel of transmission, notwithstanding those who are prone to making mistakes and are not from the high level of exactitude required for trustworthy narrators. And it doesn't end there. The *shadth* (anomalous) is singled out, as is that which contains hidden or less obvious and apparent defects. Rather than simply a process, this is termed the science of '*illal*', subjecting each and every report to meticulous scrutiny. All of which has been made possible by the blessing and grace which Allah has bestowed upon the nation of Muḥammad peace and blessings be upon him.

In tandem with this, there is also the scrutiny given to the actual subject matter or substance which a report carries. Textual criticism uncovers and exposes weak or fabricated reports, such as by way of inspecting such reports

against the established Qur’ān and *Sunnah* reported by *tawātur* as well as the necessities of sense and reason. Scholars of the Muslim *Ummah* continually partake within this endeavour and it is never a closed door, being always ajar for further study, revision and scrutiny. The reader will no doubt come across some of this methodology even in the present work, where studies are detailed upon various *isnād*’s as well as the individuals contained therein. To the casual reader this may seem at times be hair-splitting, particularly in relation to the criticism of narrators, but it demonstrates the lengths which are required for this field of knowledge.

Through keeping everything protected and preserved commensurate with its given nature, the noble Prophetic *Sunnah* is no doubt *maḥfouz*, but it is *maḥfouz* in terms of its totality as a corpus until the Day of Judgement. There are five-aspects to this:

1. Nothing has been *lost* from the corpus as a whole. If one is not able to find a particular channel in a particular *Musnad* or *Muṣṣanaf*, then it can be found or sought out elsewhere in other books, works and collections.
2. Nothing may *enter* into the corpus that has never been seen, characterised or identified. More explicitly, if an individual scholar of *ḥadith* is taken in by a specific story or channel of transmission which is ultimately void, everyone else will not be. It will ultimately be discovered, highlighted and signposted as a warning by other more diligent and studious scholars.
3. It may not be that all which has been *mansukh* (abrogated) has been preserved; or that the *mujmal* (ambivalent), the *‘aām* (general) and the *muṭlaq* (absolute, resolutely established) is lost, or that the *nāsikh* (abrogating), *muffasir* (clarified), *mukhaṣiṣ* (specified) or the *muqqayad* (qualified) is altogether neglected.
4. The *Sunnah* is not confined to the books of *Sunan*, *Musnad* or other collections. It is greater than that.
5. The books of *Sunnah* and *Seerah* also include the statements made by the scholars and wordings which have fallen upon narrators, and maybe also *aḥādith* which are *mawḍu* (fabricated). Whomsoever were to claim that each and every character found in such-and-such book other than the Qur’ān is ultimately from Allah, would find themselves as a liar or even worse, an accursed *kāfir*.

Then none should say when the following is said: a *thiqa* narrator is not considered to be from the *ma’ṣoom* or protected from the liar, errors and mistakes, therefore, according to the dictates of reason and perception, it can only be that the *mutawātir* transmission is established and proven. Nobody should utter as such, because Allah has indeed undertaken to protect and preserve the *Dhikr* by His express command even before a solitary transmission by trustworthy narrators. And this requires by necessity that Allah will guarantee to expose whomsoever lies upon the Prophet peace and blessings be upon him, even in a single instance. Thereby Allah has facilitated the authorities in this field to uncover these lacunas and errors by way of various indicators contained within a channel of narration, as well as those who have made mistakes in *ḥadith* itself, either by way of text or transmission, as we have mentioned previously.

The established proofs of the Qur’ān and the *mutawātir Sunnah* are decisive and unequivocal upon the existence of reports by a trustworthy individual in pronouncements, oaths, witness testimony and *bayān* (explanation). Also, this has demonstrated that this is the manner in which testimony and knowledge is received, and it is so by the narration of *Sunnah* until the Day of Judgement. The same viewpoint was certainly held by the *Ijmā’ al-Ṣaḥāba*. Furthermore, it was also held by the scholars of *Uṣul* in the books of knowledge and *Tawḥeed* as well as the scholars of *Uṣul al-Fiqh* and sciences of *ḥadith*. For with that guarantee Allah the majestic has preserved and protected the *Sunnah* ensuring that by its universal measure those expounders is routed by way of singular channel transmission.

For that reason, it is an obligatory condition to accept what has been reported or narrated by a trustworthy reliable singular narration. From amongst them there are some which are *mutaṣṣil* (uninterrupted) as well as those which are free from inherent problems or hidden defects - *illal*, or from the *shadth*, the *munkar* in the *isnād* or *matn*. These are the reasons behind the detailed principles which underpin this noble branch of knowledge. Thus, one cannot openly challenge a *Ṣaḥīḥ khabar al-aḥad* (authentic single narrator report), except with compelling proof. Whosoever would seek to rebut or challenge a *Ṣaḥīḥ khabar al-aḥad* without a substantive argument and proof then the individual has transgressed into disobedience because of following desires. Taken at its highest, it may even lead to *kufir* and disavowal from Islam, may Allah forbid that. Consequently, as has been detailed thus far, the

Prophetic *Sunnah* as a corpus is *maḥfouz* without doubt, expounding upon the *bayān*. Indeed, the weight of evidence to substantiate this reaches the level of certitude. Other scholars have elaborated at length upon this subject; it is in the well-established *aḥādith* that are *Ṣaḥīḥ* and *Ḥasan*, and it is an established decisive proof like the Qur’ān and *mutawātir Sunnah* and so on and so forth.

Similarly, the Arabic language is *maḥfouz* and can be considered an important component or necessary adjunct to the *Dhikr* itself. Although not *wahy* in itself, in the technical sense or for that matter, the sent-down revealed *Dhikr*. It is revealed or sent-down in the same sense that the Qur’ān and *Sunnah* has, except that it is a necessary condition for understanding and even accessing the *Dhikr* itself. Thus the revelatory texts, the Qur’ān and *Sunnah* cannot be understood or truly valued without the medium of the language in which it is conveyed. Given that it is the medium through which the *Dhikr* is conveyed, it can be stated with certainty that Allah has also preserved and protected the Arabic language as well, both in totality and in terms of its grammar, conjugation, exposition and its beautiful eloquence. History has demonstrated already how it occurred and it is a subject upon which a consensus exists amongst Muslims and other than them. Even the ultra-Orientalists and missionaries such as Goldzeir and Schacht, despite their ridiculous claims that the Prophetic *Sunnah* was built upon a series of falsehoods, particularly with regards to its detailed laws, even though they gave acceptance to the *Seerah* and the *Maghāzi* (battle campaigns), they did not say that the Arabic language is not the one spoken by the Arabs at the time of the advent of Islam. Neither did they take up the challenge of Islam to produce the like thereof, even though they were well versed in the language. Instead of recognising the truth as it is, they turned on their heels, making ridiculous sweeping statements alleging that it is all a fabrication.

20. A brief overview about the documentation of the *Sunnah*

At this juncture, it is necessary to provide an overview of how the Prophetic *Sunnah* was recorded and documented. A great many people, including amongst ‘intellectual’ elites are surprisingly unaware of this. What has not helped this situation has been the pseudo-intellectualism of the Orientalists as well as their imitators, such as the ‘Qur’ānists’ – those who would reject the *Sunnah* in its entirety as a matter of course, arguing that it is completely fabricated. Many of these groups have misconstrued and misunderstood the words and indeed the terminology which appear in the corpus of *aḥādith* as utilised by the *muḥadditheen* (scholars / collectors of *ḥadith*). Commonly, the terms [حدثنا] ‘narrated to us’ and [حدثني] ‘narrated to me’ have been misunderstood to construe that the Prophetic *Sunnah* was *only* reported orally, with no accompanying written record, *until* the time when Imām Mālik composed the *Muwaṭṭā’*, thereby ushering in the era which has been termed - ‘documenting the *Sunnah*.’ In tandem with this, the narrative also notes that this was the time when the two Ḥammād’s; the two Sufyān’s, Sa’eed ibn Abi ‘Aruba, Ma’mar ibn Rāshid and other than them, put their respective *Sunan* collections into public circulation. All of this was against the backdrop of the insistence from the then ‘Abbāsi *Khaleefah*, Abu Ja’far al-Manṣur. Most who cite this narrative rely upon the events as detailed in the work of history composed by Imām al-Ṭabari.

Yet the difficulty with this narrative and the claims of the Orientalists, is that it is baseless and without substantive foundation. Preservation of the Prophetic *Sunnah*, in writing specifically, began *during the era of the Prophet*

peace and blessings be upon him. The detailed writings of the Prophet's companions will be considered shortly. Suffice is to say that it is an acknowledged fact that almost all companions had their own manuscripts during the era of the Prophet peace be upon him. Not only were these in relation to the Qur'ān, which was being revealed, but also covered the Prophetic *aḥādith*, which was preserved by writing. These manuscripts were reviewed, updated and revised as a matter of course during the period of revelation.

As has been reported by al-Rāmhurmuzi in *al-Muḥadith al-Fāṣil bayn al-Rāwi wal'Wā'ee*, with an *isnād* that is *ḥasan*:

حَدَّثَنَا مُحَمَّدُ بْنُ يَحْيَى الْمَرْوَزِيُّ حَدَّثَنَا عَاصِمُ بْنُ عَلِيٍّ حَدَّثَنَا إِسْحَاقُ بْنُ يَحْيَى بْنِ طَلْحَةَ بْنِ عُبَيْدِ اللَّهِ عَنْ مُجَاهِدٍ عَنْ عَبْدِ اللَّهِ بْنِ عَمْرٍو قَالَ كَانَ عِنْدَ رَسُولِ اللَّهِ صَلَّى اللَّهُ عَلَيْهِ وَسَلَّمَ نَاسٌ مِنْ أَصْحَابِهِ وَأَنَا مَعَهُمْ وَأَنَا أَصْغَرُ الْقَوْمِ، فَقَالَ النَّبِيُّ صَلَّى اللَّهُ عَلَيْهِ وَسَلَّمَ مَنْ كَذَبَ عَلَيَّ مُتَعَدِّدًا فَلْيَتَّبِعُوا مَقْعَدَهُ مِنَ النَّارِ؛ فَلَمَّا خَرَجَ الْقَوْمُ قُلْتُ لَهُمْ كَيْفَ تُحَدِّثُونَ عَنْ رَسُولِ اللَّهِ صَلَّى اللَّهُ عَلَيْهِ وَسَلَّمَ وَقَدْ سَمِعْتُمْ مَا قَالَ، وَأَنْتُمْ تَنْهَمِكُونَ فِي الْحَدِيثِ عَنْ رَسُولِ اللَّهِ، صَلَّى اللَّهُ عَلَيْهِ وَسَلَّمَ؟ قَالَ فَضْجُوا، وَقَالُوا يَا ابْنَ أَخِينَا إِنَّ كُلَّ مَا سَمِعْنَا مِنْهُ فَهُوَ عِنْدَنَا فِي كِتَابٍ

Muḥammad ibn Yaḥya al-Marwazi narrated to us ‘Aāṣim ibn Ali narrated to us Ishāq ibn Yaḥya ibn Ṭalḥa ibn ‘Ubaydallah narrated to us from Mujāhid from Abdullah ibn ‘Amr he said: There were people from the Companions of the Messenger of Allah, peace and blessings be upon him, and I was among them, being the youngest of people. So the Prophet peace and blessings be upon him said: *Whoever tells a lie about me deliberately, let him take his place in the fire.* When the people departed, I said to them – how do you narrate from the Messenger peace and blessings be upon him? You have heard what he said, yet are engaged in conversation? In reply, they laughed and they said ‘O son of our brother! All that we have heard from him, it is recorded in our book.’¹

Here I would argue that Muḥammad ibn Yaḥya al-Marwazi is most probably Muḥammad ibn Yaḥya ibn Sulaymān al-Marwazi, Abu Bakr al-Warrāq. He resided in Baghdad, being a companion of Abu ‘Ubayd. He is trustworthy

¹ al-Rāmhurmuzi (1984), *al-Muḥadith al-Fāṣil bayn al-Rāwi wal'Wā'ee* (Dar al-Fikr: Cairo), [no. 361, p. 378]

and studied from scholars of Imām al-Nasā’i; he died in the year 298AH - similar is reported in *al-Taqrīb* by Ibn Ḥajar.²

It may also be that Muḥammad ibn Yaḥya ibn Khālīd al-Marwazi, Abu Yaḥya al-Masha’rānī is also *thiqa* – as per what is in *al-Taqrīb*.³ According to the majority, Ishāq ibn Yaḥya ibn Ṭalḥa ibn ‘Ubaydallah al-Taymī is graded *ḍa‘if*. But Imām al-Bukhārī, the mountain of *ḥifẓ*, Imām of the *dunya*, head of moderation expressed in his work *al-Dua’fā* ‘Speaks from his *ḥifẓ*, write his *ḥadith*.’⁴ On another occasion he has said: ‘(There is) concern (about) some things, however he is *ṣaduq*.’ Ya’qub ibn Abi Shayba said: ‘There is nothing untoward with him - *la ba’sa bihi*; (there is) much *muḍṭarib* (disturbance) in his *ḥadith*.’ Al-Ḥāfiẓ Muḥammad ibn Abdullah ibn ‘Aāmar al-Mawṣili said: ‘*Ṣāliḥ*.’ All of this can be accessed from *Tahzeeb al-Tahzeeb*.⁵ Writing in his famous work *al-Thiqāt*, Ibn Ḥibbān said: ‘He has mistakes and delusions; we entered Ishāq ibn Yaḥya in the category of *ḍa‘if* narrators give the presence of errors in his reports. (Yet) we then investigated his narratives and found that diligence had led to him abandoning what he didn’t consistently report and he relied upon what agreed with the trustworthy narrators, after seeking the guidance of Allah the Almighty in this matter.’⁶

‘*al-Ṣādiqa*’

The aforementioned report, appears to have been the motivation behind Abdullah ibn ‘Amr ibn al-‘Aāṣ may Allah be pleased with him composition of his famous pamphlet which was entitled ‘*al-Ṣādiqa*.’ This pamphlet included about a thousand *aḥādith* that he heard directly from the Prophet peace and blessings be upon him. So guarded was this work of Abdullah ibn ‘Amr, he kept it in a closed box which only he accessed. It was only brought forth in order to make revisions and / or to dictate to his students. Indeed, Abdullah ibn ‘Amr utilised the written work during study-circles where he would dictate to his students. Use of the pamphlet was regular, since Abdullah ibn ‘Amr held many scholarly circles, may Allah be pleased with him. In fact one of his renowned students, Ḥussein ibn Shafī ibn Māti’ al-Aṣbaḥī in Egypt,

² Ibn Ḥajar *Taqreeb al-Tahzeeb* [no. 6385, p. 605]

³ Ibid. [no. 6383]

⁴ al-Bukhārī *Kitāb al-Dua’fā* [no. 21, p. 17]

⁵ Ibn Ḥajar *Tahzeeb al-Tahzeeb* Vol. 1, no. 479, p. 222]

⁶ Ibn Ḥibbān *al-Thiqāt* [Vol. 6, no. 6652]

copied this work into two books or volumes, one of which was dedicated to record the rulings given by the Prophet peace and blessings be upon him. The work was formatted in the manner of ‘Judgements – concerning this and that; and he said this, in relation to this matter’ and ‘What events will occur up to the Day of Judgement.’ His children and grandsons inherited that pamphlet. The Quraysh had previously objected to his writing and his consultation with the Prophet peace and blessings be upon him over the issue. However, the Prophet approved for him that he can write and record what he hears. A number of proofs exist to substantiate these points. For example, the following has been reported by al-Rāmhurmuzi in *al-Muḥadith al-Fāṣil*:

حَدَّثَنَا عَبْدُ اللَّهِ بْنُ غَنَامٍ حَدَّثَنَا عَلِيُّ بْنُ حَكِيمٍ حَدَّثَنَا شَرِيكَ عَنْ لَيْثٍ عَنْ مُجَاهِدٍ عَنْ عَبْدِ اللَّهِ بْنِ عَمْرٍو قَالَ مَا يَرِغِبُنِي فِي الْحَيَاةِ إِلَّا خَصْلَتَانِ الْوَهْطُ وَالصَّادِقَةُ صَحِيفَةً كُنْتُ اسْتَأْذَنْتُ رَسُولَ اللَّهِ صَلَّى اللَّهُ عَلَيْهِ وَسَلَّمَ أَنْ أَكْتُبَهَا عَنْهُ فَكَتَبَهَا وَهِيَ الصَّادِقَةُ

Abdullah ibn Ghanām narrated to us Ali ibn Ḥakeem narrated to us Shareek narrated to us from Layth from Mujāhid from Abdullah ibn ‘Amr, he said: ‘What do you wish in this life except these two qualities – *al-Waḥt* (a land near Ṭā’if) and *al-Sādiqa*? I asked the permission of the Messenger of Allah, peace and blessings be upon him, regarding the *Ṣaḥīfa*, that I could write it and have it as a book and it is (entitled) *al-Sādiqa*.’⁷

There is also clarification that there is no intermediary whatsoever:

حَدَّثَنِي عُمَرُ بْنُ الْحَسَنِ بْنُ جُبَيْرٍ الْوَاسِطِيُّ، حَدَّثَنَا مُحَمَّدُ بْنُ عَيْسَى الْعَطَّارُ، حَدَّثَنَا غَاصِمُ بْنُ عَلِيٍّ، حَدَّثَنَا إِسْحَاقُ بْنُ يَحْيَى بْنِ طَلْحَةَ، عَنْ مُجَاهِدٍ قَالَ رَأَيْتُ عَبْدَ اللَّهِ بْنَ عَمْرٍو صَحِيفَةً، فَذَهَبْتُ أَتَنَاولُهَا فَقَالَ مَهْ يَا غَلَامَ بَنِي مَخْرُومٍ قُلْتُ: مَا كُنْتُ تَمْنَعُنِي شَيْئًا قَالَ هَذِهِ الصَّادِقَةُ، فِيهَا مَا سَمِعْتُهُ مِنْ رَسُولِ اللَّهِ صَلَّى اللَّهُ عَلَيْهِ وَسَلَّمَ لَيْسَ بَيْنِي وَبَيْنَهُ فِيهَا أَحَدٌ

Umar ibn al-Ḥasan ibn Jubayr al-Wāsiṭi narrated to me Muḥammad ibn Esa al-‘Aṭṭār narrated to us ‘Aāsīm ibn Ali narrated to us Ishāq ibn Yahya ibn Ṭalḥa narrated to us from Mujāhid he said: I saw Abdullah ibn ‘Amr with *Ṣaḥīfa*. So I went to obtain it. He replied – Stop oh you (young) lad from Bani Maḥzoom. I said what (is the reason) you are preventing me from something? He said: ‘This is *al-Sādiqa*, in it is

⁷ al-Rāmhurmuzi *al-Muḥadith al-Fāṣil* [no. 323, pp. 366/367]

what I heard from the Messenger of Allah peace be and blessings upon him; there isn’t anyone in it between me and between him.’⁸

Writing of Ibn ‘Abbās

The famous *litterateur* Ibn ‘Abbās may Allah be pleased with him, was diligent in the recordation of knowledge and its preservation by writing. After the death of the Messenger of Allah peace be and blessings upon him, Ibn ‘Abbās made extensive enquires to the Companions and wrote a considerable amount of material, to the extent that he had them carried by camel. His books were preserved and are reliably trustworthy. Confirmation of this written material which Ibn ‘Abbās had, has reached us via several reports. One of which, with an authentic *isnād*, is contained in *al-Ṭabaqāt al-Kubra* of Ibn Sa’d:

أَخْبَرَنَا أَحْمَدُ بْنُ عَبْدِ اللَّهِ بْنِ يُونُسَ قَالَ حَدَّثَنَا زُهَيْرٌ قَالَ حَدَّثَنَا مُوسَى بْنُ عُقْبَةَ قَالَ وَضَعَ عِنْدَنَا كُرْئِيْبُ جَمَلٍ يَجِيرُ أَوْ عَدْلٌ يَجِيرُ مِنْ كُتُبِ ابْنِ عَبَّاسٍ. قَالَ فَكَانَ عَلَيَّ بْنُ عَبْدِ اللَّهِ بْنِ عَبَّاسٍ إِذَا أَرَادَ الْكِتَابَ كَتَبَ إِلَيْهِ ابْعَثْ إِلَيَّ بِصَحِيفَةٍ كَذَا وَكَذَا قَالَ فَيَنْسُخُهَا فَيَبْعَثُ إِلَيْهِ بِإِخْدَائِهَا

Aḥmad ibn Abdullah ibn Yunus reported to us he said Zuhayr narrated to us he said Musa ibn ‘Uqba narrated to us he said, Kurayb deposited with us a camel’s load or bag, of the books of Ibn ‘Abbās. When his own son Ali ibn Abdullah ibn ‘Abbās wanted a book, he wrote to Kurayb saying ‘Search amongst the *Ṣaḥīfa* (for) this and this.’ He said: ‘Copy / transcribe it and send to him one of the two copies (i.e. the original or copy).’⁹

⁸ Ibid. [no. 324, p. 367]. Two additional follow-on narrations are also mentioned, both from al-Rāmhurmuzi [no. 325, p. 367] ‘al-Ḥaḍrami narrated to us Abdullah ibn Umar narrated to us Sufyān ibn ‘Uyayna narrated to us from ‘Amr from Wahb ibn Munabbih from his brother he said: I heard Abu Hurayrah say – Indeed, is there one of the Companions of Muḥammad peace and blessings be upon him (who) has more *ḥadith* from the Messenger of Allah, peace and blessings be upon him except Abdullah ibn ‘Amr? Indeed he was writing while I didn’t write.’ And also, [no. 329, p. 369] ‘Muḥammad ibn Ya’qub narrated to us Abul’Khattāb narrated to us ‘Abd al-‘Alā narrated to us Muḥammad ibn Ishāq narrated to us from ‘Amr ibn Shu’ayb from al-Mughira ibn Ḥakeem from Abu Hurayrah he said: ‘I was aware of my heart and he is aware of his heart, and he writes with his hand, that is to say – Abdullah ibn ‘Amr.’

⁹ Ibn Sa’d *al-Ṭabaqāt* [Vol. 5, p. 224]. Further to this the Professor says: ‘Similar has also been reported in *al-Tārikh al-Kabir* of Ibn Abu Khaythamah [Vol. 2, p. 200] and *Taqayyad al-‘Ilm* of al-Khaṭeeb al-Baghdadi [p. 421], with the following *isnād* – ‘Abul’Ḥasan Muḥammad ibn Aḥmad ibn Razqwehi reported to us ‘Uthmān ibn Aḥmad al-Daqqāq reported to us Ḥanbal ibn Ishāq narrated to us Aḥmad ibn Yunus narrated to us.’ Imām al-Bayhaqi also reports this in *Sunan al-Kubra* via the channel of – ‘Abul’Ḥusein reported to us Abu ‘Amr reported to us Ḥanbal narrated to us Aḥmad ibn Yunus narrated to us.’

It is also noteworthy that the book of Abdullah ibn ‘Abbās was well known, copied, put into public circulation and read during his lifetime. This has been mentioned in *Ḍa‘eḥ Sunan al-Tirmidhi*:

حدثنا سويد بن نصر حدثنا علي بن الحسين بن واقد عن أبي عصمة عن يزيد النحوي عن عكرمة أن نفرا قدموا على ابن عباس من أهل الطائف يكتبون كتبه، فجعل يقرأ عليهم، فيقدم ويؤخر فقال إني بليت بهذه المصيبة، فاقروا علي فإن إقرارني به كفرائي عليكم

Suwayd ibn Naṣr narrated to us Ali ibn al-Ḥussein ibn Wāqid narrated to us from Abu Uṣamah from Yazeed al-Naḥwe from ‘Ikrimah, that some people from Ṭā’if came to Ibn ‘Abbās with books (taken / copied) from his books. When he began to read the books in front of them he would lose his place. So he said ‘I have been tested with this calamity (short-sightedness or partial blindness), so read in front of me and my agreeing to what you read is just like my reading it out to you.’¹⁰

From the above it can be discerned that the books of Abdullah ibn ‘Abbās were many. It would be incredulous to claim that these books would be devoid of Prophetic *aḥādith*. Rather, these must have been the substantive core of the books. Moreover, Abdullah ibn Ma’sud bequeathed written material to his children and students, as reported from Mis’ar from Ma’n who said: ‘Go out to ‘Abd al-Raḥman ibn Abdullah ibn Mas’ud; I swear that the book is composed by his father’s hand.’

Prophetic instructions to officials

Furthermore, there are several pamphlets, which the Prophet peace and blessings be upon him dictated to more than one of his administrative officials, when appointing them as governors, judges or tax collectors in the remote outer regions of Islamic lands. Usually this included important rulings related to *zakāt*, as well as matters concerning general behaviour or mannerisms; rulings in relation to blood-money as well as general commands and directives. Some of these include the following:

- The *Ṣaḥīfa* of ‘Amr ibn Ḥazm al-Anṣāry may Allah be pleased with him, who was appointed as governor over the people of Najrān

¹⁰ al-Albāni (1991), *Ḍa‘eḥ Sunan al-Tirmidhi* [no. 42, pp. 562/563]

- The book of al-‘Alā ibn al-Ḥaḍrami when he was sent to al-Mundhur ibn Sāwi. ‘Alā said: ‘Write for me O Messenger of Allah a book, I can take with me.’ The Prophet peace and blessings be upon him wrote to him detailing obligations, what can be levied on livestock as well as rulings on gold and silver.
- The book of Wā’el ibn Ḥujr ibn Sa’eed ibn Masruq, Abu Haneeda al-Ḥaḍrami al-Kindi. He was one of the kings of Yemen. The Prophet peace and blessings be upon him wrote to him for ‘the people of Wā’el ibn Ḥujr in Ḥaḍramawt.’ Contained within this major work, were the parameters of Islam and the details of *zakāt*, the lawful punishment for *zinā*, the prohibition of alcohol and that every intoxicant is prohibited.
- The *Ṣaḥīfa* of Anas ibn Mālīk may Allah be pleased with him, when he was utilised to collect the *zakāt* from the people of Baḥrain by the Messenger of Allah peace and blessings be upon him. This same document was also utilised under the *Khilāfah* of Abu Bakr.

A copy of the *Ṣaḥīfa* was commissioned by Abu Bakr from the Prophet peace and blessings be upon him and contained the stamp of the noble Prophetic seal. Many letters and correspondence were also made during this time. There were other books held by Anas ibn Mālīk may Allah be pleased with him, within them *aḥādith* which he directly wrote from the Prophet peace and blessings be upon him and confirmed with him. This ‘presentation’ to the Shaykh is reading, in other words, reading back what he had recorded from these *ḥadith* and confirming them to the Shaykh himself. This was done to ensure the validity and accuracy of what had been dictated.

Writings of Anas ibn Mālīk

The following has been reported in *Tārīkh al-Wāsiṭ* with a good *isnād*:

حدثنا العباس بن الوليد بن مزيّد قال حدثنا أبو شعيب وهو محمد بن شعيب بن شابور اليمشي قال حدثنا عتبة بن أبي الحكيم عن هبيرة بن عبد الرحمن وهو أبو عمر بن هبيرة قال كان أنس بن مالك إذا حدث وكثر عليه الناس جاء يكتب فألقاها ثم قال هذه أحاديث سمعتها من رسول الله صلى الله عليه وسلم وكتبتها عن رسول الله صلى الله عليه وسلم وعرضتها عليه

al-‘Abbās ibn al-Waleed ibn Mazeed narrated to us he said Abu Shu’ayb, and he is Muḥammad ibn Shu’ayb ibn Shābur al-Dimishqī, narrated to us he said ‘Utba ibn Abi al-Ḥakim narrated to us from

Hubayra ibn ‘Abd al-Raḥman, and he is Abu Umar ibn Hubayra, he said ‘(Once it) occurred that Anas ibn Mālīk was taking audience and many people came to write from him. Then he said: ‘This is the aḥādīth I heard them from the Messenger of Allah, peace and blessings be upon him and I wrote them from the Messenger of Allah and presented them before him.’¹¹

Imām al-Bukhārī has substantiated this narration by way of comment on the narrator Hubayra ibn ‘Abd al-Raḥman in his *al-Tārikh al-Kabir*. He writes: ‘Hubayra ibn ‘Abd al-Raḥman said - When we attended upon Anas ibn Mālīk, he delivered to us from a record and said - This is the aḥādīth which I wrote from the Prophet peace and blessings be upon him; then I presented them to him.’¹² Moreover, this is also reported by al-Ḥākim in his *Mustadrak*:

حَدَّثَنَا أَبُو الْعَبَّاسِ مُحَمَّدُ بْنُ يَعْقُوبَ أُنْبَى الْعَبَّاسِ بْنِ الْوَلِيدِ بْنِ مَزِيدِ الْبَيْرُوتِيِّ حَدَّثَنَا مُحَمَّدُ بْنُ شُعَيْبٍ بْنُ شَابُورٍ حَدَّثَنِي عُثْبَةُ بْنُ أَبِي حَكِيمٍ عَنْ مَعْبُدِ بْنِ هِلَالٍ قَالَ كُنَّا إِذَا أَكْثَرْنَا عَلَى أَنَسِ بْنِ مَالِكٍ رَضِيَ اللَّهُ عَنْهُ أَخْرَجَ إِلَيْنَا مَجَالًا عِنْدَهُ، فَقَالَ: هَذِهِ سَمِعْتُهَا مِنَ النَّبِيِّ صَلَّى اللَّهُ عَلَيْهِ وَسَلَّمَ فَكَتَبْتُهَا وَعَرَضْتُهَا عَلَيْهِ

Abul’-‘Abbās Muḥammad ibn Ya’qub narrated to us al-‘Abbās ibn al-Waleed ibn Mazeed al-Bayruti reports, Muḥammad ibn Shu’ayb ibn Shābur narrated to us ‘Utba ibn Abi Ḥakeem narrated to me from Ma’bad ibn Hilāl he said ‘When we used to press much (during attendance) upon Anas ibn Mālīk, may Allah be pleased with him, he came out to us from an area and he said – “This is what I heard from the Prophet peace and blessings be upon him and I wrote it and presented it to him”.’¹³

The aforementioned channel comes via Ma’bad ibn Hilāl. It may have been that ‘Utba ibn Abi Ḥakeem heard from both Hubayra ibn ‘Abd al-Raḥman and Ma’bad ibn Hilāl. In any event, it doesn’t make sense to say as al-Dhahabi did, ‘*ḥadīth munkar*’ after seeking to correct al-Bukhārī in this regard.

¹¹ *Tārikh al-Wāsiṭ* [p. 63]. A shorter version is recorded by al-Rāmḥurmuzi in *al-Muḥadith al-Fāṣil* [no. 325, p. 367] ‘al-Ḥaḍrami narrated to us Muḥammad ibn Ḥanbān al-Ḥimṣi narrated to us Baqiya ibn al-Waleed narrated to us from ‘Uqba ibn Abi Ḥakeem from Hubayra ibn ‘Abd al-Raḥman he said: ‘When we used to press much, Anas would take out note-books and say – ‘These are the aḥādīth I wrote from the Messenger of Allah, peace and blessings be upon him.’

¹² al-Bukhārī *al-Tārikh al-Kabir* [Vol. 8, p. 240]

¹³ al-Ḥākim *al-Mustadrak* [Vol. 3, no. 6452]

Other documentation from the Companions

To add to the above, there is also the *Ṣaḥīfa* of the Imām of guidance and leader of the believers, namely Ali ibn Abi Ṭālib peace be upon him. He guarded and preserved this, keeping it within the sheath of his sword. This particular pamphlet included a number of important rulings, covering issues of *zakāt*, constitutional rules as well as some of the famous constitutional principles which were extracted from the constitution of Medina. More has been detailed on this point in our specialist work – *Obedience to the Rulers: Its Principles and Limits*. Furthermore, it also had an important comprehensive corpus concerning charity as has been reported from Ibn Ḥanafiya, in other words, Muḥammad ibn Ali ibn Abi Ṭālib; he said: ‘Take this book and go with it to ‘Uthmān, for verily it contains the orders of the Prophet peace and blessings be upon him with regards to charity.’ That point is also elaborated in our work, *Obedience to the Rulers* as is the matter of the Constitution of Medina, which is a matter of paramount importance.

When the famous scholar of Islam and its premier narrator Abu Hurayrah ‘Abd al-Raḥman Sakhr, may Allah be pleased with him returned from Bahrain, where he had been appointed to take care of some works as an assistant to its governor, al-‘Alā ibn al-Ḥaḍrami, he had to provide a detailed account to the ruler of Medina and leader of all believers, Umar ibn al-Khaṭṭāb. It was well known that Umar was meticulous in scrutinising the actions of all public officials and Abu Hurayrah was no exception to this. So meticulous was this process of accountability, it even resulted in Abu Hurayrah being subject to a beating and having his wealth confiscated. Following this incident, Abu Hurayrah retired from public office altogether. He turned his attention to scholarship, learning to read and write till he was proficient in both. He memorised the glorious Qur’ān, wrote his memorised materials from the Prophet peace and blessings be upon him, which were in the region of four-thousand aḥādīth. Thereafter, he devoted a part of every night to revise and commit them well to his memory till the end of his life. On rare occasions, he would use these written manuscripts to refresh his memory. One can therefore see that the use of written materials was prominent, even in the earliest epoch of Islam, in this specific incidence, within ten-years following receipt from the Prophetic source.

There is also the *Ṣaḥīfa* of Jābir ibn Abdullah al-Anṣārī, which is famous, containing almost five-hundred *aḥādith* of the Prophet peace and blessings be upon him. Although, it has not been ascertained with any degree of certitude whether he wrote them in the same direct manner from the Prophet peace and blessings be upon him like Abdullah ibn ‘Amr and Anas ibn Mālīk did, or whether this was composed from memory after the death of the Prophet (peace be upon him), which is similar to Abu Hurayrah. It has been reported that he also had another book regarding *Ḥajj*, which bore the name *al-Manasik al-Ṣaḡhir* - ‘The Smaller Rites (or rituals)’ as supported by the famous long *ḥadith* which has been reported in the *Ṣaḥīḥ* of Imām Muslim.

Other than what has been detailed above, it is known that there were other works in existence, other *Ṣaḥīfa*’s and books, by other companions such as Sa’d ibn ‘Ubāda al-Anṣārī who had a book or books of *ḥadith* taken from the Prophet peace and blessings be upon him, as cited by Imām Bukhārī, which goes on to explain that this *Ṣaḥīfa* was a copy of another *Ṣaḥīfa* which was held by Abdullah ibn Abi ‘Aufa. Again he had written these *aḥādith* by his own hand.

There is also Abu Rāfi who was the *mawla* of the Prophet peace and blessings be upon him. People gathered collectively to read upon him from his dictated collections. Within the book was recorded the supplication at the start of the prayer, as well as tribute paid to Abu Bakr ibn ‘Abd al-Raḥman al-Ḥārith, one of the seven-renowned jurists of Medina. Asmā’ bint ‘Umayy had a book which contained within it a collection of some *aḥādith*. There was also the book found in the sheath of the sword which belonged to Muḥammad ibn Maslama al-Anṣārī when he died; it began ‘In the name of Allah *al-Raḥman al-Raḥeem*, I heard that the Prophet peace and blessings be upon him saying *Verily your Lord in the end of your epoch.*’ And also there was what was written by Subaya’ al-Aslamiya to Abdullah ibn ‘Utba reporting from the Prophet (peace be upon him) that he ordered her with *nikāḥ* shortly after her husband's death after he developed; and a lot other than this.

This is some of what has been written from the corpus of the noble Prophetic *aḥādith*, immediately during the time of the Prophet peace and blessings be upon him or within a short period after his passing from this world. These *aḥādith* being directly taken from the Prophet peace and blessings be upon him and as has been seen, read-back and confirmed with him. Taken in the round, it is arguable that more than half of the entire corpus

of *aḥādith* which we currently possess today was recorded in this manner as detailed above.

Transmission

Memorisation and oral transmission was dominant at the time of the Companions, and this is the case for those who lived through paganism and Islam and those who missed the honour of companionship, but lived through both the Islamic and pre-Islamic epoch the *mukhaḍrameen*. It is the same for the first class of the reporters after the Companions; i.e. *Kibār al-Tābi’een* - the great successors. Many of this class used to deliver their narrations on special occasions as well as providing comment upon great events and delivering legal judgements. In addition to this, they would narrate both from memory and by way of dictation from written material in the many study circles and other gatherings of knowledge, designated to learning and disseminating the Prophet’s *aḥādith*, much the same as was done at that earlier stage in the lifetime of the Prophet peace and blessings be upon him.

As has been attested from the writing of Abdullah ibn ‘Amr ibn al-‘Aās, the Companions took turn in attendance at the Prophet’s *ḥalaqa* where he would teach. We know of Umar ibn al-Khaṭṭāb rotating his attendance with that of Abdullah ibn ‘Amr. Some companions would be in attendance in the morning, others would be in attendance to learn later in the day or evening. Each taking it in turn to attend at the classes delivered by the Prophet peace and blessings be upon him. The subsequent *ḥalaqa*’s of the leading companions such as Abdullah ibn ‘Amr ibn al-‘Aās, Ibn Mas’ud, Ibn ‘Abbās and other then them continued also in the same vein. Moreover, teaching and delivering knowledge by way of designated *ḥalaqa*, special seminars, and assemblies dedicated to narrating / dictating *aḥādith*, where the teacher would dictate to the students and / or the students would read back to the teacher, was a common feature which the *Ṣaḥāba* bequeathed to subsequent generations. They in turn, continued in this manner. Indeed, every scholar and student of knowledge utilised written manuscripts for the dispensation of knowledge. Sessions were characterised by the dictation from the teacher (Shaykh) to his students; or the reading of a student (who would be an excellent orator and narrator) back to the teacher, while the teacher checks what is being read either by way of memory or against his own manuscript.

Each of the other students in attendance would not be sitting idly, but rather also dictating what is being read. Transmission of *aḥādith* took this format and was a noted feature amongst the senior and junior *Tābi'een*.

An illustrative example of this is that of the great scholar of *ḥadith*, Imām Muḥammad ibn Shihāb al-Zuhri. He had a large personal library that was transported on camels for him. Al-Zuhri was one of the class of the junior *Tābi'een* (which is the class that learned from some of the Companions, who lived longer and died latest). He always used to revise his books whenever he was alone, to the extent that his wife became bored with that, and made a statement to the effect that those books were harder on her than her co-wives!

Another example which can be gleaned is that of the major figure of *ḥadith*, 'Abd al-Aziz ibn Marwān, as reported by Ibn Sa'd in *al-Ṭabaqāt al-Kubra*:

كَثِيرٌ بِنُ مَرَّةٍ الْخَضْرَمِيُّ وَيَكْنَى أَبَا شَجَرَةَ وَكَانَ ثَقَّةً قَالَ عَبْدُ اللَّهِ بْنُ صَالِحٍ عَنْ اللَّيْثِ بْنِ سَعْدٍ قَالَ حَدَّثَنِي يَزِيدُ بْنُ أَبِي حَبِيبٍ أَنَّ عَبْدَ الْعَزِيزِ بْنَ مَرْوَانَ كَتَبَ إِلَى كَثِيرِ بْنِ مَرَّةٍ الْخَضْرَمِيِّ. وَكَانَ قَدْ أَذْرَكَ بِحَمَصٍ سَبْعِينَ بَذْرِيًّا مِنْ أَصْحَابِ رَسُولِ اللَّهِ صَلَّى اللَّهُ عَلَيْهِ وَسَلَّمَ قَالَ لَيْثٌ وَكَانَ يُسَمِّي الْجُنْدَ الْمُقَمَّ. قَالَ فَكَتَبَ إِلَيْهِ أَنْ يَكْتُبَ إِلَيْهِ بِمَا سَمِعَ مِنْ أَصْحَابِ رَسُولِ اللَّهِ صَلَّى اللَّهُ عَلَيْهِ وَسَلَّمَ مِنْ أَحَادِيثِهِمْ إِلَّا حَدِيثَ أَبِي هُرَيْرَةَ فَإِنَّهُ عِنْدَنَا

Kathir ibn Murra al-Ḥaḍarami and (his) *kunya* Abu Shajara. And he was *thiqa*. Abdullah ibn Ṣāliḥ said from al-Layth ibn Sa'd 'Yazeed ibn Abi Ḥabeeb narrated to me that 'Abd al-Aziz ibn Marwān wrote to Kathir ibn Murra al-Ḥaḍarami, he had seen in Ḥimṣ seventy Badri companions of the Messenger of Allah peace and blessings be upon him. Layth said: 'It was called the 'veteran soldiers.' He said: 'He wrote to him that - write what you hear from the Companions of the Messenger of Allah peace and blessings be upon him from their *aḥādith*, except the *ḥadith* of Abu Hurayrah, since we have them.'¹⁴

The just and arguably from among the *Rāshid Khaleefa*, Umar ibn Abdal-Aziz ibn Marwān, may Allah be pleased with him, was also a prominent trustworthy narrator. He began the collection and writing of *aḥādith* in a comprehensive manner; this was formally done given his status as ruler of Islamic lands. Specifically, he reported the *ḥadith* of Amra' ibn 'Abd al-Raḥman which was the channel of narration to the mother of the believers,

¹⁴ Ibn Sa'd *al-Ṭabaqāt* [Vol. 7, p. 311]

'Aisha, may Allah be pleased with her. He ordered the judge of Medina, Abu Bakr ibn Muḥammad ibn 'Amr ibn Ḥazm (who was the grandson of the aforementioned 'Amr ibn Ḥazm, governor of the Prophet for the region of Najrān) to undertake this mission. Abu Bakr was from amongst the prominent *Tābi'een*, being an Imām of *fiqh* as well as *ḥadith* and established as a *thiqa* narrator himself. It is arguable he had inherited his father's collection and manuscripts. All of this took place roughly around the year 100 AH.

The following generations of major, middle and lower-order *Tābi'een*, continued with this method, progressing to the point where they made the narration of *aḥādith* into an actual academic subject or as some would say, a science. Gatherings dedicated to narrating and dictating *aḥādith* had their own particular etiquettes, procedures, and even records of attendance. These can still be accessed in the (former) great centres of Islamic learning. The notion of 'spontaneous narration' waned considerably. The idea that *ḥadith* were simply narrated by wise old men, story-tellers and preachers at Friday prayers are something of a misnomer; in fact the stringent protocols underpinning the science of *ḥadith*, made such instances incredibly rare.

Era of documentation

Given what has been expounded on this topic thus far, one may credibly ask, what the actual meaning of the term – '*Aṣr al-Tadween* - era of documentation of the *Sunnah* – refers to? Discerning the meaning of this can be made easier by replacing this with its correct terminology, which is the 'the Era of Publication' or '*Aṣr al-Nashr wal-Warrāqeen*. To clarify the matter further, we would say that by the end of the first-Islamic century and at the beginning of the second, paper had become more widespread and available. The industry in paper in the Muslim world emanated from Samarkand in Central Asia, in turn, originating from China.

By the middle of the second Islamic century and the consolidation of 'Abbāsīd rule, the paper industry grew considerably, spreading throughout the Muslim world. High quality paper was for the first time available at reasonably low prices. Publishing books became much easier and with this grew the sale of books, which the mass public began to consume. Books of poetry, literature and Arabic language spread widely, as did the writings of Ibn Al-Muqaffa', the translations of *Kaleela* and *Dimnah*, and many other

literary works from Persia and as far afield as India. Therefore, the profession of publishing appeared. The publisher, *al-Warrāq*, was a person who hired a large number of scribes, copyists, sub-editors and the like, to prepare books *en-masse* for publication and sale. Thus the *Warrāq* was not merely a publisher, but also a printer and a literary agent in the modern sense of the term. With this literary revolution engulfing the Islamic world, scholars of *ḥadīth* did not, at least initially, give approval to the publication of such materials. Though the production of the *Warrāq* was of high quality with few mistakes, it was able to reach the level of authentication required by the growing *ḥadīth* science. Scholars still preferred to obtain material in the ‘traditional’ manner, through attendance upon a Shaykh and recording by dictation and / or presentation. They feared that the strict principles of narration via transmission be lost and that the distorted or forged versions would spread as happened with the people of the previous two books; namely the Jews and Christians. Yet Abu Ja’far al-Manṣūr was not convinced and insisted that common Muslims, who were not dedicated to studying *ḥadīth* sciences had the right to see the truth of Prophetic *ḥadīth* themselves and have such books and libraries in their own houses.

As for students of knowledge, their Imām’s, scholars of *ḥadīth* placed a premium upon receipt of authentic reliable transmission in a direct manner. However, they were also able to continue with this while correct versions which were obtained from the *Warrāq* and utilising this material either by reading or by presenting them to their qualified teachers. I would submit that history has shown that the *Ameer al-Mu’mineen* Abu Ja’far was correct in his policy. The rigorous discipline of *ḥadīth* narration and transmission, with its associated dedicated gatherings continued for several centuries and was not undermined by the widespread dissemination of books. Indeed, in actuality, it worked in tandem with it. In the first wave of publication, came the *Muwatṭā’* of Imām Mālik, the works of the two Sufyāns – Sufyān al-Thawri and Sufyān ibn ‘Uyayna. There was also the works of the two Ḥammāds, Ḥammād ibn Zayd and Ḥammād ibn Salamah and that of Sa’eed ibn Abi ‘Aruba. All of these works were compiled and put into public circulation by around 145 AH. Following this, we may note a further distinct ‘waves’ of publication.

The ‘second wave’ *Second wave* - saw the publication of the *Muṣṣanaḥ* of ‘Abd al-Razzāq; *Sunan* Ḥumaydi, the *Musnad* of al-Ṭayālisi, the works of

al-Wāqidi and many others. We may posit a nominal date-marker for the second wave as being 190 AH. The ‘third wave’ included all the famous books carrying the titles of *Musnad* and *al-Jāmi*, such as the *Musnad* of Aḥmad ibn Ḥanbal; *Musnad* Ishāq ibn Rāhwayh; *Muṣṣanaḥ* Ibn Abi Shayba, *Sunan* Sa’eed ibn Manṣūr, the *Ṭabaqāt* of Ibn Sa’d, the *Sunan* of al-Dārimi and many others. Again, the nominal date-marker for this wave is 220 AH. For the ‘fourth wave’ the nominal date-marker for this is 250 AH. Within this phase came the blessed books of *Ṣaḥīḥ* by Imām al-Bukhārī and Muslim. With them, albeit slightly after, were the famous *Sunan* works from Abu Dāwūd, al-Tirmidhi and Ibn Mājah. There was also the *Musnad* of Baqī ibn Makhḥad in Spain; the *Musnad* of Abu Ya’la and al-Bazzār as well as the *Sunan* of Imām al-Nasā’i. By this juncture, the collection and compilation of the Prophetic *ḥadīth* was by and large assembled and disseminated.

Lastly, what was left over from the preceding compilations became featured in later works. During this era, the large collections of al-Ṭabarānī appeared; there was also the *Ṣaḥīḥ* of Ibn Ḥibbān, *Sunan* al-Dāraquṭni, and the *Mustadrak* of al-Ḥākim. Another feature were books about narrators, which also contained full channels of narration and *isnād*, such as *al-Kāmil fi al-Dua’fā’* (Compendium of Weak Narrators) and that of Ibn ‘Adi as well as others. Most of these books and compilations became widespread. Any mistakes made by scribes and copyists which were contained therein were not of any major import, any attempts at deliberate falsification were thus detected. It would be absurd to suggest that widespread and deliberate forgeries could easily creep into this corpus.

Notwithstanding the above, a very small number of *aḥādīth* and a minority of alternate channels for better known *ḥadīth* could be identified in books of *fiqh*, *Uṣul*, as well as in books of history and works dedicated to profiling *ḥadīth* narrators. Arguably some of the most important of these were *Sunan* al-Kubra by Imām al-Bayhaqī; *al-Iḥkām fi Uṣul al-Aḥkām* and *al-Muḥalla bil Athār* by Imām Abu Muḥammad, Ibn Ḥazm, and *Tārikh Baghdād* (History of Baghdad) by the grand Imām al-Khaṭīb Baghdādī. The nominal date-marker for when these works were completed by is 450 AH.

Despite this, narrating and dictating *aḥādīth* has remained within the Islamic world. Whether that be in the far west in Morocco or in the east in the Indian sub-continent, scholars and students of knowledge have continued to receive *ḥadīth* in the ‘traditional manner’, namely by attendance in the

audience of the Shaykh, dictating and reading back to him. With the advances made in modern technology and computers, valuable books are being digitised at an incredible rate. One could argue that this is a new method of preservation. Although admittedly, there are some texts that are not as reliable as first thought, since they are not based upon the best manuscripts. However, a large number of researchers, scholars and students of knowledge are seeking to correct this, by the grace and mercy of Allah.

What has been said thus far regarding *aḥādīth* is also applicable to the Prophetic *Seerah* (life and biography), particularly for the period post-migration in Medina which also covers the great battles, contrary to those who are ignorant of this. Compilation within this field began many years earlier than that of the *Sunan* or *Musnad* collections and were prepared under the title of *al-Maghāzī* (the battles or conquests). Such works were published and well received amongst the Muslim masses. This is a historical fact and it is of no surprise it was well received, given that the vast majority of people can readily digest biographies, stories and history in general, as opposed to turgid rigorous style employed within the *Sunan* or *Musnad* collections. In fact, public sessions or recitals were held on the topic of *al-Maghāzī* during the time of the rightly-guided Caliphs. The recitals were employed as a means of inspiring soldiers and urging Muslims to fight in the cause of Allah. These sessions were called ‘storytelling’ and were delivered by a ‘storyteller.’

Also there was the work of *al-Maghāzī* prepared by the *Tābi*’ Imām ‘Abbān ibn Uthmān ibn ‘Affān, may Allah be pleased with him. He made a fatal error though when he presented this work to the tyrant Caliph al-Waleed ibn ‘Abd al-Malik ibn Marwān, may the curse of Allah be upon him. Al-Waleed denounced the work ordering it to be destroyed because of the facts reported therein which exposed and detailed the crimes of Bani Umayyah. Faced with this, ‘Abbān ibn Uthmān did not have the courage to recompose the book after its destruction and it was lost to posterity; there is no power or might save in Allah! Without doubt many other writers compiled works of *al-Maghāzī*, such as Imām Muḥammad ibn Shihāb al-Zuhri. Directly following such works were that produced by the Imām *Maghāzī* and *Seerah* - Muḥammad ibn Ishāq ibn Yasār who died in the year 150 AH. He produced a huge comprehensive biography but a lot of doubtful information was enclosed. Much of it was re-worked and edited by Imām Ibn Hishām and thereafter became known as the *Seerah* of Ibn Hishām – which became a

landmark work, some would say the standard for biographical works about the Prophet peace and blessings be upon him. Work has continued upon the *Seerah* even up to the present, Shaykh Ṣafī-ur-Raḥman al-Mubārakpuri, with his monumental work *al-Raḥeeq al-Makhtum* (the Sealed Nectar); may Allah reward him abundantly for his effort. Mubārakpuri’s work has received international acclaim, being translated into numerous languages.

People have queried why such biographical works are not used in determining matters of general legislation and rulings, or *aqeedah*, given that they generally are taken from the historical background. The reason for this is that the authors of such historical works have tended to drop the channels of transmission in general as well as putting narratives together to make a coherent readily accessible narrative. Whilst this does provide an accurate picture of historical events overall, it does not produce legal certainty to the requisite standard which can be used as proof in matters of *Deen*. It shouldn’t therefore be of great surprise that scholars of *ḥadīth*, applying strict principles have regarded such works in general as having no substantive basis to them. That is not to say that they are works of fabrication, but that they do not meet the required legal standards to be utilised for matters of creed and legislation. One could liken this form of reporting to be akin to that found in contemporary journalism as found in newspapers, the radio and television. Although a generic picture is provided of actual events, such manner of reporting is not generally viewed as being admissible evidence in a judicial capacity. There has to be physical evidence, witness statements, official documentation and the like which can withstand rigorous and detailed cross-examination. Matters related to *Deen*, be they creedal or legislative, without doubt rank highly thus requiring the rigorous methodologies which have accompanied them to date.

The work as detailed here is but a brief overview. To do real justice to the subject as a whole would inevitably require a separate volume altogether. Such works are being produced and are dealing a death-blow to the claims of the Orientalists. One notable work in this regard, is that submitted originally as a PhD thesis at Cambridge University by the renowned Shaykh Dr Muḥammad Muṣṭafa al-‘Azami; may Allah reward him abundantly for his noble distinguished work.¹⁵ His work has fundamentally deconstructed the theories which the Orientalists have held sacrosanct for over a century and he

¹⁵ M. M. ‘Azami (2000), *Studies in Early Ḥadīth Literature* (Kuala Lumpur: Islamic Book Trust)

has, by the grace of Allah, demonstrated that they are utterly false. Given the ground-breaking nature of the Shaykh's work, all those who had a semblance of intellectual honesty from amongst the Orientalists have thus abandoned the bizarre opinions of the likes of Goldzieher and Schacht. Work is ongoing within this field and many are being published which have only further entrenched the strength of the Prophetic *Sunnah*, providing even further substantiation to its truthfulness, underpinned with a sound rigorous academic approach.¹⁶ Taken in the round, all such works provide yet further evidence to the truthfulness which Allah himself attests will be established, step-by-step, in the glorious Qur'ān:

سَنُرِيهِمْ آيَاتِنَا فِي الْأَفَاقِ وَفِي أَنْفُسِهِمْ حَتَّىٰ يَتَبَيَّنَ لَهُمْ أَنَّهُ الْحَقُّ أَوَلَمْ يَكْفِ بِرَبِّكَ أَنَّهُ عَلَىٰ كُلِّ شَيْءٍ شَهِيدٌ،
أَلَا إِنَّهُمْ فِي مِرْيَةٍ مِّنَ لِّقَاءِ رَبِّهِمْ أَلَا إِنَّهُ بِكُلِّ شَيْءٍ مُّحِيطٌ

*We shall show them Our signs in every region of the earth and in themselves, until it becomes clear to them that this is the Truth. Is it not enough that your Lord witnesses everything? Truly, they doubt that they will meet their Lord; truly He encompasses everything.*¹⁷

Just as this occurred at the very dawn of Islam and was witnessed by the Quraysh, it is constantly recurring throughout the ages, including our present time and indeed, will continue until the Day of Judgement.

¹⁶ For example Dr Muḥammad Hamidullah (2003), *An Introduction to the Conservation of Ḥadīth: in light of the Ṣaḥīfa of Hammām ibn Munabbih* (Kuala Lumpur: Islamic Book Trust)

¹⁷ Qur'ān 41: 53/54

Part III

Fundamental Doctrinal Maxims

1. The Seal of Prophethood

The principle that Muḥammad, peace and blessings be upon him is the final ‘Seal of the Prophets’ is confirmed in the Qur’ānic text. As such, it is thus established as a central tenet of the Islamic faith. Allah the Mighty and Sublime says:

مَا كَانَ مُحَمَّدٌ أَبَا أَحَدٍ مِّن رِّجَالِكُمْ وَلَكِن رَّسُولَ اللَّهِ وَخَاتَمَ النَّبِيِّينَ وَكَانَ اللَّهُ بِكُلِّ شَيْءٍ عَلِيمًا

*Muhammad is not the father of any one of you men; he is Allah’s Messenger and the Seal of the Prophets: Allah knows everything.*¹

The verse is unequivocal in meaning, beaming as clear as the brightest sun. In the *Tafsir* of this verse, the grand Imām al-Ṭabari has written the following:

Concerning the interpretation of where He the Almighty said: *Muhammad is not the father of any one of you men; he is Allah’s Messenger and the Seal of the Prophets: Allah knows everything* - Allah mentions that O mankind! Muḥammad is not the father of Zayd ibn Ḥāritha nor is he the father of anyone of your men, (none of whom gave birth to Muḥammad), which would prohibit him from marrying his wife if he separated from her. However, he is the Messenger of Allah and the Seal of the Prophets by which Prophethood has ended. Consequently, he has been made the stamp of Prophethood, which no one will reopen after him until the establishment of the final hour. And

¹ *Qur’ān* 33: 40

Allah knows all things pertaining to your actions; your words and other than these. He is the possessor of omnipotent knowledge and nothing is hidden from Him. Among the people of *Ta’weel* (scholars interpreting the verses), those who have said similar to what we have, mention of those who said as such:

Bishr narrated to us he said Yazeed narrated to us he said Sa’eed narrated to us from Qatādah (regarding where) He says: *Muḥammad is not the father of any of your men*, he said: This was revealed regarding Zayd, that he was not his son. By my life, he has indeed fathered male (offspring); he is the father of al-Qasim and Ibrahim, al-Ṭayyib and al-Muṭṭahir. But, he is the Messenger of Allah and the Seal of Prophethood, that is, the last of them. And Allah knows all things.

Muḥammad ibn ‘Ammāra narrated to me he said Ali ibn Qādim narrated to us he said Sufyān narrated to us from Nasser ibn Dhu’luq from Ali ibn al-Ḥussain regarding His saying: ‘*Muḥammad is not the father of anyone of your men*’; he said - This verse was revealed regarding Zayd ibn Ḥāritha. The phrase: ‘*the Messenger of Allah*, may Allah bless him and grant him peace, is placed in the accusative case, which gives it the emphasis. The Messenger of Allah, may peace and blessings be upon him, is indeed the subject of emphasis. The nominative case is used when reading it among us.

(al-Ṭabari) There is disagreement with regards to the pronunciation of the phrase ‘and Seal of the Prophets’ [و خَاتَمَ النَّبِيِّينَ] among the scholars of recitation. The reciters of the garrison cities, save al-Ḥasan and ‘Aāṣim, read it with a *kasrah* upon (the letter) *tā*, which means seal of the Prophets. It was mentioned that this was the reading of Abdullah, *but a Prophet (who) sealed the Prophets*. That is evidence of the correct reading of the one who reads it with a *kasrah* upon (the letter) *ta*, meaning that he is the one who sealed the Prophets, may Allah’s prayers and peace be upon him and them all. This was recited, as mentioned, by al-Ḥasan and ‘Aāṣim, with the pronunciation of the *fatha* upon the letter *tā*, meaning, the last of the Prophets [خَاتَمَ النَّبِيِّينَ]. In a similar manner they recited (the verse), ‘*Its seal [perfumed with] musk.*’²

² *Tafsir* al-Ṭabari (Dar al-Hijr, 2008), [Vol. 19, pp. 120/123]. An open access version is available here: < <https://archive.org/details/FP59561/taftabry00/> >

Qur'ānic references to the word 'seal'

However, it did not occur to the mind of Imām al-Ṭabari, nor indeed the mind of any other classical scholar that there would emerge a controversy surrounding the meaning of the expression *khātim* - 'seal', or *Khātam al-Nabi'een* 'Seal of the Prophets.' During that time there was only one meaning of the phrase, which included: 'stamping; closure; shutting; completion;' and the like of what can be advanced to embrace the affairs in their finality or in their end. The Arabs had no other explanation of the meaning of this phrase other than that. The stipulation of the expression 'seal' has three distinct connotations, which is utilised in seven other places within the Qur'ān; which I will narrate consecutively as they appear in order:

خَتَمَ اللَّهُ عَلَى قُلُوبِهِمْ وَعَلَى سَمْعِهِمْ وَعَلَى أَبْصَارِهِمْ غِشَاوَةً وَلَهُمْ عَذَابٌ عَظِيمٌ

Allah has sealed their hearts and their ears, and their eyes are covered. They will have great torment.³

قُلْ أَرَأَيْتُمْ إِنْ أَخَذَ اللَّهُ سَمْعَكُمْ وَأَبْصَارَكُمْ وَخَتَمَ عَلَى قُلُوبِكُمْ مَنْ إِلَهٌ غَيْرُ اللَّهِ يَأْتِيكُمْ بِهِ انْظُرْ كَيْفَ نُصَرِّفُ الْآيَاتِ ثُمَّ هُمْ يَصْدِفُونَ

Say [Prophet], 'Think: if Allah were to take away your hearing and your sight and seal up your hearts, what god other than He could restore them?' See how We explain Our revelations in various ways, yet still they turn away.⁴

الْيَوْمَ نَخْتُمُ عَلَى أَفْوَاهِهِمْ وَتُكَلِّمُنَا أَيْدِيهِمْ وَتَشْهَدُ أَرْجُلُهُمْ بِمَا كَانُوا يَكْسِبُونَ

On that Day We shall seal up their mouths, but their hands will speak to Us, and their feet bear witness to everything they have done.⁵

أَمْ يَقُولُونَ افْتَرَى عَلَى اللَّهِ كَذِبًا فَإِنْ يَشَأْ اللَّهُ يَخْتِمْ عَلَى قَلْبِكَ وَيَمْحُ اللَّهُ الْبَاطِلَ وَيُحِقُّ الْحَقَّ بِكَلِمَاتِهِ إِنَّهُ عَلِيمٌ بِذَاتِ الصُّدُورِ

How can they say, 'He has invented a lie about Allah'? If Allah so willed, He could seal your heart and blot out lies: Allah confirms the Truth with His words. He has full knowledge of what is in the heart.⁶

³ Qur'ān 2: 7

⁴ Qur'ān 6: 46

⁵ Qur'ān 36: 65

⁶ Qur'ān 42: 24

أَفَرَأَيْتَ مَنْ اتَّخَذَ إِلَهَهُ هَوَاهُ وَأَضَلَّهُ اللَّهُ عَلَى عِلْمٍ وَخَتَمَ عَلَى سَمْعِهِ وَقَلْبِهِ وَجَعَلَ عَلَى بَصَرِهِ غِشَاوَةً فَمَنْ يَهْدِيهِ مِنْ بَعْدِ اللَّهِ أَفَلَا تَذَكَّرُونَ

Consider the one who has taken his own desire as a god, whom Allah allows to stray in the face of knowledge, sealing his ears and heart and covering his eyes - who can guide such a person after Allah [has done this]? Will you [people] not take heed?⁷

يُسْقَوْنَ مِنْ رَحِيقٍ مَخْنُومٍ ، خَتَامُهُ مِسْكٌ وَفِي ذَلِكَ فَلْيَتَنَافَسِ الْمُتَنَافِسُونَ

They will be served a sealed nectar, its seal [perfumed with] a fragrant musk - let those who strive, strive for this.⁸

Analysis of al-Ṭabari

Imām al-Ṭabari is widely acknowledged as being an established proof concerning matters of Arabic language and linguistics. This is in tandem with the fact that he was a major Imām in several branches of the Islamic sciences such as the Qur'ān, *Tafsir* and *ḥadith*, regarded across the spectrum as being a *mujtahid muṭlaq*. He further elaborated on the controversies of the expression: 'seal', when he first presented its appearances in the consecutive order as they appear in the Qur'ān. He mentioned the unique linguistic meanings in an abridged manner, then proceeded to elaborate on its diverse issues covering the points of 'guidance and error'; 'the flooding of sins over the heart,' and others. With reference to the first verse that was quoted (2: 7) al-Ṭabari writes:

The etymological root of the word 'seal' is 'imprint'; for the 'signet' it is a 'stamp' which is usually utilised when one says: 'I have sealed the book' following an impression being made. For when someone says to us: 'How does He seal the hearts?' The expression 'seal' here means an impression which is made upon the containers, the receptacles or the encasements, because it is said that the hearts of the servants are the containers which comprise sciences; and the receptacles in which (they) are placed the realisation of matters. Thus the meaning of

⁷ Qur'ān 45: 23

⁸ Qur'ān 83: 25/26

placing a seal upon their hearts and upon their hearing by which they comprehend what is heard, is that before them a barrier is placed which prevents the heart and hearing from attaining (the) realisation of the truths of news of the unseen. Thus, the analogous meaning of the expression ‘seal’ carries with it the same meaning of an imprint that is made upon any container or receptacle. If it is asked - is this an attribute from its attributes by which we can better comprehend it? Is it the same as the seal which is known and is apparent to sight, or is it something different? It is said that the people of *Tafsir* differ (regarding) the descriptions of this seal. We will discuss the description of the seal after discussing some of the words of the interpreters:

Esa ibn Uthmān ibn Esa al-Ramli narrated to me he said Yaḥya ibn Esa narrated to us from al-‘Amash he said, Mujāhid showed us his hand, and said: ‘They used to show me that the heart was no larger than this, (meaning by that the palm). When a servant commits a sin, it encloses upon like this, (and he then closed his small finger upon his palm). When he commits another sin, it encloses upon it like this, (he then closed the next finger upon his palm). When he commits another sin, it encloses upon it like this, (he then closed his middle finger upon his palm).’ He did this until all of his fingers had closed upon his palm and said: ‘Then the heart is imprinted upon with an impression’. Mujāhid said: ‘They used to show me that this closing on the heart was doubt which overcomes it.’

Abu Kareeb narrated to us he said Waki’ narrated to us from al-‘Amash from Mujāhid, he said: ‘The heart is like the palm of the hand; and when a sin is committed the fingers grasp down upon it until all the fingers enclose upon it. Our companions used to show us that this encompassment is a kind of doubt that overwhelms the heart.’

al-Qāsim ibn al-Ḥasan narrated to us he said al-Ḥussain ibn Dāwud narrated to us he said Ḥajjaj narrated to me he said Ibn Jurayj narrated to us he said that Mujāhid said: ‘I was informed that sins encircle the heart with what it has been forbidden it until eventually the heart becomes accustomed to it and thus, sins become firmly imprinted upon it. This impression is the seal.’ Ibn Jurayj said: ‘This seal is the sealing of the heart and the hearing.’

Al-Qāsim narrated to us he said al-Ḥussain narrated to us Ḥajjaj narrated to me from Ibn Jurayj, he said Abdullah ibn Kathir narrated to

me that he heard Mujāhid say: ‘This encompassing doubt is easier than, the impression upon the heart. The impressions made upon the heart are easier than the heart being completely locked. The heart being completely locked is the severest of them all.’⁹

Concerning the second verse mentioned (6: 46), Imām al-Ṭabari comments as follows:

Here Allah the Exalted says to His Prophet Muḥammad may Allah bless him and grant him peace: ‘Say O Muḥammad to those who turn away from Me deviating with the idols and false deities and who deny you: ‘Have you who associate deities besides Allah not seen, that if Allah desired to make you deaf by seizing your hearing; your actions; seizes your sight and places a seal over your hearts; stamping it so that you are unable to comprehend words, or have insight into clear evidence, or have clear understanding of anything; is there a deity besides Allah that you can bring that is worshipped by all those who worship; who can return what Allah has seized of your hearing, sight and understanding?’ In this verse, you can see that the expression ‘seal’ was only utilised in the middle of the sentence which suffices as a proof in its interpretation that it is a synonym of the expression ‘to make an imprint.’¹⁰

Regarding the next verse (36: 65), al-Ṭabari writes:

Abu Ja’far may Allah have mercy on him said, regarding where He the Almighty said: *On that Day We shall seal up their mouths, but their hands will speak to Us*; meaning that this day have We stamped over the mouths of those who are the *mushrikeen*; (the expression) ‘this day’ referring to the Day of Judgement. The meaning of His words: ‘*and their hands will speak out*,’ means that they will speak out regarding what they did in this life from disobedience of Allah. The meaning of His words ‘*and their feet bear witness to everything they have done*,’ in summation has the same meaning as what preceded.¹¹

⁹ *Tafsir* al-Ṭabari [Vol. 1, pp. 265/268]

¹⁰ *Ibid.* [Vol. 9, p. 251]

¹¹ *Ibid.* [Vol. 19, p. 472]

In relation to the next verse (42: 24) -

He the Exalted in His remembrance said: Do those who *mushrikeen* assert that Muḥammad has invented a lie against Allah, while he brings revelation which is in opposition to anything which can be construed to come from his own whims. If Allah willed O Muḥammad, He could imprint over your heart causing you to forget this Qur'ān which has been revealed to you.¹²

For the fifth verse mentioned (45: 23), al-Ṭabari says:

The meaning of His words: '*places a seal on his hearing and his heart*'; means that He imprints over their hearing where they are unable to hear the admonitions of Allah and the verses of His Book, where they can reflect, be attentive, consider or apprehend what is in it of light, clarity and guidance. The meaning of His words: '*his heart*' is that it too is imprinted upon where it is unable to conceive or grasp anything of the truth.¹³

With regard to the remaining sixth and seventh verses quote above (83: 25/26) Imām al-Ṭabari comments at length, in particular, noting the differing opinions that have been held amongst the scholars regarding the precise meaning:

As for where He says: The meaning of His words: '*its seal [perfumed with] a fragrant musk*' the people of interpretation differ regarding its meaning. Some of them say that it means that it will be blended, mixed or intermixed with musk. Among those who mentioned that:

Ibn Ḥumayd narrated to us he said Mihrān narrated to us from Sufyān from Ash'ath ibn Abi al-Sha'shā' from Yazeed ibn Mu'āwiya and 'Alqama from Abdullah ibn Mas'ud (regarding the verse) *its seal [perfumed with] a fragrant musk*, he said: does not mean that it is sealed literally, but that it is intermixed with musk.

¹² Ibid. [Vol. 20, pp. 503/504]

¹³ Ibid. [Vol. 21, p. 94]

Ibn Bishār narrated to us he said Yaḥya ibn Sa'eed and 'Abd al-Raḥman narrated to us, they said, Sufyān narrated to us from Ash'ath ibn Sulaym from Yazeed ibn Mu'āwiya from 'Alqama from Abdullah ibn Mas'ud (regarding the verse) *its seal [perfumed with] a fragrant musk*, he said the expression 'seal' does not mean the kind of seal that closes a thing. Have you not heard one of your women say: 'So-and-so perfume was intermixed with musk?

Muḥammad ibn 'Ubayd al-Muḥārabi narrated to us he said Ayub narrated to us from Ash'ath ibn Abi al-Sha'shā' what he narrated on the authority of 'Alqama concerning His saying '*its seal [perfumed with] a fragrant musk*,' he said means that it will be intermixed with musk.

Abu Kareeb narrated to us he said Waki' narrated to us from al-'Amash from Abdullah ibn Murra from Masruq from Abdullah that the meaning of: '*Its seal*' is that its seal will be intermixed with musk; which means that its taste and fragrance will be mixed with it.

Waki' narrated to us from his father from Ibn Abi al-Sha'shā' from Yazeed ibn Mu'āwiya from 'Alqama (regarding the verse) *its seal [perfumed with] a fragrant musk*, he said that its taste and fragrance will be that of musk.

(al-Ṭabari) Others have said that its meaning is that the last of their drink will be sealed with musk which will be placed in it. Among those who mentioned that (are the following) -

Ali narrated to me he said Abu Ṣāliḥ narrated to us he said Mu'āwiya narrated to me from Ali from Ibn 'Abbās (regarding where) He said: '*a sealed nectar, its seal [perfumed with] a fragrant musk*.' He said: Wine whose seal will be made with musk.

Muḥammad ibn Sa'd narrated to me he said my father narrated to me, my uncle narrated to me, he said my father narrated to me from his father from Ibn 'Abbās (regarding the verse) *its seal [perfumed with] a fragrant musk*, he said: Allah will indulge them with wine and it will be the last thing until it will be sealed with musk.

Bishr narrated to us he said Yazeed narrated to us he said Sa'eed narrated to us from Qatādah (regarding the verse) *its seal [perfumed with] a fragrant musk*, he said: Its final consequence will be that of musk, in that their wine will be first intermixed with camphor and then sealed with musk.

Ibn ‘Abd al-‘Alā narrated to us he said Ibn Thawr narrated to us from Ma’mar from Qatādah (regarding the verse) *its seal [perfumed with] a fragrant musk*, he said: Its final outcome will be with musk.

I narrated from al-Ḥussain he said I heard Abu Mu’adh say: ‘Ubayd narrated to us, he said I heard al-Ḍaḥḥāk saying regarding where He said: *‘its seal [perfumed with] a fragrant musk,’* he said ‘Allah will indulge them with wine; and they will find that in the last of it will be the fragrance of musk.’

Ibn ‘Abd al-‘Alā narrated to us he said Ḥātim ibn Wardān narrated to us he said Abu Ḥamza narrated to us from Ibrāhīm and al-Ḥasan regarding the meaning of this verse: *‘Its seal [perfumed with] a fragrant musk,’* he said: Its result or final outcome will be musk.

Ibn Ḥumayd narrated to us he said Yaḥya ibn Wāḍiḥ narrated to us he said Abu Ḥamza narrated to us from Jābir from ‘Abdar-Raḥman ibn Sābiṭ from Abu Dardā’ (regarding the verse) *‘its seal [perfumed with] a fragrant musk,’* he said: It is a beverage which is as bright as silver with which those who will be given it to drink will seal their drinking. Even if a man from this life were to enter one of his fingers in it and then take it out, the fragrance of it would remain with him even after his spirit has been taken.

(al-Ṭabari) Other scholars said that the meaning of His words: *‘its seal [perfumed with] a fragrant musk,’* is that it will be sealed with a clay covering made from musk. Among those who mentioned that:

Muḥammad ibn ‘Amr narrated to me he said Abu ‘Aāsim narrated to us he said Esa narrated to us and al-Ḥarith narrated to me he said al-Ḥasan narrated to us he said Waraqā’ (narrating to) all of us from Ibn Abi Najeeḥ from Mujāhid, (regarding the verse where) He says *‘its seal [perfumed with] a fragrant musk,’* he said: (It means) that its seal will be sealed with a clay covering made from musk.

Yunus narrated to us he said Ibn Wahb reported to us he said that Ibn Zayd (regarding the verse where) He says *‘its seal [perfumed with] a fragrant musk,’* he said The wine will be sealed musk.

(al-Ṭabari) Therefore with Allah its seal will be musk, while today in this life, wine is sealed with clay. The foremost of the opinions which is most correct with us in what we related above is the opinion of those who said its meaning is: ‘Its last or final outcome will be musk.’ That is to say that it will be the fragrance of its perfume, in

that the fragrance at the end of its drinking will give off the fragrance of musk. We say that this opinion is foremost in soundness of the preceding opinions because in the language of the Arabs there is no other linguistic meaning to the expression ‘seal’ other than ‘an imprint’ and ‘completion’ like their saying: ‘So and-so sealed the Qur’ān, when they mean that he came to its ending.

Since the meaning of ‘stamp’ when referring to the drink of the people of paradise has a finite meaning, it is understood that their drink flows like the flowing of the water in a river and does not ripen or age like the wine of this world’s life which would require it to be closed and sealed. Thus the concept of ‘sealing’ here is specific and the soundest opinion would mean that it applies to the final outcome of the drink by which it is sealed. As for the expression of ‘seal’ with the meaning of ‘intermixing’, we do not know this to be heard from the language of the Arabs.¹⁴

One can see how Imām al-Ṭabari likes to digress and elaborate when given the chance, in spite of that he only discovered in the expression of ‘seal’ the meanings of ‘to imprint upon’, ‘to close’, ‘to end’ or ‘to complete’. And he discovered no other meaning in the language of the Arabs beside these. The preponderate meaning of the final verse: *‘Its seal [perfumed with] a fragrant musk’* is that its final outcome and completion will become like the perfumed fragrance of musk. Unlike the fragrance of the wine of this world’s like which diffuses a foul odour from the mouth of its drinker. This is the meaning given to it exclusively, as mentioned by the author of the *Mukhtār al-Ṣiḥāḥ*. In this work under the section of the letter arrangement (خ ت م) it is stated:

The expression ‘to seal a thing’ is to be taken as illustration for something that is *makhtum* ‘closed’ and *mukhattam* ‘shut’ when it is intensified to express amplification; like the expressions: ‘Allah sealed it with good’; and ‘He sealed the Qur’ān’ meaning that he reached its ending. Thus, the conclusion of a thing is the opposite of its beginning. The expressions [الْخَاتَمُ] (with the letter *tā* inflexed with the *fatha*); (with the letter *tā* inflexed with the *kasra*); [الْخَيْتَامُ]; and [الْخَاتِمَاتُ] all have one meaning. And its plural form is [الْخَوَاتِيمُ]. The expression [تَخْتَمُ] means

¹⁴ Ibid. [Vol. 24, pp. 215/219]

to wear a ring while the expression: [خَاتِمَةُ الشَّيْءِ] ('to seal a thing') means its ending. Thus, Muḥammad, may Allah bless him and grant him peace is the Seal of the Prophets, upon them be blessings and peace. The expression [الْخَتَامُ] (sealing wax) is clay used to seal a thing, thus the meaning in Allah the Almighty's words: 'Its seal [perfumed with] a fragrant musk'; i.e. it's ending will be with musk, since the last fragrance which will exude from the wine or its drinker will be the fragrance of musk.¹⁵

Indeed, here the expression 'takhatm' which means to wear a ring, but the original meaning of the word *khātim* – ring, is so named because initially the ring was used to seal envelopes and letters which were officially sent by kingdoms, where the messages were secured with red wax and then stamped with the ring. Thus the envelopes or messages could not be opened except by breaking the seal. Consequently, it was impossible to tamper or interfere with the letter and its contents without it being apparent and obvious. Thereafter rings became a sought of adornment which were worn upon the fingers and in some cases, were still utilised in many regions for its original purpose of sealing messages and closing envelopes, such as in the Arabian Peninsula.

Confirmation from the Ahādith

In addition to this, there is the interpretation of the 'Ruḥ-Allah and His word,' the Messiah, Esa ibn Maryam – Jesus, the son of Mary, peace be upon him and his mother, when he will say on the Day of Judgement: 'Have you not seen how when a container which has goods inside of it has a seal upon it that it is impossible to access what is in it until the seal is broken?' It will be said: 'No' He will say: 'Likewise, Muḥammad, may Allah bless him and grant him peace is the Seal of the Prophets.' This was as the Messenger of Allah Muḥammad, the Seal of the Prophets, informed us, upon him and his family be blessings and peace. This has reached us with the soundest channel of transmission, it is *Ṣaḥīḥ* as recorded in the *Musnad* of Imām Aḥmad ibn Ḥanbal:

¹⁵ *Mukhtār al-Ṣiḥāḥ* [Vol. 1, p. 83]

'Affān narrated to us Ḥammād ibn Salama narrated to us Thābit narrated to us from Anas that the Prophet peace and blessings be upon him said: *The Day of Judgement will be elongated for its people to the extent that some of the people will say to others: 'Let's go to Adam the father of mankind so that he can intercede for us with our Lord; and he can inform us of what will happen with us.'* They will then go to Adam and say: 'O Adam you are the one whom Allah created with His Hand and caused to live in His Paradise, so intercede for us with your Lord, and inform us what will become of us.' He will say: 'I am unable to bring you relief, however go to Nuḥ who is the head of the Prophets.' They will then proceed to him and say: 'O Nuḥ intercede for us with your Lord, and inform us what will befall us.' He will say: 'I am unable to bring relief for you, however go to Ibrāhīm, the intimate friend of Allah the Mighty and Sublime.' They will then proceed to him and say: 'O Ibrāhīm intercede for us with your Lord and inform us what will become of us.' He will say: 'I am unable to bring you relief, however go to Musa, whom Allah the Mighty and Sublime chose for His Message and Speech'. They will then proceed to him and say: 'O Musa intercede for us with your Lord the Mighty and Sublime, and inform us what will become of us.' He will say: 'I am unable to bring you relief, however go to Esa, the Spirit belonging to Allah and His Word'.

They will then proceed to Esa and say: 'O Esa intercede for us with your Lord and inform us what will become of us.' He will say: 'I am unable to bring relief to you, however go to Muhammad, may Allah bless him and grant him peace, for he is the Seal of the Prophets. This Day he is present and his sins of the past and the future have been forgiven.' He (Esa) will then say: 'Have you not seen how when a container which has goods inside of it has a seal upon it that it is impossible to access what is in it until the seal is broken? It will be said: 'No' He will say: 'Likewise, Muhammad, may Allah bless him and grant him peace is the Seal of the Prophets.'¹⁶

This tradition is also found in the *Musnad* of al-Ḥārith as it is in al-Haythami's *al-Zawā'id*, via a second channel which has nothing untoward about it:

¹⁶ *Musnad Aḥmad* [Vol. 3, no. 13615]. The *ḥadith* is abridged, with the latter half omitted.

حدثنا العباس بن الفضل حدثنا حماد بن سلمة حدثني علي بن زيد عن أبي نضرة عن عبيد بن عباس قال خطب رسول الله صلى الله عليه وسلم، قال إذا كان يوم القيامة طال على الناس الحساب فساق الحديث بنحوه إلى أن قال ولكن انتوا عيسى فإنه يشفع لكم إلى ربكم فيأتونه فيقولون: أنت روح الله وكلمته فاشفع لنا إلى ربك فليحاسبنا فقد طال علينا الحساب، فيقول: (إني لست هناك: إني عبدت من دون الله؛ ولكن أرايتم لو كان متاع في وعاء عليه خاتم ثم كان يوصل إلى ذلك المتاع حتى يفك الخاتم، فاتوا محمدا، صلى الله عليه وسلم، فإنه خاتم النبيين)؛.. إلخ

al-‘Abbās ibn al-Faḍl narrated to us Ḥammād ibn Salama narrated to us Ali ibn Zayd narrated to me from Abu Naḍra from Ibn ‘Abbās who said: The Messenger of Allah, peace and blessings be upon him, addressed us and he said: *On the Day of Judgement when the standing for accounting becomes long for the people* (sic. Thereafter continuing with the wording of the previous chain) *Go to Esa for he will intercede with your lord. They will go to him and say you are but the Spirit of Allah and His word, so intercede with your Lord on our behalf; so that he may account us for indeed we have waited a long time. He (Esa) will say: ‘This is not my station. Verily I was worshipped (by people) do you not see that if there was a drinking vessel / goblet that was sealed who can access it until the seal is removed? Go to Muḥammad peace and blessings be upon him because he is the seal of the Prophets.*¹⁷

Likewise, we say indeed that Allah and His Messengers spoke the truth, and we bear witness that there is no god except Allah and that Muḥammad is His Messenger, the seal of the Prophets and Messengers. That Esa, Jesus is the servant of Allah, His Messenger, a Word and Spirit belonging to Him which He cast into the chaste virgin Maryam, the champion of truth; that Paradise is true; the Fire is true; the Hour is true - there is no doubt about it, and that Allah will resurrect those who are in the graves. We deny and are completely free of Musaylama, al-Aswad al-‘Ansi, the Bahai; the Qadiāni’s and others among the lying impostors. Allah the Mighty and Sublime says:

وَمَنْ أَظْلَمُ مِمَّنِ افْتَرَى عَلَى اللَّهِ كَذِبًا أَوْ قَالَ أُوحِيَ إِلَيَّ وَلَمْ يُوحَ إِلَيْهِ شَيْءٌ وَمَنْ قَالَ سَأُنْزِلُ مِثْلَ مَا أَنْزَلَ اللَّهُ وَلَوْ تَرَى إِذِ الظَّالِمُونَ فِي غَمَرَاتِ الْمَوْتِ وَالْمَلَائِكَةُ بَاسِطُو أَيْدِيهِمْ أَخْرَجُوا أَنْفُسَكُمْ الْيَوْمَ تُجْزَوْنَ عَذَابَ الْهُونِ بِمَا كُنْتُمْ تَقُولُونَ عَلَى اللَّهِ غَيْرَ الْحَقِّ وَكُنْتُمْ عَنْ آيَاتِهِ تَسْتَكْبِرُونَ

¹⁷ al-Zawā'id [Vol. 2, no. 1135]

Who could be more wicked than someone who invents a lie against Allah, or claims, ‘A revelation has come to me,’ when no revelation has been sent to him, or says, ‘I too can reveal something equal to Allah’s revelation’? If you could only see the wicked in their death agonies, as the angels stretch out their hands [to them], saying, ‘Give up your souls. Today you will be repaid with a humiliating punishment for saying false things about Allah and for arrogantly rejecting His revelations.’¹⁸

From this it is clear without doubt that the expression ‘the Seal of the Prophets’ can only mean that he is the last of them. Yet its meaning is stronger than that, because Prophethood is like a container which is closed and has a stamp upon it, from which nothing can exit or enter until the great establishment of the hour. Thus, the Prophethood of the foregoing Prophets is well established and cannot be repealed. It is inconceivable for this description to be repealed and that Muḥammad is the last of them, and this description also can never be repealed from him. For there will be no new Prophet after him. This does not mean he is merely a witness for their Prophethood and a means to measure it only, although he is a witness for them. Nor does it mean that he is merely the certifier of them, although he does certify them. Nor does it mean that he is merely their nobility, although he does ennoble them. This is because the expression ‘seal’ does not comprise any of the above meanings in Arabic; although these meanings have been established for him, upon him and his family be blessings and peace as in other texts.

In the aforementioned verse its definition provides a definitive certain proof, which only a *kāfir* denies, that Muḥammad peace and blessings be upon him is the last of the Prophets and their seal. There will be no Prophet or Messenger after him. Whosoever claims that there is one after him is without doubt a liar. There is no difference between such liars whether past or present, be they: Musaylama al-Ḥanafī al-Arabi al-Adnāni the liar; or al-Aswad al-‘Ansi al-Arabi al-Qaḥṭāni the liar; or al-Bahai the lying Persian; or Ghulam Aḥmad al-Qadiāni al-Hindi the liar; or anyone else. This includes the ‘false messiah’, namely *al-Masiḥ al-Dajjāl*, who has been foretold to appear before the end of time. All of them have lied; or will invent lies against Allah. Each

¹⁸ *Qur’ān* 6: 93

of them are the enemies of Allah and each of them have been cursed and have earned the anger of Allah.

As for a previous Prophet, namely Esa ibn Maryam peace be upon him, he was commissioned as a Prophet *prior* to Prophethood being sealed and locked. He is a Prophet now and will be so when he returns to this world. Upon his return, his Prophethood will not be a new dispensation, since all of the laws that were previously brought have been abrogated and their communities as they have been described in the previous scriptures have ceased. Therefore upon his return, Esa ibn Maryam peace be upon him will be considered as part of the final *Ummah* of Muḥammad, adhering to his message and following the final law that he brought. It is not permissible to deny this essential truth for those who truly believe in Allah and the last day. Whoever denies this then Allah is independent of the entire world. Allah, may His omnipotence be majestic, knows that there are those who dispute and deny the finality of the Prophethood of Muḥammad ibn Abdullah al-Hāshimi al-‘Arabi peace and blessings be upon him. Thus He makes clear in undisputed, unambiguous expressions on the tongue of His Prophet, evidence which further proves the above. Among them are his words:

- *There is to be no Prophet after me*
- *Verily I am the seal of the Prophets and there will be no prophet after me*
- *There will be no Prophet after me and there will be no religious community after you*
- *I am the seal of the Prophets and you are the last of the religious communities*
- *I am the subsequent one (which is the one after whom there will be no prophet)*
- *I am the last of the Prophets and my masjid is the last of masjid's*
- *I have been sent and the hour is at hand*

The Prophetic traditions narrated regarding the ‘great intercession’ establish this. The words of the Messiah on the Day of Judgement were previously mentioned where mankind will say: ‘O Muḥammad you are the Messenger of Allah and the Seal of the Prophets whom Allah has forgiven for what has passed and what is to come; so intercede on our behalf to your Lord! Do you

not see our condition? Do you not see what has befallen us?’¹⁹ As well as in the Prophetic tradition narrated regarding the house whose construction was complete with the exception of one brick; about which the people asked him and he said: ‘*I am that brick and I am the seal of the Prophets.*’²⁰ All the Prophetic traditions verify that Prophethood has ceased and that there only remains ‘glad tidings’ which are true dreams as he, upon him be blessings and peace said: ‘*Nothing remains of Prophethood except glad tidings.*’²¹

Additionally there are a very large number of Prophetic traditions other than these with established sound chains of authorities from narrators such as Abu Hurayrah, Sa’d ibn Abi Waqqās, Asmā bint ‘Umaysh, the mother of the believers Umm Salama, Abdullah ibn Umar ibn al-Khaṭṭāb, Ali ibn Abi Tālib, and many others, may the pleasure and peace of Allah be upon all of them. All of these narrations have been transmitted with the soundest chains of authorities, where each chain stands as a legal proof by itself, not to speak of when they are joined together. The veracity of this principle has also been established by others such as Sahl ibn Sa’d, Muḥammad ibn ‘Adi ibn Ka’b and al-Nu’mān ibn Bashir. Each of these Prophetic traditions and narratives are congruent, unambiguous and diverse, which makes it impossible for an intelligent person to entertain misgivings about their veracity. These narrations are the strongest unbroken and clear transmission in the world. No one doubts this except the one upon whom the pen has been lifted and he is unfortunately included among the idiotic madmen.

The *Ijmā’ al-Ṣaḥāba* (Consensus of the Prophet’s Companions) confers upon the finality of Prophethood, that Muḥammad peace and blessings be upon him is the last of the Prophets and Messengers; no Prophet or Messenger will come after him. The companions fought anyone who would dare claim Prophethood after he peace and blessings be upon him departed this temporal world. History has also attested to this fact and it is well known by Muslims and non-Muslims alike. Every imposter claiming Prophethood has failed to establish that claim and been exposed as a liar. In fact, the consensus upon

¹⁹ Agreed upon, the *ḥadith* is recorded by al-Bukhāri and Muslim in their respective collections.

²⁰ Agreed upon. The *isnād* al-Bukhāri cites for one of these narrations is: Qutayba ibn Sa’eed narrated to us Ismā’il ibn Ja’far narrated to us from Abdullah ibn Dinār from Abu Ṣāliḥ from Abu Hurayrah, that the Messenger of Allah, peace and blessings be upon him said.

²¹ Such as recorded by al-Bukhāri with the *isnād*: Abu’Yamān narrated to us Shu’ayb reported to us from al-Zuhri, Sa’eed ibn al-Mussayib narrated to me that Abu Hurayrah said, I heard the Messenger of Allah, peace and blessings be upon him saying.

this issue is greater even than the *Ijmā' al-Ṣaḥāba*, because it has been recurrently transmitted from the time of the Prophet peace and blessings be upon him until now, every Muslim carrying that message and being part of this consensus; all safe in the knowledge of the certainty of this point without having the need to consult the book or examine chains of transmission.

Each of these Prophetic traditions and narratives are congruent, unambiguous and diverse, which makes it impossible for an intelligent person to entertain misgivings about their veracity. These narrations are the strongest unbroken and clearest recurrent transmission in the world. No one doubts this except the one upon whom the pen has been lifted and he is unfortunately included among the idiotic madmen.

2. Excellence exceeding all others

Allah the Exalted conferred enormous favour upon his unlettered Messenger, Muḥammad the last and the seal of Prophets, over all previous Prophets. Allah favoured him with unique qualities that were not granted to any predecessor. These are numerous with each one containing special significance. Allah ended Prophethood with him; no Prophet or messenger will be sent after him until the day of judgement. The entire earth was made a means of purification and a place of prayer for him. Whenever the time of prayer becomes due on any of his servants, he can purify himself and pray. The previous nations used to offer their prayers only in temples, hermitages, churches or synagogues built for that purpose. He, peace and blessings be upon him was made victorious over his enemies by means of awe and fear, despite presiding at great distance and a whole months travelling. His nation still enjoys the fruits of this advantage, even during its weakest eras; fear and terror still fill the hearts of heavily-armed armies who possess nuclear weapons, when they meet some of the so-called 'terrorists' on the battlefield, although Muslims may possess nothing but light weapons.

Allah made the spoils of war lawful to him and to his *Ummah* with which they may supply and strengthen themselves, while previous nations used to offer them as sacrifices and burn them. Allah distinguished his last Prophet peace and blessings be upon him with intercession for all human beings and raised him to a station praised by earlier generations. The banner of *al-Ḥamd* (praising Allah) will be given to him on the Day of Judgement under which all the Prophets since the time of Adam, peace be upon him will be. He peace

and blessings be upon him, was granted the gift of the answered supplication, which he chose to make as intercession for his *Ummah* on the day of judgement, while all the previous Prophets peace be upon them all chose to have their supplication answered during their earthly lives. He peace and blessings be upon him, was also granted '*Jawāmi' al-Kalim*' - the shortest expression with the widest meaning, being able to utilise single sentences that bore wide meanings and contain deep wisdom. Although his speech was concise, it conveyed the exact meaning, which prevented irrelevancy and idle talk. Finally, He peace and blessings be upon him was sent to all human beings, or rather to all mankind as well as the *jinn*, while the Prophets before him were sent to their own nations or specific locales. The Prophet Muḥammad peace and blessings be upon him had many other great privileges, lofty positions and the most honourable of status, which has made him the Imām of all Prophets and the best of all Messengers; may the peace and blessings of Allah be upon him and his family.

A Messenger to all mankind

As for the fact that the Prophet peace and blessings be upon him was sent from Allah to all mankind, it is an acknowledged undoubted truth, supported by many conclusive evidences. Allah has said:

قُلْ يَا أَيُّهَا النَّاسُ إِنِّي رَسُولُ اللَّهِ إِلَيْكُمْ جَمِيعًا الَّذِي لَهُ مُلْكُ السَّمَاوَاتِ وَالْأَرْضِ لَا إِلَهَ إِلَّا هُوَ يُحْيِي وَيُمِيتُ
فَآمِنُوا بِاللَّهِ وَرَسُولِهِ النَّبِيِّ الْأُمِّيِّ الَّذِي يُؤْمِنُ بِاللَّهِ وَكَلِمَاتِهِ وَاتَّبِعُوهُ لَعَلَّكُمْ تَهْتَدُونَ

Say [Muhammad], 'People, I am the Messenger of Allah to you all, from Him who has control over the heavens and the earth. There is no Allah but Him; He gives life and death, so believe in Allah and His Messenger, the unlettered prophet who believes in Allah and His words, and follow him so that you may find guidance.'¹

وَمَا أَرْسَلْنَاكَ إِلَّا كَافَّةً لِّلنَّاسِ بَشِيرًا وَنَذِيرًا وَلَكِنَّ أَكْثَرَ النَّاسِ لَا يَعْلَمُونَ

We have sent you [Prophet] only to bring good news and warning to all people, but most of them do not understand.²

¹ Qur'ān 7: 158

² Qur'ān 34: 28

Regarding this subject, Imām al-Bukhārī records the following *ḥadith* in *al-Jāmi al-Ṣaḥīḥ al-Mukhtaṣar* with a very strong *isnād*:

حدثنا عبد الله حدثنا سليمان بن عبد الرحمن وموسى بن هارون قالوا حدثنا الوليد بن مسلم
حدثنا عبد الله بن العلاء بن زبر حدثني بسر بن عبيد الله حدثني أبو إدريس الخولاني قال
سمعت أبا الدرداء رضي الله عنه يقول كانت بين أبي بكر وعمر رضي الله عنهما محاورة،
فقال رسول الله صلى الله عليه وسلم هل أنتم تاركو لي صاحبي؟ إني قلت: يا أيها الناس إني
رسول الله إليكم جميعاً، فقلتُم كذبت، وقال أبو بكر صدقت

Abdullah narrated to us Sulaymān ibn 'Abdar-Raḥman and Musa ibn Hārūn narrated to us, they said, al-Waleed ibn Muslim narrated to us Abdullah ibn al-'Alā ibn Zubr narrated to us Busr ibn 'Ubaydallah narrated to me Abu Idrees al-Khawlānī narrated to me, he said I heard Abu Dardā' may Allah be pleased with him saying: There was a dispute between Abu Bakr and Umar, may Allah be pleased with them. So the Messenger of Allah peace and blessings be upon him said: *Are you (people) leaving for me my Companion? (Abu Bakr)? When I said: O people I am sent to you all as the Messenger of Allah, you said I told a lie, while Abu Bakr said you have spoken the truth.*³

al-Bukhārī records this in another entry of his *Ṣaḥīḥ*; Imām Abdullah ibn Aḥmad ibn Ḥanbal cites this in *Faḍā'il al-Ṣaḥāba* (Virtues of the Companions), and it appears in other collections too.⁴ Without question the matter is known from amongst the certainties of *Deen*. Even most of the non-Muslims attest to the fact that he peace and blessings be upon him acted according to the message he bore. He peace and blessings be upon him sent messages to kings and tyrants inviting them to follow and obey him. This is a clear truth or rather an established historical fact beyond all doubt and if we attempt to elucidate every proof for this, volumes could be written.

Some may argue that *perhaps* there were Prophets sent in the pre-historic age of whom we do not know and who might have been sent to all mankind. In reply, we would submit that this is highly unlikely. Not least because nothing of the sort has reached us or been confirmed by the revelation we have now or of the revelation sent previously. Besides which, it would contradict

³ *Ṣaḥīḥ al-Bukhārī* [Vol. 4, no. 4364]. For the translation, the *ḥadith* has been abbreviated, with the evidence pertinent to the chapter at hand.

⁴ al-Bukhārī [Vol. 3, no. 3461], Abdullah ibn Aḥmad ibn Ḥanbal *Faḍā'il al-Ṣaḥāba* [Vol. 1, no. 297], *Musnad al-Shāmiyān* [Vol. 2, no. 1199] as well as others.

history and the natural occurrence of events. Although we would concede that it is not an outright impossibility, since it still falls within the remit of Allah's decree. Adam (peace be upon him) was sent to his family which represented humankind at that time, but they are not humanity as a whole, which lives until the extinction of the human race and the establishment of the final hour. Thus it would not be right to say that he was sent to all humanity, but that he was sent to his family who were the only human beings at that specific time. Furthermore, it has been recorded by many successive reports that the Prophet (peace be upon him) was the only Prophet favoured above all others to be sent to all of humanity. By necessity therefore none before him had this privilege. The sheer number of evidences which establish this point is staggering. Aside from that which will be presented as quotations from the famous Qur'ān interpreters - al-Ṭabari and Ibn Kathir, a selection of the various *aḥādith* (which is over twenty) will be cited to demonstrate this, together with comments in relation to the transmission and narrators where applicable.

From the Tafsir

Imām al-Ṭabari writes in his *Tafsir* regarding the interpretation of the following verse:

تِلْكَ الرُّسُلُ فَضَّلْنَا بَعْضَهُمْ عَلَى بَعْضٍ مِّنْهُمْ مَّنْ كَلَّمَ اللَّهُ وَرَفَعَ بَعْضَهُمْ دَرَجَاتٍ وَآتَيْنَا عِيسَى ابْنَ مَرْيَمَ الْبَيِّنَاتِ وَأَيَّدْنَاهُ بِرُوحِ الْقُدُسِ وَلَوْ شَاءَ اللَّهُ مَا اقْتَتَلَ الَّذِينَ مِن بَعْدِهِمْ مِّنْ بَعْدِ مَا جَاءَتْهُمُ الْبَيِّنَاتُ وَلَكِنِ اخْتَلَفُوا فَمِنْهُمْ مَّنْ آمَنَ وَمِنْهُمْ مَّنْ كَفَرَ وَلَوْ شَاءَ اللَّهُ مَا اقْتَتَلُوا وَلَكِنَّ اللَّهَ يَفْعَلُ مَا يُرِيدُ

We favoured some of these Messengers above others. Allah spoke to some; others He raised in rank; We gave Jesus, son of Mary, Our clear signs and strengthened him with the holy spirit. If Allah had so willed, their successors would not have fought each other after they had been brought clear signs. But they disagreed: some believed and some disbelieved. If Allah had so willed, they would not have fought each other, but Allah does what He wills.⁵

Meaning, He the Exalted in His remembrance with this saying '*these messengers*,' He means all of them whose stories were mentioned in

⁵ Qur'ān 2: 253

this Chapter. Among them are Musa ibn 'Imrān, Ibrāhim, Ismā'il, Ishāq, Ya'qub, Samuel, Dāwud and all other Prophets mentioned in this chapter. The meaning of Allah's words is, they are My Messengers and I preferred some of them over the others. I spoke to some of them like Musa and I raised the ranks of some of them over the others with high and honourable positions.

Muḥammad ibn 'Amr narrated to me he said Abu 'Aāshim narrated to us he said Esa narrated to us from Ibn Abi Najeeḥ from Mujāhid the saying of Allah, Exalted in His remembrance, *Allah spoke to some; others He raised in rank*; he said (by this saying) that He spoke to directly to Musa and sent Muḥammad to all of mankind.

al-Muthanna narrated to me he said Abu Ḥudhayfah narrated to us he said Shibl narrated to us from Ibn Abi Najeeḥ from Mujāhid, about this (and he reports) among that which proves the validity of what we are saying is the *ḥadith* of the Prophet peace and blessings be upon him in which he said: *I have been granted five (things) which were not granted to anyone before me (and these are): I have been sent to all the red and the black; I have been made victorious by awe, for the enemy gets frightened of me from a distance of a one-month's journey. The earth has been made a place of prayer and a means of purification for me. The spoils of war have been made lawful for me, while they were never made lawful to anyone before me. It was said to me, 'Ask - and you will be granted it.'* So, I made it an intercession for my nation, which will be granted to my nation for he who does not associate anything with Allah.⁶

Also cited in the *Tafsir* of al-Ṭabari regarding the verse at (7: 158):

Statement concerning the interpretation of where He the Almighty said: '*Say 'People, I am the Messenger of Allah to you all, from Him who has control over the heavens and the earth. There is no Allah but Him; He gives life and death, so believe in Allah and His Messenger, the unlettered prophet who believes in Allah and His words, and follow him so that you may find guidance.'*' He the Exalted in His remembrance says to His Prophet, peace and blessings be upon him, to say to all of mankind that he is the Messenger of Allah to all of them;

⁶ *Tafsir* al-Ṭabari [Vol. 4, pp 519/520]

not to some of them and not the other, as it was the case with the previous Messengers before him. They used to be sent to some people and not all. If they were sent like that, my message is not concerned with some among you and not the others; it is for all of you.⁷

In relation to the verse that he peace and blessings be upon him is sent to all mankind as a bearer of glad tidings and with a warning, Imām al-Ṭabari says:

Regarding the interpretation of where He the Mighty says: *'We have sent you [Prophet] only to bring good news and warning to all people, but most of them do not understand.'* He, Exalted in His remembrance says He did not send Muḥammad, especially to those who disbelieved among his nation, except that He sent him to all people whether they were Arab or foreigners, whether they have red or black skin. You were sent in order to preach with good omen those who obeyed you and to threaten those who disobeyed, but the majority of people do not know that Allah sent you to all mankind. People who interpreted this verse said the same as we have mentioned. Those who mentioned that:

Bishr narrated to us he said Yazeed narrated to us he said Sa'eed narrated to us from Qatādah (regarding where) He says: *'We have sent you [Prophet] only to bring good news and warning to all people'* he said Allah sent Muḥammad to (both the) Arabs and foreigners. The most beloved among them is the one who obeys Allah most. It was mentioned that the Prophet peace and blessings be upon him said: *'I am the one who will precede Arabs - Ṣuhayb will precede Byzantium, Bilāl will precede the Ethiopians, and Salmān will precede Persians.'*⁸

Qualities not given to any other Prophet

Imām al-Bukhārī records the following *ḥadith* his *Ṣaḥīḥ* where these are detailed:

حدثنا محمد بن سنان قال حدثنا هشيم (ح) قال وحدثني سعيد بن النضر قال أخبرنا هشيم قال: أخبرنا سيار قال حدثنا يزيد هو بن صهيب الفقير قال أخبرنا جابر بن عبد الله أن النبي صلى الله عليه وسلم قال أعطيت خمسا، لم يعطهن أحد قبلي: نصرت بالرعب مسيرة شهر، وجعلت

⁷ Ibid. [Vol. 10, p. 498]

⁸ Ibid. [Vol. 19, p. 288]. The verse mentioned is at 34: 28.

لي الأرض مسجدا وطهورا فأَيما رجل من أمتي أدركته الصلاة فليصل، وأحلت لي المغنم ولم تحل لأحد قبلي، وأعطيت الشفاعة، وكان النبي يبعث إلى قومه خاصة وبعثت إلى الناس عامة

Muḥammad ibn Sinān narrated to us he said Hushaym narrated to us, ḥawala he said and Sa'eed ibn al-Naḍr narrated to me he said Hushaym reported to us he said Sayār reported to us he said Yazeed, who is Ibn Ṣuhayb al-Faqeer - narrated to us he said Jābir ibn Abdullah reported to us that the Prophet peace and blessings be upon him said: *I have been given five things which were not given to anyone else before me: Allah made me victorious by awe, for a distance of one month's journey; the earth has been made for me a masjid and ritually pure therefore anyone of my followers can pray wherever the time of a prayer is due. The booty has been made lawful for me yet it was not lawful for anyone else before me. I have been given the right of intercession. Every Prophet used to be sent to his nation only, but I have been sent to all mankind.*⁹

Muslim has the same narration albeit with a slight variance of wording:

حدثنا يحيى بن يحيى أخبرنا هشيم عن سيار عن يزيد الفقير عن جابر بن عبد الله الأنصاري قال قال رسول الله صلى الله عليه وسلم أعطيت خمسا لم يعطهن أحد قبلي كان كل نبي يبعث إلى قومه خاصة وبعثت إلى كل أمة وأسلم وأحلت لي الغنائم ولم تحل لأحد قبلي وجعلت لي الأرض طيبة طهورا ومسجدا فأَيما رجل أدركته الصلاة صلى حيث كان ونصرت بالرعب بين يدي مسيرة شهر وأعطيت الشفاعة حدثنا أبو بكر بن أبي شيبة حدثنا هشيم أخبرنا سيار حدثنا يزيد الفقير أخبرنا جابر بن عبد الله أن رسول الله صلى الله عليه وسلم قال فذكر نحوه

Yaḥya ibn Yaḥya narrated to us Hushaym reported to us from Sayyār from Yazeed al-Faqeer from Jābir ibn Abdullah al-Anṣārī who said that the Messenger of Allah peace and blessings be upon him said: *I have been conferred upon five (things) which were not granted to anyone before me (these are): Every Messenger was sent particularly to his own people, whereas I have been sent to all the red and the black, the spoils of war have been made lawful for me and these were never made lawful to anyone before me; the earth has been made pure and a*

⁹ Ṣaḥīḥ al-Bukhārī [Vol. 1, no. 328]

*mosque for me, so whenever the time of prayer comes for any one of you he should pray wherever he is, and I have been supported by awe from the distance one month to cover and I have been granted intercession.*¹⁰

The narration of Jābir may Allah be pleased with him is recorded in most *ḥadith* collections, be they *Ṣaḥīḥ*, *Musnad*, *Sunan* or otherwise. It has one of the most authentic channels of transmission. Similarly, Imām Muslim records another *ḥadith* this time on the authority of Abu Hurayrah, which enumerates six qualities instead of the five previously mentioned:

حدثنا يحيى بن أيوب وقتيبة بن سعيد وعلي بن حجر قالوا حدثنا إسماعيل وهو بن جعفر عن العلاء عن أبيه عن أبي هريرة أن رسول الله صلى الله عليه وسلم قال فضلت على الأنبياء بست أعطيت جوامع الكلم، ونصرت بالرعب وأحلت لي الغنائم، وجعلت لي الأرض طهوراً ومسجداً، وأرسلت إلى الخلق كافة، وختم بي النبيون

Yahya ibn Ayub, Qutayba ibn Sa'eed and Ali ibn Ḥujr narrated to us, they said Ismā'il, and he is Ibn Ja'far narrated to us from al-'Alā' from his father from Abu Hurayrah that the Messenger of Allah peace and blessings be upon him said: *I have been given superiority over the other Prophets in six respects: I have been given words which are concise but comprehensive in meaning; I have been helped by terror (in the hearts of enemies): spoils have been made lawful to me. The earth has been made clean for me clean and a masjid; I have been sent to all mankind and the line of Prophets is ends with me.*¹¹

Again, this narration has one of the most authentic channels of transmission and is found in most *ḥadith* collections, be they *Ṣaḥīḥ*, *Musnad*, *Sunan* or otherwise. There is another narrative that is recorded in *Musnad* al-Bazzār with some additions to the six aspects:

كَتَبَ إِلَيَّ خُمَزَةُ بْنُ مَالِكٍ يُخْبِرُ أَنَّ عَمَّهُ سَفِيَانَ بْنِ حَمَزَةَ حَدَّثَهُ عَنْ كَثِيرِ بْنِ زَيْدٍ عَنِ الْوَلِيدِ بْنِ رَبَاحٍ عَنْ أَبِي هُرَيْرَةَ، عَنِ النَّبِيِّ صَلَّى اللَّهُ عَلَيْهِ وَسَلَّمَ قَالَ: فَضَلْتُ بِخَصَالِ ست لم يعطهن أحد قبلي: غفر لي ما تقدم من ذنبي وما تأخر، وأُجِلْتُ لِي الْغَنَائِمُ وَلَمْ تُحَلَّ لِأَحَدٍ قَبْلِي، وجعلت أمتي

¹⁰ *Ṣaḥīḥ* Muslim [Vol. 1, no. 521]

¹¹ Ibid. no. 523

خير الأمم، وجعلت لي الأرض مسجداً وطهوراً، وأعطيت الكوثر، ونصرت بالرعب، والذي نفسي بيده إن صاحبكم لصاحب لواء الحمد يوم القيامة تحته آدم فمن دونه

Ḥamza ibn Mālik wrote to me reporting that his uncle, Sufyān ibn Ḥamza narrated to him from Kathir ibn Zayd from al-Waleed ibn Rabāḥ from Abu Hurayrah from the Prophet peace and blessings be upon him, he said: *I have been given superiority over the other prophets in six respects which were not given to anyone else before me: my past and present sins were forgiven; the spoils of war have been made lawful for me, and these were never made lawful to anyone before me, my nation was made the best among other nations. The earth has been made sacred, clean and a masjid for me, I was given al-Kawthar and I have been supported by awe. By He in whose hand is my soul! Your Companion is the one who will hold the flag of praise during the Day of Judgement, followed by Adam and whoever came after him.*¹²

Further confirmation of the matter is provided for in the *Ṣaḥīḥ* of Ibn Ḥibbān, narrated upon the authority of a different companion, Abu Dharr:

أخبرنا إسحاق بن إبراهيم ببست حدثنا حماد بن يحيى بن حماد بالبصرة حدثنا أبي حدثنا أبو عوانة عن سليمان عن مجاهد عن عبيد بن عمير عن أبي ذر قال قال رسول الله صلى الله عليه وسلم أعطيت خمسا لم يعطهن أحد قبلي: بعثت إلى الأحمر والأسود، وأحلت لي الغنائم ولم تحل لأحد قبلي، ونصرت بالرعب فيرعب العدو من مسيرة شهر، وجعلت لي الأرض

¹² *Musnad* al-Bazzār [Vol. 14, no. 8133]. The Professor says: 'Writing in *Mu'jama' al-Zawā'id*, al-Haythami cited the narration as being from al-Bazzār and said that the *isnād* was good. I would submit that when searched it can also be found within the wording of *Musnad* Sirāj [Vol. 1, no. 491] with the channel as: Muḥammad ibn Ismā'il al-Bukhārī narrated to us Ismā'il ibn Abi Aways narrated to us my brother narrated to me from Sulaymān from Kathir ibn Zayd from al-Waleed ibn Rabāḥ from Abu Hurayrah. It is also in the *Explanation of the Principles of Aqeedah* by Abu Qasim al-Lilalukā'i [Vol. 4, no. 1170] with an intersected channel - 'Esa ibn Ali reported to us Abdullah ibn Muḥammad al-Baghawi reported to us he said Ḥazma ibn Mālik al-Aslami narrated to us he said my uncle Esa ibn Sufyān ibn Ḥazma narrated to us from (ḥawala) and 'Ubaydullah ibn Aḥmad and Muḥammad ibn al-Ḥussein al-Fārisi reported to us they said: al-Ḥussein ibn Ismā'il reported to us he said Ḥazma ibn Mālik narrated to us he said my uncle narrated to us he said Kathir, that is to say, Ibn Zayd narrated to us from al-Waleed, he is Ibn Rabāḥ from Abu Hurayrah.' I would submit that this is a very good *isnād* and authentic by the standards of Imām al-Bukhārī, as per the narration from the Prophet peace be upon him that says: 'Indeed a woman grants (assurances of protection) to the Muslims.' Concerning this Imām al-Tirmidhi said: 'I asked Muḥammad and he said: 'This *ḥadith* is *Ṣaḥīḥ*. Kathir ibn Zayd heard from al-Walid ibn Rabah, and al-Walid ibn Rabah heard from Abu Hurayrah, and he is *muqārib* (average) in *ḥadith*.'

طهورا ومسجدا، وقيل لي سل تعطه واختبأت دعوتي شفاعة لأمتي في القيامة وهي نائلة إن شاء الله لمن لم يشرك بالله شيئا

Ishāq ibn Ibrāhīm reported to us in Bust; Ḥammād ibn Yaḥya ibn Ḥammād narrated to us in al-Baṣra, his father narrated to us Abu ‘Awāna narrated to us from Sulaymān from Mujāhid from ‘Ubayd ibn ‘Umayr from Abu Dharr who said the Messenger of Allah peace and blessings be upon him said: *I have been given five things which were not given to anyone else before me. I have been sent to the red and the black, the spoils of war have been made lawful for me and these were never made lawful to anyone before me, Allah made me victorious by awe, for a distance of one month's journey. The earth has been made pure for me and a masjid and it was said to me ask and you will be answered. I saved my (supplication) as an intercession for my Ummah on (the day of) judgement. If Allah wills, it is for whoever does not associate anything with Allah.*¹³

In a slightly longer narrative al-Ḥākim has the following in the *Mustadrak*:

حدثنا أبو بكر أحمد بن كامل بن خلف القاضي حدثنا محمد بن جرير الفقيه حدثنا أبو كريب سمعت أبا أسامة وسئل عن قول الله عز وجل {وَمَا أَرْسَلْنَاكَ إِلَّا كَافَّةً لِلنَّاسِ بَشِيرًا وَنَذِيرًا}، فقال حدثنا الأعمش عن مجاهد عن عبيد بن عمير عن أبي ذر رضي الله عنه قال طلبت رسول الله صلى الله عليه وسلم ليلة فوجدته قائما يصلي فأطال الصلاة ثم قال: أوتيت الليلة خمسا، لم يؤت بها نبي قبلي: أرسلت إلى الأحمر والأسود (قال مجاهد: الإنس والجن)، ونصرت بالرعب فيربع العدو وهو على مسيرة شهر، وجعلت لي الأرض مسجدا وطهورا، وأحللت لي الغنائم ولم تحل لأحد قبلي، وقيل لي سل تعطه فاخترتها شفاعة لأمتي فهي نائلة من لم يشرك بالله شيئا

Abu Bakr Aḥmad ibn Kāmil ibn Khalf al-Qāḍi narrated to us Muḥammad ibn Jarir al-Faqīhi narrated to us Abu Kareeb narrated to us – he heard Abu Usāma and asked his (view) regarding what Allah the Mighty and Sublime said: *‘We have sent you [Prophet] only to bring good news and warning to all people, but most of them do not understand’*; he said al-‘Amash narrated to us from Mujāhid from ‘Ubayd ibn ‘Umayr from Abu Dharr who said: I sought out the Messenger of Allah peace and blessings be upon him one night and

¹³ *Ṣaḥīḥ Ibn Hibbān* [Vol. 6, no. 6428]. Commenting, Shaykh Shu‘ayb al-Arnā‘uṭ said ‘The *ḥadith* is *Ṣaḥīḥ*.’

found him standing performing prayer. He prolonged the prayer and then said: *I have been given this night five matters which were not given to any Prophet before me. I have been sent to the red and the black (Mujāhid said: that is to mankind and the Jinn), I have been supported by awe (by which the enemy is overwhelmed) from the distance (which one takes) one month to cover. The earth has been made ritually pure for me and a masjid; the booty has been made lawful to me and these were never made lawful to anyone before me, and it was said to me ask and you will be answered. I saved my (supplication) as an intercession for my Ummah. It is guaranteed to whoever does not associate anything with Allah.*¹⁴

After recording this, al-Ḥākim said: ‘This is an authentic *ḥadith* according to the conditions of al-Bukhārī and Muslim, but they did not record it with this wordings, but they recorded some separate wordings to it.’ I would submit that it is from amongst the most authentic *ḥadith* to be found as it is transmitted through al-‘Amash according to the conditions of al-Bukhārī and Muslim, but it is even above them in that. The narration is also reported in other collections too.¹⁵ Imām Aḥmad records in his *Musnad* the next *ḥadith* on the authority of Abu Musa al-Ash’ari:

حدثنا حسين بن محمد حدثنا إسرائيل عن أبي إسحاق عن أبي بردة عن أبي موسى قال قال رسول الله، صلى الله عليه وسلم أعطيت خمسا بعثت إلى الأحمر والأسود، وجعلت لي الأرض طهورا ومسجدا وأحللت لي الغنائم ولم تحل لمن كان قبلي، ونصرت بالرعب شهرا، وأعطيت الشفاعة وليس من نبي إلا وقد سأل شفاعة وإني أخبات شفاعة ثم جعلتها لمن مات من أمتي لم يشرك بالله شيئا

Ḥussein ibn Muḥammad narrated to us Isrā’il narrated to us from Abu Ishāq from Abi Burda from Abu Musa he said the Messenger of Allah peace and blessings be upon him said: *I have been given five things: I have been sent to the red and the black, the earth has been made ritually pure for me and a masjid, the spoils of war have been made lawful for me and these were never made lawful to anyone before me, Allah made me victorious by awe, (by His frightening my enemies) for a distance of one month's journey, and I have been given the right of*

¹⁴ al-Ḥākim, *al-Mustadrak* [Vol. 2, no. 3587]

¹⁵ Six further references are provided in Arabic text, amongst them: *Musnad Aḥmad* Vol. 5, no. 21337, *Muṣṣanaḥ* Ibn Abi Shayba, [Vol. 6, no. 31650] and *Musnad Dārimi* [Vol. 2, no. 2467]

*intercession. Every Prophet asked Allah for an intercession and I saved my intercession for whoever died from among my nation that does not associate anything with Allah.*¹⁶

Imām Aḥmad also records another tradition in his *Musnad*, but on the authority of a different Companion, Abu Umāmah:

حدثنا محمد بن أبي عدي عن سليمان يعني التيمي عن سيار عن أبي أمامة أن رسول الله صلى الله عليه وسلم قال فضلني ربي على الأنبياء عليهم الصلاة والسلام (أو قال على الأمم) بأربع، قال: أرسلت إلى الناس كافة، وجعلت الأرض كلها لي ولأمتي مسجداً وطهوراً فأينما أدركت رجلاً من أمتي الصلاة فعنده مسجده وعنده طهوره، ونصرت بالرعب مسيرة شهر يقدفه في قلوب أعدائي، وأحل لنا الغنائم

Muḥammad inn Abi ‘Adi narrated to us from Sulaymān – that is to say, al-Taymi from Sayyār from Abu Umāmah that the Messenger of Allah peace and blessings be upon him said: *Allah distinguished me above the Prophets peace be upon them* [the narrator had doubted that he said on the nations] *with four matters. I have been sent to all mankind, the earth has been made all for me and for my nation a masjid and ritually pure; therefore anyone of my nation can pray wherever the time of a prayer is due; he has his place of prayer and what he will use in ablution, I have been helped by terror (in the hearts of enemies) for a distance of one month's journey and the booty has been made lawful for me.*¹⁷

Hadith of Ibn ‘Abbās

The next series of *aḥādith* are reported on the authority of Ibn ‘Abbās. To begin, the first-two are recorded in the *Musnad* of Imām Aḥmad:

حدثنا عبد الصمد حدثنا عبد العزيز بن مسلم حدثنا يزيد عن مقسم عن بن عباس أن رسول الله صلى الله عليه وسلم قال أعطيت خمسا لم يعطهن نبي قبلي، ولا أقولهن فخراً: بعثت إلى الناس كافة الأحمر والأسود، ونصرت بالرعب مسيرة شهر، وأحللت لي الغنائم ولم تحل لأحد

¹⁶ *Musnad Aḥmad* [Vol. 4, no. 19750]. Regarding this, al-Haythami said: ‘Aḥmad recorded it *mutaṣṣil* (uninterrupted and connected) and *mursal* (loose); al-Ṭabarānī (said) its men are the men of *Ṣaḥīḥ*.’ In relation to the *isnād* it is an authentic channel of transmission. Imām Abu Bakr ibn Abi Shayba records the same in his *Muṣṣanaḥ* [Vol. 6, no. 31645].

¹⁷ Ibid. [Vol. 5, no. 22150]. Also recorded by al-Bayhaqī in *Sunan al-Kubra* [Vol. 1, no. 999] and by al-Ṭabarānī in *Muj’al al-Kabir* [Vol. 8, no. 7931]

قبلي، وجعلت لي الأرض مسجداً وطهوراً، وأعطيت الشفاعة فأخترتها لأمتي فهي لمن لا يشرك بالله شيئاً

‘Abd al-Ṣamad narrated to us ‘Abd al-Aziz ibn Muslim narrated to us Yazeed narrated to us from Miqṣam from Ibn ‘Abbās that the Messenger of Allah peace and blessings be upon him said: *I have been given five things which were not given to anyone else before me and I did not say that out of pride. I have been sent to all of mankind – the red and the black; Allah made me victorious by awe, for a distance of one month's journey. The booty has been made lawful for me yet it was not lawful for anyone else before me. The earth has been made ritually pure for me and a masjid. I have been given intercession and I saved it for my Ummah. It is guaranteed to whoever does not associate anything with Allah.*¹⁸

حدثنا علي بن عاصم عن يزيد بن أبي زياد عن مقسم ومجاهد عن بن عباس قال قال رسول الله صلى الله عليه وسلم أعطيت خمسا لم يعطهن أحد قبلي ولا أقوله فخراً بعثت إلى كل أحمر وأسود فليس من أحمر ولا أسود يدخل في أمتي إلا كان منهم، وجعلت لي الأرض مسجداً

Ali ibn ‘Aāṣim narrated to us from Yazeed ibn Abi Ziyād from Miqṣam and Mujāhid from Ibn ‘Abbās that the Abbās that the Messenger: *I have been given five things which were not given to anyone else before me and I did not say that out of pride. I have been sent to everyone red and black; it is not red nor black that enters in my Ummah except that they are a part of it. And the earth is made a masjid for me.*¹⁹

Again this particular narration is reported in other collections.²⁰ Although, contained within this channel of reporting is Yazeed ibn Abi Ziyād who is considered as having slight weakness as reported from Imām Aḥmad. Some others have regarded it as *ḥasan*, such as al-Haythami. In *Majmu’ al-Zawā’id* he said: ‘The men Aḥmad (narrated from) are men of *Ṣaḥīḥ* except for Yazeed ibn Abi Ziyād, he has *ḥasan ḥadith*.’ Ibn Kathir regarded this chain of transmission as a good chain in his *Tafsir*; the rest of his narrators are strong so it may reach the level of the *ḥasan Ṣaḥīḥ*, which can be regarded as

¹⁸ Ibid. [Vol. 1, no. 2742].

¹⁹ Ibid. [Vol. 1, no. 2256].

²⁰ For example in *Muṣṣanaḥ* Ibn Abi Shayba [Vol. 6, no. 31643] and *Musnad* ‘Abd Ibn Ḥumayd [Vol. 1, no. 643].

relied upon proofs, particularly when considered against other narrations as provided from Ibn ‘Abbās.

Imām al-Ṭabarānī has the next two narrations contained within his *Mu’jam al-Kabir*:

حدثنا عبدان بن أحمد حدثنا عبد الله بن حماد بن نمير حدثنا حصين بن نمير حدثنا بن أبي ليلى عن الحكم عن مجاهد عن بن عباس عن النبي صلى الله عليه وسلم قال أعطيت خمسا لم يعطهن نبي قبلي: أرسلت إلى الأحمر والأسود وكان النبي يرسل إلى خاصة، ونصرت بالرعب حتى إن العدو ليخافوني من مسيرة شهر أو شهرين، وأحلت لي الغنائم ولم تحل لمن قبلي، وجعلت لي الأرض مسجدا وطهورا، وقيل لي سل تعطه فادخرت دعوتي شفاعا لأمتي فهي نائلة إن شاء الله لمن مات لا يشرك بالله شيئا

‘Abdān ibn Aḥmad narrated to us Abdullah ibn Ḥammād ibn Numayr narrated to us Ḥuṣṣein ibn Numayr narrated to us Ibn Abi Layla narrated to us from al-Ḥakam from Mujāhid from Ibn ‘Abbās from the Prophet peace and blessings be upon him, he said: *I have been sent to the red and the black; previous Prophets were sent to specific (people); I have been helped by terror (in the hearts of enemies) by a journey’s distance of one or two months. The booty has been made lawful for me yet it was not lawful for anyone else before me. The earth has been made ritually pure for me and a masjid. I have been given intercession and I saved it for my Ummah. It is guaranteed to whoever does not associate anything with Allah.*²¹

حدثنا سلمة بن إبراهيم بن يحيى بن سلمة بن كهيل حدثني أبي عن أبيه عن جده عن سلمة بن كهيل عن مجاهد عن بن عباس قال قال رسول الله صلى الله عليه وسلم أعطيت خمسا لم يعطها نبي قبلي: بعثت إلى الناس كافة الأحمر والأسود وإنما كان النبي صلى الله عليه وسلم يبعث إلى قومه، ونصرت بالرعب يرعب مني عدوي على مسيرة شهر، وأعطيت المغنم، وجعلت لي الأرض مسجدا وطهورا، وأعطيت الشفاعة فأخرتها لأمتي يوم القيامة

Salama ibn Ibrāhīm ibn Yaḥya ibn Salama ibn Kuhayl narrated to us my father narrated to me from his father from his grandfather from Salama ibn Kuhayl from Mujāhid from Ibn ‘Abbās that the Messenger of Allah, peace and blessings be upon him said: *I have been given five things that no Prophet before me had: I am sent to all people, to the red and the black, previous Prophets peace be upon them were sent to their own nation; I have been helped by terror (in the hearts of*

²¹ al-Ṭabarānī *Mu’jam al-Kabir* [Vol. 11, no. 11047]

*enemies) by a journey’s distance of one month. I have been permitted the booty; the earth is made for me a masjid, and ritually pure, and I have been intercession for my Ummah on the Day of Judgement.*²²

There are other narrations reported on the authority of Ibn ‘Abbas. For example, al-Bayhaqy cites a similar *ḥadith* enumerating the five things given to the Prophet peace and blessings be upon him, but it also includes the wording, ‘*All Prophets were sent to their own nations and I was sent to jinn and mankind.*’²³

Further ahādith narrated by other Companions

Thus far *ahādith* have been noted from Jabir, Abu Hurayrah, Abu Dharr, Abu Musa, Abu Umāmah and Ibn ‘Abbās. Next, Imām Aḥmad records the *ḥadith* on the authority of Abdullah ibn ‘Amr ibn al-‘Aās. Five matters are again enumerated, but of note are the two statements reported –

حدثنا قتيبة بن سعيد حدثنا بكر بن مضر عن بن الهاد عن عمرو بن شعيب عن أبيه عن جده أن رسول الله صلى الله عليه وسلم عام غزوة تبوك قام من الليل يصلي فاجتمع وراءه رجال من أصحابه يحرسونه حتى إذا صلى وانصرف إليهم فقال لهم لقد أعطيت الليلة خمسا ما أعطيهن أحد قبلي: أما أنا فأرسلت إلى الناس كلهم عامة، وكان من قبلي إنما يرسل إلى قومه، قيل لي سل فإن كل نبي قد سأل! فاخرت مسألتني إلى يوم القيامة فهي لكم، ولمن شهد أن لا إله إلا الله

²² Ibid. no. 11085

²³ al-Bayhaqy *Sunan al-Kubra* [Vol. 2, no. 4064]. The *isnād* recorded by al-Bayhaqy is: Abu Bakr Aḥmad ibn al-Ḥasan al-Qāḍi reports: Abul’ ‘Abbās Muḥammad ibn Ya’qub narrated to us al-Ḥasan ibn Ali ibn ‘Affān narrated to us ‘Ubaydallah ibn Musa narrated to us Sālim Abu Ḥammād narrated to us from al-Suddi from ‘Ikrima from Ibn ‘Abbās he said the Messenger of Allah, peace and blessings be upon him said. Similar is recorded by Imām al-Ṭabarānī in *Mu’jam al-Kabir* [Vol. 11, no. 11056] with the *isnād*: Muḥammad ibn Abdullah al-Ḥaḍrami narrated to us ‘Abdar-Raḥman ibn al-Faḍl ibn Muwafiq narrated to us my father narrated to us Ismā’il ibn Ibrāhīm narrated to us from Mujāhid from Ibn ‘Abbās, he said the Messenger of Allah, peace and blessings be upon him said. In *al-Mustadrak* [Vol. 2, no. 3335] al-Ḥākim has the *athar* (narrative) from Ibn ‘Abbās in which he lists the favours bestowed upon the Prophet, the end of the narration stating ‘*And we have not sent you but to all mankind as a bearer of good news and as a Warner; He was sent to mankind and the jinn.*’ The *isnād* for the *athar* is: ‘Zakariyā Yaḥya ibn Muḥammad al-Anbari reported to us Muḥammad ibn ‘Abd al-Salām narrated to us Ishāq ibn Ibrāhīm narrated to us Yazeed ibn Abi Ḥakeem reports; al-Ḥakam ibn ‘Abbān narrated to us he said: I heard ‘Ikrimah saying, Ibn ‘Abbās said.’ al-Ḥākim then comments: ‘This *ḥadith* is *Ṣaḥīḥ*; regarding the *isnād* with al-Ḥakam ibn Abbān, he is accepted by the majority of the scholars of Islam, but not recorded by the two Shaykh’s.’

Qutayba ibn Sa'eed narrated to us Bakr ibn Muḍar narrated to us from ibn al-Hād from 'Amr ibn Shuayb from his father from his grandfather that the Messenger of Allah, peace and blessings be upon him during the year of the battle of Tabuk was standing performing prayer during the night. Some of his Companions gathered behind him in order to guard him. When he finished he turned to them and said: *I had been given this night five matters which were not given to any one before me. I have been sent to all mankind while whoever was before me used to be sent to his nation. It was said to me, ask - as every Prophet asked (for something). I saved my request until the Day of Judgement. It is guaranteed to you and to whoever testifies that there is no god but Allah.*²⁴

Similar is also recorded in *Majmu' al-Zawā'id*, but reported on the authority of a different Companion, Abu Sa'eed al-Khudri without an *isnād*, 'I have been sent to the red and the black while every messenger was sent particularly to his own people.' Al-Haythamy said that 'It is narrated by al-Ṭabarāni in *al-Awsaṭ* and the *isnād* is *ḥasan*.' I would argue that he complete *isnād* is to be found in the *Mu'jam al-Awsaṭ* of al-Ṭabarāni.²⁵ Ibn Ḥibbān records in his *Ṣaḥīḥ* the next narration upon the authority of 'Auf ibn Mālik, the wording being:

أخبرنا أبو يعلى حدثنا هارون بن عبد الله الحمال حدثنا بن أبي فديك عن عبيد الله بن عبد الرحمن بن موهب عن عباس بن عبد الرحمن بن ميناء الأشجعي عن عوف بن مالك عن النبي صلى الله عليه وسلم قال أعطيت أربعا لم يعطهن أحد كان قبلنا وسألت ربي الخامسة فأعطانيها: كان النبي يبعث إلى قريته ولا يدعوها وبعثت كافة إلى الناس

Abu Ya'la reported to us Hārūn ibn Abdullah al-Ḥimāl narrated to us Ibn Abi Fudeek narrated to us from 'Ubaydallah ibn 'Abdar-Raḥman ibn Mawhib from 'Abbās ibn 'Abdar-Raḥman ibn Maynā' al-Ashshaji from 'Auf ibn Mālik that the Prophet peace and blessings be upon him, he said: *I have been given four things which were not given to any other else before me, and I asked my Lord for the fifth and He gave it*

²⁴ *Musnad Aḥmad* [Vol. 2, no. 7068]. Also recorded by al-Bayhaqi in *Sunan al-Kubra* [Vol. 1, no. 1000]. Here the *ḥadīth* is abbreviated to that pertinent the variance of wording.

²⁵ al-Ṭabarāni *Mu'jam al-Awsaṭ* [Vol. 7, no. 7439]. Muḥammad ibn 'Abān narrated to us Ibrāhīm ibn Suwayd al-Jadthou'ee reported to us 'Aāmīr ibn Mudrak narrated to us Fuḍeel ibn Marzuq narrated to us from 'Aṭiya from Abu Sa'eed.

to me. (Previously) a Prophet was sent to his own people, but I have been sent to all mankind.²⁶

Here, a comment is required regarding the narrator, 'Ubaydallah ibn 'Abdar-Raḥman ibn Mawhib. He is not considered strong. Concerning Abbās ibn 'Abdar-Raḥman ibn Maynā' al-Ashshaji, al-Ḥāfiẓ said that is was *maqbul* (acceptable) only!²⁷

The wording of 'I have been sent to all mankind,' is further recorded by Imām al-Ṭabarāni in *Mu'jam al-Kabir* upon the authority of Sā'ib ibn Yazeed. Although the reported text is not at great variance with what has been reported thus far, I would submit that the narrator contained in this specific *isnād*, Ishāq ibn Abdullah ibn Abi Farwa, is *matruk* (rejected) and accused.²⁸

Ibn Kathir's summary

Amongst the authorities in *Tafsir*, this matter did not go unnoticed or unreported either. For example, in the *Tafsir* of Ibn Kathir, he provides a cogent account of the *aḥādīth* that have been mentioned on this topic.²⁹ He goes on to say the following:

He the Almighty says: 'Ask those who were given the Scripture, as well as those without one, 'Do you too devote yourselves to Him alone?' If they do, they will be guided, but if they turn away, your only duty is to convey the message.' Verses in relation to this are numerous, just as the *aḥādīth* are numerous also to detail them all. It is a matter that is known from the *Deen* of Islam by necessity, that he, may the prayers

²⁶ *Ṣaḥīḥ* Ibn Ḥibbān [Vol. 6, no. 6365]

²⁷ Recorded for example in *al-Taqrīb* [no. 4314, p. 420 and no. 3174, p. 318]

²⁸ al-Ṭabarāni *Mu'jam al-Kabir* [Vol. 7, no. 6674]. The *isnād* al-Ṭabarāni records is: 'al-Ḥasan ibn Ishāq al-Tastari narrated to us Hishām ibn 'Aāmar narrated to us Yaḥya ibn Ḥamza narrated to us Ishāq ibn Abdullah ibn Abi Farwa narrated to us from Yazeed ibn Khaṣeefa that he narrated from Sā'ib ibn Yazeed, he said the Messenger of Allah peace and blessings be upon him said.' Regarding Ishāq ibn Abdullah ibn Abi Farwa, see: Ibn 'Adi, *al-Kāmil fī Ḍu'afā' al-Rijāl* [Vol. 1, p. 531]

²⁹ *Tafsir* Ibn Kathir [Vol. 2, pp. 132/133]. This is in relation to the verse at 3: 151. The Arabic edition of *Tawḥeed* provides an extensive block quote which mentions most of the *ḥadīth* already quoted earlier.

and peace of Allah be upon him, was the Messenger of Allah sent to all of humanity.³⁰

From 'Ikrimah from Ibn 'Abbās, he said I heard Ibn 'Abbās may Allah be pleased with him saying, 'Indeed Allah the Almighty has favoured Muḥammad, peace and blessings be upon him, over the inhabitants of the heavens and over the Prophets.' They asked, 'O Ibn 'Abbās, in what way has he been favoured over the other Prophets?' He, may Allah be pleased with him said: 'Verily, Allah the Almighty said: *We have never sent a Messenger who did not use his own people's language to make things clear for them*' Allah the Almighty sent him to the *Jinn* and mankind.³¹

Indeed all of these are authentic chains of transmission narrated on the authority of a large number of *Ṣaḥāba*, including: Jābir ibn Abdullah, Abu Hurayrah, Abu Dharr Al-Ghifārī - the most truthful from among creation; the trustworthy Abdullah ibn 'Abbās; Abdullah ibn 'Amr ibn al-'Aās who wrote the honourable words of the Messenger peace and blessings be upon him, Abu Musa al-Ash'ari and Abu Umāmah - may Allah be pleased with all of them. These *aḥādīth* were recorded in books of *Ṣaḥīḥ*, *Sunan*, *Musnad*, *Muṣṣanaḥ* and *Mu'jam* and even in books of *Tafsīr*, literature and Arabic language. As a collective they are taken as definite evidence, whosoever denies this collective body of evidence is a *kāfir*. There are also other a large amount of other narrations from other companions that prove that the Messenger of Allah peace and blessings be upon him was sent to all mankind and that he was preferred and distinguished by that; every Prophet and Messenger was just sent to his own nation or locale.

Undoubtedly Allah has bestowed great virtue upon Muḥammad peace and blessings be upon him. Notwithstanding this though, the fundamental point which is to be taken forward is that the aforementioned matters are established principles of the Islamic doctrine and creed; it is mandatory to believe in them; to deny any of them would take one outside the fold of Islam.

³⁰ *Tafsīr* Ibn Kathīr [Vol. 3, p. 489]. The verse quoted by Ibn Kathīr is at 3: 20, although this quotation appears in the *Tafsīr* of 7: 158. The Arabic edition of *Tawhīd* block-quotes up to page 491, essentially reiterating the *aḥādīth* already mentioned by recounted by Ibn Kathīr.

³¹ *Ibid.* [Vol. 6, p. 518]. The verse quotes is from 14: 4, although the entry in the *Tafsīr* is from 34: 28.

3. All previous Prophetic laws are abrogated

It was proved by overwhelming evidence, the denial of which is *kufīr* (disbelief), that the previous Prophets and Messengers were just sent to their own specific tribes, peoples, locales or nations. Similarly, it was also proved that unlike previous Prophets and Messengers the Prophet Muḥammad peace and blessings be upon him was sent to all of mankind. To argue that the previous nations or peoples still exist presently seems incredulous. By the passage of time they have perished; long ceasing to be considered as distinct nations addressed by a particular Prophet or Messenger. In fact, they are now considered as a part of Muḥammad's nation. That is to say, each previous nation lost its description as a specific nation as well as its independent identity and became just individuals, groups, tribes, or peoples included in the nation of Muḥammad peace and blessings be upon him.

The call of previous Prophets now has no legal significance, because the law they were sent with would address those who are no longer existent. Nobody in the present world is ordered to follow the law which was brought by Musa, Moses peace be upon him, although there are existing individuals and tribes descended from the original Children of Israel. However, the nation of Musa peace be upon him, described once as a nation of divine message, is long gone; it has vanished through the passage of time. In a similar manner, nobody is required to follow the specific laws which were brought by Esa, Jesus peace be upon him.

One can reasonably ask, so what has happened to those previous messages? Have the commands and prohibitions that Allah gave to those previous peoples evaporated entirely? Allah forbid! What has happened is

that these specific laws and injunctions were *abrogated* in totality by Him, Exalted be His names. The precise moment of abrogation was the moment revelation descended upon the final Messenger sent to all of mankind, namely Muḥammad peace and blessings be upon him. By Allah saying that he has sent Muḥammad peace and blessings be upon him as a Prophet and Messenger to *all* of mankind, by necessity, he has thereby abrogated all the previous messages, since the people they specifically addressed no longer exist. All the laws and detailed rulings that were applicable to the previous nations via their Prophets and Messengers have been abrogated totally. Every injunction that applied previously whether that be an obligation or prohibition, no longer applies anymore. Yet it is more than this – it is not merely the fact that they no longer apply, but it is prohibited to seek to apply them now following the advent of Muḥammad peace and blessings be upon him.

Each of the previous Prophets and Messengers were not sent to us, nor have they addressed us in any manner, thus it is inconceivable that the specific laws that they brought could in some manner now apply to us. Following an abrogated religion and leaving the abrogating one is a major crime, it constitutes an annulment of the commands of Allah and rebellion against his sovereignty. Those that would purport to argue for the dictum of *Shara' min qablina shara' lanā* - 'the law of the previous Prophets is our law too' are presiding over an absurdity. Whatever may appear to be similar in our present divine law brought by Muḥammad peace and blessings be upon him to that brought by previous Prophets or Messengers should not be construed as being in any way an affirmation or continuance of that legislation. How could it be the case that Allah abrogated all of the previous divine laws and at the same time re-legislated them as being 'Islamic laws' now?

The incredulity of the saying 'the law of the previous Prophets is our law too' should be evident by the fact that Muḥammad peace and blessings be upon him was sent to all mankind and even the *jinn*. His followers from amongst mankind are considered as being one *Ummah* subsuming all different races, tribes and nations on earth. As it is described as one nation, it therefore has only one creed and one law. While each one of the previous Prophets used to be sent to specific peoples, locales or nations, each of whom had a law and a method that differed from the others, even if they were under the same rule. Whoever claims that these laws are ours, he must do the following:

- Implement *all* of these laws at the same time from the same view and consideration; that is, to gather between opposing contrasts; which is an impossible matter to occur from both the reasonable and legal point of view.
- Make every law connected with a specific nation that would be followed by this *Ummah* only and not by any other nation from among mankind. If applied, by rights, anyone from the Far East – for example Japan, would be able to argue that this is the law sent to Israel – it cannot be obligatory now since I was not addressed with it originally. Even if present at the time of Musa, peace be upon him, it wouldn't have been obligatory to follow as he wasn't sent to the Japanese! Consequently, how could it ever apply now after the advent of Muḥammad peace and blessings be upon him?

From the Islamic legal point of view, this is impossible, as it contradicts the universality of the Muḥammad's message, peace and blessings be upon him and the unity of his *Ummah*, whereas both matters were proved through definite and absolute proofs. Common people and scholars, Muslims and *mushrikeen* know these two matters in Islam as an acknowledged fact, as we mentioned earlier; this is but an additional proof put forward here. Some have tried to escape from this quandary by arguing with the following: 'The law of the previous Prophets becomes ours too, but only if it is mentioned in the Qur'ān or the *Sunnah*.' In reply we would posit that this line of argument is of no use. If it is mentioned in the present revelation it is by way of a report. If it is mentioned in the form of an address to the believers now, then it becomes a new law, however similar it may appear to that which has gone previously. The newly enacted law becomes mandatory to follow not because of anything that has gone previously, but because we are commanded with it now in the present revelation. It is prohibited to say now 'the law of the previous Prophets is our law too' or that it somehow 'becomes part of our laws'. One could say though that this is a new law for us, which appears similar to that previously revealed; legally that is tenable.

A sharp view from Islamic Spain

Writing in *al-Muḥalla bil athār*, the grand Imām of Andalusia, Ibn Ḥazm lucidly argued as follows:

Sharī'ah of the previous Prophets: It is not permissible to follow any *Sharī'ah* of a Prophet (that came) before our Prophet (Muḥammad), peace and blessings be upon him. As the Exalted has said:

لِكُلِّ جَعَلْنَا مِنْكُمْ شِرْعَةً وَمِنْهَاجًا

*We have assigned a law and a path to each of you.*¹

حدثنا أحمد بن محمد بن الجسور حدثنا وهب بن مسرة حدثنا محمد بن وضاح حدثنا أبو بكر بن أبي شيبة حدثنا هشيم أخبرنا سيار عن يزيد الفقير أخبرنا جابر بن عبد الله أن النبي صلى الله عليه وسلم قال أعطيت خمسا لم يعطهن أحد قبلي: نصرت بالرعب مسيرة شهر، وجعلت لي الأرض مسجدا وطهورا، فأبما رجل من أمتي أدركته الصلاة فليصل، وأحلت لي الغنائم ولم تحل لأحد قبلي، وأعطيت الشفاعة، وكان النبي يبعث إلى قومه خاصة وبعثت إلى الناس عامة

Aḥmad ibn Muḥammad ibn al-Jasour narrated to us Wahb ibn Massara narrated to us Muḥammad ibn Waḍḍāḥ narrated to us Abu Bakr ibn Abi Shayba narrated to us Hushaym narrated to us Sayyār reported to us from Yazeed al-Faqir, Jābir ibn Abdullah reported to us that the Prophet peace and blessings be upon him said: *I have been given five (things) that have not been given to anybody before me: I have been supported with horror for a distance of one month; the whole earth has been made a masjid and purified for me; anyone from my Ummah, man or woman, can pray wherever they are; the spoils of war have been permitted to me whereas they were not for previous nations; I have been given the intercession, and every previous Prophet has been sent to his own people whereas I have been sent to all of mankind.*²

Since these Messengers have been sent to their own specific people they are not addressing us – so how can their *Sharī'ah* apply or even be obligatory upon us? What makes our current *Sharī'ah* applicable is that we have been addressed with it. Whoever denies this, would therefore deny this *ḥadith* and the special *faḍeelah* (blessing) that has been given to Muḥammad peace and blessings be upon him.³ Whoever

¹ Qur'ān, 5: 48

² Muṣṣanaḥ Ibn Abi Shayba, [Vol. 17, no. 32299]. The *ḥadith* is not only narrated by Jābir but by as many as seven or eight *Ṣaḥāba*. It is *mutawātir* and to be found in many collections, for example in Bukhārī, Muslim and others. Inclusive is Ibn Ḥazm's *isnād* to Abu Bakr ibn Abi Shayba

³ In other words, being sent to all mankind abrogates all previous *Sharī'ah*'s.

says that the laws of the previous Prophets apply to us now given the advent of the Prophet Muḥammad (peace be upon him) who is sent to all of mankind is lying. And with Allah is all success.⁴

Hats off to Ibn Ḥazm for furnishing us with this deep, thoughtful analysis! We also formally adopt this viewpoint and to it add the following dictum – that all previous divine laws were abrogated with the advent of the last Prophet, who was sent to all of mankind, namely Muḥammad ibn Abdullah peace and blessings be upon him. The abrogation was absolute. Hence, that is why is it unlawful to try and implement or follow a previous *Sharī'ah* to begin with.

All rulings sent to us after the revelation of the first word of the Qur'ān word - *Iqra'* (read!) is a new law even if it appears to be similar to that previously issued or even if it is identical.⁵ Without doubt the reality of the matter is that it is new, so is absolutely unlawful to say that it is an acknowledgment of a previous law, as that which is abrogated becomes necessarily void and non-existent. Its return is the establishment of a new law not a confirmation of a previous one that still exists and applies. The glorious Qur'ān and the honourable *Sunnah* are full of proofs which confirm this reasoning, for the words of Allah and that revealed to his Messenger peace and blessings be upon him are never in contradiction to one another.

أَفَلَا يَتَذَكَّرُونَ الْقُرْآنَ وَلَوْ كَانَ مِنْ عِنْدِ غَيْرِ اللَّهِ لَوَجَدُوا فِيهِ اخْتِلَافًا كَثِيرًا

*Will they not think about this Qur'an? If it had been from anyone other than Allah, they would have found much inconsistency in it.*⁶

'Muhaymin'

Allah the Exalted and Majestic says:

⁴ Ibn Hazm, *al-Muḥalla*, [Vol. 1, no. 102, p. 84]. We have undertaken a full translation of this section from *al-Muḥalla*, it is available in paperback and kindle format, entitled: *Foundational Islamic Principles*.

⁵ Qur'an 96: 1

⁶ Qur'an 4: 82

وَأَنْزَلْنَا إِلَيْكَ الْكِتَابَ بِالْحَقِّ مُصَدِّقًا لِمَا بَيْنَ يَدَيْهِ مِنَ الْكِتَابِ وَمُهَيْمِنًا عَلَيْهِ فَاحْكُم بَيْنَهُمْ بِمَا أَنْزَلَ اللَّهُ وَلَا تَتَّبِعْ أَهْوَاءَهُمْ عَمَّا جَاءَكَ مِنَ الْحَقِّ لِكُلِّ جَعَلْنَا مِنْكُمْ شُرْعَةً وَمِنْهَاجًا وَلَوْ شَاءَ اللَّهُ لَجَعَلَكُمْ أُمَّةً وَاحِدَةً وَلَكِنْ لَيَبْئُوتَكُمْ فِي مَا آتَاكُمْ فَاسْتَبِقُوا الْخَيْرَاتِ إِلَى اللَّهِ مَرْجِعُكُمْ جَمِيعًا فَيُنَبِّئُكُمْ بِمَا كُنْتُمْ فِيهِ تَخْتَلِفُونَ

*We sent to you [Muhammad] the Scripture with the truth, confirming the Scriptures that came before it, and with final authority over them: so judge between them according to what Allah has sent down. Do not follow their whims, which deviate from the truth that has come to you. We have assigned a law and a path to each of you. If Allah had so willed, He would have made you one community, but He wanted to test you through that which He has given you, so race to do good: you will all return to Allah and He will make clear to you the matters you differed about.*⁷

Contained within the aforementioned verse is the Arabic word ‘*al-Muḥaymin*’ [المهيمن] which is one of the ninety-nine names of Allah and is often translated as ‘The Protector’. Many interpretations have been given to this word including: ‘the witness and trustworthy, the faithful, the vigilant guardian’. But the foremost interpretation seems to be on two distinct levels, firstly, meaning the dominated controller who has the power over everything and whose commands are decisively accomplished; secondly this word refers to one who undertakes the responsibility of ruler and disposes all affairs. In *Fath al-Bāri* al-Ḥāfiẓ Ibn Ḥajar tried to summarise these interpretations and said the following:

They said regarding the word ‘*Muḥaymin*’ that the Qur’ān is trusted over all the books that preceded it. As cited by Abu Ḥātim from the channel of Ali ibn Abi Ṭalḥa from Ibn ‘Abbās in relation to the statement of Allah ‘and *muḥaymin* over it’ he said the Qur’ān is trusted over all the books that preceded it. Furthermore as reported by ‘Abd Ibn Ḥumayd from the channel of Arbada al-Tamimi from Ibn ‘Abbās in relation to the statement of Allah ‘and *muḥaymin* over it’ he said ‘entrusted over it’. Ibn Qutayba and others followed by the majority said: knowing it is trusted.

Some postulate it as being *mu’aymin*, the *ha* (هـ) being read as a *hamza* (ء); *mu’aymin* means the one who offers peace and security. That is rejected because that is not the preponderant meaning, given

⁷ Qur’an 5: 48

that it is from amongst the names of Allah the Exalted and not simply reduced to that. The truth is that its root has the meaning that he is superseded by something. ‘*al-Haymana*’ to protect and watch over, that is why it is said when a man watches over something and protects it he has ‘*haymana*’ over it. (Or) a man dominates a man if he becomes his watcher, hence he is *muḥaymin*. Abu ‘Ubayda said: it didn’t come in the speech of the Arabs on this construction except four words: *mubayṭar*, *musayṭir*, *muḥaymin* and *mubayṭar*.⁸

On the same subject in *Fath al-Bāri*, al-Ḥāfiẓ continues:

al-Bayhaqy mentioned, ‘This explanation of the scholars of *Tafsir* with regard to the term ‘*al-mahaymin*’ is that it means ‘supervisor’. He then cites a narration from al-Taymi on the authority of Ibn ‘Abbās in reference to the verse, ‘(he is) *muḥaymin* over it.’ Ibn ‘Abbās states that it means ‘protector’; in another narration from Ali ibn ‘Abi Ṭalḥah, Ibn ‘Abbās is reported to say that ‘*al-Muḥaymin*’ means ‘supervisor’. In yet another narration from Mujāhid, Ibn ‘Abbās is reported to say, ‘*al-Muḥaymin*’ means the witness. It is said that ‘*al-Muḥaymin*’ means the observer over an object and guardian of it. It is also said that *al-haymanah* is to be in authority over something as a poet once said:

‘Is it not that the best of the people after their Prophet is their next *muḥaymin* guiding them towards the good and the bad? The one in authority over the people wants to protect them even after his time has passed.’

It is therefore correct that this poetry implies that he wants security for them and what has been mentioned is in accordance with this.’⁹

I would submit that al-Bayhaqy struck the point in his interpretation of the word ‘*al-muḥaymin*’ with it being based upon the ‘people care for them.’ Not taken advantage of the poetic lines which is mentioned, the understanding of the sense of ‘*al-ḥākim*’ the ruler and ‘*al-musayṭir*’ the dominant. While the meanings of witness and trustee are there they are not derived from the word itself. From the requirements of the *Shari’* meaning it can be discerned to

⁸ al-Ḥāfiẓ Ibn Ḥajar al-Asqalāni, (2000), *Fath al-Bāri bi-Sharḥ Ṣaḥīḥ al-Bukhārī* (Dār al-Salām: Riyadh), [Vol. 8, p. 340]

⁹ Ibid. [Vol. 13, p. 448]

encompass that the trusted ruler watching over affairs, or else failing in that would be considered treacherous or even criminal. This is similar to what has come in *Lisān al-Arab*: ‘In the *ḥadith* of ‘Ikrimah – I know Ali peace be upon him was from amongst the ‘*muḥaymināt*’; any issues of dominance, which is the thing to do, to make her act is headed to matters such custodians.’ As for Imām al-Ṭabari although he provides a lengthy and beautiful comment, he doesn’t necessarily approach the intended meaning with his interpretation.

Imām Ibn Kathir was closer to the mark in seeking to flesh out the meaning of the word ‘*muḥaymin*’ in his *Tafsir*. He writes:

He said ‘*muḥaymin* over it’: Sufyān al-Thawri and other than him said: from Ibn Ishāq from al-Tamimi from Ibn ‘Abbās (who said) entrusted over it. And it’s said from Ali ibn Abi Ṭalḥa from Ibn ‘Abbās – *al-muḥaymin* is the trustworthy, the Qur’ān is trusted over all the books that preceded it. As well it has been reported from ‘Ikrimah, Sa’eed ibn Jubayr, Mujāhid, Muḥammad ibn Ka’b, ‘Aṭiya, al-Ḥasan, Qatādah, ‘Aṭā al-Khurasāni, al-Suddi and Ibn Zayd about this. Ibn Jurayj said: the Qur’ān is trustworthy over the books that preceded it. Therefore, whatever disagrees with the Qur’ān is false. al-Wālabi said that Ibn ‘Abbās said that *muḥayminan* means ‘witness.’

Similar was said by Mujāhid, Qatādah and al-Suddi. al-‘Awfi said that Ibn ‘Abbās said that *muḥayminan* means dominant over the previous scriptures. These meanings are similar, as the word *muḥaymin* includes them all. Consequently, the Qur’ān is trustworthy, a witness and dominant over every scripture / book that preceded it. This glorious book which Allah revealed as the last and final book of all times. The Qur’ān includes all the good aspects of previous scriptures and even more, which no previous scripture ever contained. This is why Allah made it trustworthy, a witness and dominant over them. Allah promised that he will protect the Qur’ān and swore by his most honourable self when doing so. Verily Allah the Exalted says: *Surely we have revealed the Dhikr and we will most surely be its guardian.*¹⁰

¹⁰ Ibn Kathir [Vol. 3, p. 127/128]. The end verse quoted is from 15: 9. Ibn Kathir’s comment comes in relation to the *Tafsir* of the verse at 5: 48.

The comments from Ibn Kathir are good indeed. But it’s unfortunate that the majority of exegetes simply regurgitated the interpretation of Ibn ‘Abbās regarding word *al-muḥaymin* as being a witness, then a trustee or entrusted which only slightly fits into the overall context unlike the ruling concerning it. Ultimately this is due to *taqlēd* (imitation), laziness about being diligent and having independent thought. We have found in the book of history written by Imām al-Ṭabari, regarding the death of Abu Shurayḥ, some lines of poetry which serve to provide some elaboration upon the linguistic meaning of this word:

[al-Walīd] wrote to wrote to Uthmān about [these young men] and he wrote back to put them to death. Thus, [al-Walīd] executed them at the gate of the Official Palace [*al-qaṣr*] in the square [*al-raḥabah*]. Concerning this [event] ‘Amr b. ‘Āsim al-Tamīmī said:
Never feed on your neighbours immoderately, O dissolute men, in the reign [mulk] of Ibn ‘Affān
For Ibn ‘Affān, whom you have put to the test, has cut off thieves by the well-established law of [our] salvation
*Without fail he acts in accordance with the Book, keeping close watch over every neck and fingertip among them.*¹¹

It would appear from these verses that the meaning relates to control. But control and dominance appears in the word of ‘*muḥaymin*’, as stated in *al-Iṣāba fī Tamīyiz al-Ṣaḥāba* by al-Ḥāfiz Ibn Ḥajar; during the biography of al-Fāria’ ibn Abi al-Ṣalt may Allah be pleased with her, sister of Umayyah ibn Abi al-Ṣalt, the famous poet. The following stanzas are from his *qaṣīdah*:

To you is all praise, all blessings, all favours, our Lord. There is nothing higher than you at all, neither is there a more absolute muḥaymin or majestic king upon the throne of the heavens. Your power humbles masses and causes them to prostrate.

In my opinion, there is no meaning for ‘*muḥaymin*’ here except that it means the one who decrees and controls, who possesses absolute authority, and who

¹¹ al-Ṭabari *History of Prophets and Kings*, [Vol. 2 p. 439 (Arabic)]; the English is taken from the translation, *The Crisis of the Early Caliphate*, [Vol. 15, p. 46]

is in ultimate disposal of all affairs. And this is what circulated among the tongues of the people from all levels in the later centuries. Therefore, if it is said *al-Haymanah al-'Ajnabiyyah* then all listeners understand this term as 'dominance, control, or foreign occupation' and nothing else – this is the correct opinion *alḥamdulillah*.¹² This is what Allah has meant by the term – that '*muḥaymin*' means the one who decrees and controls, who possesses absolute authority, and who is in ultimate disposal of all affairs – nothing else is meant by it.

Perhaps there is also the reasonable alternative meaning of the word [قَيِّمًا] denoting 'straight', as it appears in the beginning of *Surah al-Kahf*. The following is an explanation as provided by al-Shanqīṭi:

And He says in this noble verse [قَيِّمًا] 'straight,' which is to say, uprightness, without swerving or deviation. What is mentioned here regarding [قَيِّمًا] is also mentioned elsewhere, like where He says: *Those who disbelieve among the People of the Book and the idolaters were not about to change their ways until they were sent clear evidence; a Messenger from Allah, reading out pages [blessed with] purity, containing true scriptures* [98: 1/3].

This Qur'an does indeed show the straightest way [17: 9].

Nor could this Qur'an have been devised by anyone other than Allah.

It is a confirmation of what was revealed before it and an explanation of the Scripture – let there be no doubt about it – it is from the Lord of the Worlds [10: 37].

There is a lesson in the stories of such people for those who understand. This revelation is no fabrication: it is a confirmation of the truth of what was sent before it; an explanation of everything; a guide and a blessing for those who believe [12: 111].

This is the Scripture in which there is no doubt, containing guidance for those who are mindful of Allah [2: 1].

Alif Lam Ra [This is] a Scripture whose verses are perfected, then set out clearly, from One who is all wise, all aware [11: 1].

But we made it a light, guiding with it whoever We will of Our servants [42: 53], and also to other verses.

¹² *Haymanah* is the root word of the term '*muḥaymin*'.

And this is what we have interpreted the saying of the Almighty (where He says) [قَيِّمًا] 'straight'; (it is established) by the majority and the apparent meaning. It affirms the meaning too for where He says, '*did not make in it any crookedness*' [18: 1], because something may outwardly appear straight and upstanding, while not being devoid of crookedness in reality. Hence, Allah combines the negation of crookedness with an affirmation of straight uprightness.

Concerning where He says [قَيِّمًا] 'straight,' two further aspects of *Tafsir* are pertinent. Firstly, that the meaning of [قَيِّمًا] 'straight,' is that He confirms what was previously revealed in earlier books, that is to say, [مُهِيمًا] *muḥaymin* over it. Similar in meaning to His saying: *We sent to you [Muhammad] the Scripture with the truth, confirming the Scriptures that came before it, and with final authority over them* [5: 48]. (Naturally) because of His dominance of previous books – *Truly, this Qur'an explains to the Children of Israel most of what they differ about* [27: 76]; and *Say, 'Bring the Torah and read out [the relevant passage] if you are telling the truth* [3: 93], and *People of the Book, Our Messenger has come to make clear to you much of what you have kept hidden of the Scripture* [5: 15].

Secondly, this aspect to the meaning of [قَيِّمًا] 'straight,' is that He establishes the religious and worldly interests of creation. In actuality, the second aspect implying the first.¹³

The Qur'ān is not considered '*muḥaymin*' in other words, *ḥākīm* – controlling or dominating over the previous books unless and except in the sense of it abrogating them. It cannot imitate or be subservient to them, either rationally or legally in terms of what Allah has commanded or prohibited. This is because essentially they are of one rank, originating ultimately from the same source, namely Allah the Mighty and Sublime. Thus it is not an issue of the last revelation dominating or controlling those previous to it; it is *nāsikh* (abrogating) and that is *mansukh* (abrogated) by necessity. This will not be its condition or place. It cannot be imagined except as this. Yet it is another proof concerning the matter of the previous laws being abrogated in totality and that we are not originally addressed by them. To reiterate again, the

¹³ al-Shanqīṭi, *Aḍwā' al-Bayān*, [Vol. 3, p. 193]. Given the multiple successive quotation of Qur'ānic verses, these are embedded into the quote rather than being separated off by footnotes.

argument that the ‘law of the previous Prophet’s is our law too’ is invalid and a great lie. Should one realise the ramifications of such a statement and still adhere to it, one would fall into *kufir* (disbelief). He the Mighty and Sublime said:

ثُمَّ جَعَلْنَاكَ عَلَىٰ شَرِيعَةٍ مِّنَ الْأَمْرِ فَاتَّبِعْهَا وَلَا تَتَّبِعْ أَهْوَاءَ الَّذِينَ لَا يَعْلَمُونَ

*Then we have made you follow a course in the affair, therefore follow it, and do not follow the low desires of those who do not know.*¹⁴

The Prophet peace and blessings be upon him had his own independent specific law that differs from other previous ones. This law was revealed to him from the very beginning of his call, when he was at Mecca, as attested by the aforementioned verse, which is Meccan in origin according to the majority of scholars. That was why he did not ask any of the people of the book about any of their rules or judgments. In fact, this was forbidden, as it will be mentioned soon. Perhaps some people hated that, in particular the Jews, but Allah let them know after a while when they were at Medina that his steady, stable tradition was to make a specific law for every nation. Every such law is a law of Allah, in its time and for its nation among which it was legislated; applying it at its time is considered an act of obedience to Allah. The important point is to rush headlong toward good deeds and strive like in a race towards all virtues, rather than becoming bogged down in the technicalities of the specific law. If a certain divine law is abrogated, the new one will also be a law of Allah; obeying it is an obligation, while disobeying it is prohibited. Allah the Exalted and Glorious outlines this meaning when He says:

وَأَنْزَلْنَا إِلَيْكَ الْكِتَابَ بِالْحَقِّ مُصَدِّقًا لِّمَا بَيْنَ يَدَيْهِ مِنَ الْكِتَابِ وَمُهَيِّمًا عَلَيْهِ فَاحْكُم بَيْنَهُم بِمَا أَنْزَلَ اللَّهُ وَلَا تَتَّبِعْ أَهْوَاءَهُمْ عَمَّا جَاءَكَ مِنَ الْحَقِّ لِكُلِّ جَعَلْنَا مِنْكُمْ شِرْعَةً وَمِنْهَاجًا وَلَوْ شَاءَ اللَّهُ لَجَعَلَكُمْ أُمَّةً وَاحِدَةً وَلَكِنْ لِّيَبْلُوَكُمْ فِي مَا آتَاكُمْ فَاسْتَبِقُوا الْخَيْرَاتِ إِلَى اللَّهِ مَرْجِعُكُمْ جَمِيعًا فَيُنَبِّئُكُمْ بِمَا كُنْتُمْ فِيهِ تَخْتَلِفُونَ

We sent to you [Muhammad] the Scripture with the truth, confirming the Scriptures that came before it, and with final authority over them: so judge between them according to what Allah has sent down. Do not follow their whims, which deviate from the truth that has come to you. We have assigned a law and a path to each of you. If Allah had so willed, He would have made you

¹⁴ *Qur’ān* 45: 18

*one community, but He wanted to test you through that which He has given you, so race to do good: you will all return to Allah and He will make clear to you the matters you differed about.*¹⁵

According to the majority this *Surah, al-Mā’ida*, was revealed in Medina. A large number of *ḥadith* exist also to corroborate the points that we have made thus far, that the argument of the law of the previous Prophets being part of our present law is totally invalid. The Prophet peace and blessings be upon him said: ‘*If Musa were alive among you today and you followed him, leaving me, you would have gone astray.*’ Musa, Moses peace be upon him was a Prophet and an infallible Messenger who did not disobey Allah’s orders. If alive today, he would have no other choice than to follow Muḥammad peace and blessings be upon him, otherwise he would be acting in disobedience to Allah. It is known by necessity that the law of Musa has now been totally abrogated, so if he was to be resurrected now it would be impermissible for him to follow any other than Muḥammad peace and blessings be upon him; to do so would make him sinful, Allah forbid! This *ḥadith* is yet another evidence that proves all the previous religions and laws have been totally abrogated; we are not addressed by them at all. Hence the statement, ‘the law of the previous Prophets is our law too’ is not simply false or an absurdity, it stands in open opposition to the express statement of Muḥammad peace and blessings be upon him.

One individual tried belatedly to conclusively address this problem. He was the Imām Abul’Farj Nur-al-Deen ibn Burhān al-Deen Ali ibn Ibrāhīm Aḥmad al-Ḥalabī. His solution though, wasn’t much of a solution. Writing in the *al-Seerah al-Ḥalabiyah* he said:

Thus, know, that he peace and blessings be upon him was sent to all the Prophets and their nations, in accordance with his presence in his time. This is because Allah, the Almighty took a covenant from them, and their nations to believe in him and support him while maintaining their Prophethood to their respective nations. His Prophethood and Message are more comprehensive and all-encompassing. His law during those times, concerning those nations, is in accordance with what their own Prophets brought, as judgments and laws differ with

¹⁵ *Qur’an* 5: 48

different individuals and times, as al-Subki stated. That is, all the Prophets and their nations, among them being his nation, peace be upon him. He peace be upon him said to Umar ibn al-Khaṭṭāb – ‘By him in whose hand my soul rests, if Moses were alive he would follow me.’¹⁶

The Night Journey

Another demonstrable proof regarding the invalidity of the laws of the previous Prophets, is the fact that the Prophet Muḥammad peace and blessings be upon him led in prayer all the other Prophets during his blessed night journey to *Bayt al-Maqdis*. The previous Prophets were resurrected for him, they moved one another to lead the prayer, then they made him at the front or Jibreel, Gabriel, peace be upon him did so. Thus, Muḥammad peace and blessings be upon him led them in the prayer, which proved that their manner of prayer was abrogated, as they prayed according to his prayer. Prayer is considered the main pillar of religion; other previous acts of worship were abrogated *a fortiori*. This is the fifth piece of evidence, which proves that all previous laws and religions have been abrogated, and that we are not addressed by them at all. Yet again it shows the absurdity of the statement ‘the law of the previous Prophets is our law too’; it is false statement and its use is forbidden. The primacy of the Prophet peace and blessings be upon him and his law can also be ascertained from a number of narratives that have reached us. As recorded by Imām Muslim:

وحدثني زهير بن حرب حدثنا حجين بن المثنى حدثنا عبد العزيز وهو بن أبي سلمة عن عبد الله بن الفضل عن أبي سلمة بن عبد الرحمن عن أبي هريرة قال قال رسول الله، صلى الله عليه وسلم لقد رأيته في الحجر وقريش تسألني عن مسراي فسألتني عن أشياء من بيت المقدس لم أثبتها، فكربت كربة ما كربت مثله قط، قال فرفعه الله لي أنظر إليه ما يسألوني عن شيء إلا أنبأتهم به، وقد رأيته في جماعة من الأنبياء فإذا موسى قائم يصلي فإذا رجل ضرب جعد كأنه من رجال شنوءة، وإذا عيسى بن مريم عليه السلام قائم يصلي أقرب الناس به شبهها عروة بن مسعود الثقفي، وإذا إبراهيم عليه السلام قائم يصلي أشبه الناس به صاحبكم يعني نفسه، فحانت الصلاة فأمامتهم، فلما فرغت من الصلاة قال قائل: (يا مُحَمَّد هذا مالك صاحب النار فسلم عليه، فالتفت إليه فبدأنى بالسلام

And Zuhayr ibn Ḥarb narrated to me Ḥujjeen ibn al-Muthanna narrated to us ‘Abd al-Aziz and he is ibn Abi Salama narrated to us from

¹⁶ al-Ḥalabi *al-Seerah al-Ḥalabiyah* [Vol. 1, p. 330]. al-Ḥalabi d. 1044AH.

Abdullah ibn al-Faḍl from Abu Salama ibn ‘Abdar-Raḥman from Abu Hurayrah he said the Messenger of Allah peace and blessings be upon him said: *I found myself in Hijr and the Quraysh were asking me about my night journey. I was asked about things pertaining to Bayt al-Maqdis which I could not preserve (in my mind). I was very much vexed, so vexed as I had never been before. Then Allah raised it (Bayt al-Maqdis) before my eyes. I looked towards it, and I gave them the information about whatever they questioned me I also saw myself among the group of Messengers. I saw Moses saying prayer and found him to be a well-built man as if he was a man of the tribe of Shanu’a. I saw Jesus son of Mary (peace be upon him) offering prayer, of all men he had the closest resemblance with ‘Urwa ibn Mas’ud al-Thaqafi. I saw Ibrāhim (peace be upon him) offering prayer; he had the closest resemblance with your companion amongst people. When the time of prayer came I led them. When I completed the prayer, someone said: Here is Mālik, the keeper of the Hell; pay him salutations. I turned to him, but he preceded me in salutation.*¹⁷

In the *Sunan* of al-Nasā’i there is the following as part of a long *ḥadith*:

أخبرنا عمرو بن هشام قال حدثنا مخلد عن سعيد بن عبد العزيز قال حدثنا يزيد بن أبي مالك قال حدثنا أنس بن مالك أن رسول الله صلى الله عليه وسلم، قال: أتيت بدابة فوق الحمار ودون البغل، خطوها عند منتهى طرفها، فركبت ومعي جبريل عليه السلام فسرت إلى أن قال: ثم دخلت بيت المقدس فجمع لي الأنبياء عليهم السلام فقدمني جبريل حتى أمامتهم، ثم صعد بي إلى السماء الدنيا.

‘Amr ibn Hishām reported to us he said Makhlad narrated to us from Sa’eed ibn ‘Abd al-Aziz he said Yazeed ibn Abi Mālik narrated to us he said Anas ibn Mālik narrated to us that the Messenger of Allah peace and blessings be upon him said: *I was brought an animal that was larger than a donkey and smaller than a mule, whose stride could reach as far as it could see. I mounted it, and Jibreel was with me, and I set off [sic. until when he said] - Then I entered Bayt al-Maqdis (Jerusalem) where the Prophets peace be upon them were assembled*

¹⁷ *Ṣaḥīḥ Muslim* [Vol. 1, no. 172]. The narration is also in *Sunan al-Kubra* of Imām al-Nasā’i, the chain though is slightly different, reported as: Muḥammad ibn Rāfi’ reported to us he said Ḥubayn ibn al-Muthanna narrated to us ‘Abd al-Aziz ibn Abi Salama narrated to us the specific channel and text to its end.

*for me, and Jibreel brought me forward to lead them in prayer. Then I was taken up to the first heaven.*¹⁸

The narration is widespread, being recorded in many other collections.¹⁹ In *Mu'jam al-Awsaṭ* al-Ṭabarānī records a long narration:

حدثنا علي بن سعيد الرازي قال حدثنا الحسين بن عيسى بن ميسرة الرازي قال حدثنا هارون بن المغيرة قال حدثنا عنيسة بن سعيد عن ابن أبي ليلى عن أخيه عيسى عن أبيه عبد الرحمن بن أبي ليلى أن جبريل أتى النبي صلى الله عليه وسلم، بالبراق فحمله بين يديه وجعل يسير به؛ فساق الحديث حتى قال حتى أتينا بيت المقدس فإذا هو بنفر جلوس فقالوا حين أبصروه مرحبا بمُحَمَّد النبي الأمي وإذا في نفر الجلوس شيخ فقال محمد، صلى الله عليه وسلم: من هذا؟ قال: أبوك إبراهيم، ثم سأله فقال: من هذا؟ قال: موسى، ثم سأله من هذا قال: هذا عيسى ابن مريم، ثم أقيمت الصلاة فتدافعوا حتى قَدَمُوا مُحَمَّدًا، صلى الله عليه وسلم،... الخ

Ali ibn Sa'eed al-Rāzi narrated to us he said al-Ḥussein ibn Esa ibn Maysara al-Rāzi narrated to us he said Hārūn ibn Mughira narrated to us he said 'Anbasa ibn Sa'eed narrated to us from Ibn Abi Layla from his brother Esa from his brother 'Abdar-Raḥman ibn Abi Layla that Jibreel came to the Prophet peace and blessings be upon him with *al-Burāq* carrying him along making him walk [quoting the *ḥadith* until he said] Until he came to *Bayt al-Maqdis* where there happened to be a gathering and they said 'welcome Muḥammad the unlettered.' So he greeted the gathering and a man said: 'Muḥammad peace and blessings be upon him, who is this?' He said: Your father Ibrāhīm; then he asked and said who is this? He said Musa. Then he asked and said who is this? He replied: Jesus son of Mary. Then the time of prayer came, so they moved one another until they let Muḥammad (peace be upon him) led the prayer, etc.

I would submit that Ibn Abi Layla is Muḥammad ibn 'Abdar-Raḥman ibn Abi Layla who has weakness of memory; it is with this, *mursal*. In *al-Zawā'id*, al-Haythamy said: 'It is narrated by al-Ṭabarānī in *al-Awsaṭ*, it is *mursal*. We don't know of this report except from this *isnād* by Ibn Abi Layla with *irsāl* in it; Muḥammad ibn 'Abdar-Raḥman ibn Abi Layla and he is *ḍaef* (weak).' However, as it appears in *Fath al-Bāri Sharḥ Ṣaḥīḥ al-Bukhārī*, where an

¹⁸ *Sunan al-Nasā'i* [Vol. 1, no. 450]

¹⁹ Four additional references are provided for, among them: al-Ṭabarānī, *Mu'jam al-Kabir* [Vol. 10, no. 9976], *Musnad al-Shāmiyān* [Vol. 1, no. 341] and *Musnad Abu Ya'la* [Vol. 8, no. 5036]

alternate is mentioned: 'And in the *ḥadith* of Abu Umāmah as per al-Ṭabarānī in *al-Awsaṭ* then he mentioned prayer until the coming of Muḥammad.' But there is a citation provided in *al-Durr al-Manshur* which has: 'And it is reported by al-Ṭabarānī in *al-Awsaṭ* and Ibn Mardawayh from the channel of Muḥammad ibn 'Abdar-Raḥman ibn Abi Layla from his brother Esa from his father 'Abdar-Raḥman from his father Abi Layla that Jibreel peace be upon him.'²⁰ Perhaps it is *mawṣul* via Ibn Mardawayh and Allah knows best.

On a final note to conclude this matter, the Arabs of Najd and Ḥijāz, who were mostly Adnānī, they were upon the law of Ismā'il albeit with many distortions prior to the advent of the Prophet peace and blessings be upon him. With the advent of the new law which he peace and blessings be upon him brought, that which was being followed by the Arabs was repealed one by one. For example, a girl being owned by her father and married off, this was repealed; the idea that women were not allowed to inherit, was repealed and many more like this. It is noteworthy that many of the great Imām's of *fiqh* missed these points.

²⁰ al-Suyūṭī, *al-Durr al-Manshur* [Vol. 4, p. 272]

4. 'If Moses was alive, He would follow me'

Further to the previous chapter regarding the total abrogation of all previous Prophetic laws with the advent of the final Messenger, peace and blessings be upon him, here we turn to mention in full the narration that if Musa, Moses peace be upon him were alive, he would be following that which the final Messenger brought. It provides a further level of attestation to show that the supposed dictum of *Shara' min qablina shara' lanā* - 'the law of the previous Prophets is our law too' is totally invalid.

The Prophet peace and blessings be upon him said: *'If Musa were alive among you today, then if you followed him and left me, you would have gone astray.'* Several narrations have been reported to establish this. Abdullah ibn Thābit and others have narrated that Umar once came to the Prophet peace and blessings be upon him and said:

يا رسول الله إني مررت بأخ لي من قريظة فكتب لي جوامع من التوراة بالعربية، لنزداد به علماً إلى علمنا، أحب أن أعرضها عليك، فتغير وجه رسول الله صلى الله عليه وسلم، وغضب حتى احمرت عيناه، قال: فقلت لعمر مسخ الله عقلك! أما ترى ما بوجه رسول الله، صلى الله عليه وسلم؟ وقال أبو بكر ثكلتك الثواكل! ما ترى بوجه رسول الله صلى الله عليه وسلم؟!، وقالت الأنصار: يا معشر الأنصار السلاح السلاح، غضب نبيكم، صلى الله عليه وسلم، فجاءوا حتى أهدقوا بمنبر رسول الله، صلى الله عليه وسلم، فقال عمر: رضيت بالله رباً وبالإسلام ديناً وبمُحمَّد، صلى الله عليه وسلم، [رسولاً] نبياً، قال: فسري عنه، ثم قال: أمتهوكون فيها يا بن الخطاب، والذي نفسي بيده، إني أوتيت جوامع الكلم وخواتمه، واختصر لي الحديث اختصاراً، ولقد جنتكم بها ببضاء نقيّة، فلا تهوؤوا، ولا يغرنكم المتهوؤون! لا تسألوا أهل الكتاب عن شيء فإنهم لن يهدوكم وقد ضلوا، فإنكم إما أن تُصدقوا بباطل، أو تُكذبوا بحق، والذي نفسي بيده لو أصبح موسى فيكم حياً اليوم فاتبعتموه وتركتموني لضللتم

عن سواء السبيل ضلالاً بعيداً، والذي نفسي بيده لو أن موسى، صلى الله عليه وسلم، كان حياً ما وسعه إلا أن يتبعني، إني حظكم من النبيين، وأنتم حظي من الأمم، ثم نزل عن المنبر

O Messenger of Allah, I have passed by a fellow brother of mine from the people of Qurayza. He wrote short rich expressions for me from the Torah in Arabic, so that we can learn more knowledge to ours. I would like to show them to you. Thereupon, the Messenger's face changed and he became so angry that his eyes were red. He (the narrator) said I then said to 'Umar: 'may Allah distort your mind! Cannot you see what has occurred to the face of the Messenger of Allah?' and Abu Bakr said: 'May the bereft be bereaved of you! Can't you see what has occurred to the face of the Messenger of Allah? And the Al-Anṣār said: 'O people of the Anṣār, you must get ready with your weapons at once, for your Prophet is angry.' Thereupon, they came all over until they surrounded the pulpit of the Messenger of Allah peace and blessings be upon him. Then Umar said: 'I am pleased with Allah as My Lord, with Islam as my *Deen* and with Muḥammad peace and blessings be upon him (as Messenger and) Prophet.'

He (the narrator) said he then cheered up, and then he said: *O the son of al-Khaṭṭāb are you confused about it? By the one in whose hand is my life, I have been given pithy expressions and their seals, speech has been abbreviated for me and I have brought it to you pure and sound. Therefore, do not be confused, and do not be deceived by the confused! Do not ask people of the book about anything, for they will never guide you while they have gone astray. Thus, either you would believe in falsehood or belie a truth. By the one in whom my soul rests, if Moses peace be upon him was alive, he could not do anything but follow me. I am your share of the Prophets, and you are my share of the nations.'* Then he got down from the pulpit.

The authenticity of this long *ḥadith* is established.¹ Statements like *'Do not ask the people of the book about anything'* and *'Neither believe nor belie what the people of the book report to you,'* have been established from other transmissions on the authority of Ibn Mas'ud and other Companions. One of

¹ The Arabic edition references a separate appendix with the full discussion of the channels of reporting for this *ḥadith*. For the sake of brevity here, it is reported in *Musnad Aḥmad* and by al-Bayhaqy.

these versions was reported on the authority of Abu Namla al-Anṣārī, as collected in *Ṣaḥīḥ* Ibn Ḥibbān:

أخبرنا بن قتيبة قال حدثنا حرمة قال حدثنا بن وهب قال أخبرنا يونس عن بن شهاب أن نملة بن أبي نملة الأنصاري حدثه أن أبا نملة أخبره أنه بينما هو جالس عند رسول الله صلى الله عليه وسلم، جاء رجل من اليهود فقال هل تكلم هذه الجنازة؟ فقال رسول الله صلى الله عليه وسلم أعلم، فقال اليهودي أنا أشهد أنها تتكلم، فقال رسول الله صلى الله عليه وسلم: ما حدثكم أهل الكتاب فلا تصدقوهم ولا تكذبوهم وقولوا آمنا بالله وملأناكمته وكتبه ورسله: فإن كان حقاً لم تكذبوهم، وإن كان باطلاً لم تصدقوهم، وقال: قاتل الله اليهود، لقد أوتوا علماً

Ibn Qutayba reported to us he said Ḥarmala narrated to us he said Ibn Wahb narrated to us he said Yunus reported to us from Ibn Shihāb that Namla ibn Abi Namla al-Anṣārī narrated to him that his father Abu Namla narrated to him that when he was sitting with the Messenger of Allah peace and blessings be upon him, a Jew was also with him, a funeral passed by him. He asked – ‘Muḥammad, does this funeral speak?’ The Messenger of Allah peace and blessings upon him said: *Allah knows best.* The Jew said: ‘I bear witness it speaks.’ The Messenger of Allah Messenger of Allah peace and blessings upon him said: *Whatever the people of the book tell you, do not verify, nor falsify, but say: We believe in Allah and His Messenger. If it is false, do not confirm it and if it is right, do not falsify it.*²

Reports from the People of the Book

With a variance of wording, there is also that which al-Ḥākim records in *al-Mustadrak*:

أخبرناه أبو الفضل الفقيه حدثنا عثمان بن سعيد الدارمي أخبرنا عبد الله بن عبد الجبار بحمص حدثنا الحارث بن عبيدة حدثنا الزهري عن سالم عن أبيه عن عامر بن ربيعة قال: كنا مع رسول الله صلى الله عليه وسلم، فمر بجنازة فقال رجل من اليهود: يا مُحَمَّدُ تكلم هذه الجنازة؟ فسكت رسول الله صلى الله عليه وسلم فقال اليهودي: أنا أشهد أنها تكلم، فقال رسول الله صلى الله عليه وسلم: إذا حدثكم أهل الكتاب حديثاً فقولوا آمنا بالله وملأناكمته وكتبه ورسله

² *Ṣaḥīḥ* Ibn Ḥibbān [Vol. 4, no. 6257]. Of this, Shaykh Shu’ayb al-Arnā’uṭ said the *isnād* is strong. It is also reported quite widely, among notable collections are *Sunan* Abu Dāwūd [Vol. 3, no. 3644], *al-Bayhaqy Sunan al-Kubra*, [Vol. 2, no. 2071] and *Muṣṣanaḥ* ‘Abd al-Razzāq [Vol. 6, no. 10160]

Abu Faḍl al-Faqīhi he reported it to us Uthmān ibn Sa’eed al-Dārimi narrated to us Abdullah ibn ‘Abd al-Jabbār reported to us in Hims, al-Ḥārith ibn ‘Ubayda narrated to us al-Zuhri narrated to us from Sālim from his father from ‘Aāmir ibn Rabi’ah who said: We were once with the Messenger of Allah peace and blessings be upon him and then he passed by a funeral. Thereupon a Jew said – ‘O Muḥammad, can this funeral (i.e. the deceased) speak?’ The Messenger of Allah peace and blessings be upon him was silent. Then the Jew said: ‘I testify that it can speak.’ Thereupon the Messenger of Allah peace and blessings be upon him said: *When the people of the book convey any report to you, you should say - we believe in Allah, His Angels, His Books and His Messengers.*³

After narrating the *ḥadith*, al-Ḥākim said:

This *ḥadith* known from al-Ḥārith ibn ‘Ubayda al-Rahāwī from al-Zuhri, we wrote it also in the copy of Yunus from Yazeed from al-Zuhri: Abul’-Qāsim Abdullah ibn Mahdi narrated to us my uncle narrated to us a man narrated to us (whose name is Abul’-Qāsim ibn Mabru) Zayd ibn Yunus narrated to us from Yazeed from al-Zuhri, he said: Sālim said – verily Abdullah ibn Umar said: ‘When at the funeral of Rāfi’ ibn Khadeej occurred’ then he mentioned the rest of the *ḥadith*.

Despite this, I would say that al-Ḥārith ibn ‘Ubayda al-Rahāwī is not strong in this narration and is most probably fallen as a narrator. al-Ṭabarānī records an *isnād* for this in the *Musnad al-Shāmiyān*.⁴ As for the wording: ‘*Report from the Children of Israel and there is no harm*’ it is often been misunderstood. It has been reported on the authority of many Companions with the best chain of transmissions. One of them is what has been reported

³ al-Ḥākim *Mustadrak* [Vol. 3, no. 5538]

⁴ al-Ṭabarānī *Musnad al-Shāmiyān* [Vol. 3, no. 1784]. The *isnād* is: Uthmān ibn Khālid ibn Umar al-Salafī narrated to us ‘Abd al-Jabbār al-Khabā’irī narrated to us al-Ḥārith ibn ‘Ubayda narrated to us Baqīyah ibn al-Waleed narrated to us from Zubaydī from al-Zuhri from Sālim ibn Umar from ‘Aāmir ibn Rabi’ah, narrating similarly. The *isnād* contained within *Ma’rifat al-Ṣaḥāba* of Abu Nu’aym al-Aṣbahānī [Vol. 4, no. 4591] is: ‘Abu Ishāq ibn Ḥamza narrated to us Aḥmad ibn Khālid Umar al-Salafī narrated to us his father narrated to us Ḥārith ibn ‘Ubayda narrated to me al-Zubaydī narrated to us from al-Zuhri from Sālim ibn Abdullah from his father from ‘Aāmir ibn Rabi’ah.’

on the authority of Abdullah ibn ‘Amr ibn al-‘Aās in the following authentic channel as recorded by Imām Aḥmad in his *Musnad*:

حدثنا أبو المغيرة حدثنا الأوزاعي حدثني حسان بن عطية قال أقبل أبو كبشة السلولي ونحن في المسجد فقام إليه مكحول وابن أبي زكريا وأبو بحرية فقال سمعت عبد الله بن عمرو يقول سمعت رسول الله صلى الله عليه وسلم يقول: بلغوا عني ولو آية، وحدثوا عن بني إسرائيل ولا حرج، ومن كذب على متعمدا فليتبوأ مقعده من النار

Abul-Mughira al-Awzā’i narrated to us Ḥassān ibn ‘Aṭiya narrated to me he said Abu Kabsha al-Saluli came while we were in the *masjid*, Makḥul stood before him; Ibn Abi Zakariyā and Abu Baḥriya (were there) so he said: I heard Abdullah ibn ‘Amr saying – I heard the Messenger of Allah peace and blessings be upon him saying: *Convey from me to the people even if it were a verse and tell others the stories of the Children of Israel, for it is not sinful to do so. And whoever tells a lie about me intentionally, will surely take his place in the fire.*⁵

Without question the *ḥadith* is authentic and has a consecutive succession of trustworthy narrators concurring upon its report, from one another. Imām Aḥmad records it also from other authentic channels, as have many other collectors amongst them al-Bukhārī, Ibn Ḥibbān, and al-Ṭabarānī. We also have similar which is reported from Abu Sa’eed al-Khudri as it appears in *Sunan al-Kubra*:

أنبا الفضل بن العباس بن إبراهيم قال حدثنا عفان قال حدثنا همام قال حدثنا زيد بن أسلم عن عطاء بن يسار عن أبي سعيد الخدري عن النبي صلى الله عليه وسلم، قال حدثوا عن بني إسرائيل ولا حرج، وحدثوا عني ولا تكذبوا عليّ

al-Faḍl ibn al-‘Abbās ibn Ibrāhīm reports, he said ‘Affān narrated to us he said Hammām narrated to us he said Zayd ibn Aslam narrated to us from ‘Aṭā ibn Yassār from Abu Sa’eed al-Khudri from the Prophet peace and blessings be upon him who said: *Report about the Children of Israel and there is no objection, and report from me but never attribute lies to me.*⁶

⁵ *Musnad Aḥmad* [Vol. 6, no. 7006]

⁶ al-Bayhaqy *Sunan al-Kubra* [Vol. 3, no. 5848]

The *ḥadith* is very authentic, it is also found in the *Musnad* of Imām Aḥmad from other authentic channels. Abu Dāwud has collected similarly in his *Sunan* with a good *isnād* according to the conditions of Imām Muslim, reported on the authority of Abu Hurayrah:

حدثنا أبو بكر بن أبي شيبة حدثنا علي بن مسهر عن محمد بن عمرو عن أبي سلمة عن أبي هريرة قال قال رسول الله صلى الله عليه وسلم حدثوا عن بني إسرائيل ولا حرج

Abu Bakr ibn Abi Shayba narrated to us Ali ibn Mushir narrated to us from Muḥammad ibn Umar from Abu Salama from Abu Hurayrah, he said the Messenger of Allah peace and blessings be upon him said: *Relate traditions from the Children of Israel, there is no harm.*⁷

Lastly, there is another channel of narration which is reported from a different Companion, this time, Jābir ibn Abdullah - as it appears in the *Musnad* of ‘Abd ibn Ḥumayd:

حدثني بن أبي شيبة حدثنا وكيع عن الربيع بن سعد عن بن سابط عن جابر قال قال رسول الله، صلى الله عليه وسلم: تحدثوا عن بني إسرائيل فإنه كانت فيهم الأعاجيب، ثم أنشأ يحدث قال خرجت طائفة منهم فأتوا مقبرة من مقابرهم فقالوا: لو صلينا ركعتين فدعونا الله عز وجل يخرج لنا بعض الأموات يخبرنا عن الموت، قال: ففعلوا، فبينما هم كذلك إذ طلع رجل رأسه من قبر، بين عينيه أثر السجود فقال: يا هؤلاء ما أردتم إلي؟! فوالله لقد مت منذ مائة سنة فما سكنت عني حرارة الموت حتى كان الآن فادعوا الله أن يعيدني كما كنت

Ibn Abi Shayba narrated to me Waki’ narrated to us from al-Rabi’ah ibn Sa’eed from Ibn Sābiṭ from Jābir, he said the Messenger of Allah, peace and blessings be upon him said: *Narrate about the Children of Israel for there used to be wonders about them.* Thereafter he narrated the following: *A group of them went out to one of their cemeteries. Then they said - Let us perform two rak’ahs and then supplicate to Allah the Mighty and Sublime to resurrect some of the dead to tell us about death. They did so, and during their performance, the head of a man rose out of a grave. Between his eyes there was the trace of prostration. Thereupon he said - O you people, what do you want from me? For by Allah, I have died a hundred years ago and the heat (pain)*

⁷ *Sunan* Abu Dāwud [Vol. 3, no. 3662]; similar is also cited in the *Musnad* Ḥumaydi [Vol. 2, no. 1165], as well as in other *Musnad* and *Muṣṣanaḥ* collections.

*of death has not cooled down upon me until now. So please supplicate Allah to return me to my previous state.*⁸

Concerning the *isnād*, it is *Ṣaḥīḥ*, its narrators are the men of *Ṣaḥīḥ* except for what has been said in relation to al-Rabi’ah ibn Sa’eed al-Jufi; the majority view is that he is not, however he is *thiqa* for those who have known him, such as Yahya ibn Ma’een, Ya’qub ibn Sufyān and Ibn Ḥibbān. Abu Ḥātim said: ‘*Lā bā’sa bihi* – there is nothing untoward with him.’ As for al-Dhahabi and al-Ḥāfiz saying he *majhul* this is detailed elsewhere.⁹

Analytical confusion

Much confusion surrounds the issue of how these *aḥādith* are to be understood as well as that about the precise status of the reports which come from the Children of Israel. Many of the previous Imām’s provided very useful comments on this subject, which we will consider in detail, but there are blunders too. Writing in *Fath al-Bāri* al-Ḥāfiz said:

It is clear that the undesirability of this deed is one of disapproval not prohibition. It is better in this matter to differentiate between the person who has not become well-grounded in knowledge and firm in belief, as it is not allowed for such person to study anything of the knowledge of the people of the book. On the other hand, the one who possesses firm knowledge and belief is allowed, especially in terms of responding to opposing ideas. This has been proved by the reference of previous and modern Imām’s to the Torah in order to make the Jews believe in Muḥammad peace and blessings be upon him. If they had not been convinced of the permissibility to study previous creeds and laws they would not have done so.

⁸ *Musnad* ‘Abd ibn Ḥumayd [Vol. 1, no. 1156]. The same also appears in the *Muṣṣanaf* of Abu Bakr ibn Abi Shayba [Vol. 5, no. 26486], albeit abridged without the mention of this additional story. The longer version is also found in *Fawā’id Tamām* [Vol. 1, pp. 217/218] from an alternate channel to that of Ibn Abi Shayba, and also at the end of *Tārikh Baghdād* [Vol. 4, p. 129] from different channels to both of these.

⁹ See: *Tārikh ibn Ma’een Riwaya al-Douri* [Vol. 1, p. 72] and *al-Marifa wal-Tārikh* [Vol. 3, p. 274]. Reference is made in the original text to a separate appendix which discusses the matter in further detail. For the comment of Abu Ḥātim, see *al-Jarḥ wa ‘Ta’deel* [Vol. 3, p. 423].

As for the inferred prohibition, due to the signs of anger appearing and the allegation that if it had not been a sin, he would not have been angry about it, we say that he could be angry about an undesirable deed or by committing the less worthier, if it has occurred from someone for whom it was not proper to do so. For example, he peace and blessings be upon him was angry with Mu’ādh for making the dawn prayer longer by reading. He could also be angry with someone who failed to understand clear matters, just like the one who asked about finding stray camels. This has been mentioned in the book of knowledge, concerning anger in exhortation and also in the book of good manners, concerning what is permissible while being angry.¹⁰

Additionally in another place and concerning the same subject he writes:

The Prophet's statement ‘*and report about the Children of Israel and there is no objection*’, i.e. there is no trouble at all for you in reporting from them, for he peace and blessings be upon him had previously prevented Muslims from learning from them and studying their books. After that the matter became more flexible, as if the prohibition occurred before the stability of Islamic Judgments and religious principles for fear of the occurrence of affliction. Therefore, when this danger disappeared permission was given concerning listening to stories from Jews and Christians, so that Muslims may learn lessons. It has also been said that the meaning of the Arabic word ‘*Lā Ḥaraj*’ is that there should not be any trace of anger in your heart due to what you hear from them as wonders, for that used to happen to them many times.

Another interpretation is that there is no objection in not reporting from them, for the first statement ‘*Report*’ is an imperative, which entails an obligation. Therefore, he meant to convey something other than an obligation and that it is the permission by saying that there is no objection; i.e. there is no objection in leaving reporting from them. Another interpretation of the statement is that the narrator of such reports should not feel annoyed due to what is often found in their stories as offensive words, like their statement – ‘*Go you and your Lord*

¹⁰ al-Ḥāfiz *Fath al-Bāri* [Vol. 13, p. 326].

and fight you two,’ and their statement – ‘*Make a god for us.*’ Another interpretation of the statement is that it concerns the Children of Israel Israel itself and the (personage) of Ya’qub peace be upon him. Therefore what is meant is report from them, concerning their story with their brother Yusuf, but this is the most unlikely view.

According to Mālik, it is permissible to report from them what is known to be good. As for what is known to be false, it is impermissible to be reported. Another interpretation is, ‘Report from them concerning what came in the Qur’ān and the authentic *ḥadith*.’ A third one is the permission to report from them in any way of reporting whether through continuance or discontinuance of narrators, due to the impossibility of continuity in reporting from them. On the contrary, the basis of reporting Islamic Judgments is continuity, but that is possible due to recentness of time.

According to al-Shāfi’i, it is a well-known fact that the Prophet peace and blessings be upon him did not allow telling lies. Therefore the statement means: report from the Children of Israel concerning what you do not know to be falsehood. As for what you permit, you have no objection to report it of them. This is equivalent to his statement, ‘*When people of the book report to you, do not believe or belie them.*’ However, no permission or prohibition has been stated about reporting what is absolutely true.¹¹

May Allah have mercy upon al-Ḥāfiz. He has mixed this matter up. The judgment of the three different issues has been confusing for him and for many other scholars, but he made them one matter. In actuality, the matter can be explained with greater clarity, as will follow.

Asking ‘The People of the Book’

Asking the people of the book or other disbelievers about something concerning ‘religion’ in order to seek knowledge and guidance (note Umar’s statement – ‘So that we can learn more knowledge to ours.’) this is an absolutely prohibited matter, without any doubt. He peace and blessings be upon him became so angry that his eyes became red due to Umar’s act, until

¹¹ Ibid. [Vol. 7, pp. 414/415].

Abdullah ibn Thābit said: ‘May Allah distort your mind! Can’t you see what has occurred to the face of the Messenger of Allah?’ The Anṣār even summoned each other to prepare their weapons. This cannot happen except if it is considered a great matter. The Prophet peace and blessings be upon him justified asking the people of the book or disbelievers about matters in their religion in several things different in rank according to their importance.

The reason is that whatever the people of the book possess as books and stories have been distorted. Many words have been changed or even added. Therefore truth and falsehood are mixed in them to the extent that it is impossible to differentiate assuredly between its parts at all. These books are even incomplete due to the deliberate deletion or loss of some sections. So what they have in their hands is dark and impure. It cannot be considered as an authority or source of evidence. On the other hand, that which Muḥammad peace and blessings be upon him brought is forever luminous, pure, conclusive and adequate. One should take note of his statement – ‘*I have been given pithy expressions and their seals, speech has been abbreviated for me and I have brought it to you pure and sound.*’ Allah the Exalted has guaranteed its preservation, in the sense that it will remain pure until the Day of Judgement. It is definitely an authority, which can be used as evidence. Therefore how can an intelligent person who is seeking the truth leave the pure source and turn to what is mixed with impurity? It is true that the person who has not found except the impure, can be excused if he drinks from it being obliged to do so, like the state of the believers in the previous books before Muḥammad’s mission peace and blessings be upon him, but never after his mission.

Secondly, we have previously mentioned that the previous divine books have been distorted by people of the book and parts of them have been lost. Transgression and hypocrisy spread among their rabbis, clergymen and monks who displaced true right words from their places and they ‘interpreted’ their books in astounding ways. They also make the books into paper sheets, disclosing some of it and concealing much. They kept it in dead languages, which the majority of people do not know, in order to monopolise its interpretation and have a dominant influence over the common people with its knowledge; it was used to flatter rulers and devour people’s property with falsehood. Due to all these reasons, they are far astray from the true guidance. Whoever is misguided, it will not be wise to expect from him to guide others

and it is impermissible to trust his legal opinions or even consider his suggestions. As for the knowledge of ‘religion’ it must be learned only from guided righteous people and not from those who have gone astray, as the Prophet (peace be upon him) explained ‘*For they will never guide you while they have gone astray.*’

Thirdly, there is another serious point to be considered: if we assume that the previous books were preserved word-by-word and sound-by-sound, like the preservation of the Qur’ān, and if we assume that those who knew them like clergymen, rabbis and monks were trustworthy and did not displace words from its correct places and did not conceal anything that Allah has revealed, and that they convey about Allah, without fearing anyone but Allah, that they are really the heirs of the Prophets, they would not still be considered as a source of guidance any longer. This is because *all* of these books have been abrogated from beginning to end, whether they were big or small. If Musa peace be upon him, who is one of the greatest of the previous Messengers of Allah and the one with much legislation, was revived today, he would be obliged to follow Prophet Muḥammad peace and blessings be upon him unreservedly. Musa peace be upon him is the Messenger of Allah. He was an infallible Prophet who is not allowed to disobey Allah in any of his previous revealed orders and prohibitions. It is known by necessity that all that which is revealed to him is abrogated the moment Muḥammad peace and blessings be upon him was sent. If the people followed Musa and left Muḥammad, they would have been misguided; they will be disbelievers. The moment these verses were revealed, all previous creeds were abrogated:

اقْرَأْ بِاسْمِ رَبِّكَ الَّذِي خَلَقَ ، خَلَقَ الْإِنْسَانَ مِنْ عَلَقٍ

*Read! In the name of your Lord who created: He created mankind from a clinging form.*¹²

قُلْ يَا أَيُّهَا النَّاسُ إِنِّي رَسُولُ اللَّهِ إِلَيْكُمْ جَمِيعًا

*Say: People, I am the Messenger of Allah to you all.*¹³

¹² Qur’an 96: 1/2

¹³ Qur’ān 7: 158

Things thus revert back to the state when Allah said to Adam and his wife – ‘*Do not go near this tree.*’¹⁴ Things went back to there state even before this order came to them. Neither were there any prescribed prayers, charity or fasting. There were no orders till this one came, this means that the law of previous nations and Prophets is not our law, as we have previously proven with supporting evidences. Some scholars contradicted this saying but this is a grievous error on their behalf. We ask Allah to forgive them and we seek refuge with Allah from such erring.

When al-Ḥāfiz Ibn Ḥajar considered the strong anger of the Prophet peace and blessings be upon him as just dislike (of a matter), it was strange. It is one of the faults of scholars. We seek refuge with Allah from such evils. What is stranger than that is Ibn Ḥajar’s comparison drawn from the incident of the Prophet’s reproaching Mu’ādh for prolonging the prayer. It would have been better if he considered prolonging the prayer by the Imām as a prohibited act - which is the truth - instead of making the case an easy one. Verily, when the Prophet peace and blessings be upon him was angry with the man asking about the lost camels, the preferable opinion is that he felt in the man’s question an attempt to make lawful talking or riding them. It is very clear in the wordings of the *ḥadith*. He was not very angry because of the question, but he was angry with the evil intentions of the man. It was an evil forbidden intention whose owner deserved dispraise, reproach and scolding.

The People of the book reporting about ‘religion’

The second issue is different from the first case and is its opposite. It is related to the people of the Book telling us about some matters of ‘religion’ like those of the unseen, of the Day of Judgement and of the attributes and names of Allah. It is when they tell us voluntarily without our asking them, for asking them about such matters is prohibited as we said before. In such cases proper rationality dictates to reject any statement that is not supported by requisite proof. Even if these statements were based on their books and deduced from their texts, nothing could be done but examine them carefully because their texts were not certain and their truthfulness were not proven from the outset. This is what we call the ‘reasonable cognitive approach’. Judging any matter

¹⁴ Qur’ān 2: 35

rightfully while it has not been proven yet is to abstain from accepting or rejecting it. Then Islamic law came imposing this same sound ‘cognitive’ approach on all Muslims and became the binding law. Otherwise this would mean believing in falsehood, which is prohibited. It can lead to foolishness, disbelief, going astray and even belying what is true. The same approach is applied with those who have already disobeyed Allah and His Messenger and dared to ask them. The sin of asking them at the beginning, does not justify sinning again, by belying or believing them without proof. This is our proper response to their telling us about any matters of ‘religion’, whether they said it voluntarily or were answering one of our questions.

Narrating stories about the people of the book

Lastly we turn the issue of narrating about the people of the book or relating stories from their own long history, be that of wars, afflictions, their rise and fall; the good and evil rulers which presided over them as well the stark contrast between their truthful and perverted scholars. All of this is to draw wisdom, learn lessons, study the history of nations and society, particularly as it relates to the people of Israel as they were at one juncture, carriers of a divine message. From this vantage point it is worthwhile to study their books so as to filter contradictions and to clarify ambiguities. It would be even better if this examination was supported by studying their monuments and ruins and what other historians have said about them and all the other methodologies of research. It is known for sure – as we have said before - that it is not permissible to accept their narrations and take them for granted. They must be subjected to careful scrutiny. If anything is proven from this, it would be permissible to discuss it, so as to learn important lesson about the pitfalls which they fell into.

There have been some inaccurate interpretations over the ages in relation to the aforementioned *aḥādīth*. When great scholarly figures like Ibn Ḥajar err, it can cause the matter to become confused in many other minds. We cannot now find a Muslim who asks the people of the book, seeking guidance but everyone now seeks it from the books of philosophers. Those are worse than the people of the book and they are the farthest from guidance and inspiration. People think that such books are but the product of reasonable research, neglecting the Qur’ān and *Sunnah*. These books are not better than

those of the people of Israel because they are full of imaginary, hypothetical assertions and fantastical points. Believing in stories relayed from the people of the book and taking them for granted has become widespread, particularly in the field of *Tafsir*. Some people even tried to interpret the verses of the Qur’ān in a way that agrees with these fables. Praise be to Allah for that is a great injustice done to Islam.

On the other hand, objective research aimed at refuting their books substantively decreased across Islamic history. Imām Abu Muḥammad Ali Ibn Ḥazm from Andalusia arguably made the first research in the history of humanity, dealing with the books of Christians and Jews with the groundbreaking work of *al-Fiṣal bayn al-Milal wal-Niḥal*.¹⁵ Unfortunately the majority of Muslim scholarship did not follow his lead but neglected the subject altogether, except that is for Imām Ibn Taymiyya who provided a useful contribution with the work entitled *al-Jawāb al-Ṣaḥīḥ li man Baddala Deen al-Masiḥ*.¹⁶ Other efforts in this field regrettably fall too far short of even these works. There is neither might nor power, save in Allah.

What has been mentioned thus far is established as truth with evidences. It is not correct to argue that it is a new matter that has been introduced without legal precedent, namely *bidāh*. Notable personalities have held the same position. In *al-Jāmi al-Ṣaḥīḥ al-Mukhtaṣar* Imām al-Bukhārī recorded the following on the authority of Ibn ‘Abbās:

حدثنا علي بن عبد الله حدثنا حاتم بن وردان حدثنا أيوب عن عكرمة عن ابن عباس رضي الله عنهما قال كيف تسألون أهل الكتاب عن كتبهم وعندكم كتاب الله أقرب الكتب عهدا بالله تقرؤونه محضا لم يثبت؟

Ali ibn Abdullah narrated to us Ḥātim ibn Wardān narrated to us Ayub narrated to us from ‘Ikrimah from Ibn ‘Abbās may Allah be pleased with him, he said: How can you ask the people of the scriptures about their books while you have the book of Allah which is the most recent of the books revealed by Allah and you read it in its pure undistorted form?¹⁷

¹⁵ The work is usually rendered (loosely) into English as: ‘*The Separator Concerning Religions, Heresies and Sects.*’

¹⁶ Again, the work is usually rendered, however loosely, into English as - ‘*The correct response to those who have corrupted the religion of the Messiah.*’

¹⁷ *Ṣaḥīḥ al-Bukhārī* [Vol. 6, no. 7084].

Al-Bukhārī also recorded another tradition again from Ibn ‘Abbās with slightly different wording and reported via ‘Ubaydallah ibn Abdullah:

حدثنا موسى بن إسماعيل حدثنا إبراهيم أخبرنا بن شهاب عن عبيد الله بن عبد الله أن بن عباس قال كيف تسألون أهل الكتاب عن شيء وكتابكم الذي أنزل على رسول الله أحدث وفي رواية: أحدث الأخبار بالله؛ تقرؤونه محضاً لم يُشَبَّ؛ وقد حدثكم أن أهل الكتاب بدلوا كتاب الله وغيره وكتبوا بأيديهم الكتاب وقالوا هو من عند الله ليشتروا به ثمناً قليلاً؛ ألا ينهاكم ما جاءكم من العلم عن مسألتهم؟! لا والله ما رأينا منهم رجلاً يسألكم عن الذي أنزل عليكم!

Musa ibn Ismā’il narrated to us Ibrāhīm narrated to us Ibn Shihāb reported to us from ‘Ubaydallah that Ibn ‘Abbās said: Why do you ask the people of the scripture about anything while your book (Qur’ān) which has been revealed to Allah's Messenger peace and blessings be upon him is newer and the latest? You read it pure, undistorted and unchanged, and Allah has told you that the people of the scripture changed their scripture and distorted it and wrote the scripture with their own hands and said, 'It is from Allah,' to sell it for a little gain. Does not the knowledge which has come to you prevent you from asking them about anything? No, by Allah, we have never seen any man from them asking you regarding what has been revealed to you!¹⁸

Imām al-Bukhārī has similar reports also collected within his *Ṣaḥīḥ* on this, others have reported similarly.¹⁹ Overall these traditions provide some additional clarity to this matter of querying matters of religion with the people of the book.

¹⁸ Ibid. [no. 6929].

¹⁹ *Ṣaḥīḥ* al-Bukhārī [Vol. 2, no. 2539 and Vol. 6, no. 7085]; al-Ḥākim *al-Mustadrak* [Vol. 2, no. 3041] and al-Bayhaqy, *Sunan al-Kubra* [Vol. 8, no. 16904].

5. A prohibition concerning excessive questioning

There is a misconception which is held in many quarters, that during the time of revelation the Prophet peace and blessings be upon him was being inundated with questions regarding matters of law by his Companions. Rather the opposite is the case. It is noteworthy to consider this point in substantive detail as it forms a prelude to a wider and far-reaching principle of law that is very often overlooked. Allah and His Messenger peace and blessings be upon him stressed the prohibition of asking too many questions. There is no difference here between the question posed by the man – ‘Who is my father?’ and the question of the foolish Bedouin about *Hajj*, asking whether it should be performed annually. This matter has been established by way of absolute proof as demonstrated by the following verse and accompanying *aḥādith* which we will examine in detail in this chapter. Allah unequivocally stated:

يَا أَيُّهَا الَّذِينَ آمَنُوا لَا تَسْأَلُوا عَنْ أَشْيَاءٍ إِنْ تُبَدَّ لَكُمْ تَسْأَلُوهُمْ وَإِنْ تُسْأَلُوا عَنْهَا حِينَ يُنَزَّلُ الْقُرْآنُ تُبَدَّ لَكُمْ عَفَا اللَّهُ عَنْهَا وَاللَّهُ غَفُورٌ خَلِيمٌ

*O you who believe, do not ask about matters which, if made known to you, might make things difficult for you - if you ask about them while the Qur’an is being revealed, they will be made known to you - for Allah has kept silent about them: Allah is most forgiving and forbearing.*¹

To further clarify the status of this verse, it is important to consider the various points raised by the classical scholars of *Tafsir*.

¹ *Qur’ān* 5: 101

Commentary from the Exegetes

Writing in his *Tafsir* Imām al-Ṭabari said:

The statement regarding the interpretation of where He the Almighty says: *O you who believe, do not ask about matters which, if made known to you, might make things difficult for you.* It is mentioned that this verse was revealed to the Messenger of Allah peace and blessings be upon him as a result of the questions that were being asked to him. Sometimes it was to test him, on other occasions to try and mock him; one person said to him – ‘Who is my father?’ Another said when his camel was lost, ‘Where is my camel?’ He the Exalted in His remembrance said to them not to ask about such matters, like that of Abdullah ibn Ḥudhayfah asking about his father; *if made known to you, might make things difficult for you.* That was why Allah addressed people commanding them not to ask about such matters. Allah is saying to them do not ask about things which if made plain to you, may cause you trouble. Many Companions of the Messenger of Allah peace and blessings be upon him interpreted the verse as such.²

Following on from this, Imām al-Ṭabari mentions ten narratives, most of which are authentic bearing the above meaning. Thereafter he states: ‘Others said that this verse was revealed to the Messenger of Allah peace and blessings be upon him because of a question he was asked about *Ḥajj*.’³ Yet again he mentions several narratives which further establish this point, most of which are authentic. He then provides two narratives in relation to those who have said as much to support the following view: ‘It was revealed because they asked the Messenger of Allah peace and blessings be upon him about *al-Baḥira*, *al-Sā’iba*, *al-Waṣeela* and *al-Ḥāmi*.’⁴ Thereafter he says:

The most correct opinion amongst the (various) viewpoints concerning this subject is that of those who said that it was revealed because of the many questioners who used to ask the Messenger of Allah peace and

² *Tafsir* al-Ṭabari [Vol. 9, p. 13]

³ Ibid. pp. 13/18

⁴ See: *Qur’ān* 5: 103. The terms mentioned relate to types of animals that were dedicated to the idols in pagan Arabia. An in depth analysis of this, together with the nature of *Shirk* (polytheism) in pre-Islamic Arabia will be covered in Volume 2 of this series.

blessings be upon him about various matters, like the one (asked by) ibn Ḥudhayfah about his father; the one about *Ḥajj* and the like. All these narrations are reported by Companions, successors and the majority of people of interpretation. The saying of Mujāhid from of Ibn ‘Abbās is not far from the truth, but what was reported by the Companions and successors disagreed with it and that is only why we do not prefer it. Still, this question about *al-Baḥira*, *al-Sā’iba*, *al-Waṣeela* and *al-Ḥāmi* could be among the questions the Prophet peace and blessings be upon him was asked and Allah hated; like for example, when He hated the question about *Ḥajj*; is it annually or just once and as He hated the question about the father of Abdullah ibn Ḥudhayfah.

That was why the verse was revealed, placing a prohibition on people posing such questions. Each one of these questioners was a part of the reasoning for the revelation of this verse, including what concerned him and what concerned others. I think that this saying is the most valid one about the verse, as the sources of these different accounts mentioned are authentic, and it is more proper to know the most correct from these existing accounts than just to be existent while they are not correct.⁵

What Imām al-Ṭabari outlines must be perused and pondered over. Ibn Kathir argued along the same lines in his *Tafsir*, although he does provide some additional comments that are noteworthy:

Contained within this noble verse, Allah the Almighty says forbade the believers to ask the Prophet peace and blessings be upon him too many questions about matters not yet revealed. As He the Almighty said: *O you who believe, do not ask about matters which, if made known to you, might make things difficult for you - if you ask about them while the Qur’an is being revealed, they will be made known to you.* That is to say, if you ask about details after its revelation, it will be revealed to you, but do not ask about the matter before its revelation, as it may become forbidden just because of the question.

That is why it was cited in the *Ṣaḥīḥ*: ‘*The most sinful person among the Muslims is the one who asked about something which had not been*

⁵ *Tafsir* al-Ṭabari [Vol. 9, p. 23]

prohibited, but was prohibited because of his asking.' When the Messenger of Allah peace and blessings be upon him was asked about the case of a man who found another man with his wife: if this man (i.e., the husband) talks, he will talk with a great matter, and if he keeps silent he will keep silent with the same. After that, Allah revealed the ruling concerning the matter of curses.

This is also why it is proven in the *Ṣaḥīḥayn* (sic. al-Bukhārī and Muslim) from the *ḥadīth* of al-Mughira ibn Shu'bah that the Messenger of Allah peace and blessings be upon him used to forbid *Qeel* and *Qāl* (idle useless talk or talking too much about others), asking too many questions and wasting one's wealth extravagantly.

That was why Anas ibn Mālīk said: 'We were forbidden to ask anything from the Messenger of Allah, peace and blessings be upon him, thus it pleased us when an intelligent person from the dwellers of the desert should come and ask him while we listen to it.' al-Ḥāfiẓ Abu Ya'la al-Mawṣily said in his *Musnad*: Abu Kareeb reported to us Ishāq ibn Sulaymān reported to us from Abi Sinān from Abi Ishāq from al-Barā' ibn Aā'zib, he said: 'A whole year would pass while I want to ask the Messenger of Allah peace and blessings be upon him about a matter. But I was afraid from him and we used to wish that some Bedouin will come and ask him.'

al-Bazzār said: Muḥammad ibn al-Muthanna reported to us Ibn Fuḍeel reported to us from 'Aṭā ibn al-Sā'ib from Sa'eed ibn Jubayr from Ibn 'Abbās, he said: 'I did not see a nation better than the Companions of Muḥammad, peace and blessings be upon him; they only asked him about twelve issues, all of which are in the *Qur'ān*: *They ask you about the intoxicants and games of chance* [2: 119]; *They ask you concerning the Sacred Month and fighting in it* [2: 217], *They ask you about the orphans* [2: 220], and others like them.

He the Almighty said: *Do you wish to question your Messenger something similar to what was demanded of Moses? Whoever exchanges faith for disbelief has strayed far from the right path* [2: 108]. 'Do you' here means that they really wanted to ask him, but it is a reproving interrogation for all: believers and *mushrikeen* (polytheists). Muḥammad peace and blessings be upon him is the Messenger of Allah to all. Allah also says: *The People of the Book demand that you [Prophet] make a book physically come down to them from heaven, but they demanded even more than that of Moses when*

they said, 'Show us God face to face,' and were struck by the thunderbolt for their presumption [4: 153]

Mujāhid said: 'Or do you want to ask your Messenger as Moses was asked before Allah showed them openly?' He said: 'Quraysh asked Muḥammad peace and blessings be upon him to turn the mountain of *Ṣāfa* into gold. He said: 'Yes, and it would be to you like the table was to the Children of Israel.' They refused and retracted. al-Suddi and Qatādah said the same occasion. What is meant here is that Allah blamed whoever asked the Messenger peace and blessings be upon him about any matter while meaning obstinacy and suggestion. Exactly like the Children of Israel, when they asked Musa out of their obstinacy and disbelief. Allah says: *Do you desire to question your Messenger as was questioned Musa in the past?* Whoever prefers disbelief and abandons faith has left the right path and is heading toward ignorance and deception. This was the case of those who refused to believe, follow and obey prophets, preferring instead to disobey, accuse their prophets of lying, and ask them questions without real need out of their obstinacy and disbelief.⁶

From what has been presented thus far by the *mufasireen*, the Imām's al-Ṭabari and Ibn Kathir, we can reasonably conclude that the meaning of the verse is general and concerned all questions. In this regard there is essentially no difference here between the obdurate question 'who is my father' or 'where is my father – in paradise or hell' and the question from the ignorant Bedouin who asked whether *Hajj* had to be performed annually.

The authentic ahādīth

In order to complete the definite evidence concerning the meaning of the verse (5: 101) and to explain the subject from all its aspects, we will mention the most important and authentic accounts regarding this matter, together with their channels of transmission. To begin, the notable *ḥadīth* which is narrated

⁶ *Tafsir* Ibn Kathir [Vol. 3, pp. 203/207]. The original Arabic has the entire quote running across the four-full pages from the *Tafsir*. For the translation though, we have curtailed and abbreviated the quote significantly. In particular, the various *ahādīth* that are mentioned by Ibn Kathir are omitted, because these will be outlined in full within the next section of the chapter.

by Abu Hurayrah may Allah be pleased with him as recorded by Imām Muslim in his *Ṣaḥīḥ*:

حدثني حرملة بن يحيى التجيبي أخبرنا ابن وهب أخبرني يونس عن ابن شهاب أخبرني أبو سلمة بن عبد الرحمن وسعيد بن المسيب قالا كان أبو هريرة يحدث أنه سمع رسول الله صلى الله عليه وسلم يقول ما نهيتكم عنه فاجتنبوه وما أمرتكم به فافعلوا منه ما استطعتم فإنما أهلك الذين من قبلكم كثرة مسائلهم واختلافهم على أنبيائهم

Ḥarmala ibn Yaḥya at-Tajeebe narrated to me Ibn Wahb reported to us Yunus reported to me from Ibn Shihāb, Abu Salamah ibn ‘Abdar-Raḥman and Sa’eed ibn Musayib reported to me, they said Abu Hurayrah narrated that he heard the Messenger of Allah peace and blessings be upon him saying: *Avoid that which I forbid you to do and do that which I command you to do to the best of your ability. Verily the people before you went to their doom because they had put too many questions to their Prophets and then disagreed with their teachings.*⁷

The narration is well known and can be found in almost all the major collections of *ḥadīth* by way of authentic chains of transmission. In *al-Jāmi al-Ṣaḥīḥ al-Mukhtaṣar* Imām al-Bukhārī recorded the following:

حدثنا إسماعيل حدثني مالك عن أبي الزناد عن الأعرج عن أبي هريرة عن النبي صلى الله عليه وسلم قال دعوني ما تركتكم إنما هلك من كان قبلكم بسؤالهم واختلافهم على أنبيائهم فإذا نهيتكم عن شيء فاجتنبوه وإذا أمرتكم بأمر فأتوا منه ما استطعتم

Ismā’il narrated to us Mālik narrated to me from Abi Zinād from al-‘Araj from Abu Hurayrah from the Prophet peace and blessings be upon him, he said: *Leave me as I leave you - for the people who were before you were ruined because of their questions and their differences over their Prophets. So, if I forbid you to do something, then keep away from it. And if I order you to do something, then do of it as much as you can.*⁸

Without doubt this *isnād* is *Ṣaḥīḥ*, clear as the brightest sun; it is considered the ‘golden chain’ from Abu Hurayrah as is commonly said, although we

⁷ *Ṣaḥīḥ* Muslim [Vol. 2, no. 1395]

⁸ *Ṣaḥīḥ* al-Bukhārī [Vol. 6, no. 6858]

believe that Ibn Shihāb al-Zuhri from Abu Salamah ibn ‘Abdar-Raḥman and Sa’eed ibn Musayib from Abu Hurayrah is just as authentic and indeed stronger. Again, Imām Muslim has another version of this albeit with the additional contextual backdrop:

وحدثني زهير بن حرب حدثنا يزيد بن هارون أخبرنا الربيع بن مسلم القرشي عن محمد بن زياد عن أبي هريرة قال خطبنا رسول الله صلى الله عليه وسلم فقال أيها الناس قد فرض الله عليكم الحج فحجوا فقال رجل أكل عام يا رسول الله فسكت حتى قالها ثلاثا فقال رسول الله صلى الله عليه وسلم لو قلت نعم لوجبت ولما استطعتم ثم قال ذروني ما تركتكم فإنما هلك من كان قبلكم بكثرة سؤالهم واختلافهم على أنبيائهم فإذا أمرتكم بشيء فأتوا منه ما استطعتم وإذا نهيتكم عن شيء فدعوه

And Zuhayr ibn Ḥarb narrated to me Yazeed ibn Ḥārūn narrated to us al-Rabi’ah ibn Muslim al-Qurashi reported to us from Muḥammad ibn Ziyād from Abu Hurayrah, he said: The Messenger of Allah, peace and blessings be upon him addressed us and said: *O people, Allah has made Hajj obligatory for you; so perform Hajj.* Thereupon a person said: ‘Messenger of Allah, (is it to be performed) every year?’ He (the Prophet) kept quiet, and he (the questioner) asked three-times. Thereupon, the Messenger of Allah, peace and blessings be upon him said: *If I were to say yes, it would become and you would not be able to do it.* Then he said: *Leave me with what I have left to you, for those who were before you were destroyed because of excessive questioning, and their opposition to their Prophets. So when I command you to do anything, do it as much as it lies in your power to do so and when I forbid you to do anything, then abandon it.*⁹

There is a good useful addition which is mentioned in *Ṣaḥīḥ* Ibn Ḥibbān with a strong chain of transmission accompanied with a useful comment made by Imām Abu Ḥātim Ibn Ḥibbān:

أخبرنا عمر بن محمد الهمداني قال حدثنا عبد الملك بن ثعيب الليث بن سعد قال حدثني أبي عن جدي عن محمد بن عجلان حدثني زيد بن أسلم عن أبي صالح عن أبي هريرة عن رسول الله صلى الله عليه وسلم وذاد فيه وما أخبرتكم أنه من عند الله فهو الذي لا شك فيه

Umar ibn Muḥammad al-Hamdāni reported to us he said ‘Abd al-Malik ibn Shu’ayb al-Layth ibn Sa’d narrated to us he said my father narrated

⁹ Op cit. [Vol. 2, no. 1337]

to me from my grandfather from Muḥammad ibn ‘Ajlan: Zayd ibn Aslam narrated to me from Abu Ṣāliḥ from Abu Hurayrah from the Messenger of Allah peace and blessings be upon him, with the addition in it: *Whatever matter I informed you of, undoubtedly it is from Allah.*¹⁰

After citation of the *ḥadith*, Imām Abu Ḥātim Ibn Ḥibbān may Allah be pleased with him said:

In this report there is a clear exposition that the matters prohibited are from al-Mustaḥab, peace and blessings be upon him; all of it definite and obligatory until evidence proves it is not. (What) he command, peace and blessings be upon him is contingent upon the capacity and ability to carry them out, until evidence establishes otherwise. Allah, Mighty and Sublime said: *So accept whatever the Messenger gives you, and abstain from whatever he forbids you* [59: 7]. Then *al-‘Imān* is denied for those who don’t make the Messenger their judge in matters pertaining to dispute, and they do not find within themselves discomfort regarding his decisions. They should submit to Allah and His Messenger, peace and blessings be upon him, leaving aside opposing viewpoints or comparisons. He says: *By your Lord, they will not be true believers until they let you decide between them in all matters of dispute, and find no resistance in their souls to your decisions, accepting them totally* [4: 65].

Abu Hurayrah, may Allah be pleased with him was not the only one who narrated that meaning, as Sa’d ibn Abi Waqqās may Allah be pleased with him narrated similarly upon the same subject but from a different view. In *al-Jāmi al-Ṣaḥīḥ al-Mukhtaṣar*, Imām al-Bukhārī recorded the following:

حدثنا عبد الله بن يزيد المقرئ حدثنا سعيد حدثني عقيل عن ابن شهاب عن عامر بن سعد بن أبي وقاص عن أبيه أن النبي صلى الله عليه وسلم قال إن أعظم المسلمين جرماً من سأل عن شيء لم يحرم فحرم من أجل مسألته

Abdullah ibn Yazeed al-Muqra’ narrated to us Sa’eed narrated to us ‘Uqayl narrated to me from Ibn Shihāb from ‘Aāmir ibn Sa’d ibn Abi

¹⁰ *Ṣaḥīḥ* Ibn Ḥibbān [Vol. 4, no. 2103]. The addition appears after Ibn Ḥibbān cites the narration containing the wording as reported by al-Bukhārī. Shaykh Shu’ayb al-Arnā’uṭ said: ‘The *isnād* is strong, according to the conditions set by Imām Muslim.’

Waqqās from his father that the Prophet peace and blessings be upon him said: *The most sinful person among the Muslims is the one who asked about something which had not been prohibited, but was prohibited because of his asking.*¹¹

Imām Muslim also records this narration with a slight variant wording:

وحدثنا أبو بكر بن أبي شيبة وابن أبي عمر قالوا حدثنا سفيان بن عيينة عن الزهري وحدثنا محمد بن عباد حدثنا سفيان قال أحفظه كما أحفظ بسم الله الرحمن الرحيم الزهري عن عامر بن سعد عن أبيه قال قال رسول الله صلى الله عليه وسلم أعظم المسلمين في المسلمين جرماً من سأل عن أمر لم يحرم فحرم على الناس من أجل مسألته وحدثني حرمة بن يحيى أخبرنا ابن وهب أخبرني يونس ح وحدثنا عبد بن حميد أخبرنا عبد الرزاق أخبرنا معمر كلاهما عن الزهري بهذا الإسناد وزاد في حديث معمر رجل سأل عن شيء ونقر عنه وقال في حديث يونس عامر بن سعد أنه سمع سعدا

And Abu Bakr ibn Abi Shayba and Ibn Abi Umar narrated it to us, they said Sufyān ibn ‘Uyayna narrated to us from al-Zuhri and Muḥammad ibn ‘Abād narrated to us Sufyān narrated to us he said: I saved and memorised in the name of Allah *al-Raḥman, al-Raḥeem* al-Zuhri from ‘Aāmir ibn Sa’d from his father he said the Messenger of Allah, peace and blessings be upon him said: *The greatest sinner of the Muslims amongst Muslims is one who asked about a certain thing which had not been prohibited and it was prohibited because of his asking about it.*¹²

Further to the above, the next *ḥadith* which is also authentic and is recorded on the authority of al-Nawwās ibn Samān provides even greater clarity upon the issue at hand; as collected by Muslim:

حدثني هارون بن سعيد الأيلي حدثنا عبد الله بن وهب حدثني معاوية يعني ابن صالح عن عبد الرحمن بن جبيرة بن نفير عن أبيه عن نواس بن سمعان قال أقمت مع رسول الله صلى الله عليه وسلم بالمدينة سنة ما يمنعني من الهجرة إلا المسألة كان أحدنا إذا هاجر لم يسأل رسول الله صلى الله عليه وسلم عن شيء قال فسألته عن البر والإثم فقال رسول الله صلى الله عليه وسلم البر حسن الخلق والإثم ما حاك في نفسك وكرهت أن يطلع عليه الناس

¹¹ *Ṣaḥīḥ* al-Bukhārī [Vol. 6, no. 6859]

¹² *Ṣaḥīḥ* Muslim [Vol. 2, no. 2358]

Hārūn ibn Sa'eed al-Ayli narrated to me Abdullah ibn Wahb narrated to us Mu'ā'wiya, that is to say - Ibn Ṣāliḥ narrated to us from 'Abdar-Raḥman ibn Jubayr ibn Nufayr from his father from Nawwās ibn Samān he said: I stayed with the Messenger of Allah, peace and blessings be upon him for one year. What obstructed me to migrate was (nothing) but (persistent) questions I had for him. It was a common observation that when anyone of us migrated he ceased to ask (questions) from the Messenger of Allah, peace and blessings be upon him. So I asked him about virtue and vice. The Messenger of Allah, peace and blessings be upon him said: *Virtue is a kind disposition and vice is what rankles in your mind and that you disapprove of its being known to the people.*¹³

Moreover, there is also the *ḥadīth* that has been narrated upon the authority of Abu Thalabah al-Khushani. The *ḥadīth* is *Ṣaḥīḥ* and relates to the same subject; this has been cited by Ibn Ḥazm, who also judged it as *Ṣaḥīḥ* in his seminal work *al-Iḥkām fī Uṣul al-Aḥkām* (Judgement on the Principles of Law):

حدثنا أحمد بن قاسم حدثنا أبي قاسم بن محمد بن قاسم حدثنا جدي قاسم بن أصبغ أخبرنا بكر بن حماد أخبرنا حفص بن غياث عن داود بن أبي هند عن مكحول عن أبي ثعلبة الخشني قال قال رسول الله صلى الله عليه وسلم إن الله فرض فرائض فلا تضيعوها، وحد حدوداً فلا تعتدوها، ونهى عن أشياء فلا تنتهكوها، وسكت عن أشياء، من غير نسيان لها: رحمة لكم، فلا تبحثوا عنها

Aḥmad ibn Qāsim narrated to us Abu Qāsim ibn Muḥammad ibn Qāsim narrated to us my grandfather Qāsim ibn Aṣbagh narrated to us Bakr ibn Ḥammād reported to us Ḥafṣ ibn Ghayāth reported to us from Dāwud ibn Abi Hind from Makḥul from Abu Thalabah al-Khushani, he said the Messenger of Allah peace and blessings be upon him said: *Verily Allah has laid down certain duties which you should not neglect, and has put certain limits which you should not transgress, and has*

¹³ Ibid. [no. 2553]

*kept silent about other matters out of forgiveness for you and not out of forgetfulness, so do not seek to investigate them.*¹⁴

Imām al-Bayhaqy recorded similarly in his *Sunan al-Kubra*, via Ḥafṣ ibn Ghayāth albeit in *mawquf* (halted) form which is admittedly weak.¹⁵ The correct reporting for this narration should not be halted at Ḥafṣ ibn Ghayāth; that is mistaken, it is *marfu'* (raised and attributed to the Prophet). al-Ḥākim also collected this narration and authenticated it in *al-Mustadrak* with a slight variance of wording:

حدثني علي بن عيسى حدثنا محمد بن عمرو الحرشي حدثنا القعنبى حدثنا علي بن مسهر عن داود بن أبي هند عن مكحول عن أبي ثعلبة الخشني رضي الله عنه قال قال رسول الله، صلى الله عليه وسلم إن الله حد حدوداً فلا تعتدوها، وفرض لكم فرائض فلا تضيعوها، وحرم أشياء فلا تنتهكوها، وترك أشياء، من غير نسيان من ربكم ولكن رحمة منه لكم، فاقبلوها ولا تبحثوا فيها

Ali ibn Esa narrated to me Muḥammad ibn 'Amr al-Ḥarshi narrated to us al-Qa'nabi narrated to us Ali ibn Mushir narrated to us from Dāwud ibn Abi Hind from Makḥul from Abu Thalabah al-Khushani may Allah be pleased with him, he said the Messenger of Allah, peace and blessings be upon him said: *Verily, Allah has set some limits, so do not trespass them; He has ordained some obligations, so do not neglect them; He has sanctified some things so do not violate them; and He has refrained from mentioning other matters not (out of) forgetfulness, but as a way of being merciful to you, so accept (that) and do not look for them!*¹⁶

¹⁴ Ibn Ḥazm, (1983) *al-Iḥkām fī Uṣul al-Aḥkām* (Dār al-Afāq al-Jadidah: Beirut) [Vol. 8, p. 24]. An open access version is available via the Internet Archive: <<https://archive.org/details/waqeoah/eaoh0/>> The abridgment of the *Iḥkām* is the shorter work entitled: *al-Nubdhā al-Kāfiyah fī-Uṣul al-Aḥkām al-Deen*, which we have translated and published in English as: 'The Sufficient Summary on the Rules Derived from the Sources of Deen.' The shorter treatise seeks to encapsulate the central arguments which are outlined in the *Iḥkām*.

¹⁵ al-Bayhaqy, *Sunan al-Kubra*, [Vol. 10, no. 19509]

¹⁶ al-Ḥākim *al-Mustadrak* [Vol. 4, no. 7114]. Among the various additional references provided, notable are: *Sunan al-Dāraquṭni* [Vol. 4, no. 42], *marfu'* via the channel of Ishāq al-Azraq; al-Ṭabarāni *Mu'jam al-Kabir* [Vol. 22, no. 589], Ibn 'Asākir *Mu'jam* [Vol. 2, no. 1232], again *marfu'* via Yazeed ibn Harun. It is also cited by Ibn Ḥazm in *al-Iḥkām*.

Without doubt it is *marfu'* as mentioned by Imām al-Dāraqūṭni. As for those who would argue that Imām Makḥul did not hear from Abu Thalabah al-Khushani, we categorically assert that this is invalid. We have conducted an in-depth study of this matter on the alleged *marāseel* (pl. *mursal*) of Makḥul, which proves beyond reasonable doubt that Makḥul was a great successor, may Allah be pleased with him. The next narration to be taken into account is that which is found in al-Ḥākim's *al-Mustadrak*, recorded on the authority of a different Companion, Abu Dardā' may Allah be pleased with him.

أخبرنا أبو جعفر محمد بن علي الشيباني حدثنا أحمد بن حازم الغفاري حدثنا أبو نعيم حدثنا عاصم بن رجاء بن حيوة عن أبيه عن أبي الدرداء رضي الله عنه رفع الحديث قال ما أحل الله في كتابه فهو حلال، وما حرم فهو حرام، وما سكت عنه فهو عافية، فاقبلوا من الله العافية: فإن الله لم يكن نسياً، ثم تلا هذه الآية: وَمَا نَنْتَظِرُ إِلَّا بِأَمْرِ رَبِّكَ لَهُ مَا بَيْنَ أَيْدِينَا وَمَا خَلْفَنَا وَمَا بَيْنَ ذَلِكَ وَمَا كَانَ رَبُّكَ نَسِيًّا

Abu Ja'far Muḥammad ibn Ali al-Shaybāni reported to us Aḥmad ibn Ḥāzim al-Ghafāri narrated to us Abu Nu'aym narrated to us 'Aāṣim ibn Rajā ibn Ḥaywa narrated to us from his father from Abu Dardā' who raised the *ḥadith*, may Allah be pleased with him, he said: *Whatever was considered lawful by Allah in His Book is lawful and whatever was considered unlawful is unlawful and He has refrained from mentioning other matters so it is forgiveness from Him. Accept from Allah His Forgiveness, as Allah never forgets anything*, then he recounted the verse [Gabriel said], *'We only descend [with revelation] at your Lord's command -everything before us, everything behind us, everything in between, all belongs to Him - your Lord is never forgetful.'*¹⁷

Following on, al-Ḥākim said that the narration is authentic, but they (sic. al-Bukhārī and Muslim) did not record it; al-Dhahabi concurred with him in this. Others have recorded this too in their respective collections.¹⁸ In *Faṭḥ al-Bārī*, al-Ḥāfiz (Ibn Ḥajar) attributed it to al-Bazzār and al-Ḥākim with different wording and some additions. He said 'al-Bazzār recorded the following *ḥadith* with a valid chain of transmission and al-Ḥākim regarded it

¹⁷ al-Ḥākim *al-Mustadrak* [Vol. 2, no. 3419]. The verse quoted at the end is from 19: 64.

¹⁸ *Sunan* al-Dāraqūṭni, *Sunan* [Vol. 2, no. 12], al-Bayhaqy, *Sunan al-Kubra* [Vol. 10, no. 19508] and al-Ṭabarāni, *Musnad al-Shāmiyayn* [Vol. 3, no. 2102].

as authentic.' I would submit that it is *ḥasan* (good) and reasonable on the basis of 'Aāṣim ibn Rajā ibn Ḥaywa; hence the narration is *ḥasan Ṣaḥīḥ* when coupled together with the follow-on narratives and attestations.

A similar version of this *ḥadith* was narrated by 'Umayr ibn Qatādah al-Laythi through a reasonable chain of transmission which doesn't have serious objections raised about it; it is recorded in al-Ḥākim's *al-Mustadrak*:

Yaḥya ibn Uthmān ibn Ṣāliḥ narrated to us 'Amr ibn Khālid al-Ḥirāni narrated to us Muḥammad ibn Salama al-Ḥirāni narrated to us from Bakr ibn Khanees from Abi Badr from Abdullah ibn 'Ubayd ibn 'Umayr from his father from his grandfather, he said: There was a question inside me and I was sad that I had not asked the Messenger of Allah peace and blessings be upon him about it nor heard anyone asking him about it. I was waiting for the proper time for it. Then I entered upon him once while he was performing ablution. I found him in the two moods I loved to find him; I found him unoccupied and at peace. So I said – 'O Messenger of Allah! Can I have your permission to ask you?' He said: *Yes, ask about whatever concerns you*. I said: 'O Messenger of Allah! What is *al-Imān*?' He said: *Leniency and patience*.

I said: 'Who has the best *Imān* among believers?' He said: *Whoever has the best manners*. I said: 'Who is the best Muslim among Muslims?' He said: *The one who avoids harming Muslims with his tongue and hands*. I said: 'What (kind) of fighting in the cause of Allah is the best?' He bowed his head and kept silent for a long time, such that I feared I troubled him and wished that I did not ask him, as I heard him saying the day before - *The most sinful person among the Muslims is the one who asked about something which had not been prohibited, but was prohibited to people because of his asking*. So I said: I seek refuge with Allah from the anger of Allah and the anger of His Messenger peace and blessings be upon him. He raised his head and said: *What did you say (ask)?* I said – 'What is the best among *Jihād*?' He said: *The best Jihād is (to speak) a word of justice to an oppressive ruler.*¹⁹

¹⁹ al-Ḥākim *al-Mustadrak* [Vol. 3, no. 6628].

Hats off to ‘Umayr ibn Qatādah for these great and productive questions! How fortunate was he to have enjoyed hearing the perfect statements directly from the Messenger of Allah directly without recourse to an intermediary. Similarly, this also has reached us from Salmān al-Fārsi as recorded by Imām al-Tirmidhi in his *Sunan*:

حدثنا إسماعيل بن موسى الفزاري حدثنا سيف بن هارون البرجمي عن سليمان التيمي عن أبي عثمان عن سلمان قال سئل رسول الله صلى الله عليه وسلم عن السمن والجبن والفراء فقال الحلال ما أحل الله في كتابه، والحرام ما حرم الله في كتابه، وما سكت عنه فهو مما عفا عنه

*Ismā'il ibn Musa al-Fuzārī narrated to us Sayf ibn Hārūn al-Burjūmī narrated to us from Sulaymān al-Taymī from Abu 'Uthmān from Salmān, he said: The Messenger of Allah peace and blessings be upon him was asked about fat, cheese, and furs, so he said: The lawful is what Allah made lawful in His Book, the unlawful is what Allah made unlawful in his Book, and what He was silent about; then it is among that for which He has pardoned.*²⁰

After citing this narration al-Tirmidhi comments as follows:

There is something on this topic from al-Mughira, and this *ḥadith* is *ghareeb* (strange), we do not know of it being *marfu'* except from this route. Sufyān and others reported it from *Sulaymān al-Taymī* from Abu *Uthmān* from Salmān as his own saying. It is as if the *mawqūf* (halted) narration is more correct. I asked al-Bukhārī about this *ḥadith* and he said: 'I do not think it is preserved. Sufyān reported it from *Sulaymān al-Taymī* from Abu *Uthmān* from Salmān in *mawqūf* form.' al-Bukhārī (also) said: '*Sayf ibn Hārūn* is *muqārib* (average) in *ḥadith*; as for Sayf ibn Muḥammad from 'Aāsim, his narrations are left.'

The *ḥadith* is cited in other collections.²¹ Here I would argue that the narrator *Sayf ibn Hārūn* is *thiqa aā'bid*. Mistaking him for being *daef* (weak) is a quite grave. The Imām and established authority, Sufyān ibn 'Uyayna raised his *ḥadith*. These *ḥadith* have come through several different ways, such as via

²⁰ *Sunan* al-Tirmidhi [Vol. 4, no. 1726]

²¹ Among the references provided are: *Sunan* Ibn Mājah [Vol. 2, no. 3367], al-Ḥākim *al-Mustadrak* [Vol. 4, no. 7115] and al-Bayhaqy, *Sunan al-Kubra* [Vol. 10, no. 19507].

Abu Abdullah al-Jadaly from Salmān marfu' and the *ḥadith* in this form are proven as being *Ṣaḥīḥ marfu'* without any doubt.

Next, there is that which has been reported on the authority of Ibn 'Abbās:

أخبرني علي بن محمد بن دحيم الشيباني بالكوفة حدثنا أحمد بن حازم الغفاري حدثنا أبو نعيم حدثنا مُحَمَّد بن شريك المكي عن عمرو بن دينار عن أبي الشعثاء عن ابن عباس رضي الله عنهما قال كان أهل الجاهلية يأكلون أشياء ويتركون أشياء تقدرا فبعث الله تعالى نبيه، صلى الله عليه وسلم، وأنزل كتابه وأحل حلاله، وحرم حرامه: فما أحل فهو حلال، وما حرم فهو حرام، وما سكت عنه فهو عفو وتلا هذه الآية: ﴿قُلْ لَا أَجِدُ فِي مَا أُوحِيَ إِلَيَّ مُحَرَّمًا عَلَى طَاعِمٍ يَطْعَمُهُ إِلَّا أَنْ يَكُونَ مَيْتَةً أَوْ دَمًا مَسْفُوحًا أَوْ لَحْمَ خِنْزِيرٍ فَإِنَّهُ رِجْسٌ أَوْ فِسْقًا أُهْلًا لِغَيْرِ اللَّهِ بِهِ فَمَنْ اضْطُرَّ غَيْرَ بَاغٍ وَلَا عَادٍ فَإِنَّ رَبَّكَ غَفُورٌ رَحِيمٌ﴾

Ali ibn Muḥammad ibn Duḥaym al-Shaybānī reported to me in Kufa, Aḥmad ibn Ḥāzim al-Ghafārī narrated to us Abu Nu'aym narrated to us Muḥammad ibn Shareek al-Makki narrated to us from 'Amr ibn Dinār from Abu al-Sha'shā from Ibn 'Abbās, may Allah be pleased with him, he said: 'The people of pre-Islamic times used to eat some things and leave others, considering them unclean. Then Allah the Almighty sent His Prophet peace and blessings be upon him and sent down His Book, marking some things lawful and others unlawful. So what He made lawful is lawful, what he made unlawful is unlawful, and what He was silent upon, is deemed to be pardoned.' And he recited the verse: [Prophet], say, 'In all that has been revealed to me, I find nothing forbidden for people to eat, except for carrion, flowing blood, pig's meat - it is loathsome - or a sinful offering over which any name other than God's has been invoked.' But if someone is forced by hunger, rather than desire or excess, then Allah is most forgiving and most merciful.²²

I would argue there that this narration is well established and *Ṣaḥīḥ*. Moreover, this also comes to us via a major successor, namely 'Ubayd ibn 'Umayr. 'Abd al-Razzāq has recorded this in his *Muṣṣanaf* with a *Ṣaḥīḥ isnād*:

²² al-Ḥākim *al-Mustadrak* [Vol. 4, no. 7113]. The verse quoted at the end is from 6: 145. After mentioning this al-Ḥākim said that it was *Ṣaḥīḥ* but not recorded by al-Bukhārī and Muslim. A further reference for this is also in *Sunan* Abu Dāwūd [Vol. 3, no. 3800]

عبد الرزاق عن ابن عيينة عن عمرو بن دينار أنه سمع عبيد بن عمير يقول أحل الله حلاله
وحرم حرامه فما أحل فهو حلال وما حرم فهو حرام وما سكت عنه فهو عفو

‘Abd al-Razzāq from Ibn ‘Uyayna from ‘Amr ibn Dinār that he heard
‘Ubayd ibn ‘Umayr saying: ‘Allah has outlined the *ḥalāl* and the
ḥaram, other than the *ḥalāl* and the *ḥaram* that upon which there is
silence, it is regarded as pardoned.²³

Anger at questions posed

The last of the Prophets sent to mankind, Muḥammad peace and blessings be upon him) used to become very angry with whoever asked him such questions, as is demonstrated in the *ḥadith* which is narrated upon the authority of Abu Qatādah al-Anṣārī may Allah be pleased him as collected by Imām Muslim:

حدثنا محمد بن المثنى ومحمد بن بشار واللفظ لابن المثنى قال حدثنا محمد بن جعفر حدثنا
شعبة عن غيلان بن جرير سمع عبد الله بن معبد الزماني عن أبي قتادة الأنصاري رضي الله
عنه أن رسول الله صلى الله عليه وسلم سئل عن صومه قال فغضب رسول الله صلى الله عليه
وسلم فقال عمر رضي الله عنه رضينا بالله ربا وبالإسلام ديننا وبمحمد رسولا وببيعتنا بيعة
قال فسئل عن صيام الدهر فقال لا صام ولا أفطر أو ما صام وما أفطر قال فسئل عن صوم
يومين وإفطار يوم قال ومن يطيق ذلك قال وسئل عن صوم يوم وإفطار يومين قال ليت أن
الله قوانا لذلك قال وسئل عن صوم يوم وإفطار يوم قال ذاك صوم أخي داود عليه السلام
قال وسئل عن صوم يوم الاثنين قال ذاك يوم ولدت فيه ويوم بعثت أو أنزل علي فيه قال فقال
صوم ثلاثة من كل شهر ورمضان إلى رمضان صوم الدهر قال وسئل عن صوم يوم عرفة
فقال يكفر السنة الماضية والباقية قال وسئل عن صوم يوم عاشوراء فقال يكفر السنة
الماضية

Muḥammad ibn al-Muthanna and Muḥammad ibn Bashār narrated to us, and this is the wording of Ibn al-Muthanna, they said Muḥammad ibn Ja’far narrated to us Shu’ba narrated to us from Ghaylān ibn Jarir

²³ *Muṣṣanaḥ* ‘Abd al-Razzāq [Vol. 4, no. 8767]. Two additional references are provided for in the Arabic edition, both with a *Ṣaḥīḥ* *isnād* from the *Tafsīr* of Imām al-Ṭabarī [Vol. 9, pp. 24/25]. The first is ‘Hannād narrated to us he said Ibn Abi Zāida narrated to us Ibn Jurayj reported to us from ‘Aṭā he said ‘Ubayd ibn ‘Umayr says: Verily Allah the Almighty (has clarified) the *ḥalāl* and the *ḥarām*; as for the *ḥalāl* he has legislated as such; and refrain from what is *ḥaram*. And He has left some things as neither *ḥalāl* and *ḥarām* - that has been pardoned from the mercy of Allah. (Then he recited): *O you who believe, do not ask about matters which, if made known to you, might make things difficult for you* [5: 101].’ The second, it via a slightly different channel, but with the same wording: Ibn Muthanna narrated to us he said al-Ḍaḥḥāk narrated to us he said Ibn Jurayj reported to us he said ‘Aṭā reported to me from ‘Ubayd ibn ‘Umayr that he was saying.

who heard Abdullah ibn Ma’bad al-Zamāni from Abu Qatādah al-Anṣārī, may Allah be pleased with him, that the Messenger of Allah peace and blessings be upon him was asked about his fasting. The Messenger of Allah peace and blessings be upon him felt annoyed by that. Thereupon Umar, may Allah be pleased with him said: We are pleased with Allah as the Lord, with Islam as our *Deen*, with Muḥammad as the Messenger and with our pledge as a (sacred) commitment!

He was then asked about perpetual fasting, whereupon he said that he neither fasted nor did he break it, or he did not fast and he did not break it. He was then asked about fasting for two days and breaking one day. He (the Prophet) said: *And who has strength enough to do it?* He was asked about fasting for a day and breaking for two days, whereupon he said: *May Allah bestow upon us strength to do it.* He was then asked about fasting for a day and breaking on the other, whereupon he said: *That is the fasting of my brother Dāwud (David) peace be upon him.* He was then asked about fasting on Monday, whereupon he said: *It was the day on which I was born, on which I was commissioned with Prophethood or revelation was sent to me,* (and he further) said: *Three days' fasting every month and of the whole of Ramadan every year is a perpetual fast.* He was asked about fasting on the day of ‘Arafah whereupon he said: *It expiates the sins of the preceding year and the coming year.* He was asked about fasting on the day of ‘Ashura whereupon he said: *It expiates the sins of the preceding year.*²⁴

Imam Muslim records this through various channels of transmission in his *Ṣaḥīḥ*. It is also recorded widely by many authorities of *ḥadith* in their respective collections. The *isnād* for this *ḥadith* are authentic and well established. Al-Bayhaqy has this in *Sunan al-Kubra* via an *isnād* which doesn’t contain Shu’ba, and the text begins with a Bedouin asking the Prophet peace and blessings be upon him about his fasting; the remainder of the *ḥadith* is the same as that cited by Muslim.²⁵ Regarding this, al-Bayhaqy said:

²⁴ *Ṣaḥīḥ* Muslim [Vol. 2, no. 1162]

²⁵ The original Arabic has the *ḥadith* cited in full. Given that the *matn* is similar to that from Muslim in the earlier citation, this is abbreviated here. The *isnād* that al-Bayhaqy provides is long but doesn’t have Shu’ba in the channel; *Sunan al-Kubra* [Vol. 4, no. 8182]. A follow on reference to the *Sunan* of Abu Dāwud [Vol. 2, no. 2425] is also provided.

‘Muslim reported it in his *Ṣaḥīḥ* from Yaḥya ibn Yaḥya and other than him, from Ḥammād ibn Zayd and from other channels from Mahdi ibn Maymun.’ Ibn Ḥibbān records this narration in his *Ṣaḥīḥ* with the following *isnād*: Abu Ya’la reported to us Khalf ibn Hishām al-Bazzār narrated to us Ḥammād ibn Zayd narrated to us from Ghaylān ibn Jarir from Abdullah ibn Ma’bad from Abu Qatādah al-Anṣārī in a long narrative.’ After recording this, Ibn Ḥibbān adds an insightful comment:

Abu Ḥātim said: The Prophet peace and blessings be upon him was not angry because of this question asking about the fast (per se) but he peace and blessings be upon him was angry because the person asked him – ‘O Messenger of Allah! *How do you fast?*’ The Prophet peace be and blessings upon him hated this question about his own way of fasting because he feared that if he tells the questioner he will not bare such kind of fasting or he feared for the questioner and all of his *Ummah* that if he tells them it may be imposed upon them and they will fail to perform it.²⁶

Regarding this, Shaykh Shu’ayb al-Arnā’uṭ said: ‘It has a good chain of transmission according to the conditions of Muslim.’ al-Ḥāfiz Abu Ya’la al-Mawṣily mentioned in his *Musnad* the following with a reasonable *isnād*, which was also cited by Ibn Kathir in his *Tafsir*:

أخبرنا أبو كريب أخبرنا إسحاق بن سليمان عن أبي سنان عن أبي إسحاق عن البراء ابن عازب قال: إن كان ليأتي علي السنة أريد أن أسأل رسول الله صلى الله عليه وسلم، عن الشيء فأتعيب منه، وإن كنا لنتمنى الأعراب

Abu Kareeb reported to us Ishāq ibn Sulaymān reported to us from Abi Sinān from Abu Ishāq from al-Barā’ ibn Aā’zib he said: ‘A whole year would pass while I wanted to ask the Messenger of Allah peace and blessings be upon him about a matter. But I was afraid from him and we used to wish that some Bedouin will come and ask him.’

There is a further addition that is recorded in *Iḥtāf al-Khayra* via the same *isnād* with the wording from al-Barā’ ‘A whole year would pass and I wanted to ask the Messenger of Allah, peace and blessings be upon him about

²⁶ *Ṣaḥīḥ* Ibn Ḥibbān [Vol. 5, p. 418]

something; we wished the Bedouins would come and ask.’²⁷ In his *Sunan* Abu Dāwud records:

حدثنا قتيبة قال حدثنا الليث عن جعفر بن ربيعة عن بكر بن سواد عن مسلم بن مخشي عن ابن الفراسي أن الفراسي قال لرسول الله، صلى الله عليه وسلم أسأل يا رسول الله؟ قال: لا، وإن كنت سائلاً، لا بد، فاسأل الصالحين

Qutayba narrated to us he said al-Layth narrated to us from Ja’far ibn Rabi’ah from Bakr ibn Sawāda from Muslim ibn Makhshi from Ibn al-Firāsi that al-Firāsi said to the Messenger of Allah, peace and blessings be upon him: May I ask, Messenger of Allah? He replied: *No, but if there is no escape from it, ask al-Ṣāliḥeen (the righteous)*.²⁸

In *Mu’jam al-Kabir*, al-Ṭabarāni has this narrating as follows:

حدثنا مَطْلِبُ بْنُ شُعَيْبٍ الْأَزْدِيُّ حَدَّثَنَا عَبْدُ اللَّهِ بْنُ صَالِحٍ حَدَّثَنِي اللَّيْثُ عَنْ جَعْفَرِ بْنِ رَبِيعَةَ عَنْ بَكْرِ بْنِ سَوَادَةَ، عَنْ مُسْلِمِ بْنِ مَخْشِيٍّ، عَنْ ابْنِ الْفَرَّاسِيِّ، أَنَّ أَبَاهُ الْفَرَّاسِيَّ، أَتَى النَّبِيَّ صَلَّى اللَّهُ عَلَيْهِ وَسَلَّمَ فَقَالَ يَا رَسُولَ اللَّهِ، أَسْأَلُ؟ قَالَ: لَا، وَإِنْ كُنْتَ لَا بُدَّ سَائِلًا، فَسَلِ الصَّالِحِينَ

Muṭṭalib ibn Shu’ayb al-Azdi narrated to us Abdullah ibn Ṣāliḥ narrated to us al-Layth narrated to me from Ja’far ibn Rabi’ah from Bakr ibn Sawāda from Muslim ibn Makhshi from Ibn al-Firāsi that his father al-Firāsi said: O Messenger of Allah, peace and blessings be upon him, can I ask? He replied: *No, but if there is no escape from it, ask the righteous*.²⁹

²⁷ *Iḥtāf al-Khayra* [Vol. 1, p. 239]

²⁸ *Sunan* Abu Dāwud [Vol. 2, no. 1646]. Imām al-Nasā’i has this in both his *Sunan* and *Sunan al-Kubra* [Vol. 5, no. 2587; Vol. 2, no. 2368] with the only difference in terms of narration being ‘Qutayba reported to us’ instead of ‘Qutayba narrated to us’ as above. Imām Abdullah ibn Aḥmad ibn Ḥanbal has this narration albeit with slight variation regarding the channel of transmission and how it was reported [Vol. 4, no. 18965].

²⁹ al-Ṭabarani *Mu’jam al-Kabir* [Vol. 1, no. 1004]. The same is also in *Taḥḍeeb al-Kāmil* with the addition in transmission being clarification of Muslim ibn Makhshi as being Muslim ibn Makhshi al-Mudalja, Abu Mu’āwiya al-Maṣri from the channel of al-Ṭabarāni. Al-Bayhaqi has this in *Sunan al-Kubra* from an alternate way [Vol. 4, no. 7667] – ‘And Abu Ṭāhir al-Faqihi reported to us Ali ibn Ibrāhīm ibn Mu’āwiya al-Nisāburi reports, Muḥammad ibn Muslim ibn Wāra narrated to us Muḥammad ibn Musa ibn ‘Ayn narrated to me he said: I found in the book of my father from ‘Amr ibn al-Ḥārith from Bakr from Muslim ibn Makhshi that al-Firāsi’s father told him about it.’

al-Ḥāfiẓ Ibn Ḥajar summarised most of the accounts mentioned about this subject in *Fath al-Bāri*. The pertinent ahadith mentioned therein, have already been cited above. In addition to that, he commented as follows:

The chapter of the disapproval of asking too many questions, interfering in what is not our concern and the saying of Allah – ‘*O you who believe! Do not ask questions about things which if declared to you may trouble you*’. As if he mentioned this verse to be evidence that establishes the disapproval, which indicates that he approved some of what was mentioned in explaining this verse. We had mentioned the difference in opinion concerning the occasions of its revelation within the *Tafsir* of *Surah al-Mā’ida*. Ibn al-Muneeb felt that it is about asking too many questions both in the past and at the present. And the saying of al-Bukhārī showed his approval and the *ḥadith*’s which he mentioned in the chapter, supported his view.

While a group among the jurists including the judge - Abu Bakr ibn al-‘Araby denied it. He said that some ignorant people believed that this verse prohibited asking about matters concerned with disasters till it really happened, while it is not; the verse cleared that what is prohibited is asking questions that may cause hardship and difficulty to the Muslims while questions about disasters are not like that. The matter is exactly as he said, because this verse suggests that it is concerned with the time of revelation. Included in the *ḥadith* of Sa’d which he mentioned at the beginning of *al-Muṣṣanaḥ* in the chapter of whoever asks about something which had not been prohibited, but was prohibited to people because of his asking - approved that.³⁰

The *aḥādith* that are mentioned in this chapter are all proven, definite containing no doubts. By combining them with the verse (5: 101) and with the narrations that have been reported via Ibn ‘Abbās and others in explaining this verse, clarity can be brought to the subject. The primary point is that Allah and His Messenger peace and blessings be upon him severely prohibited asking too many questions; arguing and disagreeing with the Prophet peace and blessings be upon him; indulging in too many details, hair-splitting and

³⁰ Ibn Ḥajar, *Fath al-Bāri* [Vol. 13, pp. 326/327]. The citation is abbreviated to avoid a repetition of the *aḥādith* which have already been mentioned.

dialectics. Even asking about matters that had not yet been raised or addressed by the revelation was also covered by this, notwithstanding the type of matters which people did ask the Prophet peace and blessings be upon him, as noted earlier on. All of this has been demonstrated beyond any doubt by definite evidence, which has the effect of reaching certitude. For anyone to deny this would be clear *kufṛ*. Thus, it is well established as a basic rule that other secondary issues can be built upon. All praise is to Allah for protecting the *Dhikr* – the Qur’ān and *Sunnah*.

Were there no questions?

One issue though remains, namely how do we interpret the narrations which we find in the reliable books of *ḥadith*, such as in al-Bukhārī, that indicate some of Companions in fact did ask the Messenger of Allah peace and blessings be upon him direct questions? Would the existence of these questions contradict what we have previously mentioned above concerning the prohibition of asking too many questions? In short, it is not a disaster that this in fact did occur. Nobody claims that the Companions – may Allah be pleased with them all - were infallible or that they were above committing mistakes. If we go through al-Bukhārī we will find also several narrations that includes the punishment of adulterers, thieves, slanderers, and the Prophet peace and blessings be upon him scolding whoever indulged in backbiting. And we mentioned previously that the Prophet peace and blessings be upon him became angry concerning some questions and he reproved them and that the above verse was revealed concerning one of those incidents.

Secondly, most *direct questions* were in fact asked by Bedouins, people who were not living in Medina, those living outside the sacred precincts and by people from among delegations which were given a clear legal right to ask, as the Prophet peace and blessings be upon him used to ask them when they were about to leave - *Do you have anything left (you want to ask about)?* or words to that effect. This of course includes asking about whatever is not known by them or obscure in their minds. Thirdly, the severe prohibition is concerned with asking about matters that were not prohibited; that there is no text which was revealed talking about a particular matter. Pursuing the aforementioned line of argumentation seems to indicate that whoever takes issue with this is in fact displaying an underlying mistrust of Allah or having

some kind of doubt that maybe Allah forgets some matters, misses things or that his Prophet peace and blessings be upon him hid something or neglected some matter. All of this is impossible and constitutes clear *kufṛ*. Such mistrust may lead to the revelation of a judgment that prohibits a matter that was not prohibited before as a punishment for the whole nation. Asking about details of any judgment that was already revealed, seeking explanation of some small matters that were already legislated, details of any act of worship, or about rites that were legislated previously, this is not considered as being part of the prohibited questioning.

One can therefore discern that taken in the round, the cumulative legal effect of all these evidences establishes clearly that the basic ruling was one of permissibility. Put another way, the companions did not hesitate in carrying on with their normal lives and actions; when a commandment was revealed they put it into effect, when a matter was declared prohibited, they avoided the prohibition. Where the text was silent upon a matter, they implicitly understood that this was by default falling within the realm of permissibility.

6. Permissibility is the original, or default ruling

Thus far we have exhaustively shown with compelling evidence, reaching the level of certitude, the following key principles:

- We are not originally addressed with the laws of the previous Prophets, peace and blessings upon all of them. These laws have been totally abrogated from beginning to end, an immediate and total abrogation, once the revelation descended to Muḥammad (peace be upon him), the last of the Prophets.
- We are certain that the Prophet peace and blessings be upon him received revelation and laws throughout his tenure as a Prophet over twenty-three years. No complete book was sent to him from the outset; the Qur'ān and *Sunnah* being revealed in stages.
- A severe prohibition was placed upon seeking to question the Prophet peace and blessings be upon him; from arguing and disputing with him and indulging in all manner of disputation.
- The companions did not hesitate in carrying on with their normal lives and actions during the period of revelation. They did this without asking or waiting for a revelation to be sent.

What was the original ruling concerning acts, speech and objects / things, was it prohibition or *ibāḥa* - permissibility? What did the Muslims do during the period of revelation regarding these matters that had no text yet to classify them? There are two fundamental phases which must be considered. Firstly, prior to the advent of the Prophetic mission - there is no specific judgment before laws were sent down. The ruling in relation to acts, speech and objects

/ things is not permissibility as some might think. Permissibility - *ibāḥa*, is a legal judgment only specified by a statement from the law-maker. How can there be a judgment before there was such a statement - this is impossible. People did what they wished according to their own whims and interests till the message of Allah comes to them. This is a case of applying non-divine laws and not a divine permissibility. There is a great and fundamental difference between the two states. They are as far from each other as heaven and earth and it is an obvious matter to any reasonable person.

The second phase is what occurs during the period of revelation. Once the message has been sent *everyone* is obliged to believe in it and then follow it, for people were only created to worship Allah. They are ordered to listen to and obey all commandments and orders, to abstain from all matters prohibited. Submission to Allah means: surrendering, obeying and yielding to Him with love and respect. It is not just a mere collection of acts and rituals, be that bowing, prostrating or otherwise. The question that is raised now, is there a general ruling to which we refer in all things and actions till it is abrogated or altered? Or does such a ruling even exist?

The answer to this can be deduced from the plethora of evidence mentioned in the previous chapter on the prohibition relating to excessive questioning. These evidences establish the prohibition of asking too many questions. Further to this, the Prophet peace and blessings be upon him clearly stated: *'Leave me as I leave you.'* Such a statement is not ambiguous and can have only one meaning. It meant - do whatever you wish and say whatever you wish, and believe whatever you choose to believe, for it is lawful for you; make use of all things, for they were created pure, lawful and blessed for you to use it in every possible way; fulfil your contracts, meet your promises, keep on doing your customs and continue on following your prevailing systems regarding marriage and inheritance etc. All of this can be carried out till the specifications regarding what is obligatory, recommended, disliked and prohibited has been detailed by revelation. This must be the meaning and implication of the phrase - *'Leave me as I leave you'*. To argue otherwise would be tantamount to saying that the Prophet peace and blessings be upon him would be allowing people to do prohibited acts, to leave obligations and to go on with their evil contracting system. He would no longer be a Messenger of Allah, commanding the good and forbidding the evil; this would be the qualities of a false imposter not a true prophet. Allah forbid that Abul'-

Qāsim, Muḥammad peace and blessings be upon him, the last of the Prophets should be thought of in that manner. Arguably this principle ought to be known by the necessity of perception and reason, as well as by the necessities of the *Sharī'ah*, as it has been made explicit by several texts, which were covered in the previous chapter. Notably among them, Abu Dardā' may Allah be pleased with him who narrated that the Prophet peace and blessings be upon him said: *'Whatever was considered lawful by Allah in His Book is lawful and whatever was considered unlawful is unlawful and He has refrained from mentioning other matters so it is forgiveness from Him. Accept from Allah His Forgiveness, as Allah never forgets anything, (then he mentioned this verse): 'And your Lord is not forgetful.'*

There is also the *ḥadith* as mentioned earlier, of Abu Thalabah al-Khushani who said, the Messenger of Allah peace and blessings be upon him said: *'And He has kept silent about other matters out of forgiveness for you and not out of forgetfulness, so do not seek to investigate them.'* The word 'forgiveness' mentioned here is the forgiveness granted after the revelation of the laws; it is called absolute permissibility and not 'forgiveness' before the revelation of a law, which is called 'absence of divine law'; no account or punishment follows it for they are only applied *after* laws are established and proven.

The Prophet peace and blessings be upon him said: *'The most sinful Muslim is the one who asked about something which had not been prohibited, but was prohibited because of his asking.'* This means that the thing asked about was *originally lawful before* the question posed resulted in its prohibition. This necessitates in the absence of a legal text denoting a prohibition (or an obligation) the matter is lawful and within the realm of permissibility. For it to be otherwise is impossible. There is no more 'absence of divine law' after the revelation of the verse of the Qur'ān: *'Read! In the name of your Lord.'* It is almost as if Allah said to people then: *'Do whatever you wish, for I have forgiven you all things and have gave you my permission in all actions until I specify for you what is prohibited, what is obligatory and till I show you what is desirable and what is disliked. Until that time everything is lawful and is forgiven, out of my gentleness and mercy not out of negligence or forgetfulness. So, do not ask your Prophet frequently, do not ask too many questions and argue or you will taste the calamity of your*

affairs.’ Put another way – continue, as what you are doing is considered lawful until further notice and clarification.

Lastly, what has been transmitted to us from history and biographies has established that the Prophet peace and blessings be upon him and his companions undertook transactions, various professions, marriages, travel, underwent medical treatment and practiced all of life’s affairs without asking or waiting for a revelation to be sent except in very limited instances. Necessity dictates that they implicitly knew that permissibility was the original ruling regarding all things and actions and that it is the general default position.

Some may deny this, postulating an extreme example, such as what if an owner of a brothel continued in this iniquitous practice, living off its profits; surely this would invalidate this principle? In response, we would argue, so what if that was the case! Such practices would be considered lawful *until* revelation comes to specify that it is prohibited. Shocking as it may seem that is how it is. Some may even argue that this goes against the thinking of ‘sound minds’ and reason. In response, we would argue that the matter cannot be judged by a reasoning that is flawed. He that created the mind and reason is more knowledgeable of them; such matters should be left to him. If he wishes he shall put this into consideration out of his leniency and mercy and if he wishes, he shall neglect it out of being from matters of worship. What you should do is to accept the reason for which you were created, that is exclusively to worship Allah making your devotion sincere and turning to him in repentance; not to argue with the orders of the Lord or put yourself forward before his Messenger (peace be upon him). In any event the jurists of Islam have concurred that lawfulness is the default ruling regarding things / objects, as Allah says:

هُوَ الَّذِي خَلَقَ لَكُمْ مَا فِي الْأَرْضِ جَمِيعًا ثُمَّ اسْتَوَىٰ إِلَى السَّمَاءِ فَسَوَّاهُنَّ سَبْعَ سَمَاوَاتٍ وَهُوَ بِكُلِّ شَيْءٍ عَلِيمٌ

It is He who created all that is on the earth for you, then turned to the sky and made the seven heavens; it is He who has knowledge of all things.¹

¹ Qur’ān 2: 29

There are many verses mentioning the gifts which Allah conferred upon mankind. Such gifts out of his bounty would not be true gifts unless all these things and utilities were lawful except that which was prohibited. All things must have been pure in origin except that which was ordained impure. This is an admissible and decisive proof and here are some additional proofs - everything that was created in this universe from among things, entities in themselves, and their utilities are:

- *Permissible for humans*
- *Pure from the religious ritual point of view*

There is no difference between gases (like air and vapour), liquids (like water, juice and milk), and solid entities (like iron, copper, dust and rocks). There is no difference between simple compounds like water and air and complex mixtures like clay and soil. There is no difference between inanimate objects (like rocks and mountains) and living beings (like cattle and birds). All of these things are among the items which Allah has placed in this universe and they are pure and permissible for a human being to utilise. The utilisation can mean terminating them like slaughtering a sheep, eating a loaf of bread, and making use of one of its utilities such as riding animals, smelling roses, and looking at the beautiful sights of mountains and plains. All of this is permissible except for that which is excluded by a legal text specifying its prohibition, its impurity or both. Permissibility and purity are two separate things. Being prohibited does not entail being impure and vice versa.

Indeed, a minority of Islamic scholars argued that the original principle concerning acts is different from that concerning things / objects. According to this view, man and his actions do not fall under the previous discussion, for Allah favoured man by granting him the right to utilise all other creatures. We know by the necessity of perception and reason that the one favoured (mankind) is different from the favoured thing itself which is the rest of things in the universe. Thus, the previous evidences supporting the permissibility and purity of things does not entail that permissibility is the original ruling regarding man's actions. Mankind was only created to worship Allah, to obey his orders and abstain from his prohibitions. Consequently, man cannot do or intend to do any action without the express permission of Allah. In response, we would submit that this is a good point that draws a clear distinction between actions - man's voluntary actions which is the only thing taken into

account here - and all things created in the universe other than man. The one certain truth is that man is only created to worship Allah, as clearly established in the verse:

وَمَا خَلَقْتُ الْجِنَّ وَالْإِنْسَ إِلَّا لِيَعْبُدُونِ

And I have only created man and jinn so that they should worship me. ²

Submission to Allah means to yield, surrender and obey with love and honour. It is not limited to a simple collection of rituals that involve bowing or prostrating. Worship is obedience, based on love and sanctification as will be discussed elsewhere. All of that has nothing to do with the fact that permissibility is the default ruling regarding neither all things nor all actions, for permissibility is a legal judgment. Obeying Allah in that which he has designated permissible is not different from obeying him in adhering to duties and abstaining from prohibitions. When Allah ordains that permissibility is the default ruling regarding things, this is his judgment that cannot be refused. This is the meaning of submission to Allah which is the reason behind the creation of mankind. If he ordained things to be prohibited, this is his judgment that cannot be neglected and that must be obeyed.

فَمَنْ يَعْمَلْ مِثْقَالَ ذَرَّةٍ خَيْرًا يَرَهُ، وَمَنْ يَعْمَلْ مِثْقَالَ ذَرَّةٍ شَرًّا يَرَهُ

Whoever has done an atom's-weight of good will see it, but whoever has done an atom's-weight of evil will see that. ³

The aforementioned verse and those of similar import are not directly relevant to the present discussion; it is just an indication to the comprehensive account and reward or punishment for each deed no matter how minute it is. Good is what Allah has classified as good and evil is what Allah has dispraised and called evil and nothing else. What is the relationship between that and the original judgment regarding actions and things? There is no relationship whatsoever, for we only seek the judgment of Allah. We wish to submit to Allah surrendering to his judgment and nothing else, regardless of the nature of that judgment. It might be prohibiting drinking camel's milk in the same

² Qur'ān 51: 56

³ Qur'ān 99: 7/8

matter that it was prohibited to the people of Israel or making it lawful as ordained in our last and final law. Thus, there is no other choice than discussing this matter from such an angle.

The statement that permissibility is the original or default ruling on all things / objects unless a textual proof denotes otherwise, necessarily requires that all acts that are related to these things are permissible as well. Otherwise that notion of permissibility would lose its meaning and become absurd. To say that a ewe is lawful, means that it is permissible to slaughter it, skin it, tan its skin, sell it, buy it, bury it or dissolve its fat and benefit from that fat or manufacture soap from it. In this way from what cannot be counted concerning human actions that are related to the ewe itself or its utility. This is a big part of human behaviour that has necessarily been basically permissible, unless a textual proof denotes otherwise; an example of this being the textual proof that outlaws torturing animals or branding them with fire on their faces.

Allah has bestowed great favour upon mankind giving us the senses, the heart, the soul and the mind. Mankind has been created with the best stature. Together with the texts already cited, necessity dictates that all actions proceeding from this form are basically permissible, unless a textual proof denotes otherwise. To elaborate this point with a simple example, all manner of expression from the lips and tongue is permissible, including speaking, whistling, humming, mumbling, crying, weeping, lamentation, wailing, articulation and speech and various sounds etc. Allah has said:

مَا يَلْفِظُ مِنْ قَوْلٍ إِلَّا لَدَيْهِ رَقِيبٌ عَتِيدٌ

He does not utter a single word without an ever-present watcher. ⁴

The stressed prohibition in the Qur'ānic verse of asking 'questions about things which if declared to you may trouble you' requires the necessity of permitting all things and all actions, unless textual evidence denotes otherwise. A human being can never be void of activities in the course of life. Given that the verse says not to ask until the legislator provides detailed explanation, the meaning of the verse is evidently established: do as you will, for it is permissible unless the legislator specifies otherwise. As previously

⁴ Qur'ān 50: 18

mentioned, the Prophet (peace be upon him) clearly said: *'Leave me as I leave you for the people who were before you were ruined because of their questions and their differences over their Prophets. So, if I forbid you to do something, then keep away from it. And if I order you to do something, then do of it as much as you can.'* Is it therefore conceivable that someone who has been made infallible by Allah and who conveys the most perfect conveyance about him, commands people to leave him until it is he who specifies otherwise; would he be leaving them to commit matters unlawful and not establish obligations? Allah forbid!

The Prophet peace be upon him also said: *'The most sinful Muslim is the one who asked about something which had not been prohibited, but was prohibited because of his asking.'* Yet again the *ḥadīth* provides definite evidence that the thing asked wrongly, affectedly and unjustly, was permissible before the question, which then led to a prohibition. The word 'things' here in its lexical meaning includes everything: genus, qualities and actions. Furthermore, he (peace be upon him) clearly said: *'Verily, Allah has ordained some obligations, so do not neglect them; He has set some limits, so do not trespass them; He has refrained from mentioning other matters not (out of) forgetfulness, so do not look for them. It is mercy from Allah, so accept it.'* Can the matter be any clear than this? In a separate Qur'ānic verse Allah has said that he has explained to us in detail what has been forbidden:

وَمَا لَكُمْ أَلَّا تَأْكُلُوا مِمَّا ذُكِرَ اسْمُ اللَّهِ عَلَيْهِ وَقَدْ فَصَّلَ لَكُمْ مَا حَرَّمَ عَلَيْكُمْ إِلَّا مَا اضْطُرَّرْتُمْ إِلَيْهِ وَإِنَّ كَثِيرًا
لَيُضِلُّونَ بِأَهْوَاءِهِمْ بِغَيْرِ عِلْمٍ إِنَّ رَبَّكَ هُوَ أَعْلَمُ بِالْمُعْتَدِينَ

Why should you not eat such animals when Allah has already fully explained what He has forbidden you, except when forced by hunger? But many lead others astray by their desires, without any true knowledge: your Lord knows best who oversteps the limit.⁵

'Coitus Interruptus'

Matters prohibited have all been explained, declared and clarified in detail. The same thing has been applied to the religious obligations, for abandoning them is a sin and prohibited. Allah has blamed, scolded and condemned in

⁵ Qur'ān 6: 119

this verse, whosoever abstained from some food, lest that he falls into a forbidden thing *which has not been detailed*. This has been a proof that all things, whether properties and actions, are lawful unless there is an explicit detailed statement to prohibit or make something an obligation. Jābir ibn Abdullah as well as many other companions (may Allah be pleased with them all) had this very same understanding. He referred to them in the collective by saying using the word 'we' when he said: *'We used to practice al-'Azl (coitus interruptus) during the lifetime of the Messenger of Allah peace and blessings be upon him while the Qur'ān was being revealed.'* In the version which Muslim records, Ishāq added that Sufyān said: *'Had it been something to be prohibited, the Qur'ān would have stated so.'* Writing in *Fath al-Bāri al-Ḥāfiz* (Ibn Ḥajar) said:

Ibn Daqiq al-'Eid has explained it, concerning what is in al-'Umda. He said that Jābir's inference of the establishment from Allah is strange and it is possible that it is the establishment of the Messenger peace and blessings be upon him but it is conditioned by his knowing about that. And it is enough for him to know about the statement of the companion that he did it at his lifetime. Regardless, the issue is a well known issue in the study of *Uṣul* and in the study of *ḥadīth* that if the companion adds it to during the lifetime of the Prophet peace and blessings be upon him, it would have the judgment of traceability according to the majority because it is obvious that the Prophet peace be upon him saw that and approved it, due to the abundance of their causes about their asking him concerning judgments, though the judgment of traceability is not added to it according to some people. And this is from the beginning, for Jābir made it clear that it happened during the lifetime of the Prophet peace and blessings be upon him.

Several methods have been reported proving that he saw it. Now what is apparent to me is that the person who deduced that, be it Jābir or Sufyān, the person meant by the revelation of the Qur'ān, that what is read is more general than what worship is done by reciting it, or other than that, from that which is revealed to the Prophet peace and blessings be upon him. It is as if he says, we have done it at the time of legislation. And had it been unlawful, we would not have been approved to it. In relation to this, the statement of Ibn 'Umar (may Allah be pleased with him) provides for the following: *'During the*

lifetime of the Prophet we used to avoid chatting leisurely and freely with our wives lest some divine inspiration might be revealed concerning us. But when the Prophet had died, we started chatting leisurely and freely (with them).’ Recorded by al-Bukhārī].⁶

I would argue that the statement of those who said: ‘*Jābir’s inference of the establishment from Allah is strange*,’ means nothing. But what is truly astonishing is how al-Ḥāfiẓ, may Allah have mercy upon him commented. *That* is what is truly strange. Does Allah not surround all things by his knowledge? And was the statement of the Prophet peace and blessings be upon him from himself and not revelation? Allah forbid! This is not what happened but it is from Allah and it is Allah who guarantees both the protection and explanation of the *Dhikr* - as he has already confirmed to us: ‘*Therefore it is upon us (rests) its explanation*.’⁷

As for the *ḥadīth* of Ibn ‘Umar may Allah be pleased with him, it is in conformity with that reported from Jābir and confirms the notion of permissibility being the underlying or default ruling. The full narration as recorded in al-Bukhārī is as follows:

حدثنا أبو نعيم حدثنا سفيان عن عبد الله بن دينار عن ابن عمر رضي الله عنهما قال كنا نتقي الكلام والانبساط إلى نساءنا، هيبه أن ينزل فينا شيء على عهد النبي صلى الله عليه وسلم، فلما مات النبي صلى الله عليه وسلم، تكلمنا وانبسطنا

Abu Nu’aym narrated to us Sufyān narrated to us from Abdullah ibn Dinār from Ibn Umar, may Allah be pleased with him, he said: During the lifetime of the Prophet peace and blessings be upon him we used to avoid chatting leisurely and freely with our wives lest some divine inspiration might be revealed concerning us. But when the Prophet peace and blessings be upon him had died, we started chatting leisurely and freely (with them).⁸

Arguably this is from amongst the most authentic chains of transmission. Ibn Mājah recorded this but with the following channel to Sufyān: ‘Muḥammad ibn Bashār narrated to us ‘Abdar-Raḥman ibn Mahdī reported to us Sufyān

⁶ Ibn Hajar, *Fath al-Bārī* [Vol. 9, p. 379]

⁷ *Qur’ān* 75: 19

⁸ *Ṣaḥīḥ al-Bukhārī* [Vol. 3, no. 5187]. What Ibn Umar is referring to by this ‘leisurely talk’ is intimate sexual talk between spouses.

narrated to us’. Imām Aḥmad also reports this in *Musnad* with the channel: ‘Abdar-Raḥman narrated to us Sufyān narrated to us (et al).’

Jars, hollowed stumps and intimate matters

In addition to the above we may add to these points the various narratives where the Prophet peace and blessings be upon him used to inform his Companions about matters that they were completely unaware of; he peace and blessings be upon him only knew them via revelation. An example of this is the advice given to the delegation of ‘Abd al-Qays not to make *nabeeth* in certain containers which were like ‘hollowed stumps,’ vessels smeared with pitch, pumpkins, and green jars. They were astonished that he knew some of them, though they are unknown to the people of Mecca and Medina; only the people of al-Yamāma knew about them. As recorded and authenticated by Imām Muslim:

حدثني مُحَمَّد بن بكار البصري حدثنا أبو عاصم عن بن جريج (ح) وحدثني مُحَمَّد بن رافع، واللفظ له، حدثنا عبد الرزاق أخبرنا بن جريج قال أخبرني أبو قزعة أن أبا نضرة أخبره وحسنا أخبرهما أن أبا سعيد الخدري أخبره أن وفد عبد القيس لما أتوا نبي الله صلى الله عليه وسلم، قالوا: يا نبي الله جعلنا الله فداءك، ماذا يصلح لنا من الأشرطة؟، فقال: لا تشربوا في النقيير!، قالوا: يا نبي الله، جعلنا الله فداءك، أو تدري ما النقيير؟، قال: نعم، الجذع ينقر وسطه؛ ولا في الدباء، ولا في الحنتمة، وعليكم بالموكى

Muḥammad ibn Bakkār al-Baṣri narrated to me Abu ‘Aāṣim narrated to us from Ibn Jurayj (*ḥawala*) and Muḥammad ibn Rāfi’h narrated to me and it’s his wording – ‘Abd al-Razzāq narrated to us Ibn Jurayj reported to us he said Abu Qaza’ah reported to me that Abu Naḍra reported and told him that Abu Sa’eed al-Khudri informed him that when the delegation of the tribe of ‘Abd al-Qays came to the Prophet of Allah peace and blessings be upon him (its members) said: Messenger of Allah, may God enable us to lay down our lives for you, which beverage is good for us? He (the Prophet) said: *Not to speak of beverages, I would lay stress* that you should not drink in the wine jars. They said: Messenger of Allah, may God enable us to lay down our lives for you, do you know what *al-naqir* is? He (the Prophet) replied: *Yes, it is a stump which you hollow out in the middle, and*

added: *Do not use gourd or receptacle (for drink). Use water-skin the mouth of which is tied with a thong (for this purpose).*⁹

It is also recorded in the *Musnad* of Imām Aḥmad with the *isnād*: ‘Abd al-Razzāq and Rawh narrated to us, they said Ibn Jurayj narrated to us Abu Qaza’ah reported to me with it, before my presence.’ I would submit that this is very authentic and well established particularly given the wording from Ibn Jurayj. The words, ‘and good, told them’ it is inverse wording and authentic; and he reported well. In any event, it is a good report from Abu Qaza’ah as is evident from the channel. In *Sharḥ al-Ma’āni al-Athār* its reported as: ‘Ali narrated to us he said Ḥajjāj narrated to us from Ibn Jurayj he said Abu Qaza’ah reported to me that Abu Naḍra reported to him that Abu Sa’eed al-Khudri narrated to them, as follows.’¹⁰ In a lengthy *ḥadith* recorded and authenticated by Imām Muslim we have the following:

Yahya ibn Ayub narrated to us Ibn ‘Ulayah narrated to us Sa’eed ibn Abi Aruba narrated to us from Qatādah who said: (It was) narrated to us from among the delegates of the ‘Abd al-Qays tribe narrated this tradition to him. Sa’eed said that Qatādah had mentioned the name of Abu Naḍra on the authority of Abu Sa’eed al-Khudri who narrated this tradition: That people from the- tribe of ‘Abd al-Qays came to the Messenger of Allah peace and blessings be upon him and said: Messenger of Allah, we belong to the tribe of Rabi’ah and there live between you and us the unbelievers of the Muḍar tribe and we find it impossible to come to you except in the sacred months; direct us to a deed which we must communicate to those who have been left behind us and by doing which we may enter heaven. Upon this the Messenger of Allah peace and blessings be upon him said: *I enjoin upon you four (things) and forbid you to do four (things): worship Allah and associate none with Him, establish prayer, pay zakāt, and observe the fast of Ramaḍān, and pay the fifth part out of the booty. And I prohibit you from four (things): dry gourds, green-coloured jars, hollowed stumps of palm-trees, and receptacles.*

They (the members of the delegation) said: Do you know what *al-naqir* is? He replied: *Yes, it is a stump which you hollow out and in*

⁹ *Ṣaḥīḥ* Muslim [Vol. 1, no. 18].

¹⁰ *Musnad* Aḥmad [Vol. 3, no. 11561]; *Sharḥ al-Ma’āni al-Athār* [Vol. 5, p. 311]

which you throw small dates. Sa’eed said: He (the Prophet) used the word *tamar* (dates). (The Prophet then added): *Then you sprinkle water over it and when its ebullition subsides, you drink it (and you are so intoxicated) that one amongst you, or one amongst them strikes his cousin with the sword.* He (the narrator) said: There was a man amongst us who had sustained injury on this very account due to (intoxication), and he said that he tried to conceal it out of shame before the Messenger of Allah peace and blessings be upon him. I, however, inquired from the Messenger of Allah (it we discard those utensils which you have forbidden us to use), then what type of vessels should be used for drink? He replied: *In the waterskin the mouths of which are tied (with a string).* They (again) said: Prophet of Allah, our land abounds in rats and water-skins cannot remain preserved. The Prophet of Allah peace and blessings be upon him said: *(Drink in water-skins) even if these are nibbled by rats.* And then (addressing) al-Ashajj of ‘Abd al-Qays he said: *Verily, you possess two such qualities which Allah loves: insight and deliberateness.*¹¹

The reference to ‘*al-naqeer*’ was known in al-Yamāma *only* and unknown to the people of Ḥijāz as outlined by al-Bayhaqy in *Sunan* al-Kubra:

حدثنا أبو بكر بن فورك أنبأ عبد الله بن جعفر حدثنا يونس بن حبيب حدثنا أبو داود حدثنا عيينة بن عبد الرحمن بن جوشن حدثني أبي قال كان أبو بكرة ينتبذ له في جرة فقدم أبو بركة من غيبة كان غابها فنزل بمنزل أبي بكرة قبل أن يأتي منزله فذكر الحديث في إنكار ما نبذ له في جرة، وقوله لأمراءه: وددت إنك جعلتني في سقاء، وأن أبا بكرة حين جاء قال: قد عرفنا الذي نهينا عنه، نهينا عن الدباء والنقير والحنتم والمزفت، فإما الدباء فإنا معشر نقيف بالطائف كنا نأخذ الدباء فنخرط فيها عناقيد العنب ثم ندفنها ثم نتركها حتى تهدر ثم تموت. وأما النقير فإن أهل اليمامة كانوا ينقرون أصل النخلة فيشددون فيه الرطب والبسر ثم يدعونه حتى يهدر ثم يموت. وأما الحنتم فجرار كان يحمل إلينا فيها الخمر، وأما المزفت فهي هذه الأوعية التي فيها هذا الزيت

¹¹ *Ṣaḥīḥ* Muslim [Vol. 1, no. 18]. After this Imām Muslim added: ‘Muḥammad ibn al-Muthanna and Ibn Bashār narrated to us, they said Ibn Abi ‘Adi narrated to us from Sa’eed from Qatādah who said: It was narrated to me from among the delegates of the ‘Abd al-Qays tribe, that they came to the Prophet peace and blessings be upon him with the likeness of this ḥadith of Ibn ‘Ulayah, that in it he referred to hollowed stumps of palm-trees and receptacles or dates and water, but didn’t say Sa’eed said or he said from dates.’ It is also cited in *Musnad* Aḥmad [Vol. 3, no. 11191] with the *isnād*: ‘Yahya ibn Sa’eed narrated to us from Ibn Abi ‘Aruba, Qatādah narrated to us, who met with the delegation and he mentioned Abu Naḍra from Abu Sa’eed about it.’

Abu Bakr ibn Fawrak narrated to us Abdullah ibn Ja'far reports, Yunus ibn Ḥabeeb narrated to us Abu Dāwud narrated to us 'Uyayna ibn 'Abdar-Raḥman ibn Jawshan narrated to us my father narrated to me he said: Wine used to be made for Abu Bakrah in a jar. And then one day, Abu Barzah came from a long absence. He stayed at Abu Bakrah's house before he went to his own house. He mentioned the *ḥadith* regarding the prohibited of wine for him, and his statement to his wife - I would like you to put it in water skin. When Abu Bakrah came, he said: we have known what we have been forbidden from. We have been forbidden from dry gourds, receptacles, hollowed stumps of palm-trees and green-coloured jars. As for the dry gourds, we the people from the tribe of Thaqeef in Ṭā'if, used to take dry gourds, and mix clusters of grapes in them, and then bury them till they simmer and die. As for hollowed stumps of palm-trees, they are jars that wine used to be transported to us in them. As for green-coloured jars, they are these vessels that contain this pitch.¹²

Regarding this al-Bayhaqy provided a follow-on comment in which he said:

This is the way it has been reported about Abu Bakrah. According to a group of scholars, what is meant by prohibition from making wine in these vessels is that when malmsey is put in them, it quickly becomes so strong that it becomes intoxicating, whereas in water skins, it is unlikely to become so. And then, permission was granted regarding all sorts of vessels, as long as they do not drink intoxicants. And only Allah knows best.

The Prophet peace and blessings be upon him once surprised the Companions on another occasion and without prior notice, when an embarrassing matter arose. Imām Aḥmad records this incident in the *Musnad*:

حدثنا عبد الصمد قال حدثنا حفص السراج قال سمعت شهرا يقول حدثتني أسماء بنت يزيد أنها كانت عند رسول الله صلى الله عليه وسلم والرجال والنساء قعود عنده فقال لعل رجلا يقول ما يفعل بأهله، ولعل امرأة تخبر بما فعلت مع زوجها؟! فأرم القوم فقلت إي والله يا

¹² al-Bayhaqy *Sunan al-Kubra* [Vol. 8, no. 17256]. Also cited in the *Musnad* of Abu Dāwud al-Ṭayālisi [Vol. 1, no. 882].

رسول الله إنهن ليقلن وإنهم ليفعلون! قال فلا تفعلوا، فإنما ذلك مثل الشيطان لقي شيطانة في طريق فغشيها والناس ينظرون

'Abd al-Ṣammad narrated to us he said Ḥafṣ al-Sirāj narrated to us he said I heard Shahr saying Asmā bint Yazeed narrated to me - she was once at the mosque of the Messenger of Allah peace and blessings be upon him, and men and women were sitting there. All of a sudden, he said: *It may be that some men of you talk about what they do with their wives, and it may be that some women talk about what they have done with their husbands?* Thereupon, people became shocked, and then I said – Yes! By Allah, O Messenger of Allah, they (women) do say such things regarding what they do! He said: *You should not do that, for that is like the he-devil who met a she-devil in a street, and slept with her while people were looking (at them)!¹³*

The report is *Ṣaḥīḥ*; I would submit that the narrator Shahr ibn Ḥawshab is *thiqa ṣaduq* (trustworthy and truthful). Though at times some reports appear incomplete with some illusionary points; al-Ḥāfiz (Ibn Ḥajar) said regarding him: '*Ṣaduq* (truthful) but he has a lot of *irsāl* and delusions.'¹⁴ Yet the narration he has reported here has been delivered well and he is known for narrating from Asmā bint Yazeed. Therefore, this chain of transmission is good on its own virtue, without doubt. It is attested to, for he has memorised here the following *ḥadith* from a completely independent chain away from Abu Hurayrah. It is inconceivable that there is a connivance of falsehood or the occurrence of error by chance.

Ismā'il ibn Ibrāhīm narrated to us from Sa'eed al-Juriri from Abi Naḍra from a man from al-Ṭufāwa who said: I once happened to be a guest of Abu Hurayrah may Allah be pleased with him. I did not find any one among the Companions of the Prophet peace and blessings be upon him more devoted to worship and more hospitable than him. One day I was with him when he was sitting on his bed. He had a bag which contained pebbles or kernels. A black slave girl of his was sitting below. He was saying: Glory be to Allah, Glory be to Allah (with the pebbles or kernels). When the pebbles or the kernels in the bag came

¹³ *Musnad Aḥmad* [Vol. 6, no. 27624]. Also recorded by al-Ṭabarāni in *Mu'jam al-Kabir*, [Vol. 24, no. 414]

¹⁴ Ibn Ḥajar, (2009) *Taqrib al-Tahzib* (Dar el-Hadith, Cairo), [no. 2830, p. 286]

to the end, he would make her collect them and put them back into the bag, and then she would give them to him. After a while, he said to me ‘Should I tell you about the Messenger of Allah and me? I said, Yes. He said, Once while I was suffering from fever in the mosque of Medina, the Messenger of Allah (peace and blessings be upon him) suddenly came and entered the mosque, and then asked: *Who saw the youth of al-Daus? Who saw the youth of al-Daus?* A man replied to him, O Messenger of Allah, there he is, suffering from fever in the corner of the mosque as you can see. He came over, put his hand on me and had a kind talk with me, and I rose. He then began to walk till he reached the place where he used to perform his prayer. On that day, there were two rows of men and one row of women, or two rows of women and one row of men (the narrator is doubtful). He turned to them and then said: *If Satan makes me forget anything during the prayer, the men should say - Glory be to Allah, and the women should clap their hands.* The Messenger of Allah (peace and blessings be upon him) then performed the prayer and he did not forget anything during the prayer.

When he ended the prayer by pronouncing the final salutation he turned immediately to them with his face and then said: *(please) stay at your places: Is there any man among you who approaches his wife, closes the door, covers himself with a curtain, and then come out and says, I have done such and such with my wife?* They all kept silent. He then turned to the women and said (to them): *Is there any woman among you who narrates it?* Thereupon, a young busty girl knelt on one of her knees and raised her head so that the Messenger of Allah (peace be upon him) could see her and hear her talk. She said - Yes, by Allah! They talk (about secrets of intercourse), they really talk about it! He then said: *Do you know the likeness of the one who does that? Certainly, the likeness of this act is the likeness of a male devil and a female devil who met each other in the street, and he fulfilled his desire with her while people are looking at him.* Then he said: *Beware! No man should sleep in the same bed under the same cover while another man is sleeping therein, and no woman should sleep in the same bed under the same cover while another woman is sleeping therein, unless the other party, man or woman, is either an offspring or a parent.* He (the narrator) said, he mentioned a third one but I have forgotten. *Certainly, the perfume of men is that whose scent can be scented and*

*its colour does not appear (like rose water), and the perfume of women is that whose colour can be seen, but its scent cannot be scented (like henna).*¹⁵

The narrative is reported quite widely.¹⁶ In his commentary of the *Sunan* of Abu Dāwud, al-Albānī said that the narration was *ḍaʿīf*. I would concur to a degree given the presence of an unknown man from Ṭufāwa. Indeed, it is not from a Companion but there is no fear of *ikhtilāf* regarding al-Juriri; yet there are a multiplicity of the narrations from him – Ismāʿil ibn Ibrāhīm (Ibn ‘Ulaya), Bishr and Ḥammād ibn Zayd as well as Yazeed ibn Zureeh’. Besides, of this al-Bayhaqī said: ‘All of them are established Imām’s and from them he heard from al-Juriri before his *ikhtilāf*.’ To reiterate, admittedly the chain of transmission contains an unknown man from al-Ṭufāwa, but the rest are well known and trustworthy; the girl is certainly Asmā bint Yazeed ibn al-Sakan may Allah be pleased with her, she is the narrator of the previous *ḥadīth*. That *ḥadīth* of hers has certainly established the sincerity and accuracy of the man of Ṭufāwa may Allah have mercy upon him as is made evident. Therefore, all praise and thanks is only to Allah, the Lord of all the worlds.

We have no doubt that anyone who examines the collections of *Sunan*, the person would find a greater number of narratives are like this; i.e. where the Prophet (peace be upon him) explained things which were happening even though none of the companions had formally raised it. It may be without an occasion that requires that or without the Prophet (peace be upon him) being previously informed about anything concerning them; just by a revelation that might suddenly be revealed to him by Allah. This is what we really mean by the following statement: *‘the approval of the Qur’ān concerning what happened at the time of the revelation, is like the approval of the Prophet (peace and blessings be upon him) regarding what he saw and heard and there is no difference.’* What is more, the first one is stronger and higher in rank, which is the origin and it is more general and more numerous. Nonetheless, we do not mind the statement where it was said: ‘Had it been something to be

¹⁵ *Musnad Aḥmad* [Vol. 2, no. 10990]

¹⁶ Among the cited additional references for this: *Sunan* Abu Dāwud [Vol. 2, no. 2174]; al-Bayhaqī, *Sunan al-Kubra*, [Vol. 7, no. 13876], and *Muṣṣanaʿ* Ibn Abi Shayba [Vol. 2, no. 7661 & Vol. 4, no. 17560].

prohibited, the Qur'ān would have stated so', because in actuality, it is the truth with its previously cited proofs. But as for his statement: 'while the Qur'ān was being revealed', it means the importance of the time of the revelation, without any difference between the Qur'ān and the *Sunnah*, as previously mentioned and as it is evident like the way the sun is evident to us, regarding our previous evidences concerning the authenticity of *Sunnah*, and that it is a revelation and part of the protected *Dhikr*.

'Leisurely' talk

The point is also clearly established by the tradition reported from Ibn Umar regarding the 'leisurely talk'. We know for a fact that the Prophet peace and blessings be upon him did not discuss this with their wives, nor did he used to spy on private matters that occurred in their bedrooms to see what they did or hear what they talk about. With the death of the Prophet peace and blessings be upon him we know with certitude that revelation came to an end, the *Deen* was completed; prior to that all commands and prohibitions which Allah decided upon were outlined completely with detail where necessary. As the Prophet peace and blessings be upon him said: *'I have left you on a straight forward path as clear as the day and night and no one would go astray therefore except he who is doomed to be a loser.'* Allah protected the *Dhikr* in its totality – the Qur'ān and the *Sunnah*; he protected the Arabic language as it is necessary for the *Dhikr* and will not be understood except by this medium until the day of judgement, because the Prophet peace and blessings be upon him is the seal and last of all the Prophets and Messengers. There is neither a Prophet nor any message after him. There can be neither abrogation nor a new creed after him except for those who changed his creed, exchanging his favour with unbelief and thereby going astray.

Now that the Prophet peace and blessings be upon him is no longer with us it becomes the responsibility and duty of people in general, including the scholars, to exert themselves in returning to the divine legal texts only in order to extract guidance from them; to maintain diligence in following the authentic *aḥādith* and form true conclusive judgments. In other words, in our era questioning does become necessary in the sense that we must acquaint ourselves with the ruling of Allah in every matter. The *Deen* in totality contains no gaps, nor is there a matter which exists that is not covered by the

revelation. But those who seek to clarify matters pertaining to religion *now* should be asking the right question, namely asking about the evidence that proves a matter to be obligatory, prohibited, desired or undesired. Questions should not be framed in the manner of 'is this matter *mubāḥ* - permissible?' since it is the general default position, as established by the exhaustive evidence already cited. Stated differently questions that are framed as - 'what is the evidence for the permissibility of so and so?' become an absurdity given that permissibility is the default ruling. It is legal texts which raise a matter to being an obligation or a prohibition.

We said that the right question is the one which is asking about the evidence that proves a matter to be obligatory or prohibited; desired or undesired in itself. The use of 'in itself' is but precautionary, because man can be rewarded for doing matters that are permissible if he intends to do it in order to help him in doing some obligations and desirable matters or in order to accustom himself to keep away from doing undesirable and prohibited matters. People can be undertaking matters with a consciousness, while intending to do a particular deed assured that Allah permitted it as such, thereby rendering to the judgement of Allah, content in the knowledge that he has allowed the matter. Reward is not given according to the naked deed in and of itself as such, but rather according to the intention whether it is to help him in doing other obligatory or desirable acts or because of consciousness and remembrance of Allah or any other considerations than that which are more than doing the deed in itself as a mere deed. It is inaccurate to say then that the permissible was turned into desirable because it is not desirable in itself, and reward is to be given according to other aspects and matters that accompanied it. It is not appropriate to mix them, otherwise measures of *Sharī'ah* will be disturbed and truth will mix with falsehood. That is why, both the matter which is desirable in itself, that whoever did it will be rewarded and whoever did not will not be punished and the matter which is undesirable in itself, that whoever did not do it will be rewarded and whoever did it will not be punished, need an independent evidence because they are not like the original absolute permissibility. Whatever was not like it needs evidence, otherwise it would be a saying about Allah without knowledge and a judgment that Allah did not permit. That is to say, it would be innovation in the religion and this is exactly the way that leads to misguidance and ultimately to disbelief.

The subject of intention and its influence on both reward and punishment is considered in a separate section entitled ‘the reward of deeds rests upon intention and everybody will be rewarded according to what he/she has intended.’ All of the forgoing discussion is not an aberration, nor is it a matter that has just been introduced.

Ibn Ḥazm’s analysis

As already referred to, many famous Imām’s adopted the same view, from the classical period of Islam up to the present, although, some of them did not always apply this diligently when it came to matters of *fiqh* (jurisprudence). To take just one example, we provide a long quote here from *al-Iḥkām fī Uṣul al-Aḥkām* by Imām Abu Muḥammad Ali Ibn Ḥazm may Allah be merciful to him:

If they said that they want to see evidence for all incidents we should say that if we failed to do such a thing, our failure is not evidence to be taken, neither against Allah the Almighty nor His Messenger peace and blessings be upon him. We did not claim that we are Allah; Allah alone knows about all these incidents. It is enough that we are sure that Allah, the Exalted explained to us whatever happened or will happen from among the judgments of the *Deen* till the Day of Judgement. We present to you one text that included every incident that happened or will happen till the Day of Judgement; it is the same *ḥadīth* which we mentioned previously; the Messenger of Allah peace and blessings be upon him said: ‘*Leave me with what I have left to you. Verily the people before you went to their doom because they had put too many questions to their Prophets and then disagreed with their teachings. So do that which I command you to do to the best of your capacity and avoid that which I forbid you to do.*’

According to this authentic text, whatever was not mentioned by the Prophet peace and blessings be upon him is neither an obligation as he did not command us with that, nor forbidden as he did not forbid us to do it. What is left from that, it is therefore permissible by necessity. Whoever claimed that it is forbidden must bring the evidence that the Prophet peace and blessings be upon him forbade us from doing it and when he brings it, we will listen and obey, otherwise

his claim is null and void. Whoever claimed that it is obligatory must bring the evidence that the Prophet peace and blessings be upon him commanded us with and when he brings it we will listen and obey, but if he did not, his saying will be null and void. It was proved by this text that whatever the Prophet peace and blessings be upon him commanded us with is an obligation except that what we were not able to do; whatever he forbade us from doing is a forbidden matter except what he explained as being undesirable or desirable. There is no judgment in *Deen* that was left without being mentioned here.¹⁷

After setting out these critical points, Ibn Ḥazm mentions the following; again cited at length given its importance:

What then has been left after all of this? Was there any incident in the world that would not be included in the saying of whoever claims something to be obligatory and we say to him that if you bring a text from the Qur’ān or an authentic text narrated by the Messenger of Allah peace and blessings be upon him or consensus that proves what you said, we will listen and obey and it will be obligatory and whosoever then denies its obligation, will be a *kāfir*. However, if he did not bring a text or a consensus, he is a liar and this matter is not an obligation. Whoever claims that something is forbidden, we should answer that - if you bring a text or a consensus that proves its illegality, it will be forbidden and we will listen and obey and whoever wants to violate it then will be sinner. But if he did not bring a text or consensus, he is liar and this thing is not forbidden. Is there any judgment in the whole world that is not included in this? Then it is true that the text includes *every judgment* that has happened or will happen till the Day of Judgement and there is no way that any incident is not included in these three judgments. And with Allah is all *tawfiq*.

Thereafter came the *ahādīth* of the Messenger of Allah peace and blessings be upon him, which showed the same that were indicated in these verses. Abu Hurayrah may Allah be pleased with him narrated that the Prophet peace and blessings be upon him said: ‘*Leave me with what I have left to you, Verily the people before you went to their doom because they had put too many questions to their Prophets and then*

¹⁷ Ibn Ḥazm, *al-Iḥkām* [Vol. 8, pp. 6/7]

disagreed with their teachings. So avoid that which I forbid you to do and do that which I command you to do to the best of your capacity.'

Abu Muḥammad (Ibn Ḥazm) said: This *ḥadith* includes all what we have mentioned. The Prophet peace and blessings be upon him explained that if he forbade us to do anything, it is our duty to avoid it and if he commanded us with something it is also our duty to do it according to our capacity. Whatever he forbade or commanded us, it is our duty not to search for it during his lifetime and if the matter is like that, so it was imposed that every Muslim should neither forbid nor obligate it. If it is neither forbidden nor obligatory, it is then permissible as there is no other branch other than these three divisions. If two of them are null, then the third is obligatory. This is the case according to this text, to listening and to mind not to understand other than it except an unacceptable induction conducted by way of that *Qiyās* (analogy), they see that the expiation for intentionally having food during a day of *Ramaḍān* is the same expiation for intentionally having intercourse with one's spouse. Likewise, they have defined the minimum value of stolen properties incurring the amputation of the thief's hand to be like that of the conventional minimum value of a dowry.

Then we should ask the same question of them. If you claimed that there are some incidents that have neither judgment in the Qur'ān nor in the *Sunnah*, so say to us what do you use to do with them? As it is according to you, obligatory, but not to us as it is null and not existing. So tell us if you really found these incidents, do you neglect its judgment while this is not your opinion or you will judge them while there is no other branch but these three divisions. If you judge them, tell us about your judgment; did you judge them according to Allah and His Messenger peace and blessings be upon him and if you said yes, so you have contradicted yourselves as you already said that there is no text that proves them either from Allah or from His Messenger peace and blessings be upon him. Your next saying proves the untruth of your previous saying. And if you said that you judged not according to judgment of Allah or His Messenger peace and blessings be upon him, we seek refuge with Allah from every judgment in religion that is not legislated by Allah, the Exalted. This is enough for whoever has a mind. All matters are clear and others are null - praise be to Allah!

(Numerous) *aḥādith* prove this matter.¹⁸ Abu Muḥammad said that the Messenger of Allah peace and blessings be upon him said that whatever he did not set as obligatory is not obligatory and whatever he said to be obligatory is obligatory according to one's capability and that which he did not forbid is lawful and that which he forbade is unlawful. So *Qiyās* (analogy) has nothing to do with it. Texts (have) covered everything people disagreed about and every incident that will happen till the day of judgement. Allah says:

أَمْ لَهُمْ شُرَكَاءُ شَرَعُوا لَهُمْ مِنَ الدِّينِ مَا لَمْ يَأْذَنْ بِهِ اللَّهُ وَلَوْلَا كَلِمَةُ الْفَصْلِ لَفُضِيَ بَيْنَهُمْ وَإِنَّ الظَّالِمِينَ لَهُمْ عَذَابٌ أَلِيمٌ

*Or have they associates who have prescribed for them any religion that Allah does not sanction? And were it not for the word of judgment, decision would have certainly been given between them; and surely the unjust shall have a painful punishment.*¹⁹

One should seriously ponder over the comments that Imām Abu Muḥammad Ali Ibn Ḥazm, may Allah be merciful to him, has furnished us with. Our viewpoint regarding the original / default ruling being one of permissibility can be summed up as the following dictum:

- The original ruling of all things (or objects), acts / actions and sayings is permissibility. The original ruling in contracts and conditions is permissibility and correctness. Thus fulfilling contracts, which were correctly concluded, is an obligation and conditions that were agreed about are also obligatory as they were correctly agreed upon.

We would also stress that this rule entails by necessity, that the original ruling of all things and entities in the universe is (ritual) purity. By way of greater clarity, our statement concerning the original ruling of permissibility required that such things are clear in their origin from any *aḥkām waḍiyya*. Nothing among them should be: cause, condition, license etc. to other thing, or other among 'positive' rules except through some piece of evidence. The same is to

¹⁸ Here we have omitted the repetition of the *aḥādith* as they are already cited in this chapter together with the full channels of reporting. The *isnād* is cut from the earlier *ḥadith* mentioned 'Leave me as I leave you,' again, as this has already been set out in the chapter.

¹⁹ Ibn Ḥazm, *al-Iḥkām* [Vol. 8, pp. 15/17]. The end verse quoted is 42: 21

be applied to incidents that happened in the universe such as the rising of the sun, rain, eclipses etc., until text establishes other than that.

7. What is the original ruling concerning worship?

Many hold the view that while the original ruling concerning matters is permissibility, this does not hold true for matters that directly pertain to *ibādah* - worship. Hence the saying – ‘*the original ruling concerning all ‘acts of worship’ is prohibition until evidence stipulates otherwise*’ which is almost common parlance. Given what we have presented in the previous chapters, we argue that this statement is futile. The sentence ‘*the original ruling concerning all “acts of worship” is prohibition until evidence stipulates otherwise*’ is meaningless. Whoever said as much has *presumed* that there are acts that deserve to be called ‘worship’ in-and-of-itself. Holding a view like this is a terrible mistake which leads to many other greater mistakes. Such matters will be considered in greater detail in the other sections of the present work.

Historically, the idea of a collection of rituals or rites being termed as ‘worship’ relates to acts that are done with the express purpose of gaining closeness to a divinity or divine entity. Worship is thus understood in this manner. Essentially it is the performance of certain actions and / or rituals as a means of approach or sanctification towards a divine or God-like entity. The ‘worshipper’ therefore utilises these rituals to get closer to that divine being; seeking its contentment and love; avoiding its wrath or punishment and seeking to obtain mercy and benefits, worldly or otherwise. Consequently, the performer of these rituals undertakes them in the belief that the particular divine being loves them to be performed and / or has obligated them.

After the message of Muḥammad peace and blessings be upon him any judgment that was proved to be desirable or obligatory means that this

judgment is different from the definite and original permissibility, a matter that is not established except by way of evidence. In actuality, the truth concerning this matter is that Allah is only ‘worshipped’ by what he himself has judged as obligatory or desirable. Put another way – Allah the Mighty and Sublime is only to be worshipped in the manner through which He has legislated. This maxim is not altogether new, rather it is a consequence of our previous statement – ‘the original ruling of all things (or objects), acts / actions and sayings is permissibility.’ The original ruling in contracts and conditions is permissibility and correctness. Fulfilling contracts, which were correctly concluded, is an obligation and conditions that were agreed about are also obligatory as they were correctly agreed upon. The original ruling of all things and entities in the universe is (ritual) purity. All definite evidence is based upon this, so whoever believes in Allah and the final day is not allowed to believe in other than this or to act according to other than it and whomsoever disbelieves, Allah is self-sufficient and free of all needs.

8. A ‘*Sunnah*’ of abandonment, or leaving?

In the previous chapters we detailed the authentic statements that have reached us from the Prophet peace and blessings be upon him where he was reported to have said:

- *‘Leave me as I leave you for the people who were before you were ruined because of their questions and their differences over their Prophets. So, if I forbid you to do something, then keep away from it. And if I order you to do something, then do of it as much as you can.’*
- *‘Leave me with what I have left to you, for those who were before you were destroyed because of excessive questioning, and their opposition to their Prophets. So when I command you to do anything, do it as much as it lies in your power and when I forbid you to do anything, then abandon it.’*
- *‘Whatever matter I informed you of, undoubtedly it is from Allah.’*
- *‘Verily, Allah has set some limits, so do not trespass them and He has ordained some obligations, so do not neglect them; He has sanctified some things so do not violate them; and He has refrained from mentioning other matters not (out of) forgetfulness, but as a way of being merciful to you, so accept (that) and do not look for them.’*

- ‘The most sinful person among the Muslims is the one who asked about something which had not been prohibited, but was prohibited because of his asking.’
- ‘Whatever was considered lawful by Allah in His Book is lawful and whatever was considered unlawful is unlawful and He has refrained from mentioning other matters so it is forgiveness from Him.’

Undoubtedly the Prophetic words are invaluable. Taken from this, the following maxims can also be elicited directly from these *aḥādīth*. Firstly, that he, may the peace and blessings of Allah be upon him, was indeed an eloquent Arab; protected with infallibility by Allah in delivering the message and gifted with ‘*Jawāmi’ al-Kalim*,’ the shortest expression with the widest meaning, being able to utilise single-sentences that bore wide meanings and contain deep wisdom. Given this, there was nothing preventing him from saying or expressing – ‘whatever I have left, you all must leave.’ On the contrary though he said: ‘*And He has refrained from mentioning other matters not (out of) forgetfulness, but as a way of being merciful to you, so accept (that) and do not look for them!*’ Some though have insisted upon not accepting the express wording that has been authentically reported. Instead, they have devoted copious pages and volumes trying to resist it.

Conceptual problems

Advocated by some – are we instructed to leave or abandon that which he, peace and blessings be upon him left? Is there something that is termed a *Sunnah Tarkīyyah* – literally, a *Sunnah* related to ‘leaving,’ non-performance or abandonment?

The notion of ‘*Tark*’ (‘leaving’, non-performance or abandonment) is a purely abstract matter which doesn’t fit into the argument for something. Also, the notion of ‘*Tark*’ doesn’t denote any connotation as it is not relating to a specific act or action. Literally, it is nothingness, thus not an evidence for anything. Therefore, there is nothing in the world that can be titled as ‘*Sunnah Tarkīyyah*’, in other words, the *Sunnah* of leaving, abandonment and non-performance, originally.

The notion of ‘*Tark*’ as an abstraction can be considered the opposite to an abstraction regarding acts. Previously we noted that of the certain

indicators relating to the acts of the Prophet peace and blessings be upon him, such as the indicators which provide definitive conclusive proof that whatever he undertook is not prohibited for the rest of his *Ummah*, unless that is, he has specified that what he is undertaking is specific to him. Therefore, there must be independent indicators or connotations to demonstrate that the act is to be considered as *wājib* (obligatory), *mustaḥab* (recommended) or *makruh* (disliked). So this must by necessity show according to the dictates of reason and implications, that ‘*Tark*’ as an abstract proof can only demonstrate that what he peace and blessings be upon him forsakes is not to be considered as *wājib*, unless he has outlined that it relates to his own specialities. Consequently, there must be indicators or connotations which demonstrate that to forsake a matter as it is *ḥarām*, *makruh*, *mustaḥab* or falls within the general ambit of *mubāh* (permissible). As was mentioned in an earlier chapter, which related to the study of the requirements relating to the textual designation of the Prophet peace and blessings be upon him as the ‘*Uswatun Ḥasana*’ – the best example or exemplar, he will never perform a matter prohibited for his *Ummah* and neither will he leave that which has been made obligatory either.

The notion of ‘*Tark*’ as an abstraction, in essence relates to the non-performance of an act. It is closer and more like that of the abstraction of ‘*iqrār*’ (approval, endorsement), which is a left-speech. And recognising the consequent judgment of absolute permissibility likened to that speech, as given by the necessity of reason. This is what the *Sharī’ah* evidences indicate as mentioned above. Although some may claim that they are the people of consideration, insight, measurement and balance; deriding those who would reject *Qiyās* (analogy). But they might fall headlong towards innovation in seeking how to justify the notion of *Tark* as an abstraction constituting some form of undesirability of prohibition. That the Prophet peace and blessings be upon him might leave some deliberately recommend actions intentionally, for some other considerations, which can be outlined in considerable detail.

First Consideration

One of the first considerations is that the Prophet peace and blessings be upon him may leave some of the devotional recommended matters in order not to

impose a burden upon people. As has been referred to by Imām Ibn Khuzaymah in his *Ṣaḥīḥ* under the chapter heading of:

Chapter mentioning the reason the Prophet peace and blessings be upon him left some devotional and supererogatory practices even though he encouraged them, and it was for fear that that action would be imposed on them even though it was desirable. The Prophet peace be upon him never ceased to undertake matters obligatory.

Evidentially this point is borne out by some of the most authentic *aḥādith*. For example, as is narrated in *al-Jāmi al-Ṣaḥīḥ al-Mukhtaṣar* by Imām al-Bukhārī:

حدثنا يحيى بن بكير حدثنا الليث عن عقيل عن بن شهاب أخبرني عروة أن عائشة، رضي الله تعالى عنها، أخبرته أن رسول الله، صلى الله عليه وسلم، خرج ليلة من جوف الليل فصلى في المسجد وصلى رجال بصلاته، فأصبح الناس فتحدثوا فاجتمع أكثر منهم فصلوا معه، فأصبح الناس فتحدثوا فكثر أهل المسجد من الليلة الثالثة، فخرج رسول الله، صلى الله عليه وسلم، فصلى فصلوا بصلاته فلما كانت الليلة الرابعة عجز المسجد عن أهله حتى خرج لصلاة الصبح، فلما قضى الفجر أقبل على الناس فتشهد ثم قال: أما بعد فإنه لم يخف علي مكانكم ولكني خشيت أن تفرض عليكم فتعجزوا عنها، فتوفي رسول الله، صلى الله عليه وسلم، والأمر على ذلك

Yahya ibn Bukeer narrated to us al-Layth narrated to us from 'Uqayl from Ibn Shihāb, 'Urwa reported to me that 'Aisha may Allah the Exalted be pleased with her, reported to him that once in the middle of the night the Messenger of Allah peace and blessings be upon him went out and prayed in the *masjid* and some men prayed with him. The next morning the people spoke about it and so more people gathered and prayed with him (in the second night). They circulated the news in the morning, and so, on the third night the number of people increased greatly. Allah's Messenger peace and blessings be upon him came out and they prayed behind him. On the fourth night, the mosque was overwhelmed by the people till it could not accommodate them. Allah's Messenger peace and blessings be upon him came out only for the *Fajr* prayer and when he finished the prayer, he faced the people and recited '*Tashah-hud*' and then said: *To proceed - verily your presence was not*

hidden from me, but I was afraid that this prayer might be made compulsory and you might not be able to carry it out.¹

al-Bayhaqy recorded similarly via a long channel in *Sunan al-Kubra* in the same manner as al-Bukhārī but with some important additions after the Prophetic statement of '*You might not be able to carry it out,*' from what happened at the time of Umar ibn al-Khaṭṭāb.

The Prophet peace and blessings be upon him encouraged people to perform the optional night prayers during *Ramaḍān* without any obligation, saying, '*Whoever performs the prayer of night during Ramaḍān hoping for faith and gaining reward from Allah, his all previous sins will be forgiven.*' Then the Prophet peace and blessings be upon him died. The matter was left unchanged during the time of Abu Bakr, may Allah be pleased with him. But during the *Khilafah* of Umar may Allah be pleased with him, the situation was changed. 'Urwa said 'Abdar-Raḥman ibn 'Abd al-Qāri informed me, (he was) one of workers of 'Amr may Allah be pleased with him, as he worked with Abdullah ibn al-Arqam in the treasury of the Muslims. He said that Umar ibn al-Khaṭṭāb may Allah be pleased with him got out during one night of *Ramaḍān*, then 'Abdar-Raḥman got out with him, who showed around the *masjid* while all people were in the *masjid* as separated groups or individuals; a man might pray alone and others might pray the same prayer also.

Umar said: 'By Allah, I think it will be more suitable to gather all those people under one Imām in order to all pray congregationally.' So he commanded Ubay ibn Ka'b may Allah be pleased with him to lead the people during the month of *Ramaḍān* for the optional night prayers. Once Umar may Allah be pleased with him got out and 'Abdar-Raḥman ibn 'Abd al-Qāri was with him, while people performed the optional night prayer congregationally, then he said to 'Abdar-Raḥman – 'What a delightful innovation! The optional prayer at the end of night, during the time where people sleep is the best one.' He referred

¹ *Ṣaḥīḥ* al-Bukhārī [Vol. 1, no. 882 and Vol. 2, no. 1908]. al-Bukhārī said 'Yunus followed (copied) it'; Imām Muslim also recorded this in his *Ṣaḥīḥ* Vol. 1, no. 761] the follow up of Yunus which is the reference as made by al-Bukhārī. Several Imām's also cite this in their respective collections, among them it appears in *Ṣaḥīḥ* Ibn Hibbān [Vol. 6, no. 2543], al-Ṭabarānī *Mu'jam al-Awsaṭ* [Vol. 2, 1043] and al-Nasā'i *Sunan al-Kubra* [Vol. 2, no. 2503].

to the optional prayers at the end of night because people performed these prayers in the first part of the night.²

After this, al-Bayhaqy said 'It was narrated by al-Bukhārī in the *Ṣaḥīḥ* from Ibn Bakir and not the *ḥadīth* of 'Abdar-Raḥman ibn 'Abd al-Qārī; but he documented this in relation to the *ḥadīth* of Mālīk from al-Zuhri.' Also, the *ḥadīth* of 'Aisha, mother of the believers, may Allah be pleased with her, is one of the soundest authentic traditions on record. Similar has been reported from Anas ibn Mālīk, as set out in the *Musnad* of Aḥmad via a *Ṣaḥīḥ* channel of transmission:

حدثنا يزيد (هو ابن هارون) أخبرنا حميد (هو الطويل) عن أنس أن رسول الله صلى الله عليه وسلم، كان ذات ليلة يصلي في حجرته، فجاء أناس من أصحابه فصلوا بصلاته، فخفف ثم دخل البيت ثم خرج، ففعل ذلك مرارا كل ذلك يصلي وينصرف، فلما أصبح قالوا: (يا رسول الله: صلينا معك البارحة ونحن نحب أن نتمد في صلاتك!، فقال: قد علمت بمكانكم، وعدا فعلت ذلك

Yazeed (he is Ibn Hārūn) narrated to us Ḥumayd (he is *al-Ṭawēel*) reported to us from Anas that the Messenger of Allah peace and blessings be upon him was praying one evening just outside the apartment. Some people came and prayed behind him so he made the prayer brief and then entered back into his house. Then he came out and did the same thing several times and each time people would pray behind him. The next morning people asked – 'O Messenger of Allah, you prayed and we prayed behind you, we would like you to make your prayer a bit longer.' He said: *I knew you were there so I deliberately made it brief.*³

In his *Ṣaḥīḥ*, Imām Bukhārī records the following from 'Amra from 'Aisha which is similar to the narration of Anas ibn Mālīk:

حدثنا محمد قال أخبرنا عبدة عن يحيى بن سعيد الأنصاري عن عمرة عن عائشة قالت كان رسول الله صلى الله عليه وسلم، يصلي من الليل في حجرته وجدار الحجرة قصير فرأى الناس شخص النبي، صلى الله عليه وسلم، فقام أناس يصلون بصلاته فأصبحوا فتحدثوا بذلك، فقام

² al-Bayhaqy *Sunan al-Kubra* [Vol. 2, no. 4603]

³ *Musnad* Aḥmad [Vol. 3, no. 13087 and 12024]. Among the other references provided which report the same are: *Musnad* Abu Ya'la [Vol. 6, no. 3755], *Musnad* 'Abd ibn Humayd [Vol. 1, no. 1409] and al-Bayhaqy *Sunan al-Kubra* [Vol. 3, no. 5021].

ليلة الثانية فقام معه أناس يصلون بصلاته صنعوا ذلك ليلتين أو ثلاثا، حتى إذا كان بعد ذلك جلس رسول الله، صلى الله عليه وسلم، فلم يخرج فلما أصبح ذكر ذلك الناس، فقال: إني خشيت أن تكتب عليكم صلاة الليل

Muḥammad narrated to us he said 'Abda reported to us from Yaḥya ibn Sa'eed al-Anṣārī from 'Amra from 'Aisha, she said: The Messenger of Allah, peace and blessings be upon him used to pray in his room at night. As the wall of the room was low, the people saw him and some of them stood up to follow him in the prayer. In the morning, they spread the news. The following night the Prophet peace and blessings be upon him stood for the prayer and the people followed him. This went on for two or three nights. Thereupon The Messenger of Allah, peace and blessings be upon him did not stand for the prayer the following night, and did not come out. In the morning, the people asked him about it. He replied that he was afraid that the night prayer might become compulsory.⁴

The *ḥadīth* from 'Aisha, mother of the believers, may Allah be pleased with her, is from amongst the most authentic reported, it appears in several other collections too. It provides an unequivocal religious proof in relation to the points being raised herein. A similar meaning is also reported from the narration of Zayd ibn Thābit, which again, is strong and authentic. As cited by al-Bukhārī in his *Ṣaḥīḥ*:

حدثنا إسحاق أخبرنا عفان حدثنا وهيب حدثنا موسى بن عقبة سمعت أبا النضر يحدث عن بسر بن سعيد عن زيد بن ثابت أن النبي صلى الله عليه وسلم، اتخذ حجرة في المسجد من حصير، فصلى رسول الله صلى الله عليه وسلم، فيها ليالي حتى اجتمع إليه ناس؛ ثم فقدوا صوته ليلة، فظنوا أنه قد نام، فجعل بعضهم يتنحنح ليخرج إليهم فقال: ما زال بكم الذي رأيتم من صنيعكم حتى خشيت أن يكتب عليكم، ولو كتب عليكم ما قمتم به، فصلوا أيها الناس في بيوتكم فإن أفضل صلاة المرء في بيته إلا الصلاة المكتوبة

Ishāq narrated to us 'Affān reported to us Uhayb narrated to us Musa ibn 'Uqba narrated to us: I heard Abu Naḍra report from Busr ibn Sa'eed from Zayd ibn Thābit that the Prophet peace and blessings be upon him took a room made of date palm leaves mats in the *maṣjid*. The Messenger of Allah peace and blessings be upon him prayed in it for a few nights till the people gathered (to pray the night prayer behind

⁴ *Ṣaḥīḥ* al-Bukhārī [Vol. 1, no. 696]

him). Then on the fourth night the people did not hear his voice and they thought he had slept, so some of them started humming in order that he might come out. He then said: *You continued doing what I saw you doing till I was afraid that this might be enjoined on you, and if it were enjoined on you, you would not continue performing it. Therefore, O people! Perform your prayers at your homes, for the best prayer of a person is what is performed at his home except the compulsory congregational prayer.*⁵

This *ḥadith* is widely reported, appearing in many collections.⁶ In summary, we can discern from these narrations that it has been authentically reported that some of the Companions cleared their throats, some had thrown pebbles at his door to alert him to their presence. He peace and blessings be upon him left them till morning and scolded them for these actions. It may be the case that ‘Aisha mistook the throwing of pebbles to be knocks at the door.

Second Consideration

The second matter to consider in relation to this subject is that the Prophet peace and blessings be upon him might abandon some devotional deeds and voluntary acts, whose virtues have been established to treat the Muslims with kindness and not overburden them with hardships. Indeed he, peace be upon him, the best exemplar with the most beautiful pattern of conduct abandoned the *Jihād* at times, though this was from amongst the most beloved acts in the world for him. He did this in order to not place hardship upon his *Ummah*. Abu Hurayrah reported that the Prophet peace be upon him said:

Allah has undertaken to look after the affairs of one who goes out to fight in His way believing in Him and affirming the truth of His Prophets. He is committed to His care that he will either admit him to Paradise or bring him back to his home from where he set out with a

⁵ *Ṣaḥīḥ al-Bukhārī* [Vol. 6, no. 6860]

⁶ Here, a large array of additional references are provided, almost a dozen. Notable among them are: *Ṣaḥīḥ al-Bukhārī* [Vol. 1, no. 698], *Muslim* [Vol. 1, no. 781], *Ṣaḥīḥ Ibn Ḥibbān* [Vol. 6, no. 2491] and *Sunan Abu Dāwūd* [Vol. 1, no. 1,044]. al-Ṭabarānī records the narration at several junctures in *Muʿjam al-Kabir* and *al-Ṣagheer* [Vol. 5, no. 4892; Vol. 1, no. 544] with some variance of wording to indicate that those present would cough, raise their voices, or on occasion throw small pebbles or sand on his door.

reward or (his share of) booty. By the one in whose hand rests the life of Muḥammad - if a person gets wounded in the way of Allah, he will come on the day of judgment with his wound in the same condition as it was when it was first inflicted; its colour being the colour of blood but its smell will be the smell of musk. By the one in whose hand rests the life of Muḥammad - if it were not to be too hard upon the Muslims, I would not lag behind any expedition which is going to fight in the cause of Allah. But I do not have abundant means to provide them with riding beasts, nor have they abundant means so that they could be left behind. By the one in whose hand rests the life of Muḥammad - I love to fight in the way of Allah and be killed, to fight and again be killed and to fight again and be killed.

I would submit that this *ḥadith* is one of the most authentic that is in existence. Imām Muslim has this in his *Ṣaḥīḥ* with the following *isnād*: ‘Zuhayr ibn Ḥarb narrated to me Jarir narrated to us from ‘Umāra - and he is Ibn al-Qa’qā’a - from Abu Zur’a from Abu Hurayrah,’ as well as through other channels.⁷ It is also recorded in many other collections.⁸ Thus the Prophet peace and blessings be upon him abandoned some expeditions, although getting to every expedition was the most beloved thing for him more than anything in this world as he reported to us.

Third Consideration

The Prophet peace and blessings be upon him declared that the best fasting was what the Prophet Dāwūd, David peace be upon him undertook. The format of this fast was that he used to fast on alternate days. However, it has not been reported to us that the Prophet Muḥammad peace and blessings be upon him ever fasted in this manner. So why did he abandon the best and practice otherwise? We do not know, because he did not clarify it for us. Moreover, it is known that this manner of fasting is not part of our religion, which Allah has promised to preserve and informing us that it is complete in every manner. If there was any specific merit now, he peace and blessings be

⁷ *Ṣaḥīḥ Muslim* [Vol. 3, no. 1876]

⁸ Notable among the various references that provided are *Ṣaḥīḥ al-Bukhārī* [Vol. 1, no. 36], *Ṣaḥīḥ Ibn Ḥibbān* [Vol. 11, no. 4736], al-Bayhaqy *Sunan al-Kubra* [Vol. 9, no. 17669] and *Musnad Aḥmad* [Vol. 2, no. 7157]

upon him would have clarified it for us. Although the Prophet peace and blessings be upon him is the best of all Prophets and Messengers and the most perfect example, the following should not always be *assumed* – firstly, that every act including those of *ibādah* undertaken by the Prophet peace and blessings be upon him is represented in the best form. Generally, the precedence and the perfection do not mean the completing in every imagined part except for Allah, the Exalted. Secondly, that other Prophets had preference or primacy in certain other areas. It is not doubted that Musa (peace be upon him) had been chosen among the people, and all other Prophets as he was spoken to directly by Allah; that Esa ibn Maryam peace be upon him and his mother is termed the ‘word of Allah’ and ‘a spirit’ preceding him; his birth being miraculous as is his life.

The superiority of Bilāl and Abu Dharr over Mu’ādh ibn Jabal may Allah be pleased with them all, shouldn’t attract conflict or suspicion, this is despite the fact that clearly Mu’ādh was known to be very well versed in what is considered *ḥalāl* and *ḥarām* more than most Companions. Most of Companions came before Abdullah ibn ‘Abbās, having a status not achieved by him, for example being from amongst the Companions who fought at *Badr*, *Uhud* or who those took the pledge of allegiance with the Prophet peace and blessings be upon him under the tree. Yet despite this, he had a greater knowledge than most, being the interpreter of the Qur’ān and a great scholar of Islam. Indeed, some of the earlier Companions such as ‘Abdar-Raḥman ibn ‘Awf read Qur’ān under the tutelage of Ibn ‘Abbās, correcting their understanding and recitation with him. Further to this, the primacy of the companions of Muḥammad peace and blessings be upon him within this *Ummah* is acknowledged. However, this does not mean that *every* virtue and good deed rests with them until the Day of Judgement. Every point advanced in relation to this is but a misconception, being argued from an emotional or reactionary basis, that which doesn’t stand scrutiny.

Fourth Consideration

As has been established previously with decisive evidences, the original rule concerning things / objects, acts and sayings is one of permissibility. The Prophet peace and blessings be upon him placed great emphasis upon the forbiddance of asking too many questions lest this lead to destruction; he also

declared that he would elucidate all the commands and prohibitions that Allah revealed. Allah has told us ‘*And your Lord is not forgetful.*’⁹ Following on from this, we have established that his non-performance or lack of comment upon an act by necessity, denotes its permissibility. It is not the case that this non-performance constitutes a matter of prohibition, since the Prophet peace and blessings be upon him clearly and expressly said:

دعوني ما تركتكم، إنما أهلك من كان قبلكم سؤالهم واختلافهم على أنبيائهم؛ فإذا نهيتكم عن شيء فاجتنبوه، وإذا أمرتكم بأمر فأتوا منه ما استطعتم

Leave me as I leave you for the people who were before you were ruined because of their questions and their differences over their Prophets. So, if I forbid you to do something, then keep away from it. And if I order you to do something, then do of it as much as you can.

The Prophet peace and blessings be upon him might abandon or not perform some deeds for other considerations that we do not know. In any event, the abandonment or non-performance relates to *not doing something*; hence it is not a proof of anything as we have outlined thus far. Some people may hurriedly respond to what has been said by saying, that what has been presented is a disservice to their arguments and what they claim to hold. They would claim that they have never asserted that an abstract ‘*Tark*’ is such a thing or a proof. Rather, in their eyes, the argument is thus: that the proof relating to the ‘*Tark*’ of the Prophet peace and blessings be upon him is of an act that is not surmountable, together with the requirement and absence of an impediment, and other points of control.

An argument from nothingness

In response, we would assert that despite the hatred, fanaticism, arrogance and the vicious reaction that often accompanies proponents of this viewpoint, there are very important fundamental principles that need to be elucidated. For the sake of completeness and intellectual honesty, the following quote is presented in full, from the work of Dr. Muḥammad ibn

⁹ Qur’ān 19: 64

Ḥussein ibn Ḥasan al-Jizāni, entitled: *Ma'ālim Uṣul al-Fiqh inda' Ahl al-Sunnah wal-Jamā'ah*.¹⁰

Fifth: A binding proof (relating) to his *Tark* (non-performance, abandonment) peace be upon him: to do one act from amongst others; it is purported (to be) by way of two types from the companions, may Allah be pleased with them all, namely:

1. That he peace be upon him gave an authorisation for such and such not to be performed, like his companions saying in relation to the *Eid* prayer: (that The Messenger of Allah peace be upon him offered the *Eid* prayer without the *adhān* and the *iqamāh*).
2. There is a reason why the companions did not narrate what the Messenger of Allah peace be upon him might not have done, they or at least one of them would have exhausted themselves to make this available to the *Ummah*. Therefore, none of them has indulged in this and it has never been narrated in a book. As an example, is that he peace be upon him abandoned / did not perform the (verbal) pronouncement of the intention when entering the prayer; and he left/abandoned the supplication after the prayer; for the future of the faithful who believe in his supplication, after *fajr* and *aṣr* or in the congregational prayer.

And his *Tark* peace be upon him concerning an act from amongst the acts, is a proof, thus it is obliged to act as he acted, to leave whatever he left. Accordingly, that requirement must fulfil two conditions:

¹⁰ Digital electronic version of *Shāmila*, [5th ed. 1427AH, Vol. 1, p. 2]: The opening portion of the quote is dropped to the footnote as this outlines the thesis declaration: 'The origin of this book: stems from a doctoral thesis that was submitted at the University of Medina al-Munawara. The committee (to which this was presented) was comprised of the virtuous Dr. 'Amr ibn Abdul-Aziz, professor and supervisor of *Uṣul al-Fiqh* in the Department of Graduate Studies at Umm Al-Qura University, Makkah al-Mukarama; Dr. Ali ibn 'Abbās al-Hikmi, Head of Graduate Studies Department at Umm Al Qura University, Makkah. Dr Aḥmad Muḥammad 'Abd al-Wahhāb, Professor of *Uṣul al-Fiqh*, from the department of graduate studies at the Islamic University of Medina. (The thesis) was approved with first-honours on 25-1-1415 (AH), conferring the title of 'Shaykh' which in Latin has the designation of doctorate (PhD). The author is expected to be able to adduce new material (sic. a contribution to knowledge), or so is the accepted universal custom these days. It is also accepted by contemporary modern standards, that the author must have written (the thesis) themselves and built upon the works of the previous contribution to scholarship. (From between the bowels and blood) his butter (pure milk, easy and agreeable to swallow for those who drink).'

First condition: that there is a reason present for this action during his time, peace be upon him, and that there is a need for him to perform the act. If this is the case and he peace be upon him did not do it, thereby not performing the act, then it is a *Sunnah*, that should be taken, to leave that act also. If the necessary obligation was not present as a condition, then for this reason, his (peace be upon him) non-performance does not constitute a *Sunnah*, because his abandonment/non-performance is due to the absence of a requisite condition. (Such as) fighting those withholding the *zakāt* only, as this was because of the absence of reason but when Abu Bakr, may Allah be please with him, fought only the withholders of the *zakāt* he was not acting contrary to the *Sunnah* of the Messenger of Allah peace be upon him.

As for what some rulers did in introducing the *adhān* for the two 'Eids, that is an innovation (*bidā'*), because the Messenger of Allah peace be upon him left that act given it wasn't necessary. He peace be upon him commanded (performance) of the *adhān* on Friday, and prayed the two 'Eids without either an *adhān* or *iqama*; not performing/leaving that was the *Sunnah*. No one may (place) an addition to that, (similar to the fact that) no one may increase the requisite number of prayers or units of prayer.

That was similar to what happened, such as making the sermon prior to the prayer of the two 'Eids, by the needs of the people, which was done by some rulers and they obliged it. People had become despondent before listening to the sermon, which was during the era of the Messenger of Allah peace be upon him. That wasn't stopped until it was heard by the majority of them. Nor was it sufficient to leave, peace be upon him, the act (present) with its requirements.

Second condition: The absence of symptoms and restrictions, because he peace be upon him, may actually leave one of the acts with the presence of the existence of the necessary reason because of another reason not allowing him to do that. That is like when he peace be upon him left the *qiyām* in *Ramaḍān* with his Companions after a few nights and explained that he feared that it would be obligated upon them. During the time of Umar, may Allah be pleased with him, he (organised this) gathering under one reciter. By doing so, it wasn't against the *Sunnah* of the Messenger of Allah peace be upon him. (Also), that is how the Qur'ān was compiled, (given that) there was a

prohibition on doing this during the lifetime of the Messenger of Allah peace be upon him, as the revelation was still ongoing. Allah (is at liberty) to change what he wants and decide what he wants. If it had been collected into one compendium it wouldn't have been possible or very difficult to change it, (though) it was settled by the death of the Messenger peace be upon him; the people being assured (then) that there would be no increase or decrease to it. As for his peace be upon him leaving the *adhān* for the two 'Eids, there were no objections, so that was a Prophetic *Sunnah* that must be followed. To summarise this matter, that his *Tark*, peace be upon him, is not without the following submissions:

The First Submission: Completeness of this *Sharī'ah* and the complete disregard for any additions to it by innovators and those inclined to that. Allah has completed this *Deen* and nothing is ever lacking therein. From amongst the proofs for this introduction is the words of the almighty: *This day have I perfected for you your religion and completed My favor on you and chosen for you Islam as a religion* [5: 3]. And he peace be upon him said: *'By Allah, I am leaving you upon something like Bayḍā (white, bright, clear path) the night and day of which are the same.'*

The Second Submission: His statement peace be upon him, for this *Deen* and his duty to convey it completely, so that nothing small or large was neglected, it all reached his *Ummah*. Amongst the proofs that (establish) that, he the exalted said: O Messenger! Deliver what has been revealed to you from your Lord; and if you do it not, then you have not delivered His message [5: 67]. The Prophet peace and blessings of Allah be upon him complied with this and adhered to the command to deliver the message. His nation bore witness to the conveyance of this message and that he delivered it in full, as set out in the sermon of the farewell pilgrimage.

The Third Submission: Allah has preserved this *Deen* and guaranteed to maintain it from being lost. Allah outlined all the factors and facilitated the transference (of this message), ensuring it would survive and continue, up to this day and forever, God-willing. The evidence for this is the verse - *Verily, We have revealed the Dhikr and We will most surely be its guardian* [15: 9]. For indeed, one witnesses the truth of that; Allah has preserved his book and the *Sunnah* of his Prophet peace be upon him. And the jurisprudence of the Muslim

scholars in relation to the (fundamental) principles, terminology of *ḥadīth* and *Uṣūl al-fiqh*, as well as the fundamentals of Arabic language.

Ibn Qayyim said: "Indeed, his '*Tark*', peace be upon him, is a *Sunnah* and it is the same as his acts, (that are) *Sunnah*. If we would like to act upon that which he has left/abandoned, then it is exactly like leaving what he has undertaken, and there is no difference."

If it is said: from where did it reach you that he did not undertake the action, that is non-textual and doesn't require non-textual nothingness? But this question seems quite far-fetched, about the understanding of the matter and his *Sunnah*. If the question were correct, then it would be considered recommended and acceptable to us (then) to pronounce the *adhān* for *Tarāweeh*. And he said: from where did it reach you? And there is another desirable matter also, to wash for every prayer. And he said: from where (was that) that it wasn't reported?...And (that) opens the door of *bidā'*. And he said: everyone who calls unto *bidā'* said: from where (was that) that it wasn't reported? It should be noted that the matter of the *Sunnah* of abandonment/non-performance – *Tark*, is based upon firm well established premises.¹¹

Rebuttal

Turning now to the required comment upon all of this, firstly, what is mentioned in the opening paragraph, purportedly about how the Companions reported the matter of '*Tark*' and/or its importance has nothing to do with the subject-matter of whether it is an actual legal proof. It must be placed within the study of the *Dhikr* and its preservation. Since Allah has declared the undertaking for the protection of the *Dhikr*, there cannot be any remaining doubt concerning anything that has been left or abandoned for the *Deen*. If that is, there can be anything of this type to be spoken of originally. Allah the exalted has given the guarantee concerning the preservation of the *Deen*. It shouldn't be a concern as to the precise method for that, or even seeking to try and enumerate subdivisions and categorisations. Every form of '*Tark*' is thus not a legal proof in matters of *Deen*, as it is not from the protected preserved

¹¹ Ibid, [pp. 123/130]

Dhikr; attention shouldn't be given to whether it has been conveyed to us or not. Indeed, the main point of research should in fact be: is the issue of 'Tark', either some or all of it, even a legal proof? If it is the former or even the latter, then what would be its substantive conditions? Do some take formal precedence over others and upon what basis?

Advocated by some – are we instructed to leave or abandon that which he, peace and blessings be upon him left? Is there something that is termed a *Sunnah Tarkiyah* – literally, a *Sunnah* related to 'leaving,' non-performance or abandonment?

The notion of 'Tark' ('leaving', non-performance or abandonment) is a purely abstract matter which doesn't fit into the argument for something. Also, the notion of 'Tark' doesn't denote any connotation as it is not relating to a specific act or action. Literally, it is nothingness, thus not an evidence for anything. Therefore, there is nothing in the world that can be titled as '*Sunnah Tarkiyah*', in other words, the *Sunnah* of leaving, abandonment and non-performance, originally.

Secondly, without justification the author then fell into exaggeration by claiming the matter of 'Tark' regarding an act is proof, thus obliging it to be left too, given two conditions being fulfilled. In reply, there is nothing untoward at first. Perhaps it was the case that he wanted to formulate a general rule first, then proceed to the evidences relating to it. There appears to be some hesitancy in the phrasing 'it is obliged to act as he acted'. Perhaps he meant to elucidate, doing what he peace be upon him did is obligatory. Or to argue that what he has not done is obligatory not to do also. If the latter is the intended meaning, then it is without doubt the height of falsehood.

Thirdly, Dr. al-Jizāni tried to set out the justification in the first condition by arguing 'The existence of the reason for this and to need to do this action', but it wasn't dependent upon any necessity, reasoning, nor for that matter upon the texts of the revealed sent-down revelation, which is the book and the Prophetic *Sunnah*. Rather, his line of argumentation sought to dispense with the burden of proof by the following examples.

The first, regarding his abandonment of fighting those who didn't render the *zakāt*. I would state in reply, this is complete ignorance. The Prophet peace and blessings be upon him prepared to fight the *Khuzā'ah* when the *fāsiq* fabricated lies against them, that much is well known. But Allah the Almighty explicated the lying *fāsiq* until the Day of Judgement. It may be

said: did Abu Bakr not stand as witness to this when in heated debate with Umar? We would say, why was this so? Did they forget or did they not then marshal it during this argument? On the other hand, the incidents of accidents and calamities will never cease until the end of the world. So it is necessary to bring forth the ruling of Allah by the most diligent *ijtihād*, suitable to the case. It is therefore not of the matter from *Sunnah* or even innovation but rather under the chapter of *ijtihād*.

With regards to the second example, the Prophet peace and blessings be upon him left performing the call to prayer for the two '*Eid*' prayers. What some of the rulers who performed the call to prayer for the two '*Eid*' prayers, undoubtedly, it is an innovation. In reply, strictly speaking, that isn't correct. Firstly, the city of Medina was a small entity and the time was generally well known to all, particularly given that many were keen to attend prayer in congregation as well as circles of knowledge held by the Prophet peace be upon him. If all the individuals of a given household couldn't attend, they would rotate attendance, as was the known practice that Umar did with his brother from the Ansār. Hence there wasn't a pressing need to announce the call to prayer for that of '*Eid*'. Secondly, the *adhān* is the notice to people that the time of prayer has entered and to invite them to it. The Muslims were consulting one another and the Seal of the Prophets was amongst them. He would no doubt be involved in deliberations such as the call to prayer as a matter of course. One such striking example is the narrative of how the call to prayer came about, as it was being discussed; the bell was touted as a method and then the blessed vision came. He peace be upon him would often command a man to call for the congregational prayer, but also for emergency meetings other than that. However, we don't know whether this was made in the same formulation as the present wording of the *adhān*. But with the expansion of the city and the absence of the Prophet's blessed personality, this created a new situation with its own particular needs and requirements. Our question to Dr. Jizāni is why did he depart so noticeably from any discussion concerning the first Friday congregational prayer held by the leader of the believers, Uthmān ibn 'Affān? No doubt, Uthmān is trustworthy in matters of *Deen* and it is not that he intended to innovate or introduce something new in matters of *Deen*, in stark contrast to the tyrants of Bani Umayyah. Yet the *Deen* was completed prior to the death of the Prophet peace be upon him. Innovation in *Deen* is the same: there is no difference between it being with

good intent and requisite evidence, as well as the good faith of the leader of the believers, Uthmān ibn ‘Affān, may Allah be pleased with him, or being with a bad intention, the misguided argument of a hypocrite.

The claim of Dr. Jizāni that the Prophet peace and blessings be upon him left the *adhān* of the two ‘*Eids* because there was no need for it, is to cast stones into the unseen. It is to say something about Allah without having any knowledge. Given that we are prevented from exaggeration and asking unnecessary questions, the matter is best left there, instead of delving into speculation and departing from the *muḥkam*. It is indeed the truth with certitude - it is impossible for the infallible Seal of the Prophets, the Prophet Muḥammad peace and blessings be upon him, to leave that which has been made *wājib* upon his *Ummah*. The exception to the general rule being where it relates to his *specialism* as a Prophet and there is a decisive proof to establish that. Every *ḥukm* by necessity, like disapproval, recommendation, prohibition and the like, is established by independent evidence and not recourse to a supposed ‘*Tark*.’ Moreover, it is known with certitude: it is impossible for the infallible Seal of the Prophets, the Prophet Muḥammad peace and blessings be upon him, to undertake any matter that is prohibited for his *Ummah*. Again, the exception being where this relates to his own specialism as a Prophet, for which we have a decisive evidence to establish that. All that is necessary, recommended, permissible, disliked etc. needs to be established by requisite evidence, not merely reference to an act.

When Dr. Jizāni spoke in relation to the second condition, namely the ‘absence of impediments’, he mixed this together with the first condition. There are other impediments that could have been mentioned, some of which we have elucidated previously. There are matters that the Prophet peace be upon him did not do, even though they are praiseworthy, such as the intermittent fasting, and he did not clarify why he did not undertake it. As for the example concerning the collection of the Qur’ān, that is a clear mistake. The Prophet peace be upon him had his own specific *muṣḥaf*, which was attributed to Uthmān ibn Abi al-‘Aāṣ al-Thaqafī, when he was appointed as the ruler of Ṭā’if. It is not clear whether a new copy was re-written for him. Each of the most important Qur’ān memorisers had their own *muṣḥaf*, such as Ali ibn Abi Ṭālib, ‘Ubay ibn Ka’b, Abdullah ibn Mas’ud and Zayd ibn Thābit and Umm Waraqa al-Shaheeda, may Allah be pleased with them all. Allah has confirmed that the collection and preservation of the book rests with him,

the exalted and majestic: ‘*Surely upon us (devolves) the collection and its recitation.*’¹²

What was suggested by Umar during the period of apostasy, was to transcribe the *muṣḥaf*, acting in the capacity of Imām. That text was to be according to the final recitation and would be devoid of the commentaries and explanatory notes that scribes had made. It would also contain none of the abrogated verses that were originally recited. In short, it would be a uniform copy for the *Ummah*.

A quote from Ibn al-Qayyim

Following the admixtures and general mischievous whisperings, Dr. Jizāni purportedly marshals a quote attributed to Imām Ibn al-Qayyim. In a way, the use of this quote seems to be what he has premised his argument upon, particularly given the inability to provide any textual evidence to substantiate his view. The first quoted sentence from Ibn al-Qayyim is: ‘Indeed, his ‘*Tark*’, peace be upon him, is a *Sunnah* and it is the same as his acts, (that are) *Sunnah*. If we would like to act upon that which he has left/abandoned, then it is exactly like leaving what he has undertaken, and there is no difference.’

Although there are different editions, at the time of writing, the edition present here, is the study and commentary undertaken by Ṭaha ‘Abd al-Ra’ouf Sa’d.¹³ Despite perusal of this publication, no substantive evidence is present to substantiate his position. There isn’t any evidence for this statement which is *mursal*, but only sporadic examples of some of what the Prophet peace be upon him left. Nothing further. The saying attributed to Imām Ibn al-Qayyim is *mursal*, it is a mere claim, or assertion that has no substantive proof within it. Even if Imām Ibn al-Qayyim was considered as an infallible Imām following the *Rāfiḍah*, the attributed statement wouldn’t become a valid argument. Emphasis is placed that it isn’t incumbent to do what the Prophet peace be upon him left/abandoned, nothing else. From the necessity of perception and reason we know that what is not recommended, may fall into another categorisation: either obligated, disliked or prohibited outright. So what are the parameters of what is being claimed ultimately?

¹² Qur’ān 75: 17

¹³ Published by Al-Azhar Library, Cairo, Egypt [1388/1968]; electronic comprehensive library [p. 460]

Following on from that, considering the next comment attributed to Imām Ibn al-Qayyim, foremost, as we have mentioned previously, this doesn't fall within the subject matter of 'the proof of *Tark*', but rather within the chapter about the protection and preservation of the *Dhikr*. There does seem to be some subconscious recognition that this statement and its underlying reasoning is inherently flawed, hence the need to return to it and attempt to strengthen it somehow.

Imām Ibn al-Qayyim wanted to round-off the chapter that he had called 'innovation' - *bidāh*. His comment is noteworthy: 'And there is another desirable matter also, to wash for every prayer. And he said: from where (was that) that it wasn't reported?...And (that) opens the door of *bidāh*'. And he said: everyone who calls unto *bidāh* said: from where (was that) that it wasn't reported?' To respond we would say, to claim that it is necessary to wash at every prayer requires an independent proof, because it relates to the matter of taking this point of washing and making it desirable. It cannot be established as being an obligation without a requisite proof. Hence there is no substance to placing this within a research concerning what the 'Prophet left,' for it is inconceivable that evidence has been 'lost' as the *Dhikr* is preserved and protected.

Lacunae

Dr. Jizāani appears to sense that all which he has marshalled is but sentiments, incomplete examples. Vague references devoid of substantive proof cannot be construed as being 'well-established, firm introductions,' as he alludes to. In fact, the textual evidences which do exist are in stark contrast to what Dr. Jizāani purports to claim.

Allah perfected the elucidation of the Qur'ān, and his Prophet peace and blessings be upon him had the complete perfect message that was delivered. He was granted '*Jawāmi' al-Kalim*', the shortest expression with the widest meaning. Given this, such words make us wonder at how he expressed the with amazing precision the summary of *aḥādith* presented at the beginning of this chapter. Moreover, he did not say: 'do what I do, but leave or abandon what I leave.' That undoubtedly is the phantasm of some minds. Allah is fully cognisant of all matters and His knowledge encompasses all knowledge.

Do such individuals really have the audacity to claim that Allah would have forgotten to instruct his Prophet to say this?

The perfection and preservation of this *Deen* by necessity, prevents the need to develop a rule or principle that has not been subjected to the decisive proofs of the *Deen* itself. But rather the innovation in the development of such a 'rule of law' is, in general, worse and more difficult to invent by creating a partial case with no tangible basis or reality. Yet this is exactly what the proponents of those who claim that there is a '*Tark al-Nabi*' which is a 'proof.' The same individuals level accusations of heresy and innovation at others, yet they themselves are guilty of this with a principle that has no basis in *Deen*. The *Deen* which includes its legal system has been established as complete. Secondly, that the Prophet peace and blessings be upon him discharged his duty to convey the message to in totality, without leaving any matter be it great or small, he has informed his *Ummah* of this.

The decisive truth, concerning that which the Prophet peace be upon him left, was silent about and tacitly approved: all of that at root, falls within the realm of original permissibility, absolutely. Hence there is no truth in someone claiming that whatever the Prophet left, we must leave also. To claim as such, is but a heinous innovation of the Wahhābi's. But what the Prophet has left, we have analysed, if we want to leave as such or do as such, may Allah forbid that we should say that it is reprehensible or that it is prohibited, in the absence of any evidence or substantive proof to the contrary. However, it is clear that extremist elements, be they from the sect of Wahhābism or others, seek to practice a form of intellectual terrorism. That much is clear from when they express loudly and arrogantly express the statement: how can you do what the Prophet peace and blessings be upon him or his Companions didn't do? No doubt it is designed to level any opposition into surrender and submission, whether that be from amongst the minor students of knowledge or amongst the general masses.

Sharpness of argument

To deliver the knockout blow to all the imposters, those within the boundaries of extremes and outright liars, one may ask them forthrightly: is it not that the original ruling concerning acts, contracts, conditions is but one of absolute general permissibility, as demonstrated by the exhaustive evidences?

So how is it now that you have made this matter now one of impermissibility or that which is disliked? Did not the Prophet, peace be upon him and his family expressly state the authentic series of *aḥādīth* outlined at the beginning of this chapter, presented in full in the previous? Clearly, he stated: ‘*Leave me as I leave you*’ and he is never reported to have said: ‘whatever I have left, so you should leave it.’ Furthermore, this is not considered a *bidāh* – innovation or heresy, but is in fact similar to the argument put forward by the grand of classical Islamic Spain, Imām Abu Muḥammad Ali Ibn Ḥazm in his seminal work *al-Iḥkām fī Uṣul al-Aḥkām*. Presented in full for clarity, he wrote:

(From) what we have mentioned previously concerning *al-‘Istisā*’ (taking the Prophet as an exemplar in matters which are obligatory) in relation to his actions; and as for the one who says, ‘We demand evidence’ - therefore if we find something which substantiates that an action is obligatory we adopt the position. Similarly, if we do not find it, then we consider those actions as a part of ‘*Istisā*’ only. Then this statement is the same as our opinion except that we always consider an action to be from ‘*Istisā*’ when we do not find evidence indicating its obligatory status. However, if there is such evidence, we adopt the position that it is obligatory and with Allah, the most High, is success.

Abu Muḥammad said: And as for the thing that reached him peace be upon him, or he saw them, or he heard, which he did not explicitly reject; neither did he command to enjoin in, then it is considered *mubāḥ* (permissible) because Allah the Mighty and Sublime described him, peace be upon him, and has said: ‘(Those) who follow the Messenger - the unlettered Prophet they find described in the Torah that is with them, and in the Gospel - who commands them to do right and forbids them to do wrong, who makes good things lawful to them and bad things unlawful, and relieves them of their burdens, and the iron collars that were on them. So it is those who believe him, honour and help him, and who follow the light which has been sent down with him, who will succeed’ [7: 157].

Therefore if a thing is supposedly *munkar* (evil), then without a doubt the Prophet peace be upon him would have prohibited it. If he did not designate it as *munkar* then it is considered as being *mubāḥ*. The *mubāḥ* is that which is ‘known’ and whatever the Prophet peace

be upon him knew, then it is from the ‘known’. There is no ‘known’ except that which the Prophet knew and, likewise, there is nothing declared as *munkar* except what the Prophet has declared it as such. An example of this is the singing of the two young girls in the house of the Prophet peace be upon him. He heard their singing and did not rebuke them for it. Rather, when Abu Bakr rebuked them, the Prophet rebuked him for doing that. Therefore, this text that we have mentioned demonstrates the duty of one to rebuke those who prohibit actions that the Prophet peace be upon him himself knew of and gave tacit approval to. Another example is when Umar prohibited the dancing of two black slave girls to which the Prophet peace be upon him rebuked Umar due to his decree preventing those girls from doing that.

Another example is the games that the Prophet (peace be upon him) saw ‘Aisha play; where (she had) a doll (that was) a horse with wings. (This) was used despite his peace be upon him prohibition on images. This circumstance is an exception to what he peace be upon him had prohibited. It is like the prohibition of having images on one’s garments despite the fact that he permitted such a garment if it had a small image on it. It is an exception from him on a general ruling of what he has prohibited with regard to images. So when ‘Aisha cut out the images from a garment and two pillows which he peace be upon him would recline upon it was not because he prohibited the use of them. It is therefore correct to state that whatever is on a garment, which has an image on it, is *makrūh* and not *ḥarām* nor *mustaḥab*; rather the one who leaves it is rewarded and the one who uses it does not incur sin. In this instance, the Prophet peace be upon him chose the better of the two options as well as ‘Aisha and Fāṭima. Therefore, it is correct to state that garments that have images, even pillows, are permissible and okay to have and are not *mustaḥab*. We do not dislike it initially rather we love it.

Likewise, if he peace be upon him left something and did not prohibit it or command for it to be done it is considered permissible to do according to us but *makrūh*. The one who leaves it is rewarded and the one who does it incurs neither sin nor reward. An example is like the one who lies down and eats or the one who listens to the musical instrument of the shepherd – if these acts were *ḥarām* then they would not have been made permissible by the Prophet peace be upon him for others to do. Consequently, if they were recommended acts then the

Prophet peace be upon him would have done them and he would not have left them in dislike. Hence we consider such actions as *makrūh* and we do not consider them to be *ḥarām*.

And if one says, ‘A group had slept in the presence of the Messenger of Allah peace and blessings be upon him then woke and prayed without being ordered to perform ablution, do you not see that as evidence against your position?’ It should be said to that person, and with Allah is success, that not one person has narrated that the Messenger of Allah peace and blessings be upon him saw them sleeping and neither do I know whether they were sleeping as the *ḥadith* reports that he peace be upon him delayed the ‘*Ishā*’ prayer to the later part of the night when the people fell asleep to the point that one could hear them snore and Umar shouted ‘The women and young boys are asleep!’ Thus the *ḥadith* is clear in that it shows that they were sleeping whilst the Prophet peace and blessings be upon him was absent and not among them. Rather, I know from this *ḥadith* that it was only Umar who knew that the women and children were sleeping.

Furthermore, these two groups of people are not obligated to attend prayers in congregation. Also it should be asked, how does one argue using this *ḥadith* to hold the opinion that they slept a short sleep whilst sitting? Of course it cannot be argued as this *ḥadith* does not intend that, so perhaps there were those among them who slept leaning on his companion or on the wall or lying down or in deep sleep. It is unknown to those who did not attend their presence how they had slept.

These types of arguments are not acceptable for the one who has a slight ounce of honesty in their faith. Therefore, when it is authentically reported that he peace be upon him was absent and textual evidence has not reached us that he knew of them sleeping then his command (peace be upon him) to perform ablution after sleep, as reported from Ṣafwān ibn ‘Assāl al-Marādī, is applied generally and we adhere to that. We do not remove that which we have been ordered due to a matter in which we do not know whether the Prophet peace be upon him was aware of the circumstances or not. If it were authentically established that he peace be upon him knew that they were asleep and that he allowed them to pray without performing ablution, then we would hold the opinion that ablution is not needed for the one who has slept under any circumstances. And if it were authentically narrated in that report that Umar said ‘the people slept’,

then he would not have commented on them as his words ‘the people slept’ mean those who were waiting for the Prophet peace be upon him.

And how can this be when every group amongst them differs in this narration because they claim that it refers to certain types of sleep over others, despite the fact that there is no basis amongst any of us to do this. Therefore, if one were to say, ‘Is it permissible to state that the Messenger of Allah did not know of this?’ It should be responded that it is permissible to hold this opinion just as it is permissible according to you, the people of (the legal schools of) Shāfi’i, Māliki, and Ḥanafī, when Jābir said, ‘We used to sell the mothers of our children during the time of the Messenger of Allah peace and blessings be upon him’ despite the fact that this issue is more known than that of the people sleeping during the night. Those people were in need of light when they were in the corner of the mosque and, as it is stated among the Māliki’s, he peace be upon him was unaware when the family of Abu Bakr slaughtered a horse and they gave it to them and him peace be upon him in Medina. This is more known than the issue of a group sleeping in the corner of the mosque. They did this due to the lack of housing that they had in Medina during the time of the Prophet peace be upon him, the difficulty in living, the lack of stability, the closeness of Abu Bakr’s family with the Prophet (peace be upon him), and their proximity to him.

Therefore, how can it be said that he was unaware of them slaughtering a horse that they would then feed to him and he was not unaware of a group of people sleeping in the corner of the mosque whilst he was in their absence? If it were true that he peace be upon him was present in the mosque then it may have been possible to state that he was aware of them sleeping in the corner of the mosque. Yet how can that be the case when it is authentically reported that he peace be upon him was absent from them despite the fact that some have specified what type of sleep they were in; namely that they were sitting, neither leaning, nor lying down, nor reclining and who ever brings this argument he is lying and with Allah is his success.¹⁴

We would disagree only slightly with the above as it relates to the *fiqh* issue of whether sleep necessitates *wuḍū* and a couple of other items. Yet the basic

¹⁴ Ibn Ḥazm, *al-Iḥkām* [Vol. 4, pp. 56/58]

purport of the argument that Ibn Ḥazm advanced remains correct. His reasoning presented, invalidates all the arguments relating to the repealed act, or the allegation that it is a *bidāh*, merely on the basis that the Prophet peace be upon him did not do it. More grotesque and insidious is the additional argument accompanying this, that a ruling is invalid because the Prophet's Companions may Allah be pleased with them *did not* do it. How is this valid? Their explicit words, the apparent of their actions as well as their approvals are not a proof, so how can what they leave – an argument based upon nothingness - be regarded as a legal proof? It is an argument that has no substantive basis either in law or reason. By Allah, those marshalling it are misguided innovators; they are the ignorant and the perverse and are incredibly shallow minded. Or even perhaps, Allah forbid, incredibly stubborn disbelievers.

9. Actions are by intentions

Deserving reward and praise from Allah for any action performed depends upon the underlying intention. The same exists with regards to punishment and dispraise from Allah. For example, if one were to hunt using a weapon and accidentally kill someone that would be considered as manslaughter. But despite the individual causing the death of another life unintentionally, he would not be classed as being a murderer and sinful for that as such. It is not comparable to someone who kills *with* the intention of taking another life, even if the end result appears the same in both scenarios. The distinction is that of the underlying intention. Perception and reason confirm this, as does the *Sharī'ah*. Scholars of Islam are also in unanimous agreement over this principle. Allah the Exalted and Majestic states:

مَنْ كَانَ يُرِيدُ الْعَاجِلَةَ عَجَّلْنَا لَهُ فِيهَا مَا نَشَاءُ لِمَنْ نُرِيدُ ثُمَّ جَعَلْنَا لَهُ جَهَنَّمَ يَصْلَاهَا مَذْمُومًا مَذْذُورًا، وَمَنْ أَرَادَ الْآخِرَةَ وَسَعَىٰ لَهَا سَعْيَهَا وَهُوَ مُؤْمِنٌ فَأُولَٰئِكَ كَانَ سَعْيُهُمْ مَشْكُورًا

*If anyone desires [only] the fleeting life, We speed up whatever We will in it, for whoever We wish; in the end We have prepared Hell for him in which to burn, disgraced and rejected. But if anyone desires the life to come and strives after it as he should, as a true believer, his striving will be thanked.*¹

قُلْ أَمَرَ رَبِّي بِالْقِسْطِ وَأَقِيمُوا وُجُوهَكُمْ عِنْدَ كُلِّ مَسْجِدٍ وَادْعُوهُ مُخْلِصِينَ لَهُ الدِّينَ كَمَا بَدَأَكُمْ تَعُودُونَ

¹ *Qur'ān* 17: 18/19

Say, 'My Lord commands righteousness. Direct your worship straight to Him wherever you pray; call on Him; devote your religion entirely to Him. Just as He first created you, so you will come back [to life] again.'²

فَادْعُوا اللَّهَ مُخْلِصِينَ لَهُ الدِّينَ وَلَوْ كَرِهَ الْكَافِرُونَ

So call upon God and dedicate your religion to Him alone, however hateful this may be to the disbelievers.³

هُوَ الْحَيُّ لَا إِلَهَ إِلَّا هُوَ فَادْعُوهُ مُخْلِصِينَ لَهُ الدِّينَ الْحَمْدُ لِلَّهِ رَبِّ الْعَالَمِينَ

He is the Living One and there is no god but Him, so call on Him, and dedicate your religion entirely to Him. Praise be to Allah, the Lord of the Worlds.⁴

وَمَا أُمِرُوا إِلَّا لِيَعْبُدُوا اللَّهَ مُخْلِصِينَ لَهُ الدِّينَ خُنَفَاءَ وَيُقِيمُوا الصَّلَاةَ وَيُؤْتُوا الزَّكَاةَ وَذَلِكَ دِينُ الْقِيَمَةِ

Though all they are ordered to do is worship Allah alone, sincerely devoting their religion to Him as people of true faith, keep up the prayer, and pay the prescribed alms, for that is the true religion.⁵

وَلَوْ أَرَادُوا الْخُرُوجَ لَأَعَدُّوا لَهُ عُدَّةً وَلَكِنَّ اللَّهَ أَنْبَعَاتُهُمْ فَتَثَبَّتْهُمْ وَقِيلَ اقْعُدُوا مَعَ الْقَاعِدِينَ

If they had really wanted to go out [to battle] with you, they would have made preparations, but Allah was loath to let them rise up and made them hold back. It was said, 'Stay with those who stay behind.'⁶

Arguably one of the most famous statements of the Prophet peace and blessings be upon him is where it has been authentically reported that he said:

إنما الأعمال بالنيات وإنما لكل امرئ ما نوى، فمن كانت هجرته إلى الله ورسوله فهجرته إلى الله ورسوله، ومن كانت هجرته إلى دنيا يصيبها أو إلى امرأة ينكحها فهجرته إلى ما هاجر إليه

Actions are to be judged by intentions and a man will have only what he intended. So whoever emigrated for Allah and His Messenger, his emigration will be for Allah and His Messenger; and whoever

² Qur'ān 7: 29

³ Qur'ān 40: 14

⁴ Qur'ān 40: 65

⁵ Qur'ān 98: 5

⁶ Qur'ān 9: 46

emigrated for worldly benefits or for a woman to marry, his emigration would be for what he emigrated for.

Without doubt this is one of the most authentic *ḥadith* in the entire world. All Imām's of *ḥadith* have agreed upon its authenticity as has the *Ummah* more generally as a whole. The *ḥadith* has been cited repeatedly across the entire corpus of *aḥādith*, appearing in *Ṣaḥīḥ*, *Sunan*, *Musnad*, *Muṣṣanaḥ* and other collections. Although Imām Mālik narrated it, he did not record it within his book, *al-Muwattā'*. Additionally, it is further substantiated by literally dozens of authentic channels of transmission from Yahya ibn Sa'eed al-Anṣārī from Muḥammad ibn Ibrāhīm al-Taymī from 'Alqama ibn Waqqāṣ from Umar ibn al-Khaṭṭāb, may Allah be pleased with him. It was mentioned in *Talkhees al-Habeer fi aḥādith al-Rāf'i al-Kabir*:

Al-Ḥāfiẓ Abu Sa'eed Muḥammad ibn Ali al-Khashāb said: 'It was narrated by Yahya ibn Sa'eed from about two-hundred and fifty people.' Al-Ḥāfiẓ Abu Musa said: 'I heard 'Abd al-Jalil ibn Aḥmad say in *al-Mudthākara*, that Abu Ismā'il al-Harawī Abdullah ibn Muḥammad al-Anṣārī said: 'I wrote this *ḥadith* from seven-hundred people from amongst the companions of Yahya ibn Sa'eed. I searched for it in the different books and volumes until I went through more than three-thousand volumes, but was unable to find seventy pathways for it.'⁷

Intension and reward

The meaning of this text has been narrated through various different channels of transmission on the authority of a large number of Companions including: Ali ibn Abi Ṭālib, Sa'd ibn Abi Waqqās, Abu Sa'eed al-Khudri, Ibn Umar, Ibn Mas'ud, Ibn 'Abbās, Abu Hurayrah and many others. Its meaning is *mutawātir* given the multiplicity of concurrent narrations, which we will consider in this section in greater detail. Reason also supports its meaning as does numerous Qur'ānic verses. To begin, in his *Ṣaḥīḥ* Imām Muslim records the following from the channel of al-'Araj from Abu Hurayrah:

⁷ Ibn Hajar, *Talkhees* [Vol. 1, p. 92]

حدثنا أبو بكر بن أبي شيبة وزهير بن حرب وإسحاق بن إبراهيم واللفظ لأبي بكر قال إسحاق أخبرنا سفيان وقال الأخران: حدثنا بن عيينة عن أبي الزناد عن الأعرج عن أبي هريرة قال قال رسول الله، صلى الله عليه وسلم قال الله عز وجل إذا هم عبدي بسينة فلا تكتبوها عليه، فإن عملها فاكذبوها سينة، وإذا هم بحسنة فلم يعملها فاكذبوها حسنة، فإن عملها فاكذبوها عشرًا

Abu Bakr ibn Abi Shayba, Zuhayr ibn Ḥarb and Ishāq ibn Ibrāhīm narrated to us, and this is the wording of Abu Bakr; Ishāq said: Sufyān reported to us and he said (from) the other two - Ibn ‘Uyayna narrated to us from Abi Zinād from al-‘Araj from Abu Hurayrah, he said the Messenger of Allah, peace and blessings be upon him said: *Allah the Exalted and Majestic said: Whenever My bondsman intends to commit an evil, do not record it against him, but if he actually commits it, then write it as one evil. And when he intends to do good but does not do it, then take it down as one act of goodness, but if he does it, then write down ten good deeds (in his record).*⁸

Similar is reported across the corpus of *aḥādith*.⁹ In the *Ṣaḥīḥ* of Ibn Ḥibbān the following is recorded from the channel of Muḥammad ibn Sireen narrating from Abu Hurayrah:

أخبرنا عبد الله بن مُحَمَّد الأزدي قال حدثنا إسحاق بن إبراهيم قال حدثنا النضر بن شميل قال حدثنا هشام عن محمد عن أبي هريرة عن رسول الله صلى الله عليه وسلم عن الله جل وعلا قال من هم بحسنة فلم يعملها كتبت له حسنة فإن عملها كتبتها بعشر أمثالها إلى سبع مائة؛ وإن هم بسينة فلم يعملها لم أكتب عليه، فإن عملها كتبتها عليه سينة واحدة

Abdullah ibn Muḥammad al-‘Azdi reported to us he said Ishāq ibn Ibrāhīm narrated to us he said al-Naḍr ibn Shameel narrated to us he said Hishām narrated to us from Muḥammad from Abu Hurayrah from the Messenger of Allah, peace and blessings be upon him from Allah the Exalted and Majestic, He said: *Whoever intends to do good deed but does not do it, it will be written down as one deed of goodness, but if he does it, I will write it down as ten good deeds till seven hundred (in his record) and if he intends to commit an evil, but does not do it, I*

⁸ *Ṣaḥīḥ* Muslim [Vol. 1, no. 128]

⁹ Multiple references are included for this, notable among them are: *Ṣaḥīḥ* al-Bukhārī [Vol. 6, no. 7062], *Ṣaḥīḥ* Ibn Ḥibbān [Vol. 2, no. 380], *Sunan* al-Tirmidhi [Vol. 5, no. 3073].

*will not write it. If he actually commits it, I will record it against him as one evil deed.*¹⁰

Again this text is reported widely, appearing in *Ṣaḥīḥ* Muslim, in *Musnad* Aḥmad and in the *Musnad al-Shāmiyān*. From the channel of al-‘Alā’ from his father from Abu Hurayrah we have the next narration, again in *Ṣaḥīḥ* Ibn Ḥibbān:

أخبرنا الفضل بن الجباب قال حدثنا القعنبي قال حدثنا عبد العزيز بن محمد عن العلاء عن أبيه عن أبي هريرة أن رسول الله صلى الله عليه وسلم، قال قال الله تبارك وتعالى: إذا هم عبدي بالحسنة فلم يعملها كتبتها له حسنة، فإن عملها كتبتها له عشر حسنات، وإن هم عبدي بسينة ولم يعملها لم أكتبها عليه، فإن عملها كتبتها واحدة

al-Faḍl ibn al-Ḥubāb reported to us he said al-Qa’nabi narrated to us he said ‘Abd al-Aziz ibn Muḥammad narrated to us from al-‘Alā’ from his father from Abu Hurayrah, he said the Messenger of Allah peace and blessings be upon him said: *Allah Blessed and Most High said: Whenever My servant intends to do good, but does not do it, I write one good deed for him; but if he does it, I write from him ten good deeds. When he intends to commit an evil, but does not actually do it, I do not record it. But if he does it, I write only one evil deed.*¹¹

After mentioning this, Abu Ḥātim Ibn Ḥibbān provides a useful additional comment, he writes:

When Allah said ‘*Whenever My servant,*’ He intended by this when they resolve to inquire. He called this resolve ‘intent’ because resolve is the end of thought. In the Arabic language, they use the term ‘beginning’ for ‘end’ and vice versa. This is because thought is not attributed to a person as it is mere contemplation without action. It is possible that Allah records good deeds for those who resolve to do them, even if they do not act upon them, due to the excellence of Islam. Allah's guidance of a person towards Islam is a favour He bestows upon

¹⁰ *Ṣaḥīḥ* Ibn Ḥibbān [Vol. 1, no. 130]. Of this, Shaykh Shu’ayb al-Arnā’uṭ said: ‘Its *isnād* is *Ṣaḥīḥ* upon the conditions of the two-Shaykhs (*sic.* al-Bukhārī and Muslim).’

¹¹ Ibid. [Vol. 2, no. 383]. Shaykh Shu’ayb al-Arnā’uṭ said: ‘Its *isnād* is *Ṣaḥīḥ* upon the conditions of Muslim.’

them, and His recording what they resolve to do of good deeds, even if they do not perform them, is also a favour.

His recording of their evil deeds that they resolve to commit, even if they do not act upon them, would be just. His favour precedes His justice, just as His mercy precedes His wrath. By His favour and mercy, He does not record any evil for the Muslim children that they commit before reaching the age of maturity. He records the good deeds they perform similarly. There is no difference in this.

Contained with the *Ṣaḥīfa* of Hammām ibn Munabih, is the next narration by way of Hammām ibn Munabih reporting from Abu Hurayrah from the Messenger of Allah peace and blessings be upon him who said:

وقال رسول الله صلى الله عليه وسلم: قال الله تعالى إذا تحدث عبدي بأن يعمل حسنة فأنا أكتبها له حسنة ما لم يعملها فإذا عملها فأنا أكتبها له بعشر أمثالها؛ وإذا تحدث بأن يعمل سيئة فأنا أغفرها ما لم يعملها فإذا عملها فأنا أكتبها له بمثلها

*Allah the Almighty said: If My servant intends to do a good deed, I will write it for him as a good deed if he did not do it, if he really did it, I will write it as ten times the like thereof. If he intended to do an evil deed, I will forgive it for him as long as he did not do it, but if he did it, I will write it as one bad deed.*¹²

The next narration is from the *Sunan* of Imām Tirmidhi via the channel of Sa'eed ibn al-Musayyib from Abu Hurayrah:

حدثنا عمران بن موسى القزاز حدثنا عبد الوارث بن سعيد حدثنا علي بن زيد عن سعيد بن المسيب عن أبي هريرة قال قال رسول الله صلى الله عليه وسلم: إن ريكتم يقول لكل حسنة بعشرة أمثالها إلى سبعمائة ضعف، والصوم لي وأنا أجزي به، الصوم جنة من النار، ولخلاف فم الصائم أطيب عند الله من ريح المسك، وإن جهل على أحكم جاهل وهو صائم قليل إني صائم

‘Imrān ibn Musa al-Fazāz narrated to us ‘Abd al-Wārith ibn Sa’eed narrated to us Ali ibn Zayd narrated to us from Sa’eed ibn Musayyib from Abu Hurayrah, he said the Messenger of Allah peace and blessings be upon him said: *Indeed your Lord said: 'Every good deed is rewarded with ten of the same up to seven hundred times over.*

¹² *Ṣaḥīfa* Hammām ibn Munabih [Vol. 1, no. 53]

Fasting is for Me, and I shall reward for it.' Fasting is a shield from the Fire. The smell coming from the mouth of the one fasting is more pleasant to Allah than the scent of musk. If one of you is abused by an ignorant person while fasting, then let him say: 'Indeed I am fasting.'

After citing this, Imām Abu Esa al-Tirmidhi said: ‘There are narrations upon this matter from Mu’ādh ibn Jabal, Sahl ibn Sa’d, Ka’b ibn ‘Ujra, Salāma ibn Qayṣr and Basheer ibn al-Khaṣāṣiya. His name is Basheer Zaḥm ibn Ma’bad and al-Khaṣāṣiya is his mother.’ He also says: ‘The *ḥadīth* of Abu Hurayrah is *ḥasan* and *ghareeb* from this channel.’ Al-Albānī said ‘*Ṣaḥīḥ*’; it is also reported by Aḥmad from this channel. In relation to the narrator Ali ibn Zayd bin Jud’ān, a separate study has been undertaken concerning his veracity.¹³ Next it was followed by some summarised wordings, as it is mentioned in *Mu’jam al-Awsaṭ*:

حدثنا أحمد بن محمد بن نافع قال: حدثنا أحمد بن صالح قال حدثنا عبد الله بن وهب قال أخبرني عمرو عن بكير عن بن المسيب عن أبي هريرة عن رسول الله صلى الله عليه وسلم، قال كل حسنة يعملها بن آدم بعشر أمثالها إلى سبعمائة ضعف إلا الصيام هو لي وأنا أجزي به

Aḥmad ibn Muḥammad ibn Nāfi’ narrated to us he said Aḥmad ibn Ṣāliḥ narrated to us he said Abdullah ibn Wahb narrated to us he said ‘Amr reported to me from Bakeer from Ibn al-Musayyib from Abu Hurayrah from the Messenger of Allah peace and blessings be upon him, he said: *Every good deed that is done by the son of Adam is to be multiplied ten-fold to seven-hundred fold, except for fasting, it is for Me, and I will give reward for it.*¹⁴

In relation to this Imām al-Ṭabarānī said: ‘Amr is the only one to narrate this on the authority of Bakeer.’ I would submit: why is this problematic? I say this because all of the narrators are firm, reliable and trustworthy. A further narration is found in the *Musnad* of Ishāq ibn Rāhwayh:

¹³ The study, completed in 2021, can be accessed via the following URL: <https://twitter.com/almass3ari/status/1367849354707558401>

¹⁴ al-Ṭabarānī *Mu’jam al-Awsaṭ* [Vol. 2, no. 1942]; also cited by al-Nasā’i in his *Sunan* [Vol. 4, no. 2219]

أخبرنا جرير عن عطاء بن السائب عن أبي عبد الرحمن السلمي عن أبي هريرة عن رسول الله، صلى الله عليه وسلم، قال من همّ بحسنة فلم يعملها كتبت له حسنة، فإن عملها كتبت عشراً؛ ومن همّ بسيئة فلم يعملها لم تكتب عليه، فإن عملها كتبت سيئة

Jarir reported to us from ‘Aṭā ibn al-Sā’ib from Abu ‘Abdar-Raḥman al-Salami from Abu Hurayrah from the Messenger of Allah, peace and blessings be upon him he said:.. *He who intends to do a good deed but does not do it, a good deed is written for him; and if he does it, ten good deeds are written for him. And whoever intends to commit an evil deed but does not do it, nothing is recorded against him; and if he commits it, only one evil deed is written against him.*¹⁵

Here, there is no fear arising regarding the *ikhtilāf* of ‘Aṭā ibn al-Sā’ib who appears within the *isnād*, if this was before or prior to his *ikhtilāf* then the channel would be considered authentic. In the *Mu’jam al-Awsaṭ* it comes via the channel of al-Faḍl from Abu Hurayrah:

حدثنا عبد الله بن مُحَمَّد بن عزيز الموصلي حدثنا غسان بن الربيع حدثنا بن ثوبان عن عبد الله بن الفضل عن أبي هريرة عن النبي صلى الله عليه وسلم قال إن الله تبارك وتعالى يقول إذا همّ عبدي بسيئة فلم يعملها فلا تكتبوها، وإن عملها فاكتبوها واحدة، وإن تركها من أجلي فاكتبوها حسنة؛ وإذا همّ بحسنة فلم يعملها فاكتبوها حسنة، وإن عملها فاكتبوها بعشر أمثاها إلى سبع مائة ضعف

Abdullah ibn Muḥammad ibn ‘Aziz al-Mawṣili narrated to us Ghassān ibn al-Rabih’ narrated to us Ibn Thawbān narrated to us from Abdullah ibn al-Faḍl from Abu Hurayrah from the Prophet peace and blessings be upon him, he said: *Verily Allah the Blessed and Most High says: Whenever my servant intends to commit an evil and does not do it, do not record it against him, but if he actually commits it, then write it as one evil deed. And if he abandons it for My sake, write it as one good deed. And when he intends to do good deed but does not do it, then write it down as one good deed, but if he did it, then write down as ten good deeds till seven hundred fold.*¹⁶

¹⁵ *Musnad Ishāq ibn Rāhwayh* [Vol. 1, no. 234]

¹⁶ *al-Ṭabarāni Mu’jam al-Awsaṭ* [Vol. , no. 4309]; also cited in *Musnad al-Shāmiyān*, [Vol. 1, no. 123]

I would submit that in the round, we can say that this is textually transmitted by *tawātur*; it is authentic from Abu Hurayrah. This is due to the various channels of transmission – from Al-‘Araj, Muḥammad ibn Sireen, al-‘Alā, Hammām ibn Munabih, Sa’eed ibn al-Musayyib, Abu ‘Abdar-Raḥman al-Salami and Abdullah ibn al-Faḍl – all through Abu Hurayrah as mentioned above. Each of these narrators is ‘*thiqa thabt*’ - firm, reliable and trustworthy.

Alternate reporting lines

Other than this there are other transmissions of note. The following is in Muslim and via the channel of Thābit al-Bunāni from Anas ibn Mālik:

Shaybān ibn Farouk narrated to us Ḥammād ibn Salama narrated to us Thābit al-Bunāni narrated to us from Anas ibn Mālik that the Messenger of Allah peace and blessings be upon him said: *al-Burāq was brought to me. It is an animal white and long, larger than a donkey and smaller than a mule; it would place its hoof a distance equal to the range of its sight.* He narrated the whole *ḥadith* of the night journey and ascension and how Musa, may Allah’s prayers and peace be upon him, advised Muḥammad peace and blessings be upon him and his family, to talk to His Lord about the number of the prayers, until he said: *I then kept on going back and forth between my Lord and Musa, ‘til He said to me, 'There are five prayers every day and night. O Muḥammad, each being counted as ten, so that makes fifty prayers.*

He who intends to do a good deed and does not do it, will have a good deed recorded for him; and if he does it, it will be recorded for him as ten; whereas he who intends to do an evil deed and does not do, it will not be recorded for him; and if he does it, only one evil deed will be recorded. I then came down and when I came to Musa and informed him. He said - Go back to your Lord and ask Him to make it lighter!

Upon this, the Messenger of Allah (peace be upon him) said: *I returned (so often) to my Lord until I felt ashamed.*¹⁷

In the *Musnad* of Aḥmad the next narration is from Abu Dharr al-Ghifārī, which is also judged to be *Ṣaḥīḥ*:

حدثنا عفان حدثنا أبو عوانة عن عاصم عن المعرور بن سويد عن أبي ذر قال سمعت رسول الله صلى الله عليه وسلم الصادق المصدق يقول قال الله عز وجل الحسنه عشر أو أزيد والسيئة واحدة أو اغفرها؛ فمن لقيني لا يشرك بي شيئا بقراب الأرض خطيئة جعلت له مثلها مغفرة

‘Affān narrated to us Abu ‘Awāna narrated to us from ‘Aāsīm from al-Ma’rūr ibn Suwayd from Abu Dharr he said, I heard the Messenger of Allah peace be upon him – the truthful and trustworthy – say: Allah the Mighty and Sublime said: *A good deed is rewarded tenfold or more, and an evil deed is rewarded with one or I may forgive it. So, whoever meets Me without associating anything with Me, sins as great as the earth, repentant, I will grant him a similar forgiveness.*¹⁸

The next narration is found in the *Musnad* of Abu Dāwūd al-Ṭayālīsī with an authentic *isnād* and good wording:

¹⁷ *Ṣaḥīḥ* Muslim [Vol. 1, no. 162]. The same *ḥadīth* was also recorded both in a summarised and long version in the *Musnad* of Abu Ya’lā [Vol. 6, no. 3451]. The *isnād* is ‘Shaybān narrated to us Ḥammād narrated to us from Thābit from Anas that the Messenger of Allah, peace and blessings be upon him said.’ Shaykh Ḥussein Asad said: ‘The *isnād* is *Ṣaḥīḥ*’; it is really as he said and it is according to the conditions of Muslim. The reported wording again details the reward for intending to do good, a ten-fold increase if acting upon it, and intending to do an evil deed, is not recorded if not acted upon. Another follow-up channel to this is in *Musnad al-Ḥārith Zawā’id* of al-Haythami [Vol. 2, no. 1050], the wording mirrored as before, but with the *isnād* of ‘Ya’lā narrated to us ‘Abd al-Ḥakam narrated to me from Anas that the Messenger of Allah peace and blessings be upon him said.’

¹⁸ *Musnad* Aḥmad [Vol. 5, no. 21414]. A follow on narration to this is thereafter cited from *Mu’jam Ṣagheer* by al-Ṭabarānī, with the *isnād*: ‘Ṣadaqa ibn Muḥammad ibn Kharuf al-Maṣri narrated to us Hishām ibn Muḥammad al-Sadousi narrated to us Muḥammad ibn Abi ‘Adi narrated to us Ash’ath ibn ‘Abd al-Malik narrated to us from al-Ḥasan from Ṣa’ṣa’ah’ ibn Mu’āwiya from Abu Dharr may Allah the Almighty be pleased with him, he said the Messenger of Allah, peace and blessings be upon him said.’ The wording mirrors that in earlier *aḥādīth*. Thereafter, Imām al-Ṭabarānī said: ‘Ash’ath is the only narrator that recorded this *ḥadīth* on the authority of al-Ḥasan.’ The Professor comments, ‘I would submit that there is no harm in that; Ash’ath ibn ‘Abd al-Malik is *thiqa* being amongst the men found as narrators in al-Bukhārī and he is an accepted narrator by the majority.’

حدثنا شعبة عن واصل عن المعرور بن سويد عن أبي ذر قال قال رسول الله صلى الله عليه وسلم قال ربكم عز وجل: الحسنه عشر والسيئة واحدة وأغفرها، ومن لقيني بقراب الأرض خطيئة لا يشرك بي لقيته بقراب الأرض مغفرة؛ ومن هم بحسنة ولم يعملها كتبت له حسنة، ومن هم بسيئة فلم يعملها لم يكتب عليه شيء، ومن تقرب مني شبرا تقربت منه ذراعا، ومن تقرب مني ذراعا تقربت منه باع

Shu’ba narrated to us from Wāṣil from al-Ma’rūr ibn Suwayd from Abu Dharr, he said that the Messenger of Allah peace and blessings be upon him said: *Your Lord, the Mighty and Sublime said – A good deed is rewarded tenfold, and an evil deed is recorded as one, or I may forgive it. Whosoever meets Me with sins as great as the earth, by does not associate a partner with Me, I will grant forgiveness as great as the earth. Whoever intends to do a good deed and does not perform it, a good deed is written for him. And whoever intends to commit an evil deed but does not act upon it, nothing is recorded against him. Whoever comes close to Me by a handspan, I come close to him by an arm's length. And whoever comes close to Me by an arm's length, I come close to him by a fathom.*¹⁹

Thereafter Imām Abu Dāwūd al-Ṭayālīsī said: ‘It is not regarded as being ‘raised’ Shu’ba narrating from Wāṣil but the people consider it raised from al-‘Amash from al-Ma’rūr.’ I would submit that other scholars bar al-‘Amash have reported it as *marfu*’ as outlined previously.

Intending to do good

In the round all of the previously cited narrations not only prove that the rewards of deeds, which includes sayings or statements and the notion of punishment are according to intention, but they establish the proof *that intention alone* without deed is deserving of reward. If Allah, the Exalted grants us favour by not punishing us, it is from amongst His infinite mercy and justice. If He really punishes us for our sins, it would still be considered justice. There is no god except Allah, in Allah we put our trust and only by him are we supported.

Further to this, it has also reached us that: ‘If somebody intended to do a bad deed and he does not do it, then Allah will write a full good deed (in his

¹⁹ *Musnad* al-Ṭayālīsī [Vol. 1, no. 464]

account) with Him.’ Indeed Allah removes sins out of His grace just as He promises to forgive those seeking true repentance. It is also established that none goes astray except he that is doomed as a loser. The following narrations establish these points. In *al-Jāmi al-Ṣaḥīḥ al-Mukhtaṣar* Imām al-Bukhārī records:

حدثنا أبو معمر حدثنا عبد الوارث حدثنا جعد أبو عثمان حدثنا أبو رجاء العطاردي عن ابن عباس رضي الله تعالى عنهما عن النبي صلى الله عليه وسلم فيما يروي عن ربه عز وجل قال: قال: إن الله كتب الحسنات والسيئات، ثم بين ذلك: فمن همّ بحسنة فلم يعملها كتبها الله له عنده حسنة كاملة، فإن هو همّ بها وعملها كتبها الله له عنده عشر حسنات، إلى سبع مائة ضعف إلى أضعاف كثيرة؛ ومن همّ بسيئة فلم يعملها كتبها الله له عنده حسنة كاملة، فإن هو همّ بها فعملها كتبها الله له سيئة واحدة

Abu Ma'mar narrated to us 'Abd al-Wārith narrated to us Ja'd Abu Uthmān narrated to us Abu Rajā' al-'Aṭārīdī narrated to us from Ibn 'Abbās, may Allah be pleased with him, from the Prophet peace and blessings be upon him, who when narrating about his Lord, the Mighty and Sublime said: *Allah ordered that the good and the bad deeds be written, and He then showed (the way) how (to write). If somebody intends to do a good deed and he does not do it, then Allah will write for him a full good deed (in his account with Him); and if he intends to do a good deed and actually did it, then Allah will write for him (in his account) with Him (its reward equal) from ten to seven hundred times to many more times: and if somebody intended to do a bad deed and he does not do it, then Allah will write a full good deed (in his account) with Him, and if he intended to do it (a bad deed) and actually did it, then Allah will write one bad deed.*²⁰

Similar is also narrated in by Imām al-Nasā'ī in *Sunan al-Kubra*; the *isnād* is also via Ibn 'Abbas, but the additional wording at the end of the *ḥadīth* is: 'And no one would go astray therefore except he who is doomed to be a loser.'²¹ Another amazing *ḥadīth* concerning the same subject is reported in Ibn Ḥibbān via Khuraym ibn Fātik:

²⁰ *Ṣaḥīḥ al-Bukhārī* [Vol. 5, no. 6126]

²¹ al-Nasā'ī *Sunan al-Kubra* [Vol. 4, no. 7607]

al-Ḥasan ibn Sufyān reported to us he said Muḥammad ibn Bashār narrated to us Abu Dāwūd narrated to us he said Shaybān al-Naḥwe narrated to us he said al-Rakeen ibn al-Rabih' narrated to us from his father from his uncle (and he is Yuseer ibn 'Ameela) from Khuraym ibn Fātik al-Asadī he said that the Messenger of Allah peace and blessings be upon him said: *People are of four (kinds) and deeds are six (types). Two, like for like - one deed is rewarded equally, another is rewarded with goodness tenfold, and another is rewarded with goodness multiplied by seven hundred. People will either be relieved in both this life and the hereafter, others will be relieved in this life and restricted in the hereafter, who will be restricted in this life and relieved in the hereafter, and who will be restricted in both this life and the hereafter; miserable during both this life and the hereafter. The two deeds that result in this are: Whoever says, 'There is no god but Allah' or who says, 'I am a believer in Allah,' enters paradise. And whoever dies while associating partners with Allah enters the fire.*

*Whoever intends to do a good deed, but does not do it, a good deed is written for them. Whoever intends to do a good deed and does it, it is written for them tenfold. Whoever intends to do an evil deed, but does not do it, nothing is written against them. And whoever intends to do an evil deed and does it, it is written against them as one evil deed, without multiplication. And whoever spends a charitably in the path of Allah, it is multiplied seven-hundred times.*²²

Intention alone without action

Following on from the previous discussion, there are several texts which confirm the statement or even maxim, 'intention alone without accompanying

²² *Ṣaḥīḥ Ibn Ḥibbān* [Vol. 14, no. 6171]. Shaykh Shu'ayb al-Arnā'ūṭ said 'The *isnād* is *Ṣaḥīḥ*.' Similar was recorded with a few differences in the order of wording in the *Mustadrak*, *Mu'jam al-Kabir* and via several channels in *al-Aḥād wal Mathānī*. In *Musnad al-Shihāb* [Vol. 1, no. 346] there is also the *ḥadīth* reported on the authority of Abdullah ibn 'Amr ibn al-'Aās: 'Abd al-Rahman ibn 'Amr al-Mu'dal reported to us Abu Faḍl Yaḥya ibn al-Rabi'ah reports, 'Abd al-Salām ibn Muḥammad al-Umawī narrated to us Sa'eed ibn Kathir ibn 'Ufeer narrated to us Ibn Lahiya narrated to us from 'Amr ibn Shu'ayb from his father from Abdullah ibn 'Amr that the Messenger of Allah peace and blessings be upon him said: *'Whoever intends to do a sin but refrains therefrom, a good deed is recorded for them. And whoever intends to do sin and actually commits it but then seeks forgiveness from Allah, Allah forgives him.'* The aforementioned *ḥadīth* is not *Ṣaḥīḥ* in and of itself, but can be considered as *ḥasan Ṣaḥīḥ* according to the weight of evidence.

deed is deserving of reward' which are worthy of consideration. Imām Muslim has two *ḥadith* in his *Ṣaḥīḥ* showing this point lucidly, one narrated upon the authority of Sahl ibn Ḥunayf that the Prophet peace and blessings be upon him said: *Whoever sought martyrdom with sincerity will be ranked by Allah among the martyrs even if he died on his bed.*' The second, *marfu'* narrated upon the authority of Abu Hurayrah, carries the wording of: *'One who died but did not fight in the way of Allah nor did he express any desire (or determination) for Jihād died the death of a hypocrite.'*²³

Despite this, there have been some amongst those who are unqualified and did not acquire the requisite knowledge of *fiqh* who were of the view that these narrations contradicted others, such as that found in *Ṣaḥīḥ* of Imām al-Bukhārī:

حدثنا عبد الرحمن بن المبارك حدثنا حماد بن زيد حدثنا أيوب ويونس عن الحسن عن الأحنف بن قيس قال ذهبت لأنصر هذا الرجل فلقيني أبو بكر فقال أين تريد؟! قلت أنصر هذا الرجل! قال ارجع فإني سمعت رسول الله، صلى الله عليه وسلم يقول إذا التقى المسلمان بسيفيهما فالقاتل والمقتول في النار فقلت يا رسول الله هذا القاتل فما بال المقتول؟ قال إنه كان حريصا على قتل صاحبه

'Abdar-Raḥman ibn Mubārak narrated to us Ḥammād ibn Zayd narrated to us Ayub and Yunus narrated to us from al-Ḥasan from al-Aḥnaf ibn Qays who said: While I was going to help this man, Abu Bakra met me and asked where are you going? I replied - I am going to help that person. He said, go back for I have heard Allah's Messenger peace and blessings be upon him saying, *'When two Muslims fight (meet) each other with their swords, both the murderer as well as the murdered will go to the fire.'* I said: O Messenger of Allah, it is all right for the murderer, but what about the murdered one? He replied: He surely had the intention to kill his companion.²⁴

This is also narrated by Hishām ibn Ḥassān, Mu'alla ibn Ziyād and al-Mubārak ibn Faḍala from al-Ḥasan from al-Aḥnaf from Abu Bakra from the Prophet peace and blessings be upon him. Moreover this *isnād* is of the utmost in terms of connectivity, authenticity and good wording. Imām al-

²³ *Ṣaḥīḥ* Muslim [Vol. 3, no. 1909 and 1910]

²⁴ *Ṣaḥīḥ* al-Bukhārī [Vol. 1, no. 31]

Bukhārī records this from alternate channels elsewhere in his *Ṣaḥīḥ*.²⁵ He said following some of them: 'Its reported (by) Ma'mar from Ayub and reported by Bakkār ibn 'Abd al-Aziz from his father from Abu Bakra; Ghundar said – Shu'ba narrated to us from Maṣṣūr from Rabi' ibn Ḥirāsh from Abi Bakra from the Prophet peace and blessings be upon him; Sufyān didn't attribute it from Maṣṣūr.'

The *ḥadith* is reported very widely and has been recorded by a large number of Imām's.²⁶ In his *Musnad* Imām Aḥmad has the following narration with an authentic channel of narration:

حدثنا مُحَمَّد بن جعفر حدثنا شعبة عن منصور عن ربعي بن حراش عن أبي بكر عن النبي صلى الله عليه وسلم أنه قال إذا المسلمان حمل أحدهما على صاحبه السلاح فهما على طرف جهنم، فإذا قتل أحدهما صاحبه دخلاها جميعا

Muḥammad ibn Ja'far narrated to us Shu'ba narrated to us from Maṣṣūr from Rabi' ibn Ḥirāsh from Abu Bakra from the Prophet peace and blessings be upon him said: *When one Muslim wields his weapon against his brother, both of them are at the edge of hell, and if one of them kills the other, they will both enter it.*²⁷

I would submit that there is no doubt that al-Aḥnaf ibn Qays, may Allah be pleased with him, was right, when he was carrying arms in support of the Imām of truth, Ali ibn Abi Ṭālib may the grace of Allah be upon him, against those who were transgressing beyond all bounds - *fi' al-Bāghiya*, and he fought them in line with the command of Allah. Abu Bakra misjudged the matter here by linking that specific incident to the Prophetic *ḥadith*. However Allah has not obliged us to accept the opinion of Abu Bakra, nor are we obliged to follow him in this. As per the indistinguishable, preserved and firm following words - Imām Aḥmad records in his *Musnad* on the authority of Abu Musa al-Ash'ari:

²⁵ *Ṣaḥīḥ* al-Bukhārī [Vol. 6, no. 6481, 6672]

²⁶ Upwards of eighteen references are provided for this. Notable among them are: *Ṣaḥīḥ* Muslim [Vol. 4, no. 2888], al-Bayhaqy *Sunan al-Kubra* Vol. 8, no. 16569] and *Sunan* Abu Dāwud [Vol. 4,, no. 4268].

²⁷ *Musnad* Aḥmad [Vol. 5, no. 20440]; also cited in *Sunan* Ibn Mājah [Vol. 2, no. 3965]

حدثنا يزيد قال أخبرنا سعيد عن قتادة عن الحسن عن أبي موسى عن النبي صلى الله عليه وسلم، قال إذا المسلمان توجها بسيفهما فقتل أحدهما صاحبه فهما في النار قيل يا رسول الله هذا القاتل فما بال المقتول؟ قال إنه أراد قتل صاحبه

Yazeed narrated to us he said Sa'eed reported to us from Qatādah from al-Ḥasan from Abu Musa from the Prophet peace and blessings be upon him, he said: *If two Muslims meet (and fight) with their weapons and one of them kills the other, the killer and the slain will both be in Hell.* It was said: O Messenger of Allah, (we understand about) the killer, but what about the one who is killed? He said: *He wanted to kill his companion.*²⁸

Regarding the subject under consideration there is no discrepancy here. The one who was killed did not intend to kill the other and then abandoned this determination, returning to his house, so that he may deserve the reward of the one good deed. He changed from just determination to action. He went out of his house, held his sword and hit the other with an intention to kill him except that he was killed first, otherwise he would have been the killer.

Whoever lacked the required intellect, to the degree that he did not understand these obvious truths, he must leave *fiqh* (jurisprudence) and deducing *aḥkām* to those that are qualified to do this, or at the very least, find a new vocation. Allah has written beneficence for everything and he does not place a burden upon a soul greater than it can bear. If one cannot encompass such matters then one must devote oneself to what is viable.

Not a change of status

Consequently it has been conclusively demonstrated that one may be rewarded for intention alone as the Qur'ān and the aforementioned *aḥādīth*

²⁸ *Musnad Aḥmad* [Vol. 4, no. 19766]. Elsewhere in the *Musnad* [Vol. 4, no. 20490] the same is cited but via a different *isnād*: 'Abd al-Razzāq narrated to us Ma'mar reported to us from Qatādah from al-Ḥasan from Abu Bakra.' Additional references provided for this are also cited by al-Bayhaqy in *Sunan al-Kubra* [Vol. 2, no. 3584], and the *Sunan* collections of al-Nasā'i [Vol. 7, no. 4119] and Ibn Mājah [Vol. 2, no. 3964]. In the Arabic edition, three further *aḥādīth* are mentioned, essentially with the same or very similar wording. Reference citations for these include, among others: *Musnad Aḥmad* [Vol. 4, no. 19691]; al-Nasā'i, *Sunan al-Kubra* [Vol. 2, no. 3583, 3589] and the *Sunan* of Ibn Mājah [Vol. 2, no. 3963]. That of Ibn Mājah though, contains difficulty, with the presence of the narrator Mubārak ibn Suḥaym as a narrator is classified as *munkar al-ḥadīth* and consequently *matrook*.

show. *A fortiori* one can be rewarded for a purely permissible act if accompanied by a good intention of mind or intellect and a conscientious heart, seeking only the pleasure of Allah the Exalted. An example would be if this was also done in order to help one achieve the obligatory and desirable matters, or in order to accustom oneself to keep away from doing undesirable and prohibited matters. Someone may be undertaking a matter with such 'consciousness' while intending to do such deeds, their heart aware that Allah permitted such a deed and that doing the matter is but submitting to the judgment of Allah, being happy with the permission provided by Allah or any other good considerations which were mentioned in the aforementioned evidences. Reward here is according to this intention and this remembrance of the heart and not limited according to the permissible deed, as it is a mere permissible deed in itself. The permissible deed in itself, for whoever does it is neither deserving reward nor punishment, it will never be turned into a desirable matter, otherwise measures of *Sharī'ah* will be disturbed and truth will mix with falsehood, Allah forbid.

The evidence which we have outlined above and others like it is the correct position and not like which was mentioned by other even famous scholars such as Imām al-Nawawī. In his commentary upon *Ṣaḥīḥ Muslim* he wrote: 'And this evidence is that the *mubāḥāt*, permissible matters, become matters of obedience accompanied with intentions and charities,' thereafter citing the *ḥadīth* where the Prophet peace be upon him said: '*And in man's sexual intercourse (with his wife) there is a Ṣadaqa*'. Indeed the *ḥadīth* is authentic, similar has been reported where he peace be upon him said: '*And you should do the same, as it is among the best of your deeds to perform what is lawful*.' Such narrations are definite and they establish that intercourse with one's spouse, as a mere naked act, is desirable in-itself; that whoever did it will be rewarded. So therefore it is not a mere permissible deed that whoever did it will neither be rewarded nor punished. How then did Imām an-Nawawī make it a mere permissible deed, as it is to be understood from his statement and then put the condition that there should be a certain intention behind this in order to gain reward? On the contrary, other Imām's like Ibn Ḥazm was sharper to the point, recognising this matter by citing the verse where Allah said:

فَإِذَا تَطَهَّرْنَ فَأْتُوهُنَّ مِنْ حَيْثُ أَمَرَكُمُ اللَّهُ

*When they are cleansed, you may approach them as Allah has ordained.*²⁹

He understood it as to be obligatory, not just desirable or permissible; in other words having intercourse even if once after the wife had completed the rituals of purification following her menstrual cycle. A persuasive argument indeed!

One should note, where is the word ‘intention’ mentioned in the *aḥādith* that Imām al-Nawawī cited? Surely this would be needed to substantiate his argument, that a permissible deed can be *turned* into a desirable matter according to one’s intention, thereby being a matter of obedience. The use of the phrase ‘act of obedience’ here is not good either. Perhaps al-Nawawī meant by this ‘desirable matters’ - *mustaḥabāt* otherwise, performing something permissible is an act of obedience, abandoning forbidden matters is an act of obedience and performing the obligations is an act of obedience. In short, obedience is obeying the dictates of the *Sharī’ah*. Following the judgment of Allah and the creed He ordains is obedience; no difference in that between considering what was forbidden as forbidden, what was lawful as lawful, what was obligation as obligation, and so on.

Therefore to reiterate and stress this point again, it is not lawful to say that what is permissible is turned with a ‘good intention’ to something desirable, as it is not desirable in and of itself. Reward is due according to other matters that accompanied it. It is not then lawful to mix between them, otherwise measures of the *Sharī’ah* will be disturbed and truth will mix with falsehood. That is why, the matter which is desirable in itself, whoever does it deserves to be rewarded and praised by Allah and whoever did not do it, does not deserve to be punished or dispraised by Allah. Concerning the matter which is undesirable in itself, whoever did not do it, deserves to be rewarded and praised by Allah and whoever did it, does not deserve to be punished or dispraised by Allah. Both of these two matters need independent evidence because they are not like the absolute original state of permissibility. Whatever was not like it, needs evidence, otherwise it would be a saying without knowledge and a judgment that Allah did not permit. That is to say, it would be *bidāh* - innovation in the religion, and this is exactly the way that leads to straying from the religion and ultimately in the extreme, *kufir* (disbelief).

²⁹ *Qur’ān* 2: 222

10. Islam is the complete *Deen*

All actions and deeds that are voluntary in nature are judged according to the legal framework that Allah the Exalted has revealed. Nothing is ‘left out’; there are no gaps. Allah the Exalted expressly says:

وَيَوْمَ نَبْعَثُ فِي كُلِّ أُمَّةٍ شَهِيدًا عَلَيْهِمْ مِنْ أَنْفُسِهِمْ وَجِئْنَا بِكَ شَهِيدًا عَلَى هَؤُلَاءِ وَنَزَّلْنَا عَلَيْكَ الْكِتَابَ تِبْيَانًا لِكُلِّ شَيْءٍ وَهُدًى وَرَحْمَةً وَبُشْرَى لِلْمُسْلِمِينَ

*The day will come when We raise up in each community a witness against them, and We shall bring you [Prophet] as a witness against these people, for We have sent the Scripture down to you explaining everything, and as guidance and mercy and good news to those who devote themselves to Allah.*¹

يَا أَيُّهَا الَّذِينَ آمَنُوا أَطِيعُوا اللَّهَ وَأَطِيعُوا الرَّسُولَ وَأُولِي الْأَمْرِ مِنْكُمْ فَإِنْ تَنَازَعْتُمْ فِي شَيْءٍ فَرُدُّوهُ إِلَى اللَّهِ وَالرَّسُولِ إِنْ كُنْتُمْ تُؤْمِنُونَ بِاللَّهِ وَالْيَوْمِ الْآخِرِ ذَلِكَ خَيْرٌ وَأَحْسَنُ تَأْوِيلًا

*O you who believe - Obey Allah and obey the Messenger and those in authority among you. If you are in dispute over any matter, refer it to Allah and the Messenger, if you truly believe in Allah and the Last Day: that is better and fairer in the end.*²

وَمَا اخْتَلَفْتُمْ فِيهِ مِنْ شَيْءٍ فَحُكْمُهُ إِلَى اللَّهِ ذَلِكُمُ اللَّهُ رَبِّي عَلَيْهِ تَوَكَّلْتُ وَإِلَيْهِ أُنِيبُ

*Whatever you may differ about is for Allah to judge. [Say], ‘Such is Allah, my Lord. In Him I trust and to Him I turn.’*³

¹ *Qur’ān* 16: 89

² *Qur’ān* 4: 59

³ *Qur’ān* 42: 10

Reason, as well as continuous multiple reports from the annals of human history dictate that people have differed and quarrelled in all matters conceivable. Even the simplest points that one may think would be beyond matters of disputation were in fact by some, the Sophists being a case in point. In light of this, we are obliged to refer matters for judgement back to the judgement of Allah. The notion of reference *must* always return back to Allah and his Messenger, peace and blessings be upon him, as a matter of necessity. For it will provide the resolution to every matter in dispute. It is incredulous to believe that Allah would sanction reference to other than that. One must have absolute certitude that the book and the *Sunnah* contain all necessary judgements which can resolve disputes; only the ignorant and the stubborn disbelievers would have otherwise!

We see that Allah the Exalted referred back in His revelation – the Qur’ān and the *Sunnah* – all matters as they pertain to this world to the people. We mean the characteristics of this tangible physical world and its nature (like pollinating palm trees), that is, *the world as it is*. He referred physics, chemistry, astronomy, geology, medicine, agriculture, industry, engineering and the like to people. He referred it to experience, to examining and reasoning, totally and fully with all its stages of inspection, examining, studying, formulating theories, utilising and applying them. He kept whatever is left, essentially, *the world as it ought to be*, which is ‘religion’ or general law and the certain way of living to himself. He kept especially those aspects regarding his divine essence, his angels, the final day and the like. All the reckoning and calling people to account, ordaining things as lawful or unlawful and judging people's characters, whether they are good or evil. Our present *Sharī’ah*, that has been revealed to mankind has included all the deeds of people with their judgments in the most perfect manner. Allah says:

حُرِّمَتْ عَلَيْكُمُ الْمَيْتَةُ وَالدَّمُ وَلَحْمُ الْخِنْزِيرِ وَمَا أُهْلَ لِغَيْرِ اللَّهِ بِهِ وَالْمُنْخَنِقَةُ وَالْمَوْقُوذَةُ وَالْمُتَرَدِّيَةُ وَالنَّطِيحَةُ وَمَا أَكَلَ السَّبُعُ إِلَّا مَا ذَكَّيْتُمْ وَمَا ذُبِحَ عَلَى النُّصُبِ وَأَنْ تَسْتَقْسِمُوا بِالْأَزْلَامِ ذَلِكُمْ يَسْقُ الْيَوْمَ الْبَاطِلُ كَفَرُوا مِنْ دِينِكُمْ فَلَا تَخْشَوْهُمْ وَاخْشَوْنَ الْيَوْمَ أَكْمَلْتُ لَكُمْ دِينَكُمْ وَأَتِمَمْتُ عَلَيْكُمْ نِعْمَتِي وَرَضِيْتُ لَكُمُ الْإِسْلَامَ دِينًا فَمَنِ اضْطُرَّ فِي مَخْمَصَةٍ غَيْرِ مُتَجَانِفٍ لِإِثْمِهِ فَإِنَّ اللَّهَ غَفُورٌ رَحِيمٌ

You are forbidden to eat carrion; blood; pig's meat; any animal over which any name other than God's has been invoked; any animal strangled, or victim of a violent blow or a fall, or gored or savaged by a beast of prey, unless you still

slaughter it [in the correct manner]; or anything sacrificed on idolatrous altars. You are also forbidden to allot shares [of meat] by drawing marked arrows - a heinous practice— today the disbelievers have lost all hope that you will give up your religion. Do not fear them: fear Me. Today I have perfected your religion for you, completed My blessing upon you, and chosen as your religion Islam; but if any of you is forced by hunger to eat forbidden food, with no intention of doing wrong, then Allah is most forgiving and merciful.⁴

Stressing after this the bestowing of proportionality concerning the judgement where faced with being forced to eat prohibited kinds of food, which were previously revealed in an earlier Meccan revelation. Allah said at the end of the aforementioned verse the matter of being forced by necessity. *Deen* is perfect now, the *Deen* of Islam and no other. Anything else would be regression to at best, an earlier now superseded *Sharī’ah* and at worst ignorance and disbelief. Grace is complete now and any other thing would be defective and calamitous resulting from disobeying Allah, breaching his orders and neglecting his laws. The final abode would be hellfire and a permanent curse. Adhering to the legal judgments is the main reason behind creating man. It is the meaning of human existence. Allah says in the famous oft-quoted verse -

وَمَا خَلَقْتُ الْجِنَّ وَالْإِنْسَ إِلَّا لِيَعْبُدُونِ

And I created jinn and mankind only to worship Me.⁵

‘Ibādah – the matter of worship, is to render the utmost obedience and submission, out of humility and choice to Allah the Exalted; based upon the recognition of *Hākimiyyah*, that He has the decisive prerogative of command; alone by His glorious self, He determines what is to be commanded or prohibited. That right is absolute, without any precondition, except that which He has prescribed upon Himself to undertake or forbidden Himself from, or a condition that He will fulfil Himself. Such cognisance is but the apex of the expression of firm belief with decisive certainty; borne of absolute faith in Allah as He is the one true God. For verily, there is no ‘other god’ or deity but Him; the One and only, the necessarily existent; *al-Hayy al-Qayum*

⁴ Qur’ān 5: 3

⁵ Qur’ān 51: 56

(the living, the self-subsisting); *al-Awwal* (the First); ageless and eternal, without beginning or end. For He is *al-Bāqī* (the Ever-Lasting), the Eternal. He acts according to His will, creating what only He chooses and determines. He cannot be questioned over what He does, and He governs according to His judgement and is swift in calling to account. What is not *'Ibādah*, in and of itself, is the mere prostration and bowing; standing and sitting, pilgrimage and fasting, may Allah forbid. Such acts are ritual acts of devotion. Expressed differently, the worship of Allah is obeying every order and abstaining from every prohibition as we shall discuss elsewhere in this book God-willing.

This perfect complete *Sharī'ah* has made certain acts obligatory - termed '*farā'id*' or '*wājibāt*' making them duty bound. Exceptions do exist like where an individual is unable to perform them or a specific legal exception is set out. For example, one is not obliged to fast while travelling, even if this travel is dubbed by some nowadays as being comfortable. At the same time it is obligatory on those who have tiresome physical jobs, whose burden might exceed that of travelling, as long as the person is capable. Other acts have been declared prohibited – termed as '*muḥaramāt*'. No one is given leave to undertake these acts without a specific legal injunction, such as being allowed to lie under certain circumstances. One can be exempted from the prohibited under necessity (i.e. pain of death or the like) and coercion. Even in these particular circumstances, there is no license given to take another life or harm another in their body, period. The one subject to such a form of coercion does not have a legal get out clause allowing such harm, because no one individual has a greater right of preservation than another.

Exception to coercion

Moreover, necessity and coercion even under pain of death does not provide licence for a Muslim to support enemy combatants who are engaged in war, or operations other than war, whether that involves killing or not. The majority of scholars agree that the one coerced to kill is not allowed to do so, for this person is not worthier of preservation than another. This point was eloquently expressed by Imām Ibn Taymiyyah in *Fatāwa al-Kubra*:

There is no doubt that it is obligatory on him, if he was forced to be present not to fight, even if Muslims killed him. It is the same if

disbelievers forced him to be on their side to fight against Muslims. If a man forced another to kill an innocent Muslim, Muslims agree that it is not permissible to do it. Even if he is forced under threat of death, saving himself by killing that Muslim is not worthier than the alternative. He has no right to do another person injustice by killing him in order not to be killed himself. If he did that, retaliation is on both the one forcing and the one forced to kill, according to the majority of scholars such as Aḥmad, Mālik and al-Shāfi'i in one of his opinions. His other opinion states that retaliation is on the one forcing alone. This agrees with the opinion of Abu Ḥanifah and Muḥammad. It was said that retaliation is on the direct forced person, as it was related from Zafar while Abu Yusuf obligates paying the blood money, instead of taking retaliation, which is not obligatory according to him.⁶

Similar has been written in other areas of his works such as in *Majmu' al-Fatāwa*. The respected Imām also has another opinion that is worthy of consideration in which is to be found in *Kutub wa-Rasā'il wa Fatāwa Ibn Taymiyyah fī Fiqh*:

The Prophet peace be upon him ordered the one forced to fight in ordeals, to break his sword. He is not allowed to fight even if he may be killed. It was recorded in *Ṣaḥīḥ* Muslim that Abu Bakrah that the Messenger of Allah, peace and blessings be upon him said: '*There would soon be fitan. Behold! There would be turmoil in which the one who would be seated would be better than one who would stand and the one who would stand would be better than one who would run. Behold! When the turmoil comes or it appears, the one who has camel should stick to his camel and he who has sheep or goat should stick to his sheep and goat and he who has land should stick to the land.* A person said: Messenger of Allah, what is your opinion about one who has neither camel nor sheep nor land? Thereupon, he said: '*He should take hold of his sword and beat its edge with the help of stone and then try to find a way of escape. O Allah, I have conveyed (thy Message); O Allah, I have conveyed (thy Message); O Allah, I have conveyed (thy Message).* A person said: Messenger of Allah, what is your opinion if

⁶ Ibn Taymiyyah (2010), *Fatāwa al-Kubra* (Dar al-Kotob al-Ilmiyah, Beirut), [Vol. 3, pp. 552/553]

I am drawn to a rank in spite of myself, or in one of the groups and made to march and a man strikes with his sword or there comes an arrow and kills me? *Thereupon he said: He will bear the punishment of his sin and that of yours and he would be one amongst the companions of the fire.*⁷

Each of these quotes from Ibn Taymiyyah are truly excellent, may Allah raise his rank. One should carefully examine them and ponder over their meanings. It is unfortunate that despite his sharp and insightful comments as we have seen, he made catastrophic mistakes in other branches of Islamic knowledge, none more so than in his categorisation of *Tawḥeed* and understanding of the reality of *Shirk* (polytheism). Although he may have thought that this was addressing some of the ignorant practices that he saw in his time, history has shown that his tripartite division of *Tawḥeed* has caused more problems in understanding than it sought to address. Moreover, it became a sword drenched in the blood of the people of Islam wielded by Muḥammad ibn ‘Abd al-Wahhāb (MIAW) and his companions; the disastrous legacy of which we are still tirelessly working to reverse.

Comprehensive and complete

Returning to our main subject, there are actions, which praise be to Allah, are the majority of the deeds of people, they are left for the person to decide whether to do them or not. Doing some of them could be preferable. These are called *mustaḥabāt*, ‘desirable’ actions. Leaving some actions might be more appropriate, and these are called *makroohāt*, ‘undesirable’ actions. In cases, it might be on equal terms and then actions would be known as *mubāḥāt*, ‘permissible’ actions. The person ordered of these actions might do the permissible one, or leave them, according to his choice. It also depends upon each case and interest. One can carry out a permissible deal and leave another permissible one, for one could be of the view that the first will make more profit than the second. One could even avoid a third permissible one for fear of loss. Considering the best interest and profits – or losses and harm – is only possible if the action is originally permissible. So one must make sure

⁷ *Kutub wa-Rasā’il wa Fatāwa Ibn Taymiyyah fī Fiqh* [Vol. 28, p. 538]. Shamela online edition <<https://shamela.ws/book/7289/14129>>

of the legality of any action and one must first seek what the judgment of Allah is regarding a matter. If it was proven that it is an optional deed, only then could one consider the best interest and profits - or the losses and harm. Consequently, it is not lawful for anyone who believes in Allah and the final day to leave an obligation without any *rukḥṣa* (legal dispensation) or just for not being able to do it. One cannot simply commit that which has been deemed prohibited without any compulsion, under the pretext of ‘warding off an evil’ or consideration of wider interests / benefit, ‘*maṣlaḥa*.’ There is definitely neither evil in what Allah has obligated nor benefit in what Allah has prohibited.

Whatever is said beyond this is from the whisperings of *Shayṭān*; defamation of the perfect *Sharī’ah* and neglect for what man has been created for, namely the worship of Allah – obedience to his commands, the *aḥkām Sharī’ah*, which is in contrast to what many are told, to only consider one’s existence, subsistence and ‘interest’, material or otherwise. Moreover, we were not ordered to grant victory and power as they are among actions of Allah. We are ordered to perform *Jihād* and to rule according to what Allah has revealed. Allah has obliged us to call people to his *Deen*, if we have the required knowledge, to spread his call and to propagate the truth. Allah never ordered us with ‘the spread of religion’ or ‘emergence of religion’; such acts are among his actions while others are among the voluntary actions of the servants of Allah, which are according to legal capacity.

The legal texts are the text of the revelation, namely the Qur’ān and the *Sunnah*. These revelatory sources are enough, praise be to Allah, for dealing with all incidents found in life, from the day of the death of the Prophet peace and blessings be upon him until the end of the world. It is never to be said that incidents and events are infinite while the texts are finite, because the infinite incidents are individual incidents and personal events, while types of incidents and kinds of events are finite and limited, that are included perfectly and completely in these texts. The prayer of Zayd is not like the prayer of ‘Amr but the kind of prayer is one or a few of such limited kinds that are included in texts, and so on.

Imām Ibn Mājah recorded in his *Sunan* a narration upon the authority of Salmān al-Fārsi with an extremely authentic chain of transmission:

حدثنا علي بن محمد حدثنا وكيع عن الأعمش ح و حدثنا محمد بن بشر حدثنا عبد الرحمن حدثنا سفيان عن منصور والأعمش عن إبراهيم عن عبد الرحمن بن يزيد عن سلمان الفارسي، رضي الله عنه، قال: قال له بعض المشركين، وهم يستهزؤون به: إني أرى صاحبكم يعلمكم كل شيء حتى الخراء؟ قال: أجل أمرنا أن لا نستقبل القبلة، ولا نستنجي بأيماننا، ولا نكتفي بدون ثلاثة أحجار، ليس فيها رجيع ولا عظم

Ali ibn Muḥammad narrated to us Waki' narrated to us from al-'Amash (ḥawala) Muḥammad ibn Bashār narrated to us 'Abdar-Raḥman narrated to us Sufyān narrated to us from Maṣṣūr and al-'Amash from Ibrāhīm from 'Abdar-Raḥman ibn Yazeed from Salmān who said that one of the *mushrikeen* said to him, while they were making fun of him – 'I see that your companion (the Prophet) is teaching you everything, even how to relieve yourself?' He said: Yes indeed. He has ordered us not to face the *Qiblah* or to clean ourselves with our right hands and not to be content with anything less than three stones, which are not to include any excrement or bones.⁸

Similar has been recorded, albeit without the element of ridiculing, with authentic channels of transmission by Imām Muslim, al-Tirmidhi, al-Nasā'i and others. One should seriously ponder over this incident. Note the question posed by this stubborn *mushrik* (polytheist) with his intellect no better than that of a donkey, contrasted by Salmān; determined in his response, speaking with an excellent manner, patience and paying attention to detail. If the statement of Salmān is true and by Allah we testify to its truthfulness; there is no god / deity but Allah, how then can anyone claim who believes in Allah and the last day, that the final *Sharī'ah* is somehow incomplete? That there are in some way 'gaps', 'loopholes,' lacuna, or that the texts cannot encompass the full range of human action and experience. Those that do hold this viewpoint proceed on the basis of desires, innovation and heresy. They seek to beguile others through beautiful names which hide an ugly and sinister agenda; they seek to aggrandise themselves and ultimately mislead people. From amongst the beautified terms that they marshal we find them saying that

⁸ *Sunan Ibn Mājah* [Vol. 1, no. 316]. Aḥmad also records this with an authentic channel, but the wording is: 'A man said: Verily I see that your companion (the Prophet) is teaching you, does he teach you how to defecate? He (Salmān) said: Yes, notwithstanding (this) ridicule. He has taught us how to defecate. He has ordered us not to face the *Qiblah* or to clean ourselves with our right hands and not to be content with anything less than three stones, which are not to include any excrement or bones.' See: *Musnad Aḥmad* [Vol. 5, no. 23,753 & 23,756].

they have 'the understanding of the *Salaf al-Ṣāliḥ* (righteous predecessors)'; that they are using *Sadd al-Dhara'i* to 'block the means'; they have the considerations of public interest and are preventing greater evil and the favoured hyperbole of the treasonous government scholars, that they are preventing '*fitna*, sedition and tribulation.' Meanwhile Allah the Majestic states –

وَمِنْهُمْ مَّنْ يَقُولُ إِنَّنِي لَا فِي الْفِتْنَةِ سَقَطُوا وَإِنَّ جَهَنَّمَ لَمُحِيطَةٌ بِالْكَافِرِينَ

Some of them said, 'Give me permission to stay at home: do not trouble me.'
*They are already in trouble: Hell will engulf the disbelievers.*⁹

In addition to this, Imām al-Ṭabarānī has recorded the following *ḥadith* on the authority of Abu Dharr:

حدثنا محمد بن عبد الله الحضرمي حدثنا محمد بن عبد الله بن يزيد المقرئ حدثنا سفيان بن عيينة عن فطر عن أبي الطفيل عن أبي ذر قال تركنا رسول الله صلى الله عليه وسلم وما طائر يقلب جناحيه في الهواء إلا وهو يذكر لنا منه علماً؛ قال: فقال، صلوات الله وسلامه وبريكاته عليه وعلى آله ما بقي شيء يقرب من الجنة، ويباعد من النار إلا وقد بُيِّنَ لكم

Muḥammad ibn Abdullah al-Ḥaḍrami narrated to us Muḥammad ibn Abdullah ibn Yazeed al-Muqri narrated to us Sufyān ibn 'Uyayna narrated to us from Fiṭr from Abu Ṭufayl from Abu Dharr he said: the Messenger of Allah peace and blessings be upon him told us that there is no bird that flies in the air (sky), except that it has some knowledge from him. He said – he, may Allah's prayers, blessings and peace be upon him and his family, *There is nothing left that will further you to Paradise, and separate from the hellfire, except that it was explained to you.*¹⁰

The *ḥadith* is authentic - *Ṣaḥīḥ* and supports the point of this subject here regarding the completeness of *Deen*. Next, recorded in *Ṣaḥīḥ* al-Bukhārī:

⁹ *Qur'ān* 9: 49

¹⁰ al-Ṭabarānī *Mu'jam al-Kabir* [Vol. 2, no. 1647]. A further narration is cited from the *Musnad* of Aḥmad: Ibn Numayr narrated to us al-'Amash narrated to us from Mundthir, scholars from al-Taym narrated to us they said (that) Abu Dharr said: Verily Muḥammad peace and blessings be upon him left us with (this): '*What drives the bird's wings in the sky, except that it remembers us and notes this knowledge.*' *Musnad Aḥmad* [Vol. 5, no. 21399 & 21477]; *Musnad al-Ṭayālisi* [Vol. 1, no. 479].

حدثنا موسى بن مسعود حدثنا سفيان عن الأعمش عن أبي وائل عن حذيفة رضي الله تعالى عنه قال لقد خطبنا النبي صلى الله عليه وسلم خطبة ما ترك فيها شيئا إلى قيام الساعة إلا ذكره؛ علمه من علمه وجهله من جهله. إن كنت لأرى الشيء قد نسيت فأعرفه كما يعرف الرجل إذا غاب عنه فرآه فعرفه

Musa ibn Mas'ud narrated to us Sufyān narrated to us from al-'Amash from Abu Wā'il from Ḥudhayfah, may Allah the Almighty be pleased with him, he said: the Prophet peace and blessings be upon him once delivered a speech in front of us wherein he left nothing but mentioned (about) everything that would happen till the (final) hour. Some of us stored that in our minds and some forgot it. (After that speech) I used to see events taking place (which had been referred to in that speech) but I had forgotten them. Then I would recognise such events as a man recognises another man who has been absent and then sees and recognises him.¹¹

Imām Muslim records the following again narrated on the authority of Ḥudhayfah:

حدثني حرملة بن يحيى التجيبي أخبرنا بن وهب أخبرني يونس عن بن شهاب أن أبا إدريس الخولاني كان يقول قال حذيفة بن اليمان والله إني لأعلم الناس بكل فتنة هي كائنة فيما بيني وبين الساعة وما بي إلا أن يكون رسول الله، صلى الله عليه وسلم، أسر إلي في ذلك شيئا لم يحدثه غيري ولكن رسول الله، صلى الله عليه وسلم، قال وهو يحدث مجلسا أنا فيه عن الفتن فقال رسول الله، صلى الله عليه وسلم، وهو يعد الفتن منهن ثلاث لا يكذبن شيئا ومنهن فتن كرياح الصيف ومنها صغار ومنها كبار قال حذيفة فذهب أولئك الرهط كلهم غيري

Ḥarmala ibn Yaḥya al-Tajeebe narrated to me Ibn Wahb reported to us Yunus reported to me from Ibn Shihāb that Abu Idris al-Khawlanī said that Ḥudhayfah ibn al-Yamān said: By Allah, I have the best knowledge amongst people about every turmoil which is going to appear in the period intervening me and the last hour; and it is not for the fact that Allah's Messenger peace and blessings be upon him told me something confidentially pertaining to it and he did not tell anybody else about it, but it is because of the fact that I was present in the assembly in which he had been describing the turmoil. and he especially made a mention of three turmoil's which would not spare

¹¹ *Ṣaḥīḥ* al-Bukhārī [Vol. 6, no. 6230]. Following references for the tradition include: *Ṣaḥīḥ* Ibn Ḥibbān Vol. 15, no. 6636], *Sunan* Abu Dāwūd [Vol. 4, no. 4240] and *Musnad* Aḥmad [Vol. 5, no. 23357].

anything and amongst these there would be turmoil's like storms in the hot season. Some of them would be violent and some of them would be comparatively mild. Ḥudhayfah said: All (who were present) except I have gone (to the next world).¹²

In his *Sunan*, Imām al-Tirmidhi records the following narrated on the authority of Abu Sa'eed al-Khudri:

حدثنا عمران بن موسى القزاز البصري حدثنا حماد بن زيد حدثنا علي بن زيد بن جدعان القرشي عن أبي نصر عن أبي سعيد الخدري قال صلى بنا رسول الله، صلى الله عليه وسلم، يوما صلاة العصر بنهار ثم قام خطيبا فلم يدع شيئا يكون إلى قيام الساعة إلا أخبرنا به حفظه من حفظه ونسيه من نسيه وكان فيما قال إن الدنيا حلوة خضرة وإن الله مستخلفكم فيها فناظر كيف تعملون ألا فاتقوا الدنيا واتقوا النساء وكان فيما قال ألا لا يمتنعن رجلا هيبة الناس أن يقول بحق إذا علمه قال فيكي أبو سعيد فقال قد والله رأينا أشياء فهبنا فكان فيما قال ألا إنه ينصب لكل غادر لواء يوم القيامة بقدر غدرته ولا غدره أعظم من غدره إمام عامة يركز لوائه عند أسته فكان فيما حفظنا يومئذ ألا إن بني آدم خلقوا على طبقات شتى؛... إلخ

'Imrān ibn Musa al-Fazzāz al-Baṣri narrated to us Ḥammād ibn Zayd narrated to us Ali ibn Zayd ibn Jud'ān al-Qurashi narrated to us from Abu Naḍra from Abu Sa'eed al-Khudri who said: One day, the Messenger of Allah peace and blessings be upon him led us in prayer while it was still daytime. Then he stood to give us an address. He did not leave anything that would happen until the hour of judgement except that he informed us about it. Whoever remembered it remembered it, and whoever forgot it forgot it. Among what he said was: *Indeed the world is green and sweet, and indeed Allah has left you to remain to see how you behave. So beware of the world, and beware of the women.* And among what he said was: *The awe (status) of people should not prevent a man from saying the truth when he knows it.* He (one of the narrators) said: Abu Sa'eed wept, then he said: By Allah! We have seen things and we feared. And among what he said in it, was: *Indeed, for every treacherous person there shall be a banner erected on the Day of Resurrection in proportion to his*

¹² *Ṣaḥīḥ* Muslim [Vol. 4, no. 2891]. A follow-up narration is further cited from the *Musnad* of Aḥmad [Vol. 5, no. 23339], which essentially has the same wording, but via a different *isnād*: 'Ya'qub narrated to us my father narrated to us from Ṣāliḥ - that is to say ibn Kaysān - from Ibn Shihāb he said: Abu Idris 'Aāidh-Allah ibn Abdullah al-Khawlanī heard Ḥudhayfah ibn al-Yamān say.' Also recorded by al-Ḥākim, *Mustadrak* [Vol. 4, no. 8454].

*treachery. And there is no treachery greater than the treachery of a leader to the masses' whose banner shall be positioned at his buttocks. And among what we remember from that day is: Behold! Indeed the children of Adam were created in various classes (etc.).*¹³

Finally, there is the narration which was recorded by al-Ṭabarānī on the authority of al-Mughira:

حدثنا الحسين بن إسحاق التستري حدثنا الحسن بن أبي السري العسقلاني حدثنا مكي بن إبراهيم حدثنا هاشم بن هاشم عن عمرو بن إبراهيم بن محمد عن محمد بن كعب القرظي عن المغيرة قال قام فينا رسول الله، صلى الله عليه وسلم، مقاما فأخبرنا بما يكون في أمته إلى يوم القيامة وعاه من وعاه ونسبه من نسبه

al-Ḥussein ibn Ishāq al-Tastari narrated to us al-Ḥasan ibn Abi al-Suri al-Asqalānī narrated to us Makki ibn Ibrāhīm narrated to us Hishām ibn Hishām narrated to us from ‘Amr ibn Ibrāhīm ibn Muḥammad from Muḥammad ibn Ka’b al-Qurazi from al-Mughira, he said the Messenger of Allah, peace and blessings be upon him stood stationed before us and he informed us what will occur in his *Ummah* until the Day of Judgement. And he said to us a word; some of us have comprehended (it) whilst others of us have forgotten.¹⁴

The Church of Najd

The claims of the Church of Najd, that is to say the sect of Wahhābism and those adhering to their views who call themselves the ‘*Salafis*’ are manifestly false. They implicitly argue that the *Deen* is imperfect until it has been explained by the *Salaf al-Ṣāliḥ* (righteous predecessors) from the first three-centuries, inclusive of the companions and the rightly guided *Khulafa*. They

¹³ *Sunan* al-Tirmidhi [Vol. 4, no. 2191]. Following references to this also include citation in: *Musnad* Ḥumaydi Vol. 2, no. 752] and *Musnad* Abu Ya’la [Vol. 2, no. 1101]. Immediately following mention of this there is the longer narration recorded by al-Ṭabarānī in *Mu’jam al-Awsaṭ* [Vol. 4, no. 3817]. Also narrated upon the authority of Abu Sa’eed al-Khudri, this broadly carries the wording as narrated by al-Tirmidhi, but with some additional wording that has been featured in the *aḥādīth* already set out.

¹⁴ al-Ṭabarānī *Mu’jam al-Kabir* [Vol. 20, no. 1077]. A follow-on narration from the *Musnad* of Abu Ya’la [Vol. 9, no. 5109] is also mentioned: ‘Muḥammad ibn Abu Bakr narrated to us Yahya narrated to us from Fiṭr ibn Khalifa from ‘Aṭā who said (that) Abu Dardā said: Verily the Messenger of Allah peace and blessings be upon him left us and there is not a bird in the sky that flies with its wings but that we mentioned knowledge of it.’

say this without any recourse to serious thought or study, reflecting their own superficiality. Many of their statements are made without any sense of deep thought, as they are impervious to reason and blinded by their own vanities. Indeed their mantra about – ‘the Qur’ān and *Sunnah* according to the understanding of the *Salaf al-Ṣāliḥ*’ refers without any doubt, to the notion that the *Deen* is in some way deficient and imperfect. It is a suggestion that the *Deen* was not completed before the death of the Prophet peace and blessings be upon him, as if that the Prophet did not understand some matters, or that he did understand and failed to explain them - Allah preserve us from such banal nonsense! Their statements seek to undermine the seal of Prophethood and the universality of the Islamic message, yet they are blinded to how destructive their sect has truly become. The message of the Qur’ān and the *Sunnah* are accessible to whosoever wants to read and study them, for anyone who wants to engage their reason, pondering deeply over its meanings, as Allah orders us to in *Surah al-Tawba*. The honest truthful heart should ask, are they really the adherents of the *Salaf al-Ṣāliḥ* - or should they properly be called, the *Khalaf Ṭāliḥ* (evil successors)!

These superficial zombies have abandoned seeking to understand the book of Allah and the *Sunnah*, preferring to retreat to the ivory tower of an imagined ‘understanding of the *Salaf al-Ṣāliḥ*’ that all must bow to. Without seeking to understand what Allah has actually revealed they oscillate between various sayings, arguing we have Aḥmad ibn Ḥanbal while you have Mālik ibn Anas. They will remain lost in such endless circles, from contradicting sayings and different claims. Our discerned reader will become accustomed to their faulty understanding throughout this present work and will begin to see not only their heinous errors but how they have sought to entrench such erroneous views, all the while being impervious to what Allah has revealed. Most of those people claiming to be *Salafis* have arrived at an intellectual impasse. They have not examined the disastrous consequences of their *Salafi* assertions. They are just following other scholars, those that are not better in acquiring knowledge than them. Most of them do not know the sayings of the *Salaf* (predecessors) and their wide range of opinions that they took on matters of jurisprudence. To argue that they had a monolithic view on *all* issues is a flagrant lie. It is truly rare for any of them to have considered for example the *Muṣṣanaḥ* of Abu Bakr ibn Abi Shayba or the *Sunan* of Sa’eed ibn Manṣur, even rarer that they have had anything more than a cursory look at the

Muṣṣanaḥ of ‘Abd al-Razzāq or even *al-Awsaṭ* by Ibn al-Mundhir. Yet they are proficient at levelling unsubstantiated allegations and fostering outright lies where it suits their agenda.

We mentioned in detail some of the points raised by the ‘followers of *Salafism*’ because they claim to be the best among all the creation of Allah; that they are the ‘*ahl al-Aqeedah al-Ṣāfiya al-Ṣāḥiḥa*’ – the people of the pure authentic creed, while all others are the people of innovation or even apostates and disbelievers. They claim that they are ‘*al-Firqa al-Nājiya*’ or the ‘*Tā’ifa al-Manṣura*’, the saved victorious sect, yet they are more like the *Khawārij* in this regard. Without prejudice the adherents of ‘*Salafism*’ must seriously reevaluate their position, bearing in mind that the Prophet peace and blessings be upon him said: ‘*Whoever says that the people are ruined, he is himself more ruined than them.*’

Amongst contemporary Islamic circles there still exists, unfortunately, those that cling to the false notion that there is somehow a ‘legislative vacuum’ or lacuna which people should fill. Exactly what to fill this imagined vacuum with prompts a number of differing viewpoints, be that according to one’s own reason, according to the principles *Istiḥsān*; an ill-defined public interest, making analogous comparisons or even bizarrely acting within the ‘spirit of the law.’ Such notions are evidently false for the one who will take the time to seriously study them, since the revelation itself provides us with a succinct creed; a complete set of rituals for worship and the most complete set of transactions. The *ḥadith* of Salmān mentioned earlier which is concerned with purity and manners of relieving oneself should prove sufficient in counteracting these deadly tendencies which left unchecked, have the potential of leading to disbelief. Concerning transactions, it is enough to mention all kinds of sales that were proved by the text as unlawful, which are more than forty-types, some of them are very rare and even unknown nowadays. Even if it is only mentioned that one type of sale is prohibited, that in itself is sufficient evidence to establish that sales *other than this kind* are lawful, as we mentioned previously, especially when considering the verse in which Allah says: ‘*But Allah permitted trade and forbidden usury.*’¹⁵

Where then is the legislative vacuum or gaps within the *Sharī’ah*? These are but phantasms of the mind. Imām Muḥammad ibn Idris al-Shāfi’i was

¹⁵ *Qur’ān* 2: 275

correct when he said in *al-Risāla*: ‘There is nothing among the crises that happen to anyone among people of the religion of Allah except that there is an evidence in the Book of Allah that shows how to solve it.’¹⁶ Indeed he spoke the truth which is a definite and absolute truth, regardless who knows and who does not know. Much the same was said by Imām Abu Muḥammad, Ali ibn Ḥazm, as cited earlier, in which he provides a lucid argument to those who would try and argue otherwise.

Such evil and accursed sayings generally stem from three sources. Firstly, from the disbelievers in general as well as the people who have hypocrisy in belief. They conceal disbelief deep in their hearts while outwardly showing Islam, desiring to mix the *Sharī’ah* with *kufr*. Although they proceed in a cautious and gradual manner, this is ultimately their goal. It is as brazen as if they were to walk naked in the streets, exposing themselves to all and sundry. Unfortunately our present age, the late 14th Islamic century, is replete with these individuals who more often than not, occupy positions of power, influence and authority. Secondly, from the sinful people that are beset with laziness. They neither memorise the *Sunnah* nor revise it from its sources, failing to distinguish or differentiate what is authentic from what is not. Laziness has become all too easy for them, retreating to the comfort of *taqlid* thereby missing the essential wisdom and guidance which the *Sunnah* affords. Finally, from those who are completely passive, content with their own ignorance and promoting obscurantism amongst the wider public. By relegating their own minds to the priests and rabbis they have set up rivals to Allah, obeyed lords whom they fervently follow, like braying animals.

We do not deny that some scholars have committed serious mistakes by comparing the *Sharī’ah* of Allah and man-made laws, which are full of gaps and loopholes that are required to be filled to patch up its shortcomings, be that with *Istiḥsān* considerations of an ill-defined public interest - *maṣlaḥah mursalah*; making *Qiyās*, or other intellectual acrobatics like acting within the ‘spirit of the law.’ The faithful, earnest, sincere scholar - whatever his rank - is not allowed to continue in such mistakes; we must take flight to the refuge of Allah, seeking his forgiveness. We ask Allah to forgive all those who committed such blunders from amongst scholars of this *Ummah*, who were sincere and made their best effort to find the truth. We ask Him to reward

¹⁶ al-Shāfi’i (2010), *al-Risāla* (Dar an-Nafaes: Beirut) p. 35

them for their effort. While the unqualified, faithless scholars who are sycophants as well as the unjust tyrannical rulers we pray to Allah to never forgive them, but to curse them, making their life here and in the life to come full of misery, despair and punishment.

11. The Prophet permits all good, outlaws all evil

Allah the Exalted, the Majestic states the following in Qur'ān:

الَّذِينَ يَتَّبِعُونَ الرَّسُولَ النَّبِيَّ الْأُمِّيَّ الَّذِي يَجِدُونَهُ مَكْنُوبًا عِنْدَهُمْ فِي التَّوْرَةِ وَالْإِنْجِيلِ يَأْمُرُهُمْ بِالْمَعْرُوفِ وَيَنْهَاهُمْ عَنِ الْمُنْكَرِ يُجِزُّ لَهُمُ الطَّيِّبَاتِ وَيُحَرِّمُ عَلَيْهِمُ الْخَبَائِثَ وَيَضَعُ عَنْهُمْ إِصْرَهُمْ وَالْأَغْلَالَ الَّتِي كَانَتْ عَلَيْهِمْ فَاَلَّذِينَ آمَنُوا بِهِ وَعَزَّرُوهُ وَنَصَرُوهُ وَاتَّبَعُوا النُّورَ الَّذِي أُنْزِلَ مَعَهُ ۙ أُولَٰئِكَ هُمُ الْمُفْلِحُونَ

*Those who follow the Messenger - the unlettered Prophet they find described in the Torah that is with them, and in the Gospel - who commands them to do right and forbids them to do wrong, who makes good things lawful to them and bad things unlawful, and relieves them of their burdens, and the iron collars that were on them. So it is those who believe him, honour and help him, and who follow the light which has been sent down with him, who will succeed.*¹

يَسْأَلُونَكَ مَاذَا أُحِلَّ لَهُمْ قُلْ أُحِلَّ لَكُمْ الطَّيِّبَاتُ وَمَا عَلَّمْتُم مِّنَ الْجَوَارِحِ مُكَلِّبِينَ تُعَلِّمُونَهُنَّ مِمَّا عَلَّمَكُمُ اللَّهُ فَكُلُوا مِمَّا أَمْسَكْنَ عَلَيْكُمْ وَاذْكُرُوا اسْمَ اللَّهِ عَلَيْهِ وَاتَّقُوا اللَّهَ ۚ إِنَّ اللَّهَ سَرِيعُ الْحِسَابِ

*They ask you, Prophet, what is lawful for them. Say, 'All good things are lawful for you.' [This includes] what you have taught your birds and beasts of prey to catch, teaching them as Allah has taught you, so eat what they catch for you, but first pronounce God's name over it. Be mindful of Allah: He is swift to take account..*²

¹ Qur'ān 7: 157

² Qur'ān 5: 4

الْيَوْمَ أَجَلَ لَكُمْ الطَّيِّبَاتِ وَطَعَامُ الَّذِينَ أُوتُوا الْكِتَابَ حَلَ لَكُمْ وَطَعَامُكُمْ حَلَ لَهُمْ وَالْمُحْصَنَاتُ مِنَ الْمُؤْمِنَاتِ وَالْمُحْصَنَاتُ مِنَ الَّذِينَ أُوتُوا الْكِتَابَ مِنْ قَبْلِكُمْ إِذَا آتَيْتُمُوهُنَّ أَجُورَهُنَّ مُحْصِنِينَ غَيْرَ مُسَافِحِينَ وَلَا مُتَّخِذِي أَخْدَانٍ وَمَنْ يَكْفُرْ بِالْإِيمَانِ فَقَدْ حَبِطَ عَمَلُهُ وَهُوَ فِي الْآخِرَةِ مِنَ الْخَاسِرِينَ

*Today all good things have been made lawful for you. The food of the People of the Book is lawful for you as your food is lawful for them. So are chaste, believing, women as well as chaste women of the people who were given the Scripture before you, as long as you have given them their bride-gifts and married them, not taking them as lovers or secret mistresses. The deeds of anyone who rejects faith will come to nothing, and in the Hereafter he will be one of the losers.*³

فَبِظُلْمٍ مِّنَ الَّذِينَ هَادُوا حَرَّمْنَا عَلَيْهِمْ طَيِّبَاتٍ أُحِلَّتْ لَهُمْ وَبِصَدِّهِمْ عَنِ سَبِيلِ اللَّهِ كَثِيرًا

*For the wrongdoings done by the Jews, We forbade them certain good things that had been permitted to them before: for having frequently debarred others from God's path*⁴

We would hasten to add at this juncture that when we say that something is good - *ṭayib*, in itself or for considerations to do with that entity; or that something is deemed malignant / evil - *khabeeth*, in and of itself, for considerations related to that entity, this is said within the context of the present created world. It is but one of the possibilities of existence, but not necessity. It is like this because Allah the exalted *has made it that way* by virtue of his divine decree. Allah's omnipotent free will rules over everything and there is nothing whatsoever to place a limit or restriction upon it. There is no other authority beyond Allah or a higher right of appeal or audience. He is the Most High, the wisest; the First – nothing existed before Him – and He is the last – there is nothing after Him. He is the all-knowing, the all-powerful.

Therefore, a *ḥalāl* thing is so because Allah made it so. He made it so within the framework of his own divine absolute will to objects with a specific design and attribute, rather than due to an internal necessity of the created object, or as an absolute necessary concept. Thus, there is an important distinction between the creative command of Allah and his own legislative will. In principle there is nothing to say that Allah cannot create something to be good - *ṭayib*, in and of itself, yet deem that as being prohibited as part of

³ *Qur'ān* 5: 5

⁴ *Qur'ān* 4: 160

a *Sharī'ah* for whatever considerations as part of his legislative command. What constitutes the 'lawful', therefore, is what Allah the Exalted decrees as lawful by his legislative command. Matters that are 'prohibited' are judged in the same way. Ultimately, Allah is the determining authority in the judgement of what constitutes the lawful and prohibited. Allah is the first and the last. He is the absolute authority and it is to him the eventual return ultimately is. There is no deity other than Him.

Fundamental maxims

As cited previously the blessed verses from the *Qur'ān* provide us with unequivocal statements, establishing certain binding proofs. From these we may detail some fundamental maxims. Firstly, there is a fundamental distinction between what the concept of good - *ṭayib* is and the concept of lawful - *ḥalāl*. The two concepts are independent of each other, with no necessity dictating that the two should coincide. What is deemed *ṭayib* is as a result of Allah's divine will pertaining to its creation and destination in that manner or fashion. Lawful - *ḥalāl*, relates to a matter being decided as such by the legislative command of Allah. Concerning the concept of what is *khabeeth* and *ḥarām* they are also independent from each other in the same manner as described in relation to the *ṭayib* and the *ḥalāl*.

Nothing can dictate to Allah the Exalted, ultimate lord, whose sovereignty is *absolute*. Hence if he wishes, he is fully able to prohibit some matters which are deemed to be *ṭayib*, just as he is fully able to keep the law (*Sharī'ah*) silent in relation to matters which are from amongst the *khabā'ith*, thereby not explicitly censuring them. Allah is fully conversant with what is good in and of itself and what is malignant or evil in and of itself. By way of ranks or degrees of consideration this in the grand scheme of things is secondary to Allah's overriding lordship and sovereignty. Allah judges as he wills, he legislates as he wills; Allah cannot be questioned as to what he does, though we will be questioned for what we do!⁵

Regardless of what Allah legislates, His judgement is absolute not being subject to revision or higher right of appeal. He, the Exalted is accountable to

⁵ As expressed by the *Qur'ānic* verse found in 21: 23 and other places

none. Obedience to Him is absolute without limit, being a binding rational necessity.

For the final *Ummah* though, Allah has bestowed a number of distinct blessings. Not only have we been favoured with having Muḥammad peace and blessings be upon him as our Prophet and the seal of Prophethood itself, but Allah has synchronised the *Sharī'ah* revealed to him; thereby making lawful everything that is good - *ṭayib*, and prohibiting everything that is evil or malignant - *khabeeth*. The situation now is in contrast to some of the previous nations. They were burdened having shackles placed upon them. Yet now they have been given a reprieve. By accepting the final *Sharī'ah* and the Prophethood of Muḥammad peace and blessings be upon him they too can partake in the *ṭayib* that was previously unlawful for them. Matters that are *khabeeth* have been made unlawful on this blessed *Ummah* by the mercy of Allah, whereas some were not in previous revealed legislation, like alcohol.

Without doubt Islam is the perfect complete *Deen*. Its revealed texts contain, by the grace of Allah, the judgment concerning all things, be they objects or actions until the day of judgment. This has obviated the need to dwell upon extensive studies into the reality or nature of an act or object in order to determine whether it is good or evil. Consequently we are assured that the reality as established by the revealed texts in the last blessed *Sharī'ah* as it relates to what is *ṭayib* being *ḥalāl* and what is *khabeeth* being *ḥarām*. Allah the Exalted has guaranteed this for us. Therefore we can assert with the fullest of knowledge, bearing witness by Allah, that all which He has made lawful in the last final *Sharī'ah* is good in and of itself. All which he has deemed unlawful is bad / evil in and of itself. Determining the precise nature via investigation of the nature of objects, utilities and perhaps even the ultimate value of some particular acts or statements – whether it is *ṭayib* or *khabeeth* becomes a secondary matter once the proper Islamic position has been established.

Similar can be said of the philosophical speculation that has surrounded the notion of what is *ṭayib* or *khabeeth* in itself, whether that be on a microscopic level in terms of its basic constituents or in relation to its sociological effects via empirical evidence. Overall its relative importance or weight in terms of legislation becomes relegated. Man can only conduct investigation up to a given point and ultimately his knowledge is

infinitesimally limited when compared to the creator and lord of the worlds, Allah the Exalted, who is omniscient.

Even if we suppose the possibility in principle that man could have the ability to comprehend the nature of things from all necessary angles, the reality of human endeavours in legislation demonstrates otherwise. All nations, civilisations and people have witnessed laws being formulated, implemented and then either amended or repealed totally for one or more consideration that was not evident at the time when they were formulated. In the round, such factors buttress our belief that mankind will always come in second in relation to this, despite the onset of time and accumulation of successive generations of knowledge.

Notwithstanding mankind's proclivity for placing other non-rational considerations at the forefront of mind, such as limited worldly benefit, even if the assumption is made that the human mind is in principle reaching a definitive judgement in relation to whether a matter is truly *ṭayib* or *khabeeth*; it would be only a theoretical intellectual endeavour. All the while we have the final *Sharī'ah* which Allah has given us providing the ultimate determiner of such things. The solution to human malaise in this area rests with the *ḥukm shari'*, as outlined previously; the legal texts provide the complete necessary guidance. Legal judgement is not permissible except by way of a legal text. *Al-'Imān* and Islam stipulate all matters to be referred back to Allah and his Messenger (peace be upon him). There is no valid alternate position.

Concerning what we have previously said about the Arabic word '*ḥabā'ith*' there is some conformity with the word '*al-fawāḥish*' – indecencies. Therefore, the fact that something is indecent is a matter of self; a reality that can be readily discernible. It has nothing to do with laws. Indecency is doing something beyond its proper limit. It is a concept that is often used in classifying the actions and statements, in addition to the relations and proportions, the abstract systems, and conventional positive matters. The notion of '*al-fawāḥish*' hasn't been used to describe an object or benefit; the word used in the legal texts for these is *khabeeth*. For the sake of clarity, for an object or action to be classified as *fāḥisha* - whether in itself or for some other consideration - it is because Allah the exalted has made it thus by way of his divine decree – *qadr*, and creative act. It has been given that nature, for want of a better word, by the absolute free will of Allah, which rules over everything. This is done within the framework of Allah's absolute will to

create objects on specific moulds and attributes, rather than due to an internal necessity of the created object.

Compelling evidences

It is established by way of definite evidence that Allah has forbidden all manner of indecencies - *al-fawāḥish*, open or concealed, in this last *Sharī'ah*, just as he has forbidden the *khābā'ith* as detailed in the following Qur'ānic verses:

الْحَقُّ وَأَنْ تُشْرِكُوا بِاللَّهِ مَا لَمْ يَنْزِلْ بِهِ سُلْطَانًا وَأَنْ تَقُولُوا عَلَى اللَّهِ مَا لَا تَعْلَمُونَ
الْحَقُّ وَأَنْ تُشْرِكُوا بِاللَّهِ مَا لَمْ يَنْزِلْ بِهِ سُلْطَانًا وَأَنْ تَقُولُوا عَلَى اللَّهِ مَا لَا تَعْلَمُونَ

Say [Prophet], 'My Lord only forbids disgraceful deeds - whether they be open or hidden - and sin and unjustified aggression, and that you, without His sanction, associate things with Him, and that you say things about Him without knowledge.⁶

قُلْ تَعَالَوْا أَتْلُ مَا حَرَّمَ رَبِّيَ عَلَيَّكُمْ أَلَّا تُشْرِكُوا بِهِ شَيْئًا وَبِالْوَالِدَيْنِ إِحْسَانًا وَلَا تَقْتُلُوا أَوْلَادَكُمْ مِنْ إِمْلَاقٍ نَحْنُ نَرْزُقُكُمْ وَإِيَّاهُمْ وَلَا تَقْرَبُوا الْفَوَاحِشَ مَا ظَهَرَ مِنْهَا وَمَا بَطَنَ وَلَا تَقْتُلُوا النَّفْسَ الَّتِي حَرَّمَ اللَّهُ إِلَّا بِالْحَقِّ
قُلْ تَعَالَوْا أَتْلُ مَا حَرَّمَ رَبِّيَ عَلَيَّكُمْ أَلَّا تُشْرِكُوا بِهِ شَيْئًا وَبِالْوَالِدَيْنِ إِحْسَانًا وَلَا تَقْتُلُوا أَوْلَادَكُمْ مِنْ إِمْلَاقٍ نَحْنُ نَرْزُقُكُمْ وَإِيَّاهُمْ وَلَا تَقْرَبُوا الْفَوَاحِشَ مَا ظَهَرَ مِنْهَا وَمَا بَطَنَ وَلَا تَقْتُلُوا النَّفْسَ الَّتِي حَرَّمَ اللَّهُ إِلَّا بِالْحَقِّ

Say, 'Come! I will tell you what your Lord has really forbidden you. Do not ascribe anything as a partner to Him; be good to your parents; do not kill your children in fear of poverty'— We will provide for you and for them— 'stay well away from committing obscenities, whether openly or in secret; do not take the life Allah has made sacred, except by right. This is what He commands you to do: perhaps you will use your reason.'⁷

These Qur'ānic verses are unequivocal. Indeed Allah has forbidden all manner of sexual indecency in this last *Sharī'ah*, in fact any immorality whatsoever. Whether that be open or concealed or whether that be from statements, acts, relations, abstractions or systems. The same also applies to matters of convention and what concerns the *khābā'ith* as previously mentioned. What we had mentioned above about *khābā'ith* can also be said here about *al-fawāḥish* and with Allah is all success. Regarding previous

⁶ Qur'ān 7: 33

⁷ Qur'ān 6: 151

nations, Allah permitted them to commit certain *khābā'ith* and *fāḥisha*, demonstrating how destructive they were to their societies. Examples of this are allowing alcohol to be drunk and the infamous grant of a monarchical ruling system which was requested from the people of Israel, despite Allah warning them of its long-term consequences. They persistently supplicated this to their Prophets and were warned that Allah would not answer their calls when it became burdensome. A fuller discussion of this point can be found in our work entitled *Hākimiyyah wa Siyādat al-Shar'*. Such incidents bolster the truthfulness of the Prophet's words peace and blessings be upon him as collected in *al-Jāmi al-Ṣaḥīḥ al-Mukhtaṣar* by Imām al-Bukhārī where he is reported to have said:

حدثنا إسماعيل حدثني مالك عن أبي الزناد عن الأعرج عن أبي هريرة عن النبي صلى الله عليه وسلم قال دعوني ما تركتكم إنما أهلك من كان قبلكم سؤالهم، واختلافهم على أنبيائهم، فإذا نهيتكم عن شيء فاجتنبوه وإذا أمرتكم بأمر فأتوا منه ما استطعتم

Ismā'il narrated to us Mālik narrated to me from Abi Zinād from al-'Araj from Abu Hurayrah from the Prophet peace and blessings be upon him, he said: *Leave me as I leave you for the people who were before you were ruined because of their questions and their differences over their Prophets. So, if I forbid you to do something, then keep away from it. And if I order you to do something, then do of it as much as you can.*

And also in the wording that has been reported by Imām Muslim in his *Ṣaḥīḥ*:

حدثني حرملة بن يحيى التجيبي أخبرنا ابن وهب أخبرني يونس عن ابن شهاب أخبرني أبو سلمة بن عبد الرحمن وسعيد بن المسيب قال كان أبو هريرة يحدث أنه سمع رسول الله صلى الله عليه وسلم يقول ما نهيتكم عنه فاجتنبوه وما أمرتكم به فافعلوا منه ما استطعتم فإنما أهلك الذين من قبلكم كثرة مسائلهم واختلافهم على أنبيائهم

Ḥarmala ibn Yaḥya al-Tajeebe narrated to me Ibn Wahb reported to us Yunus reported to me from Ibn Shihāb - Abu Salamah ibn 'Abdar-Raḥman and Sa'eed ibn Musayyib reported to me - they said, Abu Hurayrah narrated to us that he heard the Messenger of Allah peace and blessings be upon him saying: *Avoid that which I forbid you to do and do that which I command you to do to the best of your capacity. Verily the people before you went to their doom because they had put*

too many questions to their Prophets and then disagreed with their teachings.

These *aḥādith* are truly *Ṣaḥīḥ*, being reported in almost all collections of *ḥadith*. At this juncture, we would hasten to emphasize the following points. Firstly, that Allah has taken upon his majestic-self in the final and complete *Sharī'ah* to prohibit the *khabā'ith* as well as the *fawāḥish*. Regarding previous revelations, that wasn't always the case. Sometimes they were left without a prohibition, thereby becoming permissible; Allah is the only absolute sovereign, able to legislate as He wills. Secondly, *fāḥisha* is something that is never commanded by Allah the Exalted. It is neither commanded as being an obligation nor allowed to be desirable. He may not legislate against it, as in previous laws, but it is never commanded. That is above his sanctity and holiness, which is above any faults, just as he is above the notion of meanness and lowness. As stated previously, the verse is unequivocal, '*Allah does not enjoin / command fāḥisha*.'⁸

Pork

A number of simple examples can be given in order to further exemplify the general rules that we have elucidated thus far. The first example is that of pork which we are prohibited from eating by way of definite legal texts. The subject of 'pork meat' is no more than one of the following possibilities. If someone believed that pork is prohibited because Allah has prohibited it, then he is a Muslim and a believer that has submitted the matter to Allah and His Messenger. No harm is done if he further believes that pork was prohibited because of its *essential* nature, i.e. that of being impure. Thus it is from the blessing, mercy and kindness of Allah that he has given his servants a straightforward rule which obviates the need to search out the true nature of this item. This is what people of Islam should believe in this last message as we mentioned above.

The prohibition of eating pork is but a test, punishment, disciplining or for other reasons that are only known to Allah. It could be that Allah is exercising His legislative sovereignty in this regard. Pork could be good in itself from both sense perception and from a medical point of view; it may well be that it is the tastiest of all meats. This is a good opinion and a belief

⁸ *Qur'ān* 7: 28

that could be accepted by those of the previous laws as well as by Muslims based upon the evidences outlined above. For example, the great philosopher of Alexandria, Philo who was a contemporary of Jesus peace be upon him, articulated this point lucidly arguing to the Romans that pork may very well be the best of all meat, however God wishes to test who we love most – the meat or him?

If someone believed that eating pork is prohibited because of its nature, that of inner impurity, that it is *khabeeth*, then that mind would force any rational person to avoid impurity and harmful matters. This is what is expected from rational people before the coming of the message and evidence, while after the message and the establishment of evidence this opinion is an invalid belief that will cause its owner to renounce faith. He accepts the law of reason; he makes reason his lord and god and not Allah or he accepts the judgment of the mind without taking express permission of Allah. In any case this viewpoint is not what is considered as submission to Allah. Rather it is disbelief which contradicts Islam and leads one to exit the religion. Whoever believes in such a matter is a polytheist and disbeliever, except he who has an excuse of ignorance, had a wrong interpretation, was under compulsion, or similar from among reasons that would prevent the accusation of disbelief being levelled. This opinion would be more indecent and a greater disbelief if this person makes this prohibition obligatory on himself and others, according to the opinion of reason, which sees that this pork is *khabeeth* for reasons such as:

- a. This means that he obligates and forbids what Allah did not obligate or forbid, which rationally contradicts the *Tawḥeed* of Allah's divinity that among its characteristics is him being the ultimate sovereign.
- b. It is an obvious accusation of lying, when confronted with the definite verse among the *Qur'ān* that indicates that some good matters were forbidden in the previous creeds. They were sent down as revelation and they were the true religion before being abrogated. This is an accusation aimed at Allah, contradicting the right which was obligated to him according to their invalid claim. Allah accordingly oppressed and transgressed which is more offensive than the previous accusation, as it is absolute disbelief, or it is a doubt that the *Qur'ān* is not revealed by Allah, which again is disbelief causing one to exit the fold of Islam.

The whole subject will differ completely if a legal text from this last honourable *Sharī'ah* was revealed describing a certain matter, entity or act as being *khabeeth*. Then we can conclude that it is definitely prohibited in this *Sharī'ah* of Muḥammad peace and blessings be upon him. Unless that is, it acts as an explanation that was revealed with a certain specification in mind, as is the case with regard to the foodstuffs of garlic, onions and others, which have strong pungent smells.

Offensive plants

Turning to the evidences from the *Sunnah*, we will note that there are a large body of *aḥādith* that exist concerning the Prophet's peace and blessings be upon him comment on these foods being *khabeeth* or *khābā'ith*. However the clarification is also apparent in these evidences, which we will now consider, that it was limited to that of its *odour*, and people attending the *masjid* after consuming them. To begin, Imām Muslim records in his *Ṣaḥīḥ* the following on the authority of Abu Sa'eed al-Khudri:

وحدثني عمرو الناقد حدثنا إسماعيل بن علية عن الجريري عن أبي نضرة عن أبي سعيد قال لم نعد أن فتحت خيبر فوقعنا أصحاب رسول الله صلى الله عليه وسلم، في تلك البقلة الثوم، والناس جياع فأكلنا منها أكلا شديدا ثم رحنا إلى المسجد فوجد رسول الله، صلى الله عليه وسلم، الريح، فقال: من أكل من هذه الشجرة الخبيثة شيئا فلا يقربنا في المسجد، فقال الناس: (حَرُمْتُ، حَرُمْتُ)، فبلغ ذلك النبي، صلى الله عليه وسلم، فقال: أيها الناس: إنه ليس بي تحریم ما أحل الله لي، ولكنها شجرة أكره ريحها!

And 'Amr al-Nāqid narrated to me Ismā'il ibn 'Ulaya narrated to us from al-Jariri from Abu Naḍra from Abu Sa'eed who said: We made no transgression but Khaybar was conquered. We, the Companions of the Messenger of Allah (peace be upon), fell upon this plant - garlic. Because the people were hungry, we ate it to our heart's content and then made our way towards the *masjid*. The Messenger of Allah peace and blessings be upon him sensed its odour and he said: *He who takes anything of this offensive plant (shajara khabeetha) must not approach us in the masjid*. The people said: Its (use) has been forbidden; its (use) has been forbidden. This reached the Messenger of Allah (peace be upon him) and he said: *O people, I cannot forbid (the use of a thing)*

*which Allah has made lawful, but (this garlic) is a plant the odour of which is repugnant to me.*⁹

Here, what has been described by the Prophet, peace and blessings be upon him, was the characterisation of some trees as being *khabeeth*. Immediately the Companions understood this, initially, as a matter of necessary unquestionable duty which is beyond dispute, it was taken to be a matter of *tahreem* (prohibition). However, the Prophet, peace and blessings be upon him, provided clarity to that designation of being *khabeeth*, namely that in this specific instance, it was related to the unpleasant smell generated by the plant from those two trees. The matter of *khabeeth* limited to that characteristic, hence it did not lead to an outright prohibition per se, but rather intended solely to stop people coming to the *masjid* until the noxious smell had dissipated. It is possible that this matter of prohibition here was specific to the Prophet's *masjid* during his lifetime, given its special statues with the sanctity of angels delivering revelation, as some scholars noted.

Moreover, he provided the advice that the smell from onions and garlic should be neutralised by way of cooking them thoroughly. Since the Prophet, peace and blessings be upon him, had a special relationship with the angels of revelation, the dislike for such trees was stronger, as mentioned earlier and as is evident from the following narrations.

حدثنا أبو بكر بن أبي شيبة حدثنا كثير بن هشام عن هشام الدستوائي عن أبي الزبير عن جابر قال نهى رسول الله صلى الله عليه وسلم عن أكل البصل والكرات فغلبتنا الحاجة فأكلنا منها فقال من أكل من هذه الشجرة المنتنة فلا يقربن مسجدا، فإن الملائكة تأذى مما يتأذى منه الإنس

Abu Bakr ibn Abi Shayba narrated to us Kathir ibn Hisham narrated to us from Hishām al-Distāwa'ee from Abul'Zubayr from Jābir, he said the Messenger of Allah, peace and blessings be upon him forbade eating of onions and leek. When we were overpowered by a desire (to

⁹ *Ṣaḥīḥ* Muslim [Vol. 1, no. 565]. The follow-on narration cited from Also cited in the *Musnad* of Aḥmad [Vol. 4, no. 16292]: 'Abd al-Malik ibn 'Amr narrated to us he said Khālid ibn Maysara narrated to us Mu'āwiya ibn Qurra narrated to us from his father, he said the Messenger of Allah, peace and blessings be upon him forbade consumption from the two-noxious trees; and he said: 'Whoever eats from them, do not come near the masjid'; and he said: 'Should you consume them, cook them thoroughly.' He said, meaning onions and garlic.' Similar also recorded by al-Bayhaqy in *Sunan al-Kubra*.

eat) we ate them. Upon this he said: *He who eats of this offensive plant must not approach our mosque, for the angels are harmed by the same things as men.*¹⁰

Next, also from *Ṣaḥīḥ* Muslim, shows that abstinence from eating these items related items is from that specific to him, peace and blessings be upon him.

وحدثني أبو الطاهر وحرمة قال أخبرنا بن وهب أخبرني يونس عن بن شهاب قال حدثني عطاء بن أبي رباح أن جابر بن عبد الله قال وفي رواية حرمة وزعم أن رسول الله صلى الله عليه وسلم قال من أكل ثوماً أو بصلاً فليعتزلنا أو ليعتزل مسجدنا وليقعد في بيته وإنه أتى بقدر فيه خضروات من يقول فوجد لها ريحاً فسأل فأخبر بما فيها من البقول فقال قربوها إلى بعض أصحابه فلما رآه كره أكلها قال كل فإني أناجي من لا تتاجي

And Abu Ṭāhir and Ḥarmala narrated to me, they said Ibn Wahb reported to us Yunus reported to me from Ibn Shihāb, he said Aṭā' ibn Abi Rabbāḥ narrated to me that Jābir ibn Abdullah said; in the channel of Ḥarmala carrying the addition that the Messenger of Allah peace and blessings be upon him said: *He who eats garlic or onion should remain away from us or from our masjid and stay in his house.* A kettle was brought to him which had (cooked) vegetables in it. He smelt the odour in it. On asking he was informed of the vegetables (cooked in it). He said: *Take it to such and such Companion.* When he saw it, he also disliked eating it. (Upon this). he said: *You may eat it, for I converse with one with whom you do not converse.*¹¹

It is also found in *Ṣaḥīḥ* Ibn Khuzaymah as follows:

أخبرنا أبو طاهر حدثنا أبو بكر حدثنا يونس بن عبد الأعلى حدثنا بن وهب أخبرني عمرو بن الحارث عن بكر بن سوادة أن أبا النجيب مولى عبد الله بن سعد حدثه أن أبا سعيد الخدري حدثه أنه ذكر عند رسول الله صلى الله عليه وسلم الثوم والبصل والكرات وقيل يا رسول الله وأشد ذلك كله الثوم أفتحرّمه؟ فقال رسول الله، صلى الله عليه وسلم: كلوه، ومن أكله منكم فلا يقرب هذا المسجد حتى يذهب ريحه منه

Abu Ṭāhir reported to us Abu Bakr narrated to us Yunus ibn 'Abd al-'Ala narrated to us Ibn Wahb narrated to us 'Amr ibn al-Ḥārith reported to me from Bakr ibn Sawāda that Abu al-Najeed, *mawla* to Abdullah

¹⁰ *Ṣaḥīḥ* Muslim [Vol. 1, no. 564]. Other scholars record this narration too, appearing in the *Ṣaḥīḥ* of Ibn Ḥibbān and *Sunan al-Kubra* of al-Bayhaqy.

¹¹ Ibid.

ibn Sa'eed narrated to him that Abu Sa'eed al-Khudri narrated to him that he mentioned when the Messenger of Allah, peace and blessings be upon him (mentioned about) onion, garlic and leeks. They said: Oh Messenger of Allah, the most severe of them is garlic - would you make it unlawful? So the Messenger of Allah, peace and blessings be upon him: *Eat it and he who eats it should not come near this masjid until its odour goes away.*¹²

In the *Sunan al-Kubra* Imām al-Nasā'i records the following:

أنبا مُحَمَّد بن المثنى قال حدثنا يحيى بن سعيد قال حدثنا هشام قال حدثنا قتادة عن سالم بن أبي الجعد عن معدان بن أبي طلحة أن عمر بن الخطاب قال إنكم أيها الناس تأكلون من شجرتين ما أراهما إلا خبيثتين هذا البصل والثوم، لقد رأيت نبي الله صلى الله عليه وسلم، إذا وجد ريحهما من الرجل أمر به فأخرج إلى البقيع، فمن أكلهما فليمتهما طبخاً

Muḥammad ibn al-Muthanna reports, he said Yaḥya ibn Sa'eed narrated to us he said Hishām narrated to us he said Qatādah narrated to us from Sālim ibn Abul'Ja'd from Ma'dān ibn Abi Ṭallḥa that Umar ibn al-Khaṭṭāb said: O people, you eat of two plants which I do not think are anything but bad, this onion and garlic. I have seen the Prophet of Allah peace and blessings be upon him, if he noticed their smell coming from a man, ordering that he be taken out to al-Baqi'. Whoever eats them let him cook them to death!¹³

In *Sharḥ Ma'āni al-Athār* there is:

حدثنا فهد قال حدثنا أبو غسان قال حدثنا قيس عن أبي إسحاق عن شريك بن حنبل عن علي عن النبي صلى الله عليه وسلم، قال من أكل هذه البقلة فلا يقربنا، أو يؤذينا في مساجدنا

Fahd narrated to us he said Abu Ghassān narrated to us he Qays narrated to us from Abu Ishāq from Shareek ibn Ḥanbal from Ali from the Prophet peace and blessings be upon him, he said: *Whomsoever*

¹² *Ṣaḥīḥ* Ibn Khuzaymah [Vol. 3, no. 1669]

¹³ al-Nasā'i *Sunan al-Kubra* [Vol. 1, no. 787]. Imām al-Nasā'i also has the following channel concerning the same matter in the *Sunan al-Kubra* - 'Muḥammad ibn Abdullah ibn Mubārak reported to us he said Shabāba ibn Sawār narrated to us he said Shu'ba narrated to us from Qatādah, to the end of the reported text.' It is also reported in the *Musnad* of Ḥumaydi.

eats from this offensive plant shouldn't come close with this harmful (odour) in our masjid.

After this Imām al-Ṭaḥāwī said:

The people disliked to eat onions because of the smell it would give and they would be insistent upon this because of these narrations. Later on people differed with them in this and stressed that the Prophet only prohibited eating it when coming to the *masjid*. Not because it was *ḥarām* (per se) but because people were disturbed in the *masjid* by the smell.¹⁴

Acts of abomination

Unlike the subject of consuming garlic and onions we find the opposite end of the scale so to speak, that concerning the prohibition of homosexuality. This prohibition though, is categorical as from the various meanings which are extracted from the book of Allah. He the Exalted says:

وَلَوْطًا آتَيْنَاهُ حُكْمًا وَعِلْمًا وَنَجَّيْنَاهُ مِنَ الْقَرْيَةِ الَّتِي كَانَتْ تَعْمَلُ الْخَبَائِثَ إِنَّهُمْ كَانُوا قَوْمٌ فَاسِقِينَ

*We gave Lot sound judgement and knowledge and saved him from the community who practiced obscenities - they were shameless people who broke God's law!*¹⁵

Allah clarifies in the following verses the ultimate form of *khābā'ith*, namely that of approaching men instead of women and committing acts of abomination. Allah blessed be His names says:

وَلَوْطًا إِذْ قَالَ لِقَوْمِهِ أَتَأْتُونَ الْفَاحِشَةَ مَا سَبَقَكُمْ بِهَا مِنْ أَحَدٍ مِنَ الْعَالَمِينَ

*We sent Lot and he said to his people, 'How can you practise this outrage? No one in the world has outdone you in this.'*¹⁶

وَلَوْطًا إِذْ قَالَ لِقَوْمِهِ أَتَأْتُونَ الْفَاحِشَةَ وَأَنْتُمْ تُبْصِرُونَ ، أَنْتُمْ لَتَأْتُونَ الرِّجَالَ شَهْوَةً مِنْ دُونِ النِّسَاءِ بَلْ أَنْتُمْ قَوْمٌ تَجْهَلُونَ

¹⁴ al-Ṭaḥāwī *Sharḥ Ma'āni al-Athār* [Vol. 4, p. 238]

¹⁵ *Qur'ān* 21: 74

¹⁶ *Qur'ān* 7: 80

*We also sent Lot to his people. He said to them, 'How can you commit this outrage with your eyes wide open? How can you lust after men instead of women? What fools you are!'*¹⁷

أَنْتُمْ لَتَأْتُونَ الرِّجَالَ وَتَقْطَعُونَ السَّبِيلَ وَتَأْتُونَ فِي نَادِيَكُمُ الْمُنْكَرَ فَمَا كَانَ جَوَابَ قَوْمِهِ إِلَّا أَنْ قَالُوا إِنَّنَا بِعَذَابِ اللَّهِ إِنْ كُنْتَ مِنَ الصَّادِقِينَ

*How can you lust after men, waylay travellers, and commit evil in your gatherings?' the only answer his people gave was, 'Bring Allah's punishment down on us, if what you say is true.'*¹⁸

أَتَأْتُونَ الذُّكْرَانَ مِنَ الْعَالَمِينَ ، وَتَذَرُونَ مَا خَلَقَ لَكُمْ مِنْ أَنْفُسِكُمْ بَلْ أَنْتُمْ قَوْمٌ عَادُونَ

*Must you, unlike [other] people, lust after males and abandon the wives that Allah has created for you? You are exceeding all bounds,*¹⁹

If the last two verses mentioned were the only ones revealed in relation to this subject, that would not suffice for a demonstrative prohibition in the last and final *Sharī'ah*. Given that the previous abrogated laws are not to be followed, additional evidence would be required substantiating this point. The acts undertaken by the people at the time of Luṭ peace be upon him were described as being *fāḥisha*. Consequently it is deemed to be *fāḥisha* in and of itself. According to what we mentioned above from amongst the definite rules, this action is definitely prohibited in this final *Sharī'ah* until the day of resurrection. The point becomes somewhat clearer when the verses in chapters seven and sixteen are also placed within view. Allah himself described these acts of homosexuality as being *fāḥisha*, thereby demonstrating its prohibition. All the Companions of the Prophet Muḥammad peace be upon him understood similarly, as did those who followed them. In fact, all Muslims since that time have concurred upon the illegality of acts which are the same or similar to that which the people of Luṭ peace be upon him undertook.

To emphasise the point again, the fact that some matter, objects / entities, sayings and acts deserve to be call *khabeeth* or *fāḥisha* because of reasons bound with it in itself or for other considerations, is only because Allah has

¹⁷ *Qur'ān* 27: 54/55

¹⁸ *Qur'ān* 29: 29

¹⁹ *Qur'ān* 26: 165/166

made it like that through his determination of the universe in which we reside. They are not according to reasonable necessity or absolute concepts which cannot be violated. The whole universe with its fundamental system and initial conditions is a *possibility*, a contingent being, a creation and existing because Allah made it like that according to his destined formative and creative order. There are some possible universes that may have neither *khabeeth* nor *fāḥisha* in it – the most obvious being paradise. While there are other existing universes, that are not suitable for any legally competent to live in, or, they are even not suitable for any form of life. All that is possible and what is possible will never turn actually to the form of existing, except that if Allah makes, creates and permits it to be like that. Allah says: ‘*When He wills something to be, His way is to say, “Be” — and it is.*’²⁰

Other obscene matters

There are indeed but a few categories of the *fāḥisha* in all existing universes as they contradict absolute reasonable necessities. The idea that Allah has partners or offspring or that His knowledge is limited; that He transgresses or acts unjustly is false in all realities and considered obscene. Allah is far above such notions. Truly, Allah is the One and only, the living, self-subsisting, His existence being the manifest truth. It is from among the impossibilities that any of such obscene matters could be regarded as obliged in any possible assumed creed in any existing universe. Various *aḥādith* serve to exemplify the point further, as recorded in *Ṣaḥīḥ* al-Bukhārī on the authority of Abu Hurayrah:

حدثنا إسحاق بن منصور قال وحدثنا عبد الرزاق أخبرنا معمر عن همام عن أبي هريرة قال قال رسول الله صلى الله عليه وسلم كذبني بن آدم ولم يكن له ذلك وشتمني ولم يكن له ذلك أما تكذبيه إياي أن يقول إني لن أعيده كما بداته وأما شتمه إياي أن يقول اتخذ الله ولدا وأنا الصمد الذي لم آلد ولم أولد ولم يكن لي كفوا أحد لم يلد ولم يولد ولم يكن له كفوا أحد: كفوا وكفينا وكفاء واحد

Ishāq ibn Manṣūr narrated to us he said ‘Abd al-Razzāq narrated to us Ma’mar reported to us from Hammām from Abu Hurayrah he said the Messenger of Allah, peace and blessings be upon him said: (*Allah says*) *The son of Adam tells a lie against me and he hasn't the right to do so;*

²⁰ *Qur’ān* 36: 82

*and he curses Me and he hasn't the right to do so. His telling a lie against Me is his saying that I will not recreate him as I created him for the first time; and his cursing Me is his saying that Allah has begotten children, while I am the self-sufficient master, whom all creatures need, who begets not nor was he begotten, and there is none like unto Me.*²¹

حدثني عبد الله بن أبي شيبه عن أبي أحمد عن سفيان عن أبي الزناد عن الأعرج عن أبي هريرة قال قال النبي أراه قال يَشْتَمُنِي بن آدم وما ينبغي له أن يَشْتَمُنِي ويكذبني وما ينبغي له أما شتمه فقله إن لي ولدا وأما تكذيبه فقله ليس يعيدني كما بداني

Abdullah ibn Abi Shayba narrated to me from Abu Aḥmad from Sufyān from Abi Zinād from al-‘Araj from Abu Hurayrah he said the Prophet said: *I see that the son of Adam slights Me, and he should not, he disbelieves in Me and he ought not to do so. As for his slighting Me, it is that he says that I have a son; and his disbelief in Me is his statement that I shall not recreate him as I have created (him) before.*²²

After citation in *Ṣaḥīḥ* Ibn Ḥibbān, he followed this with the additional comment:

That he, peace and blessings be upon him said: ‘*And the initial creation [of him] is no easier for Me than remaking him.*’ In this statement is an explicit clarification that attributes, which are used to describe individuals and imply deficiency, are not permissible to ascribe to Allah, Mighty and Majestic is He. This is because logic necessitates that one should use the phrase ‘difficult for me’ instead of the phrase ‘easier for me’. However, using a phrase implying difficulty was avoided as it is infers deficiency. Therefore it was replaced with a phrase implying ease which does not have the same ramifications.

Imām Aḥmad has the next narration in the *Musnad* with a good *isnād*:

²¹ *Ṣaḥīḥ* al-Bukhārī [Vol. 4, no. 4691]. Further additional citations to this *ḥadith* are provided, including *Ṣaḥīfa* Hammām ibn Munabih [Vol. 1, no. 106], *Ṣaḥīḥ* Ibn Ḥibbān [Vol. 3, no. 848] and *Musnad* Aḥmad [Vol. 2, no. 8204].

²² Ibid. [Vol. 3, no. 3021]. More than half a dozen additional references to this narration are also provided. Included among them are *Musnad* Aḥmad [Vol. 2, no. 9103], *Sunan* Nasā’i [Vol. 4, no. 2078] and *Ṣaḥīḥ* Ibn Ḥibbān [Vol. 1, no. 267]

حدثنا حسن حدثنا بن لهيعة حدثنا أبو يونس عن أبي هريرة عن النبي صلى الله عليه وسلم، قال ان الله عز وجل قال كذبنني عيدي ولم يكن له ليكذبني وشتمني عيدي ولم يكن له شتمي فأما تكذبيه إياي فيقول لن يعيدني كالذي بدأني وليس آخر الخلق أهون على ان أعيده من أوله فقد كذبني ان قالها وأما شتمه إياي فيقول اتخذ الله ولدا انا الله أحد الصمد لم ألد

Ḥasan narrated to us Ibn Lahia narrated to us Abu Yunus narrated to us from Abu Hurayrah from the Prophet peace and blessings be upon him said: *Indeed, Allah the Exalted and Majestic said - My slave denies Me and curses Me and he had no right to do so. As for his lie, it is (the claim) that he cannot be brought back as he was originally created. And as for his reviling Me, it is his saying that 'Allah has taken a son,' but I am Allah, al-Ṣamad, and do not give birth.*²³

Next al-Bukhārī records in his *Ṣaḥīḥ* the following *ḥadith*, which is narrated upon the authority of Ibn ‘Abbās;

حدثنا أبو اليمان أخبرنا شعيب عن عبد الله بن أبي حسين حدثنا نافع بن جبير عن ابن عباس عن النبي قال قال الله كذبني بن آدم ولم يكن له ذلك وشتمني ولم يكن له ذلك فأما تكذبيه إياي فزعم أنني لا أقدر أن أعيده كما كان وأما شتمه إياي فقله لي ولد فسبحاني أن اتخذ صاحبة أو ولدا

Abul-Yamān narrated to us Shu‘ayb reported to us from Abdullah ibn Abi Ḥussein, Nāfi ibn Jubayr narrated to us from Ibn ‘Abbās from the Prophet he said: *Allah said - The son of Adam tells a lie against Me, though he hasn't the right to do so. He abuses Me though he hasn't the right to do so. As for his telling a lie against Me, it is his saying that I will not recreate him as I created him for the first time. In fact, the first creation was not easier for me than a new creation. As for his abusing Me, it is his saying that 'Allah has begotten children,' while I am the One, the self-sufficient master whom all creatures need; I beget not, nor was I begotten, and there is none like unto Me.*²⁴

As we can see from the aforementioned evidences taken from the Prophetic *Sunnah*, such statements are regarded as being false and obscene in all universes. They contradict the fact that Allah is the one and only manifest

truth. It is among the impossibilities that any, of such matters, are obligations in any possible assumed creed, in any existing universe. In this universe in which we live now, during this present worldly life on this earth after the advent of Abul’-Qāsim, Muḥammad ibn Abdullah – the servant of Allah and his final Messenger the obligation is to turn only to the revelation. In other words, to only refer for all matters of judgement to the legal texts - the Qur’ān and the *Sunnah* – and nothing else, in order to search and locate the judgment of Allah in every issue. These legal texts are in effect like the ‘ark of Noah’ - *Safeena Nuḥ*. Whoever boards the ark is saved from danger and survives; whoever misses it, will drown and perish, no matter how he deceives himself, imagining that he can fight waves and escape from the flood by resorting to the mountains.

To Allah and His Messenger is the return of all judgement to the revealed *Sharī’ah* legal texts. That is Islam and *al-‘Imān*, which is the core of what is considered being subservient to Allah, worshipping him, which is the vocation of all mankind and *jinn*. Even if the reasonable search concerning the essence of matters be they entities, actions or sayings were just in order to know if a matter is *ṭayib*, *khabeeth* or *fāḥisha*, it is not lawful to be used in order to reach a legal judgment. As in this case, it is not turning to Allah and His Messenger. Even if it was lawful in objective study or a philosophical search in order to know the nature of matters and their essences, or to other than that from among the permissible, desirable and obligatory aims and targets, it is definitely not lawful if it was to know the judgment of Allah in such matters.

Thus there is no need for useless arguments such as – ‘is the judgment of matters according to reason only, to *Sharī’ah* only, or to both of them through certain order or certain arrangement.’ We may say that this issue could be a subject for philosophical, intellectual or legal research, but it is purely theoretical, with no resultant action and it is not among the field of *Sunnah* or *bidāh*’ as some claimed from ancient times from amongst the *Mu’tazilah* or among those who claim to follow the ‘*Salaḥī*’ Islam in modern times, who are proud of themselves and their sect. They claim that they are ‘*al-Firqa al-Nājiya*’ or the ‘*Ṭā’ifa al-Manṣura*’, the saved victorious sect, brazenly asserting that only their followers would be admitted to paradise. We may say to them in response that Allah says:

²³ *Musnad Aḥmad* [Vol. 2, no. 8595]

²⁴ *Ṣaḥīḥ al-Bukhārī* [Vol. 4, no. 4212]. Further references for this are also provided to al-Ṭabarānī *Mu’jam al-Kabir* [Vol. 10, no. 10751] and *Musnad al-Shāmiyān* [Vol. 4, no. 2914].

وَقَالُوا لَنْ يَدْخُلَ الْجَنَّةَ إِلَّا مَنْ كَانَ هُودًا أَوْ نَصَارَىٰ تِلْكَ أَمَانِيُّهُمْ قُلْ هَاتُوا بُرْهَانَكُمْ إِن كُنْتُمْ صَادِقِينَ ، بَلَىٰ مَنْ أَسْلَمَ وَجْهَهُ لِلَّهِ وَهُوَ مُحْسِنٌ فَلَهُ أَجْرُهُ عِنْدَ رَبِّهِ وَلَا خَوْفٌ عَلَيْهِمْ وَلَا هُمْ يَحْزَنُونَ

They also say, 'No one will enter Paradise unless he is a Jew or a Christian.' This is their own wishful thinking. [Prophet], say, 'Produce your evidence, if you are telling the truth.' In fact, any who direct themselves wholly to Allah and do good will have their reward with their Lord: no fear for them, nor will they grieve.²⁵

Moreover we are only ordered but to the following:

اتَّبِعُوا مَا أُنْزِلَ إِلَيْكُمْ مِنْ رَبِّكُمْ وَلَا تَتَّبِعُوا مِنْ دُونِهِ أَوْلِيَاءَ قَلِيلًا مَّا تَذَكَّرُونَ

'Follow what has been sent down to you from your Lord; do not follow other masters beside Him. How seldom you take heed!'²⁶

The *Deen* has been established as complete, as Allah says:

الْيَوْمَ أَكْمَلْتُ لَكُمْ دِينَكُمْ وَأَتِمَمْتُ عَلَيْكُمْ نِعْمَتِي وَرَضِيتُ لَكُمُ الْإِسْلَامَ دِينًا

This day have I perfected for you your Deen and completed My favour on you and chosen for you Islam as a Deen.²⁷

Definitely this shows that every judgment, among all judgments till the day of resurrection is in this verse. We do not care if, what was made good by the text, is reasonable, unreasonable, can be realised by the mind; or not, can be realised reason then by *Sharī'ah*; by *Sharī'ah* and then by reason, or similar. This is the truth which must be believed upon as part of one's *aqeedah*. It cannot be otherwise for those who believe in Allah and the last day. Whosoever disbelieves in this, Allah is rich, without need or partner, lord of all the worlds.

²⁵ *Qur'ān* 2: 111/112

²⁶ *Qur'ān* 7: 3

²⁷ *Qur'ān* 5: 3

12. Allah does not command indecency

Previously we mentioned that it may be the case that Allah does not explicitly legislate (thereby permitting) against matters considered *fawāḥish* and *khabā'ith*, as well as prohibiting some from what is considered the *ṭayibāt* (good things), such as for Israel in previous *Sharī'ah*'s. As an absolute dictum, Allah *does not command* towards *fāḥisha*, in other words, making it a religious duty that is ordered, recommended or considered desirable. This neither occurs in the previous *Sharī'ah*'s nor in the present blessed final one. By greater reasoning, Allah did not permit - not in this universe or in other possible universes, something that deserves to be called *fāḥisha* originally. The conclusive proof which establishes this point unequivocally is the Qur'ānic verse where Allah the Exalted, Blessed be His names says:

وَإِذَا فَعَلُوا فَاجِشَةً قَالُوا وَجَدْنَا عَلَيْهَا آبَاءَنَا وَاللَّهُ أَمَرَنَا بِهَا قُلْ إِنَّ اللَّهَ لَا يَأْمُرُ بِالْفَحْشَاءِ اتَّقُوا اللَّهَ عَلَى اللَّهِ مَا لَا تَعْلَمُونَ

Yet when [these people] do something disgraceful, they say, 'We found our forefathers doing this,' and, 'Allah has commanded us to do this.' Say [Prophet], 'Allah does not command disgraceful deeds. How can you say about Allah things that you do not know [to be true]?'¹

Contained therein is a report of certain truth; an eternal maxim which cannot be contradicted neither can it be abrogated, for reports cannot be subject to

¹ *Qur'ān* 7: 28. Here the translation uses the word 'disgraceful' as opposed to others which utilise the word 'indecent' or 'indecency.' The latter is probably closer to the original Arabic as set in context.

abrogation - that Allah the Exalted does not command *fāḥisha*. He never commanded it previously, nor presently in any possible universe. Blessed are his names He says:

يَا أَيُّهَا الَّذِينَ آمَنُوا لَا تَتَّبِعُوا خُطُوَاتِ الشَّيْطَانِ وَمَنْ يَتَّبِعْ خُطُوَاتِ الشَّيْطَانِ فَإِنَّهُ يَأْمُرُ بِالْفَحْشَاءِ وَالْمُنْكَرِ وَلَوْلَا فَضْلُ اللَّهِ عَلَيْكُمْ وَرَحْمَتُهُ مَا زَكَا مِنْكُمْ مِنْ أَحَدٍ أَبَدًا وَلَكِنَّ اللَّهَ يُزَكِّي مَنْ يَشَاءُ وَاللَّهُ سَمِيعٌ عَلِيمٌ

*O you who believe, do not follow in Satan's footsteps - if you do so, he will urge you to indecency and evil. If it were not for Allah's bounty and mercy towards you, not one of you would ever have attained purity. Allah purifies whoever He will: Allah is all hearing, all seeing.*²

It is inconceivable that Allah the Exalted commands that which the devil, known as the enemy of Allah, commands! As mentioned previously, the purely rational judgement concerning a deed to be *khabeeth* or *ṭayib* would prove an extremely tall order. We have previously mentioned that the mental judgment on deeds to be evil or good may be very difficult. It is the same thing here regarding that which deserves to be called *fāḥisha*. That conceded, it may be even more difficult to make a judgment on an action or statement, in addition to a judgment on relations, proportions, abstract systems, positive and conventional matters as being *fāḥisha* on the basis of reason alone. If we suppose that it is possible in principle, it would be more difficult than judging something to be *khabeeth*, because it requires us to consider the reasons of the action, the nature of the action itself, what it is composed of and what it is related to. And then considering what may result from it as things, actions and occurrences, which are almost not limited in this vast universe. It is definitely impossible therefore, to be established by the text of the *Sharī'ah* (or by the necessity of reason, though we regard it as unlikely that it can be perceived with sense or perception of mind separately), that an action be *fāḥisha* in itself and then Allah commands its performance as a religious duty or even as a desirable matter. The judgement concerning desirable matters is that it is a command to be done, though it is not an absolute binding command and the person who leaves it is not considered sinful. Furthermore, it is impossible that Allah commands that something should be done, and then it appears as an act which is *fāḥisha*.

² Qur'ān 24: 21

We would hasten to clarify at this juncture that the juxtaposition between *khabeeth* and *ṭayib* regarding objects and benefits that are related to judgments of *ḥalāl* and *ḥarām* in this last blessed *Sharī'ah*, still fit within the overarching binding principle concerning permissibility being the default ruling on all matters unless a textual proof indicates otherwise. What necessarily results from that is that a certain 'thing' must definitely be *ṭayib* or *khabeeth*. Invariably the juxtaposition has nothing to be compared with the concept of absolute *fāḥisha*. It is true that the Allah has guaranteed the prohibition of all *fāḥisha* in this last blessed *Sharī'ah*. But what is not *fāḥisha* regarding statements and actions, relations, proportions and abstract systems and conventional man-made matters, may be religious duties *wājib*, *mustaḥab*, or *makruh*, or even *ḥarām*. It may be a 'positive / declaratory' - *al-waḍ'iya*, a matter that falls under the concepts of: *shart* (condition), *sabab* (cause), *rukhsa* (concession) or intention etc as 'positive / declaratory' judgments. Therefore, when something (especially, statements and actions) is not considered as *fāḥisha* and as a result, it is not void and unlawful, no certain judgment is obligatory for it. There is no difference between the judgment being a commandment, such as an obligation, desirability, permissibility, undesirability or even prohibition, or a man-made judgment, such as making it a condition or deterrent, permission, intention or judging it as authentic, corrupt or void, etc. Concerning all of these matters Allah judges according to the divine wisdom which is the exclusive possession of sovereignty, lordship and dominion.

In order that our words do not appear to be general and too abstract, making it difficult to understand, it is better that we consider the following example. The most lucid being the matter of unveiling the private parts of an adult woman for other than her husband. This is one of the unlawful acts, which is known by necessity in Islam. It is one of the absolute recurrent proofs in the glorious Qur'ān, the *Sunnah* and the consensus of the people of Islam. Hence for a woman to unveil her private parts is absolutely prohibited, regardless of the specific rank of prohibition whether it is a major or minor prohibition. Additionally, it is considered *fāḥisha* by the necessity of legislation as it is prohibited. The evidence concerning this issue is illustrated in the following verse:

قُلْ إِنَّمَا حَرَّمَ رَبِّي الْفَوَاحِشَ مَا ظَهَرَ مِنْهَا وَمَا بَطَنَ وَالْإِثْمَ وَالْبَغْيَ بِغَيْرِ الْحَقِّ وَأَنْ تُشْرِكُوا بِاللَّهِ مَا لَمْ يُنَزَّلْ بِهِ سُلْطَانًا وَأَنْ تَقُولُوا عَلَى اللَّهِ مَا لَا تَعْلَمُونَ

Say [Prophet], 'My Lord only forbids disgraceful deeds - whether they be open or hidden - and sin and unjustified aggression, and that you, without His sanction, associate things with Him, and that you say things about Him without knowledge.'³

The division is comprehensive, showing that prohibited things are of four main categories. First, making statements about Allah without knowledge, this is the worst of them. It occurs only in statements and beliefs. However, unveiling the private parts is not part of the genus of statements and beliefs; therefore it does not belong to this category at all. Secondly, *Shirk* with Allah. That is, ascribing partners to Allah. *Shirk* in creed or *aqeedah* is disbelief – *kufir*, such as ascribing another god alongside Allah. There is also *Shirk* of action, such as *Shirk Khafi* such as showing off and being ostentatious. Unveiling the private parts does not belong to *Shirk* of belief or deed. Third, it is not an aggressive sin in the sense of an infringement upon other people's rights. Indeed a woman unveiling her private parts may be disturbing for some, whereas it is exciting or delightful for others. But no one in the world would say that it would constitute aggression upon other people, such as shedding blood, taking people's wealth and consuming it unjustly; beating people on their backs and faces, violating the honour by levelling false accusations against a spouse or a breach of covenants and so on and so forth. Lastly, necessity dictates that this action must squarely fall within the fourth and last category, which is that of obscenities, *al-fawāḥish*. In reality, it is intuitively one of the most obvious of obscenities. We say, narrowly speaking, regarding the indecencies, injustice, oppression and aggression are also excesses beyond the proper limit. Therefore, it is *fāḥisha* and excess in the broad sense.

In the same manner, ascribing a partner with Allah is an aggression upon Allah's right, that of being worshipped alone without the association of any partner. It is also an assault upon reason and truth to claim the existence of another deity with Allah. In fact, it is actually a claim assuming the existence of that which is an absolute impossibility. *Shirk* - polytheism, therefore is an

³ Qur'ān 7: 33

obscurity, *fāḥisha* and is excessiveness in the broadest sense. Making statements about Allah without knowledge, is deeper in *fāḥisha*, excessiveness, aggression upon Allah's due, and upon the mind, which is the cause of responsibility. If someone were to say that all prohibitions are *fawāḥish* according to this broad sense, the person would be right to say so. With regard to this, the addition of the other three categories in the Qur'ānic verse adds particular to the general.

One will notice that the order of the main four categories in the Qur'ānic verse is in an ascending order to the general categorisation. This means that the worst sort of *fawāḥish*, in the narrow sense, such the acts committed by the people at the time of Luṭ, does not reach in terms of sin the highest rank, that of aggression - killing, rape or levelling false accusations against chaste married women. Yet again these are not in the same rank as ascribing a partner with Allah. Although they are falsehood and saying something about Allah without knowledge, yet they are less in rank, compared to someone who accuses Allah of wrong, foolishness and deviating from the truth, as the devil did, may Allah curse him. The topic is in itself vast however this short study here is but an introduction rather than a comprehensive analysis. What we have previously said is evident and confirmed by the word of Allah the Exalted:

قُلْ تَعَالَوْا أَتْلُ مَا حَرَّمَ رَبِّي عَلَيْكُمْ عَنِ الْوَالِدَيْنِ إِحْسَانًا وَلَا تَقْتُلُوا أَوْلَادَكُمْ مِنْ إِمْلَاقٍ نَحْنُ نَرْزُقُكُمْ وَإِيَّاهُمْ وَلَا تَقْرَبُوا الْفَوَاحِشَ مَا ظَهَرَ مِنْهَا وَمَا بَطَنَ وَلَا تَقْتُلُوا النَّفْسَ الَّتِي حَرَّمَ اللَّهُ إِلَّا بِالْحَقِّ ذَٰلِكُمْ وَصَاكُم بِهِ لَعَلَّكُمْ تَعْقِلُونَ

Say, 'Come! I will tell you what your Lord has really forbidden you. Do not ascribe anything as a partner to Him; be good to your parents; do not kill your children in fear of poverty'— We will provide for you and for them— 'stay well away from committing obscenities, whether openly or in secret; do not take the life Allah has made sacred, except by right. This is what He commands you to do: perhaps you will use your reason.'⁴

Some may misunderstand this topic by putting forth an objection that at an earlier juncture, Allah commanded Ibrāhim peace be upon him to sacrifice his son. Taking another human life is a heinous crime, unless it is by way of due

⁴ Qur'ān 6: 151

process of law or done in a legitimate war, or by defending oneself against an aggressor. According to this line of argumentation, Allah the exalted would appear to have commanded at least one *fāḥisha* which some, who do not understand the holistic nature of the ownership of the creator over his creation, would see as being a refutation of all what we have written thus far!

But this objection is invalid, built upon a corrupt foundational reasoning. All souls, including the souls of the children of Adam belong to Allah. He has sovereignty over them and he has the absolute sovereignty to do whatever he wants. Other than restrictions he has placed upon himself, which he has informed us of via revelation; he is not bound by our limitations. Placing oneself in harm's way as an act of devout adherence to Allah's commandments or killing another person for the same purpose, within the prescribed limits of revelation, is not considered absolute *fāḥisha*. Such acts are however, challenged by the worldly-minded people, secularists who claim that man is not slave to his lord and creator. They would have us believe that man is the master of himself, being both lord and god in miniature. Such line of argumentation is at complete odds with *Tawḥeed*, which the Prophet of Islam, Muḥammad ibn Abdullah the last of the Prophets and the Messengers (peace be upon them) brought to us all. It is thus *kufṛ* (disbelief), which definitely contradicts Islam. Not only that, it also contradicts reason and logic.

On the other hand, placing oneself in harm's way outside of prescribed limits is an act designated as being prohibited, unless it is done as an act of martyrdom. In the same way, killing another person is also prohibited, except by way of a legitimate *Jihād* such as defending oneself against a hostile aggressor or as part of a legitimate judicial process in a *Sharī'ah* court. Other types of killing apart from this would be considered, firstly as *fāḥisha* and *munkar*. It is transgression of prescribed limits and what is more, as wrongdoing and aggression on people's property and the possession of the creator. Therefore, it is unlawful in this context, as it is obvious from the Qur'ānic verse.

Secondly, making statements about Allah without knowledge; in the case of the one who kills himself or kills another purely as a sacrifice to be devout to Allah, just like sacrificial animals. This is because Allah abrogated that commandment, which He commanded Ibrāhim peace be upon him to perform and he ransomed Ismā'il with a great sacrifice. After that he did not command such a commandment in successive religions. It is not that he is not worthy,

that human sacrifice should be made for him, as an act of devotion, but it is just that he has abrogated this kind of sacrifice, in order to bestow his favour, kindness and mercy upon us. Therefore, whoever does that, he would have committed a prohibited act by saying something about Allah without knowledge, which is an innovation in the religion, for he has made his action a devout act to Allah, while Allah did not make it a legal act of devotion and this is one of the main causes of prohibition as it is clear in the Qur'ānic verse.

